United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 116th CONGRESS, FIRST SESSION

Vol. 165 WASHINGTON, TUESDAY, JULY 16, 2019 *No. 119*

House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. CUELLAR).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
July 16, 2019.

I hereby appoint the Honorable HENRY CUELLAR to act as Speaker pro tempore on this day.

NANCY PELOSI,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 3, 2019, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties. All time shall be equally allocated between the parties, and in no event shall debate continue beyond 11:50 a.m. Each Member, other than the majority and minority leaders and the minority whip, shall be limited to 5 minutes.

IN RECOGNITION OF MARY PHILLIPS WHITE GETTYS

The SPEAKER pro tempore. The Chair recognizes the gentleman from South Carolina (Mr. NORMAN) for 5 minutes.

Mr. NORMAN. Mr. Speaker, I rise today to celebrate the life of a truly great American, Mary Phillips White Gettys, who will turn 99 on August 6 of this year.

Ms. Gettys was born in Chester, South Carolina, on August 6, 1920, which was the same year that women gained voting rights. She graduated from Chester High School, where she was valedictorian of her senior class. She enrolled in Erskine College and graduated in 1941 with a degree in music.

Her first job was teaching junior high school in Anderson, South Carolina, and she later joined WAVES, which stands for Women Accepted for Volunteer Emergency Service, in 1943. She began her training at Mount Holyoke College in South Hadley, Massachusetts, where she specialized in communications while studying at Smith College in North Hampton, Massachusetts. She was assigned to the communications office in the Norfolk Navy Yard in Portsmouth, Virginia.

After achieving the rank of lieutenant, she was tasked with the complicated task of coding and decoding communications received and sent by the Naval Command. Her duties included delivering urgent top secret messages to military leaders, where she would have to strap on her weapon and be escorted across the yard to deliver the vital information.

In 1946, Ms. White left the Navy and began working for AAA, the American Automobile Association, located in Charlotte, North Carolina.

In 1947, she met Tom Gettys, whom she would become engaged to after 3 weeks and married 3 months after their engagement. Little did she know that she would become the lifelong partner of a man who would successfully become the Fifth District Congressman of South Carolina, where he would serve for five terms until retiring in 1974.

They returned to his hometown of Rock Hill, South Carolina, where they would raise two daughters, Julia Martin Gettys Burchett and Sara Elizabeth Gettys Pierce. The Gettys were married for 56 years until the death of Congressman Gettys in 2003.

Mary Phillips Gettys is a true leader in her community and received many awards, including: Woman of the Year from the First ARP Church, where she faithfully attended; the Cross of Military Service from the United Daughter of the Confederacy in 2001; the Quilt of Valor award in 2015, presented by the Quilts of Valor Foundations for veterans touched by war; the National Award in 2017, presented from DAR, the Daughters of the American Revolution for Women in American History.

Mary Phillips Gettys is the proud and devoted grandmother of six grandchildren and three great-grandchildren. She is the epitome of a gracious and charming Southern lady, and by her life, she has demonstrated a love for her God, a love for her family, the love of her fellow man, and the love of her great country.

She is a true American patriot who always has a smile on her face and has lived her life in true service to her fellow man.

RESOLUTION TO IMPEACH

The SPEAKER pro tempore. The Chair recognizes the gentleman from Texas (Mr. GREEN) for 5 minutes.

Mr. GREEN of Texas. Mr. Speaker, and still I rise; because I love my country, I rise.

And I rise today to ask a question of all people of good will. I rise today to pose a question: What do you do when the leader of the free world, when the leader of the country that extolls liberty and justice for all—government of the people, by the people, for the people, all persons are created equal and endowed by their creator with certain inalienable rights—what do you do when the leader of the free world is a racist? What do you do?

Well, here is what you do: You file a resolution, a resolution condemning the President for racist comments directed at Members of Congress.

What do you do? You file Articles of Impeachment impeaching the President of the United States of America.

Printed on recycled paper.

These two things are not mutually exclusive. We can condemn for the comments that have been made, and we can impeach for the harm that the comments are causing to our society.

Both of these things can be done, and neither will interfere with the Mueller report. The Mueller report—some 90 days now the President has been above the law since the Mueller report was made public.

What do you do? You pass this resolution.

I intend to support it, and I thank the gentleman who filed it for doing so. I believe it is a good resolution.

One of the statements in this resolution that has been reported widely is that the President presented racist comments that have legitimized fear and hatred. I will salute and support the resolution, but you also will hear this resolution to impeach. I would like to read to you what it says in part:

Impeaching Donald John Trump, President of the United States.

Then it goes on to read:

The aforementioned, Donald John Trump, has, by his statements, brought the high office of President of the United States in contempt, ridicule, disgrace, and disrepute; and has sown discord among the people of the United States; has demonstrated that he is unfit to be President, and has betrayed his trust as President of the United States to the manifest injury of the people of the United States; and has committed a high misdemeanor in office. Therefore, Donald John Trump, by causing such harm to the society of the United States, is unfit to be President and warrants impeachment, trial, and removal from office.

Those who tolerate bigotry perpetuate bigotry.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President.

CONGRATULATIONS TO THE STUDENTS OF NORTHERN CAMBRIA MIDDLE SCHOOL—SKILLSUSA GOLD MEDALISTS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today in recognition of the impressive career and technical education students in Pennsylvania's 15th Congressional District.

Career and technical education helps learners of all ages gain valuable skills that have the potential to lead to good-paying jobs and rewarding careers. It all starts with our Nation's most valuable resource: our people. Hardworking men and women and the dedicated students who have chosen to pursue a technical career are the backbone of our economy.

As co-chair of the bipartisan House Career and Technical Education Caucus, I couldn't be happier to congratulate Jakob Dixon of Indiana County, Pennsylvania, on recently winning a gold medal for his work with sheet metal at the SkillsUSA National Leadership and Skills Conference. The 56th annual event took place in Louisville, Kentucky, and hosted upwards of 6,500 students to compete in more than 100 different skills-based competitions. Jakob will be a senior this fall in the Heating, Ventilation, and Air Conditioning program at the Indiana Career Technology Center.

Additionally, in Cambria County, Pennsylvania, Northern Cambria Middle School celebrated its back-to-back national championships in the 41st annual Technology Student Association national conference in Washington, D.C., just earlier this month.

More than 8,500 students from across the country competed in 70 different events, including woodworking, programming robots, debate, and more. Every student from Northern Cambria Middle School who competed in the contest achieved national recognition as a top 10 finalist.

Mikey Konitsky, Chris Yahner, Peyton Myers, and Braden Moriconi became national champions in the mechanical engineering competition, a category they have also won in the Commonwealth State of Pennsylvania.

Additionally, Chris Yahner and his classmate Caleb Born placed third in the Nation in structural design and engineering, and Garret Link placed ninth in the Nation for flight endurance.

I am proud of Jakob Dixon and the students of Northern Cambria Middle School and the many students like them across the Commonwealth and the country who have chosen to pursue a skills-based career in such a competitive workforce.

Students like these are in high demand. More than 80 percent of manufacturers claim talent shortages prevent them from keeping up with customer demand, and 46 percent of employers say they have difficulty finding talent, particularly in the skilled trades.

Career and technical education prepare students to be career ready by providing core academic skills, employability skills, and technical job-specific skills through hands-on learning opportunities.

We need more students like Jakob, Mikey, Chris, Peyton, Braden, John, Caleb, and Garret. The value they will add to the American workforce one day cannot be overstated.

REFUGEE ADMISSIONS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Alabama (Mr. BROOKS) for 5 minutes.

Mr. BROOKS of Alabama. Mr. Speaker, the President is Commander in Chief. His highest constitutional duty is protecting American lives.

As of 2016, so-called refugee admissions from the Middle East, Near East, South Asia, and Africa accounted for 80 percent of so-called refugee admissions into America.

I say ''so-called refugees'' because the United Nations states no country is obligated by international law to take refugees from a country in which they are already protected.

The result of America's flawed policy? America is the world's top refugee resettlement country on the planet.

In a 2015 Breitbart interview, I opposed these dangerous refugee policies and stated: ''Barack Obama wants to endanger Americans by importing people, some of whom undoubtedly will resort to terrorism and killing Americans at some point in the future.''

Consistent with my view that importing unvetted people from terrorist-laden countries threatens American lives, the House, in 2015, passed a law requiring a full FBI background investigation for alleged Iraq or Syria refugees. The bill died in the Senate while under an Obama veto threat.

In 2017, a newly elected President Trump stated: ''In order to protect Americans, the United States must ensure that those admitted to this country do not bear hostile attitudes toward it and its founding principles. The United States cannot, and should not, admit those who do not support the Constitution or those who would place violent ideologies over American law.''

□ 1015

''In addition, the United States should not admit those who engage in acts of bigotry or hatred, including 'honor' killings, other forms of violence against women, or the persecution of those who practice religions different from their own.''

As expected, socialist Democrats and their fake news media allies reacted by calling President Trump names rather than supporting policies that save American lives.

For example, House Speaker NANCY PELOSI said: ''This week, I joined my colleagues on the steps of the Supreme Court to fight the President's reprehensible order. . . . The values illustrated were in stark contrast with the President's unconstitutional, immoral, and dangerous ban on refugees and citizens of Muslim countries coming into the United States.''

Predictably, a radical, leftist judge restrained President Trump from protecting American lives. Fortunately, a later President Trump refugee and travel policy was approved by the Supreme Court as ''squarely within the scope of Presidential authority.''

As would be expected, this decision was ridiculed with hysterical headlines from the left. NBC News stated, ''The Supreme Court's travel ban decision adds to its legacy of legitimizing racism.''

Protecting Americans from terrorism is ''reprehensible,'' ''immoral,'' ''racism''? This is all ignorant and baseless socialist Democrat and fake news media slander intended to stifle rational debate.

But truth eventually wins out. Recently, an unvetted so-called Syrian

refugee who entered America 3 years ago was charged with terrorism. According to an affidavit filed in Pittsburgh Federal court, the FBI investigation of Mustafa Mousab Alowemer ''revealed that Alowemer plotted to bomb a church located on the north side of Pittsburgh . . . using a weapon of mass destruction, i.e., an explosive device.''

According to Alowemer, his motivation to detonate a device at the church was to ''support the cause of ISIS and to inspire other ISIS supporters in the United States to join together and commit similar acts in the name of ISIS.''

Fortunately, the FBI stopped Alowemer from blowing up a church and slaughtering innocent American Christians. Unfortunately, American lives are still at risk from terrorists masquerading as refugees.

Mr. Speaker, I ask: How many dead Americans does it take to cause open-border advocates to secure our borders and protect American lives?

Unfortunately, no one knows because socialist Democrats have shown there is no amount of American blood on their hands that will cause them to protect American lives by securing America's borders.

RECOGNIZING ROSE MARIE STRIPPOLI

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. FITZPATRICK) for 5 minutes.

Mr. FITZPATRICK. Mr. Speaker, I rise today to recognize Rose Marie Strippoli, an accomplished artist from Bristol, Pennsylvania.

In addition to receiving numerous awards throughout her career, her most recent acrylic painting titled ''The Passage'' was recognized as best in show at the 70th Tinicum Arts Festival last week. Her abstract painting, combining vibrant colors with masterful strokes, stood out amongst submissions from more than 180 artists at the festival.

In addition to her artistic excellence and success, she has tirelessly advocated for local artists in the Bucks County area. One of her most notable accomplishments was her work to establish an exhibit at the Lower Bucks Campus of the Bucks County Community College featuring a rotation of pieces from local artists. The exhibit opened in 2015 and has highlighted many up-and-coming local artists since that time.

Her constant drive to better herself as a person and as an artist earned her a spot in the Centre for the Arts Hall of Fame in Bristol in 2016.

Mr. Speaker, I congratulate Rose Marie on her accomplished career and extend to her the best of luck in her future endeavors. Her work has improved opportunities for young artists in our community, for which we owe her many thanks.

COMMENDING THE LIFESAVING ACTIONS OF POLICE OFFICER RYAN BUNDA

Mr. FITZPATRICK. Mr. Speaker, I rise today to commend the brave and lifesaving actions of Police Officer Ryan Bunda of the Warminster Township Police Department.

On July 11, 2019, Officer Bunda observed a white pickup truck rolling slowly down a busy roadway in his patrol area. Officer Bunda, in an act of incredible bravery and initiative, ran alongside the truck, opened the door, and used his hand to press the brake, bringing the vehicle to a halt.

The driver of the truck was suffering from a seizure, and Officer Bunda, with the help of a local firefighter who was passing on the other side of the road, removed the victim from the vehicle and administered lifesaving first aid on the side of the road.

With the help of this firefighter and the additional medical assistance of EMTs, who arrived shortly after, Officer Bunda saved the driver from life-altering harm or death, as well as protecting the safety of other drivers on the roadway.

This act of bravery on behalf of Officer Bunda serves as a reminder of the debt of gratitude we owe to the incredibly brave and selfless public servants in law enforcement.

Mr. Speaker, I thank Officer Bunda for his brave actions and his career of service, and I extend thanks to all first responders and law enforcement officials across Bucks County and across our country.

HONORING THE LIFE AND MEMORY OF TROY M. PEREIRA

Mr. FITZPATRICK. Mr. Speaker, today, I rise with a heavy heart to honor the life and memory of Troy Pereira of Falls Township, Pennsylvania, a graduate of Pennsbury High School and a gifted student-athlete.

Troy held a career as a warehouse logistics specialist for H&M in Burlington, New Jersey.

Troy participated in community sports programs, such as the Morrisville Babe Ruth baseball team and the Morrisville Bulldog team. He was also a member of the championship Pennsbury men's volleyball team, which qualified for the State volleyball championship in 2013.

Athletics aside, Troy is remembered as a generous and kind soul who was deeply loved by all who met him. My heart goes out to his parents, Matthew A. Pereira and Kathleen Holder Hirko, and her husband, Jeffrey Hirko; his brother, Kyle Pereira; and his sister, Chelsea Pereira.

Troy's life was taken from us too soon. In the short time he was with us, Troy was a leading example of the importance of community engagement. May he now enjoy his eternal reward for a life he spent serving others.

HONORING THE 50TH ANNIVERSARY OF APOLLO 11 MOON LANDING

The SPEAKER pro tempore. The Chair recognizes the gentleman from Florida (Mr. SPANO) for 5 minutes.

Mr. SPANO. Mr. Speaker, I rise today to honor the 50th anniversary of the Apollo 11 Moon landing.

Fifty years ago, Neil Armstrong, Buzz Aldrin, and Michael Collins launched from Florida's coast at Kennedy Space Center with the goal of being the first to step foot on the Moon.

On July 20, 1969, Neil Armstrong accomplished what was only a short time prior believed to be impossible. He became the first man to set foot on the Moon, uttering the famous words, ''That's one small step for man, one giant leap for mankind.''

Those words ring through history, but it is important that we also recognize the hundreds of scientists, engineers, mathematicians, and support staff who worked tirelessly to ensure mission success but do not receive the public recognition that they deserve for their contributions.

One example of this is Susan Finley. She began her career as a computer programmer at NASA's Jet Propulsion Laboratory and wrote software for the Deep Space Network. That software made it possible to hear the transmissions from the Moon that showed the world what was possible when the United States committed to achieving the impossible.

I am also incredibly proud that 50 years after this accomplishment, Florida remains at the forefront of space exploration. Today, the new crew capsules designed to launch American astronauts into space are being built, and I hope that by the end of this year, in which we are celebrating the first Moon landing, we will again see American astronauts climb into American-built capsules and launch into space from Florida's shores.

We have relied on Russian spacecraft for too long, and this will inspire a new generation of American children to develop a passion for exploration and to pursue science, technology, engineering, and mathematics education, just as the Apollo program did 50 years ago when Neil Armstrong and Buzz Aldrin became the first to set foot on the Moon.

President George Bush said: ''Mankind is drawn to the heavens for the same reason we were once drawn into unknown lands and across the open sea. We choose to explore space because doing so improves our lives and lifts our national spirit. So let us continue the journey.''

CONGRATULATING MICHAELA MCLEAN, MISS FLORIDA 2019

Mr. SPANO. Mr. Speaker, I rise today to congratulate Michaela McLean on her crowning achievement of being named Miss Florida 2019.

Michaela, a graduate of East Ridge High School in Clermont, Florida, and

daughter of two citrus growers, is no stranger to pageants, as she had also previously been named Miss Florida Citrus.

To win this latest competition, she was able to showcase her skills as a collegiate dance major, a talent she uses to express her dreams and her struggles.

She has plans now to use her other college major of public relations to help promote Florida's economic and cultural strengths.

Michaela will promote her social impact initiative called Brave & Beautiful, which encourages women to develop healthy habits while living purpose-driven lives. Brave & Beautiful has already launched conferences in multiple schools in central Florida and has made an impact internationally in Kenya, Guatemala, and the Dominican Republic.

Mr. Speaker, I am proud to hear how Michaela is using her many gifts to help transform lives, and I applaud her efforts. She is a wonderful role model for our young women.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 26 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. CUELLAR) at noon.

PRAYER

Bishop A. Elias Zaidan, Eparchy of Our Lady of Lebanon of Los Angeles, St. Louis, Missouri, offered the following prayer:

Almighty and loving God, we lift our hearts and minds in prayer of thanksgiving for so many blessings You bestow upon us.

We thank You for the gift of life from the womb to the tomb.

We thank You for the gift of our beloved country of the United States of America, land of opportunity and beacon of hope.

At the opening of today's meeting, we ask You to bless the Members of Congress, inspire them to seek Your guidance, to walk the way of love, to look for the well-being of every citizen. May they become instruments of peace and ministers of love in the world tormented by hatred and divisions, so that they collaborate together instead of competing against each other.

We make this prayer in Your name, for Yours is the kingdom, the power, and the glory, forever and ever.

Amen.

THE JOURNAL

The SPEAKER pro tempore. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentleman from Florida (Mr. DUNN) come forward and lead the House in the Pledge of Allegiance.

Mr. DUNN led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

WELCOMING BISHOP A. ELIAS ZAIDAN

The SPEAKER pro tempore. Without objection, the gentleman from Illinois (Mr. LAHOOD) is recognized for 1 minute.

There was no objection.

Mr. LAHOOD. Mr. Speaker, I rise today to honor Bishop Abdallah Elias Zaidan of the Maronite Catholic faith and a valuable member of our Lebanese American community in the United States.

Born in Ksseibe, Lebanon, Bishop Zaidan is the youngest bishop to lead the Eparchy of Our Lady of Lebanon of Los Angeles. As a Lebanese American myself, I am honored to have Bishop Zaidan come to Washington to open the House floor for prayer this morning.

In 1984, Bishop Zaidan professed his perpetual vows as a member of the Congregation of the Lebanese Maronite Missionaries and was ordained a priest 2 years later. Since then, Bishop Zaidan committed his life to serving others and was recognized for that service with his appointment by Pope Francis as the third bishop of the eparchy.

I would like to commend Bishop Zaidan for his continued service in the community and as a champion for the protection of children and a missionary to those of all faiths. I am grateful for his work in the Lebanese American community, and I would like to sincerely thank him for coming this morning to bless the House in prayer.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will entertain up to 15 further requests for 1-minute speeches on each side of the aisle.

OPEN AN IMPEACHMENT INQUIRY

(Mrs. KIRKPATRICK asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. KIRKPATRICK. Mr. Speaker, I have a responsibility as a Congresswoman, former prosecutor, and American citizen to stand up for the rule of law.

After countless conversations with my constituents, after speaking with legal scholars and experts, after reviewing the Mueller report, and after seeing administration officials defy congressional subpoenas, I have come to the conclusion that the House of Representatives must open an impeachment inquiry on President Donald Trump.

Following Mueller's alarming report, it is our job as a Congress to conduct oversight and deliver answers to the American people. Unfortunately, the President has called upon his administration to break the law and ignore our congressional subpoenas. Now we have no choice but to open an impeachment inquiry.

This should not be a partisan fight or a debate about election strategy; it is about the rule of law.

I know impeachment is risky, but allowing this President to defy the law is even more risky. If we don't act now, our democracy may be threatened for years to come.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President.

HONORING THE LIFE OF HARRY K. WEAVER

(Mr. DUNN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DUNN. Mr. Speaker, I rise today to honor the life of the late Harry K. Weaver of Live Oak, Florida. From a very young age, Mr. Weaver had an unwavering desire to serve others and make the world a better place.

Mr. Weaver was born in 1929 in Bristol, Florida. Shortly after earning his degree at Florida State University, he enlisted in the United States Army.

Following years of service to our country, he returned to Florida, where he would dedicate more than 33 years of his life first as the administrator, then the president of the Florida Sheriffs Youth Ranches, a program that has served over 150,000 children.

Harry was also a founding member of the National Association of Homes for Children, where he served as its first president. His legacy will live on in Suwannee County, and the impact that he has made on the youth has left a lasting impression.

Mr. Speaker, please join me in recognizing the life and legacy of Mr. Harry Weaver.

RAISE THE WAGE ACT

(Mrs. CAROLYN B. MALONEY of New York asked and was given permission to address the House for 1 minute.)

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, this week, the

House will raise the wages of 40 million Americans.

It has been 10 years—10 years—since the Federal minimum wage has been increased. It has been stuck at $7.25 since July 24, 2009. During that time, the cost of living has gone up 18 percent.

Today, a full-time worker earning the minimum wage working year-round without even a week's vacation, they earn only $1,250 a month, or $15,000 a year. It is far below the monthly expenses for the average family of $3,000, which is what the monthly expenses are.

A new report from the Joint Economic Committee on which I serve as vice chair shows that today's minimum wage doesn't even cover the cost of housing for the typical American family. The minimum wage is far from a living wage.

Mr. Speaker, I urge my colleagues to support the Raise the Wage Act and increase it to $15 by 2024.

MOMENT OF SILENCE HONORING EMILY KATHRYN GOSS

(Mr. PALAZZO asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PALAZZO. Mr. Speaker, I rise today to celebrate the life of Ms. Emily Kathryn Goss of Caesar, Mississippi, whose life was unfortunately cut short on July 12 at the age of 17.

Emily was a captain of the cheer team at Hancock High School, where she would have been a senior this upcoming fall semester. She was a hard-working honor student who stayed active in various clubs. When she wasn't at school, Emily worked at the Country Side Diner and was also a babysitter.

Emily is remembered for being a loving, kindhearted young woman who was always smiling and loved life. She was a faithful member of her youth group at Union Baptist Church.

She is survived by her parents, Kevin and Christina Goss, as well as her sister, Elise, whom she shared an inseparable bond with. My thoughts and prayers are with her loved ones as they grieve the loss of Emily.

Mr. Speaker, I ask the House to join me in a moment of silence to honor the life of Ms. Emily Kathryn Goss.

HUMANITARIAN STANDARDS

(Mr. RUIZ asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. RUIZ. Mr. Speaker, earlier this month, we learned of two Facebook groups in which CBP agents made hateful comments about the women, children, and asylum-seekers under their custody and, therefore, their responsibility.

This kind of racism, xenophobia, and violent misogyny is unacceptable. CBP must be held accountable to end these shameful comments and the cruel, inhumane treatment of children in their custody.

We can't simply fund supplies and expect a behavior change. That is why I am grateful to Homeland Security Committee Chairman THOMPSON and to Chairman NADLER and Chair LOFGREN of the Committee on the Judiciary for holding a markup of my bill, the Humanitarian Standards for Individuals in CPB Custody Act, to ensure our treatment of children, women, and families is consistent with the principles of basic human dignity.

My bill sets the basic standards we need to create a comprehensive public health approach to the humanitarian challenges at our border. Together, we are moving this bill forward to prevent children from dying and restore humanity to our treatment of children under the custody and responsibility of the Federal Government.

IN HONOR OF THE LIFE OF EVA MOZES KOR

(Mr. BUCSHON asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BUCSHON. Mr. Speaker, I rise today to honor the incredible life of Eva Mozes Kor. Eva was a friend, a Holocaust survivor, and an inspiration to us all.

As a young girl, Eva and her family were held at the Auschwitz concentration camp. While at Auschwitz, Eva and her twin sister, Miriam, were subjected to inhumane medical experiments by the Nazi doctor Josef Mengele until their liberation in 1945.

Eva and her sister were the only members of their family to survive the horrors of Auschwitz. Despite this dark atrocity, Eva used her life to spread the message of forgiveness.

Eva married Michael Kor in 1960 and later that year moved to Terre Haute, Indiana, in my district, where they raised two children.

Eva also spent decades teaching Hoosiers the importance of finding peace, healing, and hope. In 1995, Eva opened the CANDLES Holocaust Museum in Terre Haute, creating a permanent home to remind us of the power of forgiveness and compassion.

Eva passed away, peacefully, at the age of 84 during her annual trip to Poland.

Eva Kor was an incredible woman of integrity, spirit, and forgiveness, and her story will be shared for generations to come. May her memory be a blessing.

AMERICAN WORKERS DESERVE A FAIR WAGE

(Mr. HIGGINS of New York asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HIGGINS of New York. Mr. Speaker, this week, for the first time in a decade, the House will vote to increase the Federal minimum wage to $15 an hour. This legislation is long overdue.

Most economists believe that our country is suffering from a crisis of income inequality. It is virtually impossible for a working family to get by, let alone get ahead, working a—or several minimum wage jobs.

Instead of actually increasing wages, this President and our Republican colleagues have showered the wealthiest with trillions in tax cuts that will never have a meaningful impact on economic growth and opportunity.

This Congress needs to promote the dignity of work, and that starts with increasing the value of that work and paying Americans a fair wage. And the economic security that a fair wage will provide gives families the opportunity to participate in the economy and not struggle in its shadows.

So as a matter of basic fairness and dignity, I urge my colleagues to support the Raise the Wage Act.

□ 1215

WIDOW'S TAX: STILL TIME TO DO THE RIGHT THING

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, it has been 3 legislative days since House Democrats undermined the Military Surviving Spouses Equity Act by shifting the bipartisan bill into a partisan NDAA.

There is still time to correct the widow's tax on spouses of servicemembers whose lives were lost during Active Duty or through a service-connected cause.

Members of Congress know this legislation is critical, with over 365 cosponsors being 86 percent of the Members of Congress.

Congress needs to act out of respect of members of the military and their families.

According to the ongoing WUSA 9 report, thousands of surviving military spouses feel their government has abandoned them. This is unconscionable.

As Edith Smith, a surviving spouse, said, those who died earned this benefit. It is not a gratuitous benefit. They earned it.

Mr. Speaker, in conclusion, God bless our troops, and we will never forget September the 11th in the global war on terrorism.

WE ARE ALL AMERICANS

(Mr. SCHNEIDER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SCHNEIDER. Mr. Speaker, this weekend, the President used racist, xenophobic tropes to divide the country and evoke fear and anger.

These words were a deplorable, bigoted act that betrays the principles of our great Nation and demeans the memories of all those who sacrificed so much in our ongoing pursuit of a more perfect Union.

Whether you were born here, arrived as an immigrant, or came as a refugee, every citizen, naturalized or otherwise is an American, every bit as much as our Founders.

Our country is stronger because of our history as a people of diverse backgrounds with diverse experiences.

Mr. Speaker, I stand here today, the grandson and great-grandson of immigrants who fled the persecution of Jews in Russia a century ago to build a better life in America for themselves and their future generations. We have seen from history what happens when good people stay silent.

To quote the late Elie Wiesel: ''We must take sides. Neutrality helps the oppressor, never the victim. Silence encourages the tormentor, never the tormented.''

I urge my colleagues: Do not remain silent. Speak out and defend the values we all share as Americans.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President.

HONORING EXCEPTIONAL STUDENTS GRANT HELMS AND ASHTON WHITE

(Mr. BUDD asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BUDD. Mr. Speaker, I rise today to recognize two exceptional students from Rowan County, North Carolina.

Recently, Grant Helms, a rising senior at West Rowan High School, and Rowan-Cabarrus Community College student Ashton White competed in the SkillsUSA Championships, a national competition for career and technical education students.

Grant and Ashton each won first place in secondary and postsecondary masonry, respectively, and we couldn't be more proud of them.

None of this would have been possible without Rodney Harrington, the masonry teacher at West Rowan High School and mentor to these students.

Mr. Speaker, these skills are imperative in helping build and grow our economy, so I think it is worth mentioning H.R. 2353, the Strengthening Career and Technical Education Act.

This monumental bill, which became law last year, has given States like mine more flexibility to meet the unique needs of their students, educators, and employers.

ANNIVERSARY OF THE SENECA FALLS CONVENTION

(Mr. MORELLE asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MORELLE. Mr. Speaker, I often reflect on the wise words of Margaret Mead: ''Never doubt that a small group of thoughtful, committed citizens can change the world: Indeed, it is the only thing that ever has.''

Never has this proven more true than when women of all ages and circumstances gathered in Seneca Falls in upstate New York 161 years ago this week and changed forever the course of history.

These thoughtful, dedicated, passionate women stood up and declared to the world that all men and women are created equal.

The convention sparked a fire in women across the country, formally birthing the women's rights movement and eventually paving the way for women's suffrage.

We hear the echoes of their voices today as we continue the fight they began so long ago. Let this anniversary reinvigorate us as we carry on its legacy, fearlessly committed to securing equal rights, equal pay, and the fundamental right of every woman to choose what happens to her body.

HEALTHCARE PARITY FOR TERRITORY RESIDENTS

(Miss GONZÁLEZ-COLÓN of Puerto Rico asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Miss GONZÁLEZ-COLÓN of Puerto Rico. Mr. Speaker, today I rise in full support of the Territories Healthcare Act, which is scheduled to be considered in full committee markup tomorrow.

This bill addresses the multiple disparities of the Medicaid program in all U.S. territories, including Puerto Rico.

Medicaid on the island has a funding cap and a limitation of 55 percent of the Federal Medical Assistance Percentages, impacting the island's ability to furnish healthcare costs and services for close to 1.4 million people in Puerto Rico.

This bill will address these issues, increasing the cap and adjusting the FMAP for 4 years. If we do not address this issue, we are challenging medical access and services to approximately 1.4 million of my people.

Current social and political problems should not eliminate our understanding of what the people need and our responsibility toward them.

Mr. Speaker, I urge my colleagues to continue their support and advocacy for healthcare parity for territory residents.

TRUMP'S TWEETS MERIT CENSURE

(Mrs. WATSON COLEMAN asked and was given permission to address the House for 1 minute.)

Mrs. WATSON COLEMAN. Mr. Speaker, I rise today to call out the blatant racism in the President's tweets.

I believe his rant and his defense of that rant merit censure from this body.

The phrase ''Go back where you came from'' is a racist trope that has been used by segregationists, neo-Nazis, White nationalists, and the Ku Klux Klansmen to create a framework in which non-White people are not truly American.

Describing non-White countries as ''broken'' and ''crime infested'' echoes the racist trope the President has used before that such countries are dysfunctional, dirty, and violent because their populations are Black.

His comments are indefensible, and so is the silence from my colleagues across the aisle.

Mr. Speaker, I wouldn't bother seeking an apology from him, but I do hope Republicans here will join us in fully and roundly condemning his words, and I would remind them that history won't look kindly on those who refuse to stand up for what is right.

It is not lost on me, however, and I hope not my colleagues either, that this is simply a distraction from the President's friendship with a documented pedophile and news reports that he lied to the Supreme Court about his census question.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President.

HEALTHCARE AFFORDABILITY

(Ms. UNDERWOOD asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. UNDERWOOD. Mr. Speaker, in my district in northern Illinois, many farmers are struggling with the challenges that come from a delayed planting season and an uncertain market.

But, recently, Kaylee Heap invited me to her family's farm to share her story about yet another challenge: healthcare costs.

Kaylee and her husband, Kevin, own a pumpkin farm in Minooka, Illinois, and Kaylee dreams of being able to work on the farm to grow their business.

Unfortunately, that is not an option because health insurance is too expensive for them to purchase on their own—easily over $20,000 per year in my district—so Kaylee works for an outside employer in order to afford health insurance for their growing family.

Having to make the choice between entrepreneurship and healthcare is unacceptable, and that is why I introduced the Health Care Affordability Act, H.R. 1868, to reduce insurance premiums.

My bill would reduce premiums by hundreds of thousands of dollars for approximately 20 million Americans, 39,000 of whom reside in my district.

A typical Illinois family like Kaylee's would see their premiums cut in half, saving over $750 per month—and that is real money.

Mr. Chair, Americans shouldn't have to wait for lower healthcare costs. We need to pass the Health Care Affordability Act now.

HONORING WOMEN'S U.S. NATIONAL SOCCER TEAM GOALKEEPER, ALYSSA NAEHER

(Ms. DELAURO asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. DELAURO. Mr. Speaker, I rise to honor Alyssa Naeher, the Connecticut-born U.S. Women's National Soccer Team goalkeeper.

The United States team once again proved that they are the best in the world. And throughout the World Cup, Alyssa—who grew up in Stratford, Connecticut, in my district, and played at Christian Heritage School in Trumbull—provided crucial play after crucial play. None was more important or heart-stopping than her save against England.

By stopping a penalty kick with time winding down, she single-handedly saved the United States' championship hopes.

And Alyssa is more than just a champion. She is a role model as the team champions the issue of equal pay for them and for millions of women and families nationwide.

Clearly, the time is now for the United States Senate to pass H.R. 7, the Paycheck Fairness Act, which has said men and women in the same job deserve the same pay.

What better tribute, my friends, to the talent, to the determination, and to the commitment of these outstanding young women.

Mr. Speaker, again, I congratulate Alyssa. Connecticut could not be more proud.

PROVIDING FOR CONSIDERATION OF H.R. 3494, DAMON PAUL NELSON AND MATTHEW YOUNG POLLARD INTELLIGENCE AUTHORIZATION ACT FOR FISCAL YEARS 2018, 2019, AND 2020; RELATING TO THE CONSIDERATION OF HOUSE REPORT 116–125 AND AN ACCOMPANYING RESOLUTION; RELATING TO THE CONSIDERATION OF MEASURES DISAPPROVING OF SALES, EXPORTS, OR APPROVALS PURSUANT TO THE ARMS EXPORT CONTROL ACT; AND PROVIDING FOR CONSIDERATION OF H.RES. 489, CONDEMNING PRESIDENT TRUMP'S RACIST COMMENTS DIRECTED AT MEMBERS OF CONGRESS

Mr. RASKIN. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 491 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 491

Resolved, That at any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 3494) to authorize appropriations for fiscal year 2020 for intelligence and intelligence-related activities of the United States Government, the Community Management Account, and the Central Intelligence Agency Retirement and Disability System, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and amendments specified in this section and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Permanent Select Committee on Intelligence. After general debate the bill shall be considered for amendment under the five-minute rule. In lieu of the amendment in the nature of a substitute recommended by the Permanent Select Committee on Intelligence now printed in the bill, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 116-22, modified by the amendment printed in part A of the report of the Committee on Rules accompanying this resolution, shall be considered as adopted in the House and in the Committee of the Whole. The bill, as amended, shall be considered as the original bill for the purpose of further amendment under the five-minute rule and shall be considered as read. All points of order against provisions in the bill, as amended, are waived. No further amendment to the bill, as amended, shall be in order except those printed in part B of the report of the Committee on Rules. Each such further amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole. All points of order against such further amendments are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill, as amended, to the House with such further amendments as may have been adopted. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto to final passage without intervening motion except one motion to recommit with or without instructions.

SEC. 2. If House Report 116-125 is called up by direction of the Committee on Oversight and Reform: (a) all points of order against the report are waived and the report shall be considered as read; and (b)(1) an accompanying resolution offered by direction of the Committee on Oversight and Reform shall be considered as read and shall not be subject to a point of order; and (2) the previous question shall be considered as ordered on such resolution to adoption without intervening motion or demand for division of the question except one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Oversight and Reform.

SEC. 3. (a) A joint resolution described in section 4 shall be privileged if called up by the chair of the Committee on Foreign Affairs or a designee on the day after the calendar day on which the Majority Leader or a designee announces an intention that the House consider the joint resolution. The joint resolution shall be considered as read. All points of order against the joint resolution and against its consideration are waived. The previous question shall be considered as ordered on the joint resolution to its passage without intervening motion except: (1) 20 minutes of debate equally divided and controlled by the chair and ranking minority member of the Committee on Foreign Affairs or their respective designees; and (2) one motion to recommit (or commit, as the case may be). A motion to reconsider the vote on passage of the joint resolution shall not be in order.

(b) On demand of the chair of the Committee on Foreign Affairs or a designee, debate pursuant to subsection (a)(1) shall be one hour equally divided and controlled by the chair and ranking minority member of the Committee on Foreign Affairs or their respective designees.

SEC. 4. A joint resolution referred to in section 3 is a Senate joint resolution, or a House joint resolution reported by the Committee on Foreign Affairs, prohibiting any of the following under section 36 of the Arms Export Control Act (22 U.S.C. 2776):

(1) a proposed sale pursuant to subsection (b);

(2) a proposed export pursuant to subsection (c); or

(3) an approval pursuant to subsection (d).

SEC. 5. Sections 36(b)(3), 36(c)(3)(B), and 36(d)(5)(B) of the Arms Export Control Act shall not apply in the House during the remainder of the One Hundred Sixteenth Congress.

SEC. 6. Upon adoption of this resolution it shall be in order without intervention of any point of order to consider in the House the resolution (H. Res. 489) condemning President Trump's racist comments directed at Members of Congress. The resolution shall be considered as read. The previous question shall be considered as ordered on the resolution and preamble to adoption without intervening motion or demand for division of the question except one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary.

□ 1230

The SPEAKER pro tempore. The gentleman from Maryland is recognized for 1 hour.

Mr. RASKIN. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Georgia (Mr. WOODALL), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. RASKIN. Mr. Speaker, I ask unanimous consent that all Members be given 5 legislative days within which to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Maryland?

There was no objection.

Mr. RASKIN. Mr. Speaker, on Monday, the Rules Committee met and reported a rule, House Resolution 491, providing for consideration of H.R. 3494, authorizing intelligence community programs for fiscal years 2019 and 2020 and retroactively authorizing fiscal year 2018 appropriations under a structured rule.

The rule provides for 1 hour of debate equally divided and controlled by the chair and ranking minority member of the Permanent Select Committee on

Intelligence. The rule self-executes a manager's amendment from Chairman SCHIFF that makes technical and conforming changes and adds additional language that authorizes the CIA to expand death benefits to cover officers killed abroad. The rule makes in order 31 amendments and provides one motion to recommit.

Additionally, the rule provides for consideration of House Report 116–125 and its accompanying resolution recommending that the House find Attorney General Barr and Secretary Wilbur Ross in contempt of Congress for refusing to comply with congressional subpoenas under a closed rule.

The rule provides for 1 hour of debate equally divided and controlled by the chair and ranking member of the Committee on Oversight and Reform.

The rule also provides for consideration of H.R. 489 under a closed rule.

The rule provides for 1 hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary.

Finally, included in this rule is a process for consideration of committee-reported or Senate-passed joint resolutions disapproving of certain transactions under section 36 of the Arms Export Control Act. This process allows for the chair of the Foreign Affairs Committee to call up such a joint resolution 1 day after it is noticed by the majority leader and provides 20 minutes or an hour of debate and a motion to recommit.

Mr. Speaker, the Intelligence Authorization Act, H.R. 3494, authorizes programs at 16 intelligence community agencies and offices, including the Director of National Intelligence, the CIA, the Department of Defense, the DIA, the National Security Agency, and the FBI.

This authorization prioritizes the intelligence community's collection and analytic capabilities against hard-target countries such as China, Russia, Iran, and North Korea.

This bill will help us better understand and counter Russian interference in our elections. It requires reports to Congress on the intentions and the designs of Russian political leadership with respect to potential military action against NATO members and on the most significant Russian influence campaigns taking place around the world.

This bill also creates a Climate Security Advisory Council to ensure that the intelligence community prioritizes the threat of climate change. Specifically, the bill requires analysts to incorporate climate change into intelligence analysis and encourages collaboration with executive branch departments focused on climate policy.

Finally, this legislation takes care of our intelligence community workers by providing 12 weeks of paid parental leave for all employees, in addition to the 12 weeks of unpaid leave Federal employees are allowed to take under the Family and Medical Leave Act.

Mr. Speaker, on contempt, the Constitution of the United States requires us to conduct a Census every 10 years, an actual enumeration of the American people, everyone who is present in the country.

Secretary Wilbur Ross engaged in a process in order to add a citizenship question to the Census for the first time in 70 years.

This was struck down by multiple Federal courts because of the blatant violation of essentially every principle of the Administrative Procedure Act. They did not conduct notice and comment; they did not assemble substantial evidence; and they did not provide a reasoned justification for why they wanted to do this completely outside of the process that had been set up under the Census Act that had been running for several years.

On June 27, the Supreme Court found that the Commerce Department's argument for including the citizenship question in the 2020 Census was ''contrived,'' according to Chief Justice John Roberts, who wrote: ''Several points, taken together, reveal a significant mismatch between the Secretary's decision and the rationale he provided.''

Democrats on the Oversight and Reform Committee have been raising questions about Secretary Ross' proffered justification for several years now. We started asking questions back in 2017. Secretary Ross had testified that the Department of Justice letter that he received was the basis for changing the policy and imposing a citizenship question on the Census. He said that this change was solely motivated by the Department of Justice's request.

In fact, overwhelming evidence has surfaced completely contradicting this account. We know from multiple different sources now that this was a political effort designed to promote the electoral plans of the GOP.

The gerrymandering mastermind of the Republican Party, Thomas Hofeller, was the one who first raised this question several years ago. It was talked about during the Trump campaign. It was talked about within days of the inauguration. We have substantial evidence suggesting that Wilbur Ross, as Secretary of Commerce, was shopping around for a justification for doing this when the motivations were nakedly political.

The Oversight and Reform Committee began its investigation into the administration's decision to add the citizenship question on March 27, 2018. Yet, the majority of the committee has been stonewalled at every turn by the Departments of Justice and Commerce, which have refused to turn over key documents requested by the Oversight and Reform Committee, even after the committee, its members and staff, have worked diligently to resolve the impasse by narrowing the scope of the request to a very small subset of documents.

We know exactly the documents we need. Yet, still, we get nothing but defiance, obstruction, and stonewalling from this administration.

Democrats requested documents from the Department of Commerce on April 4, 2018. None of the requested documents were submitted.

On January 8, 2019, Chairman CUMMINGS renewed the request, and the Commerce Department responded by providing thousands of pages of documents, most of which were already publicly available or completely irrelevant, nonresponsive, or heavily redacted.

On February 12, 2019, Chairman CUMMINGS renewed the request for documents again, this time identifying a specific memo and note from the Department of Commerce to the DOJ. The DOJ did not provide the requested documents but, rather, produced several other documents that were heavily redacted and off point, and so on and so forth.

Mr. Speaker, this is intolerable. The Congress of the United States has a constitutional duty to conduct a fair Census.

Six former Census Bureau Directors wrote a letter denouncing the imposition of this citizenship question and telling Wilbur Ross that this would lead to a far less accurate account. The chief scientist of the Census Bureau testified that this was going to overlook and undercount as many as 6 million Hispanic Americans. We know that potentially millions of other Americans too would not be counted.

The purpose of adding the citizenship question was not to get a more accurate count. It was to get a far more inaccurate account. All the Census experts agree with that.

We have an act, the Census Act, which was violated and ignored. We have the Administrative Procedure Act, which was violated and ignored. Now we have issued a series of subpoena requests to the Departments of Commerce and Justice in order to get the information about what really took place, and again, we are being defied, ignored, and essentially belittled by the executive branch of government.

Mr. Speaker, I want to close my remarks on this with this point. The Constitution begins with the beautiful phrase: ''We, the people . . . in order to form a more perfect union, establish justice, ensure domestic tranquility,'' and so on, do create this Constitution in this country.

The very next sentence says that all the legislative powers are vested in us. In other words, the powers of the people flow right through the preamble of the Constitution into Article I.

The Supreme Court has repeatedly said, along with other Federal courts, that integral and essential to the lawmaking function is the factfinding function of Congress.

James Madison said, ''Those who mean to be their own governors must arm themselves with the power that knowledge gives.''

The people armed us with that power by creating the legislative function in Congress. But we can't legislate and we can't govern if we can't get the information that we need, which is why the Supreme Court has repeatedly emphasized our power is broad and it is expansive.

Our friends across the aisle, they know that. They know that from their Benghazi hearings that went on for years and cost tens of millions of dollars. They know that from the inquiry into Hillary Clinton's emails, and so on.

Congress has the power to get the information that it wants.

Mr. Speaker, the Census is serious business. It goes right to the heart of who we are as ''we, the people.''

Every 10 years, the Founders told us we have to go back and count everybody up in order to conduct the reapportionment process and decide how many Members of Congress are granted to each State, and, then, hundreds of billions of dollars follow in the wake of the Census. So, we have to make sure that every person is counted.

What we had was this rearguard, sneak ambush attack on the Census. They got caught doing it. The courts blew the whistle. The Supreme Court blew the whistle. But we want to know precisely what happened to make sure it doesn't happen again, to make sure that there has been no damage, and to make sure we can go forward with a real Census.

If you act with contempt of the Congress, if you act with contempt for the Congress, if you act with contempt for the American people, we will find you in contempt of Congress and the American people. We are given no choice.

Finally, Mr. Speaker, on the resolution condemning the President's recent remarks, the President of the United States told four Americans who are Members of Congress to ''go back'' to the countries they came from. Three of them, Representatives AYANNA PRESSLEY, RASHIDA TLAIB, and ALEXANDRIA OCASIO-CORTEZ, are native-born Americans, and one of them, Representative ILHAN OMAR, was born abroad.

Mr. Speaker, this is an affront, not just of four American citizens who are Members of Congress. It is an affront to 22 million naturalized American citizens who were born in another country and made the journey to America and made the journey to becoming full-blown, equal, and free American citizens, 22 million American citizens.

□ 1245

Indeed, if you think about it, it is an affront to the hundreds of millions of Americans who understand and love how American democracy and citizenship work. We are not a nation defined by race and blood as the neo-Nazis and Klansman chanted in Charlottesville as they marched down the street terrorizing the people of Charlottesville. We are defined by our Constitution, which belongs to all of us, and we are defined by the patriotism and by the service of our people.

Is there something wrong with being a naturalized citizen under our Constitution, Mr. Speaker? No, there is not. This is something to be honored and celebrated.

All Americans are equal in the eyes of the law. This is the meaning of the Fourteenth Amendment's Equal Protection Clause. We have no kings here. We have no queens here. We have no titles of nobility. We have no monarchy. We have no taints of blood. We have no hereditary offenses. We have no racial caste system. We have no slaves, and we have no slave masters.

It is true that there are those in our history who have wanted America to be defined as a White man's compact, and that is, indeed, precisely what the Supreme Court found it was in the infamous Dred Scott decision in 1857.

President Lincoln, a great and glorious Republican President, rejected the Dred Scott decision from the beginning as the product of a racist ideology and a racist political conspiracy, and it took a Civil War, the blood and the sacrifice of hundreds of thousands of Americans, to defend the Union and to guarantee the passage of the 13th, 14th, and 15th Amendments to overthrow and destroy the Dred Scott decision and the poisonous idea that America is a White man's compact. It is not.

All persons born in the United States are citizens of the United States, we said, in the 14th Amendment, which guaranteed equal protection of the law to all persons who are here. All of us are equal, whether you are a naturalized citizen who was born in Ireland, as our colleague Congressman SEAN CASTEN was; or in Ecuador, as our colleague DEBBIE MUCARSEL-POWELL was; or in Mexico, as our colleague CHUY GARCIA was; or in France, as our good friend and colleague MARK MEADOWS was; or Thailand, as our colleague TAMMY DUCKWORTH was; or in Guatemala, as our colleague NORMA TORRES was; or in Taiwan, as our colleague TED LIEU was; or in Canada, as our colleague TED CRUZ was; or in Poland, as our colleague and author of this resolution, TOM MALINOWSKI, was.

If these Americans and many more like them—we have 29 foreign-born Members of Congress. If these Americans and many more like them don't belong in Congress, tell it to the millions of people who elected them, and tell it to the Founders of our country who specifically said that you can run for the House of Representatives if you are a naturalized citizen if you have been naturalized for 7 years, or you can run for the Senate of the United States if you are a naturalized citizen if you have been naturalized for 9 years.

Mr. Speaker, to tell naturalized American citizens to go back to the countries they came from is nativist and antithetical to everything that America stands for. It is the opposite of what we believe about the values of the country.

To tell native-born American citizens who are people of color to go back to the country they came from is antithetical to everything we stand for, and it will be up to the House of Representatives today to determine whether or not that is a racist statement.

I reserve the balance of my time.

Mr. WOODALL. Mr. Speaker, I yield myself such time as I may consume.

I don't want to put any pressure on you, Mr. Speaker, but it comforts me to see you as the Chair up there today. There are those days where you need particular leaders to be there at a particular time, and I will tell you that I am not telling anybody in this Chamber anything they don't already know: You have made an entire career in this institution reaching out, building unlikely alliances, making it work where other folks said it could not work. And when my friend from Maryland, whom I thank for yielding me the customary 30 minutes, talks about what it is our constituents expect, what it is our citizenry expects, I think they expect that, Mr. Speaker, and we have one of those bills before us today in the intelligence reauthorization act.

There is more in this rule, Mr. Speaker, than I believe I have seen in any rule in my 9 years in Congress and years serving on staff here. We packed it all in there last night, and I don't want to miss the lead on this rule, which is an intelligence bill that is named after two congressional staffers who passed away last year. They spent their lives in service to this institution and to the intelligence community, and we are grateful for that service.

If you have not looked at the intelligence community recently, Mr. Speaker, you will see DEVIN NUNES on the Republican side of the aisle and ADAM SCHIFF leading it on the Democratic side of the aisle. I can picture those two faces because I usually see them on split screens on FOX or MSNBC, and I can't think of many things they have had to say where they agreed with one another over the past 4, 5 years, and yet we have a bill today in sharp contrast to the partisan nonsense that was the NDAA operation last week.

We have a bill that has come out of the Intelligence Committee with two strident, passionate Republican and Democratic leaders there on the Intelligence Committee, that came out unanimously, that they presented unanimously in front of the Rules Committee last night and we have a chance to pass here on the floor of the House.

You also find in this rule, Mr. Speaker, 31 amendments that have been made in order to that intelligence reauthorization bill. Even though we found bipartisanship in the committee, even though we found unanimity in the committee, the Rules Committee, in its wisdom, last night, decided to make 31 more ideas available to be considered here on the floor of the House.

You see in this rule, Mr. Speaker, the ability for the House to take up Arms Export Control Act measures. These are also measures you are going to find bipartisan support for, also measures that you will find, again, as my friend from Maryland referenced, the House doing what you would expect the House to do, what our bosses back home sent us here to do.

I know, Mr. Speaker, that there are times when folks feel their deeply held beliefs cannot be compromised for the sake of bipartisanship. I find that trying to find a way to get to yes is better than trying to find a way to get to no. There is always a reason to get to no.

Instead of looking for ways to oppose our political rivals, we have to act as the Intelligence Committee did, in a manner where we can find issues on which we agree. It is the only way to move this process forward.

Mr. Speaker, America's national security and that of our allies, which is what the intelligence community helps to protect and support every day, is about more than scoring political points.

I mentioned those split screens on the TV where you do see folks lobbing accusations back and forth. Sometimes it seems to be political sport instead of serious legislating.

The measure we have before us today is not political sport; it is serious legislating. And we are going to have a chance to come together as a House not just to discuss it, not just to improve it, but to implement it.

Mr. Speaker, among the things that you will find in this bill, the foreign influences around the globe, and we have talked about them in all of their various incarnations here on the floor of the House over the last 2 weeks. This bill requires a report on China's influence over Taiwanese elections.

Chinese influence around the globe is at an unparalleled high. We are now rivaled by the Chinese in every single aspect of international influence and policy, but they have outsized influence in Taiwan, and we require that report.

We require a report not just on Russian interference in our elections, Mr. Speaker, but in elections across the globe. It would be naive to suggest that the Russians would limit their influence in elections to trying to manipulate the greatest and freest country in the world. They are working across the globe to influence elections wherever free people live.

Combating Chinese and Russian aggression in elections, Mr. Speaker, is not something, as is so often told in the media, that divides us; it is something that unites us. We saw that in the Intelligence Committee, and we are going to see that here on the floor of the House, and I am very proud of that. I wish we could have continued that effort, Mr. Speaker.

I agree with every word my friend from Maryland said about standing up for Article I. Of all of my frustrations of 9 years in this institution, the deference of the United States Congress to the executive branch has been my greatest frustration. It exists for one reason and one reason only, and that is that men and women, colleagues like my friend from Maryland and I, have been unable to find a way to speak with one voice on issues that are Article I versus Article II issues.

Go down the list in your time in Congress, Mr. Speaker, whether it is the contempt resolution this institution passed for former Attorney General Eric Holder, that contempt resolution that passed on party-line votes in committee and party-line votes here on the floor of the House and went down to the executive branch where absolutely no action was taken on it whatsoever; take production of papers, whether on Fast and Furious or whether on the Census, production of papers, whether from the President's counsel or from the President's press secretary, we have these discussions and we cannot—no, we have not found a way to come together to speak with one voice.

We have an opportunity, a model. You will remember some number of weeks ago—now, months ago, Mr. Speaker—where we were very concerned in this Chamber about anti-Semitic remarks that were broadcast in the public domain. We came together as an institution to speak out against anti-Semitism.

It didn't happen overnight. In fact, my friend from Maryland authored that resolution, to his credit. But he didn't sit down with a pen and put some words on a page and bring it here to the floor for consideration. He had to work it. And I don't mean work it a little bit; I mean work it hard: it was coming; it was not coming; it was coming again; it was not coming. To find a pathway forward so that this House speaks with one voice instead of divided voices was an effort that was put in.

Now, granted, at the end of the day, it was a little more milquetoast than the resolution that I would have drafted, but sometimes that is the trade you make to be able to expand the acceptance of a resolution, Mr. Speaker.

Every single time in this Chamber, as it comes to reining in Article II or reining in the judicial branch, every single time we speak with a divided voice, we weaken this institution.

I have never seen a resolution that tried to hold two Cabinet Secretaries in contempt at the same time. Maybe that has happened historically; I don't know that answer. I have not seen it in my time.

I heard last night from the chairman of the House Oversight Committee and the ranking member of the House Oversight Committee, and the ranking member was unwavering in his commitment to Article I and our preeminence in the constitutional model. But he was also unwavering in his commitment to there is more that we could do to work with the administration as opposed to begin to poke that sharp stick, and so this resolution does not have his support.

Well, if we begin our effort to do oversight over the administration and we are already divided before that bill even leaves committee, I tell you, Mr. Speaker, we are not going to have the outcome that we want here on the floor of the House.

And then, of course, this rule in those contempt efforts is targeting a United States citizenship question that would have gone on the Census. We talk about that as if that is an outrageous thing.

I appreciate the kind words my friend from Maryland had to say about President Lincoln. I am going to have to get the Clerk to read them back to me because I am going to use that over and over again about a wonderful Republican President, but I want to use the words that Mr. RASKIN used.

But when President Lincoln was presiding over this land, it was common practice to have a citizenship question on the United States Census.

□ 1300

In fact, every single Census from 1820 to 1950 had a citizenship question on it. It was noncontroversial. In 1950, we took it off of the short form; it moved to the long form. And so from 1970 to 2000, that question was on the long form every single Census. And then in 2000, we took it off the long form and we put it onto the American Community Survey, that half-decade measure that goes out to create the data that Mr. RASKIN rightly noted is so important to all of our communities back home.

If, for the first time in American history, in the history of the Census, we decide that citizenship is somehow now a forbidden topic, that we can't find a way to discuss it, that it is not important to who we are as a Nation and how it is that we look at ourselves, fair enough.

That is not what the Supreme Court case was about, Mr. Speaker. As we well know, the Supreme Court case simply said: You can put a question about citizenship on the Census if you want to. You just didn't do it the right way, and so we are going to ask you not to do it that way. There are those ways and means of getting that done. You just didn't do it the right way.

I raise that, Mr. Speaker, not because I am a Census guru. I am not. I don't serve on any of those relevant committees. But in this era of outrage, where folks have begun to confuse civility with weakness—and that is a confusion that I think is to all of our detriments—the desire to have a question about citizenship on the Census has nothing to do with this President, this administration, Republicans, Democrats. It has been that way since 1820.

Thoughtful men and women, concerned men and women, serious legislators have been interested in this information for over 100 years.

If we want to have the conversation that somehow citizenship can't be discussed anymore and we should ban it

from all Census documentation forever, I don't think that would succeed, but it is certainly a legitimate topic of debate. But what is not legitimate is to suggest that the only reason that anyone would ask about citizenship is to pursue some sort of nefarious, xenophobic purpose. It is simply not true.

I represent a majority minority constituency, Mr. Speaker. Twenty-six percent of my bosses are first-generation Americans. You want to find folks who love America, come down to where I live, find folks who have waited in line, folks who have paid their money, folks who pinned all their hopes and dreams to, ''If and only if I can get there, my children and my grandchildren will have a better life.''

That is what brought us all here at one generation or another. Whether you came in 1650 or whether you came in 1950 or whether you came yesterday, those are the dreams that bring us here.

There is a lot to be outraged about in today's culture, but I haven't seen any of it get fixed by being more outraged.

I have seen it get fixed by men and women like yourself, Mr. Speaker, who value trust, who value candor, who value honesty, and who value real relationships.

Anything that is hard, I can't solve with someone I don't trust. If one side is good and one side is evil, where do you go from there? What does that negotiation look like? That is not a conversation; that is you have got to now destroy one another. That seems to be the path that folks too often opt for in politics today.

There is more that unites us than divides us in this constitution and in this country, Mr. Speaker. You might not know that by the parts of this rule that are going to get the most attention today.

ADAM SCHIFF, DEVIN NUNES, there are not two Members in this institution who feel more strongly and differently about the direction of public policy than those two men, and they came together, not to advance themselves, but to advance the Nation. They came together, not because it was easy, but precisely because it was hard and necessary, and brought us this bipartisan package we have today.

Mr. Speaker, I thank my friend from Massachusetts, the chairman of the Rules Committee, for bringing that resolution to the floor, and I hope we will have ample time to celebrate those successes.

Mr. Speaker, I reserve the balance of my time.

Mr. RASKIN. Mr. Speaker, I yield myself such time as I might consume.

Mr. Speaker, I thank the gentleman from Georgia (Mr. WOODALL) for his very thoughtful and moving remarks, which are very appealing to me, especially since I am a law professor first and only a politician thereafter.

And, you know, we all have to deal with the political party system as it exists in the America of today, but I like to think of the Presidents who kept a kind of dual mind about it. They knew that they had to be part of it in order to operate, as all of us do, but also to try to think about the broader whole.

You know, Jefferson in his first inaugural address in 1800 said that we are all Republicans, we are all Federalists. And he also said:

> If I could only go to heaven with a political party, I would prefer not to go.

George Washington said to us:

> We have to keep in mind that the word party comes from the French word partie, a part, and when we govern, we should try to keep in mind the whole.

Mr. Speaker, I thank the gentleman for at least the one cheer of a potential three hip hip hoorays you might have given us on the Intelligence Authorization Act.

We do think that the contempt citation is necessary precisely for the reason you suggest: to uphold the institutional integrity of Congress.

We have gotten together in the past across party lines to demand that the executive branch gives us the information we need, and we believe that we are completely on that course.

Finally, as to the resolution about the remarks telling U.S. citizens to go back to the country they came from; it is hard for me not to see something that could be more unifying than that; that it is an essential value that I know every Member of this body holds, that we do not make a distinction in the legal or political rights or entitlements or responsibilities of natural-born citizens and naturalized citizens, and that it is utterly offensive to our system of government to tell people to go back to where they came from just because you have a political disagreement with them. It is wrong.

Mr. Speaker, I yield 5 minutes to the gentleman from Massachusetts (Mr. MCGOVERN), the chair of the Rules Committee.

Mr. MCGOVERN. Mr. Speaker, I want to thank the gentleman from Maryland (Mr. RASKIN) for yielding me the time and I want to thank him for his service on the Rules Committee.

Mr. Speaker, I certainly support the rule, but I want to speak on one underlying bill in particular, H. Res. 489.

Mr. Speaker, what we saw this week used to be reserved for the darkest corners of the internet, some chat room somewhere where people would be too ashamed to even use their real name when spewing vile rhetoric.

But this isn't some online troll. We are not talking about using dog whistles or speaking in some kind of secret alt-right code, Mr. Speaker.

This is proudly using Twitter as a megaphone to attack fellow Americans.

These are American citizens being turned into some kind of scary ''other,'' not because of their party, but because of their background, their race, and their opinions. This is the same type of attack the President has used against immigrants and refugees for years.

I have seen this administration carry out some deeply troubling policies. I have heard some deeply offensive things. And I know I am not alone in this, because when the cameras are off and the press isn't around, some of my colleagues on the other side have told me the same thing, that they are sickened by what is going on.

Well, these recent comments are in a completely different category. This type of language isn't just offensive. It could lead to violence. It is corroding our discourse. It undermines our values, and it doesn't reflect who we are as a country.

Mr. Speaker, let me tell my Republican colleagues on the other side of the aisle, more sternly worded press releases and disappointed tweets aren't going to cut it. The only thing that matters here is votes. Press statements are not enough.

This House needs to speak with unity and vote to condemn the President's comments for what they are.

Now, I believe in the adage from Maya Angelou: ''When someone shows you who they are, believe them.''

The President told us who he was long before he rode that escalator down to announce his campaign.

It is time Republicans told the American people with their votes what they whisper to one another in the Cloakroom, what many of them have told me behind closed doors, because this dark world view is what will be on the ballot.

Mr. Speaker, I implore my colleagues to think twice before they follow the President off a cliff. Our credibility matters and their credibility matters.

A Presidency lasts, at most, just 4 to 8 years. Some of us will get the chance to serve here long after this administration ends, and we will have to live with our conscience for a lifetime, but silence is an endorsement, equivocation is an endorsement, blaming both sides is an endorsement.

There is no gray area here. There is a very clear right and wrong. So supporting this resolution isn't about standing with Democrats; it is about standing up for decency.

The President showed us who he is. Now we have the chance to show the American people who we are.

Now, it is no secret that I have profound policy disagreements with this President. His economic policies favor the rich and his foreign policy completely ignores human rights, but in all the time I have been alive, I have always respected the office of the President and the occupant.

I feel differently now. I feel embarrassed. I feel ashamed.

Mr. Speaker, let me remind my colleagues, our children are watching us. So do the right thing. Do the moral thing. Condemn President Trump's hateful and blatantly racist rhetoric.

And I don't care if it is out of order, but we need to be clear, we need to call

it what it is, and we need to condemn it.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President.

Mr. RASKIN. Mr. Speaker, I reserve the balance of my time.

Mr. WOODALL. Mr. Speaker, I yield myself such time as I might consume.

Mr. Speaker, I think I misunderstood my friend from Massachusetts. I think what my friend said is he does not care whether his words coarsen this institution, he does not care whether or not his positions diminish us as an institution, he does not care about the rules of this institution, which prohibit exactly the kind of words that he knows they prohibit and yet he uses anyway.

Mr. Speaker, I just want to ask my friend if he believes that his cause of admonishing this President is going to be advantaged by diminishing this institution?

Mr. Speaker, I yield to the gentleman from Massachusetts (Mr. MCGOVERN).

Mr. MCGOVERN. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, I believe that what I am saying on the House floor supports the truth. I believe every word I said, and I feel strongly about it. I would only wish my colleagues on the other side would feel equally strong about condemning these horrific remarks.

Mr. WOODALL. Mr. Speaker, reclaiming my time. If the President believes every word that he said, does that excuse his behavior, in the gentleman's mind? Does it excuse his behavior to believe it?

Mr. MCGOVERN. Mr. Speaker, the President can say whatever he wants. I think we have a moral obligation to call out racism wherever it exists.

Mr. WOODALL. Mr. Speaker, reclaiming my time. It is a perfectly legitimate assertion and attestation my friend from Massachusetts makes, and of course we all share that belief.

Mr. Speaker, when I was down here for the rule last week with my friend from Massachusetts, the other side was admonished, not once, but twice for violating the House rules for coarsening our debate, for diminishing our civility, for violating our rules; not a social contract about how we ought to treat each other, but rules where we have committed about how we will treat each other.

Today during 1 minute speeches, Mr. Speaker, not once, but twice the Chair admonished the other side to say: You are breaking our rules of civility. You are violating our standards of decorum. Our children are watching, and your behavior doesn't pass muster.

And now my friend—and he is my friend and I admire his work—he is passionate in the causes for which he advocates, and I believe that it is his passion, not his contempt for this institution, that leads him to say those things that he says. I believe he loves this institution, but he is misguided, when the Chair admonishes him again today now, and he has no apologies for his colleagues, no apologies for this institution.

We do have serious issues. I am not meaning serious like Russia and China, which those are serious, I don't mean serious like the hate that is fomenting in this country, which is serious. I mean all of it that is serious that nobody in this institution can solve unless we solve it together, and I want to find that pathway forward. This isn't it.

Mr. Speaker, I yield to my friend, the gentleman from Massachusetts (Mr. MCGOVERN).

□ 1315

Mr. MCGOVERN. Mr. Speaker, I appreciate the gentleman's comments, but I would ask him: Where was he when President Trump was spreading lies about President Obama's birth? Where was he when Representative JOE WILSON shouted, on the House floor, ''You lie,'' to President Obama in 2009?

Mr. WOODALL. Mr. Speaker, reclaiming my time.

Mr. Speaker, does the gentleman remember when JOE WILSON apologized, which is more than what my friend from Massachusetts has done when the House has condemned him from the Chair today?

I remember when my friend Mr. WILSON lost his temper. I do remember it. And I remember him apologizing for it because he didn't want to bring shame on this institution.

I would welcome any time the Chair admonishes either side of the aisle for violating our rules, coarsening our debate, doing those things that we all agree we don't want our children to see on TV, I welcome folks to correct that behavior.

Mr. Speaker, I fear my comments are falling on deaf ears, but I hope I am mistaken.

Mr. Speaker, I reserve the balance of my time.

PARLIAMENTARY INQUIRY

Mr. RASKIN. Mr. Speaker, before I go into my time, may I make a parliamentary inquiry?

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. RASKIN. Mr. Speaker, do we take it to be against the rules of the House to describe statements made by the President as racist as a violation of House rules?

The SPEAKER pro tempore. The Chair will not issue an advisory opinion.

Mr. RASKIN. Mr. Speaker, launching into my time, I yield 3 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

(Ms. JACKSON LEE asked and was given permission to revise and extend her remarks.)

Ms. JACKSON LEE. Mr. Speaker, I thank the gentleman from Maryland for his scholarship and his passion, the chairman of the Rules Committee, my good friend from Georgia, and all those who have come to the floor today.

Mr. Speaker, let me say that this is a somber moment. It is not a moment that I cherish. My privilege in serving the greatest country in the world has allowed me to serve with three previous Presidents. Not one time from the three previous Presidents have I ever heard the words that were uttered this weekend.

I believe in harmony. I just came out of a Helsinki Commission meeting, an organization that deals with peace around the world. We were talking about how we can impress upon the world to not use religion for hatred. Religion is love.

One of the answers I gave was to show the examples here in the United States, where religions from all different perspectives come together in a time of disaster and need. It is something that touches our heart.

When we vote for a President, we want that President to touch our hearts, to lift us up, and to make us better people.

I cannot argue with the fact that 49 percent of the American people believe that this President is a racist. It hurts my heart because I come in a skin color where I have been at the sad end of racist tactics and words. I am a product of busing. But it does not diminish my love for this Nation.

So it disturbs me for this wonderfully diverse group of new Members who have come to the United States Congress from all over the Nation, including the LGBTQ community, and among the 40 Representatives who came was the Representative from the Seventh Congressional District of Massachusetts, the State's first African American woman; the Representative of the 13th Congressional District of Michigan, the first Palestinian woman; the Representative from the 14th Congressional District of New York, the youngest woman; and the Representative from the Fifth Congressional District of Minnesota, the first Somali American elected to Congress.

In the discharge of their duties, they went to the border—their passion, their youth, just as I had done—and saw the appalling conditions that children were held in. They came back and expressed themselves, protected by the First Amendment.

They used no violence. They only wanted to wake up the Congress, as all of us who went and could not accept the pain did. In fact, wherever I go at home, people are asking: What are you doing for the children at the border?

So, they didn't do anything extraordinary, in terms of what Members should do, having the responsibility of oversight.

Then came, in the last 72 hours, these words: ''So interesting to see 'progressive' Democrat Congresswomen, who originally came from countries whose governments are a complete and total catastrophe, the worst, most corrupt, and inept anywhere in the world, if they even have a functioning government at all, now loudly and viciously

telling the people of the United States, the greatest and most powerful nation on Earth, how our government is to be run.''

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. RASKIN. Mr. Speaker, I yield an additional 30 seconds to the gentlewoman from Texas.

Ms. JACKSON LEE. ''Why don't they go back and help fix the totally broken and crime-infested places from which they came?''

I will be introducing a condemnation resolution that recounts the life and legacy of this President while 49 percent of the people believe that he is racist.

I only ask that we come together today to do the right thing, to do what the 16th President said right after the Civil War: ''We are not enemies, but friends. We must not be enemies. Though passion may have strained, it must not break our bonds of affection. The mystic chords of memory'' will swell when again touched, ''as surely they will be, by the better angels of our nature.''

Today, if we condemn this language, it will say to America that we cannot accept this kind of behavior. That is what is bringing the country together, that we accept each other's diversity.

Mr. Speaker, as a senior member of the Committees on the Judiciary and Homeland Security, I rise in support of the rule governing debate on H. Res. 489, a resolution condemning President Trump's racist comments directed at Members of Congress.

Mr. Speaker, on November 6, 2018, in an election widely regarded as a referendum on the performance and disapproval of the Administration of President Donald J. Trump, the American people voted to vest control of the U.S. House of Representatives in the Democratic Party to restore the system of checks and balances designed by the Framers in 1787 in Philadelphia.

The Representatives elected to the 116th Congress comprise the most diverse class in American history with respect to its racial, ethnic, and religious composition, and also includes the largest contingent of female Representatives and the most members ever of the LGBTQ community.

Among the cohort of the 40 Representatives first elected to the Congress in the November 2018 election are several whose membership is historic, including the Representative for the Seventh District of Massachusetts, the first African American woman elected from the Commonwealth of Massachusetts; the Representative from the Thirteenth District of Michigan, the first Palestinian-American woman elected to Congress; the Representative from the Fourteenth District of New York, the youngest woman ever elected to Congress; and the Representative from the Fifth District of Minnesota, the first Somali-American elected to Congress.

In the discharge of their official duties as Members of Congress, these talented and dedicated Members of Congress traveled to the southern border of the United States to observe the living conditions and treatment received by migrants and refugees seeking asylum in the United States who are currently being held in detention facilities operated under control or supervision of the U.S. Customs and Border Protection (CBP), some consisting of nothing more than tent villages cordoned off under highways.

Upon their return to the Capitol, these Members of Congress reported their shock and horror regarding the appalling and inhumane conditions to which detainees were being subjected by CPB at a public hearing of a House Committee on Oversight and Reform.

On July 14, 2019, the President of the United States reacted to the criticism of his Administration's treatment of detainees by these Members of Congress in a series of unhinged tweets that questioned their loyalty to the United States and implied that due to the circumstances of their birth they had no right to exercise the responsibilities and privileges of duly elected Members of Congress.

Specifically, the President tweeted that it was:

> So interesting to see ''Progressive'' Democrat Congresswomen, who originally came from countries whose governments are a complete and total catastrophe, the worst, most corrupt and inept anywhere in the world (if they even have a functioning government at all), now loudly . . . and viciously telling the people of the United States, the greatest and most powerful Nation on earth, how our government is to be run. Why don't they go back and help fix the totally broken and crime infested places from which they came.

The President's statements are false in that three of Members of Congress he impugned are in fact natural born citizens and the fourth is a naturalized citizen.

Although the recent statements of the President are inaccurate and offensive, they are consistent with prior statements he has made to stoke to division, discord, and disharmony among the American people.

Let us not forget that the current President of the United States burnished his political reputation by claiming falsely for more than 5 years that his predecessor was born in Kenya and not in the United States and thus was an illegitimate President.

The current President of the United States launched his 2016 campaign for the Presidency by saying of persons from Mexico seeking to immigrate to the United States: ''They're bringing drugs. They're bringing crime. They're rapists.''

The current President of the United States claimed that a Hispanic federal jurist could not preside over a court proceeding to which then presidential candidate Donald J. Trump and the Trump Organization were defendants accused of civil fraud because ''He's a Mexican!''

In January 2018 the current President of the United States is reported to have inquired of his advisors: ''Why are we having all these people from (expletive deleted) countries come here?'', referring to persons from countries in Africa, the Caribbean, and Central and South America.

And most contemptible of all, on August 15, 2017 the current President of the United States said he regarded as some ''very fine people,'' the neo-Nazis, white supremacists, and Ku Klux Klansmen who descended on the peaceful community of Charlottesville, Virginia to advocate racism and who were met by peaceful counterprotestors in a clash that the white supremacists turned violent and resulted in the death of Heather Heyer and left injured many other innocent persons who were gathered to affirm the principles of the Declaration of Independence and the U.S. Constitution, and to honor the sacrifice of unsung American heroes who devoted their lives to the ongoing quest to continue perfecting our union.

Mr. Speaker, the recent and past statements and actions of the current President of the United States demean the office he holds and falls short of the standard set by the 16th President, whose administration was devoted to unity, healing, and ending racial division.

In his famous March 4, 1861, Inaugural Address, President Abraham Lincoln foretold the reasons why the efforts of the current President of the United States to rend our union are destined to fail:

> We are not enemies, but friends. We must not be enemies. Though passion may have strained, it must not break our bonds of affection. The mystic chords of memory will swell when again touched, as surely they will be, by the better angels of our nature.

Before closing, Mr. Speaker, I think it appropriate to share my perspective on immigration and significant and positive impact it has in the development of this, the greatest nation in human history.

Like the Framers did in the summer of 1776, it is fitting that we gather in the nation's capital on a sweltering July day to reflect upon America's long and continuing struggle for justice, equality, and opportunity.

After all, all that any of us wants is an honored place in the American family.

I am often reminded that as I speak there is a family somewhere about to begin a dangerous but hopeful quest.

Somewhere south of the border, maybe across the Rio Grande from El Paso, Laredo, Corpus Christi, or Brownsville or maybe just south of Tucson or San Diego or Douglass, Arizona.

Somewhere there is a family in the Old Country anxiously about to embark on their own journey to the New World of America.

They come for the same reason so many millions came before them, in this century and last, from this continent and from every other.

They come for the same reason families have always come to America: to be free of fear and hunger, to better their condition, to begin their world anew, to give their children a chance for a better life.

Like previous waves of immigrants, they too will wage all and risk all to reach the sidewalks of Houston or Los Angeles or Phoenix or Chicago or Atlanta or Denver or Detroit.

They will risk death in the desert; they will brave the elements, they will risk capture and crime, they will endure separation from loved ones.

And if they make it to the Promised Land of America, no job will be beneath them.

They will cook our food, clean our houses, cut our grass, and care for our kids.

They will be cheated by some and exploited by others.

They work in sunlight but live in twilight, between the shadows; not fully welcome as new Americans but wanted as low-wage workers.

Somewhere near the borders tonight, a family will cross over into the New World, willed by the enduring power of the American Dream.

I urge all Members to join me in supporting H. Res. 489.

All American should take pride in and celebrate the ethnic, racial, and religious diversity

that has made the United States the leader of the community of nations and the beacon of hope and inspiration to oppressed persons everywhere.

And in addition to the love and pride Americans justifiably have for their country, all persons in the United States should cherish and exercise the rights, privileges, and responsibilities guaranteed by the Constitution of the United States.

The SPEAKER pro tempore. Members are again reminded to refrain from engaging in personalities toward the President.

Mr. WOODALL. Mr. Speaker, I yield myself such time as I may consume.

While my friend from Texas is sometimes known for running over the gavel at the end of her comments, it is only because it comes from the heart. When I think about Members in this institution who are unhampered by a lack of passion, I think of my friend from Texas. But when I look for an honest broker, who will be true to her word and partner when partnership is required, my friend from Texas embodies that, as well. I appreciate both her words and her restraint here this morning.

Ms. JACKSON LEE. Will the gentleman yield?

Mr. WOODALL. I yield to the gentlewoman from Texas.

Ms. JACKSON LEE. Mr. Speaker, there is no doubt that my faith, my commitment to many people of different colors who respect the distinction or difference but also the greatness of this country, my love of those who serve, causes me to say, as many of my colleagues here are ready to say: Let us sit down at the table of peace and reconciliation.

I hope we will have some who will acknowledge that these actions—I will try to be generic—and words were certainly not becoming of the United States of America. The American people must see us work together on that.

Mr. WOODALL. Mr. Speaker, reclaiming my time, I thank my friend from Texas. I think that is a welcome invitation.

Mr. Speaker, thinking about the policies before us today, if we defeat the previous question, I will amend the rule to bring H.R. 3965 to the floor.

Mr. Speaker, I ask unanimous consent to insert the text of my amendment in the RECORD immediately preceding the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Georgia?

There was no objection.

Mr. WOODALL. Mr. Speaker, you have heard a lot about the controversial citizenship question in the Census. Whether or not it should be controversial is a different issue altogether.

Mr. RASKIN. Mr. Speaker, I reserve the balance of my time.

Mr. WOODALL. Mr. Speaker, I yield 4 minutes to the gentleman from Kentucky (Mr. COMER).

Mr. COMER. Today, I introduce the Citizens Count Census Act of 2019, a bill that would require a citizenship question on the United States Census.

If we defeat the previous question, as the gentleman from Georgia said, then we will be able to consider my bill.

It has always been common sense to include a citizenship question on our Nation's Census. The purpose of the Census Bureau and all Census surveys is to include data used for apportionment and to better inform the public about the population, business, and economics of the United States of America.

The collection of citizenship information during a population census is a common practice among countries. This is not new, and it should not be controversial. A citizenship question is asked on the census in Australia, Canada, France, Germany, Ireland, Mexico, and the United Kingdom, to name a few. In fact, Mr. Speaker, the United Nations recommends that countries gather citizenship information about their populations.

Knowing how many legal and nonlegal individuals are within our borders is a perfectly appropriate question to ask on our Census, and I hope we can pass this measure to see that happen.

Mr. Speaker, I strongly urge all of my congressional colleagues to vote for this commonsense legislation to ensure we know exactly how many citizens reside in this country.

Mr. RASKIN. Mr. Speaker, I continue to reserve the balance of my time.

Mr. WOODALL. Mr. Speaker, may I ask how much time is remaining.

The SPEAKER pro tempore. The gentleman from Georgia has 7½ minutes remaining. The gentleman from Maryland has 2½ minutes remaining.

Mr. WOODALL. Mr. Speaker, I yield 4 minutes to the gentleman from Ohio (Mr. JORDAN), my good friend and the ranking member on the House Oversight and Reform Committee.

Mr. JORDAN. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, the Department of Commerce and the Department of Justice have given 31,000 pages of documents to the Congress. They provided witnesses. In fact, we have another one coming in for a transcribed interview later this month.

Secretary Ross came and testified for over 6 hours. He came in front of the committee, raised his hand, swore to tell the truth, the whole truth, and nothing but the truth, so help him God. He testified for 6 hours.

Secretary Ross and Attorney General Barr are doing their jobs. What is their reward? The Democrats are going to hold them in contempt, hold them in contempt because they are so focused on this citizenship question.

As Mr. COMER, who has introduced legislation, said just a few minutes ago, the citizenship question is nothing but common sense.

Listen to what Justice Alito said 2 weeks ago, ''No one disputes that it is important to know how many inhabitants of this country are citizens.'' And the easiest way to figure it out is to ask a question on the Census.

That is about as common sense as it gets. It is so common sense, we have only been doing it for 200 years, in one form or another. The long form, the short form, the 10-year form, the annual form, we have been doing it for 200 years.

But somehow, this year: No, you can't do it this year. You can't do it this year.

As Mr. COMER said, the United Nations says it is a best practice. Lots of countries do it. But somehow, the Democrats don't want us to do it this year.

I support the legislation that the Representative from Kentucky has introduced. I support the good work of our Rules Committee member from Georgia. Certainly, I don't support the rule and the resolution that is going to hold Secretary Ross and Attorney General Barr in contempt. Again, doing their job and what do they get? A contempt resolution from the Democrats.

Ask yourself a question or, better yet, go ask your constituents a question. I would encourage Democrats to go to their districts and ask anyone in their districts: Do you think we should ask a question on the Census about whether you are a citizen of this country? My guess is just about every single person you talk to in your district will say: Heck, yeah, aren't we doing that already? Of course, my colleagues would have to respond: Yes, we are, and we have been doing it for 200 years.

This is common sense. This resolution is not appropriate.

Mr. Speaker, I urge defeat of the rule, defeat of the previous question, and if it gets to the floor, defeat of the resolution.

Mr. RASKIN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, on the question of holding the Attorney General and Secretary of Commerce in contempt for refusing to turn over repeatedly requested documents and witnesses, our good friends now confuse two legal questions with a policy question.

The legal question is: Did they violate the law in imposing the citizenship question on the Census? Yes, they did violate the law. They violated the Census Act. They violated the Administrative Procedure Act. They violated pretty much every administrative principle we have in this country. Chief Justice John Roberts said it, someone who is beloved to my colleagues over there.

□ 1330

But the other legal question is: Can the executive branch decide willy-nilly that they are going to stop cooperating with congressional subpoenas and requests for documents? No, they can't, and I hope that that would be a unifying dictum for everybody in this body that we stand up for the right of the people's Representatives to obtain the information that we need.

Now, my dear friend from Georgia made the point that he wished that we could proceed in a more bipartisan fashion. I have actually been very cheered by the number of our GOP colleagues who have denounced the President's remarks over the weekend and this week.

For example, we get a statement from—I am not making it up. I know that they are out there. Here we go. Mr. FRED UPTON: ''Frankly, I'm appalled by the President's tweets. There's no excuse. The President's tweets were flat-out wrong and uncalled for.''

PETE OLSON: ''The tweet President Trump posted over the weekend about fellow Members of Congress are not reflective of the values'' of my district. ''I urge our President immediately disavow his comments.''

Senator MURKOWSKI: ''There's no excuse for the President's spiteful comments—they were absolutely unacceptable and this needs to stop.''

John Kasich: ''What @realDonaldTrump said about Democrat women in Congress is deplorable and beneath the dignity of the office. We all, including Republicans, need to speak out against these kind of comments that do nothing more than divide us and create deep animosity. . . .''

I reserve the balance of my time.

Mr. WOODALL. Mr. Speaker, how much time is remaining?

The SPEAKER pro tempore. The gentleman from Georgia has 4½ minutes remaining. The gentleman from Maryland has 30 seconds remaining.

Mr. WOODALL. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, again, I regret that there is so much that is packed into this rule. It is one of the reasons I urged defeat of the rule today.

Everyone in this Chamber wants to vote to have this debate on the national intelligence reauthorization bill. Everybody wants to be a part of that. Again, 31 amendments made in order will improve that bill, a bipartisan product coming out of a very contentious committee.

The rest of these issues are more complex. And I don't mean complex because we shouldn't discuss them. We should. I mean complex because we haven't discussed them.

I think I am prepared to yield time if the gentleman needs it. I know my friend from Maryland is not the author of the resolution condemning the President, but the gentleman mentioned my friend from Texas (Mr. OLSON) and Mr. OLSON's comments on the Republican side of the aisle.

I ask the gentleman, was Mr. OLSON consulted to try to create the language that we see before us today?

I yield to the gentleman from Maryland.

Mr. RASKIN. Mr. Speaker, I am sorry. Does the gentleman mind repeating?

Mr. WOODALL. Was the gentleman from Texas (Mr. OLSON) consulted as we tried to draft this language that is before us today?

I yield to the gentleman.

Mr. RASKIN. Mr. Speaker, I am sure the gentleman was not, unfortunately, just because of the press of time.

Mr. WOODALL. Reclaiming my time, was Mr. UPTON, who the gentleman referenced as having sympathetic words to say, was the gentleman consulted about the drafting of this resolution?

I yield to the gentleman.

Mr. RASKIN. The vast majority of Members on both sides were not consulted in the manner——

Mr. WOODALL. Reclaiming my time, so Mr. Kasich was also not consulted and Ms. MURKOWSKI also not consulted.

Mr. Speaker, if we are talking about a serious issue and we are going to craft a serious response and we want to speak with one voice from this institution, might it be a good idea for there to be at least one conversation between Democrats and Republicans about how to proceed?

Might it be a good idea to have more than one conversation?

Might it be a good idea to put partisanship aside and actually do those things that I know my friend from Maryland wants to do and I want to do arm in arm with him?

We keep missing opportunities in this Congress, Mr. Speaker, opportunities to make this institution stronger, opportunities to make this Nation stronger. We are missing them, and we are creating scars along the way.

What could be an operation in building trust has become an operation in building distrust.

What could be an operation designed to heal, I suspect, is going to be an operation that brings more needless pain.

We have a good bill in the intelligence reauthorization, Mr. Speaker. We have a good series of bills in arms export control. We could be down here talking about those because of the bipartisan work that has gone into it already.

Not one conversation has been had between tweets over a weekend and a resolution condemning those on the floor of the House, not one effort made to speak with one voice in the United States House. That tells you just about everything someone needs to know about why this resolution is on the floor with these two contempt resolutions in this place at this time.

Mr. Speaker, I urge defeat of the rule. I urge defeat of the previous question.

I yield back the balance of my time.

Mr. RASKIN. Mr. Speaker, I urge a ''yes'' vote on the rule and the previous question.

I will just take a second to say to my friend that there have been hundreds of conversations that have been taking place here, but, of course, the gentleman knows that the committee system works in such a way that legislation is put in and not everybody is consulted. The legislation he has praised so effusively today in the Intelligence Committee, none of us outside of the Intelligence Committee were consulted about it.

So I think we have got a consensus here rejecting and repudiating the tenor and the meaning of the President's remarks, and I hope that this process of dialogue which has been so wonderful today with the gentleman from Georgia leads to an outcome where all of us will vote for the previous question.

The text of the material previously referred to by Mr. WOODALL is as follows:

AMENDMENT TO HOUSE RESOLUTION 491

At the end of the resolution, add the following:

SEC. 7. That immediately upon adoption of this resolution, the House shall resolve into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 3765) to amend title 13, United States Code, to require that any questionnaire used for a decennial census of population contains a question regarding citizenship, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Oversight and Reform. After general debate the bill shall be considered for amendment under the five minute rule. All points of order against provisions in the bill are waived. When the committee rises and reports the bill back to the House with a recommendation that the bill do pass, the previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

SEC. 8. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 3765.

Mr. RASKIN. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. WOODALL. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, the Chair will reduce to 5 minutes the minimum time for any electronic vote on the question of the adoption of the resolution.

The vote was taken by electronic device, and there were—yeas 230, nays 189, not voting 13, as follows:

[Roll No. 478]

YEAS—230

Adams	Axne	Beatty
Aguilar	Barragán	Bera
Allred	Bass	Beyer

Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Boyle, Brendan F.
Brindisi
Brown (MD)
Brownley (CA)
Bustos
Butterfield
Carbajal
Carson (IN)
Cartwright
Case
Casten (IL)
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Cisneros
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crist
Crow
Cuellar
Cummings
Cunningham
Davids (KS)
Davis (CA)
Davis, Danny K.
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Engel
Escobar
Eshoo
Espaillat
Evans
Finkenauer
Fletcher
Foster
Frankel
Fudge
Gabbard
Gallego
Garamendi
García (IL)
Garcia (TX)
Golden
Gomez
Gonzalez (TX)
Gottheimer
Green, Al (TX)
Grijalva
Haaland
Harder (CA)
Hastings
Hayes
Heck
Hill (CA)
Himes
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Huffman
Jackson Lee
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kaptur
Keating
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lewis
Lieu, Ted
Loebsack
Lofgren
Lowenthal
Lowey
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McAdams
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy
Nadler
Napolitano
Neal
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Perlmutter
Peters
Peterson
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Richmond
Rose (NY)
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Spanberger
Speier
Stanton
Stevens
Suozzi
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Underwood
Van Drew
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Yarmuth

NAYS—189

Aderholt
Allen
Amash
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bergman
Bilirakis
Bishop (UT)
Bost
Brady
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Budd
Burchett
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Cheney
Cline
Cloud
Cole
Collins (GA)
Collins (NY)
Comer
Conaway
Cook
Crawford
Crenshaw
Curtis
Davidson (OH)
Davis, Rodney
DesJarlais
Diaz-Balart
Duffy
Duncan
Dunn
Emmer
Estes
Ferguson
Fitzpatrick
Fleischmann
Flores
Fortenberry
Foxx (NC)
Fulcher
Gaetz
Gallagher
Gianforte
Gibbs
Gonzalez (OH)
Gooden
Gosar
Graves (GA)
Graves (LA)
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Hill (AR)
Holding
Hollingsworth
Hudson
Huizenga
Hunter
Hurd (TX)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger
Kustoff (TN)
LaHood
LaMalfa
Lamborn
Lesko
Long
Loudermilk
Lucas
Luetkemeyer
Marshall
Massie
Mast
McCarthy
McCaul
McClintock
McHenry
McKinley
Meadows
Meuser
Miller
Mitchell
Moolenaar
Mooney (WV)
Mullin
Newhouse
Norman
Nunes
Olson
Palazzo
Palmer
Pence
Perry
Posey
Ratcliffe
Reed
Reschenthaler
Rice (SC)
Riggleman
Roby
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rooney (FL)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spano
Stauber
Stefanik
Steil
Steube
Stewart
Stivers
Taylor
Thompson (PA)
Thornberry
Timmons
Tipton
Turner
Upton
Wagner
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Wilson (SC)
Wittman
Womack
Woodall
Wright
Yoho
Young
Zeldin

NOT VOTING—13

Abraham
Biggs
Burgess
Cárdenas
Doyle, Michael F.
Gohmert
Granger
Higgins (LA)
Higgins (NY)
Latta
Lipinski
Marchant
Williams

□ 1402

So the previous question was ordered.

The result of the vote was announced as above recorded.

Stated against:

Mr. LATTA. Mr. Speaker, due to being the ranking Republican on the Energy and Commerce Committee's Communication and Technology subcommittee, we were detained in a hearing during the vote. Had I been present, I would have voted "nay" on rollcall No. 478.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. WOODALL. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 233, nays 190, not voting 9, as follows:

[Roll No. 479]

YEAS—233

Adams
Aguilar
Allred
Axne
Barragán
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Boyle, Brendan F.
Brindisi
Brown (MD)
Brownley (CA)
Bustos
Butterfield
Carbajal
Cárdenas
Carson (IN)
Cartwright
Case
Casten (IL)
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Cisneros
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crist
Crow
Cuellar
Cummings
Cunningham
Davids (KS)
Davis (CA)
Davis, Danny K.
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Engel
Escobar
Eshoo
Espaillat
Evans
Finkenauer
Fletcher
Foster
Frankel
Fudge
Gabbard
Gallego
Garamendi
García (IL)
Garcia (TX)
Golden
Gomez
Gonzalez (TX)
Gottheimer
Green, Al (TX)
Grijalva
Haaland
Harder (CA)
Hastings
Hayes
Heck
Higgins (NY)
Hill (CA)
Himes
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Huffman
Jackson Lee
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kaptur
Keating
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lewis
Lieu, Ted
Loebsack
Lofgren
Lowenthal
Lowey
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McAdams
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy
Nadler
Napolitano
Neal
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Perlmutter
Peters
Peterson
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Richmond
Rose (NY)
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Spanberger
Speier
Stanton
Stevens
Suozzi
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Underwood
Van Drew
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Yarmuth

NAYS—190

Aderholt
Allen
Amash
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bergman
Bilirakis
Bishop (UT)
Bost
Brady
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Budd
Burchett
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Cheney
Cline
Cloud
Cole
Collins (GA)
Collins (NY)
Comer
Conaway
Cook
Crawford
Crenshaw
Curtis
Davidson (OH)
Davis, Rodney
DesJarlais
Diaz-Balart
Duffy
Duncan
Dunn
Emmer
Estes
Ferguson
Fitzpatrick
Fleischmann
Flores
Fortenberry
Foxx (NC)
Fulcher
Gaetz
Gallagher
Gianforte
Gibbs
Gonzalez (OH)
Gooden
Gosar
Graves (GA)
Graves (LA)
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Hill (AR)
Holding
Hollingsworth
Hudson
Huizenga
Hunter
Hurd (TX)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger
Kustoff (TN)

LaHood	Perry	Steube
LaMalfa	Posey	Stewart
Lamborn	Ratcliffe	Stivers
Latta	Reed	Taylor
Lesko	Reschenthaler	Thompson (PA)
Long	Rice (SC)	Thornberry
Loudermilk	Riggleman	Timmons
Lucas	Roby	Tipton
Luetkemeyer	Rodgers (WA)	Turner
Marshall	Roe, David P.	Upton
Massie	Rogers (AL)	Wagner
Mast	Rogers (KY)	Walberg
McCarthy	Rooney (FL)	Walden
McCaul	Rose, John W.	Walker
McClintock	Rouzer	Walorski
McHenry	Roy	Waltz
McKinley	Rutherford	Watkins
Meadows	Scalise	Weber (TX)
Meuser	Schweikert	Webster (FL)
Miller	Scott, Austin	Wenstrup
Mitchell	Sensenbrenner	Westerman
Moolenaar	Shimkus	Wilson (SC)
Mooney (WV)	Simpson	Wittman
Mullin	Smith (MO)	Womack
Newhouse	Smith (NE)	Woodall
Norman	Smith (NJ)	Wright
Nunes	Smucker	Yoho
Olson	Spano	Young
Palazzo	Stauber	Zeldin
Palmer	Stefanik	
Pence	Steil	

NOT VOTING—9

Abraham	Gohmert	Lipinski
Biggs	Granger	Marchant
Burgess	Higgins (LA)	Williams

□ 1411

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

NOTICE OF INTENTION OF HOUSE CONSIDERATION OF S.J. RES. 36, S.J. RES. 37, AND S.J. RES. 38 ON WEDNESDAY, JULY 17, 2019

Mr. HOYER. Pursuant to section 3(a)of House Resolution 491, I hereby give notice of intention that the House consider the following joint resolutions on Wednesday, July 17, 2019:

S.J. Res. 36;

S.J. Res. 37; and

S.J. Res. 38.

The SPEAKER pro tempore. The notice will appear in the RECORD.

□ 1415

CONDEMNING PRESIDENT TRUMP'S RACIST COMMENTS DIRECTED AT MEMBERS OF CONGRESS

Mr. NADLER. Mr. Speaker, pursuant to House Resolution 491, I call up the resolution (H. Res. 489) condemning President Trump's racist comments directed at Members of Congress, and ask for its immediate consideration in the House.

The Clerk read the title of the resolution.

The SPEAKER pro tempore (Mr. CLEAVER). Pursuant to House Resolution 491, the resolution is considered read.

The text of the resolution is as follows:

H. RES. 489

Whereas the Founders conceived America as a haven of refuge for people fleeing from religious and political persecution, and Thomas Jefferson, Alexander Hamilton, and James Madison all emphasized that the Nation gained as it attracted new people in search of freedom and livelihood for their families;

Whereas the Declaration of Independence defined America as a covenant based on equality, the unalienable Rights of life, liberty and the pursuit of happiness, and government by the consent of the people;

Whereas Benjamin Franklin said at the Constitutional convention, ''When foreigners after looking about for some other Country in which they can obtain more happiness, give a preference to ours, it is a proof of attachment which ought to excite our confidence and affection'';

Whereas President Franklin D. Roosevelt said, ''Remember, remember always, that all of us, and you and I especially, are descended from immigrants and revolutionists'';

Whereas immigration of people from all over the Earth has defined every stage of American history and propelled our social, economic, political, scientific, cultural, artistic, and technological progress as a people, and all Americans, except for the descendants of Native people and enslaved African Americans, are immigrants or descendants of immigrants;

Whereas the commitment to immigration and asylum has been not a partisan cause but a powerful national value that has infused the work of many Presidents;

Whereas American patriotism is defined not by race or ethnicity but by devotion to the Constitutional ideals of equality, liberty, inclusion, and democracy and by service to our communities and struggle for the common good;

Whereas President John F. Kennedy, whose family came to the United States from Ireland, stated in his 1958 book ''A Nation of Immigrants'' that ''The contribution of immigrants can be seen in every aspect of our national life. We see it in religion, in politics, in business, in the arts, in education, even in athletics and entertainment. There is no part of our nation that has not been touched by our immigrant background. Everywhere immigrants have enriched and strengthened the fabric of American life.'';

Whereas President Ronald Reagan in his last speech as President conveyed ''An observation about a country which I love'';

Whereas as President Reagan observed, the torch of Lady Liberty symbolizes our freedom and represents our heritage, the compact with our parents, our grandparents, and our ancestors, and it is the Statue of Liberty and its values that give us our great and special place in the world;

Whereas other countries may seek to compete with us, but in one vital area, as ''a beacon of freedom and opportunity that draws the people of the world, no country on Earth comes close'';

Whereas it is the great life force of ''each generation of new Americans that guarantees that America's triumph shall continue unsurpassed'' through the 21st century and beyond and is part of the ''magical, intoxicating power of America'';

Whereas this is ''one of the most important sources of America's greatness: we lead the world because, unique among nations, we draw our people -- our strength -- from every country and every corner of the world, and by doing so we continuously renew and enrich our nation'';

Whereas ''thanks to each wave of new arrivals to this land of opportunity, we're a nation forever young, forever bursting with energy and new ideas, and always on the cutting edge'', always leading the world to the next frontier;

Whereas this openness is vital to our future as a Nation, and ''if we ever closed the door to new Americans, our leadership in the world would soon be lost''; and

Whereas President Donald Trump's racist comments have legitimized fear and hatred of new Americans and people of color: Now, therefore, be it

Resolved, That the House of Representatives—

(1) believes that immigrants and their descendants have made America stronger, and that those who take the oath of citizenship are every bit as American as those whose families have lived in the United States for many generations;

(2) is committed to keeping America open to those lawfully seeking refuge and asylum from violence and oppression, and those who are willing to work hard to live the American Dream, no matter their race, ethnicity, faith, or country of origin; and

(3) strongly condemns President Donald Trump's racist comments that have legitimized and increased fear and hatred of new Americans and people of color by saying that our fellow Americans who are immigrants, and those who may look to the President like immigrants, should ''go back'' to other countries, by referring to immigrants and asylum seekers as ''invaders,'' and by saying that Members of Congress who are immigrants (or those of our colleagues who are wrongly assumed to be immigrants) do not belong in Congress or in the United States of America.

The SPEAKER pro tempore. The resolution shall be debatable for 1 hour, equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary.

The gentleman from New York (Mr. NADLER) and the gentleman from Georgia (Mr. COLLINS) each will control 30 minutes.

The Chair recognizes the gentleman from New York.

GENERAL LEAVE

Mr. NADLER. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and insert extraneous material on H. Res. 489.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New York?

There was no objection.

Mr. NADLER. Mr. Speaker, I yield myself 3 minutes.

Mr. Speaker, the comments described in this resolution were not just offensive to our colleagues; they were inconsistent with the principles and values upon which this Nation was founded.

In urging four female Members of Congress of color to ''go back'' where they came from, these comments were not only factually incorrect, but they were also deeply hurtful and divisive.

These were shocking comments, even from an administration that rips children from the arms of their parents and warehouses asylum seekers in facilities under inhumane conditions. We cannot let this moment pass without a forceful condemnation.

Need I remind the Speaker that this is the same President who defended the ''very fine people'' at the neo-Nazi march in Charlottesville, who denounced the ''s-hole countries'' in Africa and the Caribbean, who claimed that Haitian immigrants ''all have AIDS,''

and who declared that a Mexican American judge who was born in the United States had an ''inherent conflict of interest'' against him.

At every turn, Democrats have denounced offensive comments that emanate from the White House, but the silence coming from the other side of the aisle has been deafening. I hope that will finally change today.

This Congress must speak—loudly and with one voice—to condemn the President's words and, more importantly, to condemn the sentiments behind them.

The United States should be a beacon of hope and a refuge to those who need its protection, and it should welcome with open arms those who embody our values and ideals.

From our earliest days as a nation, we have welcomed people fleeing persecution and violence and those who seek economic opportunity and freedom in a land whose diversity is one of its greatest strengths. But the President has, instead, pursued a relentless campaign to build both a literal and a figurative wall around this Nation.

We must not turn our backs on our historic commitment to immigration and to refuge, and we must not fall prey to racial stereotypes and nativist fear-mongering that thinks that some immigrants who came here years ago are okay but those who come here today, because they are from so-called s-hole countries, are not okay.

It was Martin Luther King who told us: ''I have a dream that my four little children will one day live in a nation where they will not be judged by the color of their skin, but by the content of their character.''

The offensive words by the President undermine that dream. They contradict that dream.

Mr. Chair, I hope that all of my colleagues will join me in denouncing racism and in supporting this resolution, and I reserve the balance of my time.

Mr. COLLINS of Georgia. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, this is the third time that I have stood in this well this year on this floor about this subject, and I have been clear at every juncture: Racism, bigotry, and anti-Semitism will find no refuge in the people's House.

We expect each other to speak fairly, truthfully, and respectfully of all our fellow Members of Congress and of the President—not because we agree with each other all the time, but because we have great respect for the Americans who elected us and to represent them from one end of Pennsylvania Avenue to the other.

I come here today, Mr. Speaker, with much grief and many questions. The first may be procedural, but it is not trivial.

The Democrats wrote a resolution last night. It is on the floor today. I just have a question: What happened to the 72-hour rule ensuring Members have an opportunity to review legislation and seek feedback from constituents before voting on it? What happened to regular order? This never came through committee.

Why does the House have rules if the Democratic majority only follows them when politically convenient? And, also, as was brought up in the rules debate, there was even no consultation with others who would want to be a part of this.

The President has every right to be frustrated with Congress for the work that we have failed to do on multiple fronts, including the border. I also understand that his recent tweets make it hard for us to move forward.

Attacks are like quicksand: They trap and they defeat us before we know it. They are distracting us from legislating. That was true when a lawmaker implied last week that a Member of the House leadership was singling out ''newly elected women of color'' and when other Representatives were accused of enabling a racist system.

It is true as we see little to no concern from my colleagues across the aisle when a foreign flag is raised over an American facility or a terrorist firebombed another facility.

It is true when the President of the United States, out of frustration, tweeted this weekend, and it is true of many comments coming from lawmakers today.

In fact, it is interesting for my chairman to say that they have called out the President every time but, also, many times—and this is just a small listing of every week that they have not called out their own Members for things that I cannot read on this floor.

Unfortunately, Mr. Speaker, we are too quick this Congress to allow political ends to justify procedural means. But that is not democracy rooted in our unalienable rights, rights the second clause in this resolution affirms. The resolution is simply a lesson in political expediency.

Integrity is a prerequisite to our covenant to govern by the consent of the people, which this resolution also affirms.

We knew when we voted for the House rules this January that we could not, in this Chamber, use certain language about other democratically elected leaders. We agreed to let ideas compete for our votes and use rhetoric as a tool to build bridges instead of as kindling to burn those bridges down. Yet not a week goes by, as we have already pointed out, without Members of this body issuing statements or tweets that I could not and will not read from this floor without violating our rules.

It is amazing, but not surprising, that some of my colleagues are using this platform to call for impeachment since many have been making that call since November of 2016—no justification then, and definitely not now.

You see, Mr. Speaker, pleas for decorum are not merely a refuge for lawmakers who find themselves in the minority. Decorum is a symptom of a healthy and confident democracy. When we can debate ideas on this floor, decorum ensures democracy's every voice can be heard.

I would like to lend my voice to the chorus of lawmakers supporting the first 15 clauses of this resolution, but for the misguided title and the fourth page of this resolution, we could have had a suspension vote.

To its credit, the resolution states the House of Representatives ''is committed to keeping America open to those lawfully seeking refuge and asylum.'' I agree.

Everyone who votes for this resolution will now be on record as opposing illegal immigration, and I hope we can all work together to address the border crisis based on that common foundation.

Again, you don't need a vote on this resolution to do that. You simply have to look at the border and acknowledge the crisis.

But we will still have a problem with this resolution. We cannot, by our own House rules, support a resolution that labels the President in this way, and I will not.

The rules that have governed this body since the first United States Congress do not allow us to devolve in that way. However, it doesn't mean that we can't condemn racial or ethnic prejudice. It doesn't mean we can't decisively reject anti-Semitism, as we have on this floor. In my view, we have not done it so far in this Congress to that extent, but we have time for a clarion call on that front. I know some colleagues on both sides of the aisle who could join each other in that conviction.

Our own standards of decorum, however, in fact, empower us to welcome to America every person who respects our laws and wants to help defend our freedoms. These standards also give us a platform to admit when we and those around us make mistakes.

When we consider the power of this Chamber to legislate for the common good, I wonder why my colleagues have become so eager to attack the President that they are willing to sacrifice the rules, precedents, and the integrity of the people's House for an unprecedented vote that undercuts its very democratic processes.

I wonder, if the comments in view today are what some of my colleagues say they are, why this resolution had to rephrase them to make its point. The resolution condemns comments in a way that exposes the breathtaking partisanship of today's exercise.

The resolution quotes only three words from the comments it rejects—the words ''go back'' and ''invaders.'' Beyond those three words, the resolution substitutes its own phrasing and editorializing for the words this resolution has in view.

Again, a partisan show. That is a tell that today's resolution is more of a political jab than anything else. It is, therefore, a signal for us to take a moment to look inward.

I wonder if, when we are tempted to accuse our sister, our brother, our fellow American, political foe, or Madam Speaker of racism—by the way, I do not believe that the President is a racist. I do not believe the Speaker of this House is a racist. I do not believe the majority leader is a racist. I do not believe the minority leader is a racist. We can go down this line. I do not believe that. Then why do we insist on using this floor to litigate the propriety of statements made outside these walls?

We assign a lot of wicked intent to a lot of tweets, even though 280 characters offers us the least context for making our points and endless potential for misunderstanding each other.

To be fair, a lot of political speech today seems to be made to deepen our divide by highlighting our differences, and that is a cause for sadness. That is exactly what the rules of decorum in this body are designed to guard against.

We have a choice this afternoon, Mr. Speaker. We can pursue escalation against our fellow Americans, or we can pursue reconciliation on their behalf. Only one of those options makes room for this body to do its job: the legislating of the solutions for the challenges of the American people.

Many of the Members are my friends, and I am thankful for the chance to work alongside each of them every day. But, today, we renew our commitment to the democratic ideals of this Chamber by voting against a flawed resolution, against a political statement, against something that could not even be written in a proper way without adding editorial and paraphrased comments.

I would ask each of my friends on both sides of the aisle to evaluate what is before them, evaluate what we have done, and evaluate what we don't take up for political convenience when it is our side saying it.

Mr. Speaker, I reserve the balance of my time.

Mr. NADLER. Mr. Speaker, I yield 1 minute to the gentleman from Maryland (Mr. HOYER), the distinguished majority leader of the House.

Mr. HOYER. Mr. Speaker, I thank the chairman for yielding.

I want to thank the gentleman from Georgia, who is my friend; and I want to respectfully say to him: This resolution is not about partisanship. It is about prejudice and the necessity to confront it.

Mr. Speaker, my father was from Denmark. He was born and raised in Copenhagen and came here as an adult in his twenties. I have a large extended family in Denmark.

The President of the United States, Mr. Speaker, did not tell me to go back to Denmark.

He did not tell the Speaker of this House, a woman proud of her Italian American heritage, to go back to Italy.

He did not tell the Irish American Members of this body to go back to Ireland or tell those of German ancestry to go back to Germany. No.

He told four women of color, three of whom are natural-born citizens, born and raised in their home country of America, to ''go back'' to their countries.

This is their country, Mr. Speaker, I would tell the President.

And it is the country of our colleague who came here as a refugee from Somalia. She endured hardships and arrived on our shores like so many others, seeking freedom, safety, and opportunity.

She is an American citizen, one who chose to give back to her community and our country through public service. This is her country.

I will not speculate on this floor about the motives or intentions of the President, but no one can dispute that the words he said and wrote were racist words—and have been called such by Republicans—with a long history of being used to demean, dismiss, and denigrate some American citizens as less than others, as not fully belonging in our country because of the color of their skin or the origin of their families.

Mr. Speaker, to oppose this resolution is, in effect, saying the words were acceptable.

□ 1430

They were not acceptable. Such words should never be acceptable from the leader of this country, or frankly, anybody else. They demean our Declaration of Independence; they demean our Constitution; and they demean our Pledge of Allegiance: ''One Nation . . . indivisible.''

So I urge this House to come together and support this resolution. No matter whether one supports this President or not; whether one believes he is a racist or not; vote for this resolution that condemns the words he spoke. They hurt. They are not American. They are not us. The sentiment was not one we ought to espouse.

Mr. Speaker, I say to the President, if I were speaking to him: The next time you wish to denigrate and demean those who came here, or the children and grandchildren of immigrants, say it to me. Say it to all of us in this House. Say it to every descendant of immigrants.

Express the sentiment of the House of Representatives that this is not the conversation that we have in America. We lift our lamp beside the golden door. Let us keep that flame bright.

The SPEAKER pro tempore. Before we go any further, let me just remind Members to refrain from engaging in personality-based remarks toward the President.

Mr. COLLINS of Georgia. Mr. Speaker, I yield 4 minutes to the gentleman from California (Mr. MCCLINTOCK).

Mr. MCCLINTOCK. Mr. Speaker, we have, unfortunately, entered a period of our history when our political rhetoric has become hyperbolic, just as our political views are becoming increasingly irreconcilable. We would all be well-advised not to continue down this road.

''America, love it or leave it,'' is not a new sentiment nor a radical sentiment, and it certainly is not a racist sentiment. It should remind us of commonly-held and enduring founding principles that ought to be uniting us as a free people: Respect for the rule of law, and for the uniquely American principles of individual liberty, constitutionally-limited government, and personal responsibility that have produced the happiest, most productive and most powerful Nation in the history of the world.

Every nation has a right to protect its culture, traditions, institutions, and principles. This fundamental consensus is what binds us together and unites us as a free people, and it is what makes possible all of the compromises and accommodations required by democratic self-government.

We have entered an era when that consensus is breaking down. We have seen a growing hostility to our American Founders, our American founding principles, and our proud American heritage.

Legal immigration, immigrants who come to our country by obeying our laws, respecting our Nation's sovereignty, and bringing with them a sincere desire to embrace our Constitution and the principles of liberty that animate and inform our form of government, is integral to this process.

Some of the most patriotic Americans I know are legal immigrants who obeyed our laws, who waited patiently in line, who did everything our country asked of them.

Some of the most unpatriotic Americans I know were born here and have enjoyed all of the blessings of liberty, without ever appreciating or even understanding the principles that produced our Nation's greatness and its goodness.

Socialism and slavery spring from the same principle—in Lincoln's words: ''It is the same spirit that says, 'you work and toil and earn bread, and I'll eat it.''' He reminded us that ''A house divided against itself cannot stand.'' He said: ''I do not expect the house to fall—but I do expect it will cease to be divided. It will become all one thing or all the other.''

He understood that freedom and slavery were antithetical; and though they might be held together in a temporary accommodation, they could not coexist for long.

Today, we face the same conflict between freedom and socialism, and it is time to choose.

Now, I wish the President were more temperate in the words he sometimes uses, and I agree that the tone of his recent remarks was unnecessarily provocative. But his central point is irrefutable. There is no requirement for those who hate our country to remain here when there are so many other

countries with different principles and values to choose from and that have, in turn, produced very different results.

This is as true of those born here as those who have come here from abroad. The President spoke not of race but of patriotism, American patriotism. And to call that racist fundamentally misunderstands and misrepresents the question before our country today.

Mr. NADLER. Mr. Speaker, I yield 3½ minutes to the gentleman from New Jersey (Mr. MALINOWSKI), the sponsor of the resolution.

Mr. MALINOWSKI. Mr. Speaker, when I saw the President's comments over the weekend, my first thought was, my politics may not always be the same as the Congresswomen he was attacking; but all of us are Americans. And unlike most of them, I was actually born in a foreign country.

I took the oath to support and defend the Constitution of the United States when I was 10 years old, with my mom, when I was sworn in to be a citizen 5 years after we came here from Poland.

Does the President think I should go back because I am an immigrant who disagrees with his policies?

There are 44 million of us American citizens who were born somewhere else, and we new Americans know what it means to be American because we chose America. We know the alternative.

Many of us do come from broken countries, a communist country, in my case, broken by communism and, in many cases, broken by leaders who did just what we are condemning today, using race and religion to divide people.

The President may be doing it cynically. He wants the drama. He wants the reality show.

In my district, we have to deal with the reality that these words are dangerous. Every synagogue in my district either has armed security or is struggling with the question of whether to have it. Every mosque has State Police coming to Friday prayers.

We know that the words the President uses to drive up his ratings can be like sparks to the gasoline of disturbed minds in our country; that the man who massacred Jews in Pittsburgh was obsessed with migrant caravans and blamed Jews for helping refugees; that the man who murdered Muslims in Christchurch, New Zealand, believed immigrants are invaders who should go back to their country.

These fringe haters have always been with us. Never before have their twisted thoughts been legitimized by the highest leaders in our land.

Yesterday, after the President's tweets, the neo-Nazi Daily Stormer website gloated that this is the kind of white nationalism we voted for.

Now, we have to decide, is this the kind of politics that we want in our country?

Mr. Speaker, this resolution is not really about the President. We know who he is. My Republican colleagues know who he is.

The question is—the only question left to us is, who are we? Because this is not about him. This is about us.

Are we still the country of immigrants and of laws that every great American leader, from Ben Franklin, to FDR, to John F. Kennedy, to George Bush, believed in?

Do we still believe what Ronald Reagan said that: ''Americans lead the world because, unique among nations, we draw our people, our strength, from every country and every corner of the world;'' that new Americans ''renew our pride and gratitude in the United States of America, the greatest, freest Nation in the world''?

This is the choice that every Member of the House will have to make tonight. Do we agree with President Reagan's hopeful, confident, patriotic vision of America, or with President Trump's message of fear?

Mr. Speaker, Republicans and Democrats can afford to disagree about many things in this House; but let us not be divided on decency to our fellow Americans.

At this defining moment for our country and for this body, let us come together to support this resolution.

Mr. COLLINS of Georgia. Mr. Speaker, I yield 3 minutes to the gentleman from Ohio (Mr. GONZALEZ).

Mr. GONZALEZ of Ohio. Mr. Speaker, I was one of the first Republicans, I believe, to speak out once the comments became public on Sunday. I did it Sunday afternoon, and then I did it again on Monday.

But I cannot, in good faith, support this resolution because I can't possibly overlook the partisan nature in which it was brought forward, and the number of issues that we have control over in the House that we are choosing to ignore and have continued to ignore since we were sworn in in January.

We have Members of this body who have called detention facilities concentration camps; have supported people who are labeling our Border Patrol agents and our ICE officers as Nazis.

The gentleman just mentioned some folks outside of this body of Congress who may, he believes, have been inspired by certain comments. Well, where is the condemnation of these?

When are we going to stand up and condemn those who call Americans, who are doing their jobs, by the way, enforcing laws that we enact, Nazis? When are we going to push back on that?

When are we going to push back on comments, after one of our Members was criticized, they said, and I quote: After the comments, ''I got a text message from a friend who's like, hey, next time, you know, really clarify. Maybe talk like a fourth grader because maybe the racist idiots would understand you better''?

Am I a racist idiot? Do I read at a fourth-grade level? Do the Members of this body?

Have we gotten so broken as a Congress, where a simple disagreement results in us labeling one another racist idiots? Is that who we are?

Where's the condemnation? When are we going to speak out about that?

And I don't have to remind this body about the last time we were here for a similar process, when one of our Members said: ''It's all about the Benjamins,'' implying that Members of both sides of the aisle are being purchased and bought by our Jewish brothers and sisters.

When are we going to stand up and speak out against that? Because I have been here for 7 months now, and it is the same thing over and over again.

And the people who lose—and we all know this—are the constituents who are relying on us to actually work to solve problems.

We have done nothing to support USMCA, to bring it up for a vote. We have done nothing to bring down the cost of prescription drugs. We haven't done anything since we have been here, and the reason is because we have been focused on fighting each other online; biting back and forth; rushing in front of the cameras; boosting our Twitter followers; and inciting the very division that prevents us from seeking common ground.

I, like I know most of my colleagues, came here to find common ground. We came here to fight for the ideals that make our Nation great.

I am the son of Cuban immigrants, proudly.

Mr. NADLER. Mr. Speaker, I yield 1 minute to the distinguished gentlewoman from Michigan (Ms. TLAIB).

Ms. TLAIB. Mr. Speaker, I rise today in support of this resolution because I want every single person in my district to know that not only are they part of the squad, but they are—we are all here to stay. I want them to know that they belong; that we see and hear them loud and clear.

Mr. Speaker, I am more proud today than ever to be the daughter of Palestinian immigrants; to be the first in my family to graduate high school and, later, college; to have grown up in the city that birthed movements that fought and won against racism and inequality in our country. It is a city that taught me to never back down; to speak up when I see injustice, and one that elected the first of two Muslim women serving in the United States Congress.

This resolution chooses all of us. It chooses you. It chooses those who are marginalized and, more importantly, it chooses the values that we all must live up to.

We cannot allow anyone, especially the President of the United States, to erode our core American values. I urge my colleagues to please choose our country, choose the American people, and to support this resolution.

Mr. COLLINS of Georgia. Mr. Speaker, I yield 1½ minutes to the gentleman from Pennsylvania (Mr. MEUSER).

□ 1445

Mr. MEUSER. Mr. Speaker, I rise today in opposition to H. Res. 489, the

latest legislative attack on the President. Much like most of the ideas and comments coming from the leading members of the socialist left, yesterday's press conference was, at best, political theater.

In the last few days, Democratic Members of this House have attacked the President with claims of racism. Some have even said and then walked back similar comments referring to the Democratic House Speaker. None of those accusations are based in fact.

As the representative of the people of the Ninth Congressional District of Pennsylvania, I feel it is most important to address this matter and then move on to engage in the work and the matters of real substance and importance to the people of our country, rather than baseless name-calling and offensive lectures.

The ongoing policy debate across the country will continue to be socialism versus American exceptionalism. The people will decide our direction. What has really happened here is that the President and his supporters have been forced to endure months of allegations of racism and ''concentration camp'' accusations.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. COLLINS of Georgia. Mr. Speaker, I yield an additional 30 seconds to the gentleman from Pennsylvania.

Mr. MEUSER. Mr. Speaker, this ridiculous slander does a disservice to our Nation and to the American people, and I, like many, am tired of it. I urge a ''no'' vote on the resolution aimed purely at harassing the President of the United States.

Mr. NADLER. Mr. Speaker, I yield 1 minute to the distinguished gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Speaker, I said earlier today that I wish we were not here, but we are here. Now, I wish to indicate that I am appalled at any commentary that demeans or hurts a fellow human being or a fellow American or fellow world citizen. So the recounting of various statements, I realize and recognize that comments were made about statements to ease the pain of those who were receiving it.

Right now, we are talking about comments that came from the highest office in the land, which really does reflect what this little book, the Constitution, says, that this Nation was organized to create a more perfect union. Yet, unfortunately, the officer in the White House, the President of the United States, took to tweeting and talked about the first African American woman from the Seventh District, the first Palestinian American woman, the youngest woman elected to Congress, and the first Somali American woman, women of color.

It is imperative today that, along with H. Res. 494, my resolution, we condemn this action, and we do it together. I ask my Republican colleagues to vote for the underlying resolution.

Mr. Speaker, as a senior member of the Committees on the Judiciary and Homeland Security, I rise in support of H. Res. 489, a resolution condemning President Trump's racist comments directed at Members of Congress.

Mr. Speaker, on November 6, 2018, in an election widely regarded as a referendum on the performance and disapproval of the Administration of President Donald J. Trump, the American people voted to vest control of the U.S. House of Representatives in the Democratic Party to restore the system of checks and balances designed by the Framers in 1787 in Philadelphia.

The Representatives elected to the 116th Congress comprise the most diverse class in American history with respect to its racial, ethnic, and religious composition, and also includes the largest contingent of female Representatives and the most members ever of the LGBTQ community.

Among the cohort of the 40 Representatives first elected to the Congress in the November 2018 election are several whose membership is historic, including the Representative for the Seventh District of Massachusetts, the first African American woman elected from the Commonwealth of Massachusetts; the Representative from the Thirteenth District of Michigan, the first Palestinian-American woman elected to Congress; the Representative from the Fourteenth District of New York, the youngest woman ever elected to Congress; and the Representative from the Fifth District of Minnesota, the first Somali-American elected to Congress.

In the discharge of their official duties as Members of Congress, these talented and dedicated Members of Congress traveled to the southern border of the United States to observe the living conditions and treatment received by migrants and refugees seeking asylum in the United States who are currently being held in detention facilities operated under control or supervision of the U.S. Customs and Border Protection (CBP), some consisting of nothing more than tent villages cordoned off under highways.

Upon their return to the Capitol, these Members of Congress reported their shock and horror regarding the appalling and inhumane conditions to which detainees were being subjected by CPB at a public hearing of a House Committee on Oversight and Reform.

On July 14, 2019, the President of the United States reacted to the criticism of his Administration's treatment of detainees by these Members of Congress in a series of unhinged tweets that questioned their loyalty to the United States and implied that due to the circumstances of their birth they had no right to exercise the responsibilities and privileges of duly elected Members of Congress.

Specifically, the President tweeted that it was:

''So interesting to see ''Progressive'' Democrat Congresswomen, who originally came from countries whose governments are a complete and total catastrophe, the worst, most corrupt and inept anywhere in the world (if they even have a functioning government at all), now loudly . . . and viciously telling the people of the United States, the greatest and most powerful Nation on earth, how our government is to be run. Why don't they go back and help fix the totally broken and crime infested places from which they came.''

The President's statements are false in that three of Members of Congress he impugned are in fact natural born citizens and the fourth is a naturalized citizen.

Although the recent statements of the President are inaccurate and offensive, they are consistent with prior statements he has made to stoke to division, discord, and disharmony among the American people.

Let us not forget that the current President of the United States burnished his political reputation by claiming falsely for more than 5 years that his predecessor was born in Kenya and not in the United States and thus was an illegitimate President. The current President of the United States launched his 2016 campaign for the Presidency by saying of persons from Mexico seeking to immigrate to the United States: ''They're bringing drugs. They're bringing crime. They're rapists.''

The current President of the United States claimed that a Hispanic federal jurist could not preside over a court proceeding to which then presidential candidate Donald J. Trump and the Trump Organization were defendants accused of civil fraud because ''He's a Mexican!''

In January 2018 the current President of the United States is reported to have inquired of his advisors: ''Why are we having all these people from (expletive deleted) countries come here?'', referring to persons from countries in Africa, the Caribbean, and Central and South America.

And most contemptible of all, on August 15, 2017 the current President of the United States said he regarded as some ''very fine people,'' the neo-Nazis, white supremacists, and Ku Klux Klansmen who descended on the peaceful community of Charlottesville, Virginia to advocate racism and who were met by peaceful counterprotestors in a clash that the white supremacists turned violent and resulted in the death of Heather Heyer and left injured many other innocent persons who were gathered to affirm the principles of the Declaration of Independence and the U.S. Constitution, and to honor the sacrifice of unsung American heroes who devoted their lives to the ongoing quest to continue perfecting our union.

Mr. Speaker, the recent and past statements and actions of the current President of the United States demean the office he holds and falls short of the standard set by the 16th President, whose administration was devoted to unity, healing, and ending racial division.

In his famous March 4, 1861, Inaugural Address, President Abraham Lincoln foretold the reasons why the efforts of the current President of the United States to rend our union are destined to fail:

''We are not enemies, but friends. We must not be enemies. Though passion may have strained, it must not break our bonds of affection. The mystic chords of memory will swell when again touched, as surely they will be, by the better angels of our nature.''

Before closing, Mr. Speaker, I think it appropriate to share my perspective on immigration and significant and positive impact it has in the development of this, the greatest nation in human history.

Like the Framers did in the summer of 1776, it is fitting that we gather in the nation's capital on a sweltering July day to reflect upon America's long and continuing struggle for justice, equality, and opportunity.

After all, all that any of us wants is an honored place in the American family.

I am often reminded that as I speak there is a family somewhere about to begin a dangerous but hopeful quest.

Somewhere south of the border, maybe across the Rio Grande from El Paso, Laredo, Corpus Christi, or Brownsville or maybe just south of Tucson or San Diego or Douglass, Arizona.

Somewhere there is a family in the Old Country anxiously about to embark on their own journey to the New World of America.

They come for the same reason so many millions came before them, in this century and last, from this continent and from every other.

They come for the same reason families have always come to America: to be free of fear and hunger, to better their condition, to begin their world anew, to give their children a chance for a better life.

Like previous waves of immigrants, they too will wage all and risk all to reach the sidewalks of Houston or Los Angeles or Phoenix or Chicago or Atlanta or Denver or Detroit.

They will risk death in the desert; they will brave the elements, they will risk capture and crime, they will endure separation from loved ones.

And if they make it to the Promised Land of America, no job will be beneath them.

They will cook our food, clean our houses, cut our grass, and care for our kids.

They will be cheated by some and exploited by others.

They work in sunlight but live in twilight, between the shadows; not fully welcome as new Americans but wanted as low-wage workers.

Somewhere near the borders tonight, a family will cross over into the New World, willed by the enduring power of the American Dream.

I urge all Members to join me in supporting H. Res. 489.

All American should take pride in and celebrate the ethnic, racial, and religious diversity that has made the United States the leader of the community of nations and the beacon of hope and inspiration to oppressed persons everywhere.

And in addition to the love and pride Americans justifiably have for their country, all persons in the United States should cherish and exercise the rights, privileges, and responsibilities guaranteed by the Constitution of the United States.

Mr. COLLINS of Georgia. Mr. Speaker, I yield 3 minutes to the gentlewoman from West Virginia (Mrs. MILLER).

Mrs. MILLER. Mr. Speaker, I rise today to speak in opposition to the resolution on the floor.

For the past 7 months, the President has stated that there is a crisis on our border. Republican House leadership has said there is a crisis on the border. My colleagues have said there is a crisis on the border. And I have said there is a crisis on the border.

Throughout this, the Washington Democrats have denied it again and again. From the party leadership and the committee chairs in hearings and even on the House floor, many have said that the crisis is fake, phony, nonexistent, manufactured, imaginary, and false. They turned a blind eye to a crisis because of political opposition, and the media followed suit.

A few weeks ago, several of my colleagues across the aisle took a trip to our southern border, bringing cameras and journalists along with them. They finally came to terms with what the Republicans have been saying for months.

However, instead of focusing on the root of the problem, underfunding, overcrowding, backlogged cases, and unprecedented surges, they opposed funding and passed a bill to ban construction on the southern border.

For 7 months, my colleagues across the aisle have denied a crisis and failed to act. They still haven't acted. I want to work together to solve this crisis. Instead, we are here debating political nonsense. I have had enough talk about tweets, squads, infighting, labels, and petty disagreements.

When we look at the content of the legislation brought up for discussion today, it is no surprise that the American people have such a low approval of Congress. If it is not a messaging bill to placate the activists, it is an advancement of the socialist agenda, a bill to handcuff our President, or a denouncement of American values.

I came to Congress to create jobs, grow the economy, innovate our energy industry, and fix West Virginia's infrastructure. I was sent here to move our country forward and to solve the problems that actually affect the lives of those we represent. To improve our communities, our country, that is why we are all here.

This resolution is a waste of time. I urge my colleagues to oppose this legislation and any legislation that doesn't deliver the results for our country that our citizens deserve.

Mr. NADLER. Mr. Speaker, I yield 1 minute to the distinguished gentleman from Tennessee (Mr. COHEN).

Mr. COHEN. Mr. Speaker, I join in supporting this resolution. I felt that we should have had a stronger resolution that censured the President, H. Res. 490, because the conduct that has been charged is beneath the Office of the President. He should not disparage people and suggest they go back to where they were born.

Ms. OCASIO-CORTEZ was born in the Bronx, and her parents were born in Puerto Rico. Mr. Trump should know that Puerto Rico is the United States of America.

From references to Haiti and African countries as ''-hole'' countries to the ''fine people on both sides'' in Charlottesville with neo-Nazis and Klansmen there, he has gone out of his way to find opportunities to besmirch Hispanic Americans, people of Mexican descent, African Americans, and African countries. This is wrong and beneath the Office of the President.

The SPEAKER pro tempore. Let me remind Members, again, to refrain from engaging in personality-based remarks toward the President or any other Member.

Mr. COLLINS of Georgia. Mr. Speaker, I ask for a time check on both sides, please.

The SPEAKER pro tempore. The gentleman from Georgia has 12¼ minutes remaining, and the gentleman from New York has 20 minutes remaining.

Mr. COLLINS of Georgia. Mr. Speaker, at this time I yield 3 minutes to the gentleman from Wisconsin (Mr. DUFFY).

Mr. DUFFY. Mr. Speaker, I appreciate the gentleman for yielding.

I just want to note at the start of this resolution for the first three pages I agree with everything. We have great quotes in here of our Founders and American Presidents who talk about the strength of this country that has come from immigrants and immigration, and I wholeheartedly concur.

As we get to page 4, though, I have significant disagreement. I would note that on page 4 on the whereas, it is noted that ''Trump's racist comments have legitimized fear and hatred of new Americans,'' and I just want to make a point to my friends across the aisle because in paragraph 2 you note that it is committed to keeping America open to those who lawfully seek refuge and asylum from violence and oppression. Lawfully seek refuge and asylum.

But I would note that, just recently, President Trump has said those who have sought asylum, had a hearing, and have a deportation order, you all are offended by that. You didn't include in your resolution those who had deportation orders issued, your opposition to them being removed. So you actually agree with us and President Trump that those who have lawful orders of deportation should be sent out of the country, just to cite your resolution.

But I want to note, Mr. Speaker, that I have looked closely at the chain of three tweets sent out by President Trump, and in those tweets I see nothing that references anybody's race, not a thing. I don't see anyone's name being referenced in the tweets.

But the President is referring to people—Congresswomen—who are anti-American. And lo and behold, everybody in this Chamber knows who he is talking about. Who are the anti-American Members of Congress? He didn't say their names. He did not say their race, but he commented on how they view America. And we all know who he was talking about.

I want immigrants to come to this country, but if you come to this country, shouldn't you love this country? We all come here and see imperfection, and we work every week trying to make our country better, but to say I wholeheartedly dislike the country, the fact that I am going to call the President an mf'er, good Lord, what has the institution become?

And then to come to this floor and chastise the President for a couple of tweets, when that is the language we use against him?

That is rich, Mr. Speaker, that that is the language that the left would use and then try to call out the President who didn't cite a race or he didn't cite a name.

I look at this, and I think we are all called to do better and be better. We

should make this country better. But when I look at some who say I believe that socialism is a purer form of government and a better economic economy over capitalism that has given us the freest, most generous, most prosperous country that has ever existed on the face of the Earth, and we want to trade this in for a system that has always failed?

I think you are going to see Republicans push back against that, and I think many Democrats will push back against that, and I think that is what this argument really comes down to.

And one other note, I look at some of my conservatives like Candace Owens, Diamond and Silk, Justice Thomas—

The SPEAKER pro tempore. The time of the gentleman has expired.

The gentleman from New York (Mr. NADLER) is recognized.

Let me again say, please direct your comments to the Chair.

PARLIAMENTARY INQUIRY

Ms. JAYAPAL. Mr. Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentlewoman will state her parliamentary inquiry.

Ms. JAYAPAL. Mr. Speaker, my inquiry is this. My colleague across the aisle just referred to Members of Congress as ''anti-American.'' I believe that those words are defamatory, and I would like to ask whether that is appropriate for a request for the gentleman to take down his words.

The SPEAKER pro tempore. The Chair will not issue an advisory opinion. I have directed both sides to please address the Chair, number one; and number two, I ask that Members refrain from engaging in any personality-based remarks. So the Chair is not going to issue an advisory opinion at this point.

Ms. JAYAPAL. Mr. Speaker, so a Member can say that other Members of Congress are anti-American and no resolution for that? We would like to ask the gentleman to take down his words.

The SPEAKER pro tempore. Is the gentlewoman making a demand that the words be taken down?

Ms. JAYAPAL. Mr. Speaker, yes, I am asking that the gentleman's words be taken down.

The SPEAKER pro tempore. In order for the words to be taken down, the objection has to be contemporaneous to the remarks.

Ms. JAYAPAL. Mr. Speaker, I was trying to get the attention.

Mr. Speaker, I will relinquish the point, but I just want to remind my colleagues that that is completely inappropriate to tell any of us that we are anti-American.

The SPEAKER pro tempore. Let me just say, if the violation occurs again, I will interrupt mid-sentence.

Mr. NADLER. Mr. Speaker, I now yield 1 minute to the gentlewoman from California (Ms. PELOSI), the distinguished Speaker of the House.

Ms. PELOSI. Mr. Speaker, I thank the gentleman for yielding. I thank him for his leadership in so many ways in this Congress.

Mr. Speaker, I commend Mr. MALINOWSKI and Mr. RASKIN for bringing this important resolution to the floor.

Mr. Speaker, I come to this floor prayerfully. It is really very sad. It was interesting to me—and I spoke out about this—that on Sunday in Catholic Masses, and I don't know beyond that, that the gospel of the day was the gospel of the Good Samaritan. A person asked Jesus, ''What do I have to do to enter the kingdom of Heaven?''

And Christ replied, ''Love thy neighbor as thyself. Show mercy.'' That very same day he went on to talk and then he said, ''Well, how do I do this?''

And Jesus gave him the example of the Good Samaritan. Everyone is familiar with how a stranger helped another stranger, a foreigner helped another foreigner, the Good Samaritan. Love thy neighbor as thyself, show mercy.

□ 1500

On that very same day, coincidentally, ironically, sadly, whatever adverb you want to use, the President was instituting raids into the homes of families.

I went to Spanish mass this weekend and saw the dignity of those families, the beauty of the children, and the fear that the President had struck in their hearts, as we were listening to the Gospel of the Good Samaritan to show mercy and love thy neighbor as thyself. That very same day, unfortunately, there were those who were not informed by that Gospel.

So here we are later in that day, it was stunning to hear the words that were used, go home, to some of our colleagues, the same words that were used to so many people in our country whether because they weren't born here or because they didn't look like some others here: Go home.

As annoyed and as insulted as we all should be about the President saying that about our colleagues, it is also not showing mercy for him to say that about so many people in our country, as he wants to split up families.

So, Mr. Speaker, I thank Mr. MALINOWSKI and Mr. RASKIN for the opportunity to speak to the statements that the President made later in the day of the Gospel of the Good Samaritan: Mr. MALINOWSKI, who was born abroad; Mr. RASKIN for his firm leadership in advancing this important resolution.

The House hopefully has come together standing as one to denounce the White House's xenophobic attacks on our Members, on our people, and to defend the values of America.

And what is America? America is many things: the land of a great Constitution, which is under threat; a beautiful land that God has given us, which is being degraded; values that we share that are being undermined. But America is also a Nation largely, but not totally, largely of immigrants.

As this resolution so beautifully states, '' . . . the Founders conceived America as a haven for refuge for people fleeing from religious and political persecution, and Thomas Jefferson, Alexander Hamilton, and James Madison all emphasized that the Nation gained as it attracted new people in search of freedom and livelihood for their families.''

The resolution quotes our most iconic Presidents, who all recognized that immigrants are the constant reinvigoration of America, of hope, determination, optimism, and courage to make the future better.

Those are American values. Those are American traits: hope, optimism, courage. Many of these immigrants, when they come here with those values and those traits, make America more American.

Franklin Roosevelt said: ''Remember always that all of us, and you and I especially, are descended from immigrants.''

President John F. Kennedy wrote that: ''The contribution of immigrants can be seen in every aspect of our national life.''

President Ronald Reagan so beautifully in his last speech as President of the United States, which is quoted in this resolution, said: ''If we ever closed the door to new Americans, our leadership in the world would soon be lost.''

Yet, the President's comments about our colleagues this weekend showed that he does not share those American values. These comments from the White House are disgraceful and disgusting, and the comments are racist. How shameful to hear him continue to defend those offensive words, words that we have all heard him repeat not only about our Members, but about countless others.

Our caucus will continue to forcefully respond to those attacks on our Members, which reflect a fundamental disrespect for the beautiful diversity of America. There is no place anywhere for the President's words, which are not only divisive, but dangerous, and have legitimized and increased fear and hatred of new Americans and people of color.

It is so sad, because you would think that there would be a given that we would universally in this body just say, of course. And there is no excuse for any response to those words but a swift and strong, unified condemnation.

Every single Member of this institution, Democratic and Republican, should join us in condemning the President's racist tweets. To do anything less would be a shocking rejection of our values and a shameful abdication of our oath of office.

Mr. COLLINS of Georgia. Mr. Speaker, point of order.

The SPEAKER pro tempore. The gentlewoman will suspend.

Mr. COLLINS of Georgia. Point of order.

Ms. PELOSI. To protect the American people, I urge a unanimous vote.

Mr. COLLINS of Georgia. Mr. Speaker, I was just going to ask the gentle Speaker of the House if she would like to rephrase that comment.

Ms. PELOSI. Mr. Speaker, I cleared my remarks with the Parliamentarian before I read them.

POINT OF ORDER

Mr. COLLINS of Georgia. Mr. Speaker, I make a point of order the gentlewoman's words are unparliamentary and request that the words be taken down.

The SPEAKER pro tempore. The Chair will remind all Members please do not make personality-based comments.

The gentleman from Georgia is recognized.

Mr. COLLINS of Georgia. Mr. Speaker, I made a point of order that the gentlewoman's words were unparliamentary and request they be taken down.

The SPEAKER pro tempore. Is the gentleman making a demand that the words be taken down?

Mr. COLLINS of Georgia. Mr. Speaker, I request that the gentlewoman's words are unparliamentary and request that they be taken down.

Mr. NADLER. Mr. Speaker.

The SPEAKER pro tempore. All Members will suspend.

The Clerk will report the words.

□ 1625

The Clerk read as follows:

Every single Member of this institution, Democratic and Republican, should join us in condemning the President's racist tweets. To do anything less would be a shocking rejection of our values and a shameful abdication of our oath of office.

The SPEAKER pro tempore. The Chair is ready to make a statement.

I came in here to try to do this in a fair way. I kept warning both sides—''let's not do this''—hoping we could get through.

Ms. JAYAPAL had a situation where we could be in here on another motion to take down words of a friend of mine. But we don't ever, ever want to pass up, it seems, an opportunity to escalate, and that is what this is.

I dare anybody to look at any of the footage and see if there was any unfairness. But unfairness is not enough, because we want to just fight.

I abandon the Chair.

□ 1645

The SPEAKER pro tempore (Mr. HOYER). The Chair is prepared to rule.

The words of the gentlewoman from California contain an accusation of racist behavior on the part of the President.

As memorialized in Deschler-Brown Precedents, chapter 29, section 65.6, characterizing an action as racist is not in order. The Chair relies on the precedent of May 15, 1984, and finds that the words should not be used in debate.

MOTION OFFERED BY MR. COLLINS OF GEORGIA

Mr. COLLINS of Georgia. Mr. Speaker, I have a motion at the desk.

The SPEAKER pro tempore. The Clerk will report the motion.

The Clerk read as follows:

Mr. COLLINS of Georgia moves that the words of the gentlewoman from California be stricken from the RECORD.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Georgia (Mr. COLLINS).

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. COLLINS of Georgia. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 190, nays 232, not voting 10, as follows:

[Roll No. 480]

YEAS—190

Abraham
Aderholt
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bergman
Bilirakis
Bishop (UT)
Bost
Brady
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Budd
Burchett
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Cheney
Cline
Cloud
Cole
Collins (GA)
Comer
Conaway
Cook
Crawford
Crenshaw
Curtis
Davidson (OH)
Davis, Rodney
DesJarlais
Diaz-Balart
Duffy
Duncan
Dunn
Emmer
Estes
Ferguson
Fitzpatrick
Fleischmann
Flores
Fortenberry
Foxx (NC)
Fulcher
Gaetz
Gallagher
Gianforte
Gibbs
Gonzalez (OH)
Gooden
Gosar
Graves (GA)
Graves (LA)
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Higgins (LA)
Hill (AR)
Holding
Hollingsworth
Hudson
Huizenga
Hunter
Hurd (TX)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger
Kustoff (TN)
LaHood
LaMalfa
Lamborn
Latta
Lesko
Long
Loudermilk
Lucas
Luetkemeyer
Marshall
Massie
Mast
McCarthy
McCaul
McClintock
McHenry
McKinley
Meadows
Meuser
Miller
Mitchell
Moolenaar
Mooney (WV)
Mullin
Newhouse
Norman
Nunes
Olson
Palazzo
Palmer
Pence
Perry
Posey
Ratcliffe
Reed
Reschenthaler
Rice (SC)
Riggleman
Roby
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rooney (FL)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spano
Stauber
Stefanik
Steil
Steube
Stewart
Stivers
Taylor
Thompson (PA)
Thornberry
Timmons
Tipton
Turner
Upton
Wagner
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Wilson (SC)
Wittman
Womack
Woodall
Wright
Yoho
Young
Zeldin

NAYS—232

Adams
Aguilar
Allred
Amash
Axne
Barragán
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Boyle, Brendan F.
Brindisi
Brown (MD)
Brownley (CA)
Bustos
Butterfield
Carbajal
Cárdenas
Carson (IN)
Cartwright
Case
Casten (IL)
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Cisneros
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crist
Crow
Cuellar
Cummings
Cunningham
Davids (KS)
Davis (CA)
Davis, Danny K.
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Engel
Escobar
Eshoo
Espaillat
Evans
Finkenauer
Fletcher
Foster
Frankel
Fudge
Gabbard
Gallego
Garamendi
García (IL)
Garcia (TX)
Golden
Gomez
Gonzalez (TX)
Gottheimer
Green, Al (TX)
Grijalva
Haaland
Harder (CA)
Hastings
Hayes
Heck
Higgins (NY)
Hill (CA)
Himes
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Huffman
Jackson Lee
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kaptur
Keating
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Luján
Luria
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McAdams
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy
Nadler
Napolitano
Neal
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Perlmutter
Peters
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Richmond
Rose (NY)
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Spanberger
Speier
Stanton
Stevens
Suozzi
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Underwood
Van Drew
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Yarmuth

NOT VOTING—10

Biggs
Burgess
Collins (NY)
Gohmert
Granger
Lynch
Marchant
Peterson
Soto
Williams

□ 1727

Ms. HAALAND and Mr. GOTTHEIMER changed their vote from ''yea'' to ''nay.''

Mr. CRAWFORD changed his vote from ''nay'' to ''yea.''

So the motion was rejected.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

MOTION OFFERED BY MR. NADLER

Mr. NADLER. Mr. Speaker, I move that the gentlewoman from California

(Ms. PELOSI) be permitted to proceed in order.

The SPEAKER pro tempore (Mr. KILDEE). The question is on the motion offered by the gentleman from New York (Mr. NADLER).

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. COLLINS of Georgia. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, this will be a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 231, noes 190, not voting 11, as follows:

[Roll No. 481]

AYES—231

Adams
Aguilar
Allred
Axne
Barragán
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Boyle, Brendan F.
Brindisi
Brown (MD)
Brownley (CA)
Bustos
Butterfield
Carbajal
Cárdenas
Carson (IN)
Cartwright
Case
Casten (IL)
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Cisneros
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crist
Crow
Cuellar
Cummings
Cunningham
Davids (KS)
Davis (CA)
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Engel
Escobar
Eshoo
Espaillat
Evans
Finkenauer
Fletcher
Foster
Frankel
Fudge
Gabbard
Gallego
Garamendi
García (IL)
Garcia (TX)
Golden
Gomez
Gonzalez (TX)
Gottheimer
Green, Al (TX)
Grijalva
Haaland
Harder (CA)
Hastings
Hayes
Heck
Higgins (NY)
Hill (CA)
Himes
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Huffman
Jackson Lee
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kaptur
Keating
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McAdams
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy
Nadler
Napolitano
Neal
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Perlmutter
Peters
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Richmond
Rose (NY)
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Spanberger
Speier
Stanton
Stevens
Suozzi
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Underwood
Van Drew
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Yarmuth

NOES—190

Abraham
Aderholt
Allen
Amash
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bergman
Bilirakis
Bishop (UT)
Bost
Brady
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Budd
Burchett
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Cheney
Cline
Cloud
Cole
Collins (GA)
Comer
Conaway
Cook
Crawford
Crenshaw
Curtis
Davidson (OH)
Davis, Rodney
DesJarlais
Diaz-Balart
Duffy
Duncan
Dunn
Emmer
Estes
Ferguson
Fitzpatrick
Fleischmann
Flores
Fortenberry
Foxx (NC)
Fulcher
Gaetz
Gallagher
Gianforte
Gibbs
Gonzalez (OH)
Gooden
Gosar
Graves (GA)
Graves (LA)
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Higgins (LA)
Hill (AR)
Holding
Hollingsworth
Huizenga
Hunter
Hurd (TX)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger
Kustoff (TN)
LaHood
LaMalfa
Lamborn
Latta
Lesko
Long
Loudermilk
Lucas
Luetkemeyer
Marshall
Massie
Mast
McCarthy
McCaul
McClintock
McHenry
McKinley
Meadows
Meuser
Miller
Mitchell
Moolenaar
Mooney (WV)
Mullin
Newhouse
Norman
Nunes
Olson
Palazzo
Palmer
Pence
Perry
Posey
Ratcliffe
Reed
Reschenthaler
Rice (SC)
Riggleman
Roby
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rooney (FL)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spano
Stauber
Stefanik
Steil
Steube
Stewart
Stivers
Taylor
Thompson (PA)
Thornberry
Timmons
Tipton
Turner
Upton
Wagner
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Wilson (SC)
Wittman
Womack
Woodall
Wright
Yoho
Young
Zeldin

NOT VOTING—11

Biggs
Burgess
Collins (NY)
Davis, Danny K.
Gohmert
Granger
Hudson
Marchant
Peterson
Soto
Williams

□ 1748

So the motion was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The gentlewoman will be allowed to proceed in order.

The Chair announces the remaining time in debate. The gentleman from Georgia has 9¼ minutes remaining.

Without objection, the gentlewoman from Texas (Ms. JACKSON LEE) controls the time and has 19 minutes remaining.

There was no objection

The SPEAKER pro tempore. The gentleman from Georgia is recognized.

Mr. COLLINS of Georgia. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. MCCARTHY), the minority leader.

Mr. MCCARTHY. Madam Speaker, on page 1 of the original Thomas Jefferson Manual of Parliamentary Practice he writes that: ''It is very material that order, decency, and regularity be preserved in a dignified public body.''

Now, we all have the awesome privilege of serving in that dignified public body: this, the people's House. Our American democracy and its institutions are looked up to as an example for the entire world. Jefferson's emphasis on order and decency is just as important today is it was more than 200 years ago.

Unfortunately, that was not the case today.

Madam Speaker, today is a day that historians will write about. It is a sad day for this House, the people's House. Our rules of order and decency were broken today, and worse, the House just voted to condone this violation of decorum.

Madam Speaker, I know there is frustration in this body. But it is our duty to focus not on retribution but on building a more perfect union.

We can be doing so much more, and we should be doing so much better.

Madam Speaker, I would ask that all Members take it upon themselves to uphold the dignity of this institution. Let us preserve and promote those ideals of order and decency that this body was founded upon and that this body will need if we are to address the many challenges facing our Nation.

Madam Speaker, it is not just our Nation that is watching; the world is watching us. I hope we can rise to the occasion.

Ms. JACKSON LEE. Madam Speaker, I yield 1 minute to the gentlewoman from California (Ms. BASS), who is a distinguished member of the Judiciary Committee.

Ms. BASS. Madam Speaker, the world is watching, and the world is in shock.

Today I rise to speak in support of this resolution condemning the hateful rhetoric of Donald Trump. His comments were beneath the dignity of the Office of President of the United States, and they have no place in our country.

My four colleagues he attacked have every right to be in the United States. They are just as American as any one of us, and it is shameful that the leader of our country would seek to disparage them for political gain. But the sad truth is that if we were to pass a resolution every time Donald Trump were to say something offensive, little else would happen in Congress.

For that reason this moment has to be about much more than condemning

Donald Trump. This moment has to be about moving our country back toward its best values and ensuring that every American, regardless of origin, race, or sex, has an opportunity to succeed.

The American people want to see us fighting for jobs, healthcare, free elections, and policies that recognize the humanity of all who seek refuge in our Nation.

As chair of the Congressional Black Caucus, I remember when the President said to Black America: What do you have to lose?

When the leader of this Nation attacks two of our Members—two of the four women are members of the Congressional Black Caucus—what we have lost is a President who has dignity.

The SPEAKER pro tempore (Ms. DEGETTE). The time of the gentlewoman has expired.

Ms. JACKSON LEE. Madam Speaker, I yield the gentlewoman from California an additional 15 seconds.

Ms. BASS. Someone who has the capacity to bring our country together is what we have lost. But even for this President, this is a new low: using rhetoric against someone of a different race based on the belief that one's race is superior. Since the President will not lead, we must.

Mr. COLLINS of Georgia. Madam Speaker, I reserve the balance of my time.

The SPEAKER pro tempore. The Chair will—in case anybody forgot—remind everyone in this House on both sides of the aisle that the rules will be strictly enforced for the remainder of this debate. Members are advised to think closely about their words particularly when referring to personalities.

Ms. JACKSON LEE. Madam Speaker, I yield 1 minute to the gentleman from New York (Mr. JEFFRIES), who is the distinguished Democratic chair of the Democratic Caucus of the House.

Mr. JEFFRIES. Madam Speaker, our diversity is a strength; it is not a weakness. We are a nation of immigrants, some voluntary, others involuntary, but as Dr. King once observed, ''We may have all come on different ships, but we're in the same boat now.''

We are a gorgeous mosaic of people from throughout the world. We are White, we are Black, we are Latino, we are Asian, and we are Native American. We are Christian, we are Jewish, we are Muslim, we are Hindu, we are believers, and we are nonbelievers. We are gay, we are straight, we are young, we are older, we are women, and we are men. We are citizens, and we are Dreamers.

Out of many we are one. That is what makes America a great country. No matter what xenophobic behavior is coming out of 1600 Pennsylvania Avenue, we will never let anyone take that away from us—not now, not ever.

Mr. COLLINS of Georgia. Madam Speaker, I reserve the balance of my time.

Ms. JACKSON LEE. Madam Speaker, I yield 1 minute to the distinguished gentleman from California (Mr. SWALWELL).

Mr. SWALWELL of California. Madam Speaker, we have an opportunity today to condemn or condone. Birtherism is racist. Saying a Mexican judge can't be fair because of his heritage is racist. Saying immigrants from Mexico are rapists is racist. Saying there were good people on both sides in Charlottesville is racist. Calling African countries * * * countries is racist, and telling four Members of this body to go home is racist.

POINT OF ORDER

Mr. COLLINS of Georgia. Madam Speaker, point of order.

Madam Speaker, I move to take down words.

The SPEAKER pro tempore. The gentleman will suspend.

Mr. SWALWELL of California. Do you think it is not racist?

The SPEAKER pro tempore. The gentleman will state his point of order.

Mr. SWALWELL of California. Do you think it is not racist, Mr. COLLINS?

The SPEAKER pro tempore. The gentleman will suspend.

Mr. SWALWELL of California. Is that what you are saying right now, Mr. COLLINS?

Mr. COLLINS, is it not racist to say these things?

Because you can say that right now.

The SPEAKER pro tempore. The gentleman from California is out of order.

The gentleman from California shall suspend.

For what purpose does the gentleman from Georgia rise?

Mr. COLLINS of Georgia. Madam Speaker, I make a point of order that the gentleman's words are unparliamentary, and I insist they be taken down.

The SPEAKER pro tempore. The Clerk will report the words.

□ 1800

Mr. SWALWELL of California. Madam Speaker, I will withdraw an offensive word.

Madam Speaker, may I have an additional 30 seconds?

Ms. JACKSON LEE. The gentleman from California has 30 seconds.

The SPEAKER pro tempore. The gentlewoman from Texas controls the time. The gentleman has 30 seconds remaining. Does the gentlewoman wish to grant him an additional 30 seconds?

Ms. JACKSON LEE. Madam Speaker, I yield an additional 30 seconds to the gentleman from California (Mr. SWALWELL).

Mr. COLLINS of Georgia. Madam Speaker, I now withdraw my point of order.

The SPEAKER pro tempore. The gentleman from Georgia withdraws his point of order.

The Chair recognizes the gentleman from California.

Mr. SWALWELL of California. Madam Speaker, we have an opportunity today to condemn or condone.

Birtherism is racist.

Saying a Mexican judge cannot be fair because of his heritage is racist.

Saying immigrants from Mexico are rapists is racist.

Telling four Members of this body to go home because of where you believe they are from is racist.

There is racism coming out of the White House. There is racism coming out of the White House. So where will you stand today?

That is the question we face: Where will we stand? Will we stop and extinguish the flames of racism from the White House or will we continue to fan them?

History and our children are watching.

Mr. COLLINS of Georgia. Madam Speaker, I yield as much time as he may consume to the gentleman from Louisiana (Mr. SCALISE).

Mr. SCALISE. Madam Speaker, the last vote that we just saw on the House floor is beneath the dignity of the House.

We have rules for a reason. Just because one party is in the majority, Madam Speaker, doesn't mean that the rules don't apply to them. The rules apply to all of us. Just as we are passing laws here, that ought to apply to all people fairly across this country. The reason we have these rules is so that we can rise above the fray.

We have disagreements on this floor. What is great about this country is we have the ability to come and battle over the disagreements, but we shouldn't get into personality conflicts on this floor. We shouldn't be trying to accuse people of one thing or another, disparagingly, on this floor.

That is why we have these rules, so that we can actually debate the issues that people care about rather than engaging in this constant barrage of personality attacks that we have seen week after week after week.

The American people expect us to be spending our time up here fighting for the issues they care about. They want us to be spending time focusing on lowering their prescription drug prices, lowering healthcare prices, rather than this foolishness. They want us to be solving the crisis at the border, not ignoring it, not disparaging it, but actually focusing on solving it.

These are easy issues for us to solve if we come together and spend real time in good faith working on them, rather than this foolishness.

Look at all of the other problems that our country faces, that people call on us to address. They expect that we are spending our time up here focusing on those problems, getting our economy back on track like it is now. It took people working together, and it is working.

We can do more.

Fighting the evils across this world, when you look at what Russia is doing, when you look at what Iran is doing, when you look at what China is doing, us to be coming together, standing up and working on those problems for the people who sent us here, not worried about ourselves, not fighting amongst

ourselves, but actually focusing on their problems, that is why we are supposed to be up here. That is why the rules of the House should apply to all people, not just selectively to some.

Ms. JACKSON LEE. Madam Speaker, I yield 1 minute to the distinguished gentleman from California (Mr. TED LIEU).

Mr. TED LIEU of California. Madam Speaker, I am an immigrant; I am a person of faith; and I served on Active Duty in the United States military because I love America.

Yet, throughout my life, I have had people tell me to go back to China or Japan or North Korea. And like many immigrants, when I get that ''go back'' insult, it is hateful. It makes me feel like I don't belong here in this country.

And make no mistake, when people tell me to go back where I came from, that is a racist insult that is based on race. If I were White, they would not tell me to go back to China. I experience that insult because my race happens to be Asian.

But the good news is that Americans, at record high levels, support immigrants. We are not going anywhere. America is our home. And I will still be standing here long after the occupant of the White House leaves.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will remind all persons in the gallery that they are here as guests of the House and that any manifestation of approval or disapproval of proceedings is in violation of the rules of the House.

Mr. COLLINS of Georgia. Madam Speaker, I reserve the balance of my time.

Ms. JACKSON LEE. Madam Speaker, I yield 2 minutes to the distinguished gentlewoman from Washington State (Ms. JAYAPAL).

Ms. JAYAPAL. Madam Speaker, I am appalled at the statements coming from the White House telling people who dissent that somehow you should go back to your country if you criticize the United States. Well, let me remind you that dissent is patriotic and, in fact, a core value to our democracy, enshrined in our Constitution.

And, yes, I am a proud naturalized citizen born in India, a proud patriot, a proud person who belongs in this country.

And it is not the first time I have heard, ''go back to your own country,'' but it is the first time I have heard it coming from the White House. And, frankly, Madam Speaker, I am appalled that, on this floor, my Republican colleagues would call any of us anti-American.

That is why this vote is so important, because we have to let the rest of the country know that the House of Representatives will stand up for the Constitution, represent and defend every single person in the country, regardless of the color of their skin or the country of their birth.

Madam Speaker, my Republican colleagues have been talking about patriotism, about love of country. One of them said ''love it or leave it.'' But what is love if not to make what we love better through our critique, our work, and our service. That is what real Americans do.

We do not stifle dissent. We do not otherize or sow hatred, and we certainly never say ''go back to your country'' to a brown or a Black person, because that is a racist trope.

I hope that every single Member of this Chamber, Republican and Democrat, will join me in rejecting the President's message and vote in support of this resolution. Madam Speaker, that is the American thing to do.

Mr. COLLINS of Georgia. Madam Speaker, I reserve the balance of my time.

Ms. JACKSON LEE. Madam Speaker, I yield 1 minute to the distinguished gentlewoman from Pennsylvania (Ms. DEAN).

Ms. DEAN. Madam Speaker, words matter. Decency matters.

Recently, President Trump told four Congresswomen of color to ''go back'' to their home countries.

Mr. President, they are home.

Three of these Congresswomen, my colleagues, were born in the United States. The fourth, also my colleague, is a naturalized U.S. citizen. They are as American as I am, as the President is, as the First Lady is or anyone else, period.

Telling people who look different to go back to where they came from is a refrain laced with hate. This rhetoric is neither new nor a surprise, but that doesn't mean we can allow it to stand. And it belies a fundamental misunderstanding of our Nation's promise, that we are all created equal and that everyone has a role to play in building a more perfect Union—not just White Americans, every American.

We hereby recognize these words for what they are: offensive, hateful. And the people we represent deserve better.

As a cosponsor, I believe we must call out hate wherever we see it, whether in our own houses or in the White House.

Madam Speaker, I urge all Members to support the resolution. Words matter.

Mr. COLLINS of Georgia. Madam Speaker, I reserve the balance of my time.

Ms. JACKSON LEE. Madam Speaker, I yield 1½ minutes to the distinguished gentleman from Georgia (Mr. LEWIS).

Mr. LEWIS. Madam Speaker, I rise with a sense of righteous indignation to support this resolution.

I know racism when I see it. I know racism when I feel it. And at the highest level of government, there is no room for racism. It sows the seeds of violence and destroys the hopes and dreams of people.

The world is watching. They are shocked and dismayed because it seems we have lost our way as a nation, as a proud and great people. We are one Congress, and we are here to serve one House: the American House, the American people.

Some of us have been victims of the stain, the pain, and the hurt of racism. In the 1950s and during the 1960s, segregationists told us to go back when we protested for our rights. They told ministers, priests, rabbis, and nuns to go back. They told the innocent little children seeking just an equal education to go back.

As a nation and as a people, we need to go forward and not backwards.

With this vote, we stand with our sisters. Three were born in America, and one came here looking for a better life.

With this vote, we meet our moral obligations to condemn hate, racism, and bigotry in every form.

Madam Speaker, I thank the gentlewoman for yielding me the time. Let's do what is right, what is fair, and what is just.

Mr. COLLINS of Georgia. Madam Speaker, I reserve the balance of my time.

Ms. JACKSON LEE. Madam Speaker, I yield 1 minute to the distinguished gentleman from Ohio (Mr. RYAN).

Mr. RYAN. Madam Speaker, ''we the people,'' ''a more perfect Union,'' ''the common defense,'' ''general welfare,'' ''common good,'' ''these United States''—the words and phrases of our founding documents were about unity, were about us coming together against the political and economic concentration of power.

Division is the enemy in the United States today. We are unraveling before the very eyes of the American people. And I believe that this President, that the White House does not want to talk about the issues facing the American people today.

Madam Speaker, 75 percent of the American people are living paycheck to paycheck; seniors are paying $1,000 a month for prescription drugs; students are drowning in student loans.

□ 1815

Mr. COLLINS of Georgia. Madam Speaker, I yield myself the balance of my time.

Madam Speaker, I will not belabor this. I have made many of the points that I have said before. I think this was rushed to the floor. I think this is what happens, unfortunately, when things are rushed.

There are things that need to be done, and the decorum of this House is important. We have had a long lesson of that today.

The very essence of the resolution, which has issues beyond, needs to be considered. When we do this, then I think, as I said in my opening—and I will stick by what I said then—this needs to be voted down. This does not need to go forward.

We need to get to a certain time when we are back to, literally, doing the people's business. This is the third time, Madam Speaker, that I have been on the floor doing this—third time—more time than I have done on immigration, more time than I have done on any other bills, bills that could actually get signed into law.

As my whip said a few moments ago, there are things we could sit down and find common ground on, but it seems like common ground is gone.

There are some of us willing to reach our hands across the aisle and say, ''Let's find common ground because people are hurting. Why don't we solve those?'' Instead, we continue, seemingly, to want to continue to go to the press release or to the political statement, which is frustrating. I understand, but we have to get better.

We have to look at this and ask: What happens to the American people? What happens to the people who sent us here, who are looking at this and asking what they need to do to make their lives better, not the lives in this body?

When we understand that, that is when we come together. That is when we take the decorum of this House. That is when we find ways to speak to each other as friends who have been elected to serve a common purpose. That is our higher aim. When we denigrate that, we are not being honest with ourselves.

Let's get to the people's business. There are budget issues looming. There are caps looming. There is a debt ceiling looming. There are still problems at our border, which is a crisis. These need to be fixed.

Let's take up those bills. Let's have honest debate. I will put a bill up; you put a bill up. Let's do what we are supposed to do here, have markups, run things through committee. Let's take seriously what we said to do.

We both, at times, as parties, have been guilty of not doing that. Let's focus now—at least where we are now—and say this is not the way forward and this is not where we need to be because of the many problems inherent in the resolution itself but, also, the way it was brought to us. We have seen that play out on the floor today.

Is that really how we are going to leave it with the American people, that rules can be broken and then nothing is done about it? Is that really where we are going to be, that we are not going to bring issues to the floor that can be discussed, that have been brought through committee, that actually affect people's lives?

That is the frustration I have, Madam Speaker.

Time for debate on this needs to be done. We need to vote ''no.'' We need to move forward.

Madam Speaker, I yield back the balance of my time.

Ms. JACKSON LEE. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, the way to move forward is by voting ''yes'' on the underlying resolution.

To paraphrase the Declaration of Independence, it is indicated that we all are created equal, with certain unalienable rights of life, liberty, and the pursuit of happiness.

That is immigrant and nonimmigrant. That is an individual whose religion you believe in and one you do not. That is a lifestyle that you may not know and understand. It may be a race or ethnicity that you have never come to be able to accept.

In this Nation, the founding Thirteen Colonies fleeing persecution were described as creating an experiment. It was not a perfect experiment.

There were some of us who came to this Nation in the bottom of the belly of a slave boat. There were some who were indentured servants. Many came by boat. Some walked across a border that has created havoc. But they were people desperate for freedom and the right to make their lives better.

We can account for those people by the history books and the decades of heroes and sheroes who have come in a different skin, a different religion, a different basis. They have even put on the uniform of this Nation because they love this country.

I am reminded of the era of Dr. Martin Luther King, the many miles he walked with the soldiers, the Civil Rights soldiers, and his early book titled ''Why We Can't Wait.''

I join with the idea that we must work for the American people. We must provide for the increase in the minimum wage, good healthcare, and education.

At the same time, there is something in this Nation that our children demand that we do. What are the values of the red, white, and blue? What are the values of those stars that represent the many States of this Nation? The values are that we are a Nation based upon laws, morality, values, a love of country, due process, equality, and justice. It means that every single person must have the fundamental right of respect.

This resolution is simply that. It is a fundamental right to respect and dignity—in this instance, for four Members of the United States Congress from Boston, from New York, from Minnesota, and from Michigan.

As they go on to their places, it is very clear that they must have the respect that is deserving of this particular Congress.

These four women are no less deserving of dignity than anyone else. This resolution is simply one that is to seek—not condoning, as was said—a condemnation of attitudes that may parlay racist beliefs.

No one stands for that. We cannot go on to all that is good without saying to the Nation and the world that this is not good; it is not America; and we will not accept that as our definition because we do believe in the creation of a more perfect Union.

I conclude by saying that we condemn the hurtful and offensive comments that demean immigrants and people of color, especially if those comments originate from the White House. What we will do today is accept the challenge of Dr. Martin Luther King, a peacemaker, a man of hope, and we will say why we can't wait because the Nation calls upon our higher angels.

That is what we will do when we affirm this resolution on behalf of the people of the United States of America.

Madam Speaker, I ask my colleagues to vote for this very important resolution, and I yield back the balance of my time.

Ms. GARCIA of Texas. Madam Speaker, today, with this resolution, the House continues the fight for equality and dignity for every person.

It's not important to us where you came from. It only matters that you're here now.

Sin embargo vamos a luchar por la igualidad y la dignidad de cada persona.

No es importante para nosotros de dónde vienes. Sólo nos importa que estés aquí ahora.

When I was Harris County Commissioner, I was told, ''Go back to Mexico and crawl back under the rock you came from.''

When we were debating the anti-immigrant racial profiling bill SB 4 in the Texas Senate, I received a call. ''I've got guns. Lots of guns,'' the man said. But this credible death threat didn't stop us.

An attack on one of us is an attack on all of us as Americans.

Un ataque contra uno es un ataque contra todos como Americanos.

Mr. CUMMINGS. Madam Speaker, I rise to condemn the racist statements made by the president of the United States against my colleagues here in Congress.

Our nation is a beacon of hope to the world, a nation where people arrive with the goal of embracing the American dream. They and their children make vital economic, educational, civic, and social contributions to the American fabric—they become business owners, doctors, and even members of Congress. It is clear that the diversity that this country provides is not our problem, it is our promise.

Although the president has indicated that there are ''many people [who] agree with'' his comments, I, and many Americans, were disappointed that the individual who acts as our representative on the world stage would share these racist sentiments. I have confidence that the beliefs reflected in the president's statements are not held by the American people as a whole and do not reflect who we are as a nation.

This country has endured too many obstacles and undergone too many lessons learned to accept these offensive statements. We have endured slavery, forced displacement, Jim Crow laws, and internment camps. We are still working to fight against redlining, voter intimidation, hate crimes, and mass incarceration. Our country deserves better than this. The world deserves better than this.

Americans yearn for a day when we are not fighting each other but are fighting towards a common mission to continually improve our great nation as the United States of America.

This is why my colleagues and I are committed to fulfilling this agenda. We are working to lower drug prices, we are working to restore voting rights for every American, we are working to eliminate the opioid epidemic, and we are committed to ensuring that we find solutions to the problems in our criminal justice system.

Let me be clear, these words should have no place in the dialogue of our United States of America.

That is why I am a proud cosponsor of H. Res. 489, a resolution condemning President

Trump's racist remarks against my colleagues who have dedicated their lives to public service and representing the constituents of their home districts.

I ask my colleagues to join me in supporting this resolution and condemning the president for these incendiary comments.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 491, the previous question is ordered on the resolution and the preamble.

The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Ms. JACKSON LEE. Madam Speaker, I demand a recorded vote.

A recorded vote was ordered.

The vote was taken by electronic device, and there were—ayes 240, noes 187, not voting 6, as follows:

[Roll No. 482]

AYES—240

Adams
Aguilar
Allred
Amash
Axne
Barragán
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Boyle, Brendan F.
Brindisi
Brooks (IN)
Brown (MD)
Brownley (CA)
Bustos
Butterfield
Carbajal
Cárdenas
Carson (IN)
Cartwright
Case
Casten (IL)
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Cisneros
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crist
Crow
Cuellar
Cummings
Cunningham
Davids (KS)
Davis (CA)
Davis, Danny K.
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Engel
Escobar
Eshoo
Espaillat
Evans
Finkenauer
Fitzpatrick
Fletcher
Foster
Frankel
Fudge
Gabbard
Gallego
Garamendi
García (IL)
Garcia (TX)
Golden
Gomez
Gonzalez (TX)
Gottheimer
Green, Al (TX)
Grijalva
Haaland
Harder (CA)
Hastings
Hayes
Heck
Higgins (NY)
Hill (CA)
Himes
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Huffman
Hurd (TX)
Jackson Lee
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kaptur
Keating
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McAdams
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy
Nadler
Napolitano
Neal
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Richmond
Rose (NY)
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Spanberger
Speier
Stanton
Stevens
Suozzi
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Underwood
Upton
Van Drew
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Yarmuth

NOES—187

Abraham
Aderholt
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bergman
Bilirakis
Bishop (UT)
Bost
Brady
Brooks (AL)
Buchanan
Buck
Bucshon
Budd
Burchett
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Cheney
Cline
Cloud
Cole
Collins (GA)
Collins (NY)
Comer
Conaway
Cook
Crawford
Crenshaw
Curtis
Davidson (OH)
Davis, Rodney
DesJarlais
Diaz-Balart
Duffy
Duncan
Dunn
Emmer
Estes
Ferguson
Fleischmann
Flores
Fortenberry
Foxx (NC)
Fulcher
Gaetz
Gallagher
Gianforte
Gibbs
Gonzalez (OH)
Gooden
Gosar
Graves (GA)
Graves (LA)
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Higgins (LA)
Hill (AR)
Holding
Hollingsworth
Hudson
Huizenga
Hunter
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger
Kustoff (TN)
LaHood
LaMalfa
Lamborn
Latta
Lesko
Long
Loudermilk
Lucas
Luetkemeyer
Marshall
Massie
Mast
McCarthy
McCaul
McClintock
McHenry
McKinley
Meadows
Meuser
Miller
Mitchell
Moolenaar
Mooney (WV)
Mullin
Newhouse
Norman
Nunes
Olson
Palazzo
Palmer
Pence
Perry
Posey
Ratcliffe
Reed
Reschenthaler
Rice (SC)
Riggleman
Roby
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rooney (FL)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spano
Stauber
Stefanik
Steil
Steube
Stewart
Stivers
Taylor
Thompson (PA)
Thornberry
Timmons
Tipton
Turner
Wagner
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Wilson (SC)
Wittman
Womack
Woodall
Wright
Yoho
Young
Zeldin

NOT VOTING—6

Biggs
Burgess
Gohmert
Granger
Marchant
Williams

□ 1849

Mr. KING of New York changed his from ''aye'' to ''no.''

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

NOTICE OF INTENTION TO OFFER RESOLUTION RAISING A QUESTION OF THE PRIVILEGES OF THE HOUSE

Mr. GREEN of Texas. Madam Speaker, pursuant to clause 2(a)(1) of rule IX, I rise to give notice of my intention to raise a question of the privileges of the House.

The form of the resolution is as follows:

Impeaching Donald John Trump, President of the United States, of high misdemeanors.

Resolved, that Donald John Trump, President of the United States, is unfit to be President, unfit to represent the American values of decency and morality, respectability and civility, honesty and propriety, reputability and integrity, is unfit to defend the ideals that have made America great, unfit to defend liberty and justice for all as extolled in the Pledge of Allegiance, is unfit to defend the American ideal of all persons being created equal as exalted in the Declaration of Independence, is unfit to ensure domestic tranquility, promote the general welfare and to ensure the blessings of liberty to ourselves and our posterity as lauded in the preamble to the United States Constitution, is unfit to protect the government of the people, by the people, for the people as elucidated in the Gettysburg Address, and is impeached for high misdemeanors that the following Article of Impeachment be exhibited to the Senate:

Article of Impeachment exhibited by the House of Representatives of the United States, in the name of itself, of the people of the United States, against Donald John Trump, President of the United States, in maintenance and support of its impeachment against him for high misdemeanors committed as President constituting harm to American society to the manifest injury of the people of the United States:

Article I.

The House of Representatives on July 16, 2019, strongly condemned President Donald Trump's racist comments that have legitimized and increased fear and hatred of new Americans and people of color by saying that our fellow Americans who are immigrants, and those who may look to the President like immigrants, should ''go back'' to other countries, by referring to immigrants and asylum seekers as ''invaders,'' and by saying that Members of Congress who are immigrants, or those of our colleagues who are wrongly assumed to be immigrants, do not belong in Congress or in the United States of America.

In all of this, the aforementioned Donald John Trump has, by his statements, brought the high office of the President of the United States in contempt, ridicule, disgrace, and disrepute, has sown seeds of discord among the people of the United States, has demonstrated that he is unfit to be President, and has betrayed his trust

as President of the United States to the manifest injury of the people of the United States, and has committed a high misdemeanor in office.

Therefore, Donald John Trump by causing such harm to the society of the United States is unfit to be President and warrants impeachment, trial, and removal from office.

The SPEAKER pro tempore. Under rule IX, a resolution offered from the floor by a Member other than the majority leader or the minority leader as a question of the privileges of the House has immediate precedence only at a time designated by the Chair within 2 legislative days after the resolution is properly noticed.

Pending that designation, the form of the resolution noticed by the gentleman from Texas will appear in the RECORD at this point.

The Chair will not at this point determine whether the resolution constitutes a question of privilege. That determination will be made at the time designated for consideration of the resolution.

DAMON PAUL NELSON AND MATTHEW YOUNG POLLARD INTELLIGENCE AUTHORIZATION ACT FOR FISCAL YEARS 2018, 2019, AND 2020

GENERAL LEAVE

Mr. SCHIFF. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous material on the Intelligence Authorization Act.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

The SPEAKER pro tempore. Pursuant to House Resolution 491 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the consideration of the bill, H.R. 3494.

The Chair appoints the gentleman from California (Mr. HUFFMAN) to preside over the Committee of the Whole.

□ 1900

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the consideration of the bill (H.R. 3494) to authorize appropriations for fiscal year 2020 for intelligence and intelligence-related activities of the United States Government, the Community Management Account, and the Central Intelligence Agency Retirement and Disability System, and for other purposes, with Mr. HUFFMAN in the chair.

The Clerk read the title of the bill.

The CHAIR. Pursuant to the rule, the bill is considered read the first time.

General debate shall be confined to the bill and amendments specified in the first section of House Resolution 491, and shall not exceed 1 hour equally divided and controlled by the chair and ranking minority member of the Permanent Select Committee on Intelligence.

The gentleman from California (Mr. SCHIFF) and the gentleman from California (Mr. NUNES) each will control 30 minutes.

The Chair recognizes the gentleman from California (Mr. SCHIFF).

Mr. SCHIFF. Mr. Chairman, I yield myself as much time as I may consume.

Along the wall in the upper lobby of the CIA headquarters building is a large picture of the head and torch of the Statue of Liberty accompanied by the following words: ''We are the Nation's first line of defense. We accomplish what others cannot accomplish and go where others cannot go.''

These two sentences distill the essence of America's intelligence community and the quiet sense of mission that tens of thousands of our fellow citizens bring to their jobs every day.

H.R. 3494, the Damon Paul Nelson and Matthew Young Pollard Intelligence Authorization Act for Fiscal Years 2018, 2019, and 2020, is our contribution to the work of the IC.

This is a bipartisan bill, reported unanimously out of the Intelligence Committee and embodying the collective efforts of Democratic and Republican members.

Though H.R. 3494 contains many new initiatives authored during my chairmanship, it also preserves provisions developed during Ranking Member NUNES' tenure as chairman as well.

Despite disagreements over the Russia investigation, the committee has come together to support our intelligence community.

HPSCI oversees highly sensitive, highly classified activities, and we collaborate with the IC to ensure that it has the resources and authorities necessary to collect vital intelligence. That won't work, however, unless the committee trusts the IC elements it oversees, and those same elements trust the committee.

At the same time, HPSCI must ensure that legal and policy constraints are vigorously enforced. That requires us to maintain both a professional distance and a healthy skepticism about the activities we oversee. When warranted, the committee must impose additional checks and limitations, at times over intelligence community objections.

It is a delicate balance, which HPSCI strikes through use of many different oversight tools. The most important by far is our annual Intelligence Authorization Act.

H.R. 3494 gets the balance right. It authorizes funding for the IC at roughly 1.4 percent above the President's budget request for the coming year. It prioritizes the IC's collection and analytic capabilities against China, Russia, Iran, and North Korea, while sustaining critical intelligence capabilities that support counterterrorism and counterproliferation.

The bill also ensures that the men and women of the IC have what they need to collect and analyze the intelligence that policymakers require.

At the same time, H.R. 3494 ensures close oversight by Congress, rejecting the funding of legacy IC programs with overseas contingency operation resources, or OCO, funding; and requiring, for the first time, the submission to the intelligence committees of detailed information on unfunded IC programs.

Another provision authored by Representative WELCH calls for more information in the IC's budget for counterterrorism matters to be released to the public consistent with the protection of national security. Still another authorizes the Public Interest Declassification Board, which plays a vital role in ensuring that historical documents about IC programs are declassified appropriately.

The legislation is especially strong in three other areas. The first has to do with foreign malign activities, including those by Russia. The bill calls for extensive IC reporting and creates new notification requirements regarding covert or overt efforts by foreign governments to undermine trusted institutions or to interfere in the democratic process, our own or those of other nations.

This bill also strongly supports the IC workforce. H.R. 3494 obliges the IC elements to offer their employees 12 weeks of paid parental leave on top of the unpaid leave already guaranteed to them by law. Other language ensures that the families of CIA personnel who are killed or injured as a result of wars, hostile acts, or other incidents can be appropriately compensated.

The bill also bolsters the IC's ability to recruit, hire, retain, and promote a workforce that represents the diversity of the Nation that it serves.

Lastly, technology. Many have sounded alarms about the rise of so-called ''deep fake'' algorithms and the transition in our country and elsewhere to a fifth-generation telecommunications network. To help the IC address both challenges, H.R. 3494 instructs the DNI to hold competitions and to award prizes for cutting-edge research into deep fake and 5G technologies.

H.R. 3494 is not perfect; it is the result of negotiation and compromise. I am pleased that, despite our public differences, we have once again been able to put those aside to focus on the important work of overseeing the intelligence community. The result is a strong, bipartisan bill, which I am proud to support.

Mr. Chair, let me conclude by thanking Ranking Member NUNES, my committee colleagues, and the entire HPSCI staff for their collaborative efforts.

Mr. Chair, I urge all Members of the House to join me in voting for H.R. 3494.

Mr. Chair, I reserve the balance of my time.

Mr. NUNES. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, I rise today in support of H.R. 3494, the Damon Paul Nelson and Matthew Young Pollard Intelligence Authorization Act for Fiscal Years 2018, 2019, and 2020.

Passing an annual intelligence authorization bill is the most important tool Congress has to conduct effective oversight of the intelligence activities of the United States.

Today, Chairman SCHIFF and I are bringing the tenth consecutive intelligence authorization bill to the floor. I am pleased that, as in years past, this bill is a bipartisan product that reflects the contributions of all the committee's members. It was reported out of the committee by a unanimous voice vote.

This legislation is the product of bipartisan work by the majority and the minority and provides the intelligence community the necessary resources and authorities to ensure the IC remains capable of protecting and defending the United States.

The bill folds in many priorities from fiscal year 2018 and 2019, including the defense of elections from foreign threats, enhanced injury benefits to CIA employees, and bolsters intelligence oversight by improving the IC accountability to Congress.

Additionally, the bill protects all CIA covert intelligence officers' identities, establishes a paid parental leave program for the IC, and it mandates counterintelligence briefings and notifications to the intelligence committees by the FBI on a quarterly basis and prompt notification when an investigation is carried out regarding a counterintelligence risk related to a Federal election or campaign.

This bill supports critical national security programs, particularly those focused on countering threats from hard targets, such as China.

Lastly, the bill continues to ensure that the dedicated men and women of our intelligence community have the funding, authorities, and support they need to carry out their mission and to keep us safe.

Mr. Chairman, I reserve the balance of my time.

Mr. SCHIFF. Mr. Chairman, I am proud to yield 2 minutes to the gentleman from Illinois (Mr. QUIGLEY).

Mr. QUIGLEY. Mr. Chairman, I thank the gentleman for yielding.

I rise in support of H.R. 3494.

As the United States learned in 2016, there are few things more important to our democracy than ensuring that our electoral system is kept free from outside interference.

We also have a responsibility to educate our partners and our allies about the threat from foreign interference, as well as share our best practices with those nations that face similar threats.

Taiwan, one of Asia's most vibrant democracies, is acutely aware of the risks posed by foreign influence. The Chinese Communist Party, angry that another nation has the audacity to prove that a culturally Chinese democracy can thrive, will stop at nothing to degrade Taiwan's political independence.

This year's Intelligence Authorization Act requires the Director of National Intelligence to report on influence operations China conducts to interfere in Taiwan's upcoming 2020 elections and find out what assistance the U.S. government provided to counter these operations and provide a comprehensive list of the specific organizations that conducted these influence operations.

The U.S. is in a unique position to share the tools and techniques with others that we are implementing to safeguard our own democratic elections.

In line with our obligations under the Taiwan Relations Act, we urge the administration to do all it can to assist Taipei with creating conditions for a free, fair, and secure election that is free from interference.

This provision brings us one step closer to that goal.

Mr. NUNES. Mr. Chairman, I yield as much time as she may consume to the gentlewoman from New York (Ms. STEFANIK).

Ms. STEFANIK. Mr. Chair, I am proud to rise in support of this year's Intelligence Authorization Act.

After the recent partisan NDAA debate and vote, it is an accomplishment that this committee came together to produce a bipartisan bill that supports our intelligence community and provides the warfighter with the intelligence support needed to protect the United States and our allies.

I am particularly pleased that this bill contains the Counterintelligence Accountability Act that I introduced earlier this year that I wanted to take a moment to highlight for the American public.

This bill amends the National Security Act by requiring the FBI to provide quarterly counterintelligence briefings to the congressional intelligence committees, which is not only necessary for us to conduct meaningful oversight over the FBI's counterintelligence operations, but also provides the American people with the comfort that the FBI is subject to the same types of scrutiny as other intelligence agencies.

Importantly, this bill also mandates that the FBI notify the congressional intelligence committees when the FBI has a counterintelligence investigation open related to a CI risk to an election or campaign for Federal office.

Given former FBI Director Comey's testimony in 2017, I am still deeply concerned that the FBI failed to provide notification to the congressional intelligence committees regarding the investigation opened into the Trump campaign in 2016 until well after the election.

This bill ensures that Congress is kept fully and currently informed of these types of counterintelligence activities. This is good, accountable governance.

Mr. Chair, I appreciate the chair and ranking member's support in adding my legislation into this bill and urge my colleagues to vote ''yes'' on final passage.

Mr. SCHIFF. Mr. Chairman, I am proud to yield 3 minutes to the gentleman from Washington State (Mr. HECK).

Mr. HECK. Mr. Chairman, I thank the chair of the committee for yielding.

Mr. Chair, I rise to strongly support the David Paul Nelson and Matthew Young Pollard Intelligence Authorization Act.

In the last year we have made some pretty incredible progress in reducing the security clearance backlog, yet, frankly, after all the progress we have made, we are still—and you are hearing this number correctly—left with nearly a half a million people on the waiting list for security clearance.

Earlier this year, the average wait time for top secret security clearance was reduced to 468 days, down from 534 days.

So, in other words, when we are out there competing for young talent to come in and be a member of the intelligence community, say in a field such as cyber, we are told we have to tell them, ''Cool your jets. We will get back to you in a year, year and a half or so.''

Indeed, closer to home, my senior military adviser is a distinguished graduate of the United States Military Academy at West Point. He served not one, but two tours in Afghanistan, where he had a security clearance, and yet when he joined a staff in the House of Representatives, to again earn a security clearance, it took 20 months, nearly 2 years.

We are losing good people when we subject them to that long of a wait time.

This bill makes some progress. It will build on the progress we made this year by providing needed reform to this mission. It creates a system of accountability and clear goals for how the process should run.

Furthermore, the bill allows for innovation on using digital tools, and reciprocity among agencies to improve our efficiencies when clearances are needed to be transferred from one agency to another.

Our government can and must efficiently and effectively review security clearance applicants. We owe our national security workforce at least that much. This bill will help us to do that, to further reduce it, so that the intelligence community can compete for the best and the brightest in a timely fashion.

Mr. Chair, for that reason, among many, I urge Members' support for the Intelligence Authorization Act.

□ 1915

Mr. NUNES. Mr. Chairman, I reserve the balance of my time.

Mr. SCHIFF. Mr. Chairman, I yield 3 minutes to the gentlewoman from Alabama (Ms. SEWELL).

Ms. SEWELL of Alabama. Mr. Chairman, I rise in support of H.R. 3494, the Intelligence Authorization Act.

Mr. Chairman, as the chair of the Defense Intelligence and Warfighter Support Subcommittee, I believe this bill will ensure our warfighters retain the information and decisionmaking advantages to which we have grown accustomed and improve the intelligence community's ability to attract and retain a diverse workforce.

The bill includes provisions that authorize increased intelligence funding for combatant commanders and our growing strategic competition with China, Russia, and other malign actors; supports the Defense Intelligence Agency's ongoing assessment of its roles and missions; and provides the Director of National Intelligence with the necessary authority to manage intelligence community-wide academic programs.

This bill also includes language I authored which will improve Federal campaign election security. My provision will require the Director of National Intelligence to work with the FBI and the Department of Homeland Security to make available an advisory report on foreign counterintelligence and cybersecurity threats to those campaigns. Additionally, my language requires the Director to publish a summary of best practices and provide information to campaigns to help thwart these attacks.

This legislation also continues the committee's longstanding and bipartisan work to promote increased diversity within the intelligence community's workforce. This bill contains language directing the intelligence community to expand its annual demographic hiring report by adding grade level, years of service, career categories, gender identity, and sexual orientation reporting categories. These changes will improve the IC's ability to track how well it retains and promotes persons of diverse backgrounds.

Finally, for the first time in many years, the Intelligence Authorization Act will provide significant funding for programs that will improve the IC's ability to introduce students from diverse backgrounds to its mission.

Mr. Chairman, I look forward to voting in support of this legislation. I commend the chairman and ranking member on working together to provide these important authorizations. I encourage my colleagues to do the same and vote for this bill.

Mr. NUNES. Mr. Chairman, I continue to reserve the balance of my time.

Mr. SCHIFF. Mr. Chairman, I yield 2 minutes to the gentleman from California (Mr. SWALWELL).

Mr. SWALWELL of California. Mr. Chairman, I thank the chairman of our committee for working with the minority to put together a bipartisan piece of legislation that serves our national security purposes.

I also want to acknowledge both of the individuals for whom the bill is named, but particularly Damon Paul Nelson, the former staff director for the then-majority at the time, someone whom I and my colleagues saw put his heart and soul into the committee and someone who was able to keep many lines of communication that were necessary open during some of our most trying times. This is a fitting recognition of his service to our country.

As chairman of the Intelligence Modernization and Readiness Subcommittee, I celebrate this bipartisan bill and the patriotic young people who enter service in the intelligence community, sometimes immediately after college, despite extraordinary student debt. For that reason, we have included measures to enhance intelligence community-wide student loan repayment and forgiveness programs.

Reducing the financial burden on intelligence community workers helps us recruit and retain a talented and diverse workforce to remain competitive with the private sector. To that aim, we have also included a measure to authorize 12 weeks of paid parental leave for intelligence community employees in the event of a birth or adoption.

This authority would supplement the 12 weeks of unpaid leave currently afforded to intelligence community employees and other government personnel under existing law, sending a strong message to the intelligence community workforce that they do not need to choose between their career, serving our country, and their family.

These will help the intelligence community recruit and retain individuals capable of meeting the security goals of the United States and will set the example for other Federal agencies seeking pro-worker policies.

Our goal on the subcommittee is to anticipate the needs of the intelligence community workforce. Reaching across the aisle for our intelligence community is how we will secure a next-generation intelligence community workforce.

Mr. NUNES. Mr. Chairman, I continue to reserve the balance of my time.

Mr. SCHIFF. Mr. Chairman, it is now a pleasure to yield 3 minutes to the gentleman from New York (Mr. SEAN PATRICK MALONEY).

Mr. SEAN PATRICK MALONEY of New York. Mr. Chairman, I thank the chairman for yielding.

Mr. Chairman, I rise today to offer support for this bill, which includes my legislation, the Gregg Wenzel Clandestine Heroes Parity Act.

Mr. Chairman, my bill honors an unsung son of the Hudson Valley, CIA Officer Gregg Wenzel, who died in Ethiopia on July 9, 2003. He was only 33 years old.

Gregg was inspired to join the Clandestine Service after September 11 and dedicated his life to making the United States stronger in our fight against terrorism. That is what CIA officers do; they put their lives on the line for our freedoms. But because of the nature of their work, they rarely get the recognition they deserve.

This bill simply ensures that the families of fallen CIA officers receive the death benefits their loved ones earned laying down their lives in service of our Nation.

Gregg was born in the Bronx and graduated from Monroe-Woodbury High School in Orange County, New York. He went on to earn degrees from the State University of New York at Binghamton and then the University of Miami School of Law.

After joining the CIA, he was assigned his first overseas tour as an operations officer in the Horn of Africa. The assignment was challenging, but Gregg was known for his grit and good spirit.

After his death, Gregg was awarded the CIA's Intelligence Commendation Medal and the Exceptional Service Medallion. You can find his star, number 81, on the CIA Memorial Wall in Langley. And we even honored his service in 2015 by renaming the Monroe, New York, post office the Gregg David Wenzel Memorial Post Office, which is the first such honor ever to be bestowed on a CIA officer.

But even with these distinctions, Gregg's family was never able to access the death benefits he had earned in life. A loophole currently blocks benefits for all CIA officers who don't have dependents or who are not killed by a known act of terrorism. My bill simply changes that and rights this wrong.

I am so thankful to Gregg's parents, Gladys and Mitch Wenzel, for never giving up on this fight. This bill is an opportunity for us, as a grateful nation, to honor Gregg and his family and to honor all of our fallen CIA officers and the families they have left behind.

Mr. Chairman, I urge all Members to vote ''yes'' on this bill.

Mr. NUNES. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, this year's IA is named after Damon Nelson and Matthew Pollard, two staffers who passed away unexpectedly last year.

Matt Pollard was a staffer with the Senate Intelligence Committee, and he is remembered fondly by staff and members who had the pleasure of working with him.

Damon Nelson was a former Republican staff director on the House Intelligence Committee and a personal friend. Damon would be happy with the bill today, and I am happy that this committee was able to produce a bipartisan product.

In closing, I want to take a moment to thank the men and women who serve in our intelligence community. I am honored to get to know so many of them in the course of the committee's oversight work.

I also thank my colleagues on the Intelligence Committee for their contributions to our oversight over the past year.

I also thank all of the staff on the committee for their hard work on the bill and their daily oversight of the intelligence community. In particular, I thank the professional oversight staff from the minority, especially Nick Ciarlante, Laura Casulli, Meghan Green, Andrew House, Lisa Major, Bill Flanigan, Steve Keith, Marissa Skaggs, Betsy Hulme, Jack Langer, and Allen Souza.

I would also like to take just a moment to thank our fellow from Los Alamos National Laboratory, Scott Miller. Scott joined the committee in 2016 and, in a few weeks, will be finishing up his midcareer educational program with the House and will be returning to New Mexico.

Mr. Chairman, I wish Scott all the best as he, his wife, Rebecca, and daughter, Sarah, return home.

All the staff members spent long hours working on the legislative text and its classified annex, and the bill is stronger for it.

Mr. Chairman, I thank Chairman SCHIFF and all of his staff for the bipartisan work product.

Mr. Chairman, I urge passage of H.R. 3494, as amended, and I yield back the balance of my time.

Mr. SCHIFF. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, I wish to say only a few words of recognition before concluding my remarks on the Intelligence Authorization Act.

First, my HPSCI colleagues and I remember HPSCI's Damon Nelson and SSCI's Matthew Pollard, two dedicated staffers and public servants who passed away last year. The legislation is named in their honor.

I also express my tremendous thanks and support to the men and women of the intelligence community. They strive quietly and tirelessly every day, and their work helps keep the Nation safe.

I greatly appreciate the work of Ranking Member NUNES, as well as my other HPSCI colleagues.

And I would be remiss if I did not recognize these members of my staff who worked tirelessly together with their minority colleagues to produce this bipartisan legislation: Wells Bennett, Timothy Bergreen, Maher Bitar, Carly Blake, Patrick Boland, Kris Breaux, Linda Cohen, Thomas Eager, Will Evans, Patrick Fallon, Daniel Goldman, Abby Grace, Nicolas Mitchell, Daniel Noble, Diana Pilipenko, Lucian Sikorskyj, Conrad Stosz, Kathy Suber, Amanda Rogers Thorpe, Aaron Thurman, Rheanne Wirkkala, Raffaela Wakeman, and William Wu.

One more personnel note: I want to recognize the exemplary contributions of Brandon Smith, who has been a member of HPSCI's staff for 18 years. Brandon has announced that he will be leaving HPSCI soon. We are deeply grateful for his work and his longstanding and continuing service to the Nation.

Let me conclude by urging all Members of the House to join me in voting for H.R. 3494 and in supporting the measure as it proceeds to the Senate and, after that, to the President's desk.

Mr. Chairman, I yield back the balance of my time.

The CHAIR. All time for general debate has expired.

Pursuant to the rule, the bill shall be considered for amendment under the 5-minute rule.

In lieu of the amendment in the nature of a substitute recommended by the Permanent Select Committee on Intelligence, printed in the bill, the amendment in the nature of a substitute consisting of the text of Rules Committee Print 116–22, modified by the amendment printed in part A of House Report 116–154, shall be considered as adopted. The bill, as amended, shall be considered as an original bill for purpose of further amendment under the 5-minute rule and shall be considered as read.

The text of the bill, as amended, is as follows:

H.R. 3494

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Damon Paul Nelson and Matthew Young Pollard Intelligence Authorization Act for Fiscal Years 2018, 2019, and 2020''.

SEC. 2. DIVISIONS AND TABLE OF CONTENTS.

(a) DIVISIONS.—This Act is organized into two divisions as follows:

(1) Division A—Intelligence Authorizations for Fiscal Year 2020.

(2) Division B—Intelligence Authorizations for Fiscal Years 2018 and 2019.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title.
Sec. 2. Divisions and table of contents.
Sec. 3. Definitions.

DIVISION A—INTELLIGENCE AUTHORIZATIONS FOR FISCAL YEAR 2020

TITLE I—INTELLIGENCE ACTIVITIES

Sec. 101. Authorization of appropriations.
Sec. 102. Classified schedule of authorizations.
Sec. 103. Intelligence community management account.

TITLE II—CENTRAL INTELLIGENCE AGENCY RETIREMENT AND DISABILITY SYSTEM

Sec. 201. Authorization of appropriations.

TITLE III—GENERAL INTELLIGENCE COMMUNITY MATTERS

Sec. 301. Restriction on conduct of intelligence activities.
Sec. 302. Increase in employee compensation and benefits authorized by law.
Sec. 303. Paid parental leave.
Sec. 304. Unfunded requirements of the intelligence community.
Sec. 305. Extending the Intelligence Identities Protection Act of 1982.
Sec. 306. Intelligence community public-private talent exchange.
Sec. 307. Assessment of contracting practices to identify certain security and counterintelligence concerns.
Sec. 308. Required counterintelligence briefings and notifications.

TITLE IV—MATTERS RELATING TO ELEMENTS OF THE INTELLIGENCE COMMUNITY

Sec. 401. Establishment of Climate Security Advisory Council.
Sec. 402. Transfer of National Intelligence University to the Office of the Director of National Intelligence.

TITLE V—MATTERS RELATING TO FOREIGN COUNTRIES

Sec. 501. Annual reports on influence operations and campaigns in the United States by the Communist Party of China.
Sec. 502. Report on repression of ethnic Muslim minorities in the Xinjiang region of the People's Republic of China.
Sec. 503. Report on efforts by People's Republic of China to influence election in Taiwan.
Sec. 504. Assessment of legitimate and illegitimate financial and other assets of Vladimir Putin.
Sec. 505. Assessments of intentions of political leadership of the Russian Federation.
Sec. 506. Report on death of Jamal Khashoggi.

TITLE VI—FEDERAL EFFORTS AGAINST DOMESTIC TERRORISM

Sec. 601. Definitions.
Sec. 602. Annual strategic intelligence assessment of and comprehensive report on domestic terrorism.

TITLE VII—REPORTS AND OTHER MATTERS

Sec. 701. Modification of requirements for submission to Congress of certain reports.
Sec. 702. Increased transparency regarding counterterrorism budget of the United States.
Sec. 703. Task force on illicit financing of espionage and foreign influence operations.
Sec. 704. Study on role of retired and former personnel of intelligence community with respect to certain foreign intelligence operations.
Sec. 705. Report by Director of National Intelligence on fifth-generation wireless network technology.
Sec. 706. Establishment of 5G prize competition.
Sec. 707. Establishment of deepfakes prize competition.

DIVISION B—INTELLIGENCE AUTHORIZATIONS FOR FISCAL YEARS 2018 AND 2019

TITLE XXI—INTELLIGENCE ACTIVITIES

Sec. 2101. Authorization of appropriations.
Sec. 2102. Classified Schedule of Authorizations.
Sec. 2103. Intelligence Community Management Account.

TITLE XXII—CENTRAL INTELLIGENCE AGENCY RETIREMENT AND DISABILITY SYSTEM

Sec. 2201. Authorization of appropriations.
Sec. 2202. Computation of annuities for employees of the Central Intelligence Agency.

TITLE XXIII—GENERAL INTELLIGENCE COMMUNITY MATTERS

Sec. 2301. Restriction on conduct of intelligence activities.
Sec. 2302. Increase in employee compensation and benefits authorized by law.
Sec. 2303. Modification of special pay authority for science, technology, engineering, or mathematics positions and addition of special pay authority for cyber positions.
Sec. 2304. Modification of appointment of Chief Information Officer of the Intelligence Community.
Sec. 2305. Director of National Intelligence review of placement of positions within the intelligence community on the Executive Schedule.
Sec. 2306. Supply Chain and Counterintelligence Risk Management Task Force.

Sec. 2307. Consideration of adversarial telecommunications and cybersecurity infrastructure when sharing intelligence with foreign governments and entities.
Sec. 2308. Cyber protection support for the personnel of the intelligence community in positions highly vulnerable to cyber attack.
Sec. 2309. Elimination of sunset of authority relating to management of supply-chain risk.
Sec. 2310. Limitations on determinations regarding certain security classifications.
Sec. 2311. Joint Intelligence Community Council.
Sec. 2312. Intelligence community information technology environment.
Sec. 2313. Report on development of secure mobile voice solution for intelligence community.
Sec. 2314. Policy on minimum insider threat standards.
Sec. 2315. Submission of intelligence community policies.
Sec. 2316. Expansion of intelligence community recruitment efforts.
TITLE XXIV—MATTERS RELATING TO ELEMENTS OF THE INTELLIGENCE COMMUNITY
Subtitle A—Office of the Director of National Intelligence
Sec. 2401. Authority for protection of current and former employees of the Office of the Director of National Intelligence.
Sec. 2402. Designation of the program manager-information sharing environment.
Sec. 2403. Technical modification to the executive schedule.
Sec. 2404. Chief Financial Officer of the Intelligence Community.
Sec. 2405. Chief Information Officer of the Intelligence Community.
Subtitle B—Central Intelligence Agency
Sec. 2411. Central Intelligence Agency subsistence for personnel assigned to austere locations.
Sec. 2412. Special rules for certain monthly workers' compensation payments and other payments for Central Intelligence Agency personnel.
Sec. 2413. Expansion of security protective service jurisdiction of the Central Intelligence Agency.
Sec. 2414. Repeal of foreign language proficiency requirement for certain senior level positions in the Central Intelligence Agency.
Subtitle C—Office of Intelligence and Counterintelligence of Department of Energy
Sec. 2421. Consolidation of Department of Energy Offices of Intelligence and Counterintelligence.
Sec. 2422. Establishment of Energy Infrastructure Security Center.
Sec. 2423. Repeal of Department of Energy Intelligence Executive Committee and budget reporting requirement.
Subtitle D—Other Elements
Sec. 2431. Plan for designation of counterintelligence component of Defense Security Service as an element of intelligence community.
Sec. 2432. Notice not required for private entities.
Sec. 2433. Establishment of advisory board for National Reconnaissance Office.
Sec. 2434. Collocation of certain Department of Homeland Security personnel at field locations.
TITLE XXV—ELECTION MATTERS
Sec. 2501. Report on cyber attacks by foreign governments against United States election infrastructure.
Sec. 2502. Review of intelligence community's posture to collect against and analyze Russian efforts to influence the Presidential election.
Sec. 2503. Assessment of foreign intelligence threats to Federal elections.
Sec. 2504. Strategy for countering Russian cyber threats to United States elections.
Sec. 2505. Assessment of significant Russian influence campaigns directed at foreign elections and referenda.
Sec. 2506. Information sharing with State election officials.
Sec. 2507. Notification of significant foreign cyber intrusions and active measures campaigns directed at elections for Federal offices.
Sec. 2508. Designation of counterintelligence officer to lead election security matters.
TITLE XXVI—SECURITY CLEARANCES
Sec. 2601. Definitions.
Sec. 2602. Reports and plans relating to security clearances and background investigations.
Sec. 2603. Improving the process for security clearances.
Sec. 2604. Goals for promptness of determinations regarding security clearances.
Sec. 2605. Security Executive Agent.
Sec. 2606. Report on unified, simplified, Governmentwide standards for positions of trust and security clearances.
Sec. 2607. Report on clearance in person concept.
Sec. 2608. Reports on reciprocity for security clearances inside of departments and agencies.
Sec. 2609. Intelligence community reports on security clearances.
Sec. 2610. Periodic report on positions in the intelligence community that can be conducted without access to classified information, networks, or facilities.
Sec. 2611. Information sharing program for positions of trust and security clearances.
Sec. 2612. Report on protections for confidentiality of whistleblower-related communications.
TITLE XXVII—REPORTS AND OTHER MATTERS
Subtitle A—Matters Relating to Russia and Other Foreign Powers
Sec. 2701. Limitation relating to establishment or support of cybersecurity unit with the Russian Federation.
Sec. 2702. Report on returning Russian compounds.
Sec. 2703. Assessment of threat finance relating to Russia.
Sec. 2704. Notification of an active measures campaign.
Sec. 2705. Notification of travel by accredited diplomatic and consular personnel of the Russian Federation in the United States.
Sec. 2706. Report on outreach strategy addressing threats from United States adversaries to the United States technology sector.
Sec. 2707. Report on Iranian support of proxy forces in Syria and Lebanon.
Sec. 2708. Annual report on Iranian expenditures supporting foreign military and terrorist activities.
Sec. 2709. Expansion of scope of committee to counter active measures and report on establishment of Foreign Malign Influence Center.
Subtitle B—Reports
Sec. 2711. Technical correction to Inspector General study.
Sec. 2712. Reports on authorities of the Chief Intelligence Officer of the Department of Homeland Security.
Sec. 2713. Review of intelligence community whistleblower matters.
Sec. 2714. Report on role of Director of National Intelligence with respect to certain foreign investments.
Sec. 2715. Report on surveillance by foreign governments against United States telecommunications networks.
Sec. 2716. Biennial report on foreign investment risks.
Sec. 2717. Modification of certain reporting requirement on travel of foreign diplomats.
Sec. 2718. Semiannual reports on investigations of unauthorized disclosures of classified information.
Sec. 2719. Congressional notification of designation of covered intelligence officer as persona non grata.
Sec. 2720. Reports on intelligence community participation in vulnerabilities equities process of Federal Government.
Sec. 2721. Inspectors General reports on classification.
Sec. 2722. Reports on global water insecurity and national security implications and briefing on emerging infectious disease and pandemics.
Sec. 2723. Annual report on memoranda of understanding between elements of intelligence community and other entities of the United States Government regarding significant operational activities or policy.
Sec. 2724. Study on the feasibility of encrypting unclassified wireline and wireless telephone calls.
Sec. 2725. Modification of requirement for annual report on hiring and retention of minority employees.
Sec. 2726. Reports on intelligence community loan repayment and related programs.
Sec. 2727. Repeal of certain reporting requirements.
Sec. 2728. Inspector General of the Intelligence Community report on senior executives of the Office of the Director of National Intelligence.
Sec. 2729. Briefing on Federal Bureau of Investigation offering permanent residence to sources and cooperators.
Sec. 2730. Intelligence assessment of North Korea revenue sources.
Sec. 2731. Report on possible exploitation of virtual currencies by terrorist actors.
Subtitle C—Other Matters
Sec. 2741. Public Interest Declassification Board.
Sec. 2742. Technical and clerical amendments to the National Security Act of 1947.
Sec. 2743. Technical amendments related to the Department of Energy.
Sec. 2744. Sense of Congress on notification of certain disclosures of classified information.
Sec. 2745. Sense of Congress on consideration of espionage activities when considering whether or not to provide visas to foreign individuals to be accredited to a United Nations mission in the United States.

SEC. 3. DEFINITIONS.

In this Act:

(1) CONGRESSIONAL INTELLIGENCE COMMITTEES.—The term ''congressional intelligence committees'' has the meaning given such term in section 3 of the National Security Act of 1947 (50 U.S.C. 3003).

(2) INTELLIGENCE COMMUNITY.—The term ''intelligence community'' has the meaning given such term in section 3 of the National Security Act of 1947 (50 U.S.C. 3003).

DIVISION A—INTELLIGENCE AUTHORIZATIONS FOR FISCAL YEAR 2020

TITLE I—INTELLIGENCE ACTIVITIES

SEC. 101. AUTHORIZATION OF APPROPRIATIONS.

Funds are hereby authorized to be appropriated for fiscal year 2020 for the conduct of the intelligence and intelligence-related activities of the following elements of the United States Government:

(1) The Office of the Director of National Intelligence.

(2) The Central Intelligence Agency.

(3) The Department of Defense.

(4) The Defense Intelligence Agency.

(5) The National Security Agency.

(6) The Department of the Army, the Department of the Navy, and the Department of the Air Force.

(7) The Coast Guard.

(8) The Department of State.

(9) The Department of the Treasury.

(10) The Department of Energy.

(11) The Department of Justice.

(12) The Federal Bureau of Investigation.

(13) The Drug Enforcement Administration.

(14) The National Reconnaissance Office.

(15) The National Geospatial-Intelligence Agency.

(16) The Department of Homeland Security.

SEC. 102. CLASSIFIED SCHEDULE OF AUTHORIZATIONS.

(a) SPECIFICATIONS OF AMOUNTS.—The amounts authorized to be appropriated under section 101 for the conduct of the intelligence activities of the elements listed in paragraphs (1) through (16) of section 101, are those specified in the classified Schedule of Authorizations prepared to accompany this Act.

(b) AVAILABILITY OF CLASSIFIED SCHEDULE OF AUTHORIZATIONS.—

(1) AVAILABILITY.—The classified Schedule of Authorizations referred to in subsection (a) shall be made available to the Committee on Appropriations of the Senate, the Committee on Appropriations of the House of Representatives, and to the President.

(2) DISTRIBUTION BY THE PRESIDENT.—Subject to paragraph (3), the President shall provide for suitable distribution of the classified Schedule of Authorizations referred to in subsection (a), or of appropriate portions of such Schedule, within the executive branch.

(3) LIMITS ON DISCLOSURE.—The President shall not publicly disclose the classified Schedule of Authorizations or any portion of such Schedule except—

(A) as provided in section 601(a) of the Implementing Recommendations of the 9/11 Commission Act of 2007 (50 U.S.C. 3306(a));

(B) to the extent necessary to implement the budget; or

(C) as otherwise required by law.

SEC. 103. INTELLIGENCE COMMUNITY MANAGEMENT ACCOUNT.

(a) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated for the Intelligence Community Management Account of the Director of National Intelligence for fiscal year 2020 the sum of $565,637,000.

(b) CLASSIFIED AUTHORIZATION OF APPROPRIATIONS.—In addition to amounts authorized to be appropriated for the Intelligence Community Management Account by subsection (a), there are authorized to be appropriated for the Intelligence Community Management Account for fiscal year 2020 such additional amounts as are specified in the classified Schedule of Authorizations referred to in section 102(a).

TITLE II—CENTRAL INTELLIGENCE AGENCY RETIREMENT AND DISABILITY SYSTEM

SEC. 201. AUTHORIZATION OF APPROPRIATIONS.

There is authorized to be appropriated for the Central Intelligence Agency Retirement and Disability fund $514,000,000 for fiscal year 2020.

TITLE III—GENERAL INTELLIGENCE COMMUNITY MATTERS

SEC. 301. RESTRICTION ON CONDUCT OF INTELLIGENCE ACTIVITIES.

The authorization of appropriations by this Act shall not be deemed to constitute authority for the conduct of any intelligence activity which is not otherwise authorized by the Constitution or the laws of the United States.

SEC. 302. INCREASE IN EMPLOYEE COMPENSATION AND BENEFITS AUTHORIZED BY LAW.

Appropriations authorized by this Act for salary, pay, retirement, and other benefits for Federal employees may be increased by such additional or supplemental amounts as may be necessary for increases in such compensation or benefits authorized by law.

SEC. 303. PAID PARENTAL LEAVE.

(a) PURPOSE.—The purpose of this section is to—

(1) help the intelligence community recruit and retain a dynamic, multi-talented, and diverse workforce capable of meeting the security goals of the United States; and

(2) establish best practices and processes for other elements of the Federal Government seeking to pursue similar policies.

(b) AUTHORIZATION OF PAID PARENTAL LEAVE FOR INTELLIGENCE COMMUNITY EMPLOYEES.—

(1) IN GENERAL.—Title III of the National Security Act of 1947 (50 U.S.C. 3071 et seq.) is amended by inserting after section 304 the following:

"SEC. 305. PAID PARENTAL LEAVE.

''(a) PAID PARENTAL LEAVE.—Notwithstanding any other provision of law, a civilian employee of an element of the intelligence community shall have available a total of 12 administrative workweeks of paid parental leave in the event of the birth of a child of the employee, or placement of a child with the employee for adoption or foster care in order to care for such son or daughter. Such paid parental leave shall be used during the 12-month period beginning on the date of the birth or placement. Nothing in this section shall be construed to modify or otherwise affect the eligibility of an employee of an element of the intelligence community for benefits relating to leave under any other provision of law.

''(b) TREATMENT OF PARENTAL LEAVE REQUEST.—Notwithstanding any other provision of law—

''(1) an element of the intelligence community shall accommodate an employee's leave request under subsection (a), including a request to use such leave intermittently or to create a reduced work schedule, to the extent that the requested leave schedule does not unduly disrupt operations; and

''(2) to the extent that an employee's requested leave described in paragraph (1) arises out of medical necessity related to a serious health condition connected to the birth of a child, the employing element shall handle the scheduling consistent with the treatment of employees who are using leave under subparagraph (C) or (D) of section 6382(a)(1) of title 5, United States Code.

''(c) RULES RELATING TO PAID LEAVE.—Notwithstanding any other provision of law—

''(1) an employee may not be required to first use all or any portion of any unpaid leave available to the employee before being allowed to use the paid parental leave described in subsection (a); and

''(2) paid parental leave under subsection (a)—

''(A) shall be payable from any appropriation or fund available for salaries or expenses for positions within the employing element;

''(B) may not be considered to be annual or vacation leave for purposes of section 5551 or 5552 of title 5, United States Code, or for any other purpose;

''(C) if not used by the employee before the end of the 12-month period described in subsection (a) to which the leave relates, may not be available for any subsequent use and may not be converted into a cash payment;

''(D) may be granted only to the extent that the employee does not receive a total of more than 12 weeks of paid parental leave in any 12-month period beginning on the date of a birth or placement;

''(E) may not be granted—

''(i) in excess of a lifetime aggregate total of 30 administrative workweeks based on placements of a foster child for any individual employee; or

''(ii) in connection with temporary foster care placements expected to last less than 1 year;

''(F) may not be granted for a child being placed for foster care or adoption if such leave was previously granted to the same employee when the same child was placed with the employee for foster care in the past;

''(G) shall be used in increments of hours (or fractions thereof), with 12 administrative workweeks equal to 480 hours for employees with a regular full-time work schedule and converted to a proportional number of hours for employees with part-time, seasonal, or uncommon tours of duty; and

''(H) may not be used during off-season (nonpay status) periods for employees with seasonal work schedules.

''(d) IMPLEMENTATION PLAN.—Not later than 1 year after the date of the enactment of this section, the Director of National Intelligence shall submit to the congressional intelligence committees an implementation plan that includes—

''(1) processes and procedures for implementing the paid parental leave policies under subsections (a) through (c);

''(2) an explanation of how the implementation of subsections (a) through (c) will be reconciled with policies of other elements of the Federal Government, including the impact on elements funded by the National Intelligence Program that are housed within agencies outside the intelligence community; and

''(3) all costs or operational expenses associated with the implementation of subsections (a) through (c).

''(e) DIRECTIVE.—Not later than 180 days after the Director of National Intelligence submits the implementation plan under subsection (d), the Director of National Intelligence shall issue a written directive to implement this section, which directive shall take effect on the date of issuance.

''(f) ANNUAL REPORT.—The Director of National Intelligence shall submit to the congressional intelligence committees an annual report that—

''(1) details the number of employees of each element of the intelligence community who applied for and took paid parental leave under subsection (a) during the year covered by the report;

''(2) details the number of—

''(A) employees of each element of the intelligence community stationed abroad who applied for and took paid parental leave under subsection (a) during the year covered by the report; and

''(B) employees of each element of the intelligence community stationed abroad who applied for paid parental leave but such application was not granted because of an undue impact on operations as specified in subsection (b)(1); and

''(3) includes updates on major implementation challenges or costs associated with paid parental leave.

''(g) DEFINITION OF CHILD.—For purposes of this section, the term 'child' means a biological, adopted, or foster child, a stepchild, a legal ward, or a child of a person in loco parentis, who is—

''(1) under 18 years of age; or

''(2) 18 years of age or older and incapable of self-care because of a mental or physical disability.''.

(2) CLERICAL AMENDMENT.—The table of contents in the matter preceding section 2 of the

National Security Act of 1947 (50 U.S.C. 3002) is amended by inserting after the item relating to section 304 the following:

''Sec. 305. Paid parental leave.''.

(c) APPLICABILITY.—Section 305 of the National Security Act of 1947, as added by subsection (b), shall apply with respect to leave taken in connection with the birth or placement of a child that occurs on or after the date on which the Director of National Intelligence issues the written directive under subsection (e) of such section 305.

SEC. 304. UNFUNDED REQUIREMENTS OF THE INTELLIGENCE COMMUNITY.

(a) IN GENERAL.—Title V of the National Security Act of 1947 (50 U.S.C. 3091 et seq.) is amended by adding at the end the following new section:

''SEC. 512. UNFUNDED PRIORITIES OF THE INTELLIGENCE COMMUNITY.

''(a) BRIEFINGS.—Upon the request of an appropriate congressional committee, the Director of National Intelligence shall provide to the committee a briefing on the unfunded priorities of an element of the intelligence community.

''(b) DEFINITIONS.—In this section:

''(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term 'appropriate congressional committees' means—

''(A) the congressional intelligence committees; and

''(B) the Committees on Appropriations of the House of Representatives and the Senate.

''(2) UNFUNDED PRIORITY.—The term 'unfunded priority', in the case of a fiscal year, means a program, activity, or other initiative of an element of the intelligence community that—

''(A) was submitted by the head of the element to the Director of National Intelligence in the budget proposal for the element for that fiscal year, but was not included by the Director in the consolidated budget proposal submitted to the President for that fiscal year; or

''(B) was submitted by the Director in the consolidated budget proposal submitted to the President for that fiscal year, but was not included in the budget of the President submitted to Congress for that fiscal year pursuant to section 1105 of title 31, United States Code.''.

(b) CLERICAL AMENDMENT.—The table of sections in the first section of such Act is amended by inserting after the item relating to section 511 the following new item:

''Sec. 512. Unfunded priorities of the intelligence community.''.

SEC. 305. EXTENDING THE INTELLIGENCE IDENTITIES PROTECTION ACT OF 1982.

Section 605(4) of the National Security Act of 1947 (50 U.S.C. 3126(4)) is amended—

(1) in subparagraph (A)—

(A) by striking clause (ii);

(B) in clause (i), by striking '', and'' and inserting '';''; and

(C) by striking ''agency—'' and all that follows through ''whose identity'' and inserting ''agency whose identity''; and

(2) in subparagraph (B)(i), by striking ''resides and acts outside the United States'' and inserting ''acts''.

SEC. 306. INTELLIGENCE COMMUNITY PUBLIC-PRIVATE TALENT EXCHANGE.

(a) POLICIES, PROCESSES, AND PROCEDURES REQUIRED.—Not later than 270 days after the date of the enactment of this Act, the Director of National Intelligence shall develop policies, processes, and procedures to facilitate the rotation of personnel of the intelligence community to the private sector, and personnel from the private sector to the intelligence community.

(b) DETAIL AUTHORITY.—Under policies developed by the Director pursuant to subsection (a), pursuant to a written agreement with a private-sector organization, and with the consent of the employee, a head of an element of the intelligence community may arrange for the temporary detail of an employee of such element to such private-sector organization, or from such private-sector organization to such element under this section.

(c) AGREEMENTS.—

(1) IN GENERAL.—A head of an element of the intelligence community exercising the authority of the head under subsection (a) shall provide for a written agreement among the element of the intelligence community, the private-sector organization, and the employee concerned regarding the terms and conditions of the employee's detail under this section. The agreement—

(A) shall require that the employee of the element, upon completion of the detail, serve in the element, or elsewhere in the civil service if approved by the head of the element, for a period that is at least equal to the length of the detail;

(B) shall provide that if the employee of the element fails to carry out the agreement, such employee shall be liable to the United States for payment of all non-salary and benefit expenses of the detail, unless that failure was for good and sufficient reason, as determined by the head of the element;

(C) shall contain language informing such employee of the prohibition on sharing, using, or otherwise improperly handling classified or unclassified non-public information for the benefit or advantage of the private-sector organization;

(D) shall contain language governing the handling of classified information by such employee during the detail; and

(E) shall contain language requiring the employee to acknowledge the obligations of the employee under section 1905 of title 18, United States Code.

(2) AMOUNT OF LIABILITY.—An amount for which an employee is liable under paragraph (1) shall be treated as a debt due the United States.

(3) WAIVER.—The head of an element of the intelligence community may waive, in whole or in part, collection of a debt described in paragraph (2) based on a determination that the collection would be against equity and good conscience and not in the best interests of the United States, after taking into account any indication of fraud, misrepresentation, fault, or lack of good faith on the part of the employee.

(d) TERMINATION.—A detail under this section may, at any time and for any reason, be terminated by the head of the element of the intelligence community concerned or the private-sector organization concerned.

(e) DURATION.—

(1) IN GENERAL.—A detail under this section shall be for a period of not less than 3 months and not more than 2 years, renewable up to a total of 3 years.

(2) LONGER PERIODS.—A detail under this section may be for a period in excess of 2 years, but not more than 3 years, if the head of the element making the detail determines that such detail is necessary to meet critical mission or program requirements.

(3) LIMITATION.—No employee of an element of the intelligence community may be detailed under this section for more than a total of 5 years, inclusive of all such details.

(f) STATUS OF FEDERAL EMPLOYEES DETAILED TO PRIVATE-SECTOR ORGANIZATIONS.—

(1) IN GENERAL.—An employee of an element of the intelligence community who is detailed to a private-sector organization under this section shall be considered, during the period of detail, to be on a regular work assignment in the element. The written agreement established under subsection (c)(1) shall address the specific terms and conditions related to the employee's continued status as a Federal employee.

(2) REQUIREMENTS.—In establishing a temporary detail of an employee of an element of the intelligence community to a private-sector organization, the head of the element shall—

(A) certify that the temporary detail of such employee shall not have an adverse or negative impact on mission attainment or organizational capabilities associated with the detail; and

(B) in the case of an element of the intelligence community in the Department of Defense, ensure that the normal duties and functions of such employees are not, as a result of and during the course of such temporary detail, performed or augmented by contractor personnel in violation of the provisions of section 2461 of title 10, United States Code.

(g) TERMS AND CONDITIONS FOR PRIVATE-SECTOR EMPLOYEES.—An employee of a private-sector organization who is detailed to an element of the intelligence community under this section—

(1) shall continue to receive pay and benefits from the private-sector organization from which such employee is detailed and shall not receive pay or benefits from the element, except as provided in paragraph (2);

(2) is deemed to be an employee of the element for the purposes of—

(A) chapters 73 and 81 of title 5, United States Code;

(B) sections 201, 203, 205, 207, 208, 209, 603, 606, 607, 643, 654, 1905, and 1913 of title 18, United States Code;

(C) sections 1343, 1344, and 1349(b) of title 31, United States Code;

(D) chapter 171 of title 28, United States Code (commonly known as the ''Federal Tort Claims Act'') and any other Federal tort liability statute;

(E) the Ethics in Government Act of 1978 (5 U.S.C. App.); and

(F) chapter 21 of title 41, United States Code;

(3) may perform work that is considered inherently governmental in nature only when requested in writing by the head of the element;

(4) may not be used to circumvent any limitation or restriction on the size of the workforce of the element;

(5) shall be subject to the same requirements applicable to an employee performing the same functions and duties proposed for performance by the private sector employee; and

(6) in the case of an element of the intelligence community in the Department of Defense, may not be used to circumvent the provisions of section 2461 of title 10, United States Code.

(h) PROHIBITION AGAINST CHARGING CERTAIN COSTS TO THE FEDERAL GOVERNMENT.—A private-sector organization may not charge an element of the intelligence community or any other agency of the Federal Government, as direct costs under a Federal contract, the costs of pay or benefits paid by the organization to an employee detailed to an element of the intelligence community under this section for the period of the detail and any subsequent renewal periods.

(i) ADDITIONAL ADMINISTRATIVE MATTERS.—In carrying out this section, the Director, pursuant to procedures developed under subsection (a)—

(1) shall, to the degree practicable, ensure that small business concerns are represented with respect to details authorized by this section;

(2) may, notwithstanding any other provision of law, establish criteria for elements of the intelligence community to use appropriated funds to reimburse small business concerns for the salaries and benefits of its employees during the periods when the small business concern agrees to detail its employees to the intelligence community under this section;

(3) shall take into consideration the question of how details under this section might best be used to help meet the needs of the intelligence community, including with respect to the training of employees;

(4) shall take into consideration areas of private-sector expertise that are critical to the intelligence community; and

(5) shall establish oversight mechanisms to determine whether the public-private exchange authorized by this section improves the efficiency and effectiveness of the intelligence community.

(j) DEFINITIONS.—In this section:

(1) DETAIL.—The term ''detail'' means, as appropriate in the context in which such term is used—

(A) the assignment or loan of an employee of an element of the intelligence community to a private-sector organization without a change of position from the intelligence community element that employs the individual; or

(B) the assignment or loan of an employee of a private-sector organization to an element of the intelligence community without a change of position from the private-sector organization that employs the individual.

(2) PRIVATE-SECTOR ORGANIZATION.—The term ''private-sector organization'' means—

(A) a for-profit organization; or

(B) a not-for-profit organization.

(3) SMALL BUSINESS CONCERN.—The term ''small business concern'' has the meaning given such term in section 3703(e)(2) of title 5, United States Code.

SEC. 307. ASSESSMENT OF CONTRACTING PRACTICES TO IDENTIFY CERTAIN SECURITY AND COUNTERINTELLIGENCE CONCERNS.

(a) ASSESSMENT.—

(1) CONTRACTING PRACTICES.—The Director of National Intelligence shall conduct an assessment of the authorities, policies, processes, and standards used by the elements of the intelligence community to ensure that the elements appropriately weigh security and counterintelligence risks in awarding a contract to a contractor that—

(A) carries out any joint research and development activities with a covered foreign country; or

(B) performs any contract or other agreement entered into with a covered foreign country.

(2) ELEMENTS.—The assessment under paragraph (1) shall include the following:

(A) An assessment of whether the authorities, policies, processes, and standards specified in paragraph (1) sufficiently identify security and counterintelligence concerns.

(B) Identification of any authority gaps in such authorities, policies, processes, and standards that prevent the intelligence community from considering the activities specified in subparagraphs (A) and (B) of paragraph (1) when evaluating offers for a contract.

(3) CONSULTATION.—In carrying out paragraph (1), the Director shall consult with each head of an element of the intelligence community.

(b) REPORT.—

(1) REQUIREMENT.—Not later than 180 days after the date of the enactment of this Act, the Director shall submit to the congressional intelligence committees a report on the assessment under subsection (a)(1).

(2) MATTERS INCLUDED.—The report under paragraph (1) shall include the following:

(A) The assessment under subsection (a)(1).

(B) An identification of any known contractors that have—

(i) carried out activities specified in subparagraphs (A) and (B) of subsection (a)(1); and

(ii) submitted an offer for a contract with an element of the intelligence community.

(C) A description of the steps that the Director and the heads of the elements of the intelligence community took to identify contractors under subparagraph (B).

(3) FORM.—The report under paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

(c) COVERED FOREIGN COUNTRY DEFINED.—In this section, the term ''covered foreign country'' means the government, or any entity affiliated with the military or intelligence services of, the following foreign countries:

(1) The People's Republic of China.

(2) The Russian Federation.

(3) The Democratic People's Republic of Korea.

(4) The Islamic Republic of Iran.

SEC. 308. REQUIRED COUNTERINTELLIGENCE BRIEFINGS AND NOTIFICATIONS.

(a) FOREIGN COUNTERINTELLIGENCE AND CYBERSECURITY THREATS TO FEDERAL ELECTION CAMPAIGNS.—

(1) REPORTS REQUIRED.—

(A) IN GENERAL.—As provided in subparagraph (B), for each Federal election, the Director of National Intelligence, in coordination with the Under Secretary of Homeland Security for Intelligence and Analysis and the Director of the Federal Bureau of Investigation, shall make publicly available on an Internet website an advisory report on foreign counterintelligence and cybersecurity threats to election campaigns for Federal offices. Each such report shall include, consistent with the protection of sources and methods, each of the following:

(i) A description of foreign counterintelligence and cybersecurity threats to election campaigns for Federal offices.

(ii) A summary of best practices that election campaigns for Federal offices can employ in seeking to counter such threats.

(iii) An identification of any publicly available resources, including United States Government resources, for countering such threats.

(B) SCHEDULE FOR SUBMITTAL.—A report under this subsection shall be made available as follows:

(i) In the case of a report regarding an election held for the office of Senator or Member of the House of Representatives during 2018, not later than the date that is 60 days after the date of the enactment of this Act.

(ii) In the case of a report regarding an election for a Federal office during any subsequent year, not later than the date that is 1 year before the date of the election.

(C) INFORMATION TO BE INCLUDED.—A report under this subsection shall reflect the most current information available to the Director of National Intelligence regarding foreign counterintelligence and cybersecurity threats.

(2) TREATMENT OF CAMPAIGNS SUBJECT TO HEIGHTENED THREATS.—If the Director of the Federal Bureau of Investigation and the Under Secretary of Homeland Security for Intelligence and Analysis jointly determine that an election campaign for Federal office is subject to a heightened foreign counterintelligence or cybersecurity threat, the Director and the Under Secretary, consistent with the protection of sources and methods, may make available additional information to the appropriate representatives of such campaign.

(b) BRIEFINGS ON COUNTERINTELLIGENCE ACTIVITIES OF THE FEDERAL BUREAU OF INVESTIGATION.—

(1) IN GENERAL.—Title V of the National Security Act of 1947 (50 U.S.C. 3091 et seq.), as amended by section 304, is further amended by adding at the end the following new section:

''SEC. 513. BRIEFINGS AND NOTIFICATIONS ON COUNTERINTELLIGENCE ACTIVITIES OF THE FEDERAL BUREAU OF INVESTIGATION.

''(a) QUARTERLY BRIEFINGS.—In addition to, and without any derogation of, the requirement under section 501 to keep the congressional intelligence committees fully and currently informed of the intelligence and counterintelligence activities of the United States, not less frequently than once each quarter, the Director of the Federal Bureau of Investigation shall provide to the congressional intelligence committees a briefing on the counterintelligence activities of the Federal Bureau of Investigation. Such briefings shall include, at a minimum, an overview and update of—

''(1) the counterintelligence posture of the Bureau;

''(2) counterintelligence investigations; and

''(3) any other information relating to the counterintelligence activities of the Bureau that the Director determines necessary.

''(b) NOTIFICATIONS.—In addition to the quarterly briefings under subsection (a), the Director of the Federal Bureau of Investigation shall promptly notify the congressional intelligence committees of any counterintelligence investigation carried out by the Bureau with respect to any counterintelligence risk or threat that is related to an election or campaign for Federal office.

''(c) GUIDELINES.—

''(1) DEVELOPMENT AND CONSULTATION.—The Director shall develop guidelines governing the scope of the briefings provided under subsection (a), the notifications provided under subsection (b), and the information required by section 308(a)(2) of the Damon Paul Nelson and Matthew Young Pollard Intelligence Authorization Act for Fiscal Years 2018, 2019, and 2020. The Director shall consult the congressional intelligence committees during such development.

''(2) SUBMISSION.—The Director shall submit to the congressional intelligence committees—

''(A) the guidelines under paragraph (1) upon issuance; and

''(B) any updates to such guidelines by not later than 15 days after making such update.''.

(2) CLERICAL AMENDMENT.—The table of contents at the beginning of such Act, as amended by section 304, is further amended by inserting after the item relating to section 512 the following new item:

''Sec. 513. Briefings and notifications on counterintelligence activities of the Federal Bureau of Investigation.''.

TITLE IV—MATTERS RELATING TO ELEMENTS OF THE INTELLIGENCE COMMUNITY

SEC. 401. ESTABLISHMENT OF CLIMATE SECURITY ADVISORY COUNCIL.

(a) ESTABLISHMENT.—Title I of the National Security Act of 1947 (50 U.S.C. 3021 et seq.) is amended by adding at the end the following new section:

''SEC. 120. CLIMATE SECURITY ADVISORY COUNCIL.

''(a) ESTABLISHMENT.—The Director of National Intelligence shall establish a Climate Security Advisory Council for the purpose of—

''(1) assisting intelligence analysts of various elements of the intelligence community with respect to analysis of climate security and its impact on the areas of focus of such analysts;

''(2) facilitating coordination between the elements of the intelligence community and elements of the Federal Government that are not elements of the intelligence community in collecting data on, and conducting analysis of, climate change and climate security; and

''(3) ensuring that the intelligence community is adequately prioritizing climate change in carrying out its activities.

''(b) COMPOSITION OF COUNCIL.—

''(1) MEMBERS.—The Council shall be composed of the following individuals appointed by the Director of National Intelligence:

''(A) An appropriate official from the National Intelligence Council, who shall chair the Council.

''(B) The lead official with respect to climate and environmental security analysis from—

''(i) the Central Intelligence Agency;

''(ii) the Bureau of Intelligence and Research of the Department of State;

''(iii) the National Geospacial-Intelligence Agency;

''(iv) the Office of Intelligence and Counterintelligence of the Department of Energy;

''(v) the Office of the Under Secretary of Defense for Intelligence; and

''(vi) the Defense Intelligence Agency.

''(C) Three appropriate officials from elements of the Federal Government that are not elements of the intelligence community that are responsible for—

''(i) providing decision-makers with a predictive understanding of the climate;

''(ii) making observations of our Earth system that can be used by the public, policymakers, and to support strategic decisions; or

''(iii) coordinating Federal research and investments in understanding the forces shaping the global environment, both human and natural, and their impacts on society.

''(D) Any other officials as the Director of National Intelligence or the chair of the Council may determine appropriate.

''(2) RESPONSIBILITIES OF CHAIR.—The chair of the Council shall have responsibility for—

''(A) identifying agencies to supply individuals from elements of the Federal Government that are not elements of the intelligence community;

''(B) securing the permission of the relevant agency heads for the participation of such individuals on the Council; and

''(C) any other duties that the Director of National Intelligence may direct.

''(c) DUTIES AND RESPONSIBILITIES OF COUNCIL.—The Council shall carry out the following duties and responsibilities:

''(1) To meet at least quarterly to—

''(A) exchange appropriate data between elements of the intelligence community and elements of the Federal Government that are not elements of the intelligence community;

''(B) discuss processes for the routine exchange of such data and implementation of such processes; and

''(C) prepare summaries of the business conducted at each meeting.

''(2) To assess and determine best practices with respect to the analysis of climate security, including identifying publicly available information and intelligence acquired through clandestine means that enables such analysis.

''(3) To assess and identify best practices with respect to prior efforts of the intelligence community to analyze climate security.

''(4) To assess and describe best practices for identifying and disseminating climate security indicators and warnings;

''(5) To recommend methods of incorporating analysis of climate security and the best practices identified under paragraphs (2) through (4) into existing analytic training programs.

''(6) To consult, as appropriate, with other elements of the intelligence community that conduct analysis of climate change or climate security and elements of the Federal Government that are not elements of the intelligence community that conduct analysis of climate change or climate security, for the purpose of sharing information about ongoing efforts and avoiding duplication of existing efforts.

''(7) To work with elements of the intelligence community that conduct analysis of climate change or climate security and elements of the Federal Government that are not elements of the intelligence community that conduct analysis of climate change or climate security—

''(A) to exchange appropriate data between such elements, establish processes, procedures and practices for the routine exchange of such data, discuss the implementation of such processes; and

''(B) to enable and facilitate the sharing of findings and analysis between such elements.

''(8) To assess whether the elements of the intelligence community that conduct analysis of climate change or climate security may inform the research direction of academic work and the sponsored work of the United States Government.

''(9) At the discretion of the chair of the Council, to convene conferences of analysts and non-intelligence community personnel working on climate change or climate security on subjects that the chair shall direct.

''(d) SUNSET.—The Council shall terminate on the date that is 4 years after the date of the enactment of this section.

''(e) DEFINITIONS.—In this section:

''(1) CLIMATE SECURITY.—The term 'climate security' means the effects of climate change on the following:

''(A) The national security of the United States, including national security infrastructure.

''(B) Subnational, national, and regional political stability.

''(C) The security of allies and partners of the United States.

''(D) Ongoing or potential political violence, including unrest, rioting, guerrilla warfare, insurgency, terrorism, rebellion, revolution, civil war, and interstate war.

''(2) CLIMATE INTELLIGENCE INDICATIONS AND WARNINGS.—The term 'climate intelligence indications and warnings' means developments relating to climate security with the potential to—

''(A) imminently and substantially alter the political stability or degree of human security in a country or region; or

''(B) imminently and substantially threaten—

''(i) the national security of the United States;

''(ii) the military, political, or economic interests of allies and partners of the United States; or

''(iii) citizens of the United States abroad.''.

(b) CLERICAL AMENDMENT.—The table of contents in the first section of the National Security Act of 1947 is amended by inserting after the item relating to section 119B the following new item:

''Sec. 120. Climate Security Advisory Council.''.

(c) INITIAL APPOINTMENTS.—Not later than 90 days after the date of the enactment of this Act, the Director of National Intelligence shall appoint the members of the Council under section 120 of the National Security Act of 1947, as added by subsection (a).

SEC. 402. TRANSFER OF NATIONAL INTELLIGENCE UNIVERSITY TO THE OFFICE OF THE DIRECTOR OF NATIONAL INTELLIGENCE.

(a) TRANSFER.—Not later than 90 days after the date of the enactment of this Act, the Director of the Defense Intelligence Agency shall transfer to the Director of National Intelligence the National Intelligence University, including the functions, personnel, assets, and liabilities of the University.

(b) DEGREE-GRANTING AUTHORITY.—

(1) REGULATIONS.—Under regulations prescribed by the Director of National Intelligence, the President of the National Intelligence University may, upon the recommendation of the faculty of the University, confer appropriate degrees upon graduates who meet the degree requirements.

(2) LIMITATION.—A degree may not be conferred under this section unless—

(A) the appropriate head of a Department of the Federal Government has recommended approval of the degree in accordance with any Federal policy applicable to the granting of academic degrees by departments and agencies of the Federal Government; and

(B) the University is accredited by the appropriate civilian academic accrediting agency or organization to award the degree, as determined by such appropriate head of a Department.

(c) CONGRESSIONAL NOTIFICATION REQUIREMENTS.—

(1) NOTIFICATION.—When seeking to establish degree-granting authority under this section, the Director shall submit to the congressional intelligence committees—

(A) a copy of the self-assessment questionnaire required by the Federal policy specified in subsection (b)(2)(A); and

(B) any subsequent recommendations and rationale of the appropriate head of a Department specified in such subsection regarding establishing such degree-granting authority.

(2) MODIFICATION.—Upon any modification or redesignation of existing degree-granting authority, the Director shall submit to the congressional intelligence committees a report containing the rationale for the proposed modification or redesignation and any subsequent recommendation described in paragraph (1)(B) with respect to the proposed modification or redesignation.

(3) ACTIONS ON NONACCREDITATION.—The Director shall submit to the congressional intelligence committees a report containing an explanation of any action by the appropriate academic accrediting agency or organization not to accredit the University to award any new or existing degree.

(d) CONFORMING REPEAL.—Effective 90 days after the date of the enactment of this Act, section 2161 of title 10, United States Code, is repealed, and the table of sections at the beginning of chapter 108 of such title is amended by striking the item relating to such section 2161.

SEC. 403. DEATH BENEFITS FOR SURVIVORS OF CENTRAL INTELLIGENCE AGENCY PERSONNEL.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) officers of the Central Intelligence Agency who die during a period of assignment to a duty station in a foreign country should receive death benefits, regardless of whether the officers—

(A) were killed on or off duty;

(B) were killed due to an act of terrorism; or

(C) have surviving dependents;

(2) section 8 of the Central Intelligence Agency Act of 1949 (50 U.S.C. 3510) has provided the Agency an appropriate authority for compensating officers who die abroad who fall into any gaps in existing death benefit regulations of the Agency, even before the clarifying amendments made by this Act;

(3) notwithstanding that the improved authority provided by section 11(c) of such Act (50 U.S.C. 3511(c)), as added by subsection (e) of this section, is permissive, the Director of the Agency should promptly use such authority to modify the regulations on death benefits of the Agency to implement such section 11(c);

(4) the Director should not modify such regulations in a manner that limits or reduces the individuals covered by such regulations as in effect on the day before the date of the enactment of this Act; and

(5) upon modifying such regulations, the Director should submit such regulations to the congressional intelligence committees pursuant to section 11(b) of such Act.

(b) CLARIFICATION OF CURRENT AUTHORITY.—Section 8 of the Central Intelligence Agency Act of 1949 (50 U.S.C. 3510) is amended by inserting before ''rental of'' the following: ''payment of death benefits in cases in which the circumstances of the death of an employee of the Agency is not covered by section 11, other similar provisions of Federal law, or any regulation issued by the Director providing death benefits, but that the Director determines such payment appropriate;''.

(c) IMPROVEMENTS TO BENEFITS.—

(1) REQUIREMENTS.—Section 11 of such Act (50 U.S.C. 3511) is amended by adding at the end the following new subsections.

''(C) PAYMENTS.—(1) In carrying out subsection (a), the Director may pay to the survivor of a deceased covered individual an amount equal to one year's salary 5313 of title 5, United States Code.

''(2) A covered individual may designate one or more persons to receive all or a portion of the amount payable to a survivor under paragraph (1). The designation of a person to receive a portion of the amount shall indicate the percentage of the amount, to be specified only in 10 percent increments, that the designated person may receive. The balance of the amount, if any, shall be paid in accordance with subsection (f)(2)(B).

''(d) EXCEPTION.—The Director may not make a payment under subsection (a) if the Director determines that the death was by reason of willful misconduct by the decedent.

''(e) FINALITY.—Any determination made by the Director under this section is final and may not be reviewed.

''(f) DEFINITIONS.—In this section:

''(1) The term 'covered individual' means any of the following individuals who die during a period of assignment to a duty station in a foreign country, regardless of whether the death is the result of injuries sustained while in the performance of duty:

''(A) An employee of the Agency.

''(B) An employee of an element of the Federal Government other than the Agency who is detailed or assigned to the Agency at the time of death.

''(C) An individual affiliated with the Agency, as determined by the Director.

''(2) The term 'State' means each of the several States, the District of Columbia, the Commonwealth of Puerto Rico, the Commonwealth of the Northern Mariana Islands, and any territory or possession of the United States.

''(3) The term 'survivor' means, with respect to the death of a covered individual—

''(A) a person designated by the covered individual under subsection (c)(2); or

''(B) if a covered individual does not make such a designation—

''(i) the surviving spouse of the covered individual, if any;

''(ii) if there is no surviving spouse, any surviving children of the covered individual and the descendants of any deceased children by representation;

''(iii) if there is none of the above, the surviving parents of the covered individual or the survivor of the parents.

''(iv) if there is none of the above, the duly-appointed executor or administrator of the estate of the covered individual; or

''(v) if there is none of the above, other next of kin of the covered individual entitled under the laws of the last State if which the covered individual was domiciled before the covered individual's death.''.

(2) APPLICATION.—Section 11 of such Act, as amended by paragraph (1), shall apply with respect to the following:

(A) Deaths occurring during the period beginning on September 11, 2001, and ending on the day before the date of the enactment of this Act for which the Director of the Central Intelligence Agency has not paid a death benefit to the survivors of the decedent equal to or greater than the amount specified in subsection (c)(1) of such section 11, except that the total of any such death benefits may not exceed such amount specified in subsection (c)(1) of such section 11.

(B) Deaths occurring on or after the date of the enactment of this Act.

(3) DESIGNATIONS.—If the Director carries out subsection (c) of section 11 of such Act, as added by paragraph (1), the Director shall—

(A) request all covered individuals (as defined in such section 11) to make a designation under paragraph (2) of such subsection (c); and

(B) ensure that any new covered individual may make such a designation at the time at which the individual becomes a covered individual.

(d) BRIEFING ON PROVISION OF VA AND DOD HEALTH CARE SERVICES TO CIA OFFICERS.—

(1) FINDINGS.—Congress finds that officers of the Central Intelligence Agency—

(A) serve, and have served, overseas in dangerous areas or austere environments;

(B) may be wounded, incur brain or psychological trauma, or suffer from other chronic injuries as a result of such service; and

(C) face challenges in getting the expert medical and psychological care the officers need when the officers return to the United States.

(2) REQUIREMENT.—Not later than 180 days after the date of the enactment of this Act, the General Counsel of the Central Intelligence Agency and the Deputy Director of the Agency for Operations, in coordination with the Under Secretary of Veterans Affairs for Health and the Director of the Defense Health Agency of the Department of the Defense, shall jointly provide to the appropriate congressional committees a briefing on—

(A) the extent to which the Director of the Agency believes that the officers of the Agency could benefit from health care services provided by the Secretary of Veterans Affairs, the Secretary of Defense, or both;

(B) the legal and policy constraints with respect to providing such services to such officers; and

(C) recommendations with respect to the legislative or regulatory actions that Congress, the Secretary of Veterans Affairs, and the Secretary of Defense could implement to facilitate the provision of such services.

(3) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this subsection, the term ''appropriate congressional committees'' means—

(A) the congressional intelligence committees;

(B) the Committee on Armed Services and the Committee on Veterans' Affairs of the House of Representatives; and

(C) the Committee on Armed Services and the Committee on Veterans' Affairs of the Senate.

TITLE V—MATTERS RELATING TO FOREIGN COUNTRIES

SEC. 501. ANNUAL REPORTS ON INFLUENCE OPERATIONS AND CAMPAIGNS IN THE UNITED STATES BY THE COMMUNIST PARTY OF CHINA.

(a) REPORTS.—Title XI of the National Security Act of 1947 (50 U.S.C. 3231 et seq.), as amended by section 2718, is further amended by adding at the end the following new section:

''SEC. 1106. ANNUAL REPORTS ON INFLUENCE OPERATIONS AND CAMPAIGNS IN THE UNITED STATES BY THE COMMUNIST PARTY OF CHINA.

''(a) REQUIREMENT.—On an annual basis, consistent with the protection of intelligence sources and methods, the Director of the National Counterintelligence and Security Center shall submit to the congressional intelligence committees, the Committee on Foreign Affairs of the House of Representatives, and the Committee on Foreign Relations of the Senate a report on the influence operations and campaigns in the United States conducted by the Communist Party of China.

''(b) CONTENTS.—Each report under subsection (a) shall include the following:

''(1) A description of the organization of the United Front Work Department of the People's Republic of China, or the successors of the United Front Work Department, and the links between the United Front Work Department and the Central Committee of the Communist Party of China.

''(2) An assessment of the degree to which organizations that are associated with or receive funding from the United Front Work Department, particularly such entities operating in the United States, are formally tasked by the Chinese Communist Party or the Government of China.

''(3) A description of the efforts by the United Front Work Department and subsidiary organizations of the United Front Work Department to target, coerce, and influence foreign populations, particularly those of ethnic Chinese descent.

''(4) An assessment of attempts by the Chinese Embassy, consulates, and organizations affiliated with the Chinese Communist Party (including, at a minimum, the United Front Work Department) to influence the United States-based Chinese Student Scholar Associations.

''(5) A description of the evolution of the role of the United Front Work Department under the leadership of the President of China.

''(6) An assessment of the activities of the United Front Work Department designed to influence the opinions of elected leaders of the United States, or candidates for elections in the United States, with respect to issues of importance to the Chinese Communist Party.

''(7) A listing of all known organizations affiliated with the United Front Work Department that are operating in the United States as of the date of the report.

''(8) With respect to reports submitted after the first report, an assessment of the change in goals, tactics, techniques, and procedures of the influence operations and campaigns conducted by the Chinese Communist Party.

''(c) COORDINATION.—In carrying out subsection (a), the Director shall coordinate with the Director of the Federal Bureau of Investigation, the Director of the Central Intelligence Agency, the Director of the National Security Agency, and any other relevant head of an element of the intelligence community.

''(d) FORM.—Each report submitted under subsection (a) shall be submitted in unclassified form, but may include a classified annex.''.

(b) CLERICAL AMENDMENT.—The table of contents in the first section of the National Security Act of 1947, as amended by section 2718, is further amended by inserting after the item relating to section 1105 the following new item:

''Sec. 1106. Annual reports on influence operations and campaigns in the United States by the Communist Party of China.''.

(c) INITIAL REPORT.—The Director of the National Counterintelligence and Security Center shall submit to the congressional intelligence committees, the Committee on Foreign Affairs of the House of Representatives, and the Committee on Foreign Relations of the Senate the first report under section 1106 of the National Security Act of 1947, as added by subsection (a), by not later than 180 days after the date of the enactment of this Act.

SEC. 502. REPORT ON REPRESSION OF ETHNIC MUSLIM MINORITIES IN THE XINJIANG REGION OF THE PEOPLE'S REPUBLIC OF CHINA.

(a) REPORT.—Not later than 150 days after the date of the enactment of this Act, consistent with the protection of intelligence sources and methods, the Director of National Intelligence shall submit to the congressional intelligence committees, the Committee on Foreign Affairs of the House of Representatives, and the Committee on Foreign Relations of the Senate a report on activity by the People's Republic of China to repress ethnic Muslim minorities in the Xinjiang region of China.

(b) CONTENTS.—The report under subsection (a) shall include the following:

(1) An assessment of the number of individuals detained in ''political reeducation camps'', and the conditions in such camps for detainees, in the Xinjiang region of China, including whether detainees endure torture, forced renunciation of faith, or other mistreatment.

(2) A description, as possible, of the geographic location of such camps.

(3) A description, as possible, of the methods used by China to ''reeducate'' detainees and the elements of China responsible for such ''reeducation''.

(4) A description of any forced labor in such camps, and any labor performed in regional factories for low wages under the threat of being sent back to ''political reeducation camps''.

(5) An assessment of the level of access China grants to foreign persons observing the situation in Xinjiang and a description of measures used to impede efforts to monitor the conditions in Xinjiang.

(6) An assessment of the surveillance, detection, and control methods used by China to target ethnic minorities, including new ''high-tech'' policing models and a description of any civil liberties or privacy protections provided under such models.

(c) COORDINATION.—The Director of National Intelligence shall carry out subsection (a) in coordination with the Director of the Central Intelligence Agency, the Director of the National Security Agency, the Director of the National Geospatial-Intelligence Agency, and the head of any other agency of the Federal Government that the Director of National Intelligence determines appropriate.

(d) FORM.—The report submitted under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

SEC. 503. REPORT ON EFFORTS BY PEOPLE'S REPUBLIC OF CHINA TO INFLUENCE ELECTION IN TAIWAN.

(a) REPORT.—Consistent with section 3(c) of the Taiwan Relations Act (Public Law 96–8; 22 U.S.C. 3302(c)), and consistent with the protection of intelligence sources and methods, not later than 45 days after the date of the election

for the President and Vice President of Taiwan in 2020, the Director of National Intelligence shall submit to the congressional intelligence committees, the Committee on Foreign Affairs of the House of Representatives, and the Committee on Foreign Relations of the Senate a report on any—

(1) influence operations conducted by China to interfere in or undermine such election; and

(2) efforts by the United States to disrupt such operations.

(b) ELEMENTS.—The report under subsection (a) shall include the following:

(1) A description of any significant efforts by the intelligence community to coordinate technical and material support for Taiwan to identify, disrupt, and combat influence operations specified in subsection (a)(1).

(2) A description of any efforts by the United States Government to build the capacity of Taiwan to disrupt external efforts that degrade a free and fair election process.

(3) An assessment of whether and to what extent China conducted influence operations specified in subsection (a)(1), and, if such operations occurred—

(A) a comprehensive list of specific governmental and nongovernmental entities of China that were involved in supporting such operations and a description of the role of each such entity; and

(B) an identification of any tactics, techniques, and procedures used in such operations.

(c) FORM.—The report under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

SEC. 504. ASSESSMENT OF LEGITIMATE AND ILLEGITIMATE FINANCIAL AND OTHER ASSETS OF VLADIMIR PUTIN.

(a) SENSE OF CONGRESS.—It is the sense of Congress that the United States should do more to expose the corruption of Vladimir Putin, whose ill-gotten wealth is perhaps the most powerful global symbol of his dishonesty and his persistent efforts to undermine the rule of law and democracy in the Russian Federation.

(b) ASSESSMENT.—Not later than 180 days after the date of the enactment of this Act, consistent with the protection of intelligence sources and methods, the Director of National Intelligence shall submit to the appropriate congressional committees an assessment, based on all sources of intelligence, on the net worth and financial and other assets, legitimate as well as illegitimate, of Russian President Vladimir Putin and his family members, including—

(1) the estimated net worth of Vladimir Putin and his family members;

(2) a description of their legitimately and illegitimately obtained assets, including all real, personal, and intellectual property, bank or investment or similar accounts, and any other financial or business interests or holdings, including those outside of Russia;

(3) the details of the legitimately and illegitimately obtained assets, including real, personal, and intellectual property, bank or investment or similar accounts, and any other financial or business interests or holdings, including those outside of Russia, that are owned or controlled by, accessible to, or otherwise maintained for the benefit of Vladimir Putin, including their nature, location, manner of acquisition, value, and publicly named owner (if other than Vladimir Putin);

(4) the methods used by Vladimir Putin or others acting at his direction, with his knowledge, or for his benefit, to conceal Putin's interest in his accounts, holdings, or other assets, including the establishment of ''front'' or shell companies and the use of intermediaries; and

(5) an identification of the most significant senior Russian political figures, oligarchs, and any other persons who have engaged in activity intended to conceal the true financial condition of Vladimir Putin.

(c) FORM.—The assessment required under subsection (b) shall be submitted either—

(1) in unclassified form to the extent consistent with the protection of intelligence sources and methods, and may include a classified annex; or

(2) simultaneously as both an unclassified version and a classified version.

(d) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the Select Committee on Intelligence, the Committee on Foreign Relations, the Committee on Banking, Housing, and Urban Affairs, and the Committee on Finance of the Senate; and

(2) the Permanent Select Committee on Intelligence, Committee on Foreign Affairs, the Committee on Financial Services, and the Committee on Ways and Means of the House of Representatives.

SEC. 505. ASSESSMENTS OF INTENTIONS OF POLITICAL LEADERSHIP OF THE RUSSIAN FEDERATION.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, consistent with the protection of intelligence sources and methods, the Director of National Intelligence, and the head of any element of the intelligence community that the Director determines appropriate, shall submit to the appropriate congressional committees each of the assessments described in subsection (b).

(b) ASSESSMENTS DESCRIBED.—The assessments described in this subsection are assessments based on intelligence obtained from all sources that assess the current intentions of the political leadership of the Russian Federation with respect to the following:

(1) Potential military action against members of the North Atlantic Treaty Organization (NATO).

(2) Potential responses to an enlarged United States or NATO military presence in eastern Europe or to increased United States military support for allies and partners in the region, such as the provision of additional lethal military equipment to Ukraine or Georgia.

(3) Potential actions taken for the purpose of exploiting perceived divisions among the governments of Russia's Western adversaries.

(c) FORM.—Each assessment required under subsection (a) may be submitted in classified form but shall also include an unclassified executive summary, consistent with the protection of intelligence sources and methods.

(d) APPROPRIATE CONGRESSIONAL COMMITTEES.—In this section, the term ''appropriate congressional committees'' means—

(1) the Permanent Select Committee on Intelligence, the Committee on Foreign Affairs, and the Committee on Armed Services of the House of Representatives; and

(2) the Select Committee on Intelligence, the Committee on Foreign Relations, and the Committee on Armed Services of the Senate.

SEC. 506. REPORT ON DEATH OF JAMAL KHASHOGGI.

(a) IN GENERAL.—Not later than 30 days after the date of the enactment of this Act, consistent with the protection of intelligence sources and methods, the Director of National Intelligence shall submit to the congressional intelligence committees, the Committee on Foreign Affairs of the House of Representatives, and the Committee on Foreign Relations of the Senate a report on the death of Jamal Khashoggi. Such report shall include identification of those who carried out, participated in, ordered, or were otherwise complicit in or responsible for the death of Jamal Khashoggi, to the extent consistent with the protection of sources and methods.

(b) FORM.—The report submitted under subsection (a) shall be submitted in unclassified form.

TITLE VI—FEDERAL EFFORTS AGAINST DOMESTIC TERRORISM

SEC. 601. DEFINITIONS.

In this title:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Permanent Select Committee on Intelligence, the Committee on Homeland Security, and the Committee on the Judiciary of the House of Representatives; and

(B) the Select Committee on Intelligence, the Committee on Homeland Security and Governmental Affairs, and the Committee on the Judiciary of the Senate.

(2) DOMESTIC TERRORISM.—The term ''domestic terrorism'' has the meaning given that term in section 2331 of title 18, United States Code.

(3) HATE CRIME.—The term ''hate crime'' means a criminal offense under—

(A) sections 241, 245, 247, and 249 of title 18, United States Code; and

(B) section 3631 of title 42, United States Code.

(4) INTERNATIONAL TERRORISM.—The term ''international terrorism'' has the meaning given that term in section 2331 of title 18, United States Code.

(5) TERMS IN ATTORNEY GENERAL'S GUIDELINES FOR DOMESTIC FBI OPERATIONS.—The terms ''assessments'', ''full investigations'', ''enterprise investigations'',''predicated investigations'', and ''preliminary investigations'' have the meanings given those terms in the most recent, approved version of the Attorney General's Guidelines for Domestic FBI Operations (or successor).

(6) TERMS IN FBI BUDGET MATERIALS.—The terms ''Consolidated Strategy Guide'', ''Field Office Strategic Plan'', ''Integrated Program Management Process'', and ''Threat Review and Prioritization'' have the meanings given those terms in the materials submitted to Congress by the Attorney General in support of the Federal Bureau of Investigation budget for fiscal year 2020.

(7) TERRORISM.—The term ''terrorism'' includes domestic terrorism and international terrorism.

(8) TERRORISM INFORMATION.—The term ''terrorism information'' has the meaning given that term in section 1016(a) of the Intelligence Reform and Terrorism Prevention Act of 2004 (6 U.S.C. 485).

(9) TIME UTILIZATION AND RECORDKEEPING DATA.—The term ''time utilization and recordkeeping data'' means data collected on resource utilization and workload activity of personnel of the Federal Bureau of Investigation in accordance with Federal law.

SEC. 602. ANNUAL STRATEGIC INTELLIGENCE ASSESSMENT OF AND COMPREHENSIVE REPORT ON DOMESTIC TERRORISM.

(a) REPORT REQUIRED.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter through 2025, the Director of National Intelligence, the Director of the Federal Bureau of Investigation, and the Under Secretary of Homeland Security for Intelligence and Analysis shall jointly submit to the appropriate congressional committees a report on domestic terrorism containing the following:

(A) Strategic intelligence assessment under subsection (b).

(B) Discussion of activities under subsection (c).

(C) Data on domestic terrorism under subsection (d).

(2) RESPONSIBILITIES.—

(A) COORDINATION OF REPORTS AND INTEGRATION OF INFORMATION.—The Director of National Intelligence, acting through the Director of the National Counterterrorism Center, shall be the lead official for coordinating the production of and integrating terrorism information into—

(i) each report under paragraph (1); and

(ii) each strategic intelligence assessment under subsection (b).

(B) INFORMATION SHARING.—The Director of the Federal Bureau of Investigation and the Under Secretary of Homeland Security for Intelligence and Analysis shall provide to the Director of the National Counterterrorism Center all

appropriate information requested by the Director of the National Counterterrorism Center to carry out this section.

(b) STRATEGIC INTELLIGENCE ASSESSMENT.—The Director of National Intelligence, the Director of the Federal Bureau of Investigation, and the Under Secretary of Homeland Security for Intelligence and Analysis shall include—

(1) in the first report under subsection (a)(1), a strategic intelligence assessment of domestic terrorism in the United States during fiscal years 2017, 2018, and 2019; and

(2) in each subsequent report under such subsection, a strategic intelligence assessment of domestic terrorism in the United States during the prior fiscal year.

(c) DISCUSSION OF ACTIVITIES.—Each report under subsection (a)(1) shall discuss and compare the following:

(1) The criteria for opening, managing, and closing domestic and international terrorism investigations by the Federal Government.

(2) Standards and procedures for the Federal Bureau of Investigation, the Office of Intelligence and Analysis of the Department of Homeland Security, and the National Counterterrorism Center, with respect to the review, prioritization, and mitigation of domestic and international terrorism threats in the United States.

(3) The planning, development, production, analysis, and evaluation by the United States Government of intelligence products relating to terrorism, including both raw and finished intelligence.

(4) The sharing of information relating to domestic and international terrorism by and between—

(A) the Federal Government;

(B) State, local, Tribal, territorial, and foreign governments;

(C) the appropriate congressional committees;

(D) non-governmental organizations; and

(E) the private sector.

(5) The criteria and methodology used by the Federal Bureau of Investigation, the Office of Intelligence and Analysis of the Department of Homeland Security, and the National Counterterrorism Center, to identify or assign terrorism classifications to incidents of terrorism or investigations of terrorism, including—

(A) a comparison of the criteria and methodology used with respect to domestic terrorism and international terrorism;

(B) the identification of any changes made to investigative classifications; and

(C) a discussion of the rationale for any changes identified under subparagraph (B).

(d) DATA ON DOMESTIC TERRORISM.—

(1) DATA REQUIRED.—The Director of National Intelligence, the Director of the Federal Bureau of Investigation, and the Under Secretary of Homeland Security for Intelligence and Analysis shall include in each report under subsection (a)(1) the following data:

(A) For each completed or attempted incident of domestic terrorism that has occurred in the United States during the applicable period—

(i) a description of such incident;

(ii) the number and type of completed and attempted Federal non-violent crimes committed during such incident;

(iii) the number and type of completed and attempted Federal and State property crimes committed during such incident, including an estimate of economic damages resulting from such crimes; and

(iv) the number and type of completed and attempted Federal violent crimes committed during such incident, including the number of people injured or killed as a result of such crimes.

(B) For the applicable period—

(i) an identification of each assessment, preliminary investigation, full investigation, and enterprise investigation with a nexus to domestic terrorism opened, pending, or closed by the Federal Bureau of Investigation;

(ii) the number of assessments or investigations identified under clause (i) associated with each domestic terrorism investigative classification (including subcategories);

(iii) the number and domestic terrorism investigative classification (including subcategories) with respect to such investigations initiated as a result of a referral or investigation by a State, local, Tribal, territorial, or foreign government of a hate crime;

(iv) the number of Federal criminal charges with a nexus to domestic terrorism, including the number of indictments and complaints associated with each domestic terrorism investigative classification (including subcategories), a summary of the allegations contained in each such indictment, the disposition of the prosecution, and, if applicable, the sentence imposed as a result of a conviction on such charges;

(v) referrals of incidents of domestic terrorism by State, local, Tribal, or territorial governments to departments or agencies of the Federal Government for investigation or prosecution, including the number of such referrals associated with each domestic terrorism investigation classification (including any subcategories), and a summary of each such referral that includes the rationale for such referral and the disposition of the applicable Federal investigation or prosecution;

(vi) intelligence products produced by the intelligence community relating to domestic terrorism, including—

(I) the number of such products associated with each domestic terrorism investigative classification (including any subcategories); and

(II) with respect to the Federal Bureau of Investigation, at a minimum, all relevant data available through the Integrated Program Management Process;

(vii) with respect to the National Counterterrorism Center, the number of staff (expressed in terms of full-time equivalents and positions) working on matters relating to domestic terrorism described in clauses (i) through (vi); and

(viii) with respect to the Federal Bureau of Investigation—

(I) the number of staff (expressed in terms of full-time equivalents and positions) working on matters relating to domestic terrorism described in clauses (i) through (vi); and

(II) a summary of time utilization and record-keeping data for personnel working on such matters, including the number or percentage of such personnel associated with each domestic terrorism investigative classification (including any subcategories) in the FBI Headquarters Operational Divisions and Field Divisions.

(2) APPLICABLE PERIOD.—For purposes of this subsection, the applicable period is the following:

(A) For the first report required under subsection (a)(1)—

(i) with respect to the data described in paragraph (1)(A) of this subsection, the period on or after April 19, 1995; and

(ii) with respect to the data described in paragraph (1)(B) of this subsection, each of fiscal years 2017, 2018, and 2019.

(B) For each subsequent report required under subsection (a)(1), the prior fiscal year.

(e) PROVISION OF OTHER DOCUMENTS AND MATERIALS.—

(1) IN GENERAL.—Together with each report under subsection (a)(1), the Director of National Intelligence, the Director of the Federal Bureau of Investigation, and the Under Secretary of Homeland Security for Intelligence and Analysis shall also submit to the appropriate congressional committees the following documents and materials:

(A) With respect to the Federal Bureau of Investigation, at a minimum, the most recent, approved versions of—

(i) the Attorney General's Guidelines for Domestic FBI Operations (or any successor);

(ii) the FBI Domestic Investigations and Operations Guide (or any successor);

(iii) the FBI Counterterrorism Policy Guide (or any successor);

(iv) materials relating to terrorism within the Threat Review and Prioritization process for the headquarters and field divisions of the Federal Bureau of Investigation;

(v) the Consolidated Strategy Guide (or any successor); and

(vi) the Field Office Strategic Plans (or any successor).

(B) With respect to the intelligence community, each finished intelligence product described in subsection (d)(1)(B)(vi).

(2) NONDUPLICATION.—If any documents or materials required under paragraph (1) have been previously submitted to the appropriate congressional committees under such paragraph and have not been modified since such submission, the Director of National Intelligence, the Director of the Federal Bureau of Investigation, and the Under Secretary of Homeland Security for Intelligence and Analysis may provide a list of such documents or materials in lieu of making the submission under paragraph (1) for those documents or materials.

(f) FORMAT.—The information required under subsection (d) may be provided in a format that uses the marking associated with the Central Records System (or any successor system) of the Federal Bureau of Investigation.

(g) CLASSIFICATION AND PUBLIC RELEASE.—Each report under subsection (a) shall be—

(1) unclassified, but may contain a classified annex;

(2) with respect to the unclassified portion of the report, made available on the public internet website of the National Counterterrorism Center in an electronic format that is fully indexed and searchable; and

(3) with respect to a classified annex, submitted to the appropriate congressional committees in an electronic format that is fully indexed and searchable.

TITLE VII—REPORTS AND OTHER MATTERS

SEC. 701. MODIFICATION OF REQUIREMENTS FOR SUBMISSION TO CONGRESS OF CERTAIN REPORTS.

(a) MODIFICATION OF REPORTS RELATING TO GUANTANAMO BAY.—

(1) MODIFICATION.—Section 506I(b) of the National Security Act of 1947 (50 U.S.C. 3105(b)) is amended by striking ''once every 6 months'' and inserting ''annually''.

(2) MODIFICATION.—Section 319(a) of the Supplemental Appropriations Act, 2009 (10 U.S.C. 801 note) is amended by striking ''every 90 days'' and inserting ''annually''.

(3) REPEAL.—Section 601 of the Intelligence Authorization Act for Fiscal Year 2017 (division N of Public Law 115–31; 131 Stat. 827) is repealed.

(b) MODIFICATION TO REPORTS ON ANALYTIC INTEGRITY.—Subsection (c) of section 1019 of the Intelligence Reform and Terrorism Prevention Act of 2004 (50 U.S.C. 3364) is amended—

(1) in the heading, by striking ''REPORTS'' and inserting ''BRIEFINGS''; and

(2) by striking ''submit to the congressional intelligence committees, the heads of the relevant elements of the intelligence community, and the heads of analytic training departments a report containing'' and inserting ''provide to the congressional intelligence committees, the heads of the relevant elements of the intelligence community, and the heads of analytic training departments a briefing with''.

(c) REPEAL OF REPORTS RELATING TO INTELLIGENCE FUNCTIONS.—Section 506J of the National Security Act of 1947 (50 U.S.C. 3105a) is repealed and the table of contents in the first section of such Act is amended by striking the item relating to section 506J.

(d) REPEAL OF REPORTS RELATING TO CUBA.—Section 108 of the Cuban Liberty and Democratic Solidarity (LIBERTAD) Act of 1996 (22 U.S.C. 6038) is repealed.

(e) REPEAL OF REPORTS RELATING TO ENTERTAINMENT INDUSTRY.—Section 308 of the Intelligence Authorization Act for Fiscal Year 2017 (50 U.S.C. 3332) is amended—

(1) in subsection (b)(2)—

(A) by striking ''paragraph (1) shall—'' and all that follows through ''permit an element'' and insert ''paragraph (1) shall permit an element'';

(B) by striking ''approval; and'' and inserting ''approval.''; and

(C) by striking subparagraph (B); and

(2) by striking subsection (c).

SEC. 702. INCREASED TRANSPARENCY REGARDING COUNTERTERRORISM BUDGET OF THE UNITED STATES.

(a) FINDINGS.—Congress finds the following:

(1) Consistent with section 601(a) of the Implementing Recommendations of the 9/11 Commission Act of 2007 (50 U.S.C. 3306(a)), the recent practice of the intelligence community has been to release to the public—

(A) around the date on which the President submits to Congress a budget for a fiscal year pursuant to section 1105 of title 31, United States Code, the ''top-line'' amount of total funding requested for the National Intelligence Program for such fiscal year; and

(B) the amount of requested and appropriated funds for the National Intelligence Program and Military Intelligence Program for certain prior fiscal years, consistent with the protection of intelligence sources and methods.

(2) The Directorate of Strategic Operational Planning of the National Counterterrorism Center is responsible for producing an annual National Counterterrorism Budget report, which examines the alignment of intelligence and other resources in the applicable fiscal year budget with the counterterrorism goals and areas of focus in the National Strategy for Counterterrorism.

(b) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) despite the difficulty of compiling and releasing to the public comprehensive information on the resource commitments of the United States to counterterrorism activities and programs, including with respect to such activities and programs of the intelligence community, the United States Government could take additional steps to enhance the understanding of the public with respect to such resource commitments, in a manner consistent with the protection of intelligence sources and methods and other national security interests; and

(2) the United States Government should release to the public as much information as possible regarding the funding of counterterrorism activities and programs, including activities and programs of the intelligence community, in a manner consistent with the protection of intelligence sources and methods and other national security interests.

(c) BRIEFING ON PUBLIC RELEASE OF INFORMATION.—

(1) REQUIREMENT.—Not later than 90 days after the date of the enactment of this Act, and not later than 90 days after the beginning of each fiscal year thereafter, the President shall ensure that the congressional intelligence committees receive a briefing from appropriate personnel of the United States Government on the feasibility of releasing to the public additional information relating to counterterrorism efforts of the intelligence community.

(2) ELEMENTS.—Each briefing required by paragraph (1) shall include a discussion of the feasibility of—

(A) subject to paragraph (3), releasing to the public the National Counterterrorism Budget report described in subsection (a)(2) for the prior fiscal year; and

(B) declassifying other reports, documents, or activities of the intelligence community relating to counterterrorism and releasing such information to the public in a manner consistent with the protection of intelligence sources and methods and other national security interests.

(3) RELEASE OF NATIONAL COUNTERTERRORISM BUDGET REPORT.—The President may satisfy the requirement under paragraph (2)(A) during a fiscal year by, not later than 90 days after the beginning of the fiscal year, releasing to the public the National Counterterrorism Budget report (with any redactions the Director determines necessary to protect intelligence sources and methods and other national security interests) for the prior fiscal year.

SEC. 703. TASK FORCE ON ILLICIT FINANCING OF ESPIONAGE AND FOREIGN INFLUENCE OPERATIONS.

(a) ESTABLISHMENT.—Not later than 30 days after the date of the enactment of this Act, the Director of National Intelligence shall establish a task force to study and assess the illicit financing of espionage and foreign influence operations directed at the United States.

(b) MEMBERSHIP.—The task force shall be composed of the following individuals (or designees of the individual):

(1) The Director of the Central Intelligence Agency.

(2) The Director of the Federal Bureau of Investigation.

(3) The Assistant Secretary of the Treasury for Intelligence and Analysis.

(4) The Assistant Secretary of State for Intelligence and Research.

(5) Such other heads of the elements of the intelligence community that the Director of National Intelligence determines appropriate.

(c) CHAIRPERSON; MEETINGS.—

(1) CHAIRPERSON.—The Director of National Intelligence shall appoint a senior official within the Office of the Director of National Intelligence to serve as the chairperson of the task force.

(2) MEETINGS.—The task force shall meet regularly but not less frequently than on a quarterly basis.

(d) REPORTS.—

(1) INITIAL REPORT.—Not later than 180 days after the date of the enactment of this Act, the task force shall submit to the appropriate congressional committees a report on the illicit financing of espionage and foreign influence operations directed at the United States. The report shall address the following:

(A) The extent of the collection by the intelligence community, from all sources (including the governments of foreign countries), of intelligence and information relating to illicit financing of espionage and foreign influence operations directed at the United States, and any gaps in such collection.

(B) Any specific legal, regulatory, policy, or other prohibitions, or financial, human, technical, or other resource limitations or constraints, that have affected the ability of the Director of National Intelligence or other heads of relevant elements of the intelligence community in collecting or analyzing intelligence or information relating to illicit financing of espionage and foreign influence operations directed at the United States.

(C) The methods, as of the date of the report, by which hostile governments of foreign countries or foreign organizations, and any groups or persons acting on behalf of or with the support of such governments or organizations, seek to disguise or obscure relationships between such governments, organizations, groups, or persons and United States persons, for the purpose of conducting espionage or foreign influence operations directed at the United States, including by exploiting financial laws, systems, or instruments, of the United States.

(D) The existing practices of the intelligence community for ensuring that intelligence and information relating to the illicit financing of espionage and foreign influence operations is analyzed and shared with other elements of the intelligence community, and any recommendations for improving such analysis and sharing.

(2) ANNUAL UPDATE.—Not later than November 1, 2020, and each year thereafter through the date specified in subsection (e), the task force shall submit to the appropriate congressional committees an update on the report under paragraph (1).

(3) FORM.—Each report submitted under this subsection may be submitted in classified form, but if submitted in such form, shall include an unclassified summary.

(e) TERMINATION.—The task force shall terminate on January 1, 2025.

(f) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means the following:

(1) The congressional intelligence committees.

(2) The Committee on Foreign Affairs and the Committee on Financial Services of the House of Representatives.

(3) The Committee on Foreign Relations and the Committee on Banking, Housing, and Urban Affairs of the Senate.

SEC. 704. STUDY ON ROLE OF RETIRED AND FORMER PERSONNEL OF INTELLIGENCE COMMUNITY WITH RESPECT TO CERTAIN FOREIGN INTELLIGENCE OPERATIONS.

(a) STUDY.—The Director of National Intelligence shall conduct a study on former intelligence personnel providing covered intelligence assistance.

(b) ELEMENTS.—The study under subsection (a) shall include the following:

(1) An identification of, and discussion of the effectiveness of, existing laws, policies, procedures, and other measures relevant to the ability of elements of the intelligence community to prevent former intelligence personnel from providing covered intelligence assistance—

(A) without proper authorization; or

(B) in a manner that would violate legal or policy controls if the personnel performed such assistance while working for the United States Government; and

(2) Make recommendations for such legislative, regulatory, policy, or other changes as may be necessary to ensure that the United States consistently meets the objectives described in paragraph (1).

(c) REPORT AND PLAN.—Not later than 90 days after the date of the enactment of this Act, the Director shall submit to the congressional intelligence committees—

(1) a report on the findings of the Director with respect to each element of the study under subsection (a); and

(2) a plan to implement any recommendations made by the Director that the Director may implement without changes to Federal law.

(d) FORM.—The report and plan under subsection (c) may be submitted in classified form.

(e) DEFINITIONS.—In this section:

(1) COVERED INTELLIGENCE ASSISTANCE.—The term ''covered intelligence assistance'' means assistance—

(A) provided by former intelligence personnel directly to, or for the benefit of, the government of a foreign country or indirectly to, or for the benefit of, such a government through a company or other entity; and

(B) that relates to intelligence or law enforcement activities of a foreign country, including with respect to operations that involve abuses of human rights, violations of the laws of the United States, or infringements on the privacy rights of United States persons.

(2) FORMER INTELLIGENCE PERSONNEL.—The term ''former intelligence personnel'' means retired or former personnel of the intelligence community, including civilian employees of elements of the intelligence community, members of the Armed Forces, and contractors of elements of the intelligence community.

SEC. 705. REPORT BY DIRECTOR OF NATIONAL INTELLIGENCE ON FIFTH-GENERATION WIRELESS NETWORK TECHNOLOGY.

(a) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional intelligence committees a report on—

(1) the threat to the national security of the United States posed by the global and regional adoption of fifth-generation wireless network

(in this section referred to as ''5G wireless network'') technology built by foreign companies; and

(2) possible efforts to mitigate the threat.

(b) CONTENTS.—The report under subsection (a) shall include—

(1) the timeline and scale of global and regional adoption of foreign 5G wireless network technology;

(2) the implications of such global and regional adoption on the cyber and espionage threat to the United States, the interests of the United States, and the cyber and collection capabilities of the United States; and

(3) the effect of possible mitigation efforts, including with respect to—

(A) a policy of the United States Government promoting the use of strong, end-to-end encryption for data transmitted over 5G wireless networks;

(B) a policy of the United States Government promoting or funding free, open-source implementation of 5G wireless network technology;

(C) subsidies or incentives provided by the United States Government that could be used to promote the adoption of secure 5G wireless network technology developed by companies of the United States or companies of allies of the United States; and

(D) a strategy by the United States Government to reduce foreign influence and political pressure in international standard-setting bodies.

(c) FORM.—The report submitted under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

SEC. 706. ESTABLISHMENT OF 5G PRIZE COMPETITION.

(a) PRIZE COMPETITION.—Pursuant to section 24 of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3719), the Director of National Intelligence, acting through the Director of the Intelligence Advanced Research Projects Agency, shall carry out a program to award prizes competitively to stimulate research and development relevant to 5G technology.

(b) PRIZE AMOUNT.—In carrying out the program under subsection (a), the Director may award not more than a total of $5,000,000 to one or more winners of the prize competition.

(c) CONSULTATION.—In carrying out the program under subsection (a), the Director may consult with the heads of relevant departments and agencies of the Federal Government.

(d) 5G TECHNOLOGY DEFINED.—In this section, the term ''5G technology'' means hardware, software, or other technologies relating to fifth-generation wireless networks.

SEC. 707. ESTABLISHMENT OF DEEPFAKES PRIZE COMPETITION.

(a) PRIZE COMPETITION.—Pursuant to section 24 of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3719), the Director of National Intelligence, acting through the Director of the Intelligence Advanced Research Projects Agency, shall carry out a program to award prizes competitively to stimulate the research, development, or commercialization of technologies to automatically detect machine-manipulated media.

(b) PRIZE AMOUNT.—In carrying out the program under subsection (a), the Director may award not more than a total of $5,000,000 to one or more winners of the prize competition.

(c) CONSULTATION.—In carrying out the program under subsection (a), the Director may consult with the heads of relevant departments and agencies of the Federal Government.

(d) MACHINE-MANIPULATED MEDIA DEFINED.—In this section, the term ''machine-manipulated media'' means video, image, or audio recordings generated or substantially modified using machine-learning techniques in order to falsely depict events, to falsely depict the speech or conduct of an individual, or to depict individuals who do not exist.

DIVISION B—INTELLIGENCE AUTHORIZATIONS FOR FISCAL YEARS 2018 AND 2019

TITLE XXI—INTELLIGENCE ACTIVITIES

SEC. 2101. AUTHORIZATION OF APPROPRIATIONS.

(a) FISCAL YEAR 2019.—Funds are hereby authorized to be appropriated for fiscal year 2019 for the conduct of the intelligence and intelligence-related activities of the following elements of the United States Government:

(1) The Office of the Director of National Intelligence.

(2) The Central Intelligence Agency.

(3) The Department of Defense.

(4) The Defense Intelligence Agency.

(5) The National Security Agency.

(6) The Department of the Army, the Department of the Navy, and the Department of the Air Force.

(7) The Coast Guard.

(8) The Department of State.

(9) The Department of the Treasury.

(10) The Department of Energy.

(11) The Department of Justice.

(12) The Federal Bureau of Investigation.

(13) The Drug Enforcement Administration.

(14) The National Reconnaissance Office.

(15) The National Geospatial-Intelligence Agency.

(16) The Department of Homeland Security.

(b) FISCAL YEAR 2018.—Funds that were appropriated for fiscal year 2018 for the conduct of the intelligence and intelligence-related activities of the elements of the United States set forth in subsection (a) are hereby authorized.

SEC. 2102. CLASSIFIED SCHEDULE OF AUTHORIZATIONS.

(a) SPECIFICATIONS OF AMOUNTS.—The amounts authorized to be appropriated under section 2101 for the conduct of the intelligence activities of the elements listed in paragraphs (1) through (16) of section 2101, are those specified in the classified Schedule of Authorizations prepared to accompany this Act.

(b) AVAILABILITY OF CLASSIFIED SCHEDULE OF AUTHORIZATIONS.—

(1) AVAILABILITY.—The classified Schedule of Authorizations referred to in subsection (a) shall be made available to the Committee on Appropriations of the Senate, the Committee on Appropriations of the House of Representatives, and to the President.

(2) DISTRIBUTION BY THE PRESIDENT.—Subject to paragraph (3), the President shall provide for suitable distribution of the classified Schedule of Authorizations referred to in subsection (a), or of appropriate portions of such Schedule, within the executive branch.

(3) LIMITS ON DISCLOSURE.—The President shall not publicly disclose the classified Schedule of Authorizations or any portion of such Schedule except—

(A) as provided in section 601(a) of the Implementing Recommendations of the 9/11 Commission Act of 2007 (50 U.S.C. 3306(a));

(B) to the extent necessary to implement the budget; or

(C) as otherwise required by law.

SEC. 2103. INTELLIGENCE COMMUNITY MANAGEMENT ACCOUNT.

(a) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated for the Intelligence Community Management Account of the Director of National Intelligence for fiscal year 2019 the sum of $522,424,000.

(b) CLASSIFIED AUTHORIZATION OF APPROPRIATIONS.—In addition to amounts authorized to be appropriated for the Intelligence Community Management Account by subsection (a), there are authorized to be appropriated for the Intelligence Community Management Account for fiscal year 2019 such additional amounts as are specified in the classified Schedule of Authorizations referred to in section 2102(a).

TITLE XXII—CENTRAL INTELLIGENCE AGENCY RETIREMENT AND DISABILITY SYSTEM

SEC. 2201. AUTHORIZATION OF APPROPRIATIONS.

There is authorized to be appropriated for the Central Intelligence Agency Retirement and Disability Fund $514,000,000 for fiscal year 2019.

SEC. 2202. COMPUTATION OF ANNUITIES FOR EMPLOYEES OF THE CENTRAL INTELLIGENCE AGENCY.

(a) COMPUTATION OF ANNUITIES.—

(1) IN GENERAL.—Section 221 of the Central Intelligence Agency Retirement Act (50 U.S.C. 2031) is amended—

(A) in subsection (a)(3)(B), by striking the period at the end and inserting '', as determined by using the annual rate of basic pay that would be payable for full-time service in that position.'';

(B) in subsection (b)(1)(C)(i), by striking ''12-month'' and inserting ''2-year'';

(C) in subsection (f)(2), by striking ''one year'' and inserting ''two years'';

(D) in subsection (g)(2), by striking ''one year'' each place such term appears and inserting ''two years'';

(E) by redesignating subsections (h), (i), (j), (k), and (l) as subsections (i), (j), (k), (l), and (m), respectively; and

(F) by inserting after subsection (g) the following:

''(h) CONDITIONAL ELECTION OF INSURABLE INTEREST SURVIVOR ANNUITY BY PARTICIPANTS MARRIED AT THE TIME OF RETIREMENT.—

''(1) AUTHORITY TO MAKE DESIGNATION.—Subject to the rights of former spouses under subsection (b) and section 222, at the time of retirement a married participant found by the Director to be in good health may elect to receive an annuity reduced in accordance with subsection (f)(1)(B) and designate in writing an individual having an insurable interest in the participant to receive an annuity under the system after the participant's death, except that any such election to provide an insurable interest survivor annuity to the participant's spouse shall only be effective if the participant's spouse waives the spousal right to a survivor annuity under this Act. The amount of the annuity shall be equal to 55 percent of the participant's reduced annuity.

''(2) REDUCTION IN PARTICIPANT'S ANNUITY.—The annuity payable to the participant making such election shall be reduced by 10 percent of an annuity computed under subsection (a) and by an additional 5 percent for each full 5 years the designated individual is younger than the participant. The total reduction under this subparagraph may not exceed 40 percent.

''(3) COMMENCEMENT OF SURVIVOR ANNUITY.—The annuity payable to the designated individual shall begin on the day after the retired participant dies and terminate on the last day of the month before the designated individual dies.

''(4) RECOMPUTATION OF PARTICIPANT'S ANNUITY ON DEATH OF DESIGNATED INDIVIDUAL.—An annuity that is reduced under this subsection shall, effective the first day of the month following the death of the designated individual, be recomputed and paid as if the annuity had not been so reduced.''.

(2) CONFORMING AMENDMENTS.—

(A) CENTRAL INTELLIGENCE AGENCY RETIREMENT ACT.—The Central Intelligence Agency Retirement Act (50 U.S.C. 2001 et seq.) is amended—

(i) in section 232(b)(1) (50 U.S.C. 2052(b)(1)), by striking ''221(h),'' and inserting ''221(i),''; and

(ii) in section 252(h)(4) (50 U.S.C. 2082(h)(4)), by striking ''221(k)'' and inserting ''221(l)''.

(B) CENTRAL INTELLIGENCE AGENCY ACT OF 1949.—Subsection (a) of section 14 of the Central Intelligence Agency Act of 1949 (50 U.S.C. 3514(a)) is amended by striking ''221(h)(2), 221(i), 221(l),'' and inserting ''221(i)(2), 221(j), 221(m),''.

(b) ANNUITIES FOR FORMER SPOUSES.—Subparagraph (B) of section 222(b)(5) of the Central Intelligence Agency Retirement Act (50 U.S.C. 2032(b)(5)(B)) is amended by striking ''one year'' and inserting ''two years''.

(c) PRIOR SERVICE CREDIT.—Subparagraph (A) of section 252(b)(3) of the Central Intelligence Agency Retirement Act (50 U.S.C. 2082(b)(3)(A)) is amended by striking ''October 1, 1990'' both places that term appears and inserting ''March 31, 1991''.

(d) REEMPLOYMENT COMPENSATION.—Section 273 of the Central Intelligence Agency Retirement Act (50 U.S.C. 2113) is amended—

(1) by redesignating subsections (b) and (c) as subsections (c) and (d), respectively; and

(2) by inserting after subsection (a) the following:

''(b) PART-TIME REEMPLOYED ANNUITANTS.—The Director shall have the authority to reemploy an annuitant on a part-time basis in accordance with section 8344(l) of title 5, United States Code.''.

(e) EFFECTIVE DATE AND APPLICATION.—The amendments made by subsection (a)(1)(A) and subsection (c) shall take effect as if enacted on October 28, 2009, and shall apply to computations or participants, respectively, as of such date.

TITLE XXIII—GENERAL INTELLIGENCE COMMUNITY MATTERS

SEC. 2301. RESTRICTION ON CONDUCT OF INTELLIGENCE ACTIVITIES.

The authorization of appropriations by this division shall not be deemed to constitute authority for the conduct of any intelligence activity which is not otherwise authorized by the Constitution or the laws of the United States.

SEC. 2302. INCREASE IN EMPLOYEE COMPENSATION AND BENEFITS AUTHORIZED BY LAW.

Appropriations authorized by this division for salary, pay, retirement, and other benefits for Federal employees may be increased by such additional or supplemental amounts as may be necessary for increases in such compensation or benefits authorized by law.

SEC. 2303. MODIFICATION OF SPECIAL PAY AUTHORITY FOR SCIENCE, TECHNOLOGY, ENGINEERING, OR MATHEMATICS POSITIONS AND ADDITION OF SPECIAL PAY AUTHORITY FOR CYBER POSITIONS.

Section 113B of the National Security Act of 1947 (50 U.S.C. 3049a) is amended—

(1) by amending subsection (a) to read as follows:

''(a) SPECIAL RATES OF PAY FOR POSITIONS REQUIRING EXPERTISE IN SCIENCE, TECHNOLOGY, ENGINEERING, OR MATHEMATICS.—

''(1) IN GENERAL.—Notwithstanding part III of title 5, United States Code, the head of each element of the intelligence community may, for 1 or more categories of positions in such element that require expertise in science, technology, engineering, or mathematics—

''(A) establish higher minimum rates of pay; and

''(B) make corresponding increases in all rates of pay of the pay range for each grade or level, subject to subsection (b) or (c), as applicable.

''(2) TREATMENT.—The special rate supplements resulting from the establishment of higher rates under paragraph (1) shall be basic pay for the same or similar purposes as those specified in section 5305(j) of title 5, United States Code.'';

(2) by redesignating subsections (b) through (f) as subsections (c) through (g), respectively;

(3) by inserting after subsection (a) the following:

''(b) SPECIAL RATES OF PAY FOR CYBER POSITIONS.—

''(1) IN GENERAL.—Notwithstanding subsection (c), the Director of the National Security Agency may establish a special rate of pay—

''(A) not to exceed the rate of basic pay payable for level II of the Executive Schedule under section 5313 of title 5, United States Code, if the Director certifies to the Under Secretary of Defense for Intelligence, in consultation with the Under Secretary of Defense for Personnel and Readiness, that the rate of pay is for positions that perform functions that execute the cyber mission of the Agency; or

''(B) not to exceed the rate of basic pay payable for the Vice President of the United States under section 104 of title 3, United States Code, if the Director certifies to the Secretary of Defense, by name, individuals that have advanced skills and competencies and that perform critical functions that execute the cyber mission of the Agency.

''(2) PAY LIMITATION.—Employees receiving a special rate under paragraph (1) shall be subject to an aggregate pay limitation that parallels the limitation established in section 5307 of title 5, United States Code, except that—

''(A) any allowance, differential, bonus, award, or other similar cash payment in addition to basic pay that is authorized under title 10, United States Code, (or any other applicable law in addition to title 5 of such Code, excluding the Fair Labor Standards Act of 1938 (29 U.S.C. 201 et seq.)) shall also be counted as part of aggregate compensation; and

''(B) aggregate compensation may not exceed the rate established for the Vice President of the United States under section 104 of title 3, United States Code.

''(3) LIMITATION ON NUMBER OF RECIPIENTS.—The number of individuals who receive basic pay established under paragraph (1)(B) may not exceed 100 at any time.

''(4) LIMITATION ON USE AS COMPARATIVE REFERENCE.—Notwithstanding any other provision of law, special rates of pay and the limitation established under paragraph (1)(B) may not be used as comparative references for the purpose of fixing the rates of basic pay or maximum pay limitations of qualified positions under section 1599f of title 10, United States Code, or section 226 of the Homeland Security Act of 2002 (6 U.S.C. 147).'';

(4) in subsection (c), as redesignated by paragraph (2), by striking ''A minimum'' and inserting ''Except as provided in subsection (b), a minimum'';

(5) in subsection (d), as redesignated by paragraph (2), by inserting ''or (b)'' after ''by subsection (a)''; and

(6) in subsection (g), as redesignated by paragraph (2)—

(A) in paragraph (1), by striking ''Not later than 90 days after the date of the enactment of the Intelligence Authorization Act for Fiscal Year 2017'' and inserting ''Not later than 90 days after the date of the enactment of the Damon Paul Nelson and Matthew Young Pollard Intelligence Authorization Act for Fiscal Years 2018 and 2019''; and

(B) in paragraph (2)(A), by inserting ''or (b)'' after ''subsection (a)''.

SEC. 2304. MODIFICATION OF APPOINTMENT OF CHIEF INFORMATION OFFICER OF THE INTELLIGENCE COMMUNITY.

Section 103G(a) of the National Security Act of 1947 (50 U.S.C. 3032(a)) is amended by striking ''President'' and inserting ''Director''.

SEC. 2305. DIRECTOR OF NATIONAL INTELLIGENCE REVIEW OF PLACEMENT OF POSITIONS WITHIN THE INTELLIGENCE COMMUNITY ON THE EXECUTIVE SCHEDULE.

(a) REVIEW.—The Director of National Intelligence, in coordination with the Director of the Office of Personnel Management, shall conduct a review of positions within the intelligence community regarding the placement of such positions on the Executive Schedule under subchapter II of chapter 53 of title 5, United States Code. In carrying out such review, the Director of National Intelligence, in coordination with the Director of the Office of Personnel Management, shall determine—

(1) the standards under which such review will be conducted;

(2) which positions should or should not be on the Executive Schedule; and

(3) for those positions that should be on the Executive Schedule, the level of the Executive Schedule at which such positions should be placed.

(b) REPORT.—Not later than 60 days after the date on which the review under subsection (a) is completed, the Director of National Intelligence shall submit to the congressional intelligence committees, the Committee on Homeland Security and Governmental Affairs of the Senate, and the Committee on Oversight and Reform of the House of Representatives an unredacted report describing the standards by which the review was conducted and the outcome of the review.

SEC. 2306. SUPPLY CHAIN AND COUNTERINTELLIGENCE RISK MANAGEMENT TASK FORCE.

(a) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means the following:

(1) The congressional intelligence committees.

(2) The Committee on Armed Services and the Committee on Homeland Security and Governmental Affairs of the Senate.

(3) The Committee on Armed Services, the Committee on Homeland Security, and the Committee on Oversight and Reform of the House of Representatives.

(b) REQUIREMENT TO ESTABLISH.—The Director of National Intelligence shall establish a Supply Chain and Counterintelligence Risk Management Task Force to standardize information sharing between the intelligence community and the acquisition community of the United States Government with respect to the supply chain and counterintelligence risks.

(c) MEMBERS.—The Supply Chain and Counterintelligence Risk Management Task Force established under subsection (b) shall be composed of—

(1) a representative of the Defense Security Service of the Department of Defense;

(2) a representative of the General Services Administration;

(3) a representative of the Office of Federal Procurement Policy of the Office of Management and Budget;

(4) a representative of the Department of Homeland Security;

(5) a representative of the Federal Bureau of Investigation;

(6) the Director of the National Counterintelligence and Security Center; and

(7) any other members the Director of National Intelligence determines appropriate.

(d) SECURITY CLEARANCES.—Each member of the Supply Chain and Counterintelligence Risk Management Task Force established under subsection (b) shall have a security clearance at the top secret level and be able to access sensitive compartmented information.

(e) ANNUAL REPORT.—The Supply Chain and Counterintelligence Risk Management Task Force established under subsection (b) shall submit to the appropriate congressional committees an annual report that describes the activities of the Task Force during the previous year, including identification of the supply chain and counterintelligence risks shared with the acquisition community of the United States Government by the intelligence community.

SEC. 2307. CONSIDERATION OF ADVERSARIAL TELECOMMUNICATIONS AND CYBERSECURITY INFRASTRUCTURE WHEN SHARING INTELLIGENCE WITH FOREIGN GOVERNMENTS AND ENTITIES.

Whenever the head of an element of the intelligence community enters into an intelligence sharing agreement with a foreign government or any other foreign entity, the head of the element shall consider the pervasiveness of telecommunications and cybersecurity infrastructure, equipment, and services provided by adversaries of the United States, particularly China

and Russia, or entities of such adversaries in the country or region of the foreign government or other foreign entity entering into the agreement.

SEC. 2308. CYBER PROTECTION SUPPORT FOR THE PERSONNEL OF THE INTELLIGENCE COMMUNITY IN POSITIONS HIGHLY VULNERABLE TO CYBER ATTACK.

(a) DEFINITIONS.—In this section:

(1) PERSONAL ACCOUNTS.—The term ''personal accounts'' means accounts for online and telecommunications services, including telephone, residential Internet access, email, text and multimedia messaging, cloud computing, social media, health care, and financial services, used by personnel of the intelligence community outside of the scope of their employment with elements of the intelligence community.

(2) PERSONAL TECHNOLOGY DEVICES.—The term ''personal technology devices'' means technology devices used by personnel of the intelligence community outside of the scope of their employment with elements of the intelligence community, including networks to which such devices connect.

(b) AUTHORITY TO PROVIDE CYBER PROTECTION SUPPORT.—

(1) IN GENERAL.—Subject to a determination by the Director of National Intelligence, the Director may provide cyber protection support for the personal technology devices and personal accounts of the personnel described in paragraph (2).

(2) AT-RISK PERSONNEL.—The personnel described in this paragraph are personnel of the intelligence community—

(A) who the Director determines to be highly vulnerable to cyber attacks and hostile information collection activities because of the positions occupied by such personnel in the intelligence community; and

(B) whose personal technology devices or personal accounts are highly vulnerable to cyber attacks and hostile information collection activities.

(c) NATURE OF CYBER PROTECTION SUPPORT.—Subject to the availability of resources, the cyber protection support provided to personnel under subsection (b) may include training, advice, assistance, and other services relating to cyber attacks and hostile information collection activities.

(d) LIMITATION ON SUPPORT.—Nothing in this section shall be construed—

(1) to encourage personnel of the intelligence community to use personal technology devices for official business; or

(2) to authorize cyber protection support for senior intelligence community personnel using personal devices, networks, and personal accounts in an official capacity.

(e) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Director shall submit to the congressional intelligence committees a report on the provision of cyber protection support under subsection (b). The report shall include—

(1) a description of the methodology used to make the determination under subsection (b)(2); and

(2) guidance for the use of cyber protection support and tracking of support requests for personnel receiving cyber protection support under subsection (b).

SEC. 2309. ELIMINATION OF SUNSET OF AUTHORITY RELATING TO MANAGEMENT OF SUPPLY-CHAIN RISK.

Section 309 of the Intelligence Authorization Act for Fiscal Year 2012 (Public Law 112–87; 50 U.S.C. 3329 note) is amended by striking subsection (g).

SEC. 2310. LIMITATIONS ON DETERMINATIONS REGARDING CERTAIN SECURITY CLASSIFICATIONS.

(a) PROHIBITION.—An officer of an element of the intelligence community who has been nominated by the President for a position that requires the advice and consent of the Senate may not make a classification decision with respect to information related to such officer's nomination.

(b) CLASSIFICATION DETERMINATIONS.—

(1) IN GENERAL.—Except as provided in paragraph (2), in a case in which an officer described in subsection (a) has been nominated as described in such subsection and classification authority rests with the officer or another officer who reports directly to such officer, a classification decision with respect to information relating to the officer shall be made by the Director of National Intelligence.

(2) NOMINATIONS OF DIRECTOR OF NATIONAL INTELLIGENCE.—In a case described in paragraph (1) in which the officer nominated is the Director of National Intelligence, the classification decision shall be made by the Principal Deputy Director of National Intelligence.

(c) REPORTS.—Whenever the Director or the Principal Deputy Director makes a decision under subsection (b), the Director or the Principal Deputy Director, as the case may be, shall submit to the congressional intelligence committees a report detailing the reasons for the decision.

SEC. 2311. JOINT INTELLIGENCE COMMUNITY COUNCIL.

(a) MEETINGS.—Section 101A(d) of the National Security Act of 1947 (50 U.S.C. 3022(d)) is amended—

(1) by striking ''regular''; and

(2) by inserting ''as the Director considers appropriate'' after ''Council''.

(b) REPORT ON FUNCTION AND UTILITY OF THE JOINT INTELLIGENCE COMMUNITY COUNCIL.—

(1) IN GENERAL.—No later than 180 days after the date of the enactment of this Act, the Director of National Intelligence, in coordination with the Executive Office of the President and members of the Joint Intelligence Community Council, shall submit to the congressional intelligence committees a report on the function and utility of the Joint Intelligence Community Council.

(2) CONTENTS.—The report required by paragraph (1) shall include the following:

(A) The number of physical or virtual meetings held by the Council per year since the Council's inception.

(B) A description of the effect and accomplishments of the Council.

(C) An explanation of the unique role of the Council relative to other entities, including with respect to the National Security Council and the Executive Committee of the intelligence community.

(D) Recommendations for the future role and operation of the Council.

(E) Such other matters relating to the function and utility of the Council as the Director considers appropriate.

(3) FORM.—The report submitted under paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

SEC. 2312. INTELLIGENCE COMMUNITY INFORMATION TECHNOLOGY ENVIRONMENT.

(a) DEFINITIONS.—In this section:

(1) CORE SERVICE.—The term ''core service'' means a capability that is available to multiple elements of the intelligence community and required for consistent operation of the intelligence community information technology environment.

(2) INTELLIGENCE COMMUNITY INFORMATION TECHNOLOGY ENVIRONMENT.—The term ''intelligence community information technology environment'' means all of the information technology services across the intelligence community, including the data sharing and protection environment across multiple classification domains.

(b) ROLES AND RESPONSIBILITIES.—

(1) DIRECTOR OF NATIONAL INTELLIGENCE.—The Director of National Intelligence shall be responsible for coordinating the performance by elements of the intelligence community of the intelligence community information technology environment, including each of the following:

(A) Ensuring compliance with all applicable environment rules and regulations of such environment.

(B) Ensuring measurable performance goals exist for such environment.

(C) Documenting standards and practices of such environment.

(D) Acting as an arbiter among elements of the intelligence community related to any disagreements arising out of the implementation of such environment.

(E) Delegating responsibilities to the elements of the intelligence community and carrying out such other responsibilities as are necessary for the effective implementation of such environment.

(2) CORE SERVICE PROVIDERS.—Providers of core services shall be responsible for—

(A) providing core services, in coordination with the Director of National Intelligence; and

(B) providing the Director with information requested and required to fulfill the responsibilities of the Director under paragraph (1).

(3) USE OF CORE SERVICES.—

(A) IN GENERAL.—Except as provided in subparagraph (B), each element of the intelligence community shall use core services when such services are available.

(B) EXCEPTION.—The Director of National Intelligence may provide for a written exception to the requirement under subparagraph (A) if the Director determines there is a compelling financial or mission need for such exception.

(c) MANAGEMENT ACCOUNTABILITY.—Not later than 90 days after the date of the enactment of this Act, the Director of National Intelligence shall designate and maintain one or more accountable executives of the intelligence community information technology environment to be responsible for—

(1) management, financial control, and integration of such environment;

(2) overseeing the performance of each core service, including establishing measurable service requirements and schedules;

(3) to the degree feasible, ensuring testing of each core service of such environment, including testing by the intended users, to evaluate performance against measurable service requirements and to ensure the capability meets user requirements; and

(4) coordinate transition or restructuring efforts of such environment, including phaseout of legacy systems.

(d) SECURITY PLAN.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall develop and maintain a security plan for the intelligence community information technology environment.

(e) LONG-TERM ROADMAP.—Not later than 180 days after the date of the enactment of this Act, and during each of the second and fourth fiscal quarters thereafter, the Director of National Intelligence shall submit to the congressional intelligence committees a long-term roadmap that shall include each of the following:

(1) A description of the minimum required and desired core service requirements, including—

(A) key performance parameters; and

(B) an assessment of current, measured performance.

(2) implementation milestones for the intelligence community information technology environment, including each of the following:

(A) A schedule for expected deliveries of core service capabilities during each of the following phases:

(i) Concept refinement and technology maturity demonstration.

(ii) Development, integration, and demonstration.

(iii) Production, deployment, and sustainment.

(iv) System retirement.

(B) Dependencies of such core service capabilities.

(C) Plans for the transition or restructuring necessary to incorporate core service capabilities.

(D) A description of any legacy systems and discontinued capabilities to be phased out.

(3) Such other matters as the Director determines appropriate.

(f) BUSINESS PLAN.—Not later than 180 days after the date of the enactment of this Act, and during each of the second and fourth fiscal quarters thereafter, the Director of National Intelligence shall submit to the congressional intelligence committees a business plan that includes each of the following:

(1) A systematic approach to identify core service funding requests for the intelligence community information technology environment within the proposed budget, including multiyear plans to implement the long-term roadmap required by subsection (e).

(2) A uniform approach by which each element of the intelligence community shall identify the cost of legacy information technology or alternative capabilities where services of the intelligence community information technology environment will also be available.

(3) A uniform effort by which each element of the intelligence community shall identify transition and restructuring costs for new, existing, and retiring services of the intelligence community information technology environment, as well as services of such environment that have changed designations as a core service.

(g) QUARTERLY PRESENTATIONS.—Beginning not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall provide to the congressional intelligence committees quarterly updates regarding ongoing implementation of the intelligence community information technology environment as compared to the requirements in the most recently submitted security plan required by subsection (d), long-term roadmap required by subsection (e), and business plan required by subsection (f).

(h) ADDITIONAL NOTIFICATIONS.—The Director of National Intelligence shall provide timely notification to the congressional intelligence committees regarding any policy changes related to or affecting the intelligence community information technology environment, new initiatives or strategies related to or impacting such environment, and changes or deficiencies in the execution of the security plan required by subsection (d), long-term roadmap required by subsection (e), and business plan required by subsection (f).

(i) SUNSET.—The section shall have no effect on or after September 30, 2024.

SEC. 2313. REPORT ON DEVELOPMENT OF SECURE MOBILE VOICE SOLUTION FOR INTELLIGENCE COMMUNITY.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence, in coordination with the Director of the Central Intelligence Agency and the Director of the National Security Agency, shall submit to the congressional intelligence committees a classified report on the feasibility, desirability, cost, and required schedule associated with the implementation of a secure mobile voice solution for the intelligence community.

(b) CONTENTS.—The report required by subsection (a) shall include, at a minimum, the following:

(1) The benefits and disadvantages of a secure mobile voice solution.

(2) Whether the intelligence community could leverage commercially available technology for classified voice communications that operates on commercial mobile networks in a secure manner and identifying the accompanying security risks to such networks.

(3) A description of any policies or community guidance that would be necessary to govern the potential solution, such as a process for determining the appropriate use of a secure mobile telephone and any limitations associated with such use.

SEC. 2314. POLICY ON MINIMUM INSIDER THREAT STANDARDS.

(a) POLICY REQUIRED.—Not later than 60 days after the date of the enactment of this Act, the Director of National Intelligence shall establish a policy for minimum insider threat standards that is consistent with the National Insider Threat Policy and Minimum Standards for Executive Branch Insider Threat Programs.

(b) IMPLEMENTATION.—Not later than 180 days after the date of the enactment of this Act, the head of each element of the intelligence community shall implement the policy established under subsection (a).

SEC. 2315. SUBMISSION OF INTELLIGENCE COMMUNITY POLICIES.

(a) DEFINITIONS.—In this section:

(1) ELECTRONIC REPOSITORY.—The term ''electronic repository'' means the electronic distribution mechanism, in use as of the date of the enactment of this Act, or any successor electronic distribution mechanism, by which the Director of National Intelligence submits to the congressional intelligence committees information.

(2) POLICY.—The term ''policy'', with respect to the intelligence community, includes unclassified or classified—

(A) directives, policy guidance, and policy memoranda of the intelligence community;

(B) executive correspondence of the Director of National Intelligence; and

(C) any equivalent successor policy instruments.

(b) SUBMISSION OF POLICIES.—

(1) CURRENT POLICY.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional intelligence committees using the electronic repository all nonpublicly available policies issued by the Director of National Intelligence for the intelligence community that are in effect as of the date of the submission.

(2) CONTINUOUS UPDATES.—Not later than 15 days after the date on which the Director of National Intelligence issues, modifies, or rescinds a policy of the intelligence community, the Director shall—

(A) notify the congressional intelligence committees of such addition, modification, or removal; and

(B) update the electronic repository with respect to such addition, modification, or removal.

SEC. 2316. EXPANSION OF INTELLIGENCE COMMUNITY RECRUITMENT EFFORTS.

In order to further increase the diversity of the intelligence community workforce, not later than 90 days after the date of the enactment of this Act, the Director of National Intelligence, in consultation with heads of elements of the Intelligence Community, shall create, implement, and submit to the congressional intelligence committees a written plan to ensure that rural and underrepresented regions are more fully and consistently represented in such elements' employment recruitment efforts. Upon receipt of the plan, the congressional committees shall have 60 days to submit comments to the Director of National Intelligence before such plan shall be implemented.

TITLE XXIV—MATTERS RELATING TO ELEMENTS OF THE INTELLIGENCE COMMUNITY

Subtitle A—Office of the Director of National Intelligence

SEC. 2401. AUTHORITY FOR PROTECTION OF CURRENT AND FORMER EMPLOYEES OF THE OFFICE OF THE DIRECTOR OF NATIONAL INTELLIGENCE.

Section 5(a)(4) of the Central Intelligence Agency Act of 1949 (50 U.S.C. 3506(a)(4)) is amended by striking ''such personnel of the Office of the Director of National Intelligence as the Director of National Intelligence may designate;'' and inserting ''current and former personnel of the Office of the Director of National Intelligence and their immediate families as the Director of National Intelligence may designate;''.

SEC. 2402. DESIGNATION OF THE PROGRAM MANAGER-INFORMATION SHARING ENVIRONMENT.

(a) INFORMATION SHARING ENVIRONMENT.—Section 1016(b) of the Intelligence Reform and Terrorism Prevention Act of 2004 (6 U.S.C. 485(b)) is amended—

(1) in paragraph (1), by striking ''President'' and inserting ''Director of National Intelligence''; and

(2) in paragraph (2), by striking ''President'' both places that term appears and inserting ''Director of National Intelligence''.

(b) PROGRAM MANAGER.—Section 1016(f)(1) of the Intelligence Reform and Terrorism Prevention Act of 2004 (6 U.S.C. 485(f)(1)) is amended by striking ''The individual designated as the program manager shall serve as program manager until removed from service or replaced by the President (at the President's sole discretion).'' and inserting ''Beginning on the date of the enactment of the Damon Paul Nelson and Matthew Young Pollard Intelligence Authorization Act for Fiscal Years 2018, 2019 and 2020, each individual designated as the program manager shall be appointed by the Director of National Intelligence.''.

SEC. 2403. TECHNICAL MODIFICATION TO THE EXECUTIVE SCHEDULE.

Section 5315 of title 5, United States Code, is amended by adding at the end the following:

''Director of the National Counterintelligence and Security Center.''.

SEC. 2404. CHIEF FINANCIAL OFFICER OF THE INTELLIGENCE COMMUNITY.

Section 103I(a) of the National Security Act of 1947 (50 U.S.C. 3034(a)) is amended by adding at the end the following new sentence: ''The Chief Financial Officer shall report directly to the Director of National Intelligence.''.

SEC. 2405. CHIEF INFORMATION OFFICER OF THE INTELLIGENCE COMMUNITY.

Section 103G(a) of the National Security Act of 1947 (50 U.S.C. 3032(a)) is amended by adding at the end the following new sentence: ''The Chief Information Officer shall report directly to the Director of National Intelligence.''.

Subtitle B—Central Intelligence Agency

SEC. 2411. CENTRAL INTELLIGENCE AGENCY SUBSISTENCE FOR PERSONNEL ASSIGNED TO AUSTERE LOCATIONS.

Subsection (a) of section 5 of the Central Intelligence Agency Act of 1949 (50 U.S.C. 3506) is amended—

(1) in paragraph (1), by striking ''(50 U.S.C. 403–4a).,'' and inserting ''(50 U.S.C. 403–4a),'';

(2) in paragraph (6), by striking ''and'' at the end;

(3) in paragraph (7), by striking the period at the end and inserting ''; and''; and

(4) by adding at the end the following new paragraph (8):

''(8) Upon the approval of the Director, provide, during any fiscal year, with or without reimbursement, subsistence to any personnel assigned to an overseas location designated by the Agency as an austere location.''.

SEC. 2412. SPECIAL RULES FOR CERTAIN MONTHLY WORKERS' COMPENSATION PAYMENTS AND OTHER PAYMENTS FOR CENTRAL INTELLIGENCE AGENCY PERSONNEL.

(a) IN GENERAL.—The Central Intelligence Agency Act of 1949 (50 U.S.C. 3501 et seq.) is amended by inserting after section 19 the following new section:

''SEC. 19A. SPECIAL RULES FOR CERTAIN INDIVIDUALS INJURED BY REASON OF WAR, INSURGENCY, HOSTILE ACT, OR TERRORIST ACTIVITIES.

''(a) DEFINITIONS.—In this section:

''(1) COVERED DEPENDENT.—The term 'covered dependent' means a family member (as defined

by the Director) of a covered employee who, on or after September 11, 2001—

''(A) accompanies the covered employee to an assigned duty station in a foreign country; and

''(B) becomes injured by reason of a qualifying injury.

''(2) COVERED EMPLOYEE.—The term 'covered employee' means an officer or employee of the Central Intelligence Agency who, on or after September 11, 2001, becomes injured by reason of a qualifying injury.

''(3) COVERED INDIVIDUAL.—The term 'covered individual' means an individual who—

''(A)(i) is detailed to the Central Intelligence Agency from other agencies of the United States Government or from the Armed Forces; or

''(ii) is affiliated with the Central Intelligence Agency, as determined by the Director; and

''(B) who, on or after September 11, 2001, becomes injured by reason of a qualifying injury.

''(4) QUALIFYING INJURY.—The term 'qualifying injury' means the following:

''(A) With respect to a covered dependent, an injury incurred—

''(i) during a period in which the covered dependent is accompanying the covered employee to an assigned duty station in a foreign country;

''(ii) in connection with war, insurgency, hostile act, terrorist activity, or other incident designated by the Director; and

''(iii) that was not the result of the willful misconduct of the covered dependent.

''(B) With respect to a covered employee or a covered individual, an injury incurred—

''(i) during a period of assignment to a duty station in a foreign country;

''(ii) in connection with a war, insurgency, hostile act, terrorist activity, or other incident designated by the Director; and

''(iii) that was not the result of the willful misconduct of the covered employee or the covered individual.

''(b) ADJUSTMENT OF COMPENSATION FOR CERTAIN INJURIES.—

''(1) INCREASE.—The Director may increase the amount of monthly compensation paid to a covered employee under section 8105 of title 5, United States Code. Subject to paragraph (2), the Director may determine the amount of each such increase by taking into account—

''(A) the severity of the qualifying injury;

''(B) the circumstances by which the covered employee became injured; and

''(C) the seniority of the covered employee.

''(2) MAXIMUM.—Notwithstanding chapter 81 of title 5, United States Code, the total amount of monthly compensation increased under paragraph (1) may not exceed the monthly pay of the maximum rate of basic pay for GS–15 of the General Schedule under section 5332 of such title.

''(c) COSTS FOR TREATING QUALIFYING INJURIES.—The Director may pay the costs of treating a qualifying injury of a covered employee, a covered individual, or a covered dependent, or may reimburse a covered employee, a covered individual, or a covered dependent for such costs, that are not otherwise covered by chapter 81 of title 5, United States Code, or other provision of Federal law.

''(d) TREATMENT OF AMOUNTS.—For purposes of section 104 of the Internal Revenue Code of 1986, amounts paid pursuant to this section shall be treated as amounts paid under chapter 81 of title 5, United States Code.''.

(b) REGULATIONS.—Not later than 120 days after the date of the enactment of this Act, the Director of the Central Intelligence Agency shall—

(1) prescribe regulations ensuring the fair and equitable implementation of section 19A of the Central Intelligence Agency Act of 1949, as added by subsection (a); and

(2) submit to the congressional intelligence committees such regulations.

(c) APPLICATION.—Section 19A of the Central Intelligence Agency Act of 1949, as added by subsection (a), shall apply with respect to—

(1) payments made to covered employees (as defined in such section) under section 8105 of title 5, United States Code, beginning on or after the date of the enactment of this Act; and

(2) treatment described in subsection (b) of such section 19A occurring on or after the date of the enactment of this Act.

SEC. 2413. EXPANSION OF SECURITY PROTECTIVE SERVICE JURISDICTION OF THE CENTRAL INTELLIGENCE AGENCY.

Subsection (a)(1) of section 15 of the Central Intelligence Agency Act of 1949 (50 U.S.C. 3515(a)) is amended—

(1) in subparagraph (B), by striking ''500 feet;'' and inserting ''500 yards;''; and

(2) in subparagraph (D), by striking ''500 feet.'' and inserting ''500 yards.''.

SEC. 2414. REPEAL OF FOREIGN LANGUAGE PROFICIENCY REQUIREMENT FOR CERTAIN SENIOR LEVEL POSITIONS IN THE CENTRAL INTELLIGENCE AGENCY.

(a) REPEAL OF FOREIGN LANGUAGE PROFICIENCY REQUIREMENT.—Section 104A of the National Security Act of 1947 (50 U.S.C. 3036) is amended by striking subsection (g).

(b) CONFORMING REPEAL OF REPORT REQUIREMENT.—Section 611 of the Intelligence Authorization Act for Fiscal Year 2005 (Public Law 108–487) is amended by striking subsection (c).

Subtitle C—Office of Intelligence and Counterintelligence of Department of Energy

SEC. 2421. CONSOLIDATION OF DEPARTMENT OF ENERGY OFFICES OF INTELLIGENCE AND COUNTERINTELLIGENCE.

(a) IN GENERAL.—Section 215 of the Department of Energy Organization Act (42 U.S.C. 7144b) is amended to read as follows:

''OFFICE OF INTELLIGENCE AND COUNTERINTELLIGENCE

''SEC. 215. (a) DEFINITIONS.—In this section, the terms 'intelligence community' and 'National Intelligence Program' have the meanings given such terms in section 3 of the National Security Act of 1947 (50 U.S.C. 3003).

''(b) IN GENERAL.—There is in the Department an Office of Intelligence and Counterintelligence. Such office shall be under the National Intelligence Program.

''(c) DIRECTOR.—(1) The head of the Office shall be the Director of the Office of Intelligence and Counterintelligence, who shall be an employee in the Senior Executive Service, the Senior Intelligence Service, the Senior National Intelligence Service, or any other Service that the Secretary, in coordination with the Director of National Intelligence, considers appropriate. The Director of the Office shall report directly to the Secretary.

''(2) The Secretary shall select an individual to serve as the Director from among individuals who have substantial expertise in matters relating to the intelligence community, including foreign intelligence and counterintelligence.

''(d) DUTIES.—(1) Subject to the authority, direction, and control of the Secretary, the Director shall perform such duties and exercise such powers as the Secretary may prescribe.

''(2) The Director shall be responsible for establishing policy for intelligence and counterintelligence programs and activities at the Department.''.

(b) CONFORMING REPEAL.—Section 216 of the Department of Energy Organization Act (42 U.S.C. 7144c) is hereby repealed.

(c) CLERICAL AMENDMENT.—The table of contents at the beginning of the Department of Energy Organization Act is amended by striking the items relating to sections 215 and 216 and inserting the following new item:

''Sec. 215. Office of Intelligence and Counterintelligence.''.

SEC. 2422. ESTABLISHMENT OF ENERGY INFRASTRUCTURE SECURITY CENTER.

Section 215 of the Department of Energy Organization Act (42 U.S.C. 7144b), as amended by section 2421, is further amended by adding at the end the following:

''(e) ENERGY INFRASTRUCTURE SECURITY CENTER.—(1)(A) The President shall establish an Energy Infrastructure Security Center, taking into account all appropriate government tools to analyze and disseminate intelligence relating to the security of the energy infrastructure of the United States.

''(B) The Director of Intelligence and Counterintelligence shall appoint the head of the Energy Infrastructure Security Center.

''(C) The Energy Infrastructure Security Center shall be located within the Office of Intelligence and Counterintelligence.

''(2) In establishing the Energy Infrastructure Security Center, the Director of the Office of Intelligence and Counterintelligence shall address the following missions and objectives to coordinate and disseminate intelligence relating to the security of the energy infrastructure of the United States:

''(A) Establishing a primary organization within the United States Government for analyzing and integrating all intelligence possessed or acquired by the United States pertaining to the security of the energy infrastructure of the United States.

''(B) Ensuring that appropriate departments and agencies have full access to and receive intelligence support needed to execute the plans or activities of the agencies, and perform independent, alternative analyses.

''(C) Establishing a central repository on known and suspected foreign threats to the energy infrastructure of the United States, including with respect to any individuals, groups, or entities engaged in activities targeting such infrastructure, and the goals, strategies, capabilities, and networks of such individuals, groups, or entities.

''(D) Disseminating intelligence information relating to the security of the energy infrastructure of the United States, including threats and analyses, to the President, to the appropriate departments and agencies, and to the appropriate committees of Congress.

''(3) The President may waive the requirements of this subsection, and any parts thereof, if the President determines that such requirements do not materially improve the ability of the United States Government to prevent and halt attacks against the energy infrastructure of the United States. Such waiver shall be made in writing to Congress and shall include a description of how the missions and objectives in paragraph (2) are being met.

''(4) If the President decides not to exercise the waiver authority granted by paragraph (3), the President shall submit to Congress from time to time updates and plans regarding the establishment of an Energy Infrastructure Security Center.''.

SEC. 2423. REPEAL OF DEPARTMENT OF ENERGY INTELLIGENCE EXECUTIVE COMMITTEE AND BUDGET REPORTING REQUIREMENT.

Section 214 of the Department of Energy Organization Act (42 U.S.C. 7144a) is amended—

(1) by striking ''(a)''; and

(2) by striking subsections (b) and (c).

Subtitle D—Other Elements

SEC. 2431. PLAN FOR DESIGNATION OF COUNTERINTELLIGENCE COMPONENT OF DEFENSE SECURITY SERVICE AS AN ELEMENT OF INTELLIGENCE COMMUNITY.

Not later than 90 days after the date of the enactment of this Act, the Director of National Intelligence and Under Secretary of Defense for Intelligence, in coordination with the Director of the National Counterintelligence and Security Center, shall submit to the congressional intelligence committees, the Committee on Armed Services of the Senate, and the Committee on Armed Services of the House of Representatives a plan to designate the counterintelligence component of the Defense Security Service of the Department of Defense as an element of the intelligence community by not later than January 1, 2021. Such plan shall—

(1) address the implications of such designation on the authorities, governance, personnel, resources, information technology, collection, analytic products, information sharing, and business processes of the Defense Security Service and the intelligence community; and

(2) not address the personnel security functions of the Defense Security Service.

SEC. 2432. NOTICE NOT REQUIRED FOR PRIVATE ENTITIES.

Section 3553 of title 44, United States Code, is amended—

(1) by redesignating subsection (j) as subsection (k); and

(2) by inserting after subsection (i) the following:

''(j) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to require the Secretary to provide notice to any private entity before the Secretary issues a binding operational directive under subsection (b)(2).''.

SEC. 2433. ESTABLISHMENT OF ADVISORY BOARD FOR NATIONAL RECONNAISSANCE OFFICE.

(a) ESTABLISHMENT.—Section 106A of the National Security Act of 1947 (50 U.S.C. 3041a) is amended by adding at the end the following new subsection:

''(d) ADVISORY BOARD.—

''(1) ESTABLISHMENT.—There is established in the National Reconnaissance Office an advisory board (in this section referred to as the 'Board').

''(2) DUTIES.—The Board shall—

''(A) study matters relating to the mission of the National Reconnaissance Office, including with respect to promoting innovation, competition, and resilience in space, overhead reconnaissance, acquisition, and other matters; and

''(B) advise and report directly to the Director with respect to such matters.

''(3) MEMBERS.—

''(A) NUMBER AND APPOINTMENT.—

''(i) IN GENERAL.—The Board shall be composed of 5 members appointed by the Director from among individuals with demonstrated academic, government, business, or other expertise relevant to the mission and functions of the National Reconnaissance Office.

''(ii) NOTIFICATION.—Not later than 30 days after the date on which the Director appoints a member to the Board, the Director shall notify the congressional intelligence committees and the congressional defense committees (as defined in section 101(a) of title 10, United States Code) of such appointment.

''(B) TERMS.—Each member shall be appointed for a term of 2 years. Except as provided by subparagraph (C), a member may not serve more than 3 terms.

''(C) VACANCY.—Any member appointed to fill a vacancy occurring before the expiration of the term for which the member's predecessor was appointed shall be appointed only for the remainder of that term. A member may serve after the expiration of that member's term until a successor has taken office.

''(D) CHAIR.—The Board shall have a Chair, who shall be appointed by the Director from among the members.

''(E) TRAVEL EXPENSES.—Each member shall receive travel expenses, including per diem in lieu of subsistence, in accordance with applicable provisions under subchapter I of chapter 57 of title 5, United States Code.

''(F) EXECUTIVE SECRETARY.—The Director may appoint an executive secretary, who shall be an employee of the National Reconnaissance Office, to support the Board.

''(4) MEETINGS.—The Board shall meet not less than quarterly, but may meet more frequently at the call of the Director.

''(5) REPORTS.—Not later than March 31 of each year, the Board shall submit to the Director and to the congressional intelligence committees a report on the activities and significant findings of the Board during the preceding year.

''(6) NONAPPLICABILITY OF CERTAIN REQUIREMENTS.—The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to the Board.

''(7) TERMINATION.—The Board shall terminate on the date that is 3 years after the date of the first meeting of the Board.''.

(b) INITIAL APPOINTMENTS.—Not later than 180 days after the date of the enactment of this Act, the Director of the National Reconnaissance Office shall appoint the initial 5 members to the advisory board under subsection (d) of section 106A of the National Security Act of 1947 (50 U.S.C. 3041a), as added by subsection (a).

SEC. 2434. COLLOCATION OF CERTAIN DEPARTMENT OF HOMELAND SECURITY PERSONNEL AT FIELD LOCATIONS.

(a) IDENTIFICATION OF OPPORTUNITIES FOR COLLOCATION.—Not later than 60 days after the date of the enactment of this Act, the Under Secretary of Homeland Security for Intelligence and Analysis shall identify, in consultation with the Commissioner of U.S. Customs and Border Protection, the Administrator of the Transportation Security Administration, the Director of U.S. Immigration and Customs Enforcement, and the heads of such other elements of the Department of Homeland Security as the Under Secretary considers appropriate, opportunities for collocation of officers of the Office of Intelligence and Analysis in the field outside of the greater Washington, District of Columbia, area in order to support operational units from U.S. Customs and Border Protection, the Transportation Security Administration, U.S. Immigration and Customs Enforcement, and other elements of the Department of Homeland Security.

(b) PLAN FOR COLLOCATION.—Not later than 120 days after the date of the enactment of this Act, the Under Secretary shall submit to the congressional intelligence committees a report that includes a plan for collocation as described in subsection (a).

TITLE XXV—ELECTION MATTERS

SEC. 2501. REPORT ON CYBER ATTACKS BY FOREIGN GOVERNMENTS AGAINST UNITED STATES ELECTION INFRASTRUCTURE.

(a) DEFINITIONS.—In this section:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the congressional intelligence committees;

(B) the Committee on Homeland Security and Governmental Affairs of the Senate;

(C) the Committee on Homeland Security of the House of Representatives;

(D) the Committee on Foreign Relations of the Senate; and

(E) the Committee on Foreign Affairs of the House of Representatives.

(2) CONGRESSIONAL LEADERSHIP.—The term ''congressional leadership'' includes the following:

(A) The majority leader of the Senate.

(B) The minority leader of the Senate.

(C) The Speaker of the House of Representatives.

(D) The minority leader of the House of Representatives.

(3) STATE.—The term ''State'' means any State of the United States, the District of Columbia, the Commonwealth of Puerto Rico, and any territory or possession of the United States.

(b) REPORT REQUIRED.—Not later than 60 days after the date of the enactment of this Act, the Under Secretary of Homeland Security for Intelligence and Analysis shall submit to congressional leadership and the appropriate congressional committees a report on cyber attacks and attempted cyber attacks by foreign governments on United States election infrastructure in States and localities in connection with the 2016 Presidential election in the United States and such cyber attacks or attempted cyber attacks as the Under Secretary anticipates against such infrastructure. Such report shall identify the States and localities affected and shall include cyber attacks and attempted cyber attacks against voter registration databases, voting machines, voting-related computer networks, and the networks of Secretaries of State and other election officials of the various States.

(c) FORM.—The report submitted under subsection (b) shall be submitted in unclassified form, but may include a classified annex.

SEC. 2502. REVIEW OF INTELLIGENCE COMMUNITY'S POSTURE TO COLLECT AGAINST AND ANALYZE RUSSIAN EFFORTS TO INFLUENCE THE PRESIDENTIAL ELECTION.

(a) REVIEW REQUIRED.—Not later than 1 year after the date of the enactment of this Act, the Director of National Intelligence shall—

(1) complete an after action review of the posture of the intelligence community to collect against and analyze efforts of the Government of Russia to interfere in the 2016 Presidential election in the United States; and

(2) submit to the congressional intelligence committees a report on the findings of the Director with respect to such review.

(b) ELEMENTS.—The review required by subsection (a) shall include, with respect to the posture and efforts described in paragraph (1) of such subsection, the following:

(1) An assessment of whether the resources of the intelligence community were properly aligned to detect and respond to the efforts described in subsection (a)(1).

(2) An assessment of the information sharing that occurred within elements of the intelligence community.

(3) An assessment of the information sharing that occurred between elements of the intelligence community.

(4) An assessment of applicable authorities necessary to collect on any such efforts and any deficiencies in those authorities.

(5) A review of the use of open source material to inform analysis and warning of such efforts.

(6) A review of the use of alternative and predictive analysis.

(c) FORM OF REPORT.—The report required by subsection (a)(2) shall be submitted to the congressional intelligence committees in a classified form.

SEC. 2503. ASSESSMENT OF FOREIGN INTELLIGENCE THREATS TO FEDERAL ELECTIONS.

(a) DEFINITIONS.—In this section:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the congressional intelligence committees;

(B) the Committee on Homeland Security and Governmental Affairs of the Senate; and

(C) the Committee on Homeland Security of the House of Representatives.

(2) CONGRESSIONAL LEADERSHIP.—The term ''congressional leadership'' includes the following:

(A) The majority leader of the Senate.

(B) The minority leader of the Senate.

(C) The Speaker of the House of Representatives.

(D) The minority leader of the House of Representatives.

(3) SECURITY VULNERABILITY.—The term ''security vulnerability'' has the meaning given such term in section 102 of the Cybersecurity Information Sharing Act of 2015 (6 U.S.C. 1501).

(b) IN GENERAL.—The Director of National Intelligence, in coordination with the Director of the Central Intelligence Agency, the Director of the National Security Agency, the Director of the Federal Bureau of Investigation, the Secretary of Homeland Security, and the heads of other relevant elements of the intelligence community, shall—

(1) commence not later than 1 year before any regularly scheduled Federal election occurring after December 31, 2018, and complete not later than 180 days before such election, an assessment of security vulnerabilities of State election systems; and

(2) not later than 180 days before any regularly scheduled Federal election occurring after

December 31, 2018, submit a report on such security vulnerabilities and an assessment of foreign intelligence threats to the election to—

(A) congressional leadership; and

(B) the appropriate congressional committees.

(c) UPDATE.—Not later than 90 days before any regularly scheduled Federal election occurring after December 31, 2018, the Director of National Intelligence shall—

(1) update the assessment of foreign intelligence threats to that election; and

(2) submit the updated assessment to—

(A) congressional leadership; and

(B) the appropriate congressional committees.

SEC. 2504. STRATEGY FOR COUNTERING RUSSIAN CYBER THREATS TO UNITED STATES ELECTIONS.

(a) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means the following:

(1) The congressional intelligence committees.

(2) The Committee on Armed Services and the Committee on Homeland Security and Governmental Affairs of the Senate.

(3) The Committee on Armed Services and the Committee on Homeland Security of the House of Representatives.

(4) The Committee on Foreign Relations of the Senate.

(5) The Committee on Foreign Affairs of the House of Representatives.

(b) REQUIREMENT FOR A STRATEGY.—Not later than 90 days after the date of the enactment of this Act, the Director of National Intelligence, in coordination with the Secretary of Homeland Security, the Director of the Federal Bureau of Investigation, the Director of the Central Intelligence Agency, the Secretary of State, the Secretary of Defense, and the Secretary of the Treasury, shall develop a whole-of-government strategy for countering the threat of Russian cyber attacks and attempted cyber attacks against electoral systems and processes in the United States, including Federal, State, and local election systems, voter registration databases, voting tabulation equipment, and equipment and processes for the secure transmission of election results.

(c) ELEMENTS OF THE STRATEGY.—The strategy required by subsection (b) shall include the following elements:

(1) A whole-of-government approach to protecting United States electoral systems and processes that includes the agencies and departments indicated in subsection (b) as well as any other agencies and departments of the United States, as determined appropriate by the Director of National Intelligence and the Secretary of Homeland Security.

(2) Input solicited from Secretaries of State of the various States and the chief election officials of the States.

(3) Technical security measures, including auditable paper trails for voting machines, securing wireless and Internet connections, and other technical safeguards.

(4) Detection of cyber threats, including attacks and attempted attacks by Russian government or nongovernment cyber threat actors.

(5) Improvements in the identification and attribution of Russian government or nongovernment cyber threat actors.

(6) Deterrence, including actions and measures that could or should be undertaken against or communicated to the Government of Russia or other entities to deter attacks against, or interference with, United States election systems and processes.

(7) Improvements in Federal Government communications with State and local election officials.

(8) Public education and communication efforts.

(9) Benchmarks and milestones to enable the measurement of concrete steps taken and progress made in the implementation of the strategy.

(d) CONGRESSIONAL BRIEFING.—Not later than 90 days after the date of the enactment of this Act, the Director of National Intelligence and the Secretary of Homeland Security shall jointly brief the appropriate congressional committees on the strategy developed under subsection (b).

SEC. 2505. ASSESSMENT OF SIGNIFICANT RUSSIAN INFLUENCE CAMPAIGNS DIRECTED AT FOREIGN ELECTIONS AND REFERENDA.

(a) RUSSIAN INFLUENCE CAMPAIGN DEFINED.—In this section, the term ''Russian influence campaign'' means any effort, covert or overt, and by any means, attributable to the Russian Federation directed at an election, referendum, or similar process in a country other than the Russian Federation or the United States.

(b) ASSESSMENT REQUIRED.—Not later than 60 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional intelligence committees a report containing an analytical assessment of the most significant Russian influence campaigns, if any, conducted during the 3-year period preceding the date of the enactment of this Act, as well as the most significant current or planned such Russian influence campaigns, if any. Such assessment shall include—

(1) a summary of such significant Russian influence campaigns, including, at a minimum, the specific means by which such campaigns were conducted, are being conducted, or likely will be conducted, as appropriate, and the specific goal of each such campaign;

(2) a summary of any defenses against or responses to such Russian influence campaigns by the foreign state holding the elections or referenda;

(3) a summary of any relevant activities by elements of the intelligence community undertaken for the purpose of assisting the government of such foreign state in defending against or responding to such Russian influence campaigns; and

(4) an assessment of the effectiveness of such defenses and responses described in paragraphs (2) and (3).

(c) FORM.—The report required by subsection (b) may be submitted in classified form, but if so submitted, shall contain an unclassified summary.

SEC. 2506. INFORMATION SHARING WITH STATE ELECTION OFFICIALS.

(a) STATE DEFINED.—In this section, the term ''State'' means any State of the United States, the District of Columbia, the Commonwealth of Puerto Rico, and any territory or possession of the United States.

(b) SECURITY CLEARANCES.—

(1) IN GENERAL.—Not later than 30 days after the date of the enactment of this Act, the Director of National Intelligence shall support the Under Secretary of Homeland Security for Intelligence and Analysis, and any other official of the Department of Homeland Security designated by the Secretary of Homeland Security, in sponsoring a security clearance up to the top secret level for each eligible chief election official of a State or the District of Columbia, and additional eligible designees of such election official as appropriate, at the time that such election official assumes such position.

(2) INTERIM CLEARANCES.—Consistent with applicable policies and directives, the Director of National Intelligence may issue interim clearances, for a period to be determined by the Director, to a chief election official as described in paragraph (1) and up to 1 designee of such official under such paragraph.

(c) INFORMATION SHARING.—

(1) IN GENERAL.—The Director of National Intelligence shall assist the Under Secretary of Homeland Security for Intelligence and Analysis and the Under Secretary responsible for overseeing critical infrastructure protection, cybersecurity, and other related programs of the Department (as specified in section 103(a)(1)(H) of the Homeland Security Act of 2002 (6 U.S.C. 113(a)(1)(H))) with sharing any appropriate classified information related to threats to election systems and to the integrity of the election process with chief election officials and such designees who have received a security clearance under subsection (b).

(2) COORDINATION.—The Under Secretary of Homeland Security for Intelligence and Analysis shall coordinate with the Director of National Intelligence and the Under Secretary responsible for overseeing critical infrastructure protection, cybersecurity, and other related programs of the Department (as specified in section 103(a)(1)(H) of the Homeland Security Act of 2002 (6 U.S.C. 113(a)(1)(H))) to facilitate the sharing of information to the affected Secretaries of State or States.

SEC. 2507. NOTIFICATION OF SIGNIFICANT FOREIGN CYBER INTRUSIONS AND ACTIVE MEASURES CAMPAIGNS DIRECTED AT ELECTIONS FOR FEDERAL OFFICES.

(a) DEFINITIONS.—In this section:

(1) ACTIVE MEASURES CAMPAIGN.—The term ''active measures campaign'' means a foreign semi-covert or covert intelligence operation.

(2) CANDIDATE, ELECTION, AND POLITICAL PARTY.—The terms ''candidate'', ''election'', and ''political party'' have the meanings given those terms in section 301 of the Federal Election Campaign Act of 1971 (52 U.S.C. 30101).

(3) CONGRESSIONAL LEADERSHIP.—The term ''congressional leadership'' includes the following:

(A) The majority leader of the Senate.

(B) The minority leader of the Senate.

(C) The Speaker of the House of Representatives.

(D) The minority leader of the House of Representatives.

(4) CYBER INTRUSION.—The term ''cyber intrusion'' means an electronic occurrence that actually or imminently jeopardizes, without lawful authority, electronic election infrastructure, or the integrity, confidentiality, or availability of information within such infrastructure.

(5) ELECTRONIC ELECTION INFRASTRUCTURE.—The term ''electronic election infrastructure'' means an electronic information system of any of the following that is related to an election for Federal office:

(A) The Federal Government.

(B) A State or local government.

(C) A political party.

(D) The election campaign of a candidate.

(6) FEDERAL OFFICE.—The term ''Federal office'' has the meaning given that term in section 301 of the Federal Election Campaign Act of 1971 (52 U.S.C. 30101).

(7) HIGH CONFIDENCE.—The term ''high confidence'', with respect to a determination, means that the determination is based on high-quality information from multiple sources.

(8) MODERATE CONFIDENCE.—The term ''moderate confidence'', with respect to a determination, means that a determination is credibly sourced and plausible but not of sufficient quality or corroborated sufficiently to warrant a higher level of confidence.

(9) OTHER APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''other appropriate congressional committees'' means—

(A) the Committee on Armed Services, the Committee on Homeland Security and Governmental Affairs, and the Committee on Appropriations of the Senate; and

(B) the Committee on Armed Services, the Committee on Homeland Security, and the Committee on Appropriations of the House of Representatives.

(b) DETERMINATIONS OF SIGNIFICANT FOREIGN CYBER INTRUSIONS AND ACTIVE MEASURES CAMPAIGNS.—The Director of National Intelligence, the Director of the Federal Bureau of Investigation, and the Secretary of Homeland Security shall jointly carry out subsection (c) if such Directors and the Secretary jointly determine—

(1) that on or after the date of the enactment of this Act, a significant foreign cyber intrusion

or active measures campaign intended to influence an upcoming election for any Federal office has occurred or is occurring; and

(2) with moderate or high confidence, that such intrusion or campaign can be attributed to a foreign state or to a foreign nonstate person, group, or other entity.

(c) BRIEFING.—

(1) IN GENERAL.—Not later than 14 days after making a determination under subsection (b), the Director of National Intelligence, the Director of the Federal Bureau of Investigation, and the Secretary of Homeland Security shall jointly provide a briefing to the congressional leadership, the congressional intelligence committees and, consistent with the protection of sources and methods, the other appropriate congressional committees. The briefing shall be classified and address, at a minimum, the following:

(A) A description of the significant foreign cyber intrusion or active measures campaign, as the case may be, covered by the determination.

(B) An identification of the foreign state or foreign nonstate person, group, or other entity, to which such intrusion or campaign has been attributed.

(C) The desirability and feasibility of the public release of information about the cyber intrusion or active measures campaign.

(D) Any other information such Directors and the Secretary jointly determine appropriate.

(2) ELECTRONIC ELECTION INFRASTRUCTURE BRIEFINGS.—With respect to a significant foreign cyber intrusion covered by a determination under subsection (b), the Secretary of Homeland Security, in consultation with the Director of National Intelligence and the Director of the Federal Bureau of Investigation, shall offer to the owner or operator of any electronic election infrastructure directly affected by such intrusion, a briefing on such intrusion, including steps that may be taken to mitigate such intrusion. Such briefing may be classified and made available only to individuals with appropriate security clearances.

(3) PROTECTION OF SOURCES AND METHODS.—This subsection shall be carried out in a manner that is consistent with the protection of sources and methods.

SEC. 2508. DESIGNATION OF COUNTERINTELLIGENCE OFFICER TO LEAD ELECTION SECURITY MATTERS.

(a) IN GENERAL.—The Director of National Intelligence shall designate a national counterintelligence officer within the National Counterintelligence and Security Center to lead, manage, and coordinate counterintelligence matters relating to election security.

(b) ADDITIONAL RESPONSIBILITIES.—The person designated under subsection (a) shall also lead, manage, and coordinate counterintelligence matters relating to risks posed by interference from foreign powers (as defined in section 101 of the Foreign Intelligence Surveillance Act of 1978 (50 U.S.C. 1801)) to the following:

(1) The Federal Government election security supply chain.

(2) Election voting systems and software.

(3) Voter registration databases.

(4) Critical infrastructure related to elections.

(5) Such other Government goods and services as the Director of National Intelligence considers appropriate.

TITLE XXVI—SECURITY CLEARANCES

SEC. 2601. DEFINITIONS.

In this title:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the congressional intelligence committees;

(B) the Committee on Armed Services of the Senate;

(C) the Committee on Appropriations of the Senate;

(D) the Committee on Homeland Security and Governmental Affairs of the Senate;

(E) the Committee on Armed Services of the House of Representatives;

(F) the Committee on Appropriations of the House of Representatives;

(G) the Committee on Homeland Security of the House of Representatives; and

(H) the Committee on Oversight and Reform of the House of Representatives.

(2) APPROPRIATE INDUSTRY PARTNERS.—The term ''appropriate industry partner'' means a contractor, licensee, or grantee (as defined in section 101(a) of Executive Order 12829 (50 U.S.C. 3161 note; relating to National Industrial Security Program)) that is participating in the National Industrial Security Program established by such Executive Order.

(3) CONTINUOUS VETTING.—The term ''continuous vetting'' has the meaning given such term in Executive Order 13467 (50 U.S.C. 3161 note; relating to reforming processes related to suitability for government employment, fitness for contractor employees, and eligibility for access to classified national security information).

(4) COUNCIL.—The term ''Council'' means the Security, Suitability, and Credentialing Performance Accountability Council established pursuant to such Executive Order, or any successor entity.

(5) SECURITY EXECUTIVE AGENT.—The term ''Security Executive Agent'' means the officer serving as the Security Executive Agent pursuant to section 803 of the National Security Act of 1947, as added by section 2605.

(6) SUITABILITY AND CREDENTIALING EXECUTIVE AGENT.—The term ''Suitability and Credentialing Executive Agent'' means the Director of the Office of Personnel Management acting as the Suitability and Credentialing Executive Agent in accordance with Executive Order 13467 (50 U.S.C. 3161 note; relating to reforming processes related to suitability for government employment, fitness for contractor employees, and eligibility for access to classified national security information), or any successor entity.

SEC. 2602. REPORTS AND PLANS RELATING TO SECURITY CLEARANCES AND BACKGROUND INVESTIGATIONS.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) ensuring the trustworthiness and security of the workforce, facilities, and information of the Federal Government is of the highest priority to national security and public safety;

(2) the President and Congress should prioritize the modernization of the personnel security framework to improve its efficiency, effectiveness, and accountability;

(3) the current system for security clearance, suitability and fitness for employment, and credentialing lacks efficiencies and capabilities to meet the current threat environment, recruit and retain a trusted workforce, and capitalize on modern technologies; and

(4) changes to policies or processes to improve this system should be vetted through the Council to ensure standardization, portability, and reciprocity in security clearances across the Federal Government.

(b) ACCOUNTABILITY PLANS AND REPORTS.—

(1) PLANS.—Not later than 90 days after the date of the enactment of this Act, the Council shall submit to the appropriate congressional committees and make available to appropriate industry partners the following:

(A) A plan, with milestones, to reduce the background investigation inventory to 200,000, or an otherwise sustainable steady-level, by the end of year 2020. Such plan shall include notes of any required changes in investigative and adjudicative standards or resources.

(B) A plan to consolidate the conduct of background investigations associated with the processing for security clearances in the most effective and efficient manner between the National Background Investigation Bureau and the Defense Security Service, or a successor organization. Such plan shall address required funding, personnel, contracts, information technology, field office structure, policy, governance, schedule, transition costs, and effects on stakeholders.

(2) REPORT ON THE FUTURE OF PERSONNEL SECURITY.—

(A) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Chairman of the Council, in coordination with the members of the Council, shall submit to the appropriate congressional committees and make available to appropriate industry partners a report on the future of personnel security to reflect changes in threats, the workforce, and technology.

(B) CONTENTS.—The report submitted under subparagraph (A) shall include the following:

(i) A risk framework for granting and renewing access to classified information.

(ii) A discussion of the use of technologies to prevent, detect, and monitor threats.

(iii) A discussion of efforts to address reciprocity and portability.

(iv) A discussion of the characteristics of effective insider threat programs.

(v) An analysis of how to integrate data from continuous evaluation, insider threat programs, and human resources data.

(vi) Recommendations on interagency governance.

(3) PLAN FOR IMPLEMENTATION.—Not later than 180 days after the date of the enactment of this Act, the Chairman of the Council, in coordination with the members of the Council, shall submit to the appropriate congressional committees and make available to appropriate industry partners a plan to implement the report's framework and recommendations submitted under paragraph (2)(A).

(4) CONGRESSIONAL NOTIFICATIONS.—Not less frequently than quarterly, the Security Executive Agent shall make available to the public a report regarding the status of the disposition of requests received from departments and agencies of the Federal Government for a change to, or approval under, the Federal investigative standards, the national adjudicative guidelines, continuous evaluation, or other national policy regarding personnel security.

SEC. 2603. IMPROVING THE PROCESS FOR SECURITY CLEARANCES.

(a) REVIEWS.—Not later than 180 days after the date of the enactment of this Act, the Security Executive Agent, in coordination with the members of the Council, shall submit to the appropriate congressional committees and make available to appropriate industry partners a report that includes the following:

(1) A review of whether the information requested on the Questionnaire for National Security Positions (Standard Form 86) and by the Federal Investigative Standards prescribed by the Office of Personnel Management and the Office of the Director of National Intelligence appropriately supports the adjudicative guidelines under Security Executive Agent Directive 4 (known as the ''National Security Adjudicative Guidelines''). Such review shall include identification of whether any such information currently collected is unnecessary to support the adjudicative guidelines.

(2) An assessment of whether such Questionnaire, Standards, and guidelines should be revised to account for the prospect of a holder of a security clearance becoming an insider threat.

(3) Recommendations to improve the background investigation process by—

(A) simplifying the Questionnaire for National Security Positions (Standard Form 86) and increasing customer support to applicants completing such Questionnaire;

(B) using remote techniques and centralized locations to support or replace field investigation work;

(C) using secure and reliable digitization of information obtained during the clearance process;

(D) building the capacity of the background investigation labor sector; and

(E) replacing periodic reinvestigations with continuous evaluation techniques in all appropriate circumstances.

(b) POLICY, STRATEGY, AND IMPLEMENTATION.—Not later than 180 days after the date of the enactment of this Act, the Security Executive Agent shall, in coordination with the members of the Council, establish the following:

(1) A policy and implementation plan for the issuance of interim security clearances.

(2) A policy and implementation plan to ensure contractors are treated consistently in the security clearance process across agencies and departments of the United States as compared to employees of such agencies and departments. Such policy shall address—

(A) prioritization of processing security clearances based on the mission the contractors will be performing;

(B) standardization in the forms that agencies issue to initiate the process for a security clearance;

(C) digitization of background investigation-related forms;

(D) use of the polygraph;

(E) the application of the adjudicative guidelines under Security Executive Agent Directive 4 (known as the ''National Security Adjudicative Guidelines'');

(F) reciprocal recognition of clearances across agencies and departments of the United States, regardless of status of periodic reinvestigation;

(G) tracking of clearance files as individuals move from employment with an agency or department of the United States to employment in the private sector;

(H) collection of timelines for movement of contractors across agencies and departments;

(I) reporting on security incidents and job performance, consistent with section 552a of title 5, United States Code (commonly known as the ''Privacy Act of 1974''), that may affect the ability to hold a security clearance;

(J) any recommended changes to the Federal Acquisition Regulations (FAR) necessary to ensure that information affecting contractor clearances or suitability is appropriately and expeditiously shared between and among agencies and contractors; and

(K) portability of contractor security clearances between or among contracts at the same agency and between or among contracts at different agencies that require the same level of clearance.

(3) A strategy and implementation plan that—

(A) provides for periodic reinvestigations as part of a security clearance determination only on an as-needed, risk-based basis;

(B) includes actions to assess the extent to which automated records checks and other continuous evaluation methods may be used to expedite or focus reinvestigations; and

(C) provides an exception for certain populations if the Security Executive Agent—

(i) determines such populations require reinvestigations at regular intervals; and

(ii) provides written justification to the appropriate congressional committees for any such determination.

(4) A policy and implementation plan for agencies and departments of the United States, as a part of the security clearance process, to accept automated records checks generated pursuant to a security clearance applicant's employment with a prior employer.

(5) A policy for the use of certain background materials on individuals collected by the private sector for background investigation purposes.

(6) Uniform standards for agency continuous evaluation programs to ensure quality and reciprocity in accepting enrollment in a continuous vetting program as a substitute for a periodic investigation for continued access to classified information.

SEC. 2604. GOALS FOR PROMPTNESS OF DETERMINATIONS REGARDING SECURITY CLEARANCES.

(a) RECIPROCITY DEFINED.—In this section, the term ''reciprocity'' means reciprocal recognition by Federal departments and agencies of eligibility for access to classified information.

(b) IN GENERAL.—The Council shall reform the security clearance process with the objective that, by December 31, 2021, 90 percent of all determinations, other than determinations regarding populations identified under section 2603(b)(3)(C), regarding—

(1) security clearances—

(A) at the secret level are issued in 30 days or fewer; and

(B) at the top secret level are issued in 90 days or fewer; and

(2) reciprocity of security clearances at the same level are recognized in 2 weeks or fewer.

(c) CERTAIN REINVESTIGATIONS.—The Council shall reform the security clearance process with the goal that by December 31, 2021, reinvestigation on a set periodicity is not required for more than 10 percent of the population that holds a security clearance.

(d) EQUIVALENT METRICS.—

(1) IN GENERAL.—If the Council develops a set of performance metrics that it certifies to the appropriate congressional committees should achieve substantially equivalent outcomes as those outlined in subsections (b) and (c), the Council may use those metrics for purposes of compliance within this provision.

(2) NOTICE.—If the Council uses the authority provided by paragraph (1) to use metrics as described in such paragraph, the Council shall, not later than 30 days after communicating such metrics to departments and agencies, notify the appropriate congressional committees that it is using such authority.

(e) PLAN.—Not later than 180 days after the date of the enactment of this Act, the Council shall submit to the appropriate congressional committees and make available to appropriate industry partners a plan to carry out this section. Such plan shall include recommended interim milestones for the goals set forth in subsections (b) and (c) for 2019, 2020, and 2021.

SEC. 2605. SECURITY EXECUTIVE AGENT.

(a) IN GENERAL.—Title VIII of the National Security Act of 1947 (50 U.S.C. 3161 et seq.) is amended—

(1) by redesignating sections 803 and 804 as sections 804 and 805, respectively; and

(2) by inserting after section 802 the following:

''SEC. 803. SECURITY EXECUTIVE AGENT.

''(a) IN GENERAL.—The Director of National Intelligence, or such other officer of the United States as the President may designate, shall serve as the Security Executive Agent for all departments and agencies of the United States.

''(b) DUTIES.—The duties of the Security Executive Agent are as follows:

''(1) To direct the oversight of investigations, reinvestigations, adjudications, and, as applicable, polygraphs for eligibility for access to classified information or eligibility to hold a sensitive position made by any Federal agency.

''(2) To review the national security background investigation and adjudication programs of Federal agencies to determine whether such programs are being implemented in accordance with this section.

''(3) To develop and issue uniform and consistent policies and procedures to ensure the effective, efficient, timely, and secure completion of investigations, polygraphs, and adjudications relating to determinations of eligibility for access to classified information or eligibility to hold a sensitive position.

''(4) Unless otherwise designated by law, to serve as the final authority to designate a Federal agency or agencies to conduct investigations of persons who are proposed for access to classified information or for eligibility to hold a sensitive position to ascertain whether such persons satisfy the criteria for obtaining and retaining access to classified information or eligibility to hold a sensitive position, as applicable.

''(5) Unless otherwise designated by law, to serve as the final authority to designate a Federal agency or agencies to determine eligibility for access to classified information or eligibility to hold a sensitive position in accordance with Executive Order 12968 (50 U.S.C. 3161 note; relating to access to classified information).

''(6) To ensure reciprocal recognition of eligibility for access to classified information or eligibility to hold a sensitive position among Federal agencies, including acting as the final authority to arbitrate and resolve disputes among such agencies involving the reciprocity of investigations and adjudications of eligibility.

''(7) To execute all other duties assigned to the Security Executive Agent by law.

''(c) AUTHORITIES.—The Security Executive Agent shall—

''(1) issue guidelines and instructions to the heads of Federal agencies to ensure appropriate uniformity, centralization, efficiency, effectiveness, timeliness, and security in processes relating to determinations by such agencies of eligibility for access to classified information or eligibility to hold a sensitive position, including such matters as investigations, polygraphs, adjudications, and reciprocity;

''(2) have the authority to grant exceptions to, or waivers of, national security investigative requirements, including issuing implementing or clarifying guidance, as necessary;

''(3) have the authority to assign, in whole or in part, to the head of any Federal agency (solely or jointly) any of the duties of the Security Executive Agent described in subsection (b) or the authorities described in paragraphs (1) and (2), provided that the exercise of such assigned duties or authorities is subject to the oversight of the Security Executive Agent, including such terms and conditions (including approval by the Security Executive Agent) as the Security Executive Agent determines appropriate; and

''(4) define and set standards for continuous evaluation for continued access to classified information and for eligibility to hold a sensitive position.''.

(b) REPORT ON RECOMMENDATIONS FOR REVISING AUTHORITIES.—Not later than 30 days after the date on which the Chairman of the Council submits to the appropriate congressional committees the report required by section 2602(b)(2)(A), the Chairman shall submit to the appropriate congressional committees such recommendations as the Chairman may have for revising the authorities of the Security Executive Agent.

(c) CONFORMING AMENDMENT.—Section 103H(j)(4)(A) of such Act (50 U.S.C. 3033(j)(4)(A)) is amended by striking ''in section 804'' and inserting ''in section 805''.

(d) CLERICAL AMENDMENT.—The table of contents in the matter preceding section 2 of such Act (50 U.S.C. 3002) is amended by striking the items relating to sections 803 and 804 and inserting the following:

''Sec. 803. Security Executive Agent.
''Sec. 804. Exceptions.
''Sec. 805. Definitions.''.

SEC. 2606. REPORT ON UNIFIED, SIMPLIFIED, GOVERNMENTWIDE STANDARDS FOR POSITIONS OF TRUST AND SECURITY CLEARANCES.

Not later than 90 days after the date of the enactment of this Act, the Security Executive Agent and the Suitability and Credentialing Executive Agent, in coordination with the other members of the Council, shall jointly submit to the appropriate congressional committees and make available to appropriate industry partners a report regarding the advisability and the risks, benefits, and costs to the Government and to industry of consolidating to not more than 3 tiers for positions of trust and security clearances.

SEC. 2607. REPORT ON CLEARANCE IN PERSON CONCEPT.

(a) SENSE OF CONGRESS.—It is the sense of Congress that to reflect the greater mobility of the modern workforce, alternative methodologies merit analysis to allow greater flexibility for individuals moving in and out of positions that require access to classified information, while still preserving security.

(b) REPORT REQUIRED.—Not later than 90 days after the date of the enactment of this Act, the Security Executive Agent shall submit to the appropriate congressional committees and make available to appropriate industry partners a report that describes the requirements, feasibility, and advisability of implementing a clearance in person concept described in subsection (c).

(c) CLEARANCE IN PERSON CONCEPT.—The clearance in person concept—

(1) permits an individual who once held a security clearance to maintain his or her eligibility for access to classified information, networks, and facilities for up to 3 years after the individual's eligibility for access to classified information would otherwise lapse; and

(2) recognizes, unless otherwise directed by the Security Executive Agent, an individual's security clearance and background investigation as current, regardless of employment status, contingent on enrollment in a continuous vetting program.

(d) CONTENTS.—The report required under subsection (b) shall address—

(1) requirements for an individual to voluntarily remain in a continuous evaluation program validated by the Security Executive Agent even if the individual is not in a position requiring access to classified information;

(2) appropriate safeguards for privacy;

(3) advantages to government and industry;

(4) the costs and savings associated with implementation;

(5) the risks of such implementation, including security and counterintelligence risks;

(6) an appropriate funding model; and

(7) fairness to small companies and independent contractors.

SEC. 2608. REPORTS ON RECIPROCITY FOR SECURITY CLEARANCES INSIDE OF DEPARTMENTS AND AGENCIES.

(a) RECIPROCALLY RECOGNIZED DEFINED.—In this section, the term ''reciprocally recognized'' means reciprocal recognition by Federal departments and agencies of eligibility for access to classified information.

(b) REPORTS TO SECURITY EXECUTIVE AGENT.—The head of each Federal department or agency shall submit an annual report to the Security Executive Agent that—

(1) identifies the number of individuals whose security clearances take more than 2 weeks to be reciprocally recognized after such individuals move to another part of such department or agency; and

(2) breaks out the information described in paragraph (1) by type of clearance and the reasons for any delays.

(c) ANNUAL REPORT.—Not less frequently than once each year, the Security Executive Agent shall submit to the appropriate congressional committees and make available to industry partners an annual report that summarizes the information received pursuant to subsection (b) during the period covered by such report.

SEC. 2609. INTELLIGENCE COMMUNITY REPORTS ON SECURITY CLEARANCES.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) despite sustained efforts by Congress and the executive branch, an unacceptable backlog in processing and adjudicating security clearances persists, both within elements of the intelligence community and in other departments of the Federal Government, with some processing times exceeding a year or even more;

(2) the protracted clearance timetable threatens the ability of elements of the intelligence community to hire and retain highly qualified individuals, and thus to fulfill the missions of such elements;

(3) the prospect of a lengthy clearance process deters some such individuals from seeking employment with the intelligence community in the first place, and, when faced with a long wait time, those with conditional offers of employment may opt to discontinue the security clearance process and pursue different opportunities;

(4) now more than ever, therefore, the broken security clearance process badly needs fundamental reform; and

(5) in the meantime, to ensure the ability of elements of the intelligence community to hire and retain highly qualified personnel, elements should consider, to the extent possible and consistent with national security, permitting new employees to enter on duty immediately or nearly so, and to perform, on a temporary basis pending final adjudication of their security clearances, work that either does not require a security clearance or requires only a low-level interim clearance.

(b) IN GENERAL.—Section 506H of the National Security Act of 1947 (50 U.S.C. 3104) is amended—

(1) in subsection (a)(1)—

(A) in subparagraph (A)(ii), by inserting ''and'' after the semicolon;

(B) in subparagraph (B)(ii), by striking ''; and'' and inserting a period; and

(C) by striking subparagraph (C);

(2) by redesignating subsection (b) as subsection (c);

(3) by inserting after subsection (a) the following new subsection (b):

''(b) INTELLIGENCE COMMUNITY REPORTS.—(1) Not later than March 1 of each year, the Director of National Intelligence shall submit to the congressional intelligence committees, the Committee on Homeland Security and Governmental Affairs of the Senate, and the Committee on Homeland Security of the House of Representatives a report on the security clearances processed by each element of the intelligence community during the preceding fiscal year. Each such report shall separately identify security clearances processed for Federal employees and contractor employees sponsored by each such element.

''(2) Each report submitted under paragraph (1) shall include each of the following for each element of the intelligence community for the fiscal year covered by the report:

''(A) The total number of initial security clearance background investigations sponsored for new applicants.

''(B) The total number of security clearance periodic reinvestigations sponsored for existing employees.

''(C) The total number of initial security clearance background investigations for new applicants that were adjudicated with notice of a determination provided to the prospective applicant, including—

''(i) the total number that were adjudicated favorably and granted access to classified information; and

''(ii) the total number that were adjudicated unfavorably and resulted in a denial or revocation of a security clearance.

''(D) The total number of security clearance periodic background investigations that were adjudicated with notice of a determination provided to the existing employee, including—

''(i) the total number that were adjudicated favorably; and

''(ii) the total number that were adjudicated unfavorably and resulted in a denial or revocation of a security clearance.

''(E) The total number of pending security clearance background investigations, including initial applicant investigations and periodic reinvestigations, that were not adjudicated as of the last day of such year and that remained pending as follows:

''(i) For 180 days or less.

''(ii) For 180 days or longer, but less than 12 months.

''(iii) For 12 months or longer, but less than 18 months.

''(iv) For 18 months or longer, but less than 24 months.

''(v) For 24 months or longer.

''(F) In the case of security clearance determinations completed or pending during the year preceding the year for which the report is submitted that have taken longer than 12 months to complete—

''(i) an explanation of the causes for the delays incurred during the period covered by the report; and

''(ii) the number of such delays involving a polygraph requirement.

''(G) The percentage of security clearance investigations, including initial and periodic reinvestigations, that resulted in a denial or revocation of a security clearance.

''(H) The percentage of security clearance investigations that resulted in incomplete information.

''(I) The percentage of security clearance investigations that did not result in enough information to make a decision on potentially adverse information.

''(3) The report required under this subsection shall be submitted in unclassified form, but may include a classified annex.''; and

(4) in subsection (c), as redesignated by paragraph (2), by striking ''subsection (a)(1)'' and inserting ''subsections (a)(1) and (b)''.

SEC. 2610. PERIODIC REPORT ON POSITIONS IN THE INTELLIGENCE COMMUNITY THAT CAN BE CONDUCTED WITHOUT ACCESS TO CLASSIFIED INFORMATION, NETWORKS, OR FACILITIES.

Not later than 180 days after the date of the enactment of this Act and not less frequently than once every 5 years thereafter, the Director of National Intelligence shall submit to the congressional intelligence committees a report that reviews the intelligence community for which positions can be conducted without access to classified information, networks, or facilities, or may only require a security clearance at the secret level.

SEC. 2611. INFORMATION SHARING PROGRAM FOR POSITIONS OF TRUST AND SECURITY CLEARANCES.

(a) PROGRAM REQUIRED.—

(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Security Executive Agent and the Suitability and Credentialing Executive Agent shall establish and implement a program to share between and among agencies of the Federal Government and industry partners of the Federal Government relevant background information regarding individuals applying for and currently occupying national security positions and positions of trust, in order to ensure the Federal Government maintains a trusted workforce.

(2) DESIGNATION.—The program established under paragraph (1) shall be known as the ''Trusted Information Provider Program'' (in this section referred to as the ''Program'').

(b) PRIVACY SAFEGUARDS.—The Security Executive Agent and the Suitability and Credentialing Executive Agent shall ensure that the Program includes such safeguards for privacy as the Security Executive Agent and the Suitability and Credentialing Executive Agent consider appropriate.

(c) PROVISION OF INFORMATION TO THE FEDERAL GOVERNMENT.—The Program shall include requirements that enable investigative service providers and agencies of the Federal Government to leverage certain pre-employment information gathered during the employment or military recruiting process, and other relevant security or human resources information obtained during employment with or for the Federal Government, that satisfy Federal investigative standards, while safeguarding personnel privacy.

(d) INFORMATION AND RECORDS.—The information and records considered under the Program shall include the following:

(1) Date and place of birth.

(2) Citizenship or immigration and naturalization information.

(3) Education records.

(4) Employment records.

(5) Employment or social references.

(6) Military service records.

(7) State and local law enforcement checks.
(8) Criminal history checks.
(9) Financial records or information.
(10) Foreign travel, relatives, or associations.
(11) Social media checks.
(12) Such other information or records as may be relevant to obtaining or maintaining national security, suitability, fitness, or credentialing eligibility.

(e) IMPLEMENTATION PLAN.—
(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Security Executive Agent and the Suitability and Credentialing Executive Agent shall jointly submit to the appropriate congressional committees and make available to appropriate industry partners a plan for the implementation of the Program.
(2) ELEMENTS.—The plan required by paragraph (1) shall include the following:
(A) Mechanisms that address privacy, national security, suitability or fitness, credentialing, and human resources or military recruitment processes.
(B) Such recommendations for legislative or administrative action as the Security Executive Agent and the Suitability and Credentialing Executive Agent consider appropriate to carry out or improve the Program.

(f) PLAN FOR PILOT PROGRAM ON TWO-WAY INFORMATION SHARING.—
(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Security Executive Agent and the Suitability and Credentialing Executive Agent shall jointly submit to the appropriate congressional committees and make available to appropriate industry partners a plan for the implementation of a pilot program to assess the feasibility and advisability of expanding the Program to include the sharing of information held by the Federal Government related to contract personnel with the security office of the employers of those contractor personnel.
(2) ELEMENTS.—The plan required by paragraph (1) shall include the following:
(A) Mechanisms that address privacy, national security, suitability or fitness, credentialing, and human resources or military recruitment processes.
(B) Such recommendations for legislative or administrative action as the Security Executive Agent and the Suitability and Credentialing Executive Agent consider appropriate to carry out or improve the pilot program.

(g) REVIEW.—Not later than 1 year after the date of the enactment of this Act, the Security Executive Agent and the Suitability and Credentialing Executive Agent shall jointly submit to the appropriate congressional committees and make available to appropriate industry partners a review of the plans submitted under subsections (e)(1) and (f)(1) and utility and effectiveness of the programs described in such plans.

SEC. 2612. REPORT ON PROTECTIONS FOR CONFIDENTIALITY OF WHISTLEBLOWER-RELATED COMMUNICATIONS.

Not later than 180 days after the date of the enactment of this Act, the Security Executive Agent shall, in coordination with the Inspector General of the Intelligence Community, submit to the appropriate congressional committees a report detailing the controls employed by the intelligence community to ensure that continuous vetting programs, including those involving user activity monitoring, protect the confidentiality of whistleblower-related communications.

TITLE XXVII—REPORTS AND OTHER MATTERS

Subtitle A—Matters Relating to Russia and Other Foreign Powers

SEC. 2701. LIMITATION RELATING TO ESTABLISHMENT OR SUPPORT OF CYBERSECURITY UNIT WITH THE RUSSIAN FEDERATION.

(a) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—
(1) the congressional intelligence committees;
(2) the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives; and
(3) the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives.

(b) LIMITATION.—
(1) IN GENERAL.—No amount may be expended by the Federal Government, other than the Department of Defense, to enter into or implement any bilateral agreement between the United States and the Russian Federation regarding cybersecurity, including the establishment or support of any cybersecurity unit, unless, at least 30 days prior to the conclusion of any such agreement, the Director of National Intelligence submits to the appropriate congressional committees a report on such agreement that includes the elements required by subsection (c).
(2) DEPARTMENT OF DEFENSE AGREEMENTS.—Any agreement between the Department of Defense and the Russian Federation regarding cybersecurity shall be conducted in accordance with section 1232 of the National Defense Authorization Act for Fiscal Year 2017 (Public Law 114–328), as amended by section 1231 of the National Defense Authorization Act for Fiscal Year 2018 (Public Law 115–91).

(c) ELEMENTS.—If the Director submits a report under subsection (b) with respect to an agreement, such report shall include a description of each of the following:
(1) The purpose of the agreement.
(2) The nature of any intelligence to be shared pursuant to the agreement.
(3) The expected value to national security resulting from the implementation of the agreement.
(4) Such counterintelligence concerns associated with the agreement as the Director may have and such measures as the Director expects to be taken to mitigate such concerns.

(d) RULE OF CONSTRUCTION.—This section shall not be construed to affect any existing authority of the Director of National Intelligence, the Director of the Central Intelligence Agency, or another head of an element of the intelligence community, to share or receive foreign intelligence on a case-by-case basis.

SEC. 2702. REPORT ON RETURNING RUSSIAN COMPOUNDS.

(a) COVERED COMPOUNDS DEFINED.—In this section, the term ''covered compounds'' means the real property in New York, the real property in Maryland, and the real property in San Francisco, California, that were under the control of the Government of Russia in 2016 and were removed from such control in response to various transgressions by the Government of Russia, including the interference by the Government of Russia in the 2016 election in the United States.

(b) REQUIREMENT FOR REPORT.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional intelligence committees, and the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives (only with respect to the unclassified report), a report on the intelligence risks of returning the covered compounds to Russian control.

(c) FORM OF REPORT.—The report required by this section shall be submitted in classified and unclassified forms.

SEC. 2703. ASSESSMENT OF THREAT FINANCE RELATING TO RUSSIA.

(a) THREAT FINANCE DEFINED.—In this section, the term ''threat finance'' means—
(1) the financing of cyber operations, global influence campaigns, intelligence service activities, proliferation, terrorism, or transnational crime and drug organizations;
(2) the methods and entities used to spend, store, move, raise, conceal, or launder money or value, on behalf of threat actors;
(3) sanctions evasion; and
(4) other forms of threat finance activity domestically or internationally, as defined by the President.

(b) REPORT REQUIRED.—Not later than 60 days after the date of the enactment of this Act, the Director of National Intelligence, in coordination with the Assistant Secretary of the Treasury for Intelligence and Analysis, shall submit to the congressional intelligence committees a report containing an assessment of Russian threat finance. The assessment shall be based on intelligence from all sources, including from the Office of Terrorism and Financial Intelligence of the Department of the Treasury.

(c) ELEMENTS.—The report required by subsection (b) shall include each of the following:
(1) A summary of leading examples from the 3-year period preceding the date of the submittal of the report of threat finance activities conducted by, for the benefit of, or at the behest of—
(A) officials of the Government of Russia;
(B) persons subject to sanctions under any provision of law imposing sanctions with respect to Russia;
(C) Russian nationals subject to sanctions under any other provision of law; or
(D) Russian oligarchs or organized criminals.
(2) An assessment with respect to any trends or patterns in threat finance activities relating to Russia, including common methods of conducting such activities and global nodes of money laundering used by Russian threat actors described in paragraph (1) and associated entities.
(3) An assessment of any connections between Russian individuals involved in money laundering and the Government of Russia.
(4) A summary of engagement and coordination with international partners on threat finance relating to Russia, especially in Europe, including examples of such engagement and coordination.
(5) An identification of any resource and collection gaps.
(6) An identification of—
(A) entry points of money laundering by Russian and associated entities into the United States;
(B) any vulnerabilities within the United States legal and financial system, including specific sectors, which have been or could be exploited in connection with Russian threat finance activities; and
(C) the counterintelligence threat posed by Russian money laundering and other forms of threat finance, as well as the threat to the United States financial system and United States efforts to enforce sanctions and combat organized crime.
(7) Any other matters the Director determines appropriate.

(d) FORM OF REPORT.—The report required under subsection (b) may be submitted in classified form.

SEC. 2704. NOTIFICATION OF AN ACTIVE MEASURES CAMPAIGN.

(a) DEFINITIONS.—In this section:
(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—
(A) the congressional intelligence committees;
(B) the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives; and
(C) the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives.
(2) CONGRESSIONAL LEADERSHIP.—The term ''congressional leadership'' includes the following:
(A) The majority leader of the Senate.
(B) The minority leader of the Senate.
(C) The Speaker of the House of Representatives.
(D) The minority leader of the House of Representatives.

(b) REQUIREMENT FOR NOTIFICATION.—The Director of National Intelligence, in cooperation with the Director of the Federal Bureau of Investigation and the head of any other relevant agency, shall notify the congressional leadership and the Chairman and Vice Chairman or Ranking Member of each of the appropriate congressional committees, and of other relevant committees of jurisdiction, each time the Director of National Intelligence determines there is credible information that a foreign power has, is, or will attempt to employ a covert influence or active measures campaign with regard to the modernization, employment, doctrine, or force posture of the nuclear deterrent or missile defense.

(c) CONTENT OF NOTIFICATION.—Each notification required by subsection (b) shall include information concerning actions taken by the United States to expose or halt an attempt referred to in subsection (b).

SEC. 2705. NOTIFICATION OF TRAVEL BY ACCREDITED DIPLOMATIC AND CONSULAR PERSONNEL OF THE RUSSIAN FEDERATION IN THE UNITED STATES.

In carrying out the advance notification requirements set out in section 502 of the Intelligence Authorization Act for Fiscal Year 2017 (division N of Public Law 115–31; 131 Stat. 825; 22 U.S.C. 254a note), the Secretary of State shall—

(1) ensure that the Russian Federation provides notification to the Secretary of State at least 2 business days in advance of all travel that is subject to such requirements by accredited diplomatic and consular personnel of the Russian Federation in the United States, and take necessary action to secure full compliance by Russian personnel and address any noncompliance; and

(2) provide notice of travel described in paragraph (1) to the Director of National Intelligence and the Director of the Federal Bureau of Investigation within 1 hour of receiving notice of such travel.

SEC. 2706. REPORT ON OUTREACH STRATEGY ADDRESSING THREATS FROM UNITED STATES ADVERSARIES TO THE UNITED STATES TECHNOLOGY SECTOR.

(a) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—In this section, the term ''appropriate committees of Congress'' means—

(1) the congressional intelligence committees;

(2) the Committee on Armed Services and the Committee on Homeland Security and Governmental Affairs of the Senate; and

(3) the Committee on Armed Services, Committee on Homeland Security, and the Committee on Oversight and Reform of the House of Representatives.

(b) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the appropriate committees of Congress a report detailing outreach by the intelligence community and the Defense Intelligence Enterprise to United States industrial, commercial, scientific, technical, and academic communities on matters relating to the efforts of adversaries of the United States to acquire critical United States technology, intellectual property, and research and development information.

(c) CONTENTS.—The report required by subsection (b) shall include the following:

(1) A review of the current outreach efforts of the intelligence community and the Defense Intelligence Enterprise described in subsection (b), including the type of information conveyed in the outreach.

(2) A determination of the appropriate element of the intelligence community to lead such outreach efforts.

(3) An assessment of potential methods for improving the effectiveness of such outreach, including an assessment of the following:

(A) Those critical technologies, infrastructure, or related supply chains that are at risk from the efforts of adversaries described in subsection (b).

(B) The necessity and advisability of granting security clearances to company or community leadership, when necessary and appropriate, to allow for tailored classified briefings on specific targeted threats.

(C) The advisability of partnering with entities of the Federal Government that are not elements of the intelligence community and relevant regulatory and industry groups described in subsection (b), to convey key messages across sectors targeted by United States adversaries.

(D) Strategies to assist affected elements of the communities described in subparagraph (C) in mitigating, deterring, and protecting against the broad range of threats from the efforts of adversaries described in subsection (b), with focus on producing information that enables private entities to justify business decisions related to national security concerns.

(E) The advisability of the establishment of a United States Government-wide task force to coordinate outreach and activities to combat the threats from efforts of adversaries described in subsection (b).

(F) Such other matters as the Director of National Intelligence may consider necessary.

(d) CONSULTATION ENCOURAGED.—In preparing the report required by subsection (b), the Director is encouraged to consult with other government agencies, think tanks, academia, representatives of the financial industry, or such other entities as the Director considers appropriate.

(e) FORM.—The report required by subsection (b) shall be submitted in unclassified form, but may include a classified annex as necessary.

SEC. 2707. REPORT ON IRANIAN SUPPORT OF PROXY FORCES IN SYRIA AND LEBANON.

(a) DEFINITIONS.—In this section:

(1) APPROPRIATE COMMITTEES OF CONGRESS.—The term ''appropriate committees of Congress'' means—

(A) the Committee on Armed Services, the Committee on Foreign Relations, and the Select Committee on Intelligence of the Senate; and

(B) the Committee on Armed Services, the Committee on Foreign Affairs, and the Permanent Select Committee on Intelligence of the House of Representatives.

(2) ARMS OR RELATED MATERIAL.—The term ''arms or related material'' means—

(A) nuclear, biological, chemical, or radiological weapons or materials or components of such weapons;

(B) ballistic or cruise missile weapons or materials or components of such weapons;

(C) destabilizing numbers and types of advanced conventional weapons;

(D) defense articles or defense services, as those terms are defined in paragraphs (3) and (4), respectively, of section 47 of the Arms Export Control Act (22 U.S.C. 2794);

(E) defense information, as that term is defined in section 644 of the Foreign Assistance Act of 1961 (22 U.S.C. 2403); or

(F) items designated by the President for purposes of the United States Munitions List under section 38(a)(1) of the Arms Export Control Act (22 U.S.C. 2778(a)(1)).

(b) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the appropriate committees of Congress a report on Iranian support of proxy forces in Syria and Lebanon and the threat posed to Israel, other United States regional allies, and other specified interests of the United States as a result of such support.

(c) MATTERS FOR INCLUSION.—The report required under subsection (b) shall include information relating to the following matters with respect to both the strategic and tactical implications for the United States and its allies:

(1) A description of arms or related materiel transferred by Iran to Hizballah since March 2011, including the number of such arms or related materiel and whether such transfer was by land, sea, or air, as well as financial and additional technological capabilities transferred by Iran to Hizballah.

(2) A description of Iranian and Iranian-controlled personnel, including Hizballah, Shiite militias, and Iran's Revolutionary Guard Corps forces, operating within Syria, including the number and geographic distribution of such personnel operating within 30 kilometers of the Israeli borders with Syria and Lebanon.

(3) An assessment of Hizballah's operational lessons learned based on its recent experiences in Syria.

(4) A description of any rocket-producing facilities in Lebanon for nonstate actors, including whether such facilities were assessed to be built at the direction of Hizballah leadership, Iranian leadership, or in consultation between Iranian leadership and Hizballah leadership.

(5) An analysis of the foreign and domestic supply chains that significantly facilitate, support, or otherwise aid Hizballah's acquisition or development of missile production facilities, including the geographic distribution of such foreign and domestic supply chains.

(6) An assessment of the provision of goods, services, or technology transferred by Iran or its affiliates to Hizballah to indigenously manufacture or otherwise produce missiles.

(7) An identification of foreign persons that are based on credible information, facilitating the transfer of significant financial support or arms or related materiel to Hizballah.

(8) A description of the threat posed to Israel and other United States allies in the Middle East by the transfer of arms or related material or other support offered to Hizballah and other proxies from Iran.

(d) FORM OF REPORT.—The report required under subsection (b) shall be submitted in unclassified form, but may include a classified annex.

SEC. 2708. ANNUAL REPORT ON IRANIAN EXPENDITURES SUPPORTING FOREIGN MILITARY AND TERRORIST ACTIVITIES.

(a) ANNUAL REPORT REQUIRED.—Not later than 90 days after the date of the enactment of this Act and not less frequently than once each year thereafter, the Director of National Intelligence shall submit to Congress a report describing Iranian expenditures in the previous calendar year on military and terrorist activities outside the country, including each of the following:

(1) The amount spent in such calendar year on activities by the Islamic Revolutionary Guard Corps, including activities providing support for—

(A) Hizballah;

(B) Houthi rebels in Yemen;

(C) Hamas;

(D) proxy forces in Iraq and Syria; or

(E) any other entity or country the Director determines to be relevant.

(2) The amount spent in such calendar year for ballistic missile research and testing or other activities that the Director determines are destabilizing to the Middle East region.

(b) FORM.—The report required under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

SEC. 2709. EXPANSION OF SCOPE OF COMMITTEE TO COUNTER ACTIVE MEASURES AND REPORT ON ESTABLISHMENT OF FOREIGN MALIGN INFLUENCE CENTER.

(a) SCOPE OF COMMITTEE TO COUNTER ACTIVE MEASURES.—

(1) IN GENERAL.—Section 501 of the Intelligence Authorization Act for Fiscal Year 2017 (Public Law 115–31; 50 U.S.C. 3001 note) is amended—

(A) in subsections (a) through (h)—

(i) by inserting '', the People's Republic of China, the Islamic Republic of Iran, the Democratic People's Republic of Korea, or other nation state'' after ''Russian Federation'' each place it appears; and

(ii) by inserting ''**, China, Iran, North Korea, or other nation state**'' after ''Russia'' each place it appears; and

(B) in the section heading, by inserting ''**, THE PEOPLE'S REPUBLIC OF CHINA, THE ISLAMIC REPUBLIC OF IRAN, THE DEMOCRATIC PEOPLE'S REPUBLIC OF KOREA, OR OTHER NATION STATE**'' after ''**RUSSIAN FEDERATION**''.

(2) CLERICAL AMENDMENT.—The table of contents in section 1(b) of such Act is amended by striking the item relating to section 501 and inserting the following new item:

''Sec. 501. Committee to counter active measures by the Russian Federation, the People's Republic of China, the Islamic Republic of Iran, the Democratic People's Republic of Korea, or other nation states to exert covert influence over peoples and governments.''.

(b) REPORT REQUIRED.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence, in coordination with such elements of the intelligence community as the Director considers relevant, shall submit to the congressional intelligence committees a report on the feasibility and advisability of establishing a center, to be known as the ''Foreign Malign Influence Response Center'', that—

(A) is comprised of analysts from all appropriate elements of the intelligence community, including elements with related diplomatic and law enforcement functions;

(B) has access to all intelligence and other reporting acquired by the United States Government on foreign efforts to influence, through overt and covert malign activities, United States political processes and elections;

(C) provides comprehensive assessment, and indications and warning, of such activities; and

(D) provides for enhanced dissemination of such assessment to United States policy makers.

(2) CONTENTS.—The report required by paragraph (1) shall include the following:

(A) A discussion of the desirability of the establishment of such center and any barriers to such establishment.

(B) Such recommendations and other matters as the Director considers appropriate.

Subtitle B—Reports

SEC. 2711. TECHNICAL CORRECTION TO INSPECTOR GENERAL STUDY.

Section 11001(d) of title 5, United States Code, is amended—

(1) in the subsection heading, by striking ''AUDIT'' and inserting ''REVIEW'';

(2) in paragraph (1), by striking ''audit'' and inserting ''review''; and

(3) in paragraph (2), by striking ''audit'' and inserting ''review''.

SEC. 2712. REPORTS ON AUTHORITIES OF THE CHIEF INTELLIGENCE OFFICER OF THE DEPARTMENT OF HOMELAND SECURITY.

(a) DEFINITIONS.—In this section:

(1) APPROPRIATE COMMITTEES OF CONGRESS.—The term ''appropriate committees of Congress'' means—

(A) the congressional intelligence committees;

(B) the Committee on Homeland Security and Governmental Affairs of the Senate; and

(C) the Committee on Homeland Security of the House of Representatives.

(2) HOMELAND SECURITY INTELLIGENCE ENTERPRISE.—The term ''Homeland Security Intelligence Enterprise'' has the meaning given such term in Department of Homeland Security Instruction Number 264–01–001, or successor authority.

(b) REPORT REQUIRED.—Not later than 120 days after the date of the enactment of this Act, the Secretary of Homeland Security, in consultation with the Under Secretary of Homeland Security for Intelligence and Analysis, shall submit to the appropriate committees of Congress a report on the authorities of the Under Secretary.

(c) ELEMENTS.—The report required by subsection (b) shall include each of the following:

(1) An analysis of whether the Under Secretary has the legal and policy authority necessary to organize and lead the Homeland Security Intelligence Enterprise, with respect to intelligence, and, if not, a description of—

(A) the obstacles to exercising the authorities of the Chief Intelligence Officer of the Department and the Homeland Security Intelligence Council, of which the Chief Intelligence Officer is the chair; and

(B) the legal and policy changes necessary to effectively coordinate, organize, and lead intelligence activities of the Department of Homeland Security.

(2) A description of the actions that the Secretary has taken to address the inability of the Under Secretary to require components of the Department, other than the Office of Intelligence and Analysis of the Department to—

(A) coordinate intelligence programs; and

(B) integrate and standardize intelligence products produced by such other components.

SEC. 2713. REVIEW OF INTELLIGENCE COMMUNITY WHISTLEBLOWER MATTERS.

(a) REVIEW OF WHISTLEBLOWER MATTERS.—The Inspector General of the Intelligence Community, in consultation with the inspectors general for the Central Intelligence Agency, the National Security Agency, the National Geospatial-Intelligence Agency, the Defense Intelligence Agency, and the National Reconnaissance Office, shall conduct a review of the authorities, policies, investigatory standards, and other practices and procedures relating to intelligence community whistleblower matters, with respect to such inspectors general.

(b) OBJECTIVE OF REVIEW.—The objective of the review required under subsection (a) is to identify any discrepancies, inconsistencies, or other issues, which frustrate the timely and effective reporting of intelligence community whistleblower matters to appropriate inspectors general and to the congressional intelligence committees, and the fair and expeditious investigation and resolution of such matters.

(c) CONDUCT OF REVIEW.—The Inspector General of the Intelligence Community shall take such measures as the Inspector General determines necessary in order to ensure that the review required by subsection (a) is conducted in an independent and objective fashion.

(d) REPORT.—Not later than 270 days after the date of the enactment of this Act, the Inspector General of the Intelligence Community shall submit to the congressional intelligence committees a written report containing the results of the review required under subsection (a), along with recommendations to improve the timely and effective reporting of intelligence community whistleblower matters to inspectors general and to the congressional intelligence committees and the fair and expeditious investigation and resolution of such matters.

SEC. 2714. REPORT ON ROLE OF DIRECTOR OF NATIONAL INTELLIGENCE WITH RESPECT TO CERTAIN FOREIGN INVESTMENTS.

(a) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence, in consultation with the heads of the elements of the intelligence community determined appropriate by the Director, shall submit to the congressional intelligence committees a report on the role of the Director in preparing analytic materials in connection with the evaluation by the Federal Government of national security risks associated with potential foreign investments into the United States.

(b) ELEMENTS.—The report under subsection (a) shall include—

(1) a description of the current process for the provision of the analytic materials described in subsection (a);

(2) an identification of the most significant benefits and drawbacks of such process with respect to the role of the Director, including the sufficiency of resources and personnel to prepare such materials; and

(3) recommendations to improve such process.

SEC. 2715. REPORT ON SURVEILLANCE BY FOREIGN GOVERNMENTS AGAINST UNITED STATES TELECOMMUNICATIONS NETWORKS.

(a) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means the following:

(1) The congressional intelligence committees.

(2) The Committee on the Judiciary and the Committee on Homeland Security and Governmental Affairs of the Senate.

(3) The Committee on the Judiciary and the Committee on Homeland Security of the House of Representatives.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall, in coordination with the Director of the Central Intelligence Agency, the Director of the National Security Agency, the Director of the Federal Bureau of Investigation, and the Secretary of Homeland Security, submit to the appropriate congressional committees a report describing—

(1) any attempts known to the intelligence community by foreign governments to exploit cybersecurity vulnerabilities in United States telecommunications networks (including Signaling System No. 7) to target for surveillance United States persons, including employees of the Federal Government; and

(2) any actions, as of the date of the enactment of this Act, taken by the intelligence community to protect agencies and personnel of the United States Government from surveillance conducted by foreign governments.

SEC. 2716. BIENNIAL REPORT ON FOREIGN INVESTMENT RISKS.

(a) INTELLIGENCE COMMUNITY INTERAGENCY WORKING GROUP.—

(1) REQUIREMENT TO ESTABLISH.—The Director of National Intelligence shall establish an intelligence community interagency working group to prepare the biennial reports required by subsection (b).

(2) CHAIRPERSON.—The Director of National Intelligence shall serve as the chairperson of such interagency working group.

(3) MEMBERSHIP.—Such interagency working group shall be composed of representatives of each element of the intelligence community that the Director of National Intelligence determines appropriate.

(b) BIENNIAL REPORT ON FOREIGN INVESTMENT RISKS.—

(1) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act and not less frequently than once every 2 years thereafter, the Director of National Intelligence shall submit to the congressional intelligence committees, the Committee on Homeland Security and Governmental Affairs of the Senate, and the Committee on Homeland Security of the House of Representatives a report on foreign investment risks prepared by the interagency working group established under subsection (a).

(2) ELEMENTS.—Each report required by paragraph (1) shall include identification, analysis, and explanation of the following:

(A) Any current or projected major threats to the national security of the United States with respect to foreign investment.

(B) Any strategy used by a foreign country that such interagency working group has identified to be a country of special concern to use foreign investment to target the acquisition of critical technologies, critical materials, or critical infrastructure.

(C) Any economic espionage efforts directed at the United States by a foreign country, particularly such a country of special concern.

SEC. 2717. MODIFICATION OF CERTAIN REPORTING REQUIREMENT ON TRAVEL OF FOREIGN DIPLOMATS.

Section 502(d)(2) of the Intelligence Authorization Act for Fiscal Year 2017 (Public Law 115–31) is amended by striking ''the number'' and inserting ''a best estimate''.

SEC. 2718. SEMIANNUAL REPORTS ON INVESTIGATIONS OF UNAUTHORIZED DISCLOSURES OF CLASSIFIED INFORMATION.

(a) IN GENERAL.—Title XI of the National Security Act of 1947 (50 U.S.C. 3231 et seq.) is amended by adding at the end the following new section:

''SEC. 1105. SEMIANNUAL REPORTS ON INVESTIGATIONS OF UNAUTHORIZED DISCLOSURES OF CLASSIFIED INFORMATION.

''(a) DEFINITIONS.—In this section:

''(1) COVERED OFFICIAL.—The term 'covered official' means—

''(A) the heads of each element of the intelligence community; and

''(B) the inspectors general with oversight responsibility for an element of the intelligence community.

''(2) INVESTIGATION.—The term 'investigation' means any inquiry, whether formal or informal, into the existence of an unauthorized public disclosure of classified information.

''(3) UNAUTHORIZED DISCLOSURE OF CLASSIFIED INFORMATION.—The term 'unauthorized disclosure of classified information' means any unauthorized disclosure of classified information to any recipient.

''(4) UNAUTHORIZED PUBLIC DISCLOSURE OF CLASSIFIED INFORMATION.—The term 'unauthorized public disclosure of classified information' means the unauthorized disclosure of classified information to a journalist or media organization.

''(b) INTELLIGENCE COMMUNITY REPORTING.—

''(1) IN GENERAL.—Not less frequently than once every 6 months, each covered official shall submit to the congressional intelligence committees a report on investigations of unauthorized public disclosures of classified information.

''(2) ELEMENTS.—Each report submitted under paragraph (1) shall include, with respect to the preceding 6-month period, the following:

''(A) The number of investigations opened by the covered official regarding an unauthorized public disclosure of classified information.

''(B) The number of investigations completed by the covered official regarding an unauthorized public disclosure of classified information.

''(C) Of the number of such completed investigations identified under subparagraph (B), the number referred to the Attorney General for criminal investigation.

''(c) DEPARTMENT OF JUSTICE REPORTING.—

''(1) IN GENERAL.—Not less frequently than once every 6 months, the Assistant Attorney General for National Security of the Department of Justice, in consultation with the Director of the Federal Bureau of Investigation, shall submit to the congressional intelligence committees, the Committee on the Judiciary of the Senate, and the Committee on the Judiciary of the House of Representatives a report on the status of each referral made to the Department of Justice from any element of the intelligence community regarding an unauthorized disclosure of classified information made during the most recent 365-day period or any referral that has not yet been closed, regardless of the date the referral was made.

''(2) CONTENTS.—Each report submitted under paragraph (1) shall include, for each referral covered by the report, at a minimum, the following:

''(A) The date the referral was received.

''(B) A statement indicating whether the alleged unauthorized disclosure described in the referral was substantiated by the Department of Justice.

''(C) A statement indicating the highest level of classification of the information that was revealed in the unauthorized disclosure.

''(D) A statement indicating whether an open criminal investigation related to the referral is active.

''(E) A statement indicating whether any criminal charges have been filed related to the referral.

''(F) A statement indicating whether the Department of Justice has been able to attribute the unauthorized disclosure to a particular entity or individual.

''(d) FORM OF REPORTS.—Each report submitted under this section shall be submitted in unclassified form, but may have a classified annex.''.

(b) CLERICAL AMENDMENT.—The table of contents in the first section of the National Security Act of 1947 is amended by inserting after the item relating to section 1104 the following new item:

''Sec. 1105. Semiannual reports on investigations of unauthorized disclosures of classified information.''.

SEC. 2719. CONGRESSIONAL NOTIFICATION OF DESIGNATION OF COVERED INTELLIGENCE OFFICER AS PERSONA NON GRATA.

(a) COVERED INTELLIGENCE OFFICER DEFINED.—In this section, the term ''covered intelligence officer'' means—

(1) a United States intelligence officer serving in a post in a foreign country; or

(2) a known or suspected foreign intelligence officer serving in a United States post.

(b) REQUIREMENT FOR REPORTS.—Not later than 72 hours after a covered intelligence officer is designated as a persona non grata, the Director of National Intelligence, in consultation with the Secretary of State, shall submit to the congressional intelligence committees, the Committee on Foreign Relations of the Senate, and the Committee on Foreign Affairs of the House of Representatives a notification of that designation. Each such notification shall include—

(1) the date of the designation;

(2) the basis for the designation; and

(3) a justification for the expulsion.

SEC. 2720. REPORTS ON INTELLIGENCE COMMUNITY PARTICIPATION IN VULNERABILITIES EQUITIES PROCESS OF FEDERAL GOVERNMENT.

(a) DEFINITIONS.—In this section:

(1) VULNERABILITIES EQUITIES POLICY AND PROCESS DOCUMENT.—The term ''Vulnerabilities Equities Policy and Process document'' means the executive branch document entitled ''Vulnerabilities Equities Policy and Process'' dated November 15, 2017.

(2) VULNERABILITIES EQUITIES PROCESS.—The term ''Vulnerabilities Equities Process'' means the interagency review of vulnerabilities, pursuant to the Vulnerabilities Equities Policy and Process document or any successor document.

(3) VULNERABILITY.—The term ''vulnerability'' means a weakness in an information system or its components (for example, system security procedures, hardware design, and internal controls) that could be exploited or could affect confidentiality, integrity, or availability of information.

(b) REPORTS ON PROCESS AND CRITERIA UNDER VULNERABILITIES EQUITIES POLICY AND PROCESS.—

(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional intelligence committees a written report describing—

(A) with respect to each element of the intelligence community—

(i) the title of the official or officials responsible for determining whether, pursuant to criteria contained in the Vulnerabilities Equities Policy and Process document or any successor document, a vulnerability must be submitted for review under the Vulnerabilities Equities Process; and

(ii) the process used by such element to make such determination; and

(B) the roles or responsibilities of that element during a review of a vulnerability submitted to the Vulnerabilities Equities Process.

(2) CHANGES TO PROCESS OR CRITERIA.—Not later than 30 days after any significant change is made to the process and criteria used by any element of the intelligence community for determining whether to submit a vulnerability for review under the Vulnerabilities Equities Process, such element shall submit to the congressional intelligence committees a report describing such change.

(3) FORM OF REPORTS.—Each report submitted under this subsection shall be submitted in unclassified form, but may include a classified annex.

(c) ANNUAL REPORTS.—

(1) IN GENERAL.—Not less frequently than once each calendar year, the Director of National Intelligence shall submit to the congressional intelligence committees a classified report containing, with respect to the previous year—

(A) the number of vulnerabilities submitted for review under the Vulnerabilities Equities Process;

(B) the number of vulnerabilities described in subparagraph (A) disclosed to each vendor responsible for correcting the vulnerability, or to the public, pursuant to the Vulnerabilities Equities Process; and

(C) the aggregate number, by category, of the vulnerabilities excluded from review under the Vulnerabilities Equities Process, as described in paragraph 5.4 of the Vulnerabilities Equities Policy and Process document.

(2) UNCLASSIFIED INFORMATION.—Each report submitted under paragraph (1) shall include an unclassified appendix that contains—

(A) the aggregate number of vulnerabilities disclosed to vendors or the public pursuant to the Vulnerabilities Equities Process; and

(B) the aggregate number of vulnerabilities disclosed to vendors or the public pursuant to the Vulnerabilities Equities Process known to have been patched.

(3) NON-DUPLICATION.—The Director of National Intelligence may forgo submission of an annual report required under this subsection for a calendar year, if the Director notifies the intelligence committees in writing that, with respect to the same calendar year, an annual report required by paragraph 4.3 of the Vulnerabilities Equities Policy and Process document already has been submitted to Congress, and such annual report contains the information that would otherwise be required to be included in an annual report under this subsection.

SEC. 2721. INSPECTORS GENERAL REPORTS ON CLASSIFICATION.

(a) REPORTS REQUIRED.—Not later than October 1, 2019, each Inspector General listed in subsection (b) shall submit to the congressional intelligence committees a report that includes, with respect to the department or agency of the Inspector General, analyses of the following:

(1) The accuracy of the application of classification and handling markers on a representative sample of finished reports, including such reports that are compartmented.

(2) Compliance with declassification procedures.

(3) The effectiveness of processes for identifying topics of public or historical importance that merit prioritization for a declassification review.

(b) INSPECTORS GENERAL LISTED.—The Inspectors General listed in this subsection are as follows:

(1) The Inspector General of the Intelligence Community.

(2) The Inspector General of the Central Intelligence Agency.

(3) The Inspector General of the National Security Agency.

(4) The Inspector General of the Defense Intelligence Agency.

(5) The Inspector General of the National Reconnaissance Office.

(6) The Inspector General of the National Geospatial-Intelligence Agency.

SEC. 2722. REPORTS ON GLOBAL WATER INSECURITY AND NATIONAL SECURITY IMPLICATIONS AND BRIEFING ON EMERGING INFECTIOUS DISEASE AND PANDEMICS.

(a) REPORTS ON GLOBAL WATER INSECURITY AND NATIONAL SECURITY IMPLICATIONS.—

(1) REPORTS REQUIRED.—Not later than 180 days after the date of the enactment of this Act and not less frequently than once every 5 years thereafter, the Director of National Intelligence shall submit to the congressional intelligence committees a report on the implications of water insecurity on the national security interest of the United States, including consideration of social, economic, agricultural, and environmental factors.

(2) ASSESSMENT SCOPE AND FOCUS.—Each report submitted under paragraph (1) shall include an assessment of water insecurity described in such subsection with a global scope, but focus on areas of the world—

(A) of strategic, economic, or humanitarian interest to the United States—

(i) that are, as of the date of the report, at the greatest risk of instability, conflict, human insecurity, or mass displacement; or

(ii) where challenges relating to water insecurity are likely to emerge and become significant during the 5-year or the 20-year period beginning on the date of the report; and

(B) where challenges relating to water insecurity are likely to imperil the national security interests of the United States or allies of the United States.

(3) CONSULTATION.—In researching a report required by paragraph (1), the Director shall consult with—

(A) such stakeholders within the intelligence community, the Department of Defense, and the Department of State as the Director considers appropriate; and

(B) such additional Federal agencies and persons in the private sector as the Director considers appropriate.

(4) FORM.—Each report submitted under paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

(b) BRIEFING ON EMERGING INFECTIOUS DISEASE AND PANDEMICS.—

(1) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this subsection, the term ''appropriate congressional committees'' means—

(A) the congressional intelligence committees;

(B) the Committee on Foreign Affairs, the Committee on Armed Services, and the Committee on Appropriations of the House of Representatives; and

(C) the Committee on Foreign Relations, the Committee on Armed Services, and the Committee on Appropriations of the Senate.

(2) BRIEFING.—Not later than 120 days after the date of the enactment of this Act, the Director of National Intelligence shall provide to the appropriate congressional committees a briefing on the anticipated geopolitical effects of emerging infectious disease (including deliberate, accidental, and naturally occurring infectious disease threats) and pandemics, and their implications on the national security of the United States.

(3) CONTENT.—The briefing under paragraph (2) shall include an assessment of—

(A) the economic, social, political, and security risks, costs, and impacts of emerging infectious diseases on the United States and the international political and economic system;

(B) the economic, social, political, and security risks, costs, and impacts of a major transnational pandemic on the United States and the international political and economic system; and

(C) contributing trends and factors to the matters assessed under subparagraphs (A) and (B).

(4) EXAMINATION OF RESPONSE CAPACITY.—In examining the risks, costs, and impacts of emerging infectious disease and a possible transnational pandemic under paragraph (3), the Director of National Intelligence shall also examine in the briefing under paragraph (2) the response capacity within affected countries and the international system. In considering response capacity, the Director shall include—

(A) the ability of affected nations to effectively detect and manage emerging infectious diseases and a possible transnational pandemic;

(B) the role and capacity of international organizations and nongovernmental organizations to respond to emerging infectious disease and a possible pandemic, and their ability to coordinate with affected and donor nations; and

(C) the effectiveness of current international frameworks, agreements, and health systems to respond to emerging infectious diseases and a possible transnational pandemic.

(5) FORM.—The briefing under paragraph (2) may be classified.

SEC. 2723. ANNUAL REPORT ON MEMORANDA OF UNDERSTANDING BETWEEN ELEMENTS OF INTELLIGENCE COMMUNITY AND OTHER ENTITIES OF THE UNITED STATES GOVERNMENT REGARDING SIGNIFICANT OPERATIONAL ACTIVITIES OR POLICY.

Section 311 of the Intelligence Authorization Act for Fiscal Year 2017 (50 U.S.C. 3313) is amended—

(1) by redesignating subsection (b) as subsection (c); and

(2) by striking subsection (a) and inserting the following:

''(a) IN GENERAL.—Each year, concurrent with the annual budget request submitted by the President to Congress under section 1105 of title 31, United States Code, each head of an element of the intelligence community shall submit to the congressional intelligence committees a report that lists each memorandum of understanding or other agreement regarding significant operational activities or policy entered into during the most recently completed fiscal year between or among such element and any other entity of the United States Government.

''(b) PROVISION OF DOCUMENTS.—Each head of an element of an intelligence community who receives a request from the Select Committee on Intelligence of the Senate or the Permanent Select Committee on Intelligence of the House of Representatives for a copy of a memorandum of understanding or other document listed in a report submitted by the head under subsection (a) shall submit to such committee the requested copy as soon as practicable after receiving such request.''.

SEC. 2724. STUDY ON THE FEASIBILITY OF ENCRYPTING UNCLASSIFIED WIRELINE AND WIRELESS TELEPHONE CALLS.

(a) STUDY REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall complete a study on the feasibility of encrypting unclassified wireline and wireless telephone calls between personnel in the intelligence community.

(b) REPORT.—Not later than 90 days after the date on which the Director completes the study required by subsection (a), the Director shall submit to the congressional intelligence committees a report on the Director's findings with respect to such study.

SEC. 2725. MODIFICATION OF REQUIREMENT FOR ANNUAL REPORT ON HIRING AND RETENTION OF MINORITY EMPLOYEES.

(a) EXPANSION OF PERIOD OF REPORT.—Subsection (a) of section 114 of the National Security Act of 1947 (50 U.S.C. 3050) is amended by inserting ''and the preceding 5 fiscal years'' after ''fiscal year''.

(b) CLARIFICATION ON DISAGGREGATION OF DATA.—Subsection (b) of such section is amended, in the matter before paragraph (1), by striking ''disaggregated data by category of covered person from each element of the intelligence community'' and inserting ''data, disaggregated by category of covered person and by element of the intelligence community,''.

SEC. 2726. REPORTS ON INTELLIGENCE COMMUNITY LOAN REPAYMENT AND RELATED PROGRAMS.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) there should be established, through the issuing of an Intelligence Community Directive or otherwise, an intelligence community-wide program for student loan repayment, student loan forgiveness, financial counseling, and related matters, for employees of the intelligence community;

(2) creating such a program would enhance the ability of the elements of the intelligence community to recruit, hire, and retain highly qualified personnel, including with respect to mission-critical and hard-to-fill positions;

(3) such a program, including with respect to eligibility requirements, should be designed so as to maximize the ability of the elements of the intelligence community to recruit, hire, and retain highly qualified personnel, including with respect to mission-critical and hard-to-fill positions; and

(4) to the extent possible, such a program should be uniform throughout the intelligence community and publicly promoted by each element of the intelligence community to both current employees of the element as well as to prospective employees of the element.

(b) REPORT ON POTENTIAL INTELLIGENCE COMMUNITY-WIDE PROGRAM.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence, in cooperation with the heads of the elements of the intelligence community and the heads of any other appropriate department or agency of the Federal Government, shall submit to the congressional intelligence committees a report on potentially establishing and carrying out an intelligence community-wide program for student loan repayment, student loan forgiveness, financial counseling, and related matters, as described in subsection (a).

(2) MATTERS INCLUDED.—The report under paragraph (1) shall include, at a minimum, the following:

(A) A description of the financial resources that the elements of the intelligence community would require to establish and initially carry out the program specified in paragraph (1).

(B) A description of the practical steps to establish and carry out such a program.

(C) The identification of any legislative action the Director determines necessary to establish and carry out such a program.

(c) ANNUAL REPORTS ON ESTABLISHED PROGRAMS.—

(1) COVERED PROGRAMS DEFINED.—In this subsection, the term ''covered programs'' means any loan repayment program, loan forgiveness program, financial counseling program, or similar program, established pursuant to title X of the National Security Act of 1947 (50 U.S.C. 3191 et seq.) or any other provision of law that may be administered or used by an element of the intelligence community.

(2) ANNUAL REPORTS REQUIRED.—Not less frequently than once each year, the Director of National Intelligence shall submit to the congressional intelligence committees a report on the covered programs. Each such report shall include, with respect to the period covered by the report, the following:

(A) The number of personnel from each element of the intelligence community who used each covered program.

(B) The total amount of funds each element expended for each such program.

(C) A description of the efforts made by each element to promote each covered program pursuant to both the personnel of the element of the intelligence community and to prospective personnel.

SEC. 2727. REPEAL OF CERTAIN REPORTING REQUIREMENTS.

(a) CORRECTING LONG-STANDING MATERIAL WEAKNESSES.—Section 368 of the Intelligence Authorization Act for Fiscal Year 2010 (Public Law 110–259; 50 U.S.C. 3051 note) is hereby repealed.

(b) INTERAGENCY THREAT ASSESSMENT AND COORDINATION GROUP.—Section 210D of the Homeland Security Act of 2002 (6 U.S.C. 124k) is amended—

(1) by striking subsection (c); and

(2) by redesignating subsections (d) through (i) as subsections (c) through (h), respectively; and

(3) in subsection (c), as so redesignated—

(A) in paragraph (8), by striking ''; and'' and inserting a period; and

(B) by striking paragraph (9).

(c) INSPECTOR GENERAL REPORT.—Section 8H of the Inspector General Act of 1978 (5 U.S.C. App.) is amended—

(1) by striking subsection (g); and

(2) by redesignating subsections (h) and (i) as subsections (g) and (h), respectively.

SEC. 2728. INSPECTOR GENERAL OF THE INTELLIGENCE COMMUNITY REPORT ON SENIOR EXECUTIVES OF THE OFFICE OF THE DIRECTOR OF NATIONAL INTELLIGENCE.

(a) SENIOR EXECUTIVE SERVICE POSITION DEFINED.—In this section, the term ''Senior Executive Service position'' has the meaning given that term in section 3132(a)(2) of title 5, United States Code, and includes any position above the GS–15, step 10, level of the General Schedule under section 5332 of such title.

(b) REPORT.—Not later than 90 days after the date of the enactment of this Act, the Inspector General of the Intelligence Community shall submit to the congressional intelligence committees a report on the number of Senior Executive Service positions in the Office of the Director of National Intelligence.

(c) MATTERS INCLUDED.—The report under subsection (b) shall include the following:

(1) The number of required Senior Executive Service positions for the Office of the Director of National Intelligence.

(2) Whether such requirements are reasonably based on the mission of the Office.

(3) A discussion of how the number of the Senior Executive Service positions in the Office compare to the number of senior positions at comparable organizations.

(d) COOPERATION.—The Director of National Intelligence shall provide to the Inspector General of the Intelligence Community any information requested by the Inspector General of the Intelligence Community that is necessary to carry out this section by not later than 14 calendar days after the date on which the Inspector General of the Intelligence Community makes such request.

SEC. 2729. BRIEFING ON FEDERAL BUREAU OF INVESTIGATION OFFERING PERMANENT RESIDENCE TO SOURCES AND COOPERATORS.

Not later than 30 days after the date of the enactment of this Act, the Director of the Federal Bureau of Investigation shall provide to the congressional intelligence committees a briefing on the ability of the Federal Bureau of Investigation to offer, as an inducement to assisting the Bureau, permanent residence within the United States to foreign individuals who are sources or cooperators in counterintelligence or other national security-related investigations. The briefing shall address the following:

(1) The extent to which the Bureau may make such offers, whether independently or in conjunction with other agencies and departments of the United States Government, including a discussion of the authorities provided by section 101(a)(15)(S) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(S)), section 7 of the Central Intelligence Agency Act (50 U.S.C. 3508), and any other provision of law under which the Bureau may make such offers.

(2) An overview of the policies and operational practices of the Bureau with respect to making such offers.

(3) The sufficiency of such policies and practices with respect to inducing individuals to cooperate with, serve as sources for such investigations, or both.

(4) Whether the Director recommends any legislative actions to improve such policies and practices, particularly with respect to the counterintelligence efforts of the Bureau.

SEC. 2730. INTELLIGENCE ASSESSMENT OF NORTH KOREA REVENUE SOURCES.

(a) ASSESSMENT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence, in coordination with the Assistant Secretary of State for Intelligence and Research and the Assistant Secretary of the Treasury for Intelligence and Analysis, shall produce an intelligence assessment of the revenue sources of the North Korean regime. Such assessment shall include revenue from the following sources:

(1) Trade in coal, iron, and iron ore.

(2) The provision of fishing rights to North Korean territorial waters.

(3) Trade in gold, titanium ore, vanadium ore, copper, silver, nickel, zinc, or rare earth minerals, and other stores of value.

(4) Trade in textiles.

(5) Sales of conventional defense articles and services.

(6) Sales of controlled goods, ballistic missiles, and other associated items.

(7) Other types of manufacturing for export, as the Director of National Intelligence considers appropriate.

(8) The exportation of workers from North Korea in a manner intended to generate significant revenue, directly or indirectly, for use by the government of North Korea.

(9) The provision of nonhumanitarian goods (such as food, medicine, and medical devices) and services by other countries.

(10) The provision of services, including banking and other support, including by entities located in the Russian Federation, China, and Iran.

(11) Online commercial activities of the Government of North Korea, including online gambling.

(12) Criminal activities, including cyber-enabled crime and counterfeit goods.

(b) ELEMENTS.—The assessment required under subsection (a) shall include an identification of each of the following:

(1) The sources of North Korea's funding.

(2) Financial and non-financial networks, including supply chain management, transportation, and facilitation, through which North Korea accesses the United States and international financial systems and repatriates and exports capital, goods, and services; and

(3) the global financial institutions, money services business, and payment systems that assist North Korea with financial transactions.

(c) SUBMITTAL TO CONGRESS.—Upon completion of the assessment required under subsection (a), the Director of National Intelligence shall submit to the congressional intelligence committees a copy of such assessment.

SEC. 2731. REPORT ON POSSIBLE EXPLOITATION OF VIRTUAL CURRENCIES BY TERRORIST ACTORS.

(a) SHORT TITLE.—This section may be cited as the ''Stop Terrorist Use of Virtual Currencies Act''.

(b) REPORT.—Not later than 1 year after the date of the enactment of this Act, the Director of National Intelligence, in consultation with the Secretary of the Treasury, shall submit to Congress a report on the possible exploitation of virtual currencies by terrorist actors. Such report shall include the following elements:

(1) An assessment of the means and methods by which international terrorist organizations and State sponsors of terrorism use virtual currencies.

(2) An assessment of the use by terrorist organizations and State sponsors of terrorism of virtual currencies compared to the use by such organizations and States of other forms of financing to support operations, including an assessment of the collection posture of the intelligence community on the use of virtual currencies by such organizations and States.

(3) A description of any existing legal impediments that inhibit or prevent the intelligence community from collecting information on or helping prevent the use of virtual currencies by international terrorist organizations and State sponsors of terrorism and an identification of any gaps in existing law that could be exploited for illicit funding by such organizations and States.

(c) FORM OF REPORT.—The report required by subsection (b) shall be submitted in unclassified form, but may include a classified annex.

Subtitle C—Other Matters

SEC. 2741. PUBLIC INTEREST DECLASSIFICATION BOARD.

Section 710(b) of the Public Interest Declassification Act of 2000 (Public Law 106–567; 50 U.S.C. 3161 note) is amended by striking ''December 31, 2018'' and inserting ''December 31, 2028''.

SEC. 2742. TECHNICAL AND CLERICAL AMENDMENTS TO THE NATIONAL SECURITY ACT OF 1947.

(a) TABLE OF CONTENTS.—The table of contents at the beginning of the National Security Act of 1947 (50 U.S.C. 3001 et seq.) is amended—

(1) by inserting after the item relating to section 2 the following new item:

''Sec. 3. Definitions.'';

(2) by striking the item relating to section 107;

(3) by striking the item relating to section 113B and inserting the following new item:

''Sec. 113B. Special pay authority for science, technology, engineering, or mathematics positions.'';

(4) by striking the items relating to sections 202, 203, 204, 208, 209, 210, 211, 212, 213, and 214; and

(5) by inserting after the item relating to section 311 the following new item:

''Sec. 312. Repealing and saving provisions.''.

(b) OTHER TECHNICAL CORRECTIONS.—Such Act is further amended—

(1) in section 102A—

(A) in subparagraph (G) of paragraph (1) of subsection (g), by moving the margins of such subparagraph 2 ems to the left; and

(B) in paragraph (3) of subsection (v), by moving the margins of such paragraph 2 ems to the left;

(2) in section 106—

(A) by inserting ''SEC. 106.'' before ''(a)''; and

(B) in subparagraph (I) of paragraph (2) of subsection (b), by moving the margins of such subparagraph 2 ems to the left;

(3) by striking section 107;

(4) in section 108(c), by striking ''in both a classified and an unclassified form'' and inserting ''to Congress in classified form, but may include an unclassified summary'';

(5) in section 112(c)(1), by striking ''section 103(c)(7)'' and inserting ''section 102A(i)'';

(6) by amending section 201 to read as follows:

''SEC. 201. DEPARTMENT OF DEFENSE.

''Except to the extent inconsistent with the provisions of this Act or other provisions of law, the provisions of title 5, United States Code, shall be applicable to the Department of Defense.'';

(7) in section 205, by redesignating subsections (b) and (c) as subsections (a) and (b), respectively;

(8) in section 206, by striking ''(a)'';

(9) in section 207, by striking ''(c)'';

(10) in section 308(a), by striking ''this Act'' and inserting ''sections 2, 101, 102, 103, and 303 of this Act'';

(11) by redesignating section 411 as section 312;

(12) in section 503—

(A) in paragraph (5) of subsection (c)—

(i) by moving the margins of such paragraph 2 ems to the left; and

(ii) by moving the margins of subparagraph (B) of such paragraph 2 ems to the left; and

(B) in paragraph (2) of subsection (d), by moving the margins of such paragraph 2 ems to the left; and

(13) in subparagraph (B) of paragraph (3) of subsection (a) of section 504, by moving the margins of such subparagraph 2 ems to the right.

SEC. 2743. TECHNICAL AMENDMENTS RELATED TO THE DEPARTMENT OF ENERGY.

(a) NATIONAL NUCLEAR SECURITY ADMINISTRATION ACT.—

(1) CLARIFICATION OF FUNCTIONS OF THE ADMINISTRATOR FOR NUCLEAR SECURITY.—Subsection (b) of section 3212 of the National Nuclear Security Administration Act (50 U.S.C. 2402(b)) is amended—

(A) by striking paragraphs (11) and (12); and

(B) by redesignating paragraphs (13) through (19) as paragraphs (11) through (17), respectively.

(2) COUNTERINTELLIGENCE PROGRAMS.—Section 3233(b) of the National Nuclear Security Administration Act (50 U.S.C. 2423(b)) is amended—

(A) by striking ''Administration'' and inserting ''Department''; and

(B) by inserting ''Intelligence and'' after ''the Office of''.

(b) ATOMIC ENERGY DEFENSE ACT.—Section 4524(b)(2) of the Atomic Energy Defense Act (50 U.S.C. 2674(b)(2)) is amended by inserting ''Intelligence and'' after ''The Director of''.

(c) NATIONAL SECURITY ACT OF 1947.—Paragraph (2) of section 106(b) of the National Security Act of 1947 (50 U.S.C. 3041(b)(2)) is amended—

(1) in subparagraph (E), by inserting ''and Counterintelligence'' after ''Office of Intelligence'';

(2) by striking subparagraph (F); and

(3) by redesignating subparagraphs (G), (H), and (I) as subparagraphs (F), (G), and (H), respectively.

SEC. 2744. SENSE OF CONGRESS ON NOTIFICATION OF CERTAIN DISCLOSURES OF CLASSIFIED INFORMATION.

(a) DEFINITIONS.—In this section:

(1) ADVERSARY FOREIGN GOVERNMENT.—The term ''adversary foreign government'' means the government of any of the following foreign countries:

(A) North Korea.

(B) Iran.

(C) China.

(D) Russia.

(E) Cuba.

(2) COVERED CLASSIFIED INFORMATION.—The term ''covered classified information'' means classified information that was—

(A) collected by an element of the intelligence community; or

(B) provided by the intelligence service or military of a foreign country to an element of the intelligence community.

(3) ESTABLISHED INTELLIGENCE CHANNELS.—The term ''established intelligence channels'' means methods to exchange intelligence to coordinate foreign intelligence relationships, as established pursuant to law by the Director of National Intelligence, the Director of the Central Intelligence Agency, the Director of the National Security Agency, or other head of an element of the intelligence community.

(4) INDIVIDUAL IN THE EXECUTIVE BRANCH.—The term ''individual in the executive branch'' means any officer or employee of the executive branch, including individuals—

(A) occupying a position specified in article II of the Constitution;

(B) appointed to a position by an individual described in subparagraph (A); or

(C) serving in the civil service or the Senior Executive Service (or similar service for senior executives of particular departments or agencies).

*(b) FINDINGS.—Congress finds that section 502 of the National Security Act of 1947 (50 U.S.C. 3092) requires elements of the intelligence community to keep the congressional intelligence committees ''fully and currently informed'' about all ''intelligence activities'' of the United States, and to ''furnish to the congressional intelligence committees any information or material concerning intelligence activities * * * which is requested by either of the congressional intelligence committees in order to carry out its authorized responsibilities.''.*

(c) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) section 502 of the National Security Act of 1947 (50 U.S.C. 3092), together with other intelligence community authorities, obligates an element of the intelligence community to submit to the congressional intelligence committees written notification, by not later than 7 days after becoming aware, that an individual in the executive branch has disclosed covered classified information to an official of an adversary foreign government using methods other than established intelligence channels; and

(2) each such notification should include—

(A) the date and place of the disclosure of classified information covered by the notification;

(B) a description of such classified information;

(C) identification of the individual who made such disclosure and the individual to whom such disclosure was made; and

(D) a summary of the circumstances of such disclosure.

SEC. 2745. SENSE OF CONGRESS ON CONSIDERATION OF ESPIONAGE ACTIVITIES WHEN CONSIDERING WHETHER OR NOT TO PROVIDE VISAS TO FOREIGN INDIVIDUALS TO BE ACCREDITED TO A UNITED NATIONS MISSION IN THE UNITED STATES.

It is the sense of the Congress that the Secretary of State, in considering whether or not to provide a visa to a foreign individual to be accredited to a United Nations mission in the United States, should consider—

(1) known and suspected intelligence activities, espionage activities, including activities constituting precursors to espionage, carried out by the individual against the United States, foreign allies of the United States, or foreign partners of the United States; and

(2) the status of an individual as a known or suspected intelligence officer for a foreign adversary.

The CHAIR. No further amendment to the bill, as amended, shall be in order except those printed in part B of House Report 116–154.

Each further amendment printed in part B of the report may be offered only in the order printed in the report, by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

AMENDMENT NO. 1 OFFERED BY MR. STEWART

The CHAIR. It is now in order to consider amendment No. 1 printed in part B of House Report 116–154.

Mr. STEWART. Mr. Chairman, as the designee of the gentleman from Texas (Mr. BURGESS), I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 224, line 15, insert ''the Committee on Energy and Commerce,'' after ''Armed Services,''.

Page 224, line 19, insert ''the Committee on Health, Education, Labor, and Pensions,'' after ''Armed Services,''.

The CHAIR. Pursuant to House Resolution 491, the gentleman from Utah (Mr. STEWART) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Utah.

Mr. STEWART. Mr. Chairman, my amendment is very simple. It adds the House Energy and Commerce Committee and the Senate Health, Education, Labor, and Pensions Committee to the list of committees that will receive a briefing from the Director of National Intelligence on emerging infectious disease and pandemics.

The Energy and Commerce Subcommittee on Health has jurisdiction over all public health and quarantine, as well as the Centers for Disease Control.

Given the Energy and Commerce Committee's and the Senate Health, Education, Labor, and Pensions Committee's jurisdiction over the Assistant Secretary of Preparedness and Response, which plays an integral role in our Nation's public health and security, it is imperative that these committees be included in this briefing.

Mr. Chairman, I reserve the balance of my time.

□ 1930

Mr. SCHIFF. Mr. Chair, I rise in opposition to the amendment, although I am not opposed.

The Acting CHAIR (Mr. THOMPSON of Mississippi). Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. SCHIFF. Mr. Chair, the gentleman from Texas' proposal would allow the congressional committees with jurisdiction over public health matters the opportunity to receive a briefing about the effects of emerging and infectious diseases and pandemics on national security and the international political and economic system, along with the Intelligence Committee and Armed Services Committee.

It is critical that Congress be well-informed on the posture of the United States and, indeed, the rest of the world to address a public health crisis that might arise in the face of a particularly rapidly spreading, devastating disease. It is crucial that committees that oversee public health responses understand how prepared we may be to address such a crisis.

I support this amendment, and I believe it will be helpful to our colleagues on the House Energy and Commerce Committee and the Senate Health, Education, Labor, and Pensions Committee to receive this briefing and information from the DNI, along with the Intelligence, Armed Services, Foreign Affairs, and Appropriations Committees that are already included in the bill text.

For that reason, I support the amendment, and I yield back the balance of my time.

Mr. STEWART. Mr. Chair, I thank the chairman for supporting the amendment. I urge adoption of the amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Utah (Mr. STEWART).

The amendment was agreed to.

AMENDMENT NO. 2 OFFERED BY MR. STEWART

The Acting CHAIR. It is now in order to consider amendment No. 2 printed in part B of House Report 116–154.

Mr. STEWART. Mr. Chair, again I rise as the designee of Mr. BURGESS, and I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following new section:

SEC. 7_____. REMOVAL AND NEUTRALIZATION OF IMSI CATCHERS.

(a) IN GENERAL.—The Secretary of Homeland Security, in collaboration with the Director of National Intelligence, the Chairman of the Federal Communications Commission, and the heads of such other Federal agencies as the Secretary determines appropriate, and following consultation with appropriate private entities, shall—

(1) undertake an effort to remove or neutralize unauthorized IMSI catchers installed by foreign entities or that have an unknown attribution, with prioritization given to IMSI catchers identified in the National Capital Region; and

(2) conduct further assessments, not less than once every 90 days, to identify new IMSI catchers for removal or neutralization.

(b) IMSI CATCHER DEFINED.—The term ''IMSI catcher'' means an international mobile subscriber identity-catcher or other device used for intercepting mobile phone identifying information and location data.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Utah (Mr. STEWART) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Utah.

Mr. STEWART. Mr. Chair, once again, my amendment is simple. It directs the Secretary of Homeland Security, in collaboration with the Director of National Intelligence, Chairman of the Federal Communications Commission, and appropriate private entities, to undertake an effort to remove or neutralize unauthorized international mobile subscriber identity catchers, or cell-site simulators, installed by foreign entities or that have an unknown attribution.

International mobile subscriber identities, IMSI, catchers, or cell-site simulators, are devices used for intercepting mobile traffic and location data. They appear to be legitimate cell phone towers that nearby phones may connect to. Once connected, phone locations can be tracked.

Some advanced IMSI catchers can even read content, such as messages and cell phone data. Much remains unknown about the proliferation of these devices, particularly in the national capital region. However, we do know that foreign actors have access to and have used these devices.

It is imperative that our intelligence community, with the relevant agencies and private industry partners, undertake an effort to neutralize unauthorized IMSI catchers.

Mr. Chair, I urge support of this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Utah (Mr. STEWART).

The amendment was agreed to.

AMENDMENT NO. 3 OFFERED BY MR. CARSON OF INDIANA

The Acting CHAIR. It is now in order to consider amendment No. 3 printed in part B of House Report 116–154.

Mr. CARSON of Indiana. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following new section:

SEC. 7___. PLAN FOR STRENGTHENING THE SUPPLY CHAIN INTELLIGENCE FUNCTION.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Director of the National Counterintelligence and Security Center, in coordination with the Director of the Defense Counterintelligence and Security Agency and other interagency partners, shall submit to Congress a plan for strengthening the supply chain intelligence function.

(b) ELEMENTS.—The plan submitted under subsection (a) shall address the following:

(1) The appropriate workforce model, including size, mix, and seniority, from the elements of the intelligence community and other interagency partners.

(2) The budgetary resources necessary to implement the plan.

(3) The appropriate governance structure within the intelligence community and with interagency partners.

(4) The authorities necessary to implement the plan.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Indiana (Mr. CARSON) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Indiana.

Mr. CARSON of Indiana. Mr. Chair, first, I thank Chairman SCHIFF and Ranking Member NUNES for their work on the Intelligence Authorization Act this year. It is always a pleasure to serve under Chairman SCHIFF's leadership. Without it, the Intelligence Committee would not have been able to pass such a strong bill out of committee.

I rise today, Mr. Chair, in support of an amendment that I have offered to the underlying bill text. This amendment will help the United States protect the integrity of its economic supply chain infrastructure. I am pleased that my good friend Representative ELISE STEFANIK has joined me in cosponsoring this amendment.

Today, businesses and organizations in the United States face an array of distinct and stealthy threats. The American supply chain is under repeated attack from foreign intelligence services, cyber hackers, and sophisticated criminal enterprises.

Unfortunately, experienced adversaries often exploit vulnerabilities in American companies' technological infrastructure or weak links in their organizational supply chain so that they can steal their intellectual property, co-opt equipment from suppliers, damage software, or conduct surveillance. Moving forward, we must be more vigilant to stop them.

The Carson-Stefanik amendment, Mr. Chair, will guard against these grave concerns, and it will lead to stronger safeguards for the supply chain by mandating the National Counterintelligence and Security Center to produce a plan within 6 months to strengthen the supply chain intelligence function within the intelligence community.

The plan, Mr. Chair, will identify personnel with the right expertise from the intelligence community workforce, outline budgetary and resource needs, and describe the necessary authorities and governance structure for future implementation of this plan.

It will inform both the executive branch and Congress' efforts to enhance our defenses against exploitation of the supply chain.

The United States remains one of the most technologically advanced economies in the world. Throughout the past century, America has enjoyed unprecedented economic growth because of the ingenuity of our people and the technological innovation that undergirds that entrepreneurial spirit.

While that economic growth has not always been evenly distributed, and we are still wrestling with debates about economic inequality, surrendering our technological edge and innovative advantages to strategic rivals would pose a huge risk to America's future prosperity and security.

I believe, Mr. Chair, it is very important to offer this amendment, recognizing the evolving and emerging threats to our Nation's supply chain infrastructure. In a very rapidly developing global economy, the intelligence community must work to safeguard the core of what America and her competitive strength is: economic, intellectual, and technological ingenuity.

My amendment proactively works toward that goal, ensuring that we stay on top of those varying threats to our supply chain infrastructure that emanate from strategic rivals.

In addition to this amendment, Mr. Chair, I would like to highlight another important part of the base bill. This year's Intelligence Authorization Act includes an entire section on domestic terrorism. It is important that we acknowledge domestic terrorism as a very serious threat, and we must do more than just talk about it as a societal problem. We must act.

Domestic terrorism incidents in the U.S. are on the rise, fueled by hatred, stoked by fear, and inspired by dangerous rhetoric. At a time when this President is ignoring the truth about domestic terrorism, and his administration is concealing and hiding the proliferation of white supremacist-inspired incidents, Congress and the public urgently need more information to better understand and prevent domestic terrorism.

Specifically, Mr. Chair, this bill would require the FBI, Department of Homeland Security, and NCTC to produce an annual report on domestic terrorism. With the reporting that is mandated in the underlying intelligence authorization bill, we can better determine how to change the law and make the necessary adjustments to procedures and to adequately shift current practices in order to fully address the threat of domestic terrorism and its root causes.

Much of the report, Mr. Chair, would be made available to the public, increasing transparency, while the full report would be provided to oversight committees in greater detail. It would be valuable information and would require an annual strategic assessment on trends and patterns. Ultimately, it will dramatically expand the information on domestic terrorism available to Congress and the public.

I urge my colleagues to support the Carson-Stefanik amendment and the underlying bill, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Indiana (Mr. CARSON).

The amendment was agreed to.

AMENDMENT NO. 4 OFFERED BY MR. HURD OF TEXAS

The Acting CHAIR. It is now in order to consider amendment No. 4 printed in part B of House Report 116–154.

Mr. HURD of Texas. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title V, add the following:

SEC. 5___. ASSESSMENTS REGARDING THE NORTHERN TRIANGLE AND MEXICO.

(a) ASSESSMENTS OF ACTIVITIES BY DRUG TRAFFICKING ORGANIZATIONS IN THE NORTHERN TRIANGLE AND MEXICO.—

(1) REPORT.—Not later than 90 days after the date of the enactment of this Act, the Director of National Intelligence, in coordination with the Chief of Intelligence of the Drug Enforcement Administration and the Assistant Secretary of State for Intelligence and Research, shall submit to the appropriate congressional committees a report containing an analytical assessment of the activities of drug trafficking organizations in the Northern Triangle and Mexico. Such assessment shall include, at a minimum—

(A) an assessment of the effect of drug trafficking organizations on the security and economic situation in the Northern Triangle;

(B) an assessment of the effect of the activities of drug trafficking organizations on the migration of persons from the Northern Triangle to the United States-Mexico border;

(C) a summary of any relevant activities by elements of the intelligence community in relation to drug trafficking organizations in the Northern Triangle and Mexico;

(D) a summary of key methods and routes used by drug trafficking organizations in the Northern Triangle and Mexico to the United States;

(E) an assessment of the intersection between the activities of drug trafficking organizations, human traffickers and human smugglers, and other organized criminal groups in the Northern Triangle and Mexico; and

(F) an assessment of the illicit funds and financial transactions that support the activities of drug trafficking organizations and connected criminal enterprises in the Northern Triangle and Mexico.

(2) FORM.—The report required by paragraph (2) may be submitted in classified form, but if so submitted, shall contain an unclassified summary.

(3) AVAILABILITY.—The report under paragraph (1), or the unclassified summary of the report described in paragraph (2), shall be made publicly available.

(b) ASSESSMENT OF HUMAN TRAFFICKING AND SMUGGLING FROM THE NORTHERN TRIANGLE TO THE UNITED STATES-MEXICO BORDER.—

(1) REPORT REQUIRED.—Not later than 90 days after the date of the enactment of this Act, the Director of National Intelligence, in coordination with the Under Secretary of Homeland Security for Intelligence and Analysis and the Assistant Secretary of State for Intelligence and Research, shall submit to the appropriate congressional committees a report containing an analytical assessment of human trafficking and human smuggling by individuals and organizations in the Northern Triangle and Mexico. Such assessment shall include, at a minimum—

(A) an assessment of the effect of human trafficking and human smuggling on the security and economic situation in the Northern Triangle;

(B) a summary of any relevant activities by elements of the intelligence community in relation to human trafficking and human smuggling in the Northern Triangle and Mexico;

(C) an assessment of the methods and routes used by human traffickers and human smuggler organizations to move persons from the Northern Triangle to the United States-Mexico border;

(D) an assessment of the intersection between the activities of human traffickers and human smugglers, drug trafficking organizations, and other organized criminal groups in the Northern Triangle and Mexico; and

(E) an assessment of the illicit funds and financial transactions that support the activities of human traffickers and human smugglers and connected criminal enterprises in the Northern Triangle and Mexico.

(2) FORM.—The report required by paragraph (1) may be submitted in classified form, but if so submitted, shall contain an unclassified summary.

(3) AVAILABILITY.—The report under paragraph (1), or the unclassified summary of the report described in paragraph (2), shall be made publicly available.

(c) PRIORITIZATION OF INTELLIGENCE RESOURCES FOR THE NORTHERN TRIANGLE AND MEXICO.—

(1) REVIEW OF INTELLIGENCE COMMUNITY EFFORTS IN NORTHERN TRIANGLE AND MEXICO.—The Director of National Intelligence, in coordination with the Under Secretary of Homeland Security for Intelligence and Analysis, the Assistant Secretary of State for Intelligence and Research, the Chief of Intelligence of the Drug Enforcement Administration, and other appropriate officials in the intelligence community, shall carry out a comprehensive review of the current intelligence collection priorities of the intelligence community for the Northern Triangle and Mexico in order to identify whether such priorities are appropriate and sufficient in light of the threat posed by the activities of drug trafficking organizations and human traffickers and human smugglers to the security of the United States and the Western Hemisphere.

(2) REPORT AND BRIEFINGS.—

(A) REPORT ON INITIAL REVIEW.—Not later than 120 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional intelligence committees a comprehensive description of the results of the review required by paragraph (1), including whether the priorities described in that paragraph are appropriate and sufficient in light of the threat posed by the activities of drug trafficking organizations and human traffickers and human smugglers to the security of the United States and the Western Hemisphere. If the report concludes that such priorities are not so appropriate and sufficient, the report shall also include a description of the actions to be taken to modify such priorities in order to assure that such priorities are so appropriate and sufficient.

(B) QUARTERLY BRIEFINGS.—Not later than 90 days after the date on which the report under subparagraph (A) is submitted, and every 90 days thereafter for a 5-year period, the Director of National Intelligence shall provide to the congressional intelligence committees a briefing on the intelligence community's collection priorities and activities in the Northern Triangle and Mexico with a focus on the threat posed by the activities of drug trafficking organizations and human traffickers and human smugglers to the security of the United States and the Western Hemisphere. The first briefing under this subparagraph shall also include a description of the amount of funds expended by the intelligence community to the efforts described in paragraph (1) during each of fiscal years 2018 and 2019.

(3) FORM.—The report and briefings required by paragraph (2) may be submitted or provided in classified form, but if so submitted or provided, shall include an unclassified summary.

(d) DEFINITIONS.—In this section:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Affairs, the Committee on Homeland Security, and the Permanent Select Committee on Intelligence of the House of Representatives; and

(B) the Committee on Foreign Relations, the Committee on Homeland Security and Governmental Affairs, and the Select Committee on Intelligence of the Senate.

(2) HUMAN TRAFFICKING.—The term ''human trafficking'' has the meaning given the term ''severe forms of trafficking in persons'' by section 103 of the Victims of Trafficking and Violence Protection Act of 2000 (22 U.S.C. 7102).

(3) NORTHERN TRIANGLE.—The term ''Northern Triangle'' means El Salvador, Guatemala, and Honduras.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Texas (Mr. HURD) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. HURD of Texas. Mr. Chair, I am proud to join my good friend and fellow

former CIA officer, the gentlewoman from the Commonwealth of Virginia, to offer this bipartisan amendment that would direct the intelligence community to prioritize resources to address the humanitarian crisis at the border, in the Northern Triangle, and also in Mexico.

I represent more of the southern border than any other Member of Congress. The root causes of this current crisis are violence, extreme poverty, and lack of economic opportunity in the Northern Triangle—El Salvador, Guatemala, and Honduras.

Drug cartels, human traffickers, and human smugglers are making this crisis worse and putting innocent lives at risk. They profit while people in Central America suffer and entire nations are destabilized.

Our intelligence community is not maximizing the use of our intelligence to deny and disrupt these operations.

In June, we all know that 104,000 people were detained at our border. Almost every one of them had a phone number of a smuggler, a license plate of a bus that brought them here, or a pickup location in their home country.

Understanding and disabling these smuggling and trafficking networks should be a national intelligence priority. This amendment would require the Director of National Intelligence to conduct a review of intelligence collection priorities in the Northern Triangle and Mexico and then provide quarterly briefings to Congress regarding the intelligence community activities in this region.

These individuals and organizations threaten the security of the United States and the Western Hemisphere, and we should be using intelligence to stop them.

I urge my colleagues to support this amendment, and I reserve the balance of my time.

Ms. SPANBERGER. Mr. Chair, I rise in opposition to the amendment, although I am not opposed.

The Acting CHAIR. Without objection, the gentlewoman from Virginia is recognized for 5 minutes.

There was no objection.

Ms. SPANBERGER. Mr. Chair, I am proud to introduce this amendment alongside my colleague, Congressman HURD from Texas, who is also a former CIA case officer.

Our bipartisan amendment, the Trafficking and Smuggling Intelligence Act, comes at a time of great hardship, violence, and heartbreak across Mexico and the Northern Triangle countries and at a time of crisis at our southern border.

The volatility in our backyard should be cause for serious concern. Here in the United States, we have experienced the devastating effects of the drug trade on the health of our citizens. On our southwest border, we have witnessed how ongoing violence and instability in Central America is a driving factor for increased migration toward the United States.

Our bipartisan amendment would require intelligence assessments of drug trafficking organizations, human trafficking organizations, and human smugglers across Mexico and the Northern Triangle.

□ 1945

These would include reports that could be released publicly to the American people.

Our amendment would direct our public servants to use their expertise to better understand the root causes of violence, instability, and migration. With these improved assessments from DNI, we would be able to strengthen our national security in the face of threats from traffickers, smugglers, and other criminal organizations.

Like so many of our colleagues, Congressman HURD and I recognize that if we are to keep Americans safe while also responsibly addressing the situation at the border, we must address the conditions at the core of the instability we are seeing in Central America.

Mr. Chairman, I urge my colleagues on both sides of the aisle to join us in supporting this amendment, and I yield back the balance of my time.

Mr. HURD of Texas. Mr. Chairman, I am looking forward to working on more pieces of legislation with my friend from the Commonwealth of Virginia, and I want to thank both of the gentlemen from California and their teams for helping us perfect this to get this important piece of legislation onto the floor.

Again, Mr. Chairman, I urge my colleagues to support this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. HURD).

The amendment was agreed to.

AMENDMENT NO. 5 OFFERED BY MR. THOMPSON OF MISSISSIPPI

The Acting CHAIR (Ms. SPANBERGER). It is now in order to consider amendment No. 5 printed in part B of House Report 116–154.

Mr. THOMPSON of Mississippi. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 62, after line 4 insert the following:

(6) Applicable Federal requirements and compliance by the Federal Government with privacy, civil rights, and civil liberties policies and protections with respect to the production of the report, including protections against the public release of names or other personally identifiable information of individuals involved in incidents, investigations, indictments, prosecutions, or convictions for which data is reported under this section.

Page 62, after line 16 insert the following (and redesignate the succeeding clauses):

(ii) the date and location of such incident;

Page 65, line 18, strike ''and'' at the end.

Page 66, line 9, strike the period at the end and insert ''; and''.

Page 66, after line 9 insert the following:

(ix) with respect to the Office of Intelligence and Analysis of the Department of Homeland Security, the number of staff (expressed in terms of full-time equivalents and positions) working on matters relating to domestic terrorism described in clauses (i) through (vi).

Page 69, after line 7 insert the following:

(h) INFORMATION QUALITY.—Each report submitted under subsection (a), to the extent applicable, shall comply with the guidelines issued by the Director of the Office of Management and Budget pursuant to section 515 of title V of the Consolidated Appropriations Act, 2001 (Public Law 106–554; 114 Stat. 2763A–154).

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Mississippi (Mr. THOMPSON) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Mississippi.

Mr. THOMPSON of Mississippi. Madam Chair, I yield myself such time as I may consume.

Madam Chair, I rise to offer an amendment to title VI of H.R. 3494 titled Federal Efforts Against Domestic Terrorism. I am pleased to see that this title was significantly informed by my bill, H.R. 3106, the Domestic Terrorism DATA Act which the Homeland Security Committee will be considering tomorrow.

I am glad to have the opportunity to work with Chairman SCHIFF and the Permanent Select Committee on Intelligence on this text.

My legislation, which requires the government to produce an annual domestic terrorism report, was the product of more than 5 months of engagement with outside stakeholders and experts. As a result of that consultation process, I included protections for civil rights, civil liberties, privacy, and data quality in my bill. These provisions made my bill stronger. My amendment to H.R. 3494 would require that these very protections are included.

Madam Chair, my amendment also requires additional information be included in the government's domestic terrorism report. Requiring the date and location of each incident of terrorism or investigation of terrorism will help Congress and the public better understand the landscape of domestic terrorism.

Madam Chair, I urge my colleagues to support my amendment, and I yield back the balance of my time.

Mr. SCHIFF. Madam Chair, I was going to request the chairman yield me 1 minute of time.

Mr. THOMPSON of Mississippi. Madam Chair, I yield 1 minute to the gentleman from California (Mr. SCHIFF).

The Acting CHAIR (Mrs. DINGELL). Does the gentleman seek unanimous consent to reclaim his time?

Mr. THOMPSON of Mississippi. Yes.

The Acting CHAIR. Without objection, the gentleman from Mississippi is recognized for the balance of his time.

There was no objection.

Mr. THOMPSON of Mississippi. Madam Chair, I yield such time as he may consume to the gentleman from California (Mr. SCHIFF).

Mr. SCHIFF. Madam Chair, this amendment clarifies section 602 of the bill dealing with domestic terrorism. This section would require the FBI, DHS, and the National Counterterrorism Center to produce an annual report and joint strategic intelligence assessment on domestic terrorism.

Chairman THOMPSON's amendment would add safeguards to protect the civil liberties and privacy of individuals whose information would be contained in the report and mandate compliance with the Data Quality Act.

It also would require DHS to disclose information on the allocation of personnel working domestic terrorism matters, enhancing oversight in this area.

I would like to recognize Chairman THOMPSON for his work that the House Homeland Security Committee has done on the issue of domestic terrorism. Together we will continue our lines of effort to address this significant threat.

Once again, Madam Chair, I thank my colleague for his work, and I urge support for the amendment.

Mr. THOMPSON of Mississippi. Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Mississippi (Mr. THOMPSON).

The amendment was agreed to.

AMENDMENT NO. 6 OFFERED BY MR. RUPPERSBERGER

The Acting CHAIR. It is now in order to consider amendment No. 6 printed in part B of House Report 116–154.

Mr. RUPPERSBERGER. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following new section:

SEC. 7_____. SECURING ENERGY INFRASTRUCTURE.

(a) DEFINITIONS.—In this section:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the congressional intelligence committees;

(B) the Committee on Homeland Security and Governmental Affairs and the Committee on Energy and Natural Resources of the Senate; and

(C) the Committee on Homeland Security and the Committee on Energy and Commerce of the House of Representatives.

(2) COVERED ENTITY.—The term ''covered entity'' means an entity identified pursuant to section 9(a) of Executive Order 13636 of February 12, 2013 (78 Fed. Reg. 11742), relating to identification of critical infrastructure where a cybersecurity incident could reasonably result in catastrophic regional or national effects on public health or safety, economic security, or national security.

(3) EXPLOIT.—The term ''exploit'' means a software tool designed to take advantage of a security vulnerability.

(4) INDUSTRIAL CONTROL SYSTEM.—The term ''industrial control system'' means an operational technology used to measure, control, or manage industrial functions, and includes supervisory control and data acquisition systems, distributed control systems, and programmable logic or embedded controllers.

(5) NATIONAL LABORATORY.—The term ''National Laboratory'' has the meaning given the term in section 2 of the Energy Policy Act of 2005 (42 U.S.C. 15801).

(6) PROGRAM.—The term ''Program'' means the pilot program established under subsection (b).

(7) SECRETARY.—Except as otherwise specifically provided, the term ''Secretary'' means the Secretary of Energy.

(8) SECURITY VULNERABILITY.—The term ''security vulnerability'' means any attribute of hardware, software, process, or procedure that could enable or facilitate the defeat of a security control.

(b) PILOT PROGRAM FOR SECURING ENERGY INFRASTRUCTURE.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall establish a 2-year control systems implementation pilot program within the National Laboratories for the purposes of—

(1) partnering with covered entities in the energy sector (including critical component manufacturers in the supply chain) that voluntarily participate in the Program to identify new classes of security vulnerabilities of the covered entities; and

(2) evaluating technology and standards, in partnership with covered entities, to isolate and defend industrial control systems of covered entities from security vulnerabilities and exploits in the most critical systems of the covered entities, including—

(A) analog and nondigital control systems;

(B) purpose-built control systems; and

(C) physical controls.

(c) WORKING GROUP TO EVALUATE PROGRAM STANDARDS AND DEVELOP STRATEGY.—

(1) ESTABLISHMENT.—The Secretary shall establish a working group—

(A) to evaluate the technology and standards used in the Program under subsection (b)(2); and

(B) to develop a national cyber-informed engineering strategy to isolate and defend covered entities from security vulnerabilities and exploits in the most critical systems of the covered entities.

(2) MEMBERSHIP.—The working group established under paragraph (1) shall be composed of not fewer than 10 members, to be appointed by the Secretary, at least 1 member of which shall represent each of the following:

(A) The Department of Energy.

(B) The energy industry, including electric utilities and manufacturers recommended by the Energy Sector coordinating councils.

(C)(i) The Department of Homeland Security; or

(ii) the Industrial Control Systems Cyber Emergency Response Team.

(D) The North American Electric Reliability Corporation.

(E) The Nuclear Regulatory Commission.

(F)(i) The Office of the Director of National Intelligence; or

(ii) the intelligence community (as defined in section 3 of the National Security Act of 1947 (50 U.S.C. 3003)).

(G)(i) The Department of Defense; or

(ii) the Assistant Secretary of Defense for Homeland Security and America's Security Affairs.

(H) A State or regional energy agency.

(I) A national research body or academic institution.

(J) The National Laboratories.

(d) REPORTS ON THE PROGRAM.—

(1) INTERIM REPORT.—Not later than 180 days after the date on which funds are first disbursed under the Program, the Secretary shall submit to the appropriate congressional committees an interim report that—

(A) describes the results of the Program;

(B) includes an analysis of the feasibility of each method studied under the Program; and

(C) describes the results of the evaluations conducted by the working group established under subsection (c)(1).

(2) FINAL REPORT.—Not later than 2 years after the date on which funds are first disbursed under the Program, the Secretary shall submit to the appropriate congressional committees a final report that—

(A) describes the results of the Program;

(B) includes an analysis of the feasibility of each method studied under the Program; and

(C) describes the results of the evaluations conducted by the working group established under subsection (c)(1).

(e) EXEMPTION FROM DISCLOSURE.—Information shared by or with the Federal Government or a State, Tribal, or local government under this section—

(1) shall be deemed to be voluntarily shared information;

(2) shall be exempt from disclosure under section 552 of title 5, United States Code, or any provision of any State, Tribal, or local freedom of information law, open government law, open meetings law, open records law, sunshine law, or similar law requiring the disclosure of information or records; and

(3) shall be withheld from the public, without discretion, under section 552(b)(3) of title 5, United States Code, and any provision of any State, Tribal, or local law requiring the disclosure of information or records.

(f) PROTECTION FROM LIABILITY.—

(1) IN GENERAL.—A cause of action against a covered entity for engaging in the voluntary activities authorized under subsection (b)—

(A) shall not lie or be maintained in any court; and

(B) shall be promptly dismissed by the applicable court.

(2) VOLUNTARY ACTIVITIES.—Nothing in this section subjects any covered entity to liability for not engaging in the voluntary activities authorized under subsection (b).

(g) NO NEW REGULATORY AUTHORITY FOR FEDERAL AGENCIES.—Nothing in this section authorizes the Secretary or the head of any other department or agency of the Federal Government to issue new regulations.

(h) AUTHORIZATION OF APPROPRIATIONS.—

(1) PILOT PROGRAM.—There is authorized to be appropriated $10,000,000 to carry out subsection (b).

(2) WORKING GROUP AND REPORT.—There is authorized to be appropriated $1,500,000 to carry out subsections (c) and (d).

(3) AVAILABILITY.—Amounts made available under paragraphs (1) and (2) shall remain available until expended.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Maryland (Mr. RUPPERSBERGER) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Maryland.

Mr. RUPPERSBERGER. Madam Chair, I yield myself such time as I may consume.

Madam Chair, I rise today in strong support of my amendment to protect the energy grid from cybersecurity threats.

In the 4 years since the Ukraine power grid attack, our enemies have doubled down on their effort to target cybersecurity vulnerabilities in our

Nation's energy infrastructure, especially within industrial control systems. The 2015 Ukraine grid intrusion orchestrated by the Russians was a turning point in industrial cybersecurity. For the first time, hackers penetrated industrial controls of a power plant with the goal of causing widespread disruption.

Both the security and economic consequences of a destructive attack on our energy grid cannot be overstated. We can no longer wait to address these threats. My amendment will ensure we continue to develop the ability to both discover vulnerabilities and keep an eye on emerging threats that could disrupt electricity generation or even cost lives.

I want to thank our government partners, including the Cybersecurity and Infrastructure Security Agency, CISA, the intelligence community, the Department of Energy, and national labs. I look forward to working with all these stakeholders to ensure that we are implementing grid security measures in a responsible way consistent with existing law and authorities. As a member of the Homeland Security Subcommittee on Appropriations, I fully intend to help leverage the authorization in this amendment to supplement the already great effort underway at CISA and other government agencies.

Also I want to thank the many talented computer scientists, cybersecurity experts, and engineers from the private sector, especially the team at Dragos, a cybersecurity firm focused on industrial controls, located in my district in Hanover, Maryland, for all the hard work they do in this space to not only defend against threats but to educate others.

Our amendment is simple and mirrors language already passed by the overwhelming bipartisan majority in the Senate's Intelligence Authorization Act. Senator KING from Maine has been a stalwart force on this issue, and none of this would have happened without his determination and vision on this issue.

The amendment sets up a 2-year pilot program to identify the classes of security vulnerabilities in the grid. It establishes a working group to evaluate the technology solutions proposed by the pilot program. The working group would include government agencies, the energy industry, and other experts.

Lastly, it requires the Department of Energy to submit a report to the relevant congressional committees describing the results of the program.

Finally, I want to thank Judge Carter from Texas who has led the charge on this issue with me in the House since last Congress. Judge Carter is a good friend, and I appreciate his help on this important issue.

Madam Chair, this amendment will help the intelligence community and the government at large better understand the vulnerabilities to certain aspects of our energy grid.

Madam Chair, I yield such time as he may consume to the gentleman from California (Mr. SCHIFF), who is the distinguished chairman of the Permanent Select Committee on Intelligence.

Mr. SCHIFF. Madam Chairman, I thank the gentleman for yielding.

I rise in strong support of the amendment offered by my colleagues from Maryland and Texas which mirrors language passed in the Senate's intelligence authorization bill last month. This provision would bring together government entities and the energy sector in a pilot program for purposes of evaluating and strengthening industrial control systems and related critical infrastructure elements against security vulnerabilities and exploits.

The cyber threats faced by our critical infrastructure remain a persistent national security concern, as the former ranking member of our committee, the distinguished Mr. RUPPERSBERGER, knows all too well. DNI Coats likewise warned in the most recent unclassified Worldwide Threat Assessment about the capabilities of our adversaries to hold U.S. critical infrastructure at risk.

This measure is another line of effort toward securing that infrastructure against outside cyberattacks and disruptions, and I am very proud to support the work of my colleague and friend.

Mr. RUPPERSBERGER. Madam Chair, I yield such time as he may consume to the gentleman from Texas (Mr. CARTER).

Mr. CARTER of Texas. Madam Chair, I thank my friend for yielding.

Madam Chair, today I rise in strong support of the Ruppersberger-Carter amendment to help secure the energy infrastructure. Now is the time to address electrical grid security. Grid attacks are a powerful weapon in the cyber toolkit of really bad actors.

As the two previous speakers said, a cyberattack in Ukraine wiped out their power grid, and over 225,000 people were without power. The Office of the Director of National Intelligence in their 2019 Worldwide Threat Assessment makes numerous mentions of our adversaries' mapping out grid systems, identifying our weaknesses, and developing the very real and deadly capacity to attack our grid system. A targeted attack on our Nation could be devastating.

Securing our energy infrastructure is especially critical in Texas which maintains an independent electric grid.

The Acting CHAIR. The time of the gentleman from Maryland has expired.

Mr. CARTER of Texas. Madam Chair, I claim the time in opposition to the amendment, although I do not oppose the amendment.

The Acting CHAIR. Without objection, the gentleman from Texas is recognized for 5 minutes.

There was no objection.

Mr. CARTER of Texas. Madam Chair, the Electric Reliability Council of Texas is located in Taylor, Texas, which is about 19 miles from my house, and it manages 90 percent of my home State's electrical load. Understanding where our system's weak spots are will enhance ERCOT's work to ensure that we have the most stable and secure energy network in the world.

Our amendment addresses the serious topic of electrical grid security by leveraging the unique aspects of national laboratories to establish solutions to defend the United States energy grid from attacks and to ensure the resiliency of operation during and after an event.

It establishes a 2-year pilot program to study and identify new classes of security vulnerabilities, and research and test technologies that could be used to isolate the most critical systems from cyberattacks.

It creates working groups to develop a national cyber-informed strategy to protect our energy grids.

This amendment is a commonsense approach to solving grid security. I am proud to work across the aisle with my good friend and colleague, DUTCH RUPPERSBERGER, on this important issue.

Madam Chair, I urge support of this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Maryland (Mr. RUPPERSBERGER).

The amendment was agreed to.

□ 2000

AMENDMENT NO. 7 OFFERED BY MR. CHABOT

The Acting CHAIR. It is now in order to consider amendment No. 7 printed in part B of House Report 116–154.

Mr. CHABOT. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 35, strike line 4 through page 42, line 5.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Ohio (Mr. CHABOT) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Ohio.

Mr. CHABOT. Madam Chair, I rise this evening to offer a commonsense amendment to H.R. 3494.

My amendment simply strikes Section 401, which creates the Climate Security Advisory Council. And I thank the gentleman from South Carolina (Mr. DUNCAN) for his leadership, and also cosponsoring this particular amendment.

This council is not the most responsible use of the valuable manpower and funding of the intelligence community, especially since the Director of National Intelligence did not even request that we create such an organization. The Federal Government already has vast resources devoted to the climate issue.

Any climate security intelligence work should be in the context of larger intelligence matters affecting major regions around the world and the U.S. national security infrastructure.

Additionally, many of the existing intelligence organizations already do much of this work on their own, including the CIA. Section 401 would just create unneeded redundancy across the intelligence community.

If the goal is to ensure that we allocate our resources efficiently, we should instead require a report to Congress from the Office of the Director of National Intelligence outlining the necessity for the Climate Security Council before Congress establishes the organization or appropriates any funding.

Madam Chair, I reserve the balance of my time.

The Acting CHAIR. For what purpose does the gentleman—

Mr. DUNCAN. Madam Chair, I rise in favor of the Chabot amendment.

Our country faces serious threats around the globe. We have cyber threats coming from China, Russia, and Iran, and others. Iran is also pursuing nuclear weapons that threaten our friends and our ally, Israel, and indeed the rest of the world.

While ISIS is defeated and on the run, radical islamic terrorism remains one of our Nation's greatest threats, thanks in part to Iran's actions as a leading state sponsor of terrorism.

It is, therefore, extremely irresponsible to take our attention and resources off of these known and proven threats to American national security and divert those funds and attention to climate change.

The intelligence community, which is tasked with protecting Americans from fiscal and cyberattacks, should not bear the burden of silly, politically correct, left-wing social policy. But just as Democrats politicized military policy with the NDAA, here they go again with the intelligence policy.

That is a mistake, it is irresponsible, and that is why I support this amendment to strip out this silly idea and refocus the intelligence community on the actual threats to our national security.

Madam Chair, I yield back the balance of my time.

Mr. CHABOT. Madam Chair, I reserve the balance of my time.

The Acting CHAIR. The gentleman from Ohio has the only time remaining.

Mr. SCHIFF. Madam Chair, I rise in opposition to the amendment and claim time in opposition, therefore.

The Acting CHAIR. The time in opposition has already been claimed.

Would the gentleman from Ohio yield to your colleague from—

Mr. CHABOT. Madam Chair, may I inquire as to how much time I have remaining?

The Acting CHAIR. The gentleman from Ohio has 2½ minutes remaining.

Mr. CHABOT. Madam Chair, I yield myself such time as I may consume.

Madam Chair, I want to quote a great American President, Ronald Reagan.

PARLIAMENTARY INQUIRY

Mr. SCHIFF. Madam Chair, may I make a parliamentary inquiry?

The Acting CHAIR. The gentleman from California will state his parliamentary inquiry.

Mr. SCHIFF. Did the Chair offer time in opposition to the amendment?

The Acting CHAIR. The gentleman from South Carolina claimed the time.

The Chair looked to see who was seeking recognition, and went to the gentleman who was standing.

Mr. HECK. Madam Chair, I was standing when he was recognized. The gentleman from Ohio did not yield to him. And when he asked to claim time in opposition, he did not say ''although I am not opposed.'' And you did not, therefore, ask if there was no objection.

He was not legitimately recognized.

Mr. CHABOT. Madam Chair, I ask unanimous consent that the gentleman be granted 5 minutes in opposition, but I have a little time left.

Madam Chair, I have no objection to the gentleman offering his opposition to this.

The Acting CHAIR. That unanimous consent request cannot be entertained in the Committee of the Whole.

Mr. SCHIFF. Madam Chair, I am sorry. I couldn't hear the ruling of the Chair.

The gentleman asked for unanimous consent.

The Acting CHAIR. The Parliamentarian advised that the request cannot be entertained in the Committee of the Whole.

Mr. SCHIFF. Madam Chair, well, if my colleagues in the minority—I don't know how much time they have both on the amendment and on the time in opposition to the amendment—but if they can yield to my colleague to make sure that he has time for his remarks out of both of their time, I think we can resolve this.

Mr. CHABOT. There is 2½ minutes left. Is that correct?

The Acting CHAIR. The gentleman from Ohio has 2½ minutes remaining.

Mr. SCHIFF. Madam Chair, the gentleman offering the amendment has how much time? Because they claimed both the time on the amendment—

The Acting CHAIR. The proponent of the amendment has 2½ minutes remaining.

Mr. SCHIFF. So no one claimed the time in opposition?

The Acting CHAIR. The gentleman from South Carolina claimed the time and yielded back.

Mr. SCHIFF. Okay. So there should be 5 minutes.

Mr. HECK. He asked for time in opposition but did not state that he was not opposed.

You did not ask if, therefore, there was no objection. He was not legitimately recognized.

The offerer of the amendment did not yield to him. The gentleman from South Carolina claimed time in opposition but did not say ''although I am not opposed.'' He supported the amendment. And you did not ask if there was no objection.

The Acting CHAIR. The gentleman will suspend.

The gentleman claimed the time, and then he yielded back his time.

Mr. HECK. Madam Chair, you didn't ask if there was no objection, which is the customary practice.

The Acting CHAIR. All time claimed by the gentleman from South Carolina has been yielded back.

Mr. CHABOT. Madam Chair, I still have 2½ minutes, is that correct, because I reserved my time?

The Acting CHAIR. The gentleman from Ohio has the only time remaining.

Mr. CHABOT. Madam Chair, I would like to make a unanimous consent request that there be an opposition that gets 5 minutes and that I can close with my 2½ minutes.

We are trying to be fair here, and we are happy to give our colleagues on the other side of the aisle 5 minutes to offer their opposition.

The Acting CHAIR. The Parliamentarian advises that the request cannot be entertained in the Committee of the Whole.

Mr. CHABOT. Madam Chair, I yield 1½ minutes to the gentleman from Washington (Mr. HECK). I will just take 1 minute to wrap up.

The Acting CHAIR. The gentleman is recognized.

Mr. CHABOT. Madam Chair, I have 2½ minutes. Is that right?

The Acting CHAIR. Yes. The gentleman is recognized.

Mr. CHABOT. Madam Chair, I yield 1½ minutes to the gentleman from Washington (Mr. HECK).

The Acting CHAIR. The gentleman yields 1½ minutes to the gentleman from Washington?

Mr. CHABOT. Madam Chair, 2 minutes in opposition.

Mr. SCHIFF. If I could, Madam Chair, through the Chair to my colleague, I appreciate that. We will take you up on that. And on the next amendment that we have time, I will yield to my colleague, and your colleague may yield to you, if you have further comments you want to make on this issue.

Mr. CHABOT. Madam Chair, I have 2½ minutes. I yield 1½ minutes to the gentleman from Washington (Mr. HECK). So I have 1 minute left.

Mr. SCHIFF. Madam Chair, I thank the gentleman through the Chair.

The Acting CHAIR. The gentleman from Washington is recognized for 1½ minutes.

Mr. HECK. Madam Chair, I thank very much the graciousness of the gentleman from Ohio, although I think his amendment is wrongheaded.

Here is what is real:

Climate change is real, number one.

Number two, it has significant national security implications.

Number three, the only smart thing to do is to borrow the old motto from the Boy Scouts, ''Be prepared.'' Passage of this amendment, which would remove the Climate Security Advisory Council, renders us less prepared.

We all know that the intelligence community and the DOD have, time and again, assessed the measurable effects of climate change—rising sea levels, higher temperatures, more frequent extreme weather events, new stressors on natural resources and agriculture—have tangible impacts that exacerbate economic distress, human insecurity, political instability, and other humanitarian conditions detrimental to our national security.

The smart thing to do is to be prepared, to have the advisory council that can work across the intelligence community, that can collect the information, coordinate the information, so that we know what is coming, we know what we are being presented with, and we can confront it in a smart way.

Madam Chair, I urge my colleagues to please defeat this amendment and pass the underlying bill.

Mr. CHABOT. Madam Chair, I think I have 1 minute left.

I thought perhaps the gentleman wanted to support my amendment, but he called it wrongheaded. I am just shocked.

Madam Chair, in closing, this council is a redundant, unnecessary use of manpower funding. We need our intelligence community focused on the most critical threats facing our Nation, specifically, counterterrorism, Iran, China, Russia, North Korea.

If this council is something that the Director of National Intelligence believes is critical to our country, he should come to Congress and make such a request, and to my knowledge, that has not occurred. Madam Chair, until he does, I urge my colleagues to support this amendment and remove this provision from the bill.

I yield back the balance of my time.

The Acting CHAIR. All time for debate has expired.

The question is on the amendment offered by the gentleman from Ohio (Mr. CHABOT).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. CHABOT. Madam Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Ohio will be postponed.

AMENDMENT NO. 8 OFFERED BY MR. SCHIFF

The Acting CHAIR. It is now in order to consider amendment No. 8 printed in part B of House Report 116–154.

Mr. SCHIFF. Madam Chair, I rise to offer this amendment as the designee of Representative GREEN of Texas and Representative CONNOLLY.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following new section:

SEC. 7___. COLLECTION, ANALYSIS, AND DISSEMINATION OF WORKFORCE DATA.

(a) INITIAL REPORTING.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and subject to paragraph (3), the Director of National Intelligence shall make available to the public, the appropriate congressional committees, and the workforce of the intelligence community a report which includes aggregate demographic data and other information regarding the diversity and inclusion efforts of the workforce of the intelligence community.

(2) CONTENTS.—A report made available under paragraph (1)—

(A) shall include unclassified reports and barrier analyses relating to diversity and inclusion efforts;

(B) shall include aggregate demographic data—

(i) by segment of the workforce of the intelligence community and grade or rank;

(ii) relating to attrition and promotion rates;

(iii) that addresses the compliance of the intelligence community with validated inclusion metrics, such as the New Inclusion Quotient index score; and

(iv) that provides demographic comparisons to the relevant nongovernmental labor force and the relevant civilian labor force;

(C) shall include an analysis of applicant flow data, including the percentage and level of positions for which data are collected, and a discussion of any resulting policy changes or recommendations;

(D) shall include demographic data relating to participants in professional development programs of the intelligence community and the rate of placement into senior positions for participants in such programs;

(E) shall include any voluntarily collected demographic data relating to the membership of any external advisory committee or board to which individuals in senior positions in the intelligence community appoint members; and

(F) may include data in proportions or percentages to account for concerns relating to the protection of classified information.

(b) UPDATES.—After making available a report under subsection (a), the Director of National Intelligence shall annually provide a report (which may be provided as part of an annual report required under another provision of law) to the workforce of the intelligence community (including senior leadership), the public, and the appropriate congressional committees that includes—

(1) demographic data and information on the status of diversity and inclusion efforts of the intelligence community;

(2) an analysis of applicant flow data, including the percentage and level of positions for which data are collected, and a discussion of any resulting policy changes or recommendations; and

(3) demographic data relating to participants in professional development programs of the intelligence community and the rate of placement into senior positions for participants in such programs.

(c) EXPAND THE COLLECTION AND ANALYSIS OF VOLUNTARY APPLICANT FLOW DATA.—

(1) IN GENERAL.—The Director of National Intelligence shall develop a system to collect and analyze applicant flow data for as many positions within the intelligence community as practicable, in order to identify areas for improvement in attracting diverse talent, with particular attention to senior and management positions.

(2) PHASED IMPLEMENTATION.—The collection of applicant flow data may be implemented by the Director of National Intelligence in a phased approach commensurate with the resources available to the intelligence community.

(d) IDENTIFY ADDITIONAL CATEGORIES FOR VOLUNTARY DATA COLLECTION OF CURRENT EMPLOYEES.—

(1) IN GENERAL.—The Director of National Intelligence may submit to the Office of Management and Budget and to the appropriate congressional committees a recommendation regarding whether the intelligence community should voluntarily collect more detailed data on demographic categories in addition to the race and ethnicity categories specified in the statistical policy directive issued by the Office of Management and Budget entitled ''Standards for Maintaining, Collecting, and Presenting Federal Data on Race and Ethnicity''.

(2) PROCESS.—In making a recommendation under paragraph (1), the Director of National Intelligence shall—

(A) engage in close consultation with internal stakeholders, such as employee resource or affinity groups;

(B) ensure that there is clear communication with the workforce of the intelligence community—

(i) to explain the purpose of the potential collection of such data; and

(ii) regarding legal protections relating to any anticipated use of such data; and

(C) ensure adherence to relevant standards and guidance issued by the Federal Government.

(e) DEFINITIONS.—In this section:

(1) APPLICANT FLOW DATA.—The term ''applicant flow data'' means data that tracks the rate of applications for job positions among demographic categories.

(2) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Relations, the Committee on Armed Services, the Committee on Homeland Security and Governmental Affairs, the Select Committee on Intelligence, and the Committee on Appropriations of the Senate; and

(B) the Committee on Foreign Affairs, the Committee on Armed Services, the Committee on Homeland Security, the Permanent Select Committee on Intelligence, and the Committee on Appropriations of the House of Representatives.

(3) DIVERSITY.—The term ''diversity'' means diversity of persons based on gender, race, ethnicity, disability status, veteran status, sexual orientation, gender identity, national origin, and other demographic categories.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from California (Mr. SCHIFF) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. SCHIFF. Madam Chair, I am happy to support the amendment offered by Representative GREEN and Representative CONNOLLY, which would require the Director of National Intelligence to make publicly available its annual report that aggregates demographic data and other information regarding the diversity and inclusion efforts within the intelligence community.

The amendment would expand the elements that the DNI must report on to include grade-level attrition and promotion rates, as well as validated metrics, such as New Inclusion Quotient Index scores.

The IQ initiative is designed to help employees and managers foster diversity and inclusion in the workplace.

This amendment is important as we strive to significantly improve hiring and retention in the IC such that the workforce mirrors the American population. It is imperative that we have better visibility into the demographics of our current workforce to legislate well-informed change.

Again, I thank my colleagues for their work, and I am happy to support the amendment and urge my colleagues to do the same.

Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. SCHIFF).

The amendment was agreed to.

AMENDMENT NO. 9 OFFERED BY MR. CASE

The Acting CHAIR. It is now in order to consider amendment No. 9 printed in part B of House Report 116–154.

Mr. CASE. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following new section:

SEC. 708. REPORT ON BEST PRACTICES TO PROTECT PRIVACY AND CIVIL LIBERTIES OF CHINESE AMERICANS.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the People's Republic of China appears to be specifically targeting the Chinese-American community for intelligence purposes;

(2) such targeting carries a substantial risk that the loyalty of such Americans may be generally questioned and lead to unacceptable stereotyping, targeting and racial profiling;

(3) the United States Government has a duty to warn and protect all Americans including those of Chinese descent from these intelligence efforts by the People's Republic of China;

(4) the broad stereotyping, targeting and racial profiling of Americans of Chinese descent is contrary to the values of the United States and reinforces the flawed narrative perpetuated by the People's Republic of China that ethnically Chinese individuals worldwide have a duty to support the People's Republic of China; and

(5) the United States efforts to combat the People's Republic of China's intelligence activities should actively safeguard and promote the constitutional rights of all Chinese Americans.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence, acting through the Office of Civil Liberties, Privacy, and Transparency, in coordination with the civil liberties and privacy officers of the elements of the intelligence community, shall submit a report to the congressional intelligence committees containing—

(1) a review of how the policies, procedures, and practices of the intelligence community that govern the intelligence activities and operations targeting the People's Republic of China affect policies, procedures, and practices relating to the privacy and civil liberties of Americans of Chinese descent who may be targets of espionage and influence operations by China; and

(2) recommendations to ensure that the privacy and civil liberties of Americans of Chinese descent are sufficiently protected.

(c) FORM.—The report under subsection (b) shall be submitted in unclassified form, but may include a classified annex.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Hawaii (Mr. CASE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Hawaii.

Mr. CASE. Madam Chair, I yield myself such time as I may consume.

Madam Chair, not far from here, on the slopes of Capitol Hill, is a small, serene, and unassuming memorial. On its walls are names not now known to too many Americans but indelibly etched in a dark chapter of our national story.

Tule Lake, Poston, Manzanar—these are the internment camps where 120,000 ethnic Japanese, most of them American citizens, were locked up in the hysteria of the Second World War just because they were Japanese.

This amendment, proudly sponsored by many of my colleagues in our Congressional Asian Pacific American Caucus, including our chair, the gentlewoman from California (Ms. JUDY CHU), asked us a question that must be asked: Are we repeating history or in danger of doing so?

□ 2015

In these recent years of justifiably heightened scrutiny on the intelligence activities of the People's Republic of China, a disproportionate number of Americans of Chinese descent have been investigated and prosecuted for espionage.

Those convicted have received disproportionately high sentences, and the too many exonerated have had their careers ruined nonetheless.

No doubt, China seeks to recruit Chinese Americans to its goals, and no doubt, our government should and must review specific cases of potential espionage by China on specific facts. But have we fallen into the same trap all over again of justifying investigations and other actions toward the ends of national security by means of general profiling and targeting based solely on ethnic identity?

The Committee of 100, a group of prominent Chinese Americans in diverse fields, reviewed the empirical evidence and concluded that ''Asian Americans, whether immigrant or native-born, may be facing unfair and increasing racial prejudice in this era of geopolitical competition.''

It stated, and I believe correctly: ''A definite line can be drawn between appropriate prosecution that is based on actual evidence and free of bias and overreaching persecution that is triggered by unfounded suspicions and tainted by racial prejudice. All Americans, regardless of ethnicity, depend on that line.''

This resolution is a flashing red light to our intelligence community: Stop, look, and listen. Take some time to think it through to be sure you are staying on the right side of that line, and then report back to us here in Congress that you have done so and have the procedures and mindset in place to ensure that we won't repeat history with Chinese Americans or any other broad ethnic or interest group.

Madam Chair, I yield 2 minutes to the gentleman from California (Mr. SCHIFF), the committee chair.

Mr. SCHIFF. Madam Chair, I thank the gentleman for yielding.

I strongly support the amendment. This amendment expresses the sense of Congress that racial profiling of Americans of Chinese descent is contrary to the values of the United States and reinforces flawed narratives perpetuated by the People's Republic of China that ethnically Chinese individuals worldwide have a duty to support the People's Republic of China.

Moreover, the amendment reaffirms that the United States Government has a duty to warn and protect all Americans, including those of Chinese descent, from intelligence operations executed by the People's Republic of China.

Finally, the amendment requires the ODNI Office of Civil Liberties, Privacy, and Transparency, in coordination with civil liberties and privacy officers throughout the intelligence community, to submit a report to the congressional intelligence committees. This report would review how the intelligence community policies that govern counterintelligence operations against China impact the civil liberties of Americans of Chinese descent who are the targets of Chinese espionage and provide recommendations to preserve these liberties and privacy interests.

Mr. CASE's important amendment reaffirms that Americans of all backgrounds deserve equal protection under the law and reminds our intelligence community of its duty to protect the privacy and civil liberties of all persons.

Madam Chair, again, I thank my colleague for his work, and I strongly support the amendment.

Mr. CASE. Madam Chair, I strongly urge adoption of this amendment. It is the right amendment. We certainly want our intelligence community to do its job, but we also want them to be very conscious of the decisions that they are making and are in line with our basic civil liberties.

Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Hawaii (Mr. CASE).

The amendment was agreed to.

AMENDMENT NO. 10 OFFERED BY MS. FRANKEL

The Acting CHAIR. It is now in order to consider amendment No. 10 printed in part B of House Report 116–154.

Ms. FRANKEL. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the follow new section:

SEC. 708. INTELLIGENCE ASSESSMENT OF RELATIONSHIP BETWEEN WOMEN AND VIOLENT EXTREMISM.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter, the Director of National Intelligence, in consultation with the Secretary of Defense, the Secretary of State, and the head of any element of the intelligence community the Director determines appropriate, shall submit to the appropriate congressional committees an intelligence assessment on the relationship between women and violent extremism and terrorism throughout the world, including an assessment of—

(1) the historical trends and current state of women's varied roles worldwide in all aspects of violent extremism and terrorism, including as recruiters, sympathizers, perpetrators, and combatants, as well as peacebuilders and preventers;

(2) how women's roles in all aspects of violent extremism and terrorism are likely to change in the near- and medium-term;

(3) the extent to which the unequal status of women affects the ability of armed combatants and terrorist groups to enlist or conscript women as combatants and perpetrators of violence;

(4) how terrorist groups violate the rights of women and girls, including child, early, and forced marriage, abduction, sexual violence, and human trafficking, and the extent to which such violations contribute to the spread of conflict and terrorist activities; and

(5) opportunities to address the security risk posed by female extremists and leverage the roles of women in counterterrorism efforts.

(b) FORM.—The assessment required under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

(c) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the Select Committee on Intelligence, the Committee on Foreign Relations, and the Committee on Armed Services, of the Senate; and

(2) the Permanent Select Committee on Intelligence, the Committee on Foreign Affairs, and the Committee on Armed Services, of the House of Representatives.

The Acting CHAIR. Pursuant to House Resolution 491, the gentlewoman from Florida (Ms. FRANKEL) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Florida.

Ms. FRANKEL. Madam Chair, this amendment takes an important step toward fighting terrorism. It would require the Director of National Intelligence to submit an intelligence assessment on the relationship between women and violent extremism and terrorism.

Madam Chair, to prevent ISIS 2.0 and to improve U.S. counterterrorism and peace-building efforts, we need to pay more attention to the roles that women play in violent extremism, including as victims, as perpetrators, and as preventers.

First, as victims, women are often the first targets of terrorism. We have seen it with the abduction and rape of thousands of women and girls by ISIS, the kidnapping of hundreds of girls by Boko Haram in Nigeria, and the attack of girls just trying to go to school by the Taliban.

Secondly, Madam Chair, women are not only the victims of terrorism. Some are perpetrators. Recent research shows that women are turning to terror organizations because of false promises of protection, escape from abuse at home, and even, believe it or not, for leadership opportunities. As a result, women-led attacks are rising. In fact, now, 20 to 30 percent of foreign terrorist fighters are women. In sub-Saharan Africa alone, three out of four child suicide bombers are girls.

Madam Chair, women are not only victims and perpetrators of terrorism. They are also preventers, as mothers, wives, and daughters. They influence their spouses and children. They are on the front line of detecting early signs of radicalization in their families and communities.

Madam Chair, because of gender inequality, their warnings are often ignored.

Let me give you an example. Afghan women saw young men being recruited at a wedding, and they shared their concerns with law enforcement. They were dismissed. Later, those same recruits went on to kill 32 people in a bus attack.

I conclude, Madam Chair, by saying that understanding women's unique roles in terrorism is important to creating more peaceful communities around the world, which results in more security for the United States of America.

Madam Chair, I urge all of my colleagues to support this very important amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Florida (Ms. FRANKEL).

The amendment was agreed to.

AMENDMENT NO. 11 OFFERED BY MR. KENNEDY

The Acting CHAIR. It is now in order to consider amendment No. 11 printed in part B of House Report 116–154.

Mr. KENNEDY. Madam Chair, I wish to speak on behalf of the amendment.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title IV add the following new section:

SEC. 403. FOREIGN THREAT RESPONSE CENTER.

(a) ESTABLISHMENT.—The National Security Act of 1947 (50 U.S.C. 3001 et seq.) is amended by inserting after section 119B the following new section:

''SEC. 119C. FOREIGN THREAT RESPONSE CENTER.

''(a) ESTABLISHMENT.—There is within the Office of the Director of National Intelligence a Foreign Threat Response Center (in this section referred to as the 'Center').

''(b) MISSION.—The primary missions of the Center shall be as follows:

''(1) To serve as the primary organization in the United States Government for analyzing and integrating all intelligence possessed or acquired by the United States Government pertaining to foreign threats.

''(2) To synchronize the efforts of the intelligence community with respect to countering foreign efforts to undermine the national security, political sovereignty, and economic activity of the United States and the allies of the United States, including by—

''(A) ensuring that each such element is aware of and coordinating on such efforts; and

''(B) overseeing the development and implementation of comprehensive and integrated policy responses to such efforts.

''(3) In coordination with the relevant elements of the Department of State, the Department of Defense, the Federal Bureau of Investigation, the intelligence community, and other departments and agencies of the United States—

''(A) to develop policy recommendations for the President to detect, deter, and respond to foreign threats, including with respect to covert activities pursuant to section 503; and

''(B) to monitor and assess foreign efforts to carry out such threats.

''(4) In coordination with the head of the Global Engagement Center established by section 1287 of the National Defense Authorization Act for Fiscal Year 2017 (Public Law 114–328), to examine current and emerging foreign efforts to use propaganda and information operations relating to the threats described in paragraph (1).

''(5) To identify and close gaps across the departments and agencies of the Federal Government with respect to expertise, readiness, and planning to address foreign threats.

''(c) DIRECTOR.—

''(1) APPOINTMENT.—There is a Director of the Center, who shall be the head of the Center, and who shall be appointed by the Director of National Intelligence, with the concurrence of the Secretary of State. The Director may not simultaneously serve in any other capacity in the executive branch.

''(2) REPORTING.—The Director of the Center shall directly report to the Director of National Intelligence.

''(3) RESPONSIBILITIES.—The Director of the Center shall—

''(A) ensure that the relevant departments and agencies of the Federal Government participate in the mission of the Center, including by recruiting detailees from such departments and agencies in accordance with subsection (e)(1); and

''(B) have primary responsibility within the United States Government, in coordination with the Director of National Intelligence, for establishing requirements for the collection of intelligence related to, or regarding, foreign threats, in accordance with applicable provisions of law and Executive orders.

''(d) ANNUAL REPORTS.—

''(1) IN GENERAL.—At the direction of the Director of National Intelligence, but not less than once each year, the Director of the Center shall submit to the appropriate congressional committees a report on foreign threats.

''(2) MATTERS INCLUDED.—Each report under paragraph (1) shall include, with respect to the period covered by the report, a discussion of the following:

''(A) The nature of the foreign threats.

''(B) The ability of the United States Government to address such threats.

''(C) The progress of the Center in achieving its missions.

''(D) Recommendations the Director determines necessary for legislative actions to improve the ability of the Center to achieve its missions.

''(3) FORM.—Each report under paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

''(e) EMPLOYEES.—

''(1) DETAILEES.—Any Federal Government employee may be detailed to the Center on a reimbursable or nonreimbursable basis, and such detail shall be without interruption or loss of civil service status or privilege for a period of not more than 8 years.

''(2) PERSONAL SERVICE CONTRACTORS.—The Director of National Intelligence, in consultation with the Secretary of State, may hire United States citizens or aliens as personal services contractors for purposes of personnel resources of the Center, if—

''(A) the Director of National Intelligence determines that existing personnel resources are insufficient;

''(B) the period in which services are provided by a personal services contractor, including options, does not exceed 3 years, unless the Director of National Intelligence determines that exceptional circumstances justify an extension of up to 1 additional year;

''(C) not more than 10 United States citizens or aliens are employed as personal services contractors under the authority of this paragraph at any time; and

''(D) the authority of this paragraph is only used to obtain specialized skills or experience or to respond to urgent needs.

''(3) SECURITY CLEARANCES.—Each employee detailed to the Center and contractor of the Center shall have the security clearance appropriate for the assigned duties of the employee or contractor.

''(f) BOARD.—

''(1) ESTABLISHMENT.—There is established a Board of the Foreign Threat Response Center (in this section referred to as the 'Board').

''(2) FUNCTIONS.—The Board shall conduct oversight of the Center to ensure the Center is achieving the missions of the Center. In conducting such oversight, upon a majority vote of the members of the Board, the Board may recommend to the Director of National Intelligence that the Director of the Center should be removed for failing to achieve such missions.

''(3) MEMBERSHIP.—

''(A) APPOINTMENT.—The Board shall consist of 7 members. The head of each department or agency of the Federal Government specified in subparagraph (B) shall appoint a senior official from that department or agency, who shall be a member of the Senior Executive Service, as a member.

''(B) DEPARTMENTS AND AGENCIES REPRESENTED.—The department or agency of the Federal Government specified in this subparagraph are the following:

''(i) The Department of State.

''(ii) The Department of Defense.

''(iii) The Department of Justice.

''(iv) The Department of the Treasury.

''(v) The Department of Homeland Security.

''(vi) The Central Intelligence Agency.

''(vii) The Federal Bureau of Investigation.

''(4) MEETINGS.—The Board shall meet not less than biannually and shall be convened by the member appointed by the Secretary of State.

''(g) INTERNATIONAL ENGAGEMENT.—The Director of the Center may convene biannual conferences to coordinate international efforts against foreign threats.

''(h) TERMINATION.—The Center shall terminate on the date that is 8 years after the date of the enactment of this section.

''(i) DEFINITIONS.—In this section:

''(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—the term 'appropriate congressional committees' means—

''(A) the congressional intelligence committees;

''(B) the Committee on Foreign Affairs and the Committee on Armed Services of the House of Representatives; and

''(C) the Committee on Foreign Relations and the Committee on Armed Services of the Senate.

''(2) FOREIGN THREATS.—The term 'foreign threats' means efforts to influence, through overt or covert malign activities, the national security, political sovereignty, or economic activity of the United States or the allies of the United States, made by the government of any of the following foreign countries:

''(A) Russia.

''(B) Iran.

''(C) North Korea.

''(D) China.

''(E) Any other foreign country that the Director determines appropriate for purposes of this section.''.

(b) CLERICAL AMENDMENT.—The table of contents at the beginning of such Act is amended by inserting after the item relating to section 119B the following new item:

''Sec. 119C. Foreign Threat Response Center.''.

(c) CONFORMING AMENDMENT.—Section 507(a) of such Act (50 U.S.C. 3106) is amended by adding at the end the following new paragraph:

''(6) An annual report submitted under section 119C(d)(1).''.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Massachusetts (Mr. KENNEDY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Massachusetts.

Mr. KENNEDY. Madam Chair, I begin by thanking the chairman of the committee and his staff for their dedication to getting this amendment here today and for their long and strong defense of our electoral system from foreign interference.

Madam Chair, a few weeks ago, Special Counsel Robert Mueller stood before the American people and issued a stern warning and an ominous challenge. In what he referred to as the central allegation of his 2-year-long investigation, he told us that there were ''multiple, systemic efforts to interfere in our election. That allegation deserves the attention of every American.''

Our democracy was attacked, our government undermined, and our election system weakened. We were manipulated.

A foreign adversary exposed many of our worst impulses as they hacked, prodded, forged, stole, lied, and exploited in a coordinated and sustained effort to change the trajectory of this country.

We cannot change what happened in 2016, but we can learn from it because our adversaries certainly did. They watched as politicians were all too eager to use hacked material. They took notes as social media networks were used to inflame racial, geographic, and demographic divisions.

According to the ''Worldwide Threat Assessment'' by the Director of National Intelligence, Dan Coats, Russia, China, and Iran already have their eyes trained on 2020.

That is why we must proactively create a foreign threat response center tasked with identifying and rejecting any attempts by any adversary to influence our political process because we cannot hold ourselves up as a beacon of democracy if we are not willing to defend the institutions upon which our democratic system rests.

By removing politics from this response and coordinating it under one roof within the intelligence community, we can rebuild that faith in our system.

In this body, we have no greater responsibility than to protect the sanctity of our elections, to protect the trust of our citizens, and to protect our faith in government. That is what this amendment codifies.

Madam Chair, I encourage all of my colleagues to support this amendment, and I reserve the balance of my time.

Mr. CONAWAY. Madam Chair, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentleman from Texas is recognized for 5 minutes.

Mr. CONAWAY. Madam Chair, before I get to my objections to the amendment, I want to congratulate the chairman, the majority members of the committee, as well as the majority staff for the great work they did in helping us bring a fully bipartisan bill to the floor, which I fully intend to support.

They also helped us navigate the intricacies of the Rules Committee so that what we are debating tonight, with the amendments that were put forward, we will be able to support this bill on the floor tomorrow or whenever they decide to bring it up. I thank the chairman for the good work that they put into it.

Madam Chair, I do, though, rise in opposition to this amendment. For the past several years, the House Intelligence Committee has spent a significant amount of time overseeing the intelligence community's ongoing efforts to counter foreign malign influence targeting the United States. Although Russia gains significant and necessary attention given the events of 2016, the committee is also concerned about Chinese, Iranian, and other foreign powers that have designs on sowing discord in the United States or covertly influencing the American populace.

The amendment today would establish a foreign threat response center within the Office of the Director of National Intelligence. While I believe my colleague from Massachusetts offers this amendment with the best of intentions, it is clearly redundant to existing efforts and creates an additional and potentially unnecessary bureaucracy within an organization that may not be best suited to take the lead on these actions.

This issue is not new. Last Congress, we worked with the gentleman from Massachusetts in adding a report to the fiscal 2018 and 2019 IAAs that would examine the necessity of a foreign malign influence response center. This report remains in the bill, given that it is a 3-year bill.

I am not convinced of the necessity of such a center, given the ongoing efforts by our intelligence community to address this problem. However, even assuming its necessity, I am concerned that the ODNI may not be the best place for such a center. Based on our ongoing oversight efforts, we know that the interagency is taking the threat of foreign malign influences very seriously. Given the significant counterintelligence impact to the homeland, it may make more sense to house such an entity within the FBI.

I don't believe in putting the cart before the horse. It is important for us to collect all the necessary information in order for Congress to make an informed decision after significant debate on the merits of such a center and whether the ODNI is the right home for it. This debate should happen within the Intelligence Committee. To date, that debate has not occurred.

This amendment would also set up a board to oversee the work of the Foreign Intelligence Center, which would then be overseen by the House and Senate Intelligence Committees. Again, a redundancy that is, in my estimation, not necessary.

Madam Chair, based on these foregoing reasons, I will oppose the gentleman's amendment and urge my colleagues on both sides of the aisle to vote against it, and I reserve the balance of my time.

□ 2030

Mr. KENNEDY. Madam Chair, may I inquire how much time I have remaining?

The Acting CHAIR. The gentleman from Massachusetts has 2½ minutes remaining.

Mr. KENNEDY. Madam Chair, I yield 1 minute to the distinguished gentleman from California (Mr. SCHIFF).

Mr. SCHIFF. Madam Chair, I thank the gentleman for yielding.

This amendment directs the intelligence community to expand upon its work in identifying and reporting foreign malign influence activity by establishing a center responsible for integrating all intelligence pertaining to foreign efforts to undermine our democratic institutions.

The committee and the intelligence community has seen all too clearly over the last 3 years that the malign influence threats to U.S. sovereignty and security are emerging as a new normal, all the while becoming more sophisticated and diverse.

Identifying and defending against these threats, particularly those committed by strategic adversaries of the U.S., requires a dedicated whole-of-intelligence-community effort in order to fully understand the nature of the threat and identify outstanding intelligence gaps that need to be filled.

In establishing an interagency Foreign Threat Response Center, this amendment lays out a framework for accomplishing this challenging task.

I thank my colleague for his work. I appreciate Mr. KENNEDY's commitment to this area very much, and I support the amendment.

Mr. CONAWAY. Madam Chair, I yield myself the balance of my time.

In closing, I would like to reiterate that the establishment of such a center should be debated properly within the House Intelligence Committee. It should also be informed by the report that the gentleman was successful in adding to the fiscal 2018 and 2019 Intelligence Authorization Acts, and such debate should focus on the merits of the center, given existing efforts, as well as whether or not the ODNI should house the center.

Until that report is finished, and then the debate happens, I would urge a ''no'' vote on the amendment.

Madam Chair, I yield back the balance of my time.

Mr. KENNEDY. Madam Chair, I yield myself the balance of my time.

I would just say, in closing, that I appreciate the gentleman's words and the work that they did with us to get the report language into the version last year. I would point out that much of the intent behind this legislation and this amendment is directly related to what the gentleman indicated around an ongoing threat assessment from Russia, China, and Iran.

The issue isn't so much, has that threat been identified? It is, what has the Intelligence Committee done to ensure the sanctity and the purity of those elections?

I think this amendment speaks for itself. I urge my colleagues to adopt it.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Massachusetts (Mr. KENNEDY).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Mr. CONAWAY. Madam Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Massachusetts will be postponed.

AMENDMENT NO. 12 OFFERED BY MISS RICE OF NEW YORK

The Acting CHAIR. It is now in order to consider amendment No. 12 printed in part B of House Report 116–154.

Miss RICE of New York. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 238, line 15, insert ''and the Under Secretary of Homeland Security for Intelligence and Analysis'' before '', shall''.

Page 239, after line 14, insert the following new subsection:

(d) DISSEMINATION TO STATE AND LOCAL PARTNERS.—Consistent with the protection of classified and confidential unclassified information, the Under Secretary shall share the report required by subsection (b) with State, local, and regional officials who operate within State, local, and regional fusion centers through the Department of Homeland Security State, Local, and Regional Fusion Center Initiative established in section 210A of the Homeland Security Act of 2002 (6 U.S.C 124h).

The Acting CHAIR. Pursuant to House Resolution 491, the gentlewoman from New York (Miss RICE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from New York.

Miss RICE of New York. Madam Chair, I yield myself such time as I may consume.

I was pleased to see that my bill, the Stop Terrorist Use of Virtual Currencies Act, was included in the base text of the Intelligence Authorization Act. This bill requires the Director of National Intelligence and the Secretary of the Treasury to develop and submit a threat assessment report on the use of virtual currencies by terrorist organizations.

My amendment would simply include the DHS Under Secretary for Intelligence and Analysis into this report and require that this report be disseminated to State and local law enforcement officials.

In the 18 years since the deadliest terrorist attack in American history, the United States has led the global campaign to combat terrorism, thwarting plots and preventing attacks on American soil, identifying and disrupting terrorist networks around the world, hunting down terrorists wherever they hide, and proving that they can and will be brought to justice.

But we also know that the threat of terrorism is not the same as it was 18 years ago; it is a threat that constantly evolves, and we need to evolve with it. We need to evolve ahead of it. That is why I have offered this amendment.

In recent years, we have seen instances in which members of terrorist groups have turned to virtual currencies to finance and support their operations.

For example, in December of 2017, a woman in New York was arrested and pled guilty after she obtained $62,000 in bitcoin and other virtual currencies to send to ISIS.

Using those virtual funds, she was able to send the money via shell entities in Pakistan, China, and Turkey that were fronts for ISIS.

In early 2017, Indonesian authorities reported that a Syria-based Indonesian with ties to ISIS used bitcoin and other virtual currencies to fund attacks in Indonesia.

The same things that make virtual currencies appealing to everyday consumers, speed and convenience, make these currencies appealing to those who want to finance illegal activities.

And many forms of virtual currencies also offer their users anonymity, making them particularly attractive to those seeking to circumvent American law enforcement and financial institutions.

In order to effectively confront this threat, we need to fully understand it. We need a comprehensive assessment of how virtual currencies might be abused for illegal and nefarious ends. That is why it is critical that we act now to assess and understand this emerging threat.

There is no denying it. Virtual currencies have exposed deep vulnerabilities in our counterterrorism efforts. And unfortunately, right now, our government lacks a comprehensive response and strategy to address this threat.

Passing this amendment will give counterterrorism and law enforcement officials at all levels the information and strategies they desperately need to confront this threat head-on with 21st-century solutions.

This is a commonsense, bipartisan priority, and I urge all my colleagues to support this amendment.

Madam Chair, I yield 1 minute to the gentleman from California (Mr. SCHIFF).

Mr. SCHIFF. Madam Chair, I thank the gentlewoman for yielding.

This straightforward amendment adds the Under Secretary of Homeland Security for Intelligence and Analysis to the DNI's consultation requirement for its report on possible exploitation of virtual currencies by terrorist actors.

It also requires the report's dissemination to State and local law enforcement, consistent with the protection of classified information.

Ensuring that relevant counterterrorism information is distributed, as appropriate, to State and local law enforcement is a key priority and a major function of the Department of Homeland Security. Adding these entities as recipients of this report through the DHS fusion center mechanism improves the bill.

I want to encourage all my colleagues to support the amendment, as well as the underlying bill. I thank my colleague for her work.

Miss RICE of New York. Madam Chair, I want to thank Chairman SCHIFF and Ranking Member NUNES for supporting the amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from New York (Miss RICE).

The amendment was agreed to.

AMENDMENT NO. 13 OFFERED BY MS. JAYAPAL

The Acting CHAIR. It is now in order to consider amendment No. 13 printed in part B of House Report 116–154.

Ms. JAYAPAL. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following new section:

SEC. 3___. REPORT ON USE BY INTELLIGENCE COMMUNITY OF FACIAL RECOGNITION TECHNOLOGY.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the use of facial recognition technology for the purpose of suppressing or burdening criticism or dissent, or for disadvantaging persons based on their ethnicity, race, gender, sexual orientation, or religion, is contrary to the values of the United States;

(2) the United States Government should not engage in the sale or transfer of facial recognition technology to any country that is using such technology for the suppression of human rights; and

(3) it is incumbent upon the intelligence community to develop clear policies and procedures that prevent the abuse of facial recognition technology.

(b) REPORT REQUIRED.—Not later than 1 year after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional intelligence committees a report on the use of facial recognition technology by the intelligence community. Such report shall include each of the following:

(1) An analysis of the current use of facial recognition technology by the intelligence community.

(2) An analysis of the accuracy of facial recognition technology, including a discussion of the appropriate threshold for use, and data disaggregated by race, gender, ethnicity, and age.

(3) Whether the Government has adequate procedures in place to audit or test technology they purchase to assess its accuracy, including on the basis of race, gender, ethnicity, and age.

(4) The extent to which the intelligence community has codified policies governing the use of facial recognition technology that adequately prevent adverse impacts on privacy, civil rights, and civil liberties.

(5) An analysis of the ability of the intelligence community to use facial recognition technology to identify individuals in a way that respects constitutional rights, civil rights, civil liberties, and privacy of such individuals.

(6) Identification of risks and safeguards to uphold the constitutional rights, civil rights, civil liberties, and privacy of individuals, including for communities of color and religious minorities.

(7) Whether such technology is deployed in public areas or on photos of public areas in a manner that could raise First Amendment concerns.

(8) An identification of existing policies, procedures, or practices that permit the sharing of facial recognition data and technology with foreign governments or other non-United States Government entities.

(9) An identification of measures in place to protect data security.

(10) An identification of any redress procedures to address complaints in cases where the use of facial recognition resulted in harm to an individual.

(11) An analysis of existing transparency, oversight, and audits of the use of facial recognition to measure the efficacy of the technology on an ongoing basis, as measured against the cost and impact on individual rights.

(c) FORM.—The report under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

(d) FACIAL RECOGNITION DATA DEFINED.—In this section, the term ''facial recognition data'' means any unique attribute or feature of the face of an end user that is used by facial recognition technology to assign a unique, persistent identifier, or for the unique personal identification of a specific individual.

The Acting CHAIR. Pursuant to House Resolution 491, the gentlewoman from Washington (Ms. JAYAPAL) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Washington.

Ms. JAYAPAL. Madam Chair, I yield myself such time as I may consume.

I want to start by recognizing the work of our chairman, Mr. SCHIFF, on this bill.

Madam Chair, my amendment would require Congress to provide much-needed oversight to the intelligence community's use of face recognition technology. The amendment does three things.

First, it requires the Director of National Intelligence to submit a report to the Intelligence Committees in both the House and the Senate on the use of this new technology. This is a critical step in ensuring that there is a deeper understanding of the technology here in Congress and also, appropriate transparency.

Second, the amendment expresses the sense of Congress that using this technology to suppress dissent, or to target people based on ethnicity, race, gender, sexual orientation, or religion is contrary to our Nation's values.

And finally, it makes clear that Congress believes that the government should not sell or transfer face recognition technology to any country that is using this technology to suppress human rights.

I offered this amendment to the Intelligence Authorization Act because I am concerned that face recognition poses grave privacy concerns. As a Nation committed to democratic norms, including constitutionally-enshrined rights to freedom of speech and privacy, it is critical that we ensure that our national security activities do not come at the expense of our individual liberties and our right to privacy. And thus, it is critical that this body know exactly how this technology is being used.

In addition to the civil liberties concerns of those in our country, the technology does disproportionately impact people of color. The technology, unfortunately, misidentifies people of color and women at higher rates than Whites and men, which undermines its usefulness to the intelligence community, and makes it potentially problematic for large-scale use.

Finally, my amendment makes clear that the United States should not be providing this technology to countries who are using it to perpetuate human rights abuses. We should not be selling or transferring the technologies to countries like China, who are actively using this technology to suppress dissent and target minorities, like the Uighurs, a Muslim minority group.

Although this sense of Congress lays down an important marker, we do need to continue to work to ensure that there are proper controls on the sale and the transfer of this technology, and I look forward to doing that with my colleagues.

Madam Chair, I yield 1 minute to the distinguished gentleman from California (Mr. SCHIFF), the chairman of the committee.

Mr. SCHIFF. Madam Chair, I thank the gentlewoman for yielding.

This amendment expresses a sense of Congress that conveys our firm opposition to any use of facial recognition technology to suppress criticism or dissent, as well as our opposition to the U.S. Government sale or transfer of facial recognition technology to countries using this technology to suppress human rights.

Critically, the amendment also acknowledges the IC's unique responsibility to develop robust policies and procedures that prevent the abuse of this technology.

To ensure that the intelligence community is held accountable, the amendment requires the submission of a comprehensive report analyzing any use of facial recognition technology by the IC, and the associated implications for privacy and civil liberties, especially among marginalized communities.

Ms. JAYAPAL's amendment requires the intelligence community to establish clear policies and procedures, enhance transparency, and increase oversight concerning the applications of these new capabilities.

Her amendment lays the groundwork for a thoughtful U.S. response to the emergence of divisive and disruptive technologies and how they would fit into existing civil liberties frameworks.

Again, I want to thank my colleague for her work. I am pleased to support Ms. JAYAPAL's amendment.

Ms. JAYAPAL. Madam Chair, I yield 1 minute to the gentleman from Illinois (Mr. GARCÍA).

Mr. GARCÍA of Illinois. Madam Chair, I rise in support of the amendment we have filed to study and limit the use of facial recognition technology.

The intelligence community collects large amounts of data with limited oversight about how and from whom data is collected. Facial recognition technology has shown to be less accurate on nonwhite faces, and its use disproportionately hurts communities of color because of algorithmic bias.

This amendment studies the potential for bias and expresses the sense that people should not be targeted for their ethnicity, race, or sexual orientation, or to suppress dissent. Given the U.S. Government's history of tracking protesters and activists, especially in minority communities, this is important.

Congress can and should exercise Federal oversight of emerging surveillance technologies. For facial recognition technology, this means our work is only just beginning. I urge support for this amendment.

□ 2045

Ms. JAYAPAL. Madam Chair, I urge my colleagues to support this amendment, and I yield back the balance of my time.

The Acting CHAIR (Ms. OMAR). The question is on the amendment offered by the gentlewoman from Washington (Ms. JAYAPAL).

The amendment was agreed to.

AMENDMENT NO. 14 OFFERED BY MRS. MURPHY

The Acting CHAIR. It is now in order to consider amendment No. 14 printed in part B of House Report 116–154.

Mrs. MURPHY. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following:

SEC. 708. REPORT ON DEEPFAKE TECHNOLOGY, FOREIGN WEAPONIZATION OF DEEPFAKES, AND RELATED NOTIFICATIONS.

(a) REPORT ON FOREIGN WEAPONIZATION OF DEEPFAKES AND DEEPFAKE TECHNOLOGY.—

(1) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence, in consultation with the heads of the elements of the intelligence community determined appropriate by the Director, shall submit to the congressional intelligence committees a report on—

(A) the potential national security impacts of machine-manipulated media (commonly known as ''deepfakes''); and

(B) the actual or potential use of machine-manipulated media by foreign governments to spread disinformation or engage in other malign activities.

(2) MATTERS TO BE INCLUDED.—The report under subsection (a) shall include the following:

(A) An assessment of the technical capabilities of foreign governments, including foreign intelligence services, foreign government-affiliated entities, and foreign individuals, with respect to machine-manipulated media, machine-generated text, generative adversarial networks, and related machine-learning technologies, including—

(i) an assessment of the technical capabilities of the People's Republic of China and the Russian Federation with respect to the production and detection of machine-manipulated media; and

(ii) an annex describing those governmental elements within China and Russia known to have supported or facilitated machine-manipulated media research, development, or dissemination, as well as any civil-military fusion, private-sector, academic, or non-governmental entities which have meaningfully participated in such activities.

(B) An updated assessment of how foreign governments, including foreign intelligence services, foreign government-affiliated entities, and foreign individuals, could use or are using machine-manipulated media and machine-generated text to harm the national security interests of the United States, including an assessment of the historic, current, or potential future efforts of China and Russia to use machine-manipulated media, including with respect to—

(i) the overseas or domestic dissemination of misinformation;

(ii) the attempted discrediting of political opponents or disfavored populations; and

(iii) intelligence or influence operations directed against the United States, allies or partners of the United States, or other jurisdictions believed to be subject to Chinese or Russian interference.

(C) An updated identification of the counter-technologies that have been or could be developed and deployed by the United States Government, or by the private sector with Government support, to deter, detect, and attribute the use of machine-manipulated media and machine-generated text by foreign governments, foreign-government affiliates, or foreign individuals, along with an analysis of the benefits, limitations and drawbacks of such identified counter-technologies, including any emerging concerns related to privacy.

(D) An identification of the offices within the elements of the intelligence community that have, or should have, lead responsibility for monitoring the development of, use of, and response to machine-manipulated media and machine-generated text, including—

(i) a description of the coordination of such efforts across the intelligence community;

(ii) a detailed description of the existing capabilities, tools, and relevant expertise of such elements to determine whether a piece of media has been machine manipulated or machine generated, including the speed at which such determination can be made, the confidence level of the element in the ability to make such a determination accurately, and how increasing volume and improved quality of machine-manipulated media or machine-generated text may negatively impact such capabilities; and

(iii) a detailed description of planned or ongoing research and development efforts intended to improve the ability of the intelligence community to detect machine-manipulated media and machine-generated text.

(E) A description of any research and development activities carried out or under consideration to be carried out by the intelligence community, including the Intelligence Advanced Research Projects Activity, relevant to machine-manipulated media and machine-generated text detection technologies.

(F) Updated recommendations regarding whether the intelligence community requires additional legal authorities, financial resources, or specialized personnel to address the national security threat posed by machine-manipulated media and machine generated text.

(G) Other additional information the Director determines appropriate.

(b) FORM.—The report under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

(c) REQUIREMENT FOR NOTIFICATION.—The Director of National Intelligence, in cooperation with the heads of any other relevant departments or agencies of the Federal Government, shall notify the congressional intelligence committees each time the Director of National Intelligence determines—

(1) there is credible information or intelligence that a foreign entity has attempted, is attempting, or will attempt to deploy machine-manipulated media or machine-generated text aimed at the elections or domestic political processes of the United States; and

(2) that such intrusion or campaign can be attributed to a foreign government, a foreign government-affiliated entity, or a foreign individual.

(d) ANNUAL UPDATE.—Upon submission of the report in subsection (a), on an annual basis, the Director of National Intelligence, in consultation with the heads of the elements of the intelligence community determined appropriate by the Director, shall submit to the congressional intelligence committees any significant updates with respect to the matters described in subsection (a).

(e) DEFINITIONS.—

(1) MACHINE-GENERATED TEXT.—The term ''machine-generated text'' means text generated using machine-learning techniques in

order to resemble writing in natural language.

(2) MACHINE-MANIPULATED MEDIA.—The term ''machine-manipulated media'' has the meaning given that term in section 707.

The Acting CHAIR. Pursuant to House Resolution 491, the gentlewoman from Florida (Mrs. MURPHY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Florida.

Mrs. MURPHY. Madam Chair, my amendment, which I am coleading with Congresswoman YVETTE CLARKE of New York, involves a looming threat to American security and American democracy from the use of deepfake technology by our Nation's adversaries.

As policymakers, we must understand this challenge and put in place a whole-of-government strategy to address it in a way that protects our interests and is consistent with our values. The U.S. intelligence community has an important role to play in this effort.

The House Intelligence Committee, led by Chairman SCHIFF, recently held an illuminating and alarming hearing on deepfakes. As the witnesses at that hearing testified, technology now enables anyone with a computer, internet access, and technical skills to create fabricated and relatively convincing video and audio recordings that depict individuals doing or saying things that they did not do or say.

The technology behind deepfakes is rapidly evolving. Soon individuals will be able to create highly realistic and difficult to debunk video and audio content. At a time when Americans are already being inundated, especially online, by a flood of false or misleading information, deepfake technology has the potential to make it even harder for the American public to trust what it sees and hears.

It is easy to imagine the different ways in which deepfake technology could be exploited by America's foes. Imagine a Russian intelligence service creating a video purporting to show an American Presidential candidate accepting a bribe or an audio recording purporting to reveal an American Secretary of State saying something inflammatory about an ally. Or imagine a Chinese-produced video that falsely depicts the commander of a U.S. military unit committing a war crime. Such efforts, if not quickly exposed as false by the United States, could create havoc.

In today's world, perhaps the biggest national security threat we face is not the risk of direct military conflict between the United States and Russia, China, Iran, or another adversary. Instead, the threat lurks in the gray space short of kinetic action. It is illustrated by Russian efforts to intervene in the 2016 Presidential election, most notably in my home State of Florida. It is the threat from authoritarian governments using new technologies to spread disinformation, sow discord, create divisions, and cause the American people to lose faith in our democratic form of government.

To address this threat, our amendment requires the DNI to prepare a report for Congress on how foreign countries are using or could use deepfake technology to harm the United States and to explain how the intelligence community is working to develop appropriate countermeasures. This report will help us to understand the problem and to combat it more effectively.

We must get this right because the stakes couldn't be higher. I urge my colleagues to support this amendment.

Madam Chair, I yield 1 minute to the gentleman from California (Chairman SCHIFF).

Mr. SCHIFF. Madam Chair, I thank the gentlewoman for yielding, and I rise in strong support of this amendment offered by my colleagues from Florida and New York, who have both been leaders in this body focused on national security challenges posed by deepfake technologies.

We in the Intelligence Committee held a hearing on this very topic last month, and the rate at which these capabilities are evolving is almost as breathtaking as what they can produce, high-quality video and other types of media that convincingly portray individuals saying or doing things that never happened.

The potential for a foreign adversary to undermine an election, foment chaos, or create a national security crisis with a sophisticated digital forgery means that we need to ensure the intelligence community is fully considering the wide-ranging implications of deepfakes, including the capacity of foreign entities and adversaries to weaponize machine-generated media.

This report will also give us a detailed picture about how the intelligence community is coordinating efforts, activities, and research surrounding this emerging technology and if there are lingering gaps in resources or assignments of responsibility, since we need to be clear-eyed about how disruptive and devastating a well-timed deep fake could be during an election or a tense diplomatic standoff.

I want to thank my colleague for her work on this amendment, and I am very proud to support it.

Mrs. MURPHY. Madam Chair, I urge support for this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Florida (Mrs. MURPHY).

The amendment was agreed to.

AMENDMENT NO. 15 OFFERED BY MRS. MURPHY

The Acting CHAIR. It is now in order to consider amendment No. 15 printed in part B of House Report 116–154.

Mrs. MURPHY. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title V, add the following new section:

SEC. 5___. SENSE OF CONGRESS AND REPORT ON IRANIAN EFFORTS IN SYRIA.

(a) SENSE OF CONGRESS.—It is the sense of Congress that, regardless of the ultimate number of United States military personnel deployed to Syria, it is a vital interest of the United States to prevent the Islamic Republic of Iran, Hizbollah, and other Iranian-backed forces from establishing a strong and enduring presence in Syria that can be used to project power in the region and threaten the United States and its allies, including Israel.

(b) REPORT.—

(1) REPORT REQUIRED.—Not later than 180 days after the date of enactment of this Act, the Director of National Intelligence, in coordination with the Secretary of State and the Secretary of Defense, shall submit to the appropriate congressional committees a report that assesses—

(A) efforts by Iran to establish long-term influence in Syria through military, political, economic, social, and cultural means; and

(B) the threat posed by such efforts to United States interests and allies.

(2) ELEMENTS.—The report under paragraph (1) shall include each of the following:

(A) An assessment of—

(i) how Iran and Iranian-backed forces, including the Islamic Revolutionary Guard Corps and Hizbollah, have provided or are currently providing manpower, training, weapons, equipment, and funding to the Syrian government led by President Bashar al-Assad;

(ii) the support provided by Iran and Hizbollah to Shia militias operating in Syria that are composed of domestic fighters from Syria and foreign fighters from countries like Afghanistan, Iraq, Lebanon, and Pakistan;

(iii) the threat posed by Iran and Iranian-backed forces to the al-Tanf garrison and to areas of northeast Syria that are currently controlled by local partner forces of the United States;

(iv) the degree to which efforts of the United States to sustain and strengthen Kurdish forces in Syria may undermine the influence of Iran and Iranian-backed forces in Syria;

(v) how Iran and Iranian-backed forces seek to enhance the long-term influence of such entities in Syria through non-military means such as purchasing strategic real estate in Syria, constructing Shia religious centers and schools, securing loyalty from Sunni tribes in exchange for material assistance, and inducing the Assad government to open Farsi-language departments at Syrian universities; and

(vi) whether the prominent role of Iran in Syria, including the influence of Iran over government institutions, may increase the likelihood of the reconstitution of the Islamic State of Iraq and Syria in Syria.

(B) An analysis of—

(i) how Iran is working with the Russian Federation, Turkey, and other countries to increase the influence of Iran in Syria; and

(ii) the goals of Iran in Syria, including, but not limited to, protecting the Assad government, increasing the regional influence of Iran, threatening Israel from a more proximate location, building weapon-production facilities and other military infrastructure, and securing a land bridge to connect Iran through Iraq and Syria to the stronghold of Hizbollah in southern Lebanon.

(C) A description of—

(i) how the efforts of Iran to transfer advanced weapons to Hizbollah and to establish a military presence in Syria has led to direct and repeated confrontations with Israel; and

(ii) the intelligence and military support that the United States provides to Israel to

help Israel identify and appropriately address specific threats to Israel from Iran and Iranian-backed forces in Syria.

(3) FORM.—The report under paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

(4) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(A) the Committee on Armed Services, the Committee on Foreign Relations, and the Select Committee on Intelligence of the Senate; and

(B) the Committee on Armed Services, the Committee on Foreign Affairs, and the Permanent Select Committee on Intelligence of the House of Representatives.

The Acting CHAIR. Pursuant to House Resolution 491, the gentlewoman from Florida (Mrs. MURPHY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Florida.

Mrs. MURPHY. Madam Chair, our amendment would require the Director of National Intelligence, in coordination with the Secretaries of State and Defense, to prepare a report for Congress on efforts by Iran to establish long-term influence in Syria using both hard and soft power and the threat that this proposes to U.S. interests and allies, including Israel.

Syria's civil war, which began in 2011, has brought an influx of Iranian-backed forces into Syria. Iran and Syria are both designated by the United States as state sponsors of terrorism. Their military partnership dates back decades, and Iran regards Syria as one of its most important allies.

Iran and Iranian-backed forces, including the Islamic Revolutionary Guard Corps and Hezbollah, have provided manpower, training, weapons, and funding to the Syrian Government, led by President Bashar al-Assad. This assistance, coupled with support from Russia, has enabled the Assad government to retain or regain territory in Syria, and the Assad government currently maintains control over roughly two-thirds of the country.

Iran's goals in Syria include protecting the Assad government, increasing Iran's regional influence, threatening Israel from a closer location, building weapon production facilities and other military infrastructure, and securing a land bridge that would connect Iran to Hezbollah's stronghold in southern Lebanon via Iraq and Syria.

It is clear that Iran is seeking long-term influence in Syria and is pursuing this objective through military, political, and social means.

Iran's effort to establish a military presence in Syria has led to repeated confrontations with Israel. In February of 2018, Israel shot down an Iranian drone flying over Israeli territory and then targeted the base in Syria from which the drone was launched. In May 2018, Israel launched strikes against Iranian military installations in Syria. Iran responded by firing missiles at Israeli positions in the Golan Heights, and Israel then targeted nearly all of Iran's military infrastructure in Syria.

Iranian and Iranian-backed forces also seek to enhance their influence in Syria through nonmilitary means, such as purchasing strategic real estate, constructing Shia religious centers and schools, securing loyalty from Sunni tribes, and inducing the Assad government to open Farsi language departments at Syrian universities.

In a startling move, President Trump has proposed to withdraw all or most U.S. forces from Syria, a proposal I view as a profound mistake. But regardless of the number of U.S. troops deployed to Syria, I believe it is a vital U.S. interest to prevent Iran, Hezbollah, and other Iranian-backed forces from establishing an enduring presence in Syria.

Our amendment would require the DNI to assess how Iran is using hard and soft power to gain long-term influence in Syria. Among other things, the IC would examine how U.S. efforts to strengthen Kurdish forces in Syria could undermine Iran, how the U.S. helps Israel identify threats from Iran and Syria, and how Iran's influence over Syrian institutions could increase the likelihood that the Islamic State will reconstitute itself inside Syria.

I urge my colleagues to support this amendment, and I reserve the balance of my time.

Mr. SCHNEIDER. Madam Chair, I claim the time in opposition to the amendment, though I am not opposed to it.

The Acting CHAIR. Without objection, the gentleman from Illinois is recognized for 5 minutes.

There was no objection.

Mr. SCHNEIDER. Madam Chair, I rise in support of the Murphy-Schneider amendment that makes abundantly clear it is of the utmost importance to prevent Iran from establishing any enduring presence in Syria.

The amendment also requires the Director of National Intelligence to report on Iran's efforts to establish a foothold in Syria on the threat this poses to the United States and our allies, in particular Israel.

Madam Chair, I stood before Congress in the last Congress urging support for my amendment to require a report on Iran's support for proxy forces in Syria and Lebanon, and I am pleased that this report remains in this bill. Today we are building on this important effort with the Murphy-Schneider amendment.

I thank my good friend from Florida, STEPHANIE MURPHY, for her leadership on this issue.

Iran is a bad actor that has spread its maligned influence and continued to engage in destabilizing activities throughout the Middle East region, as well as beyond. The Iranian regime has and continues to establish deep ties within Syria through military, political, economic, social, and cultural means. This is a dangerous behavior that must be checked. Iran must not be allowed to maintain a permanent foothold in Syria that threatens our allies and stability in the region.

To stand up to Iran, we must first understand the full extent of Iran's activities in Syria, and that is what this amendment does. I look forward to seeing this report and engaging on how we can prevent Iran from maintaining a permanent presence in Syria.

I hope my colleagues will join me in supporting this important amendment, and I yield back the balance of my time.

Mrs. MURPHY. Madam Chair, I urge support for the amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Florida (Mrs. MURPHY).

The amendment was agreed to.

AMENDMENT NO. 16 OFFERED BY MR. BRINDISI

The Acting CHAIR. It is now in order to consider amendment No. 16 printed in part B of House Report 116–154.

Mr. BRINDISI. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following new section:

SEC. 708. RULE OF CONSTRUCTION WITH RESPECT TO CERTAIN CRIMES RELATING TO TERRORISM.

Nothing in this Act, or the amendments made by this Act, shall be construed to contradict chapter 113B of title 18, United States Code, including with respect to—

(1) section 2332b (relating to acts of terrorism transcending national boundaries);

(2) section 2339 (relating to harboring or concealing terrorists); and

(3) section 2339A (relating to providing material support to terrorists).

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from New York (Mr. BRINDISI) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New York.

Mr. BRINDISI. Madam Chair, I yield myself such time as I may consume.

Madam Chair, I rise today urging adoption of my amendment, which makes clear that nothing in the underlying bill contradicts existing Federal law regarding acts of international terrorism, providing support to terrorists, or aiding terrorists.

The underlying bill helps keep our country safe by ensuring the intelligence community has the resources and authorities it needs to do its job. It also makes sure the intelligence community can improve and adapt to today's rapidly changing threats and technologies by improving the collection and analytic capabilities against our adversaries like China, Russia, Iran, and North Korea.

My amendment makes it crystal clear that our country will remain tough on international terrorism.

Terrorism continues to be a serious threat to our national security. This provision strengthens the underlying

bill by ensuring current law regarding terrorism is not changed, so terrorists and those who support them can be brought to justice.

Madam Chair, again, I urge my colleagues to support this amendment. I urge adoption of the amendment, and I yield back the balance of my time.

□ 2100

The Acting CHAIR. The question is on the amendment offered by the gentleman from New York (Mr. BRINDISI).

The amendment was agreed to.

AMENDMENT NO. 17 OFFERED BY MR. KINZINGER

The Acting CHAIR. It is now in order to consider amendment No. 17 printed in part B of House Report 116–154.

Mr. KINZINGER. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following new section:

SEC. 7_____ REPORT ON INTERNATIONAL MOBILE SUBSCRIBER IDENTITY-CATCHERS AND UNITED STATES NATIONAL SECURITY.

(a) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence, in consultation with the Secretary of Homeland Security, the Director of the Federal Bureau of Investigation, and the heads of other agencies the Director of National Intelligence determines appropriate, shall submit to the congressional intelligence committees a report describing—

(1) the threats that international mobile subscriber identity-catchers pose to national security and, specifically, the safety and security of Government personnel;

(2) the prevalence of international mobile subscriber identity-catchers used by both foreign actors and domestic law enforcement within the United States;

(3) actions taken by Federal agencies, as of the date of the report, to remove or neutralize international mobile subscriber identity-catchers installed by foreign entities, with a primary focus on the National Capital Region (as defined in section 2674(f) of title 10, United States Code);

(4) policy recommendations for Congress to consider that would empower law enforcement and the intelligence community to counter such foreign intelligence operations while minimizing interference with legitimate domestic law enforcement operations;

(5) the extent to which private entities, as well as Federal entities not primarily responsible for national security or homeland security, are able to remove, neutralize, or otherwise render ineffective international mobile subscriber identity-catchers; and

(6) recommendations for new software programs, or the hardening of existing software programs, to reduce mobile phone susceptibility to international mobile subscriber identity-catchers.

(b) FORM.—To the extent practicable, the report shall be submitted in an unclassified, law enforcement sensitive form for the purposes of distribution to other congressional committees, but may also include a classified annex.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Illinois (Mr. KINZINGER) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Illinois.

Mr. KINZINGER. Madam Chair, my amendment is very simple. It would require that the Director of National Intelligence and other relevant agencies report to Congress on the threat that international mobile subscriber identity catchers, also referred to as ''cell-site simulators'' or under the brand name ''StingRay,'' pose to U.S. Government personnel and national security.

In addition to providing this report, the DNI would need to provide recommendations to Congress regarding possible policy changes to counter these devices.

IMSI catchers send signals to mobile phones that appear to be coming from legitimate mobile networks. Once connected, the phones are used to track the locations of the users, which can be seen by whoever is controlling the IMSI catcher. The more advanced versions of these cell devices allow their owners even to access messages and phone call data.

Many of us were shocked when a report came out last year that the Department of Homeland Security had found these devices around the national capital region. Even more concerning was that many of these were located around sensitive government buildings.

My amendment would help Congress understand the proliferation of these devices around our Nation, with a focus on their prevalence in the national capital region. We need to know which actors, foreign or domestic, are deploying them and what Congress can do to ensure the safekeeping of our national security apparatus.

Madam Chair, I urge support for this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Illinois (Mr. KINZINGER).

The amendment was agreed to.

AMENDMENT NO. 18 OFFERED BY MS. HILL OF CALIFORNIA

The Acting CHAIR. It is now in order to consider amendment No. 18 printed in part B of House Report 116–154.

Ms. HILL of California. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following new section:

SEC. 7___. WHISTLEBLOWER DISCLOSURES TO CONGRESS AND COMMITTEES OF CONGRESS.

Section 2302 of title 5, United States Code, is amended—

(1) in subsection (b)(8)(B), by inserting ''Congress (including any committee of Congress),'' before ''the Special Counsel''; and

(2) in subsection (c)(2)(C)(iii)(III), by inserting after ''Congress'' the following: ''(including any committee of Congress)''.

The Acting CHAIR. Pursuant to House Resolution 491, the gentlewoman from California (Ms. HILL) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from California.

Ms. HILL of California. Madam Chair, I yield myself as much time as I may consume. I rise in support of an amendment to H.R. 3494.

I believe strongly in the principle of government transparency. It is something I ran on and talk about. I have spent my time in Congress working to deliver on accountability and transparency as the vice chair of the Oversight and Reform Committee and through other legislation.

Today, I am introducing this amendment to clarify what Congress already believes to be the law, that Federal whistleblowers have the ability to make protected disclosures to the appropriate congressional committee of jurisdiction, not just members of the Intelligence Committee.

At a time like this, we cannot afford ambiguity. This technical change will allow congressional committees to conduct their business in a more timely and effective manner.

This amendment is not my first effort to protect whistleblowers, nor will it be my last. Those with the courage to stand up and say something is not right should have every single protection that we, as Congress, can offer to them.

Madam Chair, I urge all of my colleagues to support this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from California (Ms. HILL).

The amendment was agreed to.

AMENDMENT NO. 19 OFFERED BY MR. LEVIN OF MICHIGAN

The Acting CHAIR. It is now in order to consider amendment No. 19 printed in part B of House Report 116–154.

Mr. LEVIN of Michigan. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 68, strike line 24 through page 69, line 3, and insert the following:

(2) with respect to the unclassified portion of the report, made available on the public internet websites of the National Counterterrorism Center, Federal Bureau of Investigation, and Department of Homeland Security—

(A) not later than 30 days after submission to the appropriate congressional committees; and

(B) in an electronic format that is fully indexed and searchable; and

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Michigan (Mr. LEVIN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Michigan.

Mr. LEVIN of Michigan. Madam Chair, according to the Anti-Defamation League, domestic extremists killed at least 50 people in the United States in 2018, a sharp increase from

the 37 extremist-related murders documented in 2017. Indeed, that is a 26 percent jump in 1 year.

Given the disturbing rise of plots and incidents of domestic terrorism nationwide, I am pleased with the provision in this bill requiring that a joint report on domestic terrorism be submitted to Congress each year by the DNI, the FBI Director, and the Under Secretary of Homeland Security for Intelligence and Analysis.

My amendment requires that this comprehensive report on domestic terrorism be made available on the public websites not just of the National Counterterrorism Center but also of the Federal Bureau of Investigation and the Department of Homeland Security.

The amendment also specifies that the report should be made publicly available no later than 30 days after submission to the appropriate congressional committees. We can't let something this important be delayed over and over again.

We need to ensure that this report is accessible not just to promote transparency but also to help policymakers nationwide recognize the scope of the threat that domestic terrorism poses and to encourage academic research necessary to understand the scourge of domestic terrorism better so that we might bring it to an end once and for all. I am talking about policymakers on the local and the State level as well as the Federal level.

Madam Chair, I thank, in particular, Chairman SCHIFF and his staff for their leadership on this bill and for working with me on this and other provisions.

Madam Chair, I urge my colleagues to support this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Michigan (Mr. LEVIN).

The amendment was agreed to.

AMENDMENT NO. 20 OFFERED BY MR. SCHIFF

The Acting CHAIR. It is now in order to consider amendment No. 20 printed in part B of House Report 116–154.

Mr. SCHIFF. Madam Chair, as the designee of the gentleman from New Jersey (Mr. MALINOWSKI), I rise to offer an amendment.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 49, after line 13, insert the following new paragraph:

(7) An assessment and identification of the technological and financial support provided by United States-based companies, including technological support for the development of facial recognition capabilities or technologies for digital surveillance, social control, or censorship, and financial support, including from financial institutions, investment vehicles, and pension funds, to China-based companies or Chinese government entities providing material support to the digital surveillance or repression of Uyghur and other ethnic minorities in Xinjiang by the Xinjiang authorities.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from California (Mr. SCHIFF) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. SCHIFF. Madam Chair, I rise to support this amendment, which adds an additional requirement to section 502, a report on the repression of ethnic Muslim minorities in the Xinjiang region of the People's Republic of China.

The human rights crisis underway in Xinjiang is staggering in scale. Open-source analysis based on extensive reviews of satellite imagery and Chinese Government documents has concluded that as many as 1.5 million Muslims could be held in internment camps by the Chinese Government.

Despite this body of evidence, the executive branch has rebuffed attempts to clearly describe the scope and scale of this crisis.

H.R. 3494 calls for a comprehensive U.S. Government assessment that addresses the number of persons detained, a description of forced labor practices in the camps, and an assessment of the surveillance, detection, and control methods associated with China's new high-tech policing model.

Mr. MALINOWSKI's amendment adds an additional requirement for the intelligence community to assess and identify the technological and financial support provided by U.S.-based companies to the Chinese Government's repressive operations in Xinjiang.

In light of the alarming public reports detailing cooperation between prominent U.S. companies and foreign companies aiding and abetting the Chinese Communist Party's surveillance state, this amendment could not be timelier.

Madam Chair, I thank my colleagues, particularly Mr. MALINOWSKI for his tireless work to support human rights.

Madam Chair, I am happy to support the amendment. I urge support for the amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. SCHIFF).

The amendment was agreed to.

AMENDMENT NO. 21 OFFERED BY MR. SCHIFF

The Acting CHAIR. It is now in order to consider amendment No. 21 printed in part B of House Report 116–154.

Mr. SCHIFF. Madam Chair, as the designee of the gentlewoman from Massachusetts (Ms. PRESSLEY), I rise to offer an amendment.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 62, after line 4 insert the following:

(6) Information regarding any training or resources provided by the Federal Bureau of Investigation, the Department of Homeland Security, or the National Counterterrorism Center, to assist Federal, State, local, and Tribal law enforcement agencies in understanding, detecting, deterring, and investigating acts of domestic terrorism, including the date, type, subject, and recipient agencies of such training or resources.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from California (Mr. SCHIFF) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. SCHIFF. Madam Chair, this amendment clarifies section 602 of the bill dealing with domestic terrorism.

Section 602 would require the FBI, DHS, and the National Counterterrorism Center to produce an annual report and strategic intelligence assessment on domestic terrorism. Ms. PRESSLEY's amendment would require more information regarding any training or resources on domestic terrorism provided by the FBI, DHS, and National Counterterrorism Center to assist Federal, State, local, and Tribal law enforcement agencies.

This would enhance oversight and transparency in this area and give us a better sense of how domestic terrorism training has been provided to law enforcement throughout the United States.

Madam Chair, I thank my colleague for her work, and I urge our colleagues to support the amendment and the underlying bill.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. SCHIFF).

The amendment was agreed to.

AMENDMENT NO. 22 OFFERED BY MR. ROSE OF NEW YORK

The Acting CHAIR. It is now in order to consider amendment No. 22 printed in part B of House Report 116–154.

Mr. ROSE of New York. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following new section:

SEC. 7_____. REPORT CONTAINING THREAT ASSESSMENT ON TERRORIST USE OF CONVENTIONAL AND ADVANCED CONVENTIONAL WEAPONS.

(a) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter for a period of 4 years, the Under Secretary of Homeland Security for Intelligence and Analysis, in coordination with the Director of the Federal Bureau of Investigation, shall develop and submit to the entities in accordance with subsection (b) a report containing a threat assessment regarding the availability of conventional weapons, including conventional weapons lacking serial numbers, and advanced conventional weapons, for use in furthering acts of terrorism, including the provision of material support or resources to a foreign terrorist organization and to individuals or groups supporting or engaging in domestic terrorism.

(b) DISSEMINATION OF REPORT.—Consistent with the protection of classified and confidential unclassified information, the Under Secretary shall—

(1) submit the initial report required under subsection (a) to Federal, State, local, and Tribal law enforcement officials, including officials who operate within State, local, and

regional fusion centers under the Department of Homeland Security State, Local, and Regional Fusion Center Initiative established by section 210A of the Homeland Security Act of 2002 (6 U.S.C. 124h); and

(2) submit each report required under subsection (a) to the appropriate congressional committees.

(c) DEFINITIONS.—In this section:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Permanent Select Committee on Intelligence, the Committee on Homeland Security, and the Committee on the Judiciary of the House of Representatives; and

(B) the Select Committee on Intelligence, the Committee on Homeland Security and Governmental Affairs, and the Committee on the Judiciary of the Senate.

(2) DOMESTIC TERRORISM.—The term ''domestic terrorism'' has the meaning given that term in section 2331 of title 18, United States Code.

(3) FOREIGN TERRORIST ORGANIZATION.—The term ''foreign terrorist organization'' means an organization designated as a foreign terrorist organization under section 219 of the Immigration and Nationality Act (8 U.S.C. 1189).

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from New York (Mr. ROSE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New York.

□ 2115

Mr. ROSE of New York. Madam Chair, I yield myself such time as I may consume.

Madam Chair, I rise in support of my amendment to H.R. 3494.

Our law enforcement officers stand on the front lines of defending the American people from domestic and international terrorist threats. It is our job as Congress to make sure that they have the most up-to-date information about the evolving threats posed by terrorism, including the use of advanced conventional weapons.

One such evolving threat is the danger posed by terrorist use of conventional and advanced conventional weapons, including unregistered weapons that lack serial numbers.

To address this issue, my amendment to the Intelligence Authorization Act will require the Department of Homeland Security to conduct an annual assessment of the domestic and international terrorist threats posed by conventional weapons as well as advanced conventional weapons.

This is a simple, straightforward amendment that seeks to put important information about terrorist threats in the hands of our law enforcement officers.

Madam Chair, law enforcement needs to have the information they need to understand these threats. The assessment of the terrorist threat posed by conventional weapons and advanced conventional weapons that I call for in this amendment will do just that.

Additionally, this assessment will then be shared with Congress and with law enforcement so that our frontline officers have the information they need to understand these evolving threats.

Madam Chair, I urge all of my colleagues to support my amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from New York (Mr. ROSE).

The amendment was agreed to.

AMENDMENT NO. 23 OFFERED BY MR. ROSE OF NEW YORK

The Acting CHAIR. It is now in order to consider amendment No. 23 printed in part B of House Report 116–154.

Mr. ROSE of New York. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 79, line 19, insert '', the Committee on Homeland Security and Governmental Affairs of the Senate, and the Committee on Homeland Security of the House of Representatives'' after ''congressional intelligence committees''.

At the end of title VII, add the following new section:

SEC. 7____. ASSESSMENT OF HOMELAND SECURITY VULNERABILITIES ASSOCIATED WITH CERTAIN RETIRED AND FORMER PERSONNEL OF THE INTELLIGENCE COMMUNITY.

(a) ASSESSMENT REQUIRED.—Not later than the date that is 120 days after submission of the report required under section 704 of this Act, and annually thereafter, the Director of National Intelligence, in coordination with the Under Secretary of Homeland Security for Intelligence and Analysis, the Director of the Federal Bureau of Investigation, the Director of the Central Intelligence Agency, and the Director of the Defense Counterintelligence and Security Agency, shall submit to the appropriate congressional committees an assessment of the homeland security vulnerabilities associated with retired and former personnel of intelligence community providing covered intelligence assistance.

(b) FORM.—The assessment under subsection (a) may be submitted in classified form.

(c) DEFINITIONS.—In this section:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the congressional intelligence committees;

(B) the Committee on Homeland Security and Governmental Affairs of the Senate; and

(C) the Committee on Homeland Security of the House of Representatives.

(2) COVERED INTELLIGENCE ASSISTANCE.—The term ''covered intelligence assistance'' has the meaning given that term in section 704 of this Act.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from New York (Mr. ROSE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New York.

Mr. ROSE of New York. Madam Chair, I yield myself such time as I may consume.

Madam Chair, I rise to offer an amendment to title VII of H.R. 3494, entitled, ''Reports and Other Matters.''

As a combat veteran, I can tell you firsthand that intelligence drives operations, and it is imperative to the security of our homeland that the U.S. maintains its superiority when it comes to intelligence. However, a growing concern I have is when our former or retired intelligence professionals choose to later work for a foreign government.

We saw it with former NSA employees working as hackers for the United Arab Emirates' Project Raven. Interviews and documents showed that the NSA's surveillance techniques were central to the country's monitoring efforts.

Reporting showed that American ex-intelligence personnel would target the UAE Government's opponents online. This information, provided to them by the country's NSA equivalent, didn't just target terrorists, but also human rights activists and journalists, those whom the UAE deemed unfavorable.

It is concerning when our best and brightest go off to conduct or advise on intelligence operations for foreign governments that, in some cases, are against the very people our American ideals protect. We need to understand the nature and impact of this expertise in the hands of a foreign government. What are the homeland security implications of this?

My amendment will do just that. It requires the Director of National Intelligence, in coordination with other intelligence community partners, to conduct an annual assessment of the homeland security vulnerabilities associated with former intelligence community employees providing intelligence assistance to a foreign government.

Madam Chair, the invaluable training, tradecraft, and expertise developed by former or retired intelligence professionals to keep our country safe, to keep Americans safe, now in the hands of a foreign government for their benefit is absolutely chilling.

My amendment will tackle these concerns head-on with an annual assessment of any homeland security vulnerabilities that may be associated with this capability, cultivated from years of service to our country, now being provided to foreign governments.

Madam Chair, I urge all of my colleagues to support my amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from New York (Mr. ROSE).

The amendment was agreed to.

AMENDMENT NO. 24 OFFERED BY MR. PENCE

The Acting CHAIR. It is now in order to consider amendment No. 24 printed in part B of House Report 116–154.

Mr. PENCE. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following new section:

SEC. 7_____. EXPANSION OF AVAILABILITY OF FINANCIAL ASSETS OF IRAN TO VICTIMS OF TERRORISM.

(a) FINDINGS.—Congress makes the following findings:

(1) On October 23, 1983, terrorists sponsored by the Government of Iran bombed the United States Marine barracks in Beirut, Lebanon. The terrorists killed 241 servicemen and injured scores more.

(2) Those servicemen were killed or injured while on a peacekeeping mission.

(3) Terrorism sponsored by the Government of Iran threatens the national security of the United States.

(4) The United States has a vital interest in ensuring that members of the Armed Forces killed or injured by such terrorism, and the family members of such members, are able to seek justice.

(b) AMENDMENTS.—Section 502 of the Iran Threat Reduction and Syria Human Rights Act of 2012 (22 U.S.C. 8772) is amended—

(1) in subsection (a)(1)—

(A) in subparagraph (A), by striking ''in the United States'' the first place it appears and inserting ''by or'';

(B) in subparagraph (B), by inserting '', or an asset that would be blocked if the asset were located in the United States,'' after ''unblocked)''; and

(C) in the flush text at the end—

(i) by inserting after ''in aid of execution'' the following: '', or to an order directing that the asset be brought to the State in which the court is located and subsequently to execution or attachment in aid of execution,''; and

(ii) by inserting '', without regard to concerns relating to international comity'' after ''resources for such an act''; and

(2) in subsection (b)—

(A) by striking ''that are identified'' and inserting the following: ''that are—

''(1) identified'';

(B) by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following:

''(2) identified in and the subject of proceedings in the United States District Court for the Southern District of New York in Peterson et al. v. Islamic Republic of Iran et al., Case No. 13 Civ. 9195 (LAP).''.

(c) REPORT.—

(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to Congress a report on threats against the United States military and defense interests, personnel, and their families, posed by organizations that are designated by the Secretary of State as a foreign terrorist organization pursuant to section 219 of the Immigration and Nationality Act (8 U.S.C. 1189) with connections to the Government of Iran, as determined by the Director.

(2) FORM.—The report under paragraph (1) shall be submitted in unclassified form, but may contain a classified annex.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Indiana (Mr. PENCE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Indiana.

Mr. PENCE. Madam Chair, I rise in support of my amendment, which is deeply personal.

Madam Chair, I was assigned to the 3rd Battalion, 3rd Marines. In 1983, my battalion was ordered to Beirut, Lebanon.

On October 23 of that same year, an Iranian national affiliated with Hezbollah, a terror group founded, trained, and financially supported by the Iranian regime, drove a truck bomb into the U.S. barracks in Beirut, killing 241 servicemen, 220 of which were my fellow marines.

It is by the grace of God that I am standing here today. My battalion shipped out 10 days before the bombing. I was lucky. I was able to come home to my wife, who was expecting our first child, and my family in Columbus, Indiana.

As proud U.S. marines, Congressman GALLEGO and I authored this bipartisan, bicameral legislation to provide a sliver of justice for the 241 heroes who were not as lucky that day.

Madam Chair, our amendment is simple. The OORAH Act would allow the families of the bombing victims to execute on the $1.6 billion in Iranian funds currently held by a European-based firm. These funds were laundered through New York before making their way to Europe, where they sit just outside the hand of justice.

Regardless of the party you conference with or the district you represent, we can all agree that terrorists and those who support them financially must be held accountable for their actions.

When I joined the Marines in 1979, I made a promise of Semper Fidelis. Semper Fi is a lifelong commitment held by every marine for the corps and America, a promise reciprocated by the corps to all marines.

Madam Chair, we must uphold this promise. Marines are the first to fight, and this time we are fighting for the Gold Star families who lost their loved ones.

Madam Chair, I urge my colleagues to support this amendment and stand with Congressman GALLEGO and me and our colleagues in the Senate to honor the faith and loyalty of the 241 American servicemen who made the ultimate sacrifice.

Madam Chair, OORAH stands for Our Obligation to Recognize American Heroes, or as the Marines say, OORAH.

Madam Chair, I reserve the balance of my time.

Mr. GALLEGO. Madam Chair, I claim the time in opposition, although I am not opposed to the amendment.

The Acting CHAIR. Without objection, the gentleman from Arizona is recognized for 5 minutes.

There was no objection.

Mr. GALLEGO. Madam Chair, I rise in proud support of the amendment sponsored by fellow marine and public servant, Mr. PENCE.

October 23, 1983, remains seared in the memory of all marines. On that day, over 300 innocent people were killed in a surprise terrorist attack sponsored by the Government of Iran. Most of the people killed 36 years ago were my brothers. They were U.S. marines. They were serving our country and doing their best to preserve the peace in war-torn Lebanon.

We know that the wheels of justice turn slowly, Madam Chair. It took over 35 years for victims to get traction in U.S. courts. But now that they are getting that traction and winning judgments, marines in Congress are here to help to ensure that Iranian funds cannot be hidden from them in secret foreign bank accounts.

This amendment helps the families of those killed and wounded by making sure that Iran is held liable for this attack. It makes it harder for Iran to hide money in overseas bank accounts when it should be paying for the pain and suffering of its victims. It shows that, even 36 years after the attack, we have not forgotten, and it once again proves that U.S. marines remain ''no better friend, no worse enemy.''

Madam Chair, I yield back the balance of my time.

Mr. PENCE. Madam Chair, I thank the chairman and ranking member for their leadership and my colleague and fellow marine from Arizona (Mr. GALLEGO) for his faithful service and unwavering support on this legislation.

Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Indiana (Mr. PENCE).

The amendment was agreed to.

AMENDMENT NO. 25 OFFERED BY MR. SCHIFF

The Acting CHAIR. It is now in order to consider amendment No. 25 printed in part B of House Report 116–154.

Mr. SCHIFF. Madam Chair, as the designee of the gentlewoman from Michigan (Ms. SLOTKIN), I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 203, line 1, strike ''REPORT REQUIRED'' and insert ''**REPORT ON FOREIGN MALIGN INFLUENCE RESPONSE**''.

Page 204, after line 10, insert the following new subsection:

(c) REPORT ON ABILITY TO IDENTIFY FOREIGN INFLUENCE EFFORTS.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional intelligence committees a report concerning the ability of the intelligence community to—

(A) identify foreign influence efforts aimed at sowing discord or interfering, or both, in the political processes of the United States; and

(B) report such efforts to appropriate authorities.

(2) CONTENTS.—The report under paragraph (1) shall include the following:

(A) A description of the current level of ongoing communication and coordination across the intelligence community and law enforcement, including the Department of Justice, the Department of State, the Department of Homeland Security, and the Federal Bureau of Investigation, with respect to combating foreign influence efforts described in subparagraph (A) of such paragraph.

(B) Identification of the offices or components of the departments and agencies of the Federal Government that are tasked with any responsibility with respect to combating such foreign influence efforts.

(C) Identification of the number of personnel within each element of the intelligence community and other elements of

the Federal Government that are focused on combating such foreign influence efforts, whether on a temporary or permanent basis.

(D) Identification of the legal authorities that are most relevant to combating such foreign influence efforts, including—

(i) which such legal authorities pose challenges or barriers to effectively combat such foreign influence efforts and a description of the reasons for such challenges or barriers; and

(ii) which such legal authorities pose challenges or barriers with respect to elements of the intelligence community and other elements of the Federal Government working together to combat such foreign influence efforts and a description of the reasons for such challenges or barriers.

(E) A description of the current level of communication or engagement between the intelligence community and private internet-platforms or social media companies with respect to combating such foreign influence efforts.

(F) A description of the additional resources the Director determines is necessary to effectively identify such foreign influence efforts, and the roles and responsibilities across the intelligence community that would best support the shared objective of identifying such foreign influence efforts.

(G) Any other matters the Director determines appropriate.

(3) FORM.—The report under paragraph (1) may be submitted in classified form.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from California (Mr. SCHIFF) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. SCHIFF. Madam Chair, the Intelligence Committee has invested considerable time and focus the last 3 years to study the painful lessons of foreign interference in our democratic system.

Ms. SLOTKIN's amendment will enhance the work of the committee by compelling the Director of National Intelligence to identify barriers that prevent the intelligence community from fully understanding the scope and impact of these threats.

Our adversaries are committed to employing a whole-of-government approach to execute their plan to disrupt our democratic system. In order to defeat these efforts, we must understand the scope of the threat. We must enlist our intelligence community to identify the scope of and the means by which our adversaries are attempting to achieve their goal.

This amendment sets forth a framework by which the DNI will report to Congress on these threats and identify whether there are gaps in the IC's authorities that hinder its ability to find, assess, and enable action on foreign influence campaigns.

Madam Chair, I believe this is an important amendment. I encourage my colleagues to support it, as well as the underlying bill, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. SCHIFF).

The amendment was agreed to.

□ 2130

AMENDMENT NO. 26 OFFERED BY MR. SCHIFF

The Acting CHAIR. It is now in order to consider amendment No. 26 printed in part B of House Report 116–154.

Mr. SCHIFF. Madam Chairwoman, I rise as the designee of Ms. SLOTKIN to offer her second amendment.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title V, add the following new section:

SEC. 507. ANNUAL REPORTS ON INFLUENCE OPERATIONS AND CAMPAIGNS IN THE UNITED STATES BY THE RUSSIAN FEDERATION.

(a) REPORTS.—Title XI of the National Security Act of 1947 (50 U.S.C. 3231 et seq.), as amended by section 501, is further amended by adding at the end the following new section:

''SEC. 1107. ANNUAL REPORTS ON INFLUENCE OPERATIONS AND CAMPAIGNS IN THE UNITED STATES BY THE RUSSIAN FEDERATION.

''(a) REQUIREMENT.—On an annual basis, the Director of the National Counterintelligence and Security Center shall submit to the congressional intelligence committees a report on the influence operations and campaigns in the United States conducted by the Russian Federation.

''(b) CONTENTS.—Each report under subsection (a) shall include the following:

''(1) A description and listing of the Russian organizations and persons involved in influence operations and campaigns operating in the United States as of the date of the report.

''(2) An assessment of organizations that are associated with or receive funding from organizations and persons identified in paragraph (1), particularly such entities operating in the United States.

''(3) A description of the efforts by the organizations and persons identified in paragraph (1) to target, coerce, and influence populations within the United States.

''(4) An assessment of the activities of the organizations and persons identified in paragraph (1) designed to influence the opinions of elected leaders of the United States or candidates for election in the United States.

''(5) With respect to reports submitted after the first report, an assessment of the change in goals, tactics, techniques, and procedures of the influence operations and campaigns conducted by the organizations and persons identified in paragraph (1).

''(c) COORDINATION.—In carrying out subsection (a), the Director shall coordinate with the Director of the Federal Bureau of Investigation, the Director of the Central Intelligence Agency, the Director of the National Security Agency, and any other relevant head of an element of the intelligence community.

''(d) FORM.—Each report submitted under subsection (a) shall be submitted in unclassified form, but may include a classified annex.''.

(b) CLERICAL AMENDMENT.—The table of contents in the first section of the National Security Act of 1947, as amended by section 501, is further amended by inserting after the item relating to section 1106 the following new item:

''Sec. 1107. Annual reports on influence operations and campaigns in the United States by the Russian Federation.''''.

(c) INITIAL REPORT.—The Director of the National Counterintelligence and Security Center shall submit to the congressional intelligence committees the first report under section 1107 of the National Security Act of 1947, as added by subsection (a), by not later than 180 days after the date of the enactment of this Act.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from California (Mr. SCHIFF) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. SCHIFF. Madam Chairwoman, we are all too familiar with the influence operations perpetrated by the Russian Government during the 2016 U.S. election.

As the IC articulated in its January 2017 intelligence community assessment, those operations were merely the most recent in a long history of efforts to undermine the liberal democratic order. We must remain vigilant and fully informed about the operations executed by the Government of Russia to influence and undermine our democratic system.

To that end, this amendment requires an annual report from the Director of National Intelligence containing information about the influence operations and campaigns in the U.S. by the Russian Federation. I support the amendment and urge my colleagues to do the same.

I urge support for the amendment, and I yield back the balance of my time.

The Acting CHAIR (Mrs. MURPHY). The question is on the amendment offered by the gentleman from California (Mr. SCHIFF).

The amendment was agreed to.

AMENDMENT NO. 27 OFFERED BY MR. YOHO

The Acting CHAIR. It is now in order to consider amendment No. 27 printed in part B of House Report 116–154.

Mr. YOHO. Madam Chairwoman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 81, line 12, strike ''and'' at the end.

Page 81, after line 12 insert the following (and redesignate the succeeding paragraph):

(2) the threat to the national security of the United States posed by telecommunications companies that are subject to the jurisdiction of a foreign adversary; and

Page 81, line 22, strike ''and'' at the end.

Page 81, after line 22 insert the following (and redesignate the succeeding paragraph):

(3) the threat to the national security of the United States from acquisition, importation, transfer, installation, or use of any communications technology by any person subject to the jurisdiction of the United States that involves communications technology designed, developed, manufactured or supplied by, controlled by, or subject to, the jurisdiction of a foreign adversary; and

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Florida (Mr. YOHO) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. YOHO. Madam Chairwoman, I stand in support of an amendment I

have offered to the Damon Paul Nelson and Matthew Young Pollard Intelligence Authorization Act.

I would like to thank Representative NUNES and Representative SCHIFF for their work on this important legislation.

My proposed amendment includes within the report on 5G technology, the threat to the national security of the United States posed by telecommunication companies that are subject to the jurisdiction of a foreign adversary; namely, China, Russia, Iran, North Korea, and Syria.

This will cover threats from acquisitions, importations, transfers, or use of communications technology by any person subject to the jurisdiction of the United States that involved technology designed, developed or controlled by a foreign adversary.

As globalization continues to shape the world we live in, it is increasingly important that the United States prioritizes the security of our cyber networks and infrastructure. Today, China controls over 60 percent of the 5G networks in the world.

In 2012, the House Permanent Select Committee on Intelligence deemed telecommunication companies, Huawei and ZTE national security threats. Seven years later, these companies continue to harm and undermine U.S. cybersecurity interests. Should the U.S. continue to let these companies and others like them continue to proliferate our networks, we are putting the security of our citizens at risk and our national security.

We must continue our maximum pressure campaign on these malicious companies until we can ensure that these actors do not pose threats to our national security.

I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. YOHO).

The amendment was agreed to.

AMENDMENT NO. 28 OFFERED BY MR. YOHO

The Acting CHAIR. It is now in order to consider amendment No. 28 printed in part B of House Report 116–154.

Mr. YOHO. Madam Chairwoman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VI, add the following new section:

SEC. 6___. REPORT CHARACTERIZING DOMESTIC TERRORISM ACTIVITY WITHIN THE UNITED STATES.

(a) REPORT.—Not later than 150 days after the date of the enactment of this Act, the Director of the Federal Bureau of Investigation, in coordination with the Under Secretary of Homeland Security for Intelligence and Analysis, shall submit to the congressional intelligence committees a report on domestic terrorism activity within the United States.

(b) CONTENTS.—The report under subsection (a) shall include the following:

(1) Activities conducted by domestic terrorist groups to restrict free speech using violence or intimidation.

(2) Activities conducted by domestic terrorist groups that are dangerous to human life and are a violation of the criminal laws of the United States or of any State.

(3) The prevalence of any domestic terrorist group's activities within the United States and abroad.

(c) COORDINATION.—The Director shall carry out subsection (a) in coordination with the head of any other agency of the Federal Government that the Director determines appropriate.

(d) FORM.—The report submitted under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Florida (Mr. YOHO) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. YOHO. Madam Chairwoman, I rise today to offer an amendment to H.R. 3494. My amendment No. 28 would require the FBI Director, in coordination with the Under Secretary of Homeland Security for Intelligence and Analysis to submit a report on domestic terrorist activity in the United States to the congressional intelligence committees.

The report will detail:

Activities conducted by domestic terrorist groups that restrict free speech using violence or intimidation;

Activities conducted by domestic terrorist groups that are a danger to human life and are a violation of the criminal laws of the United States or any State; and

The prevalence of any domestic terrorist group within the United States and abroad or any group that claimed to be domestic yet have ties to foreign groups like al-Qaida or other terrorist organizations.

There are abhorrent groups of people within the United States today whose reasons for existence is violence. They do not respect the rule of law or the values of America. Yes, we have the First Amendment that allows for freedom of speech, religion, and assembly, but with those freedoms, one must exercise responsibility.

They seek to inflict harm on Americans or specific groups of Americans because of their race, religion, personal beliefs, or other reasons.

We have seen this evil in recent years with the deadly attacks on the Tree of Life synagogue in Pittsburgh, the attack on the Mother Emanuel AME Church in Charleston, and, sadly, too many more.

Moreover, we have seen violence used by groups that restrict free speech, most recently with the attack on Andy Ngo in Portland by the group Antifa.

We are the most extraordinary Nation because of our belief in and the adherence to the idea ''that all men are created equal, that they are endowed by their creator with certain unalienable rights, that among these are life, liberty, and the pursuit of happiness,'' with the rule of law included.

Groups that threaten these notions threaten our country and our very form of government. It is imperative that Congress be informed of domestic terrorist activities and understand the prevalence of these activities.

By keeping Congress informed of these activities, we, as legislators, may continue to ensure laws are appropriately crafted to protect all Americans and safeguard the liberties we hold dear.

I encourage my colleagues to support this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. YOHO).

The amendment was agreed to.

AMENDMENT NO. 29 OFFERED BY MS. OMAR

The Acting CHAIR. It is now in order to consider amendment No. 29 printed in part B of House Report 116–154.

Ms. OMAR. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following new section:

SEC. 7___. REPORT ON TERRORIST SCREENING DATABASE.

(a) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence and the Secretary of State shall jointly submit to the congressional intelligence committees, the Committee on Foreign Affairs of the House of Representatives, and the Committee on Foreign Relations of the Senate a report on the terrorist screening database of the Federal Bureau of Investigation.

(b) MATTERS INCLUDED.—The report under subsection (a) shall identify the following:

(1) Which foreign countries receive access to the terrorist screening database.

(2) Which foreign countries have successfully petitioned to add individuals to the terrorist screening database.

(3) What standards exist for determining which countries get access to the terrorist screening database.

(4) The extent to which the human rights record of the government of a foreign country is considered in the determination to give the country access to the terrorist screening database.

(5) What procedures, if any, exist to remove access to the terrorist screening database from a foreign country.

(6) What procedures, if any, exist to inform an individual, or the legal counsel of an individual, of the placement of the individual on the terrorist screening database.

(c) FORM.—The report under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

The Acting CHAIR. Pursuant to House Resolution 491, the gentlewoman from Minnesota (Ms. OMAR) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Minnesota.

Ms. OMAR. Madam Chairwoman, my amendment mandates reporting on the foreign governments with whom we share access to the Terrorist Screening Database. The database is shared with more than 60 foreign governments, including countries with appalling human rights records, such as Saudi Arabia and China.

An FBI official has acknowledged in sworn testimony that it has never stopped sharing watch-list information with a foreign government because of that government's human rights abuses. Many of the people who are included in the database have never been charged with a crime, and, yet, we share sensitive information about them with the same government that murdered Jamal Khashoggi.

I have also received credible reports that there have been Uighurs added to the database at the request of the Chinese Government. I ask the Chair to think about that.

There is universal outrage in Washington about the treatment of the Uighur population in China. What are we talking about?

Let's be clear. These are the precursors to genocide. And while it is happening, while Members of both sides of the aisle and the Secretary of State are condemning what is happening, we are allowing the Chinese Government to add Uighurs to the Terrorist Screening Database. We are allowing them to track Uighurs in the United States.

This is probably the most appalling aspect of our sharing this information with governments that violate human rights, but it is not the only appalling aspect. One thing we know for sure in almost two decades that we have been fighting the war on terror, is that dictators have been more than happy to call whoever opposes them a terrorist.

The Saudis, whose family has direct, proven, and clear financial links to al-Qaida, are given access to this database. The Saudis, who have rounded up human rights activists, tortured them, mass executed them, and claiming they are terrorists, get to add people on this list. It is entirely possible that they get to add American citizens to this list.

This isn't compatible with a free society. It isn't compatible with our essential concepts of civil liberties. It is important to note that the evidentiary standard for being placed in the database is very low. The government only needs reasonable suspicion that someone is involved in terrorism, which is not even enough to charge someone with a crime.

It is also significant that individuals added to this database are not informed of their placements and have suffered preventable harms as a result.

So my amendment asks some basic questions, questions that we as Members of Congress have not only a right to, but a responsibility to ask.

I ask my colleagues to support this amendment. If they are concerned about civil liberties, they should be concerned about this. If they are concerned about human rights abroad, they should be concerned about this. And no matter how they feel about the database itself, this amendment asks that we need answers in order to make informed decisions about our national security policy.

Madam Chair, I yield 1 minute to the gentleman from California (Mr. SCHIFF), the chairman.

Mr. SCHIFF. Madam Chair, I thank the gentlewoman for yielding to me.

This amendment requires a report on a number of civil liberties questions regarding the Terrorist Screening Database. We need to structure our counterterrorism programs by thinking about not only what we can do and what is constitutional to do, but what we should be doing so that we get the maximum security benefit along with the maximum privacy.

Our aim is a healthy equilibrium between security and privacy. With that in mind, I support my colleague's amendment which will assist the Intelligence Committee with its oversight and inform the public about how the privacy security balance is being struck.

I want to thank Ms. OMAR for her work, and I encourage my colleagues to support her amendment.

Ms. OMAR. Madam Chair, I am thankful to the chairman and ranking member for their support, and with that, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Minnesota (Ms. OMAR).

The amendment was agreed to.

The Acting CHAIR. The Chair understands that amendment No. 30 will not be offered.

AMENDMENT NO. 31 OFFERED BY MR. CROW

The Acting CHAIR. It is now in order to consider amendment No. 31 printed in part B of House Report 116–154.

Mr. CROW. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title VII, add the following new section:

SEC. 708. SENSE OF CONGRESS ON AMERICANS AND FOREIGN INDIVIDUALS WHO CONTRIBUTE TO THE NATIONAL SECURITY OF THE UNITED STATES WHO ARE HELD CAPTIVE.

It is the sense of Congress that the United States Government should—

(1) prioritize the safety and protection for all Americans, including citizens of the United States who are wrongfully detained by foreign governments;

(2) make every effort to bring these Americans back home; and

(3) provide assistance to and, as appropriate, advocate on behalf of foreign individuals detained abroad who contributed directly to the national security of the United States.

The Acting CHAIR. Pursuant to House Resolution 491, the gentleman from Colorado (Mr. CROW) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Colorado.

Mr. CROW. Madam Chairwoman, I rise today to offer an amendment to highlight the importance of honoring our commitments, to keep Americans and those who serve our country around the world safe.

Unfortunately, by virtue of being Americans and representing the values of our country, our citizens are sometimes targeted by adversarial countries and wrongfully detained. In those situations, we must leverage all available tools and resources at our disposal to secure their safe return. We must employ a whole-of-government approach to return Americans wrongfully detained in foreign countries back to their families.

□ 2145

We are a nation founded on the principle of due process. We must hold other countries to the same expectations of equal treatment under the law.

We must also support the foreign nationals who put their lives and the lives of their families at risk to contribute to our national security. We owe these extraordinary individuals our gratitude for their assistance, particularly in light of the dangers that they often face. Despite precautions, in some cases, their contributions have led to their detainment or imprisonment.

One of our greatest strengths is the network of individuals and nations that want to help us because they can rely on us to keep our promises. That is why we must continue to stand by our commitments to our partners, particularly when they are persecuted for their contributions to the U.S.

Simply stated, we must honor our commitments to those who have stood by us.

This amendment asserts the importance of this position, not just because it is in the best interests of the United States, but because it is the right thing to do, and that moral responsibility is an essential virtue of being an American.

Madam Chair, I yield 30 seconds to the gentleman from California (Mr. SCHIFF).

Mr. SCHIFF. Madam Chair, I thank the gentleman for yielding.

Securing the safe release of Americans held abroad is a top and urgent priority. Congress can play a role in keeping this issue at the forefront of public consciousness.

With that in mind, I salute my colleague for all of his efforts. I thank Mr. CROW for drafting this sense of Congress that keeps the spotlight on this important issue.

Madam Chair, I urge my colleagues to support the amendment and the underlying bill.

Mr. CROW. Madam Chair, in closing, I urge my colleagues to support my amendment and uphold our obligations to our fellow Americans and partners around the world. We are a country that keeps its promises, and we must do so well into the future.

Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Colorado (Mr. CROW).

The amendment was agreed to.

Mr. SCHIFF. Madam Chair, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Ms. OMAR) having assumed the chair, Mrs. MURPHY, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 3494) to authorize appropriations for fiscal year 2020 for intelligence and intelligence-related activities of the United States Government, the Community Management Account, and the Central Intelligence Agency Retirement and Disability System, and for other purposes, had come to no resolution thereon.

RECOGNIZING THE FRANK VARISCHETTI FOUNDATION AND HONORING COACH ANDY EVANKO

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Madam Speaker, on June 28, I had the privilege of attending the fourth annual Frank Varischetti All-Star Football Game in Brockway, Pennsylvania.

The Frank Varischetti Foundation hosts this annual event with support from the Brockway Gridiron Association and the Brockway Area School District. The event brings the region together for a great gridiron game in support of the academic futures of local students.

In addition to showcasing the best football talent in the region, $1,000 scholarships are awarded by game sponsors. This year, I was proud to represent many players from Pennsylvania's 15th Congressional District in awarding 20 scholarships.

The event also recognized the late coach Andy Evanko, who passed away last month from ALS, with a moment of silence. Coach Evanko was a staple in his community and coached the Curwensville Golden Tide football team from 2000 to 2018 with an impressive career record, winning more than 70 percent of his games as head coach.

These young men and their coaches truly exhibited the value of hard work and the importance of good sportsmanship.

STOP UN-AMERICAN RHETORIC

(Mr. ABRAHAM asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ABRAHAM. Madam Speaker, I am concerned about the rhetoric I have continually heard from the other side. I believe that all Members of this body love our country, but some statements from this House are un-American in tone, such as comparing ICE detention centers to concentration camps and the Holocaust. There have been suggestions that terrorist organizations were justified in attacking our great Nation. Members have even used language expressing how ashamed they are of this country.

I am fed up with those continued attacks on the very foundations of this great Nation.

I remind my colleagues that we, as Americans, pledge allegiance to the flag of the United States of America. We must not use rhetoric that leads other nations to question our loyalties.

Madam Speaker, I am not afraid to stand up for freedom, liberty, and justice. I am proud to be an American, and I will defend the values that make this Nation great until the day I die.

ADJOURNMENT

Mr. ABRAHAM. Madam Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 9 o'clock and 51 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, July 17, 2019, at 10 a.m. for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV,

1645. A letter from the Acting Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Department's report entitled ''Annual Report to Congress on the Use of Mandatory Recall Authority'' for FY 2017, was taken from the Speaker's table, referred to the Committee on Energy and Commerce.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. GRIJALVA: Committee on Natural Resources. H.R. 205. A bill to amend the Gulf of Mexico Energy Security Act of 2006 to permanently extend the moratorium on leasing in certain areas of the Gulf of Mexico (Rept. 116–156). Referred to the Committee of the Whole House on the state of the Union.

Mr. GRIJALVA: Committee on Natural Resources. H.R. 1941. A bill to amend the Outer Continental Shelf Lands Act to prohibit the Secretary of the Interior including in any leasing program certain planning areas, and for other purposes (Rept. 116–157). Referred to the Committee of the Whole House on the state of the Union.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. COMER (for himself and Mr. JORDAN):

H.R. 3765. A bill to amend title 13, United States Code, to require that any questionnaire used for a decennial census of population contains a question regarding citizenship, and for other purposes; to the Committee on Oversight and Reform.

By Ms. JOHNSON of Texas (for herself, Mr. LUCAS, Ms. KENDRA S. HORN of Oklahoma, and Mr. BABIN):

H.R. 3766. A bill to require any Federal agency that issues licenses to conduct activities in outer space to include in the requirements for such licenses an agreement relating to the preservation and protection of the Apollo 11 landing site, and for other purposes; to the Committee on Science, Space, and Technology, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. SCHNEIDER:

H.R. 3767. A bill to ensure an evidence-based funding approach to study the effects of health professions opportunity grant demonstration projects, and to evaluate the demonstration projects; to the Committee on Ways and Means.

By Mr. BUDD:

H.R. 3768. A bill to amend the Securities Exchange Act of 1934 to create a safe harbor for finders and private placement brokers, and for other purposes; to the Committee on Financial Services.

By Ms. HOULAHAN:

H.R. 3769. A bill to authorize the Secretary of State to waive certain requirements with respect to eligibility for civil service positions relating to the departmental formulation and direction of foreign affairs and international relations, and for other purposes; to the Committee on Foreign Affairs.

By Mr. BRENDAN F. BOYLE of Pennsylvania (for himself, Ms. SCHAKOWSKY, Ms. NORTON, and Mr. SWALWELL of California):

H.R. 3770. A bill to require the chief election officials of the States to provide voter registration forms at certain naturalization proceedings, and for other purposes; to the Committee on House Administration.

By Mr. SCHRADER (for himself and Mr. YOHO):

H.R. 3771. A bill to establish an interagency One Health Program, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on Agriculture, Natural Resources, and Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. PETERS (for himself, Mr. RUSH, and Mr. HOLDING):

H.R. 3772. A bill to amend title XVIII of the Social Security Act to ensure equitable payment for, and preserve Medicare beneficiary access to, diagnostic radiopharmaceuticals under the Medicare hospital outpatient prospective payment system; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. JOHNSON of Georgia (for himself, Mr. GARCÍA of Illinois, and Mrs. WATSON COLEMAN):

H.R. 3773. A bill to direct the Secretary of Transportation to prescribe a motor vehicle safety standard requiring new commercial motor vehicles to be equipped with an automatic emergency braking system, to require automatic emergency braking installed in commercial motor vehicles to be used while in operation, and for other purposes; to the Committee on Transportation and Infrastructure, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BAIRD (for himself, Ms. STEVENS, Mr. BURCHETT, and Mr. CROW):

H.R. 3774. A bill to amend the Small Business Act to improve the Small Business Innovation Research program and Small Business Technology Transfer program, and for other purposes; to the Committee on Small Business, and in addition to the Committee on Science, Space, and Technology, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BROWN of Maryland (for himself, Mr. ESPAILLAT, Mr. JOHNSON of Georgia, Mr. MCGOVERN, Ms. NORTON, Mr. RUSH, Mr. SOTO, and Mr. VARGAS):

H.R. 3775. A bill to increase legal representation for certain aliens, and for other purposes; to the Committee on the Judiciary.

By Mr. CASTRO of Texas (for himself, Ms. GARCIA of Texas, Ms. VELÁZQUEZ, Mr. VARGAS, Mr. GRIJALVA, Mr. GALLEGO, Mrs. TRAHAN, Ms. NORTON, Mr. ESPAILLAT, Mr. CORREA, Ms. MUCARSEL-POWELL, Mr. VEASEY, Ms. OMAR, Mrs. NAPOLITANO, Mr. CÁRDENAS, Mr. GARCÍA of Illinois, and Mr. SOTO):

H.R. 3776. A bill to prohibit Executive agencies from using the derogatory term ''alien'' to refer to an individual who is not a citizen or national of the United States, to amend chapter 1 of title 1, United States Code, to establish a uniform definition for the term ''foreign national'', and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Oversight and Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. CLARKE of New York (for herself and Mr. THOMPSON of Mississippi):

H.R. 3777. A bill to establish a National Commission to investigate the treatment of migrant families and children by the Trump Administration; to the Committee on the Judiciary, and in addition to the Committee on Homeland Security, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CLEAVER (for himself, Mr. LONG, Mrs. WATSON COLEMAN, Mr. CUMMINGS, Ms. WILSON of Florida, Mr. HASTINGS, Mr. THOMPSON of Mississippi, Ms. JOHNSON of Texas, Ms. LEE of California, Mrs. MCBATH, Mr. FITZPATRICK, Ms. KELLY of Illinois, Ms. WILD, Mr. HORSFORD, Mr. BUTTERFIELD, Ms. CLARKE of New York, Mr. ROSE of New York, and Mr. MEEKS):

H.R. 3778. A bill to amend the Public Health Service Act to authorize certain grants (for youth suicide early intervention and prevention strategies) to be used for school personnel in elementary and secondary schools and students in secondary schools to receive student suicide awareness and prevention training, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Education and Labor, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. CRAIG (for herself, Mr. RODNEY DAVIS of Illinois, Ms. MCCOLLUM, Mr. CRAWFORD, Mr. KIND, and Mr. SMITH of Missouri):

H.R. 3779. A bill to amend the Robert T. Stafford Disaster Relief and Emergency Assistance Act to allow the Administrator of the Federal Emergency Management Agency to provide capitalization grants to eligible entities to establish revolving funds to provide assistance to reduce disaster risks, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mrs. DINGELL (for herself and Mr. BURGESS):

H.R. 3780. A bill to direct the Federal Communications Commission to establish an advisory committee to develop best practices regarding how to combat unlawful robocalls made to hospitals and how hospitals can protect themselves from such calls, and for other purposes; to the Committee on Energy and Commerce.

By Mr. GARCÍA of Illinois (for himself, Mr. CARTWRIGHT, Mr. ESPAILLAT, Ms. MENG, Mr. COHEN, Mr. PAYNE, and Mr. SOTO):

H.R. 3781. A bill to increase the minimum levels of financial responsibility for transporting property, and to index future increases to changes in inflation relating to medical care; to the Committee on Transportation and Infrastructure.

By Mr. LEVIN of Michigan (for himself and Ms. STEFANIK):

H.R. 3782. A bill to amend the Older Americans Act of 1965 to support family caregivers; to the Committee on Education and Labor.

By Mr. LUJÁN (for himself, Mr. GALLEGO, Mr. GRIJALVA, Mrs. KIRKPATRICK, Mr. O'HALLERAN, Mr. STANTON, Mr. CÁRDENAS, Ms. MATSUI, Mr. CROW, Ms. DEGETTE, Mr. NEGUSE, Ms. NORTON, Mr. HASTINGS, Mr. SOTO, Mr. SAN NICOLAS, Mr. KENNEDY, Mr. MCGOVERN, Mr. BUTTERFIELD, Ms. KUSTER of New Hampshire, Ms. TORRES SMALL of New Mexico, Ms. HAALAND, Ms. TITUS, Mr. HIGGINS of New York, Mr. TONKO, Mr. BLUMENAUER, Mr. DEFAZIO, Mr. SCHRADER, Mr. MICHAEL F. DOYLE of Pennsylvania, Mr. COHEN, Mr. DOGGETT, Ms. JACKSON LEE, Ms. DELBENE, Mr. HECK, Ms. JAYAPAL, Mr. KILMER, Mr. SMITH of Washington, Mrs. NAPOLITANO, Mr. PERLMUTTER, and Ms. JOHNSON of Texas):

H.R. 3783. A bill to amend the Radiation Exposure Compensation Act to improve compensation for workers involved in uranium mining, and for other purposes; to the Committee on the Judiciary, and in addition to the Committees on Education and Labor, and Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. NEGUSE:

H.R. 3784. A bill to amend title XXVII of the Public Health Service Act and title XI of the Social Security Act to prohibit surprise billing with respect to air ambulance services; to the Committee on Energy and Commerce.

By Ms. NORTON:

H.R. 3785. A bill to amend title 28, United States Code, to change the residency requirements for certain officials serving in the District of Columbia, and for other purposes; to the Committee on the Judiciary.

By Mr. PERRY:

H.R. 3786. A bill to amend the Higher Education Act of 1965 to direct the Secretary of Education to carry out a program under which an institution of higher education may elect to cosign Federal student loans made to students attending the institution, and for other purposes; to the Committee on Education and Labor.

By Mr. PERRY:

H.R. 3787. A bill to amend the Homeland Security Act of 2002 to establish in the Department of Homeland Security an Unmanned Aircraft Systems Coordinator, and for other purposes; to the Committee on Homeland Security.

By Ms. SHERRILL (for herself, Mr. GOTTHEIMER, Ms. UNDERWOOD, Mr. KING of New York, Ms. HILL of California, Mr. CASTEN of Illinois, Mr. CISNEROS, Mr. PHILLIPS, Ms. PORTER, Ms. WILD, Ms. HOULAHAN, Mr. PANETTA, Mr. ROSE of New York, Mr. MALINOWSKI, Mr. VAN DREW, Mr. SUOZZI, Mr. PASCRELL, Mr. PALLONE, Mr. NORCROSS, Mr. LARSON of Connecticut, Mr. BLUMENAUER, Mr. HIGGINS of New York, Mr. DANNY K. DAVIS of Illinois, Mr. COURTNEY, Mrs. HAYES, Mr. TRONE, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. KIM, Mr. SIRES, Ms. JUDY CHU of California, Ms. DELBENE, Mr. PAYNE, Ms. NORTON, Mr. RUSH, Mr. RUPPERSBERGER, Mr. LEVIN of California, Mrs. NAPOLITANO, Mrs. TRAHAN, Ms. KELLY of Illinois, Ms. DELAURO, Mr. HIMES, Ms. ESHOO, Mrs. LOWEY, Mr. ROUDA, Mr. SEAN PATRICK MALONEY of New York, Ms. WATERS, Mrs. WATSON COLEMAN, Mr. MICHAEL F. DOYLE of Pennsylvania, and Mr. TED LIEU of California):

H.J. Res. 72. A joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Internal Revenue Service, Department of the Treasury, relating to ''Contributions in Exchange for State or Local Tax Credits''; to the Committee on Ways and Means.

By Mrs. HARTZLER (for herself and Ms. SPEIER):

H. Res. 493. A resolution condemning the persecution of Christians in China; to the Committee on Foreign Affairs, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE (for herself and Mr. COHEN):

H. Res. 494. A resolution condemning the false, inflammatory, and racially offensive statements made by the President of the United States regarding four women of color who are duly elected Members of the One Hundred Sixteenth Congress; to the Committee on the Judiciary.

By Ms. LEE of California (for herself, Mr. PRICE of North Carolina, Ms. SCHAKOWSKY, Mr. YARMUTH, Mr. CONNOLLY, Mr. DOGGETT, Mr. LEVIN of Michigan, Ms. JAYAPAL, Mr. RASKIN, Mr. PAYNE, Mr. GRIJALVA, Mr. LOWENTHAL, Mr. POCAN, Mr. BLUMENAUER, Mr. GALLEGO, Ms. HAALAND, Ms. ESHOO, Mr. KHANNA, Mr. COHEN, Mr. BEYER, Ms. SPEIER, Mr. MCGOVERN, Mr. RUPPERSBERGER, Mr. BUTTERFIELD, and Mr. RUSH):

H. Res. 495. A resolution expressing the sense of the House of Representatives regarding the prevention of Iran from obtaining or developing nuclear weapons; to the Committee on Foreign Affairs.

By Ms. OMAR (for herself, Ms. TLAIB, and Mr. LEWIS):

H. Res. 496. A resolution affirming that all Americans have the right to participate in boycotts in pursuit of civil and human rights at home and abroad, as protected by the First Amendment to the Constitution; to the Committee on the Judiciary.

MEMORIALS

Under clause 3 of rule XII, memorials were presented and referred as follows:

98. The SPEAKER presented a memorial of the Legislature of the State of Montana, relative to Senate Joint Resolution No. 13, urging the ratification of the United States-Mexico-Canada Agreement on Trade; which was referred jointly to the Committees on Ways and Means and Foreign Affairs.

99. Also, a memorial of the Legislature of the State of Montana, relative to Senate Joint Resolution No. 16, urging the Congress to recognize the importance and need for country-of-origin labeling on beef and pork products; which was referred to the Committee on Agriculture.

100. Also, a memorial of the Legislature of the State of Louisiana, relative to Senate Concurrent Resolution No. 36, memorializing the Congress of the United States to support the #fixappratings initiative calling for accurate, third-party application (app) ratings and intuitive parental controls to better protect children from harmful online and mobile device content; which was referred to the Committee on Energy and Commerce.

101. Also, a memorial of the Legislature of the State of Louisiana, relative to House Concurrent Resolution No. 66, memorializing the United States Congress to take such actions as are necessary to recognize the historical significance of Juneteenth Independence Day to the United States and observe Juneteenth nationally as a holiday; which was referred to the Committee on Oversight and Reform.

102. Also, a memorial of the Legislature of the State of Montana, relative to House Joint Resolution No. 28, urging the Bureau of Land Management to deny the bison grazing proposal by the American Prairie Reserve; which was referred to the Committee on Natural Resources.

103. Also, a memorial of the Legislature of the State of Louisiana, relative to Senate Concurrent Resolution No. 131, memorializing the Congress of the United States to provide adequate funding to the United States Army Corps of Engineers for the completion of the proposed project to deepen the Mississippi River Ship Channel to fifty feet; which was referred to the Committee on Transportation and Infrastructure.

104. Also, a memorial of the Legislature of the State of Louisiana, relative to Senate Concurrent Resolution No. 111, memorializing the Congress of the United States to reassess the entire levee and floodwall system in the southeastern United States; which was referred to the Committee on Transportation and Infrastructure.

105. Also, a memorial of the House of Representatives of the State of Louisiana, relative to House Resolution No. 307, memorializing the Congress of the United Sates to provide adequate funding to the United States Army Corps of Engineers for the completion of the proposed project to deepen the Mississippi River Ship Channel to fifty feet; which was referred to the Committee on Transportation and Infrastructure.

106. Also, a memorial of the Legislature of the State of Louisiana, relative to House Concurrent Resolution No. 7, memorializing the United States Congress to take such actions as are necessary to authorize the garnishment of veteran's disability benefits to fulfill child support obligations; which was referred jointly to the Committees on Ways and Means and Veterans' Affairs.

107. Also, a memorial of the Legislature of the State of Louisiana, relative to Senate Concurrent Resolution No. 130, memorializing the Congress of the United States to review the definition of abortion and the use of the term abortion for purposes of medical records when a woman has a spontaneous miscarriage; which was referred jointly to the Committees on the Judiciary, Ways and Means, and Energy and Commerce.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. COMER:

H.R. 3765.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 2, Clause 3: Representatives and direct Taxes shall be apportioned among the several States which may be included within this Union, according to their respective Numbers, which shall be determined by adding to the whole Number of Free persons.

By Ms. JOHNSON of Texas:

H.R. 3766.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8 of the Constitution of the United States.

By Mr. SCHNEIDER:

H.R. 3767.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mr. BUDD:

H.R. 3768.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, clause 3, providing the power to regulate ''commerce with foreign nations, and among the several states.''

By Ms. HOULAHAN:

H.R. 3769.

Congress has the power to enact this legislation pursuant to the following:

U.S. Constitution, Article I, section 8

By Mr. BRENDAN F. BOYLE of Pennsylvania:

H.R. 3770.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution under the General Welfare Clause.

By Mr. SCHRADER:

H.R. 3771.

Congress has the power to enact this legislation pursuant to the following:

U.S. Const. art. 1, §8, cl. 3;

By Mr. PETERS:

H.R. 3772.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Mr. JOHNSON of Georgia:

H.R. 3773.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8

By Mr. BAIRD:

H.R. 3774.

Congress has the power to enact this legislation pursuant to the following:

U.S. Constitution, Article I, Section 8, Clause 18:

''The Congress shall have Power . . . To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Mr. BROWN of Maryland:

H.R. 3775.

Congress has the power to enact this legislation pursuant to the following:

Necessary and Proper Clause (Art. 1, Sec. 8, Cl. 18)

By Mr. CASTRO of Texas:

H.R. 3776.

Congress has the power to enact this legislation pursuant to the following:

Constitutional Authority—Necessary and Proper Clause (Art. I, Sec. 8, Clause 18)

THE U.S. CONSTITUTION

ARTICLE I, SECTION 8: POWERS OF CONGRESS

CLAUSE 18

The Congress shall have power . . . To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this Constitution in the government of the United States, or in any department or officer thereof.

By Ms. CLARKE of New York:

H.R. 3777.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mr. CLEAVER:

H.R. 3778.

Congress has the power to enact this legislation pursuant to the following:

The power granted to Congress under Article I of the United States Constitution and its subsequent amendments

By Ms. CRAIG:

H.R. 3779.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mrs. DINGELL:

H.R. 3780.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8

By Mr. GARCÍA of Illinois:

H.R. 3781.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3

By Mr. LEVIN of Michigan:

H.R. 3782.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 1 of the Constitution.

By Mr. LUJÁN:

H.R. 3783.

Congress has the power to enact this legislation pursuant to the following:

Article 1. Section 8.

By Mr. NEGUSE:

H.R. 3784.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the U.S. Constitution

By Ms. NORTON:

H.R. 3785.

Congress has the power to enact this legislation pursuant to the following:

clause 18 of section 8 of article I of the Constitution.

By Mr. PERRY:

H.R. 3786.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8 Clause 1

By Mr. PERRY:

H.R. 3787.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution

By Ms. SHERRILL:

H.J. Res. 72.

Congress has the power to enact this legislation pursuant to the following:

section 8 of article I of the Constitution.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 95: Mr. BERA.

H.R. 230: Ms. BLUNT ROCHESTER.
H.R. 397: Ms. GARCIA of Texas and Ms. SHERRILL.
H.R. 490: Mr. JOHNSON of Ohio.
H.R. 553: Ms. PORTER, Ms. KENDRA S. HORN of Oklahoma, Mr. LIPINSKI, Mrs. TORRES of California, Mr. BLUMENAUER, and Ms. DEAN.
H.R. 555: Mrs. HAYES.
H.R. 566: Mr. BANKS.
H.R. 587: Mr. SOTO.
H.R. 649: Ms. KUSTER of New Hampshire.
H.R. 714: Mr. TAYLOR.
H.R. 748: Ms. KENDRA S. HORN of Oklahoma and Mr. KELLER.
H.R. 803: Mr. GRAVES of Georgia.
H.R. 832: Mr. JOHNSON of South Dakota.
H.R. 849: Mr. AGUILAR, Mr. PAPPAS, Mr. BISHOP of Georgia, and Mr. VELA.
H.R. 948: Mrs. MCBATH, Mr. BILIRAKIS, and Mr. WATKINS.
H.R. 961: Mr. SMITH of New Jersey.
H.R. 997: Mr. MOONEY of West Virginia.
H.R. 1024: Mr. CARTER of Georgia and Mr. CALVERT.
H.R. 1045: Mr. QUIGLEY, Mr. COX of California, Mr. VARGAS, and Mr. GARAMENDI.
H.R. 1050: Mr. LAMB.
H.R. 1058: Mr. PAPPAS, Mr. THOMPSON of Pennsylvania, Ms. UNDERWOOD, Mr. HUFFMAN, and Ms. KAPTUR.
H.R. 1098: Mr. LAMB.
H.R. 1108: Mr. GOLDEN and Mr. DELGADO.
H.R. 1111: Mr. PAYNE and Mrs. NAPOLITANO.
H.R. 1140: Mr. LUJÁN, Mr. SHERMAN, Mr. HARDER of California, Ms. SCANLON, Mrs. HAYES, and Mr. BERA.
H.R. 1165: Ms. WILD.
H.R. 1168: Mr. HASTINGS.
H.R. 1175: Mr. SWALWELL of California, Mr. POSEY, Ms. MUCARSEL-POWELL, and Mr. GALLAGHER.
H.R. 1236: Mr. CORREA.
H.R. 1266: Ms. ROYBAL-ALLARD and Ms. GARCIA of Texas.
H.R. 1309: Mr. VEASEY and Mr. DELGADO.
H.R. 1373: Mr. CROW.
H.R. 1379: Mr. DANNY K. DAVIS of Illinois.
H.R. 1412: Mr. WATKINS.
H.R. 1418: Mr. WOMACK.
H.R. 1440: Mrs. LAWRENCE.
H.R. 1511: Mr. LUJÁN.
H.R. 1629: Mr. RUTHERFORD, Mr. LARSEN of Washington, and Ms. SPANBERGER.
H.R. 1641: Mr. FLORES, Mr. GOSAR, Mr. SCHRADER, Mr. YOHO, and Mr. CALVERT.
H.R. 1646: Mr. BLUMENAUER and Mrs. MURPHY.
H.R. 1682: Mr. HARDER of California and Mr. PERRY.
H.R. 1691: Ms. KUSTER of New Hampshire.
H.R. 1695: Ms. KUSTER of New Hampshire, Ms. SLOTKIN, Mr. FORTENBERRY, Ms. GRANGER, Mr. COLE, and Mr. THOMPSON of Mississippi.
H.R. 1709: Mr. DELGADO, Mr. RICHMOND, Mr. LOEBSACK, and Ms. CRAIG.
H.R. 1713: Mr. TED LIEU of California and Mr. SIRES.
H.R. 1748: Ms. VELÁZQUEZ, Mrs. TRAHAN, Mr. CORREA, Mr. GONZALEZ of Texas, Mr. KRISHNAMOORTHI, and Mr. DOGGETT.
H.R. 1768: Mr. COSTA, Mr. CALVERT, and Mr. MCNERNEY.
H.R. 1769: Mr. PAPPAS.
H.R. 1799: Mr. TAKANO.
H.R. 1837: Mr. VISCLOSKY, Mr. HARDER of California, and Mrs. TRAHAN.
H.R. 1850: Mr. BURCHETT.
H.R. 1854: Mr. ARMSTRONG.
H.R. 1882: Mr. AGUILAR.
H.R. 1903: Mrs. BEATTY and Mr. LAHOOD.
H.R. 1923: Mr. HARDER of California and Mr. DELGADO.
H.R. 1948: Mr. HIMES, Mrs. FLETCHER, Mr. JEFFRIES, Ms. TORRES SMALL of New Mexico, Mr. PANETTA, Mr. DESJARLAIS, Mr. PENCE, Mr. HARRIS, Mr. NORCROSS, Mr. FORTENBERRY, Mr. ADERHOLT, Mr. CORREA, Mr. BABIN, Mr. MCNERNEY, Mr. LANGEVIN, Mr. BISHOP of Utah, Ms. PORTER, Mrs. AXNE, Mr. LEWIS, Ms. JACKSON LEE, Mr. LOWENTHAL, Mr. COX of California, Ms. PINGREE, Mr. SHERMAN, Mr. TAKANO, Mr. PAPPAS, Ms. MENG, Mr. ROUZER, Mr. LATTA, Mr. SCHRADER, Ms. VELÁZQUEZ, Mr. HAGEDORN, Ms. SHALALA, Mr. ESTES, Mr. PERLMUTTER, Mr. GIBBS, Ms. NORTON, Mr. SPANO, Mr. MEADOWS, Mr. CARSON of Indiana, Ms. SPANBERGER, Mr. WRIGHT, Mr. TAYLOR, Mr. WALTZ, and Mr. KILDEE.
H.R. 1959: Mr. GRAVES of Georgia.
H.R. 1966: Ms. BLUNT ROCHESTER.
H.R. 1980: Ms. SÁNCHEZ, Mr. JOHNSON of Ohio, Mr. THOMPSON of California, Mr. MALINOWSKI, Mr. MOULTON, Ms. OMAR, Mr. CASTEN of Illinois, Mr. REED, Mr. PANETTA, Mr. PASCRELL, Ms. SPANBERGER, Ms. DAVIDS of Kansas, Mr. MORELLE, Mr. NEAL, Mr. WATKINS, Mr. SEAN PATRICK MALONEY of New York, and Mr. SCHRADER.
H.R. 2046: Mr. WATKINS.
H.R. 2086: Ms. PRESSLEY and Mr. LYNCH.
H.R. 2093: Mr. FERGUSON.
H.R. 2097: Mr. SHERMAN.
H.R. 2118: Mr. ESTES.
H.R. 2148: Mr. SIRES, Mr. NEGUSE, and Mr. LEWIS.
H.R. 2150: Ms. SCHRIER, Mr. OLSON, Ms. VELÁZQUEZ, and Ms. LOFGREN.
H.R. 2156: Mr. HECK.
H.R. 2167: Mr. WATKINS.
H.R. 2185: Mr. BROWN of Maryland.
H.R. 2201: Mr. RYAN and Mr. GIBBS.
H.R. 2203: Ms. NORTON, Mr. PAPPAS, Mr. HIMES, Mr. CORREA, Ms. UNDERWOOD, Mr. VARGAS, and Ms. ESHOO.
H.R. 2208: Mr. BRINDISI and Ms. BROWNLEY of California.
H.R. 2211: Mrs. DINGELL.
H.R. 2214: Mr. HASTINGS.
H.R. 2283: Mr. TED LIEU of California and Mrs. NAPOLITANO.
H.R. 2328: Ms. ROYBAL-ALLARD.
H.R. 2350: Mr. CISNEROS, Mr. LATTA, Mr. PANETTA, and Mr. VEASEY.
H.R. 2382: Ms. LOFGREN and Mrs. TORRES of California.
H.R. 2387: Ms. SCHAKOWSKY.
H.R. 2408: Mr. RASKIN.
H.R. 2413: Ms. MUCARSEL-POWELL.
H.R. 2478: Ms. NORTON, Ms. CASTOR of Florida, Mr. RASKIN, Mr. ROUDA, Ms. SEWELL of Alabama, and Mr. HUFFMAN.
H.R. 2482: Mr. CORREA.
H.R. 2486: Ms. TORRES SMALL of New Mexico and Mr. COLE.
H.R. 2489: Mr. DESAULNIER, Mr. SOTO, and Mr. PETERS.
H.R. 2498: Mr. PHILLIPS and Mr. CRIST.
H.R. 2504: Mr. KEATING.
H.R. 2531: Mr. WATKINS.
H.R. 2542: Mr. ROUDA.
H.R. 2568: Mr. MOULTON.
H.R. 2571: Mr. LOUDERMILK, Mr. BILIRAKIS, Mr. SPANO, and Mr. BUCSHON.
H.R. 2577: Mr. KIND and Mr. ROUDA.
H.R. 2599: Mr. FERGUSON.
H.R. 2619: Mr. DESAULNIER.
H.R. 2653: Mr. LARSON of Connecticut, Ms. SCHAKOWSKY, Mr. RASKIN, and Mr. DESAULNIER.
H.R. 2660: Mr. CUMMINGS.
H.R. 2662: Mr. EVANS.
H.R. 2708: Mr. PRICE of North Carolina and Mr. SEAN PATRICK MALONEY of New York.
H.R. 2715: Mr. ALLEN.
H.R. 2733: Mr. CALVERT.
H.R. 2739: Mrs. LESKO, Mr. TAYLOR, Ms. KENDRA S. HORN of Oklahoma, and Mr. CROW.
H.R. 2754: Ms. KENDRA S. HORN of Oklahoma.
H.R. 2763: Mr. THOMPSON of California.
H.R. 2775: Ms. ESHOO.
H.R. 2790: Mr. CISNEROS.
H.R. 2825: Mr. GONZALEZ of Ohio and Mr. DELGADO.
H.R. 2847: Mrs. LURIA.
H.R. 2875: Ms. KUSTER of New Hampshire.
H.R. 2876: Ms. KUSTER of New Hampshire.
H.R. 2909: Mr. SOTO.
H.R. 2918: Ms. KUSTER of New Hampshire.
H.R. 2933: Mr. TED LIEU of California.
H.R. 2969: Mr. DIAZ-BALART, Mrs. DEMINGS, Mr. STEUBE, Mr. WALTZ, Ms. FRANKEL, Mr. CRIST, and Ms. MUCARSEL-POWELL.
H.R. 2977: Ms. WASSERMAN SCHULTZ.
H.R. 2988: Mr. JOHNSON of Ohio.
H.R. 3001: Mr. LEVIN of California.
H.R. 3006: Mr. BACON.
H.R. 3010: Mr. RUTHERFORD.
H.R. 3077: Mr. WENSTRUP, Mr. QUIGLEY, Ms. MCCOLLUM, Mr. HOLDING, Ms. KUSTER of New Hampshire, and Mrs. LEE of Nevada.
H.R. 3106: Mr. SWALWELL of California.
H.R. 3108: Mr. TIPTON.
H.R. 3170: Mrs. DINGELL and Mr. SOTO.
H.R. 3178: Mr. HOYER.
H.R. 3182: Ms. KENDRA S. HORN of Oklahoma, Mr. LUCAS, and Mr. WATKINS.
H.R. 3183: Ms. SLOTKIN.
H.R. 3190: Mr. KEATING.
H.R. 3193: Ms. ROYBAL-ALLARD.
H.R. 3195: Mr. SHERMAN, Mrs. HAYES, Mr. ENGEL, and Mr. CROW.
H.R. 3219: Mrs. HAYES, Mr. HIGGINS of New York, and Ms. DELAURO.
H.R. 3232: Ms. KUSTER of New Hampshire.
H.R. 3239: Mr. CUMMINGS, Mr. SMITH of Washington, Mr. TRONE, Ms. HOULAHAN, Mr. CORREA, Ms. ESHOO, Mr. KIND, and Mr. CRIST.
H.R. 3246: Ms. UNDERWOOD and Mr. GONZALEZ of Texas.
H.R. 3250: Ms. SCHAKOWSKY.
H.R. 3254: Mr. ROUDA.
H.R. 3280: Mr. HIGGINS of New York.
H.R. 3309: Mr. PANETTA.
H.R. 3328: Ms. NORTON and Mr. GALLEGO.
H.R. 3350: Mr. RUTHERFORD.
H.R. 3356: Mr. GREEN of Tennessee, Mr. CORREA, and Mr. KHANNA.
H.R. 3369: Ms. PORTER.
H.R. 3375: Mr. SWALWELL of California, Mr. KHANNA, Mr. CUMMINGS, Ms. CRAIG, Mr. SMITH of Nebraska, Mr. NORCROSS, Mr. ROUDA, Mr. GRIJALVA, Mrs. AXNE, Mr. SERRANO, Mr. BUCSHON, Mr. KENNEDY, Mr. PAYNE, Mr. JOHNSON of Ohio, and Mr. YARMUTH.
H.R. 3412: Mr. MCHENRY.
H.R. 3414: Mr. MEEKS.
H.R. 3435: Mr. TRONE.
H.R. 3456: Mr. POCAN and Mr. HECK.
H.R. 3461: Mr. MOULTON and Mr. DEFAZIO.
H.R. 3483: Mr. ROUDA, Mrs. LEE of Nevada, and Mr. BISHOP of Utah.
H.R. 3497: Mr. PAPPAS.
H.R. 3509: Mr. BLUMENAUER, Ms. PINGREE, Mr. LARSEN of Washington, Ms. OMAR, Mr. TONKO, Ms. CLARKE of New York, Ms. BASS, Mr. GARAMENDI, Mr. GREEN of Texas, and Mr. SOTO.
H.R. 3513: Mr. CASE.
H.R. 3516: Mr. CASE.
H.R. 3534: Mr. CASTRO of Texas and Mr. MARSHALL.
H.R. 3537: Mr. DELGADO and Ms. FINKENAUER.
H.R. 3543: Ms. PINGREE.
H.R. 3557: Mr. BEYER.
H.R. 3563: Mr. COX of California, Ms. OMAR, Ms. MUCARSEL-POWELL, Ms. KUSTER of New Hampshire, Mr. PETERS, Mr. GALLEGO, Ms. CASTOR of Florida, and Mr. AGUILAR.
H.R. 3584: Ms. SEWELL of Alabama and Mr. MARCHANT.
H.R. 3606: Mr. ENGEL.
H.R. 3609: Mr. LOWENTHAL, Mr. CISNEROS, and Mr. CONNOLLY.
H.R. 3623: Mr. HUFFMAN, Ms. PRESSLEY, Mr. TONKO, Mr. FOSTER, Ms. BARRAGÁN, Mr. LOWENTHAL, and Mr. GRIJALVA.
H.R. 3632: Mr. FITZPATRICK, Mr. LEWIS, Mr. AGUILAR, and Mr. PAPPAS.
H.R. 3637: Mr. HASTINGS and Mr. GRIJALVA.

H.R. 3661: Ms. FINKENAUER and Mr. BALDERSON.
H.R. 3662: Ms. WILD.
H.R. 3666: Mr. DANNY K. DAVIS of Illinois and Ms. BLUNT ROCHESTER.
H.R. 3667: Mrs. TRAHAN.
H.R. 3693: Mr. RUSH.
H.R. 3702: Mr. GONZALEZ of Texas, Mr. HILL of Arkansas, and Mrs. CAROLYN B. MALONEY of New York.
H.R. 3714: Mr. RUTHERFORD.
H.R. 3731: Mr. ENGEL.
H.R. 3735: Mr. BRINDISI, Ms. NORTON, and Ms. SPANBERGER.
H.R. 3738: Mr. RUSH.
H.R. 3742: Mr. DEFAZIO, Mr. RYAN, and Mr. TURNER.
H.R. 3745: Mr. GARCÍA of Illinois.
H.R. 3748: Mr. MCGOVERN.
H.R. 3759: Mr. GAETZ.
H.R. 3763: Mr. LANGEVIN and Mr. ROONEY of Florida.
H.J. Res. 2: Mr. QUIGLEY.
H.J. Res. 20: Mr. LAHOOD.
H.J. Res. 35: Mr. KILDEE, Mr. MOULTON, Ms. SÁNCHEZ, and Mr. CORREA.
H. Con. Res. 20: Mr. TAYLOR.
H. Con. Res. 27: Mr. PANETTA.
H. Con. Res. 29: Mr. CRIST.
H. Con. Res. 52: Ms. GABBARD.
H. Res. 127: Mr. GONZALEZ of Texas.
H. Res. 138: Mr. DEUTCH.
H. Res. 189: Mr. WALDEN, Mr. FORTENBERRY, and Ms. NORTON.
H. Res. 190: Mr. TED LIEU of California.
H. Res. 246: Ms. LOFGREN.
H. Res. 326: Mr. CLEAVER and Mr. TRONE.
H. Res. 379: Mr. MCGOVERN and Mr. CONNOLLY.
H. Res. 390: Mr. ESTES.
H. Res. 442: Mr. PHILLIPS, Mr. BERA, Mr. KEATING, and Mr. MOULTON.
H. Res. 453: Mrs. TRAHAN.
H. Res. 469: Mr. BLUMENAUER, Ms. KUSTER of New Hampshire, and Ms. NORTON.
H. Res. 478: Mr. TRONE.
H. Res. 483: Ms. MOORE.
H. Res. 485: Mr. HAGEDORN, Mr. GREEN of Tennessee, and Mrs. LESKO.
H. Res. 488: Mr. RUSH.
H. Res. 489: Mr. PANETTA, Mr. SERRANO, Mr. PRICE of North Carolina, Mr. KILDEE, Mr. THOMPSON of California, Ms. SPEIER, Ms. BONAMICI, Ms. SCANLON, Ms. DEAN, Ms. LEE of California, Mrs. NAPOLITANO, Mr. WELCH, Ms. DEGETTE, Ms. PINGREE, Ms. SHALALA, Mr. SUOZZI, Mr. GARAMENDI, Mr. COOPER, Mr. BUTTERFIELD, Mr. RUPPERSBERGER, Mr. TONKO, Mr. NEGUSE, Mr. LEVIN of California, Mr. SEAN PATRICK MALONEY of New York, Mr. CICILLINE, Ms. SÁNCHEZ, Ms. ESHOO, Mr. MCNERNEY, Mr. GRIJALVA, Ms. BROWNLEY of California, Ms. BARRAGÁN, Mr. GREEN of Texas, Mr. VARGAS, Mrs. BEATTY, Mr. SCHRADER, Mr. SWALWELL of California, Ms. CASTOR of Florida, Mrs. DINGELL, Mrs. DAVIS of California, Mr. HASTINGS, Ms. MENG, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. MOULTON, Mr. DANNY K. DAVIS of Illinois, Mr. CASE, Mr. ROUDA, Ms. TITUS, Mr. CUMMINGS, Ms. MCCOLLUM, Ms. VELÁZQUEZ, Mr. NADLER, Mr. BLUMENAUER, Ms. SCHAKOWSKY, Mr. MCGOVERN, Ms. HILL of California, Ms. NORTON, Ms. ESCOBAR, Mr. TRONE, Mr. LEWIS, Mr. SCHNEIDER, Mr. RUSH, Mr. ENGEL, Mr. HIMES, Mr. KHANNA, Mr. CASTEN of Illinois, Mr. PAYNE, Ms. LOFGREN, Mrs. TRAHAN, Mr. POCAN, Mrs. FLETCHER, Ms. KELLY of Illinois, Mr. CLAY, Mr. MICHAEL F. DOYLE of Pennsylvania, Mr. BEYER, Ms. FUDGE, Ms. HAALAND, Mr. SARBANES, Mr. HIGGINS of New York, Mr. QUIGLEY, Mr. KIM, Mr. FOSTER, Ms. WEXTON, Mr. LEVIN of Michigan, Mr. VELA, Mr. PALLONE, Mr. LARSEN of Washington, Mr. SOTO, Mr. TAKANO, Mr. LUJÁN, Mr. COURTNEY, Mr. BERA, Ms. ROYBAL-ALLARD, Mr. COX of California, Mr. PASCRELL, Mr. GALLEGO, Mr. LANGEVIN, Mrs. AXNE, Ms. CRAIG, Ms. KAPTUR, Ms. GABBARD, Ms. KUSTER of New Hampshire, Mr. CONNOLLY, Mr. COHEN, Ms. MATSUI, Mr. SCOTT of Virginia, Mr. HUFFMAN, Mr. JOHNSON of Georgia, Mr. MORELLE, Mr. LOWENTHAL, Ms. ADAMS, Mr. CUELLAR, Mrs. CAROLYN B. MALONEY of New York, Mr. BISHOP of Georgia, Ms. WATERS, Mr. DESAULNIER, Mr. SMITH of Washington, Ms. CLARKE of New York, Mr. YARMUTH, Mr. CORREA, Ms. PORTER, Mr. LOEBSACK, Mrs. MCBATH, Mr. CARTWRIGHT, Mr. STANTON, Mr. COSTA, Mrs. BUSTOS, Mrs. HAYES, Ms. STEVENS, Ms. JUDY CHU of California, Mr. PHILLIPS, Mrs. WATSON COLEMAN, Ms. BLUNT ROCHESTER, Mr. MCEACHIN, Mr. SHERMAN, Mr. SCHIFF, Mr. SIRES, Mr. CARSON of Indiana, Mrs. LOWEY, Ms. JOHNSON of Texas, Mr. DELGADO, Ms. BASS, Ms. KENDRA S. HORN of Oklahoma, Mr. HARDER of California, Mr. GONZALEZ of Texas, Mr. EVANS, Mr. JEFFRIES, Mr. KEATING, Mr. GOMEZ, Ms. SHERRILL, Mr. RYAN, Mr. CROW, Mr. DEUTCH, Ms. HOULAHAN, Ms. WASSERMAN SCHULTZ, Mr. CLEAVER, Mr. BROWN of Maryland, Mr. ROSE of New York, Mr. RICHMOND, Mr. CÁRDENAS, Mr. CRIST, Mr. SABLAN, Mr. KENNEDY, Mr. DAVID SCOTT of Georgia, Mr. DOGGETT, Mr. MEEKS, Mr. NORCROSS, Mr. LYNCH, Ms. FINKENAUER, Ms. DELAURO, Ms. PLASKETT, Ms. DELBENE, Ms. SLOTKIN, and Mr. GOTTHEIMER.
H. Res. 490: Mr. KHANNA, Ms. LEE of California, Mr. GARCÍA of Illinois, Ms. BASS, Ms. JACKSON LEE, Ms. KELLY of Illinois, Mr. YARMUTH, Mr. EVANS, Mr. BROWN of Maryland, Mr. BUTTERFIELD, Ms. ESCOBAR, Mr. ESPAILLAT, Mr. CLAY, Mr. MEEKS, Ms. GARCIA of Texas, Mrs. WATSON COLEMAN, and Mr. THOMPSON of Mississippi.

PETITIONS, ETC.

Under clause 3 of rule XII,

33. The SPEAKER presented a petition of Mr. Gregory D. Watson, a citizen of Austin, TX, relative to requesting that Congress enact legislation that would require the Census Bureau to include in decennial census questionnaires an inquiry as to whether, or not, a respondent is an American citizen; which was referred to the Committee on Oversight and Reform.

United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE *116th* CONGRESS, FIRST SESSION

Vol. 165 WASHINGTON, TUESDAY, JULY 16, 2019 *No. 119*

Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. GRASSLEY).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Answer us when we call, O God, and have mercy upon our Nation. May, our lawmakers work to do Your will, remembering that You have set apart the godly for yourself. Provide our Senators a refuge in You, enabling them to shout for joy, blessed by Your righteousness and favor. Continue to supply their needs, teaching them how to abound and abase.

Lord, keep us all from slipping, presenting us one day before Your throne with great joy.

We pray in Your majestic Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

The PRESIDING OFFICER (Mrs. HYDE-SMITH). The Senator from Iowa is recognized.

50TH ANNIVERSARY OF APOLLO 11

Mr. GRASSLEY. Madam President, July 20 marks 50 years since Neil Armstrong took ''one small step for man'' and, for the first time in human history, walked on the Moon. The Apollo missions should be remembered for generations to come as a triumph for innovation, for hard work, and for the American spirit. As we commemorate the mission to the moon that captured the world 50 years ago, we should look with anticipation to the next ''giant leap for mankind,'' and thus work to ensure that the United States remains at the forefront of innovation and technology.

Madam President, I yield the floor.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER. The majority leader is recognized.

ECONOMIC GROWTH

Mr. MCCONNELL. Madam President, economic data continue to confirm what we have been hearing from American workers and job creators for 2 years now: This is a pro-worker, pro-family, pro-opportunity economic moment. Hardly a day goes by without new headlines highlighting the new prosperity in communities that the last administration's policies overlooked and the red-hot market for American workers.

Since January 2017, Republican policies have focused on letting the American people control more of their own money and letting American businesses create jobs more easily.

So what are the results? On our watch, unemployment has fallen to near 50-year lows and stayed there. Underemployment has fallen too. Wages are growing. Month after month, we have had more job openings nationwide than Americans looking for work. Specifically, there are currently about 1.6 million more job openings than Americans looking for work, the widest margin ever recorded.

Now, these aren't Washington accomplishments. They are the American people's accomplishments, but public policy can certainly change the conditions. Government can either create the conditions that help lead to success or to stagnation.

For example, bad public policies under the Obama administration help to explain why the insufficient and unfair economic ''recovery'' left so many places behind. High taxes, heavy regulation, and a hostile climate for business—these things all add up. They took a real toll in many places.

Take my home State of Kentucky, for example. Kentucky is proud of our diverse economy. We are proud of our great healthcare and aviation sectors. We are proud that we are a tourist destination. It turns out that Bourbon and horse races are a winning combination.

We also take huge pride in the kinds of industries that liberal policies tend to either forget about or actively work against. I am talking about manufacturing and agriculture and mining and coal-fired electricity—the things that keep the lights on in America's heartland. We could not be prouder of the huge role these sectors play in our Commonwealth.

So it is not surprising that leftwing policies dreamt up in places like New York and San Francisco, for places like New York and San Francisco, were not too kind to Kentucky—growth that was too slow, jobs that were hard to come by. Some so-called experts said it was just the ''new normal,'' but we knew better. We knew Kentucky could get back on track if we could only get a fair shot and fewer hurdles from Washington. We needed the government to stop creating headwinds and maybe even create a few tailwinds. That is exactly what happened over the last 2½ years.

Since January 2017, Republicans in Congress have partnered with the Trump administration to get our Nation's opportunity economy going and growing again—for everyone. We passed the first comprehensive overhaul of the Federal Tax Code in more than a generation. We cut regulations that had reduced liberty and stifled our competitiveness. We helped American workers and entrepreneurs hang up a big, bright neon sign saying ''Open for Business.'' And—no surprise here—working Americans have taken the ball and they have run with it.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Printed on recycled paper.

I have already read the national statistics. I am even prouder about this. Instead of being left behind, Kentucky is helping to lead the charge. The State's unemployment rate has hit and sustained its lowest level on record. Again, that is recordbreaking low unemployment.

Last year, Governor Bevin helped Kentucky to welcome more than $5.3 billion of planned business investment. This new growth isn't just concentrated in urban areas. Rural communities in the Bluegrass are seeing more jobs, investment, and expansion as well.

Of course, it takes more than 2 years to unwind the mistakes of the past. Parts of Kentucky are still struggling from the effects of liberal policies, and this Republican Senate, the administration, and leaders in Frankfort are laser-focused on continuing to invest in and fight for recovery.

In many communities, particularly in rural Kentucky, the lingering pain has been hard to shake—the damage to the coal industry, the devastation caused by opioid and substance abuse. So more work is certainly needed, and I am honored to lead the charge in Washington to help Kentuckians confront these challenges.

Through programs like the Appalachian Regional Commission and the abandoned mine land pilot program, we are investing hundreds of millions of dollars into struggling areas and out-of-work Americans. In Eastern Kentucky, Congressman HAL ROGERS and I have partnered with local organizations to secure Federal resources for everything from skills training to water infrastructure improvements.

I have helped to secure tens of millions of dollars to aid the retraining efforts of the Eastern Kentucky Concentrated Employment Program and job-creating programs like the Kentucky Highlands Community Development Corporation. We have also secured grants to bolster good jobs, support the environment, attract tourism, and promote healthy lifestyles.

These are just a few examples from just one State. There are stories like this all over our country. While the previous administration left these men and women behind, Republicans recognize their skills and their drive. We are investing in their futures.

TREATIES

Mr. MCCONNELL. Madam President, speaking of economic growth and development, the Senate will soon turn our attention to a number of bilateral tax treaties with important U.S. trading partners. We have these kinds of agreements in place to reduce tax evasion, tax avoidance, and unfair double taxation of U.S. citizens and businesses who conduct businesses overseas. The four we will consider this week are agreements with Spain, Switzerland, Japan, and Luxembourg.

The U.S. Government and each of these foreign governments have painstakingly negotiated updates to existing agreements about how certain kinds of commerce would be taxed and which country will tax them. In short, Senate ratification of these protocols would mean less confusion, more certainty, and, often, fewer taxes for U.S. job creators—and, by the way, a simpler rule book for overseas investors who want to invest their money here. Fairer treatment for our own American job creators and more enticement for foreign investment to head to our country—that is what we would call a win-win.

We are talking about a serious economic impact. In addition to the four countries we are tackling this week, there are three more nations with tax treaties pending which I know the administration is continuing to work on with the Foreign Relations and Finance Committees to finalize work on these remaining agreements.

Combined, these seven foreign countries invest more than $1.2 trillion in the United States. That is more than $1 trillion in foreign investment and, by some estimates, hundreds of thousands of U.S. jobs are tied up, either directly or indirectly, in trade with these countries.

These trading relationships touch all 50 States. Every one of my colleagues is familiar with communities that benefit from the foreign investment. For my part, that includes thousands of workers in Kentucky.

One major manufacturer with ties to Spain employs 1,500 people in my State. It accounts for more than one third of all the stainless steel produced in the United States every year. Over the three decades it has operated in Carroll County, the surrounding communities benefited from more than $60 million in tax revenue.

That is just one of many job creators in my home State, and it is far from the only one with a serious interest in seeing these measures get across the finish line. From consumer goods makers to industrial suppliers, Kentucky continues to welcome job-creating investment from around the world.

I think practically every American is familiar with Hot Pockets, a culinary staple of busy families, workers, and college students everywhere. But not everyone knows that, as of several years ago, every single Hot Pocket is cooked in Mount Sterling, KY. The facility employs more than 1,000 Kentuckians. The parent company is Nestle, based in Switzerland. So there are not only hard-working Kentuckians but also a lot of hungry consumers across the country who can understand why we need to keep our international trade in sync.

Passing these agreements will help every State to keep up the economic momentum. It will reinforce the international trade that is so essential to our economic success and help stave off further trade disruptions. I urge all of our colleagues to join me in voting for these this week.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is closed.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

The PRESIDING OFFICER. Under the previous order, the Senate will proceed to executive session to resume consideration of the following nomination, which the clerk will report.

The senior assistant legislative clerk read the nomination of Peter Joseph Phipps, of Pennsylvania, to be United States Circuit Judge for the Third Circuit.

The PRESIDING OFFICER. The Senator from Illinois.

PRESCRIPTION DRUG COSTS

Mr. DURBIN. Madam President, I listened as the Republican leader came to the floor and announced the business of the Senate for this week. Highlighted in the business will be tax treaties—tax treaties with Spain, Switzerland, Japan, and Luxembourg. According to the Republican leader, these are critical to economic development in the United States. I don't question their importance, but I will tell you that, routinely, these are done by voice vote. We don't spend the time of the Senate to come to the floor and talk about our relationship with Luxembourg.

When you look at the issues that most American families expect us to address, I would say the tax treaty with Luxembourg would be low on the list. What might be high on the list and should be considered in the Senate this week is the No. 1 concern of families across America—Democrats and Republicans. The highest concern and the No. 1 issue when asked about the economy of the United States is the cost of prescription drugs.

The United States Senate has the authority to do something about the cost of prescription drugs. We will not be doing it this week. We will be dealing with a tax treaty with Luxembourg.

What kind of issues, when it comes to the cost of prescription drugs, might be important? Let's start with one that I have started focusing on back home.

Did you know that there are 30 million Americans who suffer from diabetes, type 1 and type 2 diabetes? Did you know that 7.5 million Americans use insulin every single day to stay alive? Four of them were in my office last week from Illinois. They were between the ages of 10 and 17. Talk about amazing young people. Three young women and a young boy talked about their lives and what had happened to them since it was discovered that they had juvenile diabetes.

Their lives have been changed a lot. Each one of them is hooked up to a CGM—I believe that is the proper term, a continuous glucose monitor—that measures whether they need additional insulin, which is pumped in another device on their arm. They talked about how this was a commitment around the clock to make sure their insulin levels were appropriate.

One little girl talked about what it meant to her family for her to be a type 1 diabetic. This beautiful young lady started talking about it. Then she got to the point where she said: It has changed our family; my diabetes has changed our family.

Then she started crying.

She said: We can't do things in our family that others do. We can't take the same vacations that my cousins take, and we can't rent that house out on the lake because of the cost of my drugs, the cost of my insulin.

I turned to her mother, and I said: Tell me, what does it come down to?

Her mom said: We are lucky. We have health insurance. Our health insurance covers prescription drugs. However, there is an $8,000 deductible. So we start each year buying the insulin for our daughter until we have spent $8,000 out of our savings. Then the health insurance kicks in. Usually it is about 3 months.

She is paying, or she is being charged, about $3,000 a month for insulin.

Let's look into this for a minute as we consider why the U.S. Senate thinks a tax treaty with Luxembourg is more important than this issue. Let's look into the fact that insulin was discovered almost 100 years ago in Canada, and the researchers who discovered it came to the United States and said: We have the patent rights to this lifesaving drug for diabetics. We never want to see anybody make a profit at the expense of this lifesaving drug.

The Canadian researchers surrendered their patent rights to insulin for $1—gave it up. I recall that when it came to the Salk vaccine for polio, he did the same thing. He said that no one should ever make a profit on a drug that eliminated polio. These two Canadian researchers felt the same about insulin.

What happened then? Insulin was produced in the earliest stages in a rather crude way but in an effective way to save the lives of people with diabetes. Over the years, that process was improved. There is no question about that.

Today there are three major pharmaceutical companies that make insulin products for the United States—Eli Lilly of Indianapolis, IN, is one of them; Novo Nordisk is another; Sanofi is another. I know a little bit about the Eli Lilly product. It is called Humalog. Humalog was introduced in the American market in 1996, an insulin product. The charge was about $20 to $30 for a dosage—a vial, I should say, and was used as a dosage for those with type 1 diabetes, type 2 diabetes. It was about $21.

Here we are 20 years later, and how much is that same vial? It is $329. Remember, this was a drug discovered almost 100 years ago. Remember, those who could have capitalized and made a fortune off of it surrendered their patent rights.

How did we reach the point where this drug, in 20 years, is 10 times more than it cost when it was introduced? It is the same drug from the same company. Why has it gone up so much in price? Because they can do it, because these pharmaceutical companies have the power to raise their prices, and people like that little girl in my office from Jerseyville, IL, who broke down in tears, can't control how much that price would be. They need this to survive.

Now you must ask yourself: What are other countries paying for exactly the same drug made by the same American pharmaceutical company, Eli Lilly?

We don't have to go very far to find out. All we need to go to is Canada—Canada. The $329 Humalog vial in Canada costs $39. Why? It is exactly the same drug and is a fraction of the cost in Canada. It is because the Canadian Government stands up for the people of that country and says: You cannot gouge, you cannot overprice these drugs. You are going to be paid a reasonable amount so that you make a profit, but you aren't going to do it at the expense of our families in Canada.

They care. They have done something about it.

We care about a tax treaty with Luxembourg. I am sorry, but as important as that may be in that small part of the world, it is more important for us to deal with the issue of prescription drugs and to ask ourselves why this U.S. Senate, this empty Chamber, is not filled with Senators of both political parties doing something about the cost of prescription drugs.

There is one traffic cop in this Chamber. He just spoke. The Republican leader decides what comes to the floor of the Senate. He has decided we are not going to consider prescription drugs. Maybe he will change his mind, but I think he will need some persuading to reach that point.

What I am hoping is that the 30 million Americans and their families will speak up when it comes to the cost of lifesaving insulin for diabetes. I hope they will do the same when it comes to other drugs—so many of them.

Senator GRASSLEY of Iowa, a Republican, was just on the floor a few minutes ago when we opened the session. He and I are working on a bill, which is just a first step—and I underline, only a first step and not the answer to the problem. But it comes down to this: You can't turn on the television these days without seeing a drug ad. If you haven't seen drug ads on television, you must not own a television. They are on all the time. All of the information we are given about drugs with long names that are hard to pronounce and remember—all of that information is given to us over and over again so that we know much more than we ever dreamed we would know about XARELTO. We can even spell it. We know what different drugs are supposed to do to improve the lives of individuals. Those ads are being thrown at us so that eventually we have that name in our head and take it into the doctor's office and ask for that expensive drug as opposed to a generic drug. That is running up the cost of healthcare.

Senator GRASSLEY and I put in a bill, and the bill is pretty basic. With all of the things they tell you on television about the drugs, it wasn't until just 2 weeks ago—the first time I have ever seen it—that one of these companies disclosed the cost of the drug.

You say to yourself, maybe that is an important part of speaking to consumers across America. Senator GRASSLEY and I have a bill that will require price disclosure on these pharmaceutical companies' advertising. It is not the total answer, but I am hoping it will in some way at least slow down, if not embarrass these companies from the runups in cost that these drugs are going through.

That is part of the answer, but it is not the total answer by any means. There is a long list of things we can do and should do that are a lot more important than a tax treaty with Luxembourg, which should pass by a voice vote without taking the time of the Senate.

HEALTHCARE

Madam President, thanks to the Affordable Care Act, 20 million Americans gained health insurance—including more than 1 million in Illinois. Thanks to the law, the uninsured rate in Illinois has been cut in half. People with preexisting conditions can no longer be denied health insurance coverage or be charged higher premiums. This protects 5 million people in Illinois with a preexisting condition. Insurance companies are no longer allowed to impose annual or lifetime caps on benefits or deny coverage for maternity care, mental health treatment, prescription drugs, or hospitalizations. Young people are allowed to stay on their parents' health plans until age 26 and seniors in the dreaded Medicare donut hole are saving money on their prescription drugs. Thanks to the law's Medicaid expansion, rural hospitals in Illinois have found a critical lifeline to help alleviate economic challenges. Yet, just last week, the Trump administration and 18 Republican-led States argued in a Federal court that the entire law should be thrown out—ruled unconstitutional. If President Trump is successful, more than 600,000 people in Illinois will lose their health insurance. Nearly 5 million Illinoisans with preexisting conditions will, once again, be at risk of discrimination.

Two years ago, President Trump tried to convince Congress to repeal

the Affordable Care Act. He failed. So what President Trump couldn't do with a Republican-controlled House and Senate—eliminate health insurance for 20 million Americans—he is now trying to do through the courts. That is right. Rather than defending the law of the land, President Trump's Department of Justice is arguing before the U.S. Court of Appeals for the Fifth Circuit that the entire law is unconstitutional. Protections for people with preexisting conditions? President Trump wants them struck down as unconstitutional. A prohibition on insurers imposing annual or lifetime caps on benefits? President Trump wants that ruled unconstitutional. Tax credits to help people afford health insurance? Unconstitutional, according to our President. If you thought that the U.S. President would be on the side of Americans with preexisting conditions—women in need of maternity and newborn care, young adults just out of college, or seniors with high drug costs—well, you would be wrong. Instead, President Trump's administration is arguing that every single one of these protections should be eliminated. If President Trump and Republicans have their way in court, insurers will once again be able to discriminate against patients with preexisting conditions and impose arbitrary caps on benefits, millions will be thrown off health insurance, and families nationwide will pay more.

Earlier this year, the Democratic-controlled House of Representatives said: Not on our watch. That is right. On a bipartisan basis, the House passed the Protecting Americans with Pre-existing Conditions Act. This bill would prevent President Trump from once again allowing health insurance companies to discriminate against people with preexisting conditions. The House didn't stop there. They also passed a bill to restore funding to programs that help people sign up for health insurance, and they passed a bill to limit the sale of junk plans.

Why is the Affordable Care Act so important? Why are these House-passed patient protection bills so important? Why is this court case so important? They are important because of people like Nathan from Sleepy Hollow, IL, who recently wrote to me about his brother. Nathan wrote:

> My 12-year old brother has Crohn's Disease and his treatments are very expensive. . . . I worry about whether he will be able to still have insurance if the ACA is overturned. . . . Please do everything you can to help.

To Nathan and his brother, I say this: The House of Representatives is attempting to help you. Unfortunately, the Republican-controlled Senate is not. What is the Senate, under MCCONNELL's watch, doing instead? Nothing. Rather than address the existential threat facing America's health care system, the Senate HELP Committee advanced legislation that is stunningly silent on protections for preexisting conditions. Republicans are abdicating their legislative duty to preserve healthcare in America. As my colleague, Senator CHRIS MURPHY, said during the HELP Committee markup, we are applying a bandaid to one arm, while the other is being sawed right off. Republicans on the HELP Committee announced grand plans to lower prescription drug costs and shield patients from surprise medical bills, but all they really did is tinker around the edges of the problems. Similarly, the Senate Judiciary Committee was slated to tackle the outrageous cost of prescription drugs. Yet what emerged from committee was the bare minimum of legislative action. When will Congress get serious about going after drug companies that are gouging the American public? When will congressional Republicans stop tweeting and issuing press releases about preexisting conditions and instead do something—anything—to help protect people in need? Talk is cheap, but, unfortunately, it is all congressional Republicans know how to do.

IMMIGRATION

Madam President, I went to Chicago on Friday. I went to the northwest side of the city, and I met with a group called Communities United. It was a meeting I am not going to soon forget. There were about 20 people in the room. Most of them were women with their children, and a couple of us were politicians. They talked about the fear that is running through their community with President Trump's threat of mass arrests and mass deportations. Each one of them had an important thing to say. The one that stuck with me was a young lady—I will give just her first name. Guadalupe was her first name. She is a high school student in that section of Chicago. She started to read from a little piece of paper on which she had written down the feelings of her family about what was happening with the threats of these raids.

You see, one of her parents is undocumented. She is a citizen of the United States, having been born here, but her mother is not so lucky.

Guadalupe said: I am tired of living in fear. I am tired of being afraid that the next knock on the door means our family will be torn apart; that my mother, who has been here for almost 20 years, will be forced to leave.

She has never committed a crime. She has worked hard every single day for the family, to bring a little money home, taking jobs that most of us don't want to take, being paid low wages in the hope that her daughter Guadalupe and others would have a better life in the years ahead.

I remember that meeting because that was just the beginning of a weekend filled with meetings just like those all across that great city of Chicago, particularly among the Hispanic population—a genuine fear that ICE would start knocking on doors. People are being told their rights, their legal rights, if ICE comes to the door. Most of them are being told: Don't open the door unless there is a real search warrant from a real judge, not an ICE administrative warrant.

These people, I am sure, will find it hard to make that distinction, but it really is a question of whether they may be able to stay in the United States or cannot.

Keep in mind that we are not talking about people who have been convicted of a serious crime. As far as I am concerned, if you come to this country and you are undocumented and you commit a serious crime, you have forfeited your right to stay here. I am not making any defense of those people, but they are a tiny, small percentage of those who are here undocumented. The vast majority came to this country, some undocumented when they came, others who have overstayed a visitor's visa, a work visa or student visa, and started a life and started a family.

These are the people who have become a major part of our economy. Of the 11 million who are undocumented in this country, 8½ million actually work. They are employed. They pay taxes. They are not officially or legally part of our economy. Yet they are all subject to the mass arrests and deportation that President Trump has threatened.

As a Presidential candidate, Donald Trump regularly used inflammatory anti-immigrant language. You will remember most of these quotes because they were said over and over again.

Donald Trump said:

> The Mexican government is forcing their most unwanted people into the United States. They are, in many cases, criminals, drug dealers, [and] rapists.

Donald Trump said that a Federal judge was biased against him because the judge was ''a Mexican.'' He called for a ''total and complete shutdown of Muslims entering the United States.''

He attacked a family I have come to know, Khizr and Ghazala Khan, the Muslim American parents of the American soldier who was killed in the line of duty. This Gold Star family gave their son to this country in defense of it and were ridiculed because they disagreed with President Trump.

For the last 2½ years, President Donald Trump has continued to use divisive language. On January 11, 2018, I heard it personally. In a meeting in the Oval Office that I will never forget, the President used a crude term to refer to Haiti and African countries.

This weekend, President Trump sunk to a new low. His tweets saying four Democratic Congresswomen should ''go back'' to their countries were racist and reprehensible comments. Elected officials of both parties should condemn the President's statement.

It is important to understand the President's hateful language is also reflected in his policies. The Trump administration has shown unprecedented cruelty on the issue of immigration, especially to children and families.

The Muslim travel ban created chaos at airports across the country and continues to separate thousands of American families.

The cruel repeal of DACA threatens 800,000 young immigrants with deportation to countries they barely remember.

The termination of temporary protected status puts more than 300,000 immigrants at risk of deportation to dangerous conditions. Imagine this for a moment. We have a travel advisory that says to American families: Do not—do not—go to the country of Venezuela. It is too dangerous.

But for those Venezuelans who are in the United States and should qualify for temporary protected status, this President has said: We are returning you to Venezuela.

Really? It is too dangerous for Americans, but, Venezuelans, we are going to force you to go back to the horrible situation in that country.

The disastrous separation of thousands of families at the border has done permanent damage to these families and especially to their children. Under what was known as the zero-tolerance policy announced by then-Attorney General Jeff Sessions, over 2,880 infants, toddlers, and children were separated from their families at the border.

What was even worse, they were cast into this bureaucratic no-man's-land, and they couldn't be located to be reunited with their parents until a Federal judge demanded it. We still have some who have not been reunited with their parents over a year later.

The inhumane overcrowding and migrant detention facilities that the DHS inspector general found was ''an immediate risk to the health and safety of detainees and DHS employees'' was so bad that after I personally witnessed it, I joined with more than 20 other Democratic Senators writing to the International Red Cross and asking for them to send in a team to investigate American detention facilities. I never thought I would do that.

This President's threatening, and now mass arrests and deportations, of millions of immigrants who have committed no crime and pose no threat—no threat—to the security and safety of this country has created rampant fears, as I mentioned, in Chicago and across the Nation.

Now, today, the Trump administration has put in place a new rule which will block nearly all asylum claims at the southern border from nationals of any country except Mexico, including families and children fleeing persecution.

The UNHCR, the refugee Agency for the United Nations, said this rule proposed by the Trump administration ''will endanger vulnerable people in need of international protection from violence or persecution.''

How did we reach this point? During World War II, we made a fateful decision in the United States to turn away hundreds who were fleeing Europe. Many of them were people of the Jewish religion who believed the Holocaust, which Hitler had initiated, would eventually reach their families and take their lives. There were 700 or 800 of them who were on a ship called the USS *St. Louis*. They came to the United States and asked for refuge here, asylum here, to escape the Nazis. Sadly, our government turned them away. They went back to Europe, and 200 died in the Holocaust. After that, after that horrible experience, we said we were going to do this differently from this point forward.

Since World War II, the United States has led the world in accepting refugees and asylees. Other countries have done more than their part. I think of Jordan immediately. We have tried to be a leader among developed countries in accepting refugees and asylees, and we have done it. When you look at all of the Cubans who came to the United States to escape communism under Castro—we have three Cuban Americans serving in the U.S. Senate whose families were part of that exodus from the island of Cuba. We did the same thing with Jews who were facing persecution in the Soviet Union. We did it, as well, after the Vietnam war, when those Vietnamese who had stood by American soldiers and risked their lives were given refuge to the United States. The list goes on and on, and it reflects who we are as a nation. We screen those who come in, but we say our doors are open to give them a second chance in life and the protection of the United States.

That was what we did from World War II until the election of Donald Trump as President of the United States. Now he has turned back the clock. We are back in the USS *St. Louis* era, where we are turning away refugees who are simply coming here trying to find some safe place to be.

America is better than this. We can keep our Nation safe and respect our heritage as a nation of immigrants. We can have a secure border and abide by our international obligations to protect refugees fleeing from persecution, as we have done on a bipartisan basis for decades.

The reality is President Trump's cruel and ineffective policies on immigration have made our southern border much less secure than when he took office. The President's obsession with his almighty border wall to be paid for by the Mexicans, as he suggested, led to the longest government shutdown in the history of the United States—35 days, paralyzing agencies and the government, ironically paralyzing immigration courts that were supposed to process the people presenting themselves at the border. More refugees have been driven to our border because the President has shut down legal avenues for migration and blocked all the systems to stabilize Northern Triangle countries in El Salvador, Guatemala, and Honduras.

There is also a gaping leadership vacuum at the Trump administration's Department of Homeland Security. In less than 2½ years, there have already been four different people heading this Department. Every position at the Department of Homeland Security with responsibility for immigration or border security is now held by a temporary appointee, and the White House has not even submitted nominations to fill these positions.

The Republicans have tried to blame Democrats for the President's failure to secure the border, but Democrats have tried to work on a bipartisan basis to solve this crisis. In February, after the President finally agreed to end the longest government shutdown in history, Congress passed an omnibus appropriations bill that included $414 million for humanitarian assistance at the border. When I hear Vice President PENCE and others saying they were begging the Democrats to give them money for the border, we did—$400 million in February.

Then, last month, Congress passed an emergency supplemental appropriations bill with $4.6 billion of additional funding to alleviate overcrowding at detention facilities and provide the basics—food, supplies, and medical care.

Last year, before the border crisis began, Senate Democrats supported a bipartisan agreement—bipartisan agreement—from centrists in both caucuses that included robust security funding and dozens of provisions to strengthen border security. We put this together last year. It was a compromise. I didn't like parts of it, but it is the nature of the Senate that you can't get everything you want; you have to do the best you can to solve a problem. We had a bipartisan solution. This was a chance last year for the President to step up and accept a bipartisan approach. The President rejected it. He threatened to veto it. Instead, he wanted to push for his hardline, get-tough immigration reform instead. The Senate rejected the President's bill, his proposal, with a strong, bipartisan supermajority. It was that unpopular and unworkable.

In 2013, 6 years ago, I was part of a gang of eight Senators—four Democrats and four Republicans—who wrote comprehensive immigration reform legislation. It passed the Senate 68 to 32. Unfortunately, the Republicans who controlled the House of Representatives refused to even consider the bill.

The acting DHS Secretary, Kevin McAleenan, recently said that if our 2013 bill had been enacted into law, ''We would have a very different situation. . . . We would be a lot more secure at our border.'' That is what he says now about a bill we passed 6 years ago.

Republican Senator LAMAR ALEXANDER of Tennessee, who supported the 2013 bill, said: ''If that bill became law, most of the problems we're having today we'd not be having.'' There are ways to deal with this in a sensible, bipartisan way. Our comprehensive bill did that.

Getting tough, threatening a wall, and cutting off foreign aid has backfired on this President. It has created failure when it comes to immigration.

The Democrats have introduced the Central American Reform and Enforcement Act as a comprehensive response to our current border crisis. Let me tell you the highlights.

It addresses root causes in the Northern Triangle countries that drive migrants to flee. It cracks down on traffickers who are exploiting migrants. It provides for in-country processing of refugees and expands third-country resettlements so migrants can find safe haven without making that dangerous and expensive trip to our border. It eliminates immigration court backlogs so asylum claims can be processed quickly. It expands the use of proven alternatives to detention, like family case management, so immigrants know their rights and show up for court.

Democrats stand ready to work on smart, effective, and humane border security policies, but we need our Republican colleagues to condemn President Trump's cruel campaign against families and children and to work with us on a bipartisan basis.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MENENDEZ. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. ROBERTS). Without objection, it is so ordered.

TREATIES

Mr. MENENDEZ. Mr. President, I am pleased, at long last, to speak on the floor today in support of four protocols amending the tax conventions between the United States and Spain, Switzerland, Japan, and Luxembourg.

I have long been a strong supporter and proponent of these tax protocols and worked to advance them across multiple Congresses. In the Senate Foreign Relations Committee, I voted to advance Japan and Spain protocols three times and voted four times to advance the protocols with Luxembourg and the Swiss Confederation. I am pleased that, after too many years of waiting, the majority leader has finally decided to take up these protocols.

I am a strong believer in the benefits these treaties provide our country. They play a critical role in relieving U.S. citizens and companies of double taxation, encouraging foreign investment in the United States, and enforcing U.S. tax law on those who seek to evade it. There are no downsides to these treaties.

As I conveyed directly to Secretary Mnuchin, the Treasury Department's initial interaction on these treaties without consulting the Foreign Relations Committee was completely inadequate. This botched effort resulted in a completely avoidable delay in taking up these four protocols. However, I am pleased that Treasury responded quickly to my concerns, including providing a written commitment on behalf of the administration that the Foreign Relations Committee chair and ranking member would be consulted on any changes to the model tax treaty prior to negotiations based on a new model or new model provisions. Therefore, I support moving the tax treaties as expeditiously as possible and urge my colleagues to support them.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

MEDICARE

Mr. ALEXANDER. Mr. President, last month, during National Nurses Week, Ballad Health, a healthcare system in East Tennessee, announced it would be giving several thousand nurses a raise.

The head of Ballad Health announced a $10 million investment in pay increases for nurses.

He said: ''Our nurses and those who work with them in the provision of direct patient care are heroes . . . however, it is also true that . . . we face significant national shortage of these critical health care providers.''

Alan, the head of Ballad Health, said that his investment was, in part, because of a new rule proposed by the Trump administration in April.

This new rule will update the formula that determines how much Medicare will reimburse hospitals for patient care. The formula takes into account, among other things, the cost of labor in that geographic area called the area wage index.

This new rule attempts to level the playing field between hospitals in areas that have higher wages, and therefore are reimbursed at a higher rate than hospitals in areas with lower wages.

The Centers for Medicare and Medicaid Services Administrator, Seema Verma, wrote in a recent op-ed in The Tennessean in Nashville:

> Many stakeholders have raised concerns that the Medicare hospital payment system disadvantages many rural hospitals. Our proposed rule brings payments to rural and other low-wage hospitals closer to their urban neighbors.

I say this standing in the Senate Chamber, where we have the chairman and the ranking Democrat on the Agriculture, Nutrition, and Forestry Committee—two experts on rural areas and rural hospitals in our country.

In recent years, too many rural Americans have seen their local hospital close and their doctors leave town.

Since 2010, 107 rural hospitals have closed across 28 States and another 637—about one-third of all rural hospitals—are at risk of closing.

In Tennessee alone, 12 rural hospitals have closed since 2010.

A recent survey by the Robert Wood Johnson Foundation and the Harvard School of Public Health found that one in four Americans in rural areas couldn't access healthcare when they need it.

This new rule will help rural hospitals keep up with the cost of providing care and keep those hospitals open.

Alan from Ballad Health said: ''This proposed change indicates that Washington finally understands that rural health systems, like ours, have been historically unable to keep up with the real cost growth of nursing and other direct care providers.''

Craig Becker, who leads the Tennessee Hospital Association, wrote in The Tennessean earlier this month that this rule ''is good news for our State's hospitals and will provide much-needed relief to many of them, especially those in rural areas'' and that the rule ''finally will address the significant inequities in the Medicare area wage index—the first meaningful effort by any administration to address this flawed system.''

This new rule from CMS will help ensure Americans can access healthcare close by to their homes by leveling the playing field between urban and rural hospitals that rely on the Medicare hospital payment system.

Last month, the Senate Health, Education, Labor, and Pensions Committee, which I chair and Senator MURRAY of Washington State is the ranking Democrat, approved, by a vote of 20 to 3, a bipartisan package of 55 proposals from 65 Senators to lower healthcare costs that will help rural Americans.

For example, the legislation would ban anticompetitive terms that large hospital chains sometimes use in contracts with employers, such as the so-called all-or-nothing clauses. These clauses increase prices for employers and patients and can block healthcare plans from choosing hospitals based on the care quality, the patient experience, or one hospital's competitive pricing.

Banning all-or-nothing clauses will help level the playing field for smaller, independent hospitals who are not part of a large corporate chain.

Another provision in the Lower Healthcare Cost Act of 2019 will expand technology-based healthcare to help Americans in rural areas have access to specialty care.

I hope the Trump administration and CMS Administrator Verma will quickly finish this rule and give Americans better healthcare choices and outcomes at lower costs, especially in our rural areas.

I yield the floor.

The PRESIDING OFFICER. The Senator from Michigan.

Ms. STABENOW. Mr. President, before our distinguished leader and chairman of the Health, Education, Labor, and Pensions Committee leaves, I want to thank him for his hard work.

Having grown up in a small, rural community in Northern Michigan, I

can speak directly to how important healthcare services are. My mother was director of nursing at a small hospital, and I know, since that time, they have gone through many changes, barely holding on to the hospital. We have had a number of hospital closings and consolidations.

There is important work that has happened in the health community. I want to congratulate the distinguished chairman and also indicate that the Presiding Officer and I, as we were doing the farm bill—it is my honor and privilege to work with the Presiding Officer—we were part of the solution, including language on telehealth in rural development to actually help expand services, and I think telehealth is an important way to do that as well.

I thank the chairman for his comments.

PRESCRIPTION DRUG COSTS

Mr. President, 2 weeks ago, people in Michigan and across the country were getting ready to celebrate the Fourth of July.

Families were deciding what to take on picnics and planning a day on the water, particularly if you were in Michigan, on the Great Lakes, and were finding the very best possible place to watch the community fireworks display—and we have many great fireworks displays.

So what were drug companies doing to celebrate?

Well, nothing so wholesome, I am afraid. Instead, they were raising prices on prescription medications—prices that are already the highest in the world.

People in the United States have the highest prices in the world. Happy Independence Day.

On July 1 alone, just 1 day, 20 companies ratcheted up the price of 40 of their prescription drugs by an average of more than 13 percent—just in 1 day.

Those companies aren't alone. Already this year, prices have gone up for more than 3,400 different medications. The average price hike was five times the rate of inflation.

I know families in Michigan, seniors in Michigan, would love to have their incomes, their wages go up five times the rate of inflation, but that certainly didn't happen. It is getting harder and harder for the average Michigan family to afford the medications they need to get and stay healthy, and I know that is true all across the country. I know because I hear about it every day.

I know we hear these stories every day. I hear this from friends and family and certainly people as I am moving and traveling throughout Michigan. Some folks skimp on groceries—it is still happening today—or put off paying their electric bill or their gas bill. Other people take their heart medication every other day instead of every day, which, by the way, is dangerous to do. Still others cut back on insulin, putting their lives at risk. We had testimony before the Finance Committee from a mom whose son did that and lost his life.

Perhaps nobody has been hurt more than our seniors. Seniors tend to live on fixed incomes, as we know—pensions and Social Security. They also tend to have more medications than younger people, and costs quickly add up.

In 2017 alone, the average price of brand-name drugs that seniors often take rose at four times the rate of inflation, according to AARP—four times the rate of inflation in 1 year—for the average medication a senior citizen is using. That is one of the reasons why 72 percent of seniors in a recent poll said they are very concerned about the cost of their medications.

It is absolutely shameful that people in America, one of the richest countries in the world, are going without the medicine they need to survive. We can fix that. This does not have to happen.

I have always believed healthcare is a basic human right and that it includes medicine. Over and over again, I say on the Senate floor: Healthcare is not political. For a senior, for a family, for a child, it is personal. It is personal.

We need to do something about it, and the No. 1 way we know we can bring prices down is to let Medicare negotiate—let Medicare negotiate—for prescription drugs. Harness the full power of tens of millions of seniors and people with disabilities across the country who are on Medicare to bring down the prices.

We know negotiation can work because it works for the VA. We know that. The VA—Veterans' Administration—is allowed to negotiate the price of prescription drugs and, on average, saves 40 percent—40 percent—compared to Medicare.

In fact, if Medicare paid the same prices as the VA, it could have saved $14.4 billion on just 50 of the most commonly used drugs in 2016 alone—in 1 year, $14.4 billion on just 50 commonly used medications. This is according, again, to the AARP.

So what is stopping us?

Well, we have the biggest lobby in the world called the pharmaceutical lobby in DC. The fact is, in 2018, there were 1,451 lobbyists for the pharmaceutical and health product industry. That is almost 15 for every 1 of us as Senators.

Their job—and they do it extremely well—is to stop competition and to keep prices high.

Back in 2003, Medicare Part D was signed into law. I had worked very hard as a new Member of the Senate to have Medicare cover prescription drugs, but in the end, they blocked Medicare from harnessing the bargaining power of 43 million American seniors in order to bring down prices. Unfortunately, our Republican colleagues supported that.

Sixteen years later, pharmaceutical companies are still doing everything they can to put profits before people. One of those people is Jack, who lives in Constantine, MI, and was diagnosed with cancer late last year.

Imagine being told you have cancer and then being told the drug you need to treat it is going to cost you $15,000 the first month—$15,000. Jack was lucky. A generic drug became available. However, that drug still cost $3,400 the first month and $400 every month after that. That is about $8,000 a year. In Jack's words, it is an ''extreme hardship''—$8,000 a year—trying to figure out how to be able to have your cancer medication so you can continue to live.

Jack added: ''I hope and pray you and your colleagues on both sides of the aisle would be able to get something done.''

We can get something done, and we can do it quickly. The best thing is to let Medicare negotiate and harness the bargaining power of 43 million people. There are various proposals that are good proposals and are being talked about. We can cap increases, but that doesn't cut prescription drug costs right now. If we are going to seriously talk about making medicine affordable and do it the right way—do it the right way and the way we know that will work—it is about letting Medicare negotiate. Let Medicare negotiate.

I think it is time to take Jack's advice. We need to work together. We need to put people above profits. We need, very simply, rather than moving the chairs around on the *Titanic*, to harness the bargaining power of 43 million Americans and get the best price for them. They deserve it.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. CORNYN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. CRUZ). Without objection, it is so ordered.

BORDER SECURITY

Mr. CORNYN. Mr. President, last Friday I joined the Vice President of the United States and a number of our colleagues on the Senate Judiciary Committee for a trip to the Rio Grande Valley and, specifically, to McAllen, TX.

The Rio Grande Valley Sector, headquartered in McAllen, is ground zero for the humanitarian crisis on our southern border. I know some of our colleagues refused to acknowledge that this was indeed a humanitarian crisis on our border, but that seems to have waned in recent days in light of the overwhelming evidence. In fact, in 2014 President Obama himself called it a humanitarian and security crisis, and it has gotten nothing but worse.

Of all the sectors, it is head and shoulders above the rest in terms of apprehensions of people trying to enter the country illegally. In fact, 46 percent of all apprehensions along the southern border last month occurred in the Rio Grande Valley Sector. Across

the entire border, 68 percent of those apprehended in June were unaccompanied children or part of a family unit. In the Rio Grande Valley, that figure shot up to a whopping 79 percent.

People may be asking themselves: Why are unaccompanied children and families—that is, an adult with a child—the ones predominantly coming across the border? It is because human smugglers know our laws better than we do, and they are exploiting the vulnerabilities in our asylum laws in order to make a lot of money. They charge roughly $5,000 to $10,000 per person whom they deliver across the border from Central America or from anywhere around the world. As a matter of fact, the Border Patrol told us on Friday, when we were in McAllen, that just in the last year they had detained people from 60—six-zero—different countries coming across the border at the Rio Grande Valley Sector. That is because these human smuggling networks are really worldwide. If you want to come from Bangladesh or Syria or Iran or Russia, all you have to do is make your way to Central America, hire one of these human smuggling networks, and they will work your way up across the border into the United States. This is a national security as well as a humanitarian crisis.

As of July 1, the Rio Grande Valley Sector had 8,000 migrants in custody. They are overwhelmed, to be sure. This is placing a huge strain on our resources. Our Border Patrol stations were never designed to hold that many people.

The men and women who apprehend and care for these migrants have been unfairly criticized and mischaracterized as bad guys, but last week I got to see once again that they aren't the real villain in this scenario. In fact, they are the heroes.

The Border Patrol agents in the Rio Grande Valley, and those along the entire border, are pulling double duty as law enforcement officers and caregivers. They are hired to be law enforcement officers, but they have had to basically end up handing out juice boxes and diapers to unaccompanied children or family units because that is what we are seeing flood across our borders. One minute they are stopping fentanyl, heroin, and methamphetamine from coming across the border and they are stopping dangerous criminals from entering our country, and the next they are comforting crying babies and providing sustenance to children.

Balancing an overcrowded facility and a constantly growing list of responsibilities is no easy task, but it is not their fault. It is Congress's fault because only Congress has the authority to provide the change in the laws necessary to stop this endless flood of humanity and this overwhelming of our resources, both human and infrastructure. These dedicated agents handle these demands with professionalism and compassion.

My colleagues and I had the opportunity to hear from several of these agents, including Chief Patrol Agent Rudy Karisch. Chief Karisch talked about the work his agents do to provide quality care to those in custody, particularly medical care. In his sector alone, that equates to an average of 32 hospital runs each day—32 hospital runs each day—to ensure that migrants receive the care they need.

As these agents know too well, many of the people who cross the border do so because they are deeply familiar with the loopholes in our immigration laws, and they are eager to exploit them, as I described a moment ago.

One of those loopholes is something called the Flores Settlement Agreement, which was created as a way to ensure that unaccompanied children don't remain in Border Patrol custody for long periods of time. It was expanded in, I believe, an unintended and unnecessary sort of way to effectively expand this protection for unaccompanied children to families as well.

As a result, we can't detain those families for more than 20 days, the adults in particular. As a result, we see the dramatic increase in the number of families arriving at the border. Why not? What is to discourage them or dissuade them?

As we learned during our visit, many of these migrants coming across the border are not families at all. Tim Tubbs is a deputy special agent in charge for Immigration and Customs Enforcement Homeland Security Investigations, HSI. He discussed the rise in fraudulent families. In other words, by that I mean adults claiming to be the parent or family member of a child when, in fact, they are not related at all.

In April, ICE HSI sent more than 400 employees to the southern border to investigate these fraudulent claims of family units. In the roughly 90 days since, more than 352 fraudulent families were discovered across the southern border.

He described one case of a Honduran man that illustrates why leaving these loopholes untouched is so dangerous. Again, only Congress can change that. He mentioned the fact that a 51-year-old man negotiated with a pregnant Honduran woman to purchase—to buy—her baby when it was born. For the equivalent of about 80 U.S. dollars, this man purchased her child and then traveled with human smugglers into the United States. If you have a child with you, it is a ticket to entering the United States and exploiting those gaps in our immigration laws.

Deputy Agent Tubbs said HSI also uncovered an organization that recycled—recycled—approximately 69 children in order to smuggle people into the United States. In other words, once you successfully get to the United States, these children are sent back and used over and over again in an endless loop to smuggle more adults into the United States under the guise of being a family.

We can point the finger of blame at the Border Patrol for being overwhelmed for not having facilities that were designed to handle the influx of this number of people, but that would be a terrible miscarriage of justice. The fact is, Congress needs to look in the mirror. The only people who can change the laws under our Constitution is the U.S. Congress and the President. The President has called time and again for Congress to fix these loopholes in our immigration laws to begin to stem the tide of humanity coming across our border.

Our broken laws are fueling this behavior. Unless we take action to close those loopholes that invite more people to illegally enter into our country, the problem will only continue to grow.

Amid calls from many of the so-called progressive Democrats running for President to do things that make illegally crossing the border legal—in other words, rather than protecting the sovereignty of our country, securing our borders, they want to actually make entry into the United States legal—the work being done by our Border Patrol and our Health and Human Services and other nongovernmental organizations at the border to keep our country safe and care for migrants in their custody cannot be overstated.

The key to solving this crisis isn't opening the door to more illegal immigration; it is removing the pull factors that encourage people to come here in the first place. Of course, you can imagine, if the door were wide open, how many people would come from other countries into the United States at will. They would flood our country. That is part of what is happening now because they don't see any limits or any order or any rules being applied to who enters our country.

We are a proud nation of immigrants. We naturalize almost 1 million people a year. This isn't about being anti-immigrant. Immigrants have made our country stronger. Legal immigration is the key distinction.

Our friends across the aisle seem to be the champions of illegal immigration. We want our legal, orderly, lawful, rules-based immigration system to work so it can be fair to everybody, rather than let people who have been waiting in line for years to come into the country legally see people jump in line ahead of them and enter the country illegally. That is not fair to them, and that is not a rules-based and lawful and orderly system of immigration.

I have introduced legislation that will take major steps to achieve filling those gaps, plugging those holes in our asylum and immigration laws. It is called the HUMANE Act. This bill would close the Flores loophole, streamline the processing of migrants, improve standards of care, which we all want to do for individuals in our custody, and require additional training of customs and Border Patrol and Immigration and Customs Enforcement employees who work with children.

This bill is, to my knowledge, the only bipartisan, bicameral solution that has been offered. It is bicameral. My friend and colleague in the House, HENRY CUELLAR, from Laredo, TX, and I have cosponsored this bill—bipartisan, bicameral.

As we consider this and other legislative proposals, I hope our colleagues on the other side of the aisle will finally get serious about taking the required action.

Chairman GRAHAM of the Judiciary Committee tried to organize a bipartisan trip to the border, believing that would be an important step in helping us witness together the facts on the ground and then hopefully work together to try to solve the problem.

I am disappointed that none of our Democratic colleagues accepted his invitation. I hope this is not an indication of what our immigration reform discussions will look like moving forward: no desire to help, no desire to solve the problem, no desire to work together on a bipartisan basis. I hope that is not where we are, but I am fearful that is exactly where we are.

I appreciate the Vice President taking the time to visit Texas once again and getting a chance to see the frontline challenges our officers and agents are facing. I would thank Mrs. Pence as well for accompanying the Vice President.

Despite the challenges this humanitarian crisis has brought, the Rio Grande Valley remains a wonderful region, characterized by a thriving economy and a vibrant culture. You would be hard-pressed to find more generous people. They have been extraordinarily generous to the migrants who found their way to our front doorstep and are trying to take care of them in a compassionate sort of way, but, frankly, they are overwhelmed too.

I thank the men and women of the Border Patrol, as well as local officials, businesses, and members of the border communities who continue to assist with this humanitarian crisis. It would be nice if Congress, on a bipartisan basis, would lift a finger to help.

ENERGY INNOVATION

Mr. President, on another matter, this morning, the Energy and Natural Resources Committee held a hearing to consider numerous bills introduced to promote energy innovation in the United States. Breakneck changes in technology have fueled our economy, propelled our communications sector, and completely transformed each of our daily lives. Just this alone has done that. It is time to harness this ingenuity to revolutionize our energy sector. Smart policies can't prioritize only conservation, productivity, or economic power. We obviously need to strike the proper balance. You are not going to achieve that balance by imposing heavy-handed regulations and driving up costs for consumers.

To put it another way, the Green New Deal will bankrupt our country and crush our innovation economy. Instead, we have to harness the power of the private sector and build partnerships to create real solutions.

The NET Power plant in La Porte, TX, is a shining example of how public-private partnerships can drive next-generation energy solutions. NET Power has developed the first-of-its-kind power system that generates affordable, zero-emissions electricity from natural gas. Using their unique carbon capture technology, they have taken natural gas and made it emission-free.

This technology is relatively young, and it is not ready to be scaled up yet at the national level. By investing in this type of research, I believe we can take serious strides to decreasing our carbon emissions.

While renewable energy sources like wind, solar, hydropower, and biomass have come a long way in recent years, they are not alone sufficient to fuel our economy. As one witness said, the Sun doesn't always shine, and the wind doesn't always blow. So you need a baseload of electricity that has to be provided by other sources like natural gas powerplants like the one I saw.

Last year, renewables accounted for 17 percent of our total energy sources. In Texas, as the Presiding Officer knows, we produced more electricity from wind turbines than any other State in the Nation. Yes, we are an oil and gas State, but we truly believe in the all-of-the-above approach. Some people say that and don't really mean it, but we do it every day in Texas.

While renewables account for 17 percent of our total energy sources, natural gas alone accounts for double that. Imagine if we could take natural gas, a plentiful energy source, inexpensive, and bring more projects like NET Power online. That is precisely why I introduced the LEADING Act with my colleagues, Senator COONS, Cassidy, and Sinema. This bill would incentivize research and development of carbon capture technology for natural gas and support energy innovation.

This legislation was crafted with the understanding that reliable, affordable, and environmentally sound energy supplies are not mutually exclusive. You wouldn't know that sometimes by the rhetoric here in Washington.

By incentivizing research into the development of new technologies, we can keep costs low for taxpayers, for seniors, for people on fixed incomes, while securing our place as a global leader in energy innovation. The goal of this legislation is to accelerate development and commercial application of natural gas carbon capture technologies. We should do this by requiring the Department of Energy to establish a program to develop cost-effective carbon capture technologies for natural gas power facilities.

This legislation would also encourage partnerships with the National Laboratories, as well as universities and other research facilities to improve and strengthen our efforts. I am proud the LEADING Act passed the Energy and Natural Resources Committee this morning, and I hope we will have the opportunity to vote on this and other similar and related bills before the full Senate soon.

We need smart energy policies that will strengthen our economy without bankrupting American families or turning the keys over to the central government to regulate our lives, to micromanage our lives. We don't need the Federal Government to tell us what to do. We need to follow the private sector and innovate our way to solve these problems, and that is exactly what the LEADING Act would do.

When you implement policies that get government out of the way and let the experts do their job, you can be pro-energy, pro-innovation, pro-growth, and pro-environment.

I yield the floor.

The PRESIDING OFFICER. The Senator from Alabama.

50TH ANNIVERSARY OF APOLLO 11

Mr. JONES. Mr. President, today I rise in absolute awe—remain in awe—of what happened in this country and in this world 50 years ago this week, and I am still inspired by the events of our space program 50 years ago.

Fifty years ago today, Americans of all ages, in every corner of this great Nation and, in fact, all over the world, stopped what they were doing to watch in complete awe as Apollo 11 launched from Cape Kennedy, headed toward the Moon. It is unbelievable what we saw, what we witnessed, that entire week.

It would be the first time that humans would set foot on a celestial body other than the Earth. We would step foot on the Moon, which had captured the imagination of the world since time began, trying to reach that big, round object in the sky. It was a remarkable feat, made possible by the sheer determination and grit of the American space program and all of those who participated in it.

I was just a kid growing up in Alabama at the time. I lived just 2 or 3 hours south of what was known as Rocket City in Huntsville, AL. It is still known as Rocket City because of all of the work at NASA and in our space program today. It was a thriving metropolis then and even more so today. That is where all of the rockets were built. That is where the engines, the powerful engines that drove the rockets into space, were built. They were tested in Huntsville, AL. If you go there today, most of those stands are still there. Some of them are about to be used again. Those Saturn V rockets, the most powerful rocket engines man had ever created, were built in Huntsville, AL. They were the engines that would propel man to the Moon.

I was absolutely mesmerized—absolutely mesmerized—by all things involving the space program. I still am. I can remember so many times when my maternal grandfather, Oliver Wesson, whom I called Paw-Paw, and I would just sit for hours and watch and listen

to the commentaries. We would watch the liftoffs. We would watch the splashdowns. Some of my best memories as a kid were literally sitting in front of a TV set with my granddad, watching the heroes I saw, the heroes I wanted to be, and the heroes America wrapped their arms around. At the time, there was nothing—nothing—and maybe to some extent today—more that I wanted to do than to be an astronaut and to go into space. It sounds corny for an old man like me to say that, but it is absolutely true.

Those astronauts, the original Mercury Seven astronauts, were heroes in every sense of the word. I admire their courage, not having a clue when they blasted off from Florida whether they would return safely. And we did lose astronauts along the way.

I did so many things. I read. I studied. I watched. I read papers. A lot of papers in my grammar, junior high, and high schools were all written about the space program.

I am a memorabilia collector, as many of you may know, including of autographed baseballs. I have a few autographed baseballs by some of the astronauts, but the ones I like most are the newspapers. From that time, I could see that everybody could sense something was special. From the time Apollo 11 took off from Cape Kennedy, and the headlines in the Birmingham News read ''Man Sets Foot in Heavens,'' to the time they splashed down, I collected and saved every one of those newspapers. They are still at home, and they are prized possessions.

We watched every single launch. We knew every single name of every astronaut. We stood there with intense, mesmerizing attention to every moment of those launches.

It was something that captivated this entire country. It was a unifying time. It was a unifying force at a time when America needed it—the 1960s. For Apollo 11 in 1969, it was a time when we needed that sense of collective pride. We needed that sense of unification. We had gone through tough times during the civil rights era. We had gone through and we were still in the midst of the Vietnam war and all that tore this country asunder. We saw all that happened in 1968. We saw the deaths of John Kennedy, Robert Kennedy, and Martin Luther King, but the space program was that one sense of pride.

It didn't take a tragedy to unify America at that time. It took success. It took a build of what we do. It took our determination. It took knowing that we were the most patriotic, and, doggone, we were going to beat those Russians to the Moon. It sounds so corny these days, but it is absolutely the case. We were going to do it. It was going to be the United States of America, and, doggone, we did it.

A lot has changed. Today, we are building on this legacy. We are still building on this legacy in space. We are building it in Huntsville, AL, and elsewhere with NASA, and we are going to continue to inspire a new generation—and more generations to come—of Alabamans and Americans, people all across this country, to help us reach even loftier heights.

Yes, a lot has changed since 1969—50 years ago—but there is a reason that space flight and exploration of other worlds continue to capture our attention and to capture our imagination. It is because, at the end of the day, we are all dreamers. We always dream of those loftier heights. We always want to achieve. We always want to make this country great—consistently make this country great. We always want to reach for the stars, whether it is in our personal lives or whether it is collectively as a country. That is what we do. We are dreamers.

Today, 50 years after the launch of Apollo—and on Saturday, we will celebrate 50 years of the actual steps on the lunar surface—we celebrate the achievement of a dream five decades ago, but a dream that started long, long before that, long before President Kennedy challenged America to put a man on the Moon.

Looking back, 50 years ago was really just the beginning. It showed us that a true moonshot was possible, and, quite literally, it opened our world to new possibilities.

Today, we are reaching for human spaceflight back to the Moon and to Mars. It is not just us; other countries are doing the same. We are looking for a return flight to the Moon for deeper exploration. We are receiving pictures from the farthest reaches of the galaxy, things we have never seen before. We have seen the surface. We have landed rovers on the Moon surface and have seen the pictures and have done the tests. It is just unbelievable. Who would have ever thought of this some 50, 60 years ago when I was a kid?

Today, we have a greater understanding of the universe around us and how we apply that knowledge to our own lives. We continue to reach for the stars.

Yes, a lot has changed, but a lot hasn't. We still have divisions in this country. We still need that unifying voice. We still need that sense of pride that we can all—everybody—wrap our arms around.

Today, we seem to be divided more than we were during the height of the Vietnam war. We seem to be divided over the very issues that my friend Senator CORNYN was talking about a moment ago with regard to immigration. We are divided over politics—a partisan divide. We are divided over gun violence. You name it; we are divided. So we need that unifying voice. We need something positive that we can all wrap our arms around.

It is not just a holiday—and sometimes now, in today's world, unfortunately, even our holidays get divided. Even on our holidays, people go to their corners for political reasons, on both sides of the aisle. Make no mistake, folks, I am not casting a stone one way or another. I am casting it across this land. People are divided.

We have to honor the visionaries of long ago, as well as the visionaries of today who think big, dream big, and give our Nation a collective sense of purpose and unity—a collective sense of unity and purpose—not a divisive sense of purpose for their own benefit but a collective sense of unity and purpose.

We can honor those folks by setting aside all of the differences we see. We can honor those folks by not going to our corners every time a hot-button issue is mentioned either here on the floor of the Senate or in a tweet or in a Facebook post or in the national news. We can set that aside. We can set it aside by setting aside our differences.

We honor folks by setting aside our differences today. We can honor those folks by remembering our collective pride and who we are as Americans, by making sure that all men and women are created equal and living up to the creed that we so proudly point to in the Declaration of Independence and the Constitution. We can do that again. We can honor these visionaries by coming together, reaching across the aisle and also reaching within our aisles to bring people together to talk about those things we can do together and with a sense of pride. We can do it by, once again, being the leader of the world and not trying to do everything alone but bringing our friends and allies to join us in these collective efforts to make us stronger.

Yes, we owe those folks a great debt of gratitude for making America a leader in space, a leader in the world, and giving us all something to dream about. Let us now meet that challenge in a different way.

Let us continue to explore space. Let us continue to reach for the stars, but let us dedicate ourselves to becoming that unified voice so that something we can all dream about is one America—one America—not a house divided but one America for everyone.

Thank you.

I yield the floor.

The PRESIDING OFFICER. The Senator from Iowa.

Mr. GRASSLEY. Mr. President, since it is getting close to shutting-down time, I ask unanimous consent to finish my entire remarks. I promise the Presiding Officer I will not be too long.

The PRESIDING OFFICER. Without objection, it is so ordered.

EB–5 REGULATIONS

Mr. GRASSLEY. Mr. President, I come to talk to my colleagues today about the deeply flawed EB–5 green card program.

Several weeks ago, we learned that the Office of Management and Budget at the White House had completed its review of the new rules to update and reform the EB–5 Program. I have been an advocate for reforming this program for a long, long period of time. Several times I have even talked to the White

House about moving these regulations along.

Now that they have been reviewed by OMB, for the rule to come into effect, it must now be published in the Federal Register. The rule was first proposed in January 2017. We have been waiting for it to be finished for 2½ years. I hope that President Trump now makes that happen as soon as possible.

The proposed rule would raise the minimum investment amounts required under the program. It also makes sure that investments are directed to rural areas and truly high-unemployment areas, as Congress intended when EB–5 was created in 1990.

Considering those points of where EB–5 ought to be concentrated and now looking at how they have been diverted from the original intent of Congress is the very best reason for these rules to be put in place—to get us back to square one, the original intent of the law.

Since the 1990s, rampant and abusive gerrymandering of the EB–5 Program's targeted employment areas has undermined that congressional intent, which was to direct it toward high-unemployment areas and rural areas. Instead of channeling investment to rural and high-unemployment areas, EB–5 has become a source of cheap foreign capital for big-city, big-moneyed interests. The targeted employment area reforms in the proposed rule would take a first step toward refocusing EB–5 investment in the way that Congress originally intended in that 1990s legislation.

In addition to channeling investment away from the areas of our country that need it the most, this is what has happened. The EB–5 Program has been plagued with other forms of fraud and abuse, and this has been going on for years and years. There are examples of EB–5 fraud from all over the country, and I am going to give just a few examples as a reminder to the President why these rules need to be put into the Federal Registry right away.

In Chicago, a businessman defrauded 290 investors of $150 million in funds that were supposed to be used for construction of a hotel and conference center near O'Hare Airport.

In Palm Beach, FL, a real estate developer and real estate attorney teamed up to defraud 60 Chinese and Iranian EB–5 investors of $50 million. Instead of that money being used to fund the construction of a proposed hotel, it was instead used to pay personal taxes and purchase a 151-foot yacht.

In Wisconsin, a businessman used over half of the $7.6 million in funds he had solicited from investors to pay for personal expenses, including Green Bay Packers tickets and the purchase of a Cadillac Escalade.

I could go on all day.

In May of 2017, U.S. Citizenship and Immigration Services conducted an internal fraud assessment and found 19 cases of national security concerns within the EB–5 Program. Those are national security concerns. The No. 1 responsibility of the Federal Government is to protect the American people, and that involves national security. These cases related to terrorism, espionage, and information and technology transfer.

Unfortunately, multiple bipartisan efforts in the Congress to modify the EB–5 Program have been consistently stymied by powerful special interest groups and big-moneyed interests. Because I have been in the middle of those battles—and they are bipartisan battles—over the years, I know exactly where these big-moneyed interests are coming from and the special interest groups that keep this program from being reformed.

Now we have an opportunity for one person—the President of the United States—through regulation, to reform this program in a way that would be very helpful. So that makes the publication of the EB–5 reform rules even more important. I applaud President Trump and the administration for getting the proposed rule to this point, but now it is time for the President and his team to finish the process and make sure the final rule goes into effect as soon as possible.

Iowans and all Americans who live in rural and high-unemployment areas deserve to have the investment that Congress intended when the EB–5 Program was created almost 30 years ago. President Trump and his administration now have a chance to finally address some of the very serious flaws in this program that have hurt rural America. We have been waiting for these reforms for over 2 years. It is time for this final rule to be published, and it needs to happen right now, if not sooner.

TREATIES

Mr. President, I rise today for the purpose of expressing my support for the passage of the resolutions of advice and consent that the Senate is considering this week with respect to the protocols to our tax treaties with Spain, Switzerland, Japan, and Luxembourg.

Tax treaties are a very integral part of the architecture of our tax system. For example, these treaties would help define the rules of the road for cross-border investment and trade for U.S. individuals and companies doing business in one of our treaty partner countries, like Spain, as an example, and for individuals and companies in those countries doing business in the United States.

The protocols before us today provide important updates to the tax treaties with these four countries. In general, several of them lower withholding taxes and include provisions to prevent double taxation. Several provide mechanisms for resolving disputes in a timely manner through mandatory binding arbitration. In addition, they provide important updates to the exchange of information provisions in the underlying treaties.

I am aware of the concerns that have been raised regarding the standard used to provide for such exchange of information. The standard provided for in these protocols is that relevant information shall be exchanged between the United States and its treaty partners. That relevant standard has been used throughout our treaty network for decades and is also the standard used in U.S. domestic tax laws.

This issue was raised last month in the Foreign Relations Committee, and an amendment was offered to the resolution regarding the protocol with Spain that would have required a narrower standard. That amendment was appropriately defeated. If the issue is raised again as an amendment here on the floor, I will urge my colleagues to vote no on the amendment.

These four protocols have been awaiting action by the Senate for many years. In some cases, it has been nearly a decade. It is important that the Senate fulfill its constitutional duty to provide its advice and consent on tax treaties and protocols. It is also important that our treaty partners know that the United States really values these agreements and negotiates these treaties and protocols in good faith, with the expectation that they will be implemented without lengthy delays.

Our actions on these protocols are also timely, given the international effort to address the effects of digitalization on the international tax system.

For the past several months, representatives from the Treasury Department have been actively engaged in negotiations at the Organisation for Economic Co-operation and Development. These talks are focused on finding a multilateral agreement to these issues and avoiding the regrettable unilateral approach that some countries have taken—most notably, France. Ultimately, if these negotiations are successful, there could be a need for the United States to update its bilateral income tax treaties.

It is important that the Senate take action on the pending protocols and send a strong signal to our treaty partners that the international tax agreements are a priority for our country.

In addition to moving forward on these four protocols, we have three new income tax treaties with Chile, Hungary, and Poland that are awaiting action by the Foreign Relations Committee. I urge Chairman RISCH and Ranking Member MENENDEZ to use the wave of momentum that is building this week to move forward on those three new treaties and send them to the floor of the Senate as soon as possible.

I thank the chairman and ranking member for moving these protocols to the floor. These treaties were reported favorably by the committee by voice vote without amendment, and their consideration is long overdue.

I thank Leader MCCONNELL and Minority Leader SCHUMER for their efforts to bring these protocols up for consideration on the floor this week.

I urge all of my colleagues to vote yes on these resolutions of advice and consent.

I yield the floor.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2 p.m.

Thereupon, the Senate, at 12:40 p.m., recessed until 2 p.m. and reassembled when called to order by the Presiding Officer (Mrs. CAPITO).

EXECUTIVE SESSION—Continued

The PRESIDING OFFICER. The Senator from North Dakota.

Mr. HOEVEN. Madam President, I ask unanimous consent that I be allowed to engage in a colloquy with my colleagues.

The PRESIDING OFFICER. Without objection, it is so ordered.

UNITED STATES-MEXICO-CANADA TRADE AGREEMENT

Mr. HOEVEN. Madam President, I rise today to speak about a very important issue not only for my home State but for our country, and that is the United States-Mexico-Canada Agreement, also referred to as the USMCA.

This is the agreement that would replace NAFTA. It will increase exports, expand consumer choice, raise wages, and boost innovation not just for our country but also for two of our strongest trading partners, Canada and Mexico, as well.

In the United States the U.S. International Trade Commission's analysis found that the USMCA will raise GDP by nearly $63 billion and create more than 176,000 jobs. The implementation of this agreement will also benefit my State, as it will secure and expand market access for our ag producers, and that is true for all of our ag-producing States across the country. It will help to grow our manufacturing base, as well, for our manufacturing States, such as Ohio. I see that my good friend and colleague from Ohio has just joined us. It will provide important support and help for the technology sector and energy sector. All of our different industry sectors stand to benefit from this agreement.

Access to foreign markets is critical for American agriculture and for our producers, who have maintained an ag trade surplus for more than 50 years. We produce far more than we can consume in this country, and we need access to markets in Canada, Mexico, and beyond.

My State of North Dakota is the ninth largest producer of ag goods, exporting and shipping $4.5 billion worth of ag products around the globe, for example, in 2017.

Farmers and ranchers depend on free and fair trade to sell the highest quality, lowest cost food supply, not just in our country but in the world. We produce the highest quality, lowest cost food supply. That benefits every single American every single day, and it benefits many other people around the globe if we are able to export to these other countries.

According to the International Trade Commission report, the USMCA will increase U.S. ag and food exports to Canada and Mexico by $2.2 billion. This agreement secures existing market access, makes ag trade fairer, increases access to the Canadian market, and supports innovation in agriculture, which is why it is critical that Congress consider and pass this agreement as soon as possible.

Passage of the USMCA will help to secure market access in Canada to U.S. farmers and ranchers as the agreement maintains all existing zero-tariff provisions on ag products. Canada and Mexico are crucial markets for U.S. agriculture and the USMCA gives the certainty that these markets will continue to remain open for business.

I have more, but some of my colleagues are here. So I will turn to them, starting with my colleague from Indiana, somebody who has been active in business for many years. He built a business from scratch, from nothing to, I believe, more than 1,000 employees. He is certainly somebody who understands the importance of business and understands the importance of markets and access to those markets, and trade and export. So I turn at this point to the good Senator from Indiana for some of his thoughts on this important issue.

The PRESIDING OFFICER. The Senator from Indiana.

Mr. BRAUN. Madam President, it is true. I am a mainstream entrepreneur, and I have been involved with business my entire life, including the farm markets. I started a turkey farm back in 1979 from scratch, and I was involved in it for 32 years. I sold my share of it to my partner's kids and grandkids. My wife has had a business in downtown Jasper, my hometown, for years.

I have been an entrepreneur. I have dealt with how hard the marketplace is even when things are going well.

I stand to make the point on behalf of Hoosier farmers and businesses and to express my strong opinion that we need to get the USMCA across the finish line.

This agreement is vital to secure our hard-fought market access for American agriculture. At a time when agriculture could never have more challenges, from chronically low prices to the increasing concentration among farmer-suppliers with big corporations, this is one piece of uncertainty we need to eliminate.

In stressing the importance of the USMCA, I would state that despite the fact NAFTA had its faults, it was quite successful in securing markets for farmers. The USMCA is better. It provides stronger access to Canadian markets for U.S. milk, wheat, poultry, and egg products. It ensures that Hoosier wine and spirit makers are treated fairly on Canadian shelves. And it secures the Mexican market for Indiana pork, cheese, and grain.

The USMCA improves on NAFTA in other areas of the economy as well. It adds modern rules for digital trade and stronger protections for American intellectual property. We know how important that is with regard to dealing with the Chinese.

It contains new rules of origin that ensure more manufacturing is conducted in North America and has brand-new rules to bring more of that production back to the United States.

When President Trump ran for office, he ran on a few simple things, and negotiating a NAFTA improvement was one of his core promises to the American public. At the time, Congress had two requests: Follow the guidelines from the trade promotion authority and move quickly—move quickly—to minimize uncertainty. President Trump upheld his end of the bargain. He has delivered an agreement that is better than the original NAFTA in nearly every respect.

This week Congress is ready to vote, and yet we can't. Why? Because House Democrats will not bring it to the floor. Don't believe me? Look at this letter, dated July 8, from several House Democrats.

They say in plain English: Do not send this agreement to the Congress. Do not send this agreement to the Congress.

Madam President, I ask unanimous consent to have printed in the RECORD a letter dated July 8, 2019, to Robert Lighthizer.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

CONGRESS OF THE UNITED STATES,
HOUSE OF REPRESENTATIVES,
Washington, DC, July 8, 2019.

Hon. ROBERT LIGHTHIZER,
Office of the U.S. Trade Representative, Washington, DC.

DEAR AMBASSADOR LIGHTHIZER: We appreciate all the work you have done with the New Democrat Coalition and the rest of the Democratic caucus to resolve the outstanding issues that must be addressed for a successful, bipartisan passage of the updated North America Free Trade Agreement (NAFTA).

These conversations have been frank, productive and engaged in in good faith by all parties, and we are therefore optimistic that these limited concerns can be addressed in a timely manner. While we appreciate your willingness to listen, we have not seen any meaningful progress or tangible proposals from you to address these concerns. It has been clear from the outset that such proposals are necessary for a successful resolution.

The New Democrat Coalition was integral in the development and passage of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015 (TPA). It is our belief, as legislators intimately involved with the law under which the new NAFTA was negotiated, that moving forward with implementing legislation absent the agreement of Democratic leadership would almost certainly be taken as a failure to fulfill the consultation requirements of TPA. We were troubled that you sent up the draft Statement of Administrative Action on May 30

without sufficient consultation, and strongly urge you not to make the same mistake twice.

We look forward to continuing to work with you to develop these proposals to help ensure a strong, bipartisan vote on the updated NAFTA later this year.

Sincerely,

DEREK KILMER,
Chair, New Democrat Coalition.
RICK LARSEN,
Co-Chair, NDC Trade Task Force.
SUZAN DELBENE,
Vice-Chair for Policy, New Democrat Coalition.
GREGORY MEEKS,
Co-Chair, NDC Trade Task Force.
RON KIND,
Co-Chair, NDC Trade Task Force.
LIZZIE FLETCHER,
Co-Chair, NDC Trade Task Force.

Mr. BRAUN. Madam President, this is an outrage. We are ready to pass the USMCA. Today you will hear from Senators who support this deal. In the Senate we have more than enough votes to pass the USMCA. There is no reason to wait.

The Democrats have known the contents of this deal for over 2 years. They knew the provisions offered by the United States and saw the text as it developed. Once the final text was released, the Democrats were stunned. They couldn't figure out how to oppose the USMCA.

First, they argued that Mexico needed to pass its labor reforms. Mexico did so in April. Then, they moved the goalpost, arguing that labor and environmental provisions in the deal were not strong enough, even though the provisions in USMCA are substantially stronger than those in the NAFTA, an agreement that some of them supported.

They still want to move the goalpost. In fact, the USMCA is the first-ever trade agreement to contain provisions requiring a minimum wage for Mexican auto workers. The Democrats still aren't happy. This time they are asking for enforcement. In response, the Mexican President issued assurances that Mexico would enforce the new labor law Democrats had demanded. But NANCY PELOSI is keeping those goalposts moving. The fact of the matter is that the Democrats are blocking USMCA because they do not want to give President Trump a win—the worst of all reasons and what makes this place so objectionable to so many people.

In the meantime, NAFTA remains the law of the land. While they play their political games American workers are still competing under the old NAFTA rules. It is time for NANCY PELOSI to end these political games. We need to pass the USMCA.

In closing, I simply would remind my colleagues that this trade debate is unlike any other this Chamber has ever made. The USMCA is the first-ever renegotiation of a major trade agreement. We are not talking about whether we should have an agreement with our Mexican and Canadian partners, because we already do. Instead this debate is about the future of that relationship. Do the American people want the rules in the original NAFTA or do they want the modern protections included in the USMCA?

The USMCA is a substantially better agreement than NAFTA, and the American economy—Hoosiers—need these new rules so that we can move forward into the 21st century with a stronger American economy in the North American region. It is time to pass the USMCA now.

I yield my time.

Mr. HOEVEN. I would like to thank the Senator from Indiana. Like our State, it is a major ag State. It also has manufacturing and many other areas. The USMCA is very important to the State of Indiana. I thank the good Senator for his comments today.

I turn to the senior Senator from Iowa—another State that certainly has a big part in ag—and ask for his comments on the importance of the USMCA.

Mr. GRASSLEY. First of all, I thank Senator HOEVEN for leading this discussion. It is a very important discussion because American farmers, workers, and businesses stand to benefit greatly from the new United States-Mexico-Canada Agreement.

This successor agreement to NAFTA will allow for more market access for agriculture, new commitments in critical areas such as customs, digital trade, intellectual property, labor, environment, currency, and the lowering of nontariff barriers—all translating into higher wages, greater productivity, and more jobs.

As a family farmer, I can say without a doubt that trade with Canada and Mexico is critical to the prosperity of my State of Iowa, the Midwest, and, for that matter, all of rural America. In 2019, a Business Roundtable study found that trade with Mexico and Canada supported 12 million U.S. jobs. The same study found that 130,000 Iowa jobs were supported by trade with Canada and Mexico in 2017, and $6.6 billion in Iowa goods and services were exported to Canada and Mexico. According to the National Association of Manufacturers, Canada and Mexico purchase nearly half of Iowa's total global manufacturing exports.

President Trump and Ambassador Lighthizer delivered a solid deal to enhance this critical relationship with our good neighbors. Now, Congress must act to implement the U.S.-Mexico-Canada Agreement. As Ambassador Lighthizer said earlier this year, doing so will not only help the economy of the three countries, but it will enhance the credibility of America's global trade agenda. That is more important than ever, as talks between the United States and China are back on track.

I am looking forward to hearing concrete suggestions from House Democrats sometime soon. I am glad Speaker PELOSI has formed working groups to work with Ambassador Lighthizer to address Democrats' concerns and that these meetings are underway.

About a month ago, I met for a half hour with Speaker PELOSI, and I can assure you that she wants to get to ''yes,'' but she has a lot of new Members. The House of Representatives has the largest number of new Members in that body since 1974, and there is a lot that new Members have to learn. As Speaker of the House of Representatives, she has to make sure those new Members are comfortable with it. I am sure she wants to get there.

Any additions to the USMCA that might come as a result of these negotiations that can improve the outcome of American workers, I am happy to consider.

It is important to remember that USMCA is better than NAFTA by nearly every standard, including labor and environment. I hope discussions between House Democrats and Ambassador Lighthizer are an exercise in getting to the ''yes'' that I feel Speaker PELOSI wants to get to.

One particular area where everyone can agree is that enforcement across the board is a key compromise that must be hammered out. Factors outside of farmers' hands, such as an oversupply of grain in the global market, an unusually wet spring across the Midwest, and natural disasters, like flooding, have all contributed to increased uncertainty and less profitability for farmers, leading to anxiety among those same farmers. Passing the USMCA will help alleviate some of that uncertainty and anxiety for the years ahead by providing a stable export market for American corn, soybeans, pork, and dairy, to name just a few examples of the benefits not only to farming but the rest of the agenda for manufacturing and services.

I yield the floor.

Mr. HOEVEN. I would like to thank the Senator from Iowa not only for his work on agriculture but also his leadership on the Finance Committee, which is so important to advancing USMCA.

We will now go from the Midwest to the South. This is an agreement that benefits all regions of the country. I now turn to the good Senator from the great State of Arkansas.

Mr. BOOZMAN. I want to thank my colleague Senator HOEVEN for organizing this very important event.

I think you sense a theme building here. Many of my colleagues have spoken about the economic benefits USMCA holds for their specific States, and I would like to add Arkansas to the list.

According to the Arkansas World Trade Center—which, by the way, does an excellent job promoting trade in my State and growing opportunities for our exporters—Canada and Mexico are Arkansas's top trading partners by far. Arkansas goods and services are exported to 181 countries, but Canada and

Mexico combined for over one-third of our exports in 2017. Our exports to these two countries added $2.1 billion to Arkansas's economy that year. Nearly 69,000 jobs in my State are dependent on trade with Canada, and another 41,000 jobs are affected by trade with Mexico. Arkansas exports about $1.3 billion in goods to Canada and another $182 million in services. I could go on, but we have already covered a lot of statistics here today.

It is important to remember that there are real people behind this data. They are the workers in the paper mills in South Arkansas, the employees of the steel mills in Northwest Arkansas, the family farmers producing rice in the delta, and the line workers at the poultry-processing plants in Northwest Arkansas.

These Arkansans, and many more, work in the industries that produce our top exports to Mexico and Canada. For them and countless others, the announcement that a trade agreement has been reached with Canada and Mexico was very welcome and promising news. Arkansas farmers, business leaders, and workers understand how vital it is to have free but also fair trade, particularly with our neighbors to the north and the south. It helps create the sense of certainty that has been sorely missing for our manufacturers, small businesses, and the agriculture industry.

For our agricultural community, it is particularly crucial that we push this agreement across the finish line. Our farmers face a very tenuous situation right now. Commodity prices are well below the cost of production. Farm incomes in 2018 dropped sharply again for the fifth consecutive year. Total farm debt has risen to levels not seen since the early 1980s. A rainy fall and spring have hampered planting season and, in the case of Arkansas, produced one of the worst floods in the State's history. All this combined has placed Arkansas's rural communities in dire conditions. Far too many family farms are barely hanging on, and, sadly, many more are filing for bankruptcy.

Arkansas has a diverse economy, ranging from aerospace and defense to steel production, to the world's largest retailer, but agriculture is by far our largest industry. It adds around $16 billion to our economy every year and accounts for approximately one in every six jobs in Arkansas.

In my discussions with farmers on how we can help, the same mantra is often repeated: They prefer trade over aid. While they appreciate the President's efforts to ease the pain during these trade standoffs, what they really need are more markets in which to sell their products. They understand that increased trade is the way forward to create a better long-term outlook for their operations.

Our neighbors to the north and south are our natural allies and trading partners. The President's team worked hard to get Canada and Mexico to the negotiating table to formalize a more mutually beneficial agreement. That hard work has paid off in the form of the USMCA. Now Congress has the responsibility to see it through to the end.

Fair trade agreements have become increasingly important to Arkansas's economy over the last half-century. As the world becomes more interconnected, access to global markets is necessary not just for the large corporations that call Arkansas home but also for small and medium-sized businesses that are looking to expand their operations and their footprints. With a level playing field, Arkansas's agriculture, manufacturing, and small businesses can compete with anyone around the globe. Let's help them take a giant step closer to that by swiftly approving USMCA.

Mr. HOEVEN. I would like to thank the Senator from Arkansas for his words and also his leadership in agriculture.

Now I turn to the Senator from Ohio, who I think is going to touch on some of the aspects that are beneficial for the manufacturing sector.

The Senator from Ohio.

Mr. PORTMAN. Thank you to my colleague from North Dakota. North Dakota has a lot of farmers and manufacturers. There is a lot of manufacturing in his State as well, and they never had a better friend. That is why he is so strong a supporter of this agreement. It makes a big difference.

My colleague from Arkansas talked about the fact that Arkansas's two largest trading partners are Canada and Mexico. It is the same for Ohio. China is actually kind of a distant third. These two countries are critical for our exports. That is why this agreement is so important.

I am a former trade lawyer. I also was the U.S. Trade Representative under George W. Bush. Now I am on the Finance Committee, which is the committee that handles these trade issues. I think having a balanced and healthy trade relationship is very important. We have to stand up for our country. We need to enforce these agreements we have. We also need to expand the exports because that is what creates jobs—by the way, better paying jobs. They pay about 16 percent more on average and have better benefits. That is why we need to be sure we have agreements like this one.

We have about 5 percent of the world's population and about 25 percent of the world's economy. We need to sell our stuff overseas. It gives us access to 95 percent of the consumers who live outside of our borders. Mexico and Canada, as I said, are our biggest trading partners. Thirty-nine percent of our exports go to Canada alone—twice the national average. All in all, Mexico and Canada now support more than 12 million jobs nationally, according to the U.S. Chamber of Commerce.

We all know the NAFTA agreement has to be updated. It is now 25 years old, and it looks like it. It doesn't have a lot of things I would expect in any modern agreement, such as taking care of the digital economy. So much of our economy is now over the internet; yet there is nothing in this agreement that deals with that part of our economy.

It is more than just a name change. It does include a lot of different aspects. We put in more modern agreements that we don't have in the NAFTA.

Another is labor and environmental standards. Not only are they stronger, but they are enforceable under this new agreement. They are not enforceable under NAFTA.

Auto jobs have left the United States of America over the last 25 years. One reason this agreement is necessary is that the USMCA shifts more auto production back to the United States. My colleague from North Dakota talked about the manufacturing side. This is going to get U.S. automobile assembly lines humming again because if you want to get the better tariff treatment under the USMCA, car parts and cars have to have higher content from North America—that means from us. Under NAFTA, that requirement was 62.5 percent, and under USMCA, it is 75 percent. There is also a new provision where 70 percent of steel that is used in automobiles has to be North American steel. Both of these things help to ensure that we have more manufacturing jobs in Ohio and around the country.

American farmers, as we have heard earlier, are going to gain access to new markets in Canada and Mexico. That is why Ohio farm groups are for this. That is why, by the way, nearly 1,000 farm groups from around the country now—I didn't know there were 1,000 farm groups—have come out to support this agreement.

Small businesses in Ohio and around the country whose bottom line relies on these internet sales, internet commerce is going to have much more access to Canada and Mexico, thanks to these new digital economy provisions. So it kind of helps across the board.

By the way, these stronger labor standards in Mexico we talked about are going to help level the playing field in terms of labor because labor costs are less in Mexico, but it goes even further than that. It actually requires that 40 to 45 percent of a USMCA vehicle made in Mexico, or anywhere in North America, must be produced by workers making at least 16 bucks an hour.

This is kind of revolutionary. It is a different kind of thinking in a trade agreement. Frankly, it is something you would expect from a Democratic administration to put into an agreement, but it is in there, and it is going to help autoworkers in this country.

Because of all of these changes I have discussed—by the way, many of which, like the higher minimum wage or like the higher domestic content, have been advocated by Democrats in the past. That has been their approach to these

trade agreements, not Republicans so much, but because these provisions are so good for workers, I must tell you I am surprised—even amazed—to see so many of my Democratic colleagues not stand up to support this agreement because it has all of these things they have said they have wanted over the years, and they certainly don't like NAFTA. Many of them have campaigned against NAFTA for the past 25 years. In a way, if you vote against USMCA, you know what you are stuck with—NAFTA. So in a way, you are voting for NAFTA if you vote against USMCA.

That is the alternative here. It is a binary choice, as they say. It is either you are for this new agreement that is an improvement or you go back to the status quo, which is NAFTA.

So it will be interesting to see, but my hope is the media and others, outside groups, will hold people accountable and say: Why would you be against an agreement that is better, even if it is not perfect from your point of view?

By the way, no trade agreement is absolutely perfect. Every one of us would negotiate something slightly different. It is a question of trying to make sure you don't make the agreement, which is not perfect, the enemy of the good, and the good is to go to this new agreement.

There was an outside, independent study done by the International Trade Commission showing that 176,000 new jobs will be added to the U.S. economy just from this agreement alone. So this is better.

So the bottom line is, do we continue under the outdated NAFTA or do we adopt these new USMCA standards that will allow us to compete better in the global 21st century economy?

A vote against the USMCA, again, is a vote for the status quo, without enforceable labor and environmental standards, with a nonexistent digital economy provision, and with rules of origin that allow more automobiles and auto parts to be manufactured overseas instead of in America. USMCA addresses and solves all those problems.

I put together a little handy chart to talk about some of these specific provisions.

USMCA will create 176,000 new jobs. NAFTA? None.

Enforceable labor and environmental standards. USMCA, yes, checkmark, enforceable. Enforceable under NAFTA? No.

Rules for the internet economy, new rules, again, to help small businesses, internet economy, checkmark. NAFTA? No.

Seventy percent of the steel in vehicles has to be made in North America. That is a new provision. It is not in any other trade agreement, by the way. Yes on USMCA; no on NAFTA.

Finally, 40 to 45 percent of the vehicles must be made by workers earning at least 16 bucks an hour. NAFTA, no; USMCA, yes.

So it is pretty clear to me, if you actually are honest about this and you look at it objectively and you say here are these two opportunities, which way would you go?

So I hope my colleagues on the other side of the aisle take a look at this and apply logic and say: It might not be perfect. I might have wanted a little more here or there, but be sure that you are supporting what works for your workers.

If we can get this agreement passed, the President will sign it. It will make a difference for employees, for farmers, workers, service providers in my home State of Ohio and around the country.

Mr. HOEVEN. I want to thank the Senator from Ohio. I introduced him as the Senator from Ohio because that is what he is right now, but I could have also said that he is the former USTR, U.S. Trade Ambassador, so I guess I could have said Ambassador Portman, and he was also the Director of the Office of Management and Budget. So when he gets up and talks about the comparison of USMCA versus NAFTA, he certainly knows what he is talking about, and I appreciate his being here and the compelling case he makes based on many years of work and truly understanding these trade agreements and being part of developing them.

So, again, my thanks to the Senator from Ohio. I appreciate him very much.

Now I am going to turn to somebody who appreciates the farmer the way I do, and that is the junior Senator from Iowa.

Ms. ERNST. Thank you to the senior Senator from North Dakota for his great work in pulling us all together. A number of us on the floor really appreciate the agricultural sector. We heard from my senior Senator just a bit ago.

Why am I so enthused about the USMCA? It is because, in the great State of Iowa, one out of every five jobs is tied to trade.

Over 87,000—87,000—farms make Iowa our Nation's top egg, pork, corn, soybean, and ethanol producer.

With Canada and Mexico being two of our biggest trading partners, the United States-Mexico-Canada Agreement—or what we have been talking about here, the USMCA—is a huge deal for the State of Iowa.

Last year alone, my home State of Iowa exported $6.6 billion worth of products to just Canada and Mexico. That is more than we exported to our next 27 top export markets all combined—27 combined, and it still wasn't greater than what we send to Mexico and Canada.

This deal will allow those numbers to grow exponentially by creating new export opportunities for our dairy industry, greater access for our egg producers, and reducing nontariff trade barriers that previously hampered our exporting abilities.

So it is critical—it is critical—that we get the USMCA across the finish line, not just for the sake of getting a tremendous win for our agriculture community but finalizing a deal that will impact the livelihoods of our hard-working Iowans and all Americans across the country.

Ninety-five percent of the world's population lives outside of the United States of America, which makes our exports all that more important.

Having USMCA in place means certainty—certainty in a time where prices have been low and markets have been eroded from other trade negotiations.

This trade deal preserves our duty-free access to Mexican and Canadian markets, which many of our ag producers and manufacturers benefit from.

I have heard from countless equipment dealers and processors all the way down to the farmers growing the crops and raising our hogs. Ratifying this agreement will be a shot of positive energy into their businesses, their homes, and to folks all across rural America.

When it comes to trade with our neighbors to the north and the south, it is simple. We need the USMCA passed through Congress as soon as possible.

It has already been ratified by Mexico; they are done. The deal is done with Mexico, and it looks like Canada is set to follow suit.

The USMCA was signed on November 30 of 2018. That is right—2018. That is 228 days ago—228 days. I would say it is about time that Speaker PELOSI and our friends in the House signal their full support for this agreement.

It is time to get moving. We have to get this deal done. We have to get it across the finish line. Iowa's farmers, manufacturers, and small businesses are counting on us to get this done.

With that, I would like to say: Go, USMCA. Thank you to the senior Senator from North Dakota for gathering us together. I think this is a really important topic for all of us to focus on.

Mr. HOEVEN. I want to thank the Senator from Iowa and turn to somebody who, although he is very young, has been working very hard for agriculture for a very long time, and that is the Senator from Kansas, who also happens to be our Ag Committee chairman.

Mr. ROBERTS. Madam President, I thank Senator HOEVEN for getting us together for a colloquy with everybody who is concerned about this.

This is what we do on the Agriculture Committee, working in a bipartisan way when we see an opportunity, and certainly we ought to seize this opportunity.

I thank the Senator from North Dakota for leading this. He is an outstanding champion on behalf of agriculture, and he is always riding the posse, which I truly appreciate.

I also thank Senator BRAUN from Indiana, a new and valued member of the Ag Committee, for pointing out some of the obstacles we face. Unfortunately, they tend to be on a partisan basis. There are extraneous things that

need to be talked about, and I know Senator PORTMAN just brought that up with his chart, but I thank him for his participation.

Senator GRASSLEY, who is a very valued member of the Ag Committee, chairman of the Finance Committee—and obviously that is the committee of jurisdiction—who has especially pointed out, and as Senator ERNST has pointed out, the value of agriculture to Iowa and, for that matter, all of the country.

Senator BOOZMAN, who talked about Arkansas, is a valued member of the committee as well, next to the chair in terms of seniority.

Senator PORTMAN, as has been pointed out, is the former Trade Representative. On the chart, he simply pointed out in detail why this new agreement is far superior to NAFTA and we are working with, as Senator GRASSLEY pointed out, working groups in the House, with our lead negotiator, and I hope that works out. I certainly hope it works out.

Senator ERNST has been an outstanding champion for farmers in Iowa and all around the country. She is on the committee and has compassion and also pointed out the need for certainty.

Now, since NAFTA was signed into law, the result has been that Canada and Mexico have been two of our strongest trading partners.

I worked on NAFTA back in the day when I was in the House and served as ranking member, and the Honorable Kika de la Garza was the chairman. We went all over the country working on NAFTA.

The result with that agreement—and every State could say the same thing, but we are talking about 110,000 jobs in Kansas. Those jobs are across all sectors of agriculture now, and many are tied to agriculture and the entire agriculture value chain. NAFTA secured greater market access for our farmers, our ranchers, our growers, everybody in between, and for our producers. Today, over one-quarter of our country's agriculture exports are destined for Canada and/or Mexico.

As with every trade agreement, there is always room for improvement. It has been pointed out by all of my colleagues that the United States-Mexico-Canada Agreement—the acronym for that is USMCA. I did suggest it could also be for United States Marine Corps Always, but that is the acronym we are using. It has modernized the trade pact we have benefited from for over 20 years. The U.S. agriculture industry desperately needs this trade agreement now to offer greater certainty and predictability regarding demand in the marketplace, certainly in predictability.

That is what we promised in the farm bill, and we passed the farm bill in this body with 87 votes. That is a record vote, based on the premise that the most important thing we do is provide certainty and predictability for our farmers and ranchers and growers.

As chairman of the Senate Ag Committee, I have heard directly, personally, as all my colleagues have, from producers and the broader agriculture industry regarding our challenging farm economy.

Every day our farmers, ranchers, and growers experience incredible challenges, including weather variability, and that is putting it mildly. I do not know what we have done to Mother Nature for her to act in this fashion.

In Kansas, the wheat harvest is a month late, and farmers still can't get in their fields up in the northwest part, but, amazingly, the yield is pretty good; the protein is staying about the same; and we have seen a little bit—a little bit—of price recovery. We need a lot more.

The uncertainty regarding the U.S. trade policy has led some of our most important trading partners to turn to our competitors. That is sadly true. At a time when the U.S. agriculture industry is facing new trade retaliation threats on top of the challenging agriculture economy, we must offer greater certainty and predictability for the farmers and ranchers across the country.

I cannot emphasize enough how serious this is. This is the fourth or fifth year that we have experienced this situation. Some farmers and ranchers who produce—not all but some—are in a desperate situation.

Congressional passage of USMCA would be—will be—should be—a pivotal step toward restoring the United States as a reliable supplier, not to mention tangible benefits.

I urge my colleagues—especially in the House—to get together with Ambassador Lighthizer and work out these concerns that have been talked about—especially by Senator GRASSLEY—and to give fair and swift consideration to this new trade agreement. We must expand critical market access and create new trade opportunities for U.S. agriculture.

I again thank Senator HOEVEN for his leadership and for sponsoring this colloquy.

Mr. HOEVEN. I thank the Senator from Kansas and our Agriculture Committee chairman.

Madam President, I ask unanimous consent for up to an additional 3 minutes of time to allow the Senator from Colorado to make a few remarks, and then we would turn to the Senator from Vermont for his comments.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. HOEVEN. Madam President, I turn to the Senator from Colorado.

Mr. GARDNER. Madam President, I thank our colleague from Vermont for the accommodation of this extra time.

USMCA is incredibly important to the State of Colorado. Colorado is a pro-trade State. We have about 750,000 trade-related jobs in Colorado. Of those 750,000 jobs, almost 250,000 are related to trade with Mexico and Canada. Nearly a quarter million of Colorado's workers are there because of trade with Canada and Mexico. It is a nearly $5 billion share of our economy—that is, the total number of goods, services, and exports to Canada and Mexico. That was a couple of years ago, so that number has obviously increased.

Of the potatoes Mexico imports from the United States, nearly half come from Colorado. If you look at beverages, 97 percent of the beverages Mexico imports come from Colorado. If you look at crowns, closures, seals, 96 percent of those items exported or imported by Mexico come from Colorado. If you look at miscellaneous leather products, the hides and other products that Mexico imports, 87 percent of them come from Colorado.

We know NAFTA has created thousands of jobs in Colorado. We know it has added thousands of dollars to people's incomes. We know USMCA is a better, stronger opportunity for us to gain even more jobs, more income, and more opportunity for the people of Colorado. So I thank Senator HOEVEN for bringing people together on the floor to talk about the importance of free trade and particularly the passage of USMCA.

I hope our colleagues in the House will hear this call to a brighter economic future, more trade opportunities, and greater U.S. leadership by moving the USMCA, adopting it, and putting it forward so the Senate can act on it and getting this agreement into law so we can actually once again start rebuilding opportunities with trade.

I am strongly supportive of this effort. It is good for Colorado, and it is good for this country.

I thank my colleague from North Dakota and my colleague from Vermont.

Mr. HOEVEN. Madam President, I thank the Senator from Colorado. Again, the message is clear: We need to pass USMCA, and we urge our colleagues not only in this Chamber but in the House to do that and get this done for our country, across all sectors of our economy.

With that, I turn to the Senator from Vermont and express my thanks and appreciation to him.

Madam President, I yield the floor.

The PRESIDING OFFICER. The Senator from Vermont.

DEATH OF JAMAL KHASHOGGI

Mr. LEAHY. Madam President, the U.N. Special Rapporteur on extrajudicial, summary or arbitrary killings, Ms. Agnes Callamard, recently released her report on the murder of Jamal Khashoggi after a 6-month investigation. I encourage everyone to read the report, and I want to share several of her findings.

First, Mr. Khashoggi was murdered and dismembered inside the Saudi consulate in Istanbul. It was an extrajudicial killing that violated numerous international laws, and for which the Government of Saudi Arabia is responsible.

Second, there is credible evidence warranting further investigation of the

liability of high-level Saudi officials, especially the Crown Prince.

Third, once Turkey publicly announced Mr. Khashoggi's murder, the Saudi Government used consular immunity to obstruct Turkey's investigation until the crime scene could be cleaned, and there are reasons to conclude that the destruction of evidence could not have taken place without the Crown Prince's knowledge.

Fourth, Saudi officials falsely denied knowledge of Mr. Khashoggi's murder for more than 2 weeks, and they continue to deny state responsibility.

Fifth, the trial of the suspects who have been charged in Saudi Arabia will not deliver justice or the whole truth.

Sixth, Jamal Khashoggi's remains have yet to be located and turned over to his family.

Some have ignored the findings in the report, as the lobbyists who continue to rake in millions of dollars from the Saudi Government have encouraged, and as the Trump administration appears inclined to do. But ignoring the facts doesn't change what happened. And it bears repeating: The fact is, a journalist was murdered by the Saudi Government in a manner that implicates officials at the highest level in the royal family. The fact is, the Saudi Government engaged in a flagrant coverup and continues to deny any responsibility. The fact is, the steps being taken to pursue justice are a sham.

After the report was released, the Saudi Foreign Minister dismissed its finding as not containing any new information—as if the murder, coverup, and lack of accountability are irrelevant because they have been previously reported.

While many of the summary findings in the report may not be new, they are supported by roughly 100 pages of detailed information in which the Special Rapporteur and her team document official reports from the U.S., Saudi, and Turkish Governments, they include quotes from interviews conducted around the world, and they share excerpts of the gruesome intelligence information to which they had access.

Ms. Callamard presented the facts, her own conclusions, and the methodology used to reach those conclusions, and she was clear about where there were limitations of her inquiry. The report shows a meticulous and objective effort to find the truth. For that reason, it stands in stark contrast to the approach taken by both the Saudi Government and the Trump administration.

The Special Rapporteur also made several recommendations, including some that are directed specifically to the United States. They include the following:

Open an FBI investigation into the murder of Mr. Khashoggi, and pursue criminal prosecutions within the United States as appropriate.

Make a determination under the Global Magnitsky Human Rights Accountability Act regarding the responsibility of the Crown Prince, the de facto ruler of Saudi Arabia.

To the greatest extent possible, consistent with national security, declassify materials relating to the murder of Mr. Khashoggi.

And hold congressional hearings on the responsibility of top Saudi officials and demand access to the relevant classified materials.

After Ms. Callamard's report was released, President Trump, just like the Saudi Foreign Minister, dismissed its findings. He made clear he intends to take no action in response to the report.

In addition, despite Secretary Pompeo's repeated claim that the administration is ''committed to holding each individual accountable'' in the murder of Jamal Khashoggi, the facts indicate the opposite. The administration continues to refuse to adhere to its legal requirements—refuses to follow the law—under the Magnitsky Act to determine liability in the murder, including the liability of the Crown Prince.

In fact, President Trump has made no effort to conceal that the administration's complicity in protecting the Saudi royal family is linked to billions of dollars in sales of U.S. weapons to the Saudi Government. During an interview shortly after the report was released, the President admitted to not raising the U.N. report with the Crown Prince, and said: ''Saudi Arabia's a big buyer of American products; that means something to me.''

Asked whether Saudi Arabia paid the right price for the United States ''to look the other way,'' President Trump said: ''No, no. But I'm not like a fool that says, 'We don't want to do business with them . . . Take their money.' ''

I was a prosecutor for 8 years. The fact that premeditated murder is being condoned because of billions of dollars in Saudi money is unconscionable.

According to President Trump, our relations with Saudi Arabia should not change regardless of the outcome of any investigation. Think about that. The President is saying that no matter what the evidence shows, no matter how compelling the evidence implicating the Crown Prince in murder and obstruction of justice, that should not affect our relations with the Saudi Government. That is a shocking statement.

Instead, the administration has limited its response to imposing sanctions only against individuals who reportedly carried out the murder, as well as a few other officials believed to have played a role in ordering or facilitating the operation, and has argued that, by doing so, it has fulfilled its commitment to pursuing justice.

It is the same as what the Saudi Government has done—claim to be holding the hit men accountable while absolving the Saudi leadership and royal family of any responsibility.

Yet the Special Rapporteur has rightly emphasized that the pursuit of justice for Jamal Khashoggi and his family is about finding the truth.

Secretary Pompeo recently spoke about the need to ensure that our principles guide our policy. That is a view I share, but I have to wonder what he meant by that pious statement. What principles was he talking about? There is no evidence that the administration is being guided by principle in the Khashoggi case. To the contrary, there is every reason to believe this administration has made a calculated decision to do the opposite. In fact, the President has said as much.

There should be nothing controversial about holding accountable a government that systemically represses and abuses its own people, that is currently arbitrarily detaining American citizens whom it has also reportedly tortured, that has repeatedly committed war crimes in Yemen that potentially implicate the United States, and that is responsible for the premeditated murder of a widely respected journalist.

I hope other Senators will join me in calling on the Trump administration to lead the international community by example. Our government should put Special Rapporteur Callamard's recommendations into practice, and we should urge other governments to do the same.

I yield the floor.

The PRESIDING OFFICER. The Senator from South Dakota.

Mr. THUNE. Madam President, I ask unanimous consent to be able to complete my remarks before the vote.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

TRADE

Mr. THUNE. Madam President, a number of my colleagues were here just a few moments ago talking about trade and the impact of trade on agriculture. I have been down here a lot on the floor to talk about the ag economy in recent weeks. If you look at our economy as a whole, it is thriving, but our Nation's farmers and ranchers are still having a tough time, thanks to years of commodity and livestock prices that are below production cost because of protracted trade disputes and now, on top of that, natural disasters.

One of the most important things we can do to help our agricultural economy is to negotiate favorable trade agreements for U.S. producers. Our Nation's farmers and ranchers depend on trade. In my home State of South Dakota, we export a substantial portion of the agricultural products we produce.

Right now, though, farmers and ranchers are facing a lot of uncertainty when it comes to trade. There are a number of outstanding trade agreements, and farmers and ranchers are unsure what the rules of the road are going to look like in the future. That is why I have urged the administration to

wrap up negotiations on the various trade deals under consideration as swiftly as possible.

I strongly support the administration's goal of strengthening market access for our Nation's farmers and ranchers, and we have made real progress in negotiations. Now it is time to push for a conclusion to these deals and give our Nation's agricultural producers certainty about what international markets are going to look like.

There is one deal, however, that we don't need to wait for; that is, the United States-Mexico-Canada Free Trade Agreement. Negotiations on this trade agreement are finished. Mexico has already passed the agreement, and Canada is just waiting for the United States to act. All we need is for Speaker PELOSI to indicate her willingness to take up this deal, and the President will formally submit the agreement to Congress for approval.

The United States-Mexico-Canada Free Trade Agreement is a big win for our Nation's farmers and ranchers. Canada and Mexico are the No. 1 and No. 2 export markets for American food and agricultural products. The United States-Mexico-Canada Agreement will preserve and expand farmers' access to these critical markets and give farmers certainty about what these markets will look like long term.

I am particularly pleased with the improvements the agreement makes for U.S. dairy producers. Dairy is an important and rapidly growing industry in South Dakota. Drive the I–29 corridor north of Brookings, and you can see firsthand what massive dairy expansion we have experienced in South Dakota over the past few years.

The U.S.-Mexico-Canada Agreement will preserve U.S. dairy farmers' role as a key dairy supplier to Mexico, and it will substantially expand market access in Canada, where U.S. dairy sales have been restricted.

The U.S. International Trade Commission estimates that the agreement will boost U.S. dairy exports by more than $277 million. The agreement will also expand market access for U.S. poultry and egg producers. It will make it easier for U.S. producers to export wheat to Canada.

I have spent my time today talking about the agricultural industry, but, of course, this agreement goes much further. The United States-Mexico-Canada Agreement will benefit virtually every sector of our economy, from manufacturing to digital services to the automotive industry. It will create 176,000 new jobs, grow our economy, and raise wages for workers.

It is time to pass this agreement and to realize its economic benefits. Senate Republicans are ready; we are ready to approve this agreement once the White House submits it to Congress. We are just waiting for Democratic leaders in the House to indicate their willingness to take up the deal. It is time for them to do so.

Democrats' concerns have been more than addressed throughout the negotiation process. The final trade agreement is perhaps the most worker-friendly trade agreement the United States has ever considered. It is a big improvement on the North American Free Trade Agreement—the agreement under which we are currently operating—on the issues over which Democrats have expressed concern.

If they are serious about making progress on these issues and are not just trying to sink the U.S.-Mexico-Canada Agreement with specious objections, Democrats should give the President the go-ahead and take up and pass this agreement in the near future.

NOMINATION OF PETER JOSEPH PHIPPS

Mr. TOOMEY. Madam President, I rise to speak in support of the nomination of Judge Peter Phipps of the U.S. District Court for the Western District of Pennsylvania to be a U.S. Circuit Judge for the Third Circuit.

Judge Phipps is highly qualified to serve on the Third Circuit. He has dedicated his legal career to public service, first as a decorated career attorney at the U.S. Department of Justice and now as a Federal trial judge. As both a judge and a lawyer, he has been a faithful adherent to the rule of law.

Senator CASEY and I supported Judge Phipps' nomination to the district court. He was recommended to us by the bipartisan judicial advisory panel that we use to vet and recommend candidates to fill district court vacancies in the Western District of Pennsylvania. In 2018, the Senate easily confirmed Judge Phipps to the district court by voice vote after the Senate Judiciary Committee reported him to the floor by voice vote.

Before joining the bench, Judge Phipps served for 15 years as a career attorney in the U.S. Department of Justice's Civil Division, where he worked under three Presidential administrations of both parties. He represented the Federal Government in numerous complex cases and received multiple awards for his excellent work. Since 2014, he has served as an adjunct law professor at Duquesne University, where he teaches administrative law. Earlier in his career, he clerked for Chief Judge Guy Cole on the U.S. Court of Appeals for the Sixth Circuit and worked as a commercial litigator in private practice. Judge Phipps is a graduate of the University of Dayton and Stanford Law School.

Judge Phipps has an outstanding reputation for intelligence, professionalism, fairness, and integrity, but you do not have to take my word for it. Here are few examples of how others have described him.

The American Bar Association has rated him well-qualified on the basis of his integrity, professional competence, and judicial temperament. Minority Leader SCHUMER and Senator LEAHY, the former chairman of the Senate Judiciary Committee, have called the American Bar Association's rating ''the gold standard by which judicial candidates are judged.''

Senator GRAHAM, the chairman of the Senate Judiciary Committee, stated after Judge Phipps' nomination hearing on June 5, 2019 that Judge Phipps ''is one of the most impressive nominees for the U.S. Circuit Courts that has appeared before the Committee. He is incredibly smart and well balanced. Mr. Phipps will be a great addition to the Third Circuit.''

At Judge Phipps' district court investiture on December 18, 2018, Chief Judge Cole of the Sixth Circuit, an appointee of President Bill Clinton, said that Judge Phipps ''has earned a reputation for honesty, trustworthiness, great character, humility and professionalism.'' In addition, Chief Judge Cole stated that Judge Phipps ''has a brilliant mind, endless curiosity, and an even temperament. He will treat all who come before him equally and apply a strong work ethic to each and every matter. In short, Judge Phipps will be fair and just in the truest sense of those words.''

Leon Panetta, Secretary of Defense under President Barack Obama, has written to the Senate in support of Judge Phipps' nomination. He worked closely with Judge Phipps on a legal matter when he was Secretary of Defense. His letter states: ''Throughout the many hours we spent with one another I was repeatedly impressed by Peter's legal acumen, dedication, attention to detail, and integrity. I have come to know Peter to be a faithful public servant and an excellent attorney. I am very pleased that he has been nominated to give his time and talents to the bench. I believe Peter will serve with honor and highly recommend his confirmation.''

The Senate has also received enthusiastic letters of support for Judge Phipps' nomination from attorneys who have litigated with and against him, including former colleagues from the U.S. Department of Justice. For instance, one group of attorneys praised Judge Phipps as a ''model jurist'' who has a ''piercing intellect'' and ''deep knowledge of the law.'' Similarly, a group of his former colleagues from the U.S. Department of Justice wrote: ''Judge Phipps' generosity, perspective, commitment to the rule of law, and selflessness—in addition to his intelligence and extensive experience—will make him a superb appellate judge.''

I am confident that Judge Phipps will live up to this high praise on the Third Circuit. He has all the essential qualities needed to excel as a Federal appellate judge: experience, intelligence, integrity, and respect for the limited role of the judiciary in our constitutional system. I am pleased to support this highly qualified nominee and urge my colleagues to do the same.

Mr. THUNE. I yield the floor.

The PRESIDING OFFICER (Mr. CRAMER). Under the previous order, the question is, Will the Senate advise and consent to the Phipps nomination?

Mr. MORAN. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from Colorado (Mr. BENNET), the Senator from New Jersey (Mr. BOOKER), the Senator from New York (Mrs. GILLIBRAND), and the Senator from California (Ms. HARRIS) are necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 56, nays 40, as follows:

[Rollcall Vote No. 205 Ex.]

YEAS—56

Alexander	Gardner	Perdue
Barrasso	Graham	Portman
Blackburn	Grassley	Risch
Blunt	Hawley	Roberts
Boozman	Hoeven	Romney
Braun	Hyde-Smith	Rounds
Burr	Inhofe	Rubio
Capito	Isakson	Sasse
Cassidy	Johnson	Scott (FL)
Collins	Jones	Scott (SC)
Cornyn	Kennedy	Shelby
Cotton	Lankford	Sinema
Cramer	Lee	Sullivan
Crapo	Manchin	Thune
Cruz	McConnell	Tillis
Daines	McSally	Toomey
Enzi	Moran	Wicker
Ernst	Murkowski	Young
Fischer	Paul	

NAYS—40

Baldwin	Hirono	Schatz
Blumenthal	Kaine	Schumer
Brown	King	Shaheen
Cantwell	Klobuchar	Smith
Cardin	Leahy	Stabenow
Carper	Markey	Tester
Casey	Menendez	Udall
Coons	Merkley	Van Hollen
Cortez Masto	Murphy	Warner
Duckworth	Murray	Warren
Durbin	Peters	Whitehouse
Feinstein	Reed	Wyden
Hassan	Rosen	
Heinrich	Sanders	

NOT VOTING—4

Bennet	Gillibrand
Booker	Harris

The nomination was confirmed.

The PRESIDING OFFICER. Under the previous order, the motion to reconsider is considered made and laid upon the table, and the President will be immediately notified of the Senate's action.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The senior assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on Treaties Calendar No. 1, Treaty Document No. 113–4, the Protocol Amending the Tax Convention with Spain.

Mitch McConnell, Mike Crapo, John Thune, Pat Roberts, Thom Tillis, Roger F. Wicker, Mike Rounds, Roy Blunt, Shelley Moore Capito, Steve Daines, Johnny Isakson, Kevin Cramer, John Boozman, Richard Burr, John Hoeven, John Cornyn, Lindsey Graham.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on The Protocol Amending the Tax Convention with Spain shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from Colorado (Mr. BENNET), the Senator from New Jersey (Mr. BOOKER), the Senator from New York (Mrs. GILLIBRAND), the Senator from California (Ms. HARRIS), and the Senator from Vermont (Mr. SANDERS) are necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 94, nays 1, as follows:

[Rollcall Vote No. 206 Ex.]

YEAS—94

Alexander	Graham	Reed
Baldwin	Grassley	Risch
Barrasso	Hassan	Roberts
Blackburn	Hawley	Romney
Blumenthal	Heinrich	Rosen
Blunt	Hirono	Rounds
Boozman	Hoeven	Rubio
Braun	Hyde-Smith	Sasse
Brown	Inhofe	Schatz
Burr	Isakson	Schumer
Cantwell	Johnson	Scott (FL)
Capito	Jones	Scott (SC)
Cardin	Kaine	Shaheen
Carper	Kennedy	Shelby
Casey	King	Sinema
Cassidy	Klobuchar	Smith
Collins	Lankford	Stabenow
Coons	Leahy	Sullivan
Cornyn	Lee	Tester
Cortez Masto	Manchin	Thune
Cotton	Markey	Tillis
Cramer	McConnell	Toomey
Crapo	McSally	Udall
Cruz	Menendez	Van Hollen
Daines	Merkley	Warner
Duckworth	Moran	Warren
Durbin	Murkowski	Whitehouse
Enzi	Murphy	Wicker
Ernst	Murray	Wyden
Feinstein	Perdue	Young
Fischer	Peters	
Gardner	Portman	

NAYS—1

Paul

NOT VOTING—5

Bennet	Gillibrand	Sanders
Booker	Harris	

The PRESIDING OFFICER. On this vote, the yeas are 94, the nays are 1.

The motion was agreed to.

EXECUTIVE SESSION

THE PROTOCOL AMENDING THE TAX CONVENTION WITH SPAIN

The clerk will state the treaty.

The senior assistant legislative clerk read as follows:

Treaty Document No. 113–4, The Protocol Amending the Tax Convention with Spain.

Pending:

McConnell amendment No. 910, of a perfecting nature.

McConnell Amendment No. 911 (to Amendment No. 910) to change the enactment date.

The PRESIDING OFFICER. The Senator from Idaho.

ORDER OF PROCEDURE

Mr. RISCH. Mr. President, I ask unanimous consent that amendment No. 910 be withdrawn and the only amendments in order to Treaties Calendar No. 1 be the Paul amendment Nos. 924 to the treaty and 921 to the resolution of ratification; further, that at 5 p.m. today, the Senate vote on the Paul amendment No. 924; that following disposition of that amendment, the resolution of ratification be reported and the Senate vote on Paul amendment No. 921 take place; that following disposition of that amendment, the Senate vote on the resolution of ratification with no intervening action or debate; that if the resolution of ratification is agreed to, the motion to reconsider be considered made and laid upon the table and the President be immediately notified of the Senate's action; further, that the only amendments in order to treaties Calendar Nos. 2, 3, and 4 be the Paul amendment Nos. 922, 919, 923, 918, and 920; finally, that the cloture motions in relation to treaties Calendar Nos. 2, 3, and 4 be withdrawn, the pending amendments to the treaties be withdrawn, and the Senate vote on ratification of the treaties at a time to be determined by the majority leader in consultation with the Democratic leader on Wednesday, July 17.

Finally, I ask unanimous consent that the cloture motions with respect to the Corker, Blanchard, and Tapia nominations ripen following disposition of Treaties Calendar No. 4.

The PRESIDING OFFICER. Without objection, it is so ordered.

(Mrs. BLACKBURN assumed the Chair.)

The PRESIDING OFFICER (Mr. CASSIDY). Under the previous order, the pending amendments are withdrawn.

The Senator from Kentucky.

AMENDMENT NO. 924

Mr. PAUL. Mr. President, I call up my amendment No. 924.

The PRESIDING OFFICER. The clerk will report the amendment.

The senior assistant legislative clerk read as follows:

The Senator from Kentucky [Mr. PAUL] proposes an amendment numbered 924 to Treaty Document No. 113–4.

Mr. PAUL. I ask unanimous consent that the reading of the amendment be waived.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To amend the Protocol to protect tax privacy)

In paragraph 1 of Article 27 of the Convention, as amended by Article XIII of the Protocol, strike ''such information as is

foreseeably relevant'' and insert ''such information as is individualized and relevant to an individual investigation''.

Mr. PAUL. Mr. President, for several years now, I have been working on tax treaties that we have with other countries to try to protect Americans' privacy. I think it is very important that your personal information—what you buy with your credit card, what checks you write, and what you do with your bank account—is private. It is yours, and it is not to be sifted through or rummaged through by the government.

I am very, very concerned that, over time, particularly with technology, the IRS is gaining too much power at the push of a button to simply sift through our bank accounts looking for anomalies.

I think it is important that we protect Americans who live overseas. About 8 million Americans live overseas, and I think the vast majority of them are law-abiding citizens.

This debate has been going on for several years now. I first tried to engage the Obama administration in this. We had meeting after meeting but no meaningful engagement. Currently, we have been involved in negotiations with the Trump administration, which has been more open to discussions of how we protect Americans' privacies. Unfortunately, these negotiations were sabotaged by the Republican leader, who chose to bring these tax treaties forward at a time when we were in the middle of negotiations. This is very disappointing to me because I think we were at the point of actually achieving a deal that would protect the privacy of Americans. This process has been severely damaged and short-circuited by the Republican leader's choosing to push this forward and destroy the negotiations that we were having at the time.

When we look at these treaties, and we say, ''well, how could we make them better,'' there are ways that we could actually make them better. There are also ways that these treaties could have come up at any point in time in the past. No one Senator can really block legislation. The fact that this legislation hasn't come up for several years is really due to the fact that the Republican leader has failed to engage in any meaningful compromise or discussion over these.

The treaties are being brought up against my objections now. So they could have been brought up against my objections 2 years ago, 4 years ago, or 6 years ago. Really, the fault and the responsibility for the delay of these tax treaties lies squarely at the foot of the Republican leader, who has failed to engage on this subject and has, rather, chosen at the end just to rush them through without any meaningful debate.

Americans are constitutionally guaranteed to be free from unreasonable, suspicionless search—or at least we used to be. Today this Chamber begins consideration of four tax treaties, and each one of them contains provisions that would violate the fundamental right to be free from unreasonable searches.

To be sure, these treaties would bestow benefits to the United States and our trading partners, and those provisions have my support. In fact, I have said for years now that I support the gist of the treaties and that they try to prevent double taxation and they make it easier for companies to do business overseas, as well as to do business in our country. That is why I have said from the beginning: Let's negotiate a settlement. Let's try to put taxpayer protections into the treaties. But at every point we have been stymied.

I don't think the benefits of these treaties should come at the grave expense of violating the rights of every American with a foreign bank account, regardless of whether there is a shred of evidence that a crime has been committed.

These treaties make it easier for tax authorities, such as the IRS, to obtain an American citizen's bank deposit account information. Previously, the IRS could only obtain such information if it was necessary to address a tax dispute, but that is not the standard these treaties will keep. In the past, there had to be at least an accusation of wrongdoing, an accusation of fraud, or an accusation that a taxpayer was doing something against the law. These treaties, though, would allow the IRS—the government Agency that instills terror in every citizen it contacts, the government Agency that has almost limitless power to put anybody out of business—to obtain individual bank account records if that information is ''foreseeably relevant'' or ''may be relevant.''

Think for a minute what the standard is here. So if you happen to be an American who does business overseas, if it may be relevant, the government can look in your bank account. Really, the standard is ''may be relevant'' to the Tax Code, ''may be relevant'' to a question, instead of ''is relevant'' to an active investigation concerning wrongdoing by a taxpayer. I think this is a big mistake. It is going to lead to bulk transfer of information from countries back and forth.

We live in an era where some people leave one country or another, hoping to get away from totalitarianism and hoping to get away from the snooping authorities that may well debit their account or control their account based on their political behavior. I think it is a mistake to allow the information to be transferred back and forth without any kind of standard. The standard is ''foreseeably relevant,'' or ''may be relevant.'' What kind of standard is that?

Historically, the standard required, at the very least, is an accusation of a crime. It will no longer require that. Will it require suspicion of a crime? No, it will require anything the government asks that it may be relevant to the treaty, that it may be relevant to the Tax Code, which is basically no standard at all. No American overseas will have any kind of protection of their privacy.

Some recent international court decisions have provided an idea as to what meets this new standard. According to the Swiss Federal Supreme Court, under the new standard of these new tax treaties and the ''foreseeably relevant'' standard, an information request will only be denied if the link between the requested data and the information is improbable. No consideration is necessary as to whether there is reasonable suspicion of a crime. People can go after the information, basically, based on no accusation of a crime or no suspicion of a crime. It will be a fishing expedition.

Perhaps we should thank the Swiss Federal Supreme Court for effectively telling us what we already knew, that the ''foreseeably relevant'' standard is really no standard at all.

At a time when the United States is over $22 trillion in debt and running annual trillion-dollar deficits, these treaties would empower the IRS to obtain sensitive bank account information under the weakest of pretenses. In short, the information is exchanged with no questions asked, no reasonable suspicion, and no due process in an effort to swell the coffers of the U.S. Treasury.

I am outraged by this. The Senate should be outraged, and the American people should be outraged that their liberties are so cavalierly cast aside to accommodate the IRS's perpetual search for more taxpayers to shake down.

My amendment to the treaties would end bulk exchanges of financial records by simply mandating that the United States and our treaty partners would exchange information only if an identified individual is subject to an individual investigation related to the enforcement of the Tax Code. I am not against going after people not paying their taxes, but I am against going after the 8 million Americans who live overseas and are just trying to abide by the laws and just trying to earn a living.

While those who have evaded their tax obligations must be held to account, the power to search and seize is not absolute in the United States or in any free country. A government dedicated to securing the blessings of liberty does not allow the IRS to rummage through our bank accounts hoping to find a crime.

Obtaining the deposit account information of an American should be done on an individualized basis without resorting to indiscriminate sweeps of sensitive information gathering.

I urge every Senator to stand up for the Fourth Amendment rights of all Americans and to support my amendment.

My amendment would simply do this. It would put a standard into the treaties that says that there has to be suspicion. You have to individualize an investigation. You can't push a button and search through 8 million Americans' bank records overseas. If we allow this to go without personal privacy protections, we are setting ourselves up for a dystopian nightmare, where the government looks at every transaction, every purchase, and everything we do in our lives. It is a big mistake to let this go.

There is no reason why this couldn't be corrected.

I have spoken to the countries involved, and they have assured me that there is not a problem at all with making these amendment changes to the treaties. Yet they have fallen on deaf ears.

It is a sad day for Americans taxpayers and a sad day for privacy that these tax treaties are being rushed through. I strongly object and hope other Senators will consider voting for taxpayer privacy.

The PRESIDING OFFICER. The Senator from Idaho.

Mr. RISCH. Mr. President, I ask unanimous consent that the vote take place after the completion of my remarks.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. RISCH. Mr. President and fellow Senators, today the Senate is considering four tax protocols. These treaties—and these are treaties—have been approved by substantial bipartisan majorities in the Foreign Relations Committee in multiple successive Congresses. Two of these four protocols were reported out of committee without objection during the four most recent Congresses. It is in the interest of U.S. taxpayers that these be approved, and it is time for these to be approved.

I am honored that on my watch, we have finally brought these to the floor and brought them here at this moment to actually adopt these treaties, which will be adopted when the vote is called.

Tax treaties benefit U.S. businesses and citizens in a number of ways. Tax treaties create certainty for the business community. They promote a favorable business environment by minimizing uncertainty and helping U.S. businesses grow.

In the case of Americans working and conducting business abroad, tax treaties are indispensable in that respect. Tax treaties facilitate trade and investment by preventing double taxation. They provide U.S. taxpayers and investors with greater clarity about their tax burden. They provide tools to ensure that U.S. taxpayers are treated equally and fairly overseas, allowing them to invest and compete abroad with the knowledge that they will not face discriminatory barriers.

Tax treaties strengthen the ability of U.S. businesses to explore new opportunities abroad by establishing a predictable framework for how a tax burden will be assessed. These treaties also provide tools to help resolve tax disputes between the United States and our tax treaty partners. Without these tools, U.S. investors would have limited ability to resolve these problems on their own.

It is not just businesses that benefit from tax treaties. These treaties impose reasonable limits in the amount of tax the other country can impose on a U.S. person who might live or work overseas. Tax treaties help us ensure that the United States can maintain an appropriate tax base by preventing tax fraud.

One of our colleagues has raised concerns about how the treaties deal with individual privacy and sensitive information. These treaties protect taxpayer information in a manner consistent with decades-long, established standards and practices under U.S. domestic law. These standards and practices have been upheld by the U.S. Supreme Court for more than half of a century. They have been used by administrations of both parties for decades. Changing the standard now would create confusion related to global administration of our tax laws.

I do not view this issue as an impediment or a change to how these matters have been successfully handled in the past. I ask my colleagues to oppose any amendments to these treaties. The treaties are consistent with the U.S.-modeled tax treaty and with a decades-long practice of implementing and enforcing our tax laws.

To be clear, any amendment to this resolution that materially changes the underlying provisions of these treaties will require acceptance by both our President and the foreign partner or the treaty cannot be ratified. These amendments constitute a material change to the treaties. They are damaging and would lead to, potentially, years of further delay when further delay is simply not acceptable.

These treaties had been held up for 8 years, and I am very pleased that this week we are finally moving forward in our role of advice and consent to the President on these commonsense treaties. It is time to move for the Senate to act on these treaties and a vote.

I urge my colleagues to approve them and to vote against the proposed amendments.

Mr. RISCH. Mr. President, I ask unanimous consent that Senator PAUL have up to 5 minutes of debate prior to the second tranche of votes in this series.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

VOTE ON AMENDMENT NO. 924

The PRESIDING OFFICER. Under the previous order, the question is on agreeing to the pending amendment.

Mr. GRASSLEY. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The bill clerk called the roll.

Mr. DURBIN. I announce that the Senator from Colorado (Mr. BENNET), the Senator from New York (Mrs. GILLIBRAND), the Senator from California (Ms. HARRIS), and the Senator from Vermont (Mr. SANDERS) are necessarily absent.

The PRESIDING OFFICER (Ms. MCSALLY). Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 4, nays 92, as follows:

[Rollcall Vote No. 207 Ex.]

YEAS—4

Cruz	Paul
Lee	Sullivan

NAYS—92

Alexander	Gardner	Portman
Baldwin	Graham	Reed
Barrasso	Grassley	Risch
Blackburn	Hassan	Roberts
Blumenthal	Hawley	Romney
Blunt	Heinrich	Rosen
Booker	Hirono	Rounds
Boozman	Hoeven	Rubio
Braun	Hyde-Smith	Sasse
Brown	Inhofe	Schatz
Burr	Isakson	Schumer
Cantwell	Johnson	Scott (FL)
Capito	Jones	Scott (SC)
Cardin	Kaine	Shaheen
Carper	Kennedy	Shelby
Casey	King	Sinema
Cassidy	Klobuchar	Smith
Collins	Lankford	Stabenow
Coons	Leahy	Tester
Cornyn	Manchin	Thune
Cortez Masto	Markey	Tillis
Cotton	McConnell	Toomey
Cramer	McSally	Udall
Crapo	Menendez	Van Hollen
Daines	Merkley	Warner
Duckworth	Moran	Warren
Durbin	Murkowski	Whitehouse
Enzi	Murphy	Wicker
Ernst	Murray	Wyden
Feinstein	Perdue	Young
Fischer	Peters	

NOT VOTING—4

Bennet	Harris
Gillibrand	Sanders

The amendment (No. 924) was rejected.

The PRESIDING OFFICER. The clerk will report the resolution of ratification.

The bill clerk read as follows:

Resolution of Advice and Consent of the Protocol Amending the Convention between the United States of America and the Kingdom of Spain for the Avoidance of Double Taxation and the Prevention of Fiscal Evasion with respect to Taxes on Income and its Protocol, signed at Madrid on February 22, 1990, and a related Memorandum of Understanding, signed on January 14, 2013, at Madrid, together with correcting notes dated July 23, 2013, and January 31, 2014 (the Protocol).

The PRESIDING OFFICER. The Senator from Kentucky.

AMENDMENT NO. 921

Mr. PAUL. I call up my amendment No. 921.

The PRESIDING OFFICER. The clerk will report the amendment.

The bill clerk read as follows:

The Senator from Kentucky [Mr. PAUL] proposes an amendment numbered 921 to the resolution of ratification for treaty document No. 113–4.

The amendment (No. 921) is as follows:

(Purpose: To provide a reservation to the Protocol)

In section 1, in the section heading, strike ''**DECLARATION AND CONDITIONS**'' and insert ''**DECLARATION, CONDITIONS, AND A RESERVATION**''.

In section 1, strike ''declaration of section 2 and the conditions in section 3'' and insert ''declaration of section 2, the conditions in section 3, and the reservation in section 4''.

At the end, add the following:

SEC. 4. RESERVATION.

The advice and consent of the Senate under section 1 is subject to the following reservation: In the case of the United States, the provisions of paragraph 2 of Article XV shall apply as if the Protocol had entered into force on January 1, 2019.

Mr. PAUL. I ask unanimous consent that the reading of the amendment be waived.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. PAUL. Madam President, I am offering a reservation to these treaties that would maximize the benefit for individuals and businesses that are impacted by these tax provisions.

My proposed reservation would establish only for the United States—and only for our tax purposes—an effective date of January 1, 2019. By entering into these treaties, the United States and our partners are committing to the same set of tax rules and solving the problems of double taxation that plague businesses that operate in several countries.

Senate debate on the merits of these treaties has taken many years, and there is no reason to punish American companies that paid their foreign taxes but then were double-taxed by the IRS due to the lack of a ratified treaty.

As I have said many times, I support the benefit of these treaties. I wish we added privacy protections, but I do support the benefits of avoiding double taxation.

I also support making whole those who have been double-taxed, and I think it is the right thing to do to backdate these to the beginning of the year. My proposed reservation would grant these companies and the IRS the additional benefit of having a uniform tax for 2019.

To give an example of a company in my State that would benefit, North American Stainless cannot pay dividends without being subject to double taxation. If we were to make this retroactive, we would not punish this company in my State. It is disappointing to me that the senior Senator from Kentucky led the opposition to this amendment because it would stand to greatly benefit a Kentucky company. It also would stand to greatly benefit many companies around the country if we were simply to make this retroactive.

We talked to the countries involved, and there is not one country that expressed any reservation about this. It is with great disappointment that I have to oppose the senior Senator from Kentucky, who is opposing this amendment and rallying those in the body to prevent this from being retroactive. This would in no way slow down the treaties, and it is inappropriately said by some that it would. These treaties would go through with flying colors, and the reservation would apply only to our country.

I hope those who are thinking about how to vote on this will consider voting to make these treaties start in January 1 of this year.

The PRESIDING OFFICER. The question is on agreeing to amendment No. 921.

Mr. CRAPO. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant bill clerk called the roll.

Mr. DURBIN. I announce that the Senator from Colorado (Mr. BENNET), the Senator from New York (Mrs. GILLIBRAND), the Senator from California (Ms. HARRIS), and the Senator from Vermont (Mr. SANDERS) are necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 4, nays 92, as follows:

[Rollcall Vote No. 208 Ex.]

YEAS—4

Cruz	Paul
Lee	Sullivan

NAYS—92

Alexander	Gardner	Portman
Baldwin	Graham	Reed
Barrasso	Grassley	Risch
Blackburn	Hassan	Roberts
Blumenthal	Hawley	Romney
Blunt	Heinrich	Rosen
Booker	Hirono	Rounds
Boozman	Hoeven	Rubio
Braun	Hyde-Smith	Sasse
Brown	Inhofe	Schatz
Burr	Isakson	Schumer
Cantwell	Johnson	Scott (FL)
Capito	Jones	Scott (SC)
Cardin	Kaine	Shaheen
Carper	Kennedy	Shelby
Casey	King	Sinema
Cassidy	Klobuchar	Smith
Collins	Lankford	Stabenow
Coons	Leahy	Tester
Cornyn	Manchin	Thune
Cortez Masto	Markey	Tillis
Cotton	McConnell	Toomey
Cramer	McSally	Udall
Crapo	Menendez	Van Hollen
Daines	Merkley	Warner
Duckworth	Moran	Warren
Durbin	Murkowski	Whitehouse
Enzi	Murphy	Wicker
Ernst	Murray	Wyden
Feinstein	Perdue	Young
Fischer	Peters	

NOT VOTING—4

Bennet	Harris
Gillibrand	Sanders

The amendment (No. 921) was rejected.

The PRESIDING OFFICER. The question is on agreeing to the resolution of ratification.

Mr. CORNYN. Madam President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from Colorado (Mr. BENNET), the Senator from New York (Mrs. GILLIBRAND), the Senator from California (Ms. HARRIS), and the Senator from Vermont (Mr. SANDERS) are necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 94, nays 2, as follows:

[Rollcall Vote No. 209 Ex.]

YEAS—94

Alexander	Gardner	Reed
Baldwin	Graham	Risch
Barrasso	Grassley	Roberts
Blackburn	Hassan	Romney
Blumenthal	Hawley	Rosen
Blunt	Heinrich	Rounds
Booker	Hirono	Rubio
Boozman	Hoeven	Sasse
Braun	Hyde-Smith	Schatz
Brown	Inhofe	Schumer
Burr	Isakson	Scott (FL)
Cantwell	Johnson	Scott (SC)
Capito	Jones	Shaheen
Cardin	Kaine	Shelby
Carper	Kennedy	Sinema
Casey	King	Smith
Cassidy	Klobuchar	Stabenow
Collins	Lankford	Sullivan
Coons	Leahy	Tester
Cornyn	Manchin	Thune
Cortez Masto	Markey	Tillis
Cotton	McConnell	Toomey
Cramer	McSally	Udall
Crapo	Menendez	Van Hollen
Cruz	Merkley	Warner
Daines	Moran	Warren
Duckworth	Murkowski	Whitehouse
Durbin	Murphy	Wicker
Enzi	Murray	Wyden
Ernst	Perdue	Young
Feinstein	Peters	
Fischer	Portman	

NAYS—2

Lee	Paul

NOT VOTING—4

Bennet	Harris
Gillibrand	Sanders

The PRESIDING OFFICER. On this vote, the yeas are 94, the nays are 2.

Two-thirds of the Senators voting, having voted in the affirmative, the resolution of ratification is agreed to.

The resolution of ratification was agreed to as follows:

TREATY APPROVED

The Protocol Amending the Tax Convention with Spain (Treaty Doc. 113–4)

Resolved (two-thirds of the Senators present concurring therein),

Section 1. Senate Advice and Consent Subject to a Declaration and Conditions.

The Senate advises and consents to the ratification of the Protocol Amending the Convention between the United States of America and the Kingdom of Spain for the Avoidance of Double Taxation and the Prevention of Fiscal Evasion with respect to Taxes on Income and its Protocol, signed at Madrid on February 22, 1990, and a related Memorandum of Understanding, signed on January 14, 2013, at Madrid, together with correcting notes dated July 23, 2013, and January 31, 2014 (the ''Protocol'') (Treaty Doc. 113–4), subject to the declaration of section 2 and the conditions in section 3.

Sec. 2. Declaration.

The advice and consent of the Senate under section 1 is subject to the following declaration: The Protocol is self-executing.

Sec. 3. Conditions.

The advice and consent of the Senate under section I is subject to the following conditions:

(1) Not later than 2 years after the Protocol enters into force and prior to the first arbitration conducted pursuant to the binding arbitration mechanism provided for in the Protocol, the Secretary of the Treasury shall transmit to the Committee on Finance and the Committee on Foreign Relations of the Senate and the Joint Committee on Taxation the text of the rules of procedure applicable to arbitration panels, including conflict of interest rules to be applied to members of the arbitration panel.

(2)(A) Not later than 60 days after a determination has been reached by an arbitration panel in the tenth arbitration proceeding conducted pursuant to the Protocol or any of the treaties described in subparagraph (8), the Secretary of the Treasury shall prepare and submit to the Joint Committee on Taxation and the Committee on Finance of the Senate, subject to laws relating to taxpayer confidentiality, a detailed report regarding the operation and application of the arbitration mechanism contained in the Protocol and such treaties. The report shall include the following information:

(i) For the Protocol and each such treaty, the aggregate number of cases pending on the respective dates of entry into force of the Protocol and each treaty, including the following information:

(I) The number of such cases by treaty article or articles at issue.

(II) The number of such cases that have been resolved by the competent authorities through a mutual agreement as of the date of the report.

(III) The number of such cases for which arbitration proceedings have commenced as of the date of the report.

(ii) A list of every case presented to the competent authorities after the entry into force of the Protocol and each such treaty, including the following information regarding each case:

(I) The commencement date of the case for purposes of determining when arbitration is available.

(II) Whether the adjustment triggering the case, if any, was made by the United States or the relevant treaty partner.

(III) Which treaty the case relates to.

(IV) The treaty article or articles at issue in the case.

(V) The date the case was resolved by the competent authorities through a mutual agreement, if so resolved.

(VI) The date on which an arbitration proceeding commenced, if an arbitration proceeding commenced.

(VII) The date on which a determination was reached by the arbitration panel, if a determination was reached, and an indication as to whether the panel found in favor of the United States or the relevant treaty partner.

(iii) With respect to each dispute submitted to arbitration and for which a determination was reached by the arbitration panel pursuant to the Protocol or any such treaty, the following information:

(I) In the case of a dispute submitted under the Protocol, an indication as to whether the presenter of the case to the competent authority of a Contracting State submitted a Position Paper for consideration by the arbitration panel.

(II) An indication as to whether the determination of the arbitration panel was accepted by each concerned person.

(III) The amount of income, expense, or taxation at issue in the case as determined by reference to the filings that were sufficient to set the commencement date of the case for purposes of determining when arbitration is available.

(IV) The proposed resolutions (income, expense, or taxation) submitted by each competent authority to the arbitration panel.

(B) The treaties referred to in subparagraph (A) are—

(i) the 2006 Protocol Amending the Convention between the United States of America and the Federal Republic of Germany for the Avoidance of Double Taxation and the Prevention of Fiscal Evasion with Respect to Taxes on Income and Capital and to Certain Other Taxes, done at Berlin June 1, 2006 (Treaty Doc. 109–20) (the ''2006 German Protocol'');

(ii) the Convention between the Government of the United States of America and the Government of the Kingdom of Belgium for the Avoidance of Double Taxation and the Prevention of Fiscal Evasion with Respect to Taxes on Income, and accompanying protocol, done at Brussels July 9, 1970 (the ''Belgium Convention'') (Treaty Doc. 110–3);

(iii) the Protocol Amending the Convention between the United States of America and Canada with Respect to Taxes on Income and on Capital, signed at Washington September 26, 1980 (the ''2007 Canada Protocol'') (Treaty Doc. 110–15); and

(iv) the Protocol Amending the Convention between the Government of the United States of America and the Government of the French Republic for the Avoidance of Double Taxation and the Prevention of Fiscal Evasion with Respect to Taxes on Income and Capital, signed at Paris August 31, 1994 (the ''2009 France Protocol'') (Treaty Doc. 111–4).

(3) The Secretary of the Treasury shall prepare and submit the detailed report required under paragraph (2) on March 1 of the year following the year in which the first report is submitted to the Joint Committee on Taxation and the Committee on Finance of the Senate, and on an annual basis thereafter for a period of five years. In each such report, disputes that were resolved, either by a mutual agreement between the relevant competent authorities or by a determination of an arbitration panel, and noted as such in prior reports may be omitted.

(4) The reporting requirements referred to in paragraphs (2) and (3) supersede the reporting requirements contained in paragraphs (2) and (3) of section 3 of the resolution of advice and consent to ratification of the 2009 France Protocol, approved by the Senate on December 3, 2009.

The PRESIDING OFFICER. Under the previous order, the motion to reconsider is considered made and laid upon the table, and the President will be immediately notified of the Senate's action.

The PRESIDING OFFICER. The Senator from South Dakota.

ORDER OF PROCEDURE

Mr. THUNE. Madam President, I ask unanimous consent that at 11 a.m. on Wednesday, July 17, the Senate vote on the resolutions of ratification for Treaties Calendar Nos. 2, 3, and 4 as under the previous order and that if the resolutions are agreed to, the motions to reconsider be considered made and laid upon the table and the President be immediately notified of the Senate's action. I further ask unanimous consent that following disposition of Treaties Calendar No. 4, the Senate resume consideration of the Corker nomination. Finally, I ask unanimous consent that notwithstanding rule XXII, at 2 p.m. on July 17, the Senate vote on the cloture motions on the Corker, Blanchard, and Tapia nominations and that if cloture is invoked, the confirmation votes occur at a time determined by the majority leader in consultation with the Democratic leader on Thursday, July 18.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

LEGISLATIVE SESSION

MORNING BUSINESS

Mr. THUNE. Madam President, I ask unanimous consent that the Senate proceed to legislative session for a period of morning business and that Senators be permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

150TH ANNIVERSARY OF FORT KENT, MAINE

Ms. COLLINS. Madam President, today I wish to commemorate the 150th anniversary of the town of Fort Kent, ME. The motto of our State's northernmost community, ''The Little Town That Could,'' describes a past of hard work, courage, and determination. ''The Little Town That Can'' describes Fort Kent today: a wonderful place to live, work, and raise families.

Located where the Fish River joins the St. John River, Fort Kent has a rich history. For thousands of years, the region has been the home of the Micmac and Maliseet. French explorers, led by Samuel de Champlain, first visited the area in 1604. In the early 1800s, French-speaking Canadians began settling in the area, laying the foundation for the robust Acadian culture that is so important in Maine, New Brunswick, Nova Scotia, and as far away as Louisiana.

The Acadian settlers created a vibrant community. They cleared farmland, established lumber and grain mills, schools, and churches. The namesake of the town is the Fort Kent Blockhouse, a fort named for then-Governor Edward Kent and carefully preserved today, which was built in 1839 during a long-running border dispute between the United States and British Canada. Settlement to the region increased dramatically when the ''Bloodless Aroostook War'' ended peacefully with a treaty in 1842.

Fort Kent's dedication to education began shortly after the town became established. In 1878, the Madawaska Training School was established in Fort Kent, one of the first institutions in Maine dedicated to preparing students for careers as bilingual educators. That school continues today as the University of Maine at Fort Kent, which in 2019 was named for the 14th consecutive year as one of the best

northeastern colleges by the Princeton Review. As the only institution in the United States located at the center of French culture in northern Maine, the University of Maine at Fort Kent offers opportunities for students of all heritages to study and live in a bilingual community.

Today, more than 60 percent of the town's residents speak French, and they continue to uphold the Acadian traditions of great food, music, and dance, and of close-knit families and lasting friendships. The Maine Acadian Heritage Council continues to help preserve these traditions and is working to teach the next generation about the Acadian heritage through programs like the Youth Renaissance.

The can-do spirit of Fort Kent is evident today. It is an agricultural powerhouse. and the potato industry remains an essential part of its economy. The town is home to an Olympic biathlete training center and frequently hosts world-class biathlon competitions. For 26 years, the Can-Am Crown International Sled Dog race has attracted teams from around the world. The International Muskie Fishing Derby highlights the valuable fishing grounds and the pristine environment the people of the community work to preserve. The Fort Kent Ploye Festival celebrates the pancake-like dish that is a staple of Franco-American-Canadian cuisine.

To my Franco-American friends, it is a pleasure to congratulate you on this landmark anniversary. Across the generations, you have worked hard and worked together to create a community that combines your rich heritage with the values that define our State and our Nation.

The celebration of Fort Kent's 150th anniversary is not merely about the passing of time. It is about human accomplishment. We celebrate the people who pulled together, cared for one another, and built a great community. ''The Little Town That Can'' has a fascinating past and a bright future.

ADDITIONAL STATEMENTS

REMEMBERING LARRY BURNS

● Ms. CORTEZ MASTO. Madam President, today I honor the memory of a distinguished Nevadan: retired Las Vegas Metropolitan Police Captain Larry Burns. For decades, Captain Burns served his community with distinction, earning the respect of Nevadans from all walks of life.

Captain Burns was raised in Maine and went on to attend Brigham Young University in Utah. It was in college that he met his wife Elizabeth Annie Burns. After college, he served a 2-year mission in Ecuador for the Church of Jesus Christ of Latter-day Saints. This began his life's calling to serve others. In 1980, he moved to Las Vegas and worked in construction before becoming a police officer.

Captain Burns' remarkable career included 27 years as a police officer, where he put his life on the line for Las Vegas. He became the longest serving SWAT commander in metro history, a criminal intelligence section supervisor and a nationally recognized tactical instructor. He also served as captain of the Bolden Area Command. Captain Burns was revered by his colleagues for his extraordinary work ethic, intellect, and devotion to community.

Throughout his career, Captain Burns worked hard to build meaningful relationships with Las Vegans and develop positive ties between community members and law enforcement officers. In his spare time, he could often be found speaking to children at his church about life as a police officer and the proud work of serving our community. He was also committed to the idea that people can change and dedicated himself to helping those working to turn their lives around. He always offered everything he had to support the men and women of law enforcement in making our community a safer place to live and selflessly upheld his promise to protect Nevada's families like he protected his own. From his work to rehabilitate the communities he helped protect to his fierce commitment to the department, Captain Burns was a man with unwavering integrity.

Captain Burns lived a life of many accomplishments, but I have no doubt that he will be remembered most for his commitment to family and lasting contributions to others. He adored his wife Annie and was most proud of their life together and their seven wonderful children, two grandchildren, and their extended family and friends. I know his family will continue his rich legacy of service to others.

All who had the pleasure of knowing Captain Burns will remember him as a dedicated public servant who bravely and tirelessly worked to support our community. Nevada is a safer place because of his commitment. We are very grateful for all of Captain Burns' contributions, and he will be deeply missed.●

MESSAGE FROM THE HOUSE

At 12:04 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 97. An act to amend the State Department Basic Authorities Act of 1956 to authorize rewards for thwarting wildlife trafficking linked to transnational organized crime, and for other purposes.

H.R. 277. An act to adjust collateral requirements under the Small Business Act for disaster loans, and for other purposes.

H.R. 526. An act to promote free and fair elections, political freedoms, and human rights in Cambodia, and for other purposes.

H.R. 1649. An act to amend the Small Business Act to require cyber certification for small business development center counselors, and for other purposes.

H.R. 2037. An act to encourage accountability for the murder of Washington Post columnist Jamal Khashoggi.

H.R. 2142. An act to amend the Small Business Act to require the Small Business and Agriculture Regulatory Enforcement Ombudsman to create a centralized website for compliance guides, and for other purposes.

H.R. 2331. An act to require an annual report on the cybersecurity of the Small Business Administration, and for other purposes.

H.R. 2345. An act to amend the Small Business Act to clarify the intention of Congress that the Administrator of the Small Business Administration is subject to certain requirements with respect to establishing size standards for small business concerns, and for other purposes.

H.R. 2615. An act to support the people of Central America and strengthen United States national security by addressing the root causes of migration from El Salvador, Guatemala, and Honduras.

H.R. 2744. An act to authorize the Administrator of the United States Agency for International Development to prescribe the manner in which programs of the agency are identified overseas, and for other purposes.

MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 97. An act to amend the State Department Basic Authorities Act of 1956 to authorize rewards for thwarting wildlife trafficking linked to transnational organized crime, and for other purposes; to the Committee on Foreign Relations.

H.R. 277. An act to adjust collateral requirements under the Small Business Act for disaster loans, and for other purposes; to the Committee on Small Business and Entrepreneurship.

H.R. 526. An act to promote free and fair elections, political freedoms, and human rights in Cambodia, and for other purposes; to the Committee on Foreign Relations.

H.R. 2037. An act to encourage accountability for the murder of Washington Post columnist Jamal Khashoggi; to the Committee on Foreign Relations.

H.R. 2142. An act to amend the Small Business Act to require the Small Business and Agriculture Regulatory Enforcement Ombudsman to create a centralized website for compliance guides, and for other purposes; to the Committee on Small Business and Entrepreneurship.

H.R. 2345. An act to amend the Small Business Act to clarify the intention of Congress that the Administrator of the Small Business Administration is subject to certain requirements with respect to establishing size standards for small business concerns, and for other purposes; to the Committee on Small Business and Entrepreneurship.

H.R. 2615. An act to support the people of Central America and strengthen United States national security by addressing the root causes of migration from El Salvador, Guatemala, and Honduras; to the Committee on Foreign Relations.

H.R. 2744. An act to authorize the Administrator of the United States Agency for International Development to prescribe the manner in which programs of the agency are identified overseas, and for other purposes; to the Committee on Foreign Relations.

MEASURES PLACED ON THE CALENDAR

The following bills were read the first and second times by unanimous consent, and placed on the calendar:

H.R. 1649. An act to amend the Small Business Act to require cyber certification for small business development center counselors, and for other purposes.

H.R. 2331. An act to require an annual report on the cybersecurity of the Small Business Administration, and for other purposes.

MEASURES READ THE FIRST TIME

The following bill was read the first time:

H.R. 1327. To extend authorization for the September 11th Victim Compensation Fund of 2001 through fiscal year 2092, and for other purposes.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–1924. A communication from the Secretary of Veterans Affairs, transmitting, pursuant to law, a report relative to a violation of the Antideficiency Act; to the Committee on Appropriations.

EC–1925. A communication from the Comptroller of the Currency, Department of the Treasury, transmitting, pursuant to law, the Office of the Comptroller's 2018 Annual Report on Preservation and Promotion of Minority-Owned National Banks and Federal Savings Associations; to the Committee on Banking, Housing, and Urban Affairs.

EC–1926. A communication from the Acting Secretary of the Commission, Bureau of Consumer Protection, Federal Trade Commission, transmitting, pursuant to law, the report of a rule entitled ''Military Credit Monitoring'' (16 CFR Part 609) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Banking, Housing, and Urban Affairs.

EC–1927. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Arizona; Regional Haze Progress Report'' (FRL No. 9996–38–Region 9) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Environment and Public Works.

EC–1928. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; NC; Emission Control Standards, Open Burning, and Miscellaneous Revisions'' (FRL No. 9996–43–Region 4) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Environment and Public Works.

EC–1929. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Texas; Revisions to Public Notice for Air Quality Permit Applications'' (FRL No. 9995–52–Region 6) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Environment and Public Works.

EC–1930. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; Maryland; Basic Inspection and Maintenance Program Certification State Implementation Plan for the Baltimore Nonattainment Area Under the 2008 Ozone National Ambient Air Quality Standard'' (FRL No. 9996–28–Region 3) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Environment and Public Works.

EC–1931. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of State Implementation Plans; Idaho; Regional Haze Progress Report'' (FRL No. 9996–57–Region 10) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Environment and Public Works.

EC–1932. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval of the Redesignation Request for the Washington, DC–MD-VA 2008 8-Hour Ozone National Ambient Air Quality Standard Nonattainment Area'' (FRL No. 9996–72–Region 3) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Environment and Public Works.

EC–1933. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Outer Continental Shelf Air Regulations; Consistency Update for California'' (FRL No. 9994–98–Region 9) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Environment and Public Works.

EC–1934. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Outer Continental Shelf Air Regulations; Consistency Update for Maryland'' (FRL No. 9995–39–Region 3) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Environment and Public Works.

EC–1935. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Revision of Sheboygan County, Wisconsin Nonattainment Designation for the 1997 and 2008 Ozone Standards and Clean Data Determination for the 2008 Ozone Standards'' (FRL No. 9996–18–Region 5) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Environment and Public Works.

EC–1936. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; 2018 Commercial Accountability Measure and Closure for South Atlantic Red Snapper'' (RIN0648–XG594) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1937. A communication from the Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Coastal Migratory Pelagic Resources of the Gulf of Mexico and Atlantic Region; Reopening of the Commercial Sector for King Mackerel in the Gulf of Mexico Western Zone'' (RIN0648–XG595) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1938. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fraser River Sockeye Salmon Fisheries; Inseason Orders'' (RIN0648–XG594) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1939. A communication from the Deputy Assistant Administrator for Regulatory Programs, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Pacific Halibut Fisheries; Catch Sharing Plan'' (RIN0648–B170) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1940. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Surfclam and Ocean Quahog Fisheries; 2019 Fishing Quotas for Atlantic Sufclams and Ocean Quahogs; and Suspension of Minimum Atlantic Surfclam Size Limit'' (RIN0648–XG418) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1941. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Northeastern United States; Summer Flounder Fishery; Quota Transfer'' (RIN0648–XG552) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1942. A communication from the Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Snapper-Grouper Fishery of the South Atlantic; 2018 Commercial Closure for Hogfish in the Florida Keys/East Florida Area of the South Atlantic'' (RIN0648–XG618) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1943. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Snapper-Grouper Fishery of the South Atlantic; 2017 Commercial Accountability Measure and Closure for the South Atlantic Other Jacks Complex (Lesser Amberjack, Almaco Jack, and Branded Rudderfish)'' (RIN0648–XF581) received in the Office of the President of the Senate on July 8, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1944. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Snapper-Grouper Fishery of the South Atlantic; 2018 Recreational Accountability Measure and Closure for the South Atlantic Other Jacks Complex'' (RIN0648–XG662) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1945. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Snapper-Grouper Fishery of the South Atlantic; 2018 Recreational Accountability Measure and Closure for the South Atlantic Red Grouper'' (RIN0648–XG661) received in the Office of the President of the Senate on

July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1946. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; 2018 Commercial Accountability Measure and Closure for South Atlantic Grey Triggerfish; July Through December Season'' (RIN0648–XG592) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1947. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Snapper-Grouper Resources of the South Atlantic; Vermillion Snapper Trip Limit Reduction'' (RIN0648–XG569) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1948. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; 2018 Commercial Accountability Measure and Closure for South Atlantic Grey Triggerfish; January Through June Season'' (RIN0648–XG286) received in the Office of the President of the Senate on July 8, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1949. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Reef Fish Resources of the Gulf of Mexico; Commercial Reef Fish Fishery of the Gulf of Mexico; 2019 Red Grouper Commercial Quota Retention'' (RIN0648–XG564) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1950. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod by Catcher Vessels Less Than 60 Feet (18.3 Meters) Length Overall Using Hook-and-Line or Pot Gear in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XG467) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1951. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Reef Fish Fishery of the Gulf of Mexico; 2018 Commercial Accountability Measure and Closure for Gulf of Mexico Grey Triggerfish'' (RIN0648–XG524) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1952. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod by Non-American Fisheries Act Crab Vessels Operating as Catcher Vessels Using Pot Gear in the Western Regulatory Area of the Gulf of Alaska'' (RIN0648–XG672) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1953. A communication from the Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod by Catcher Vessels Less Than 50 Feet Length Overall Using Hook-and-Line Gear in the Central Regulatory Area of the Gulf of Alaska'' (RIN0648–XG470) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1954. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Exchange of Flatfish in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XG648) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1955. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; 'Other Flatfish' in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XG491) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1956. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Yellowfin Sole for Vessels Participating in the BSAI Trawl Limited Access Fishery in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XG472) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1957. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Reallocation of Pacific Cod in the Western Regulatory Area of the Gulf of Alaska'' (RIN0648–XG676) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1958. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod by Catcher/Processors Using Trawl Gear in the Central Regulatory Area of the Gulf of Alaska'' (RIN0648–XG639) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1959. A communication from the Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Shortraker Rockfish in the Central Regulatory Area of the Gulf of Alaska'' (RIN0648–XG625) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1960. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Atka Mackerel in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XG427) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1961. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Ocean Perch in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XG116) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1962. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Several Groundfish Species in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XG572) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1963. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod by Catcher Vessels Greater Than or Equal to 60 Feet Length Overall Using Pot Gear in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XG477) received during adjournment of the Senate in the Office of the President of the Senate on July 3, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1964. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Kamchatka Flounder in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XF594) received in the Office of the President of the Senate on July 8, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1965. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone

Off Alaska; Exchange of Flatfish in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XF808) received in the Office of the President of the Senate on July 8, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1966. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Reapportionment of the 2018 Gulf of Alaska Pacific Halibut Prohibited Species Catch Limits for the Trawl Deep-Water and Shallow-Water Fishery Categories'' (RIN0648–XG309) received in the Office of the President of the Senate on July 8, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1967. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod by Pot Catcher/Processors in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XF924) received in the Office of the President of the Senate on July 8, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1968. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Atlantic Bluefin Tuna Fisheries; General Category Fishery'' (RIN0648–XG061) received in the Office of the President of the Senate on July 8, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1969. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Atlantic Bluefin Tuna Fisheries'' (RIN0648–XG327) received in the Office of the President of the Senate on July 8, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1970. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Atlantic Bluefin Tuna Fisheries'' (RIN0648–XG391) received in the Office of the President of the Senate on July 8, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1971. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Atlantic Bluefin Tuna Fisheries; General Category Fishery'' (RIN0648–XG551) received in the Office of the President of the Senate on July 8, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1972. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Atlantic Bluefin Tuna Fisheries'' (RIN0648–XG061) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1973. A communication from the Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Atlantic Bluefin Tuna Fisheries'' (RIN0648–XG624) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1974. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Atlantic Bluefin Tuna Fisheries'' (RIN0648–XG489) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1975. A communication from the Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Atlantic Bluefin Tuna Fisheries'' (RIN0648–XG651) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1976. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Commercial Blacktip Sharks in the Eastern Gulf of Mexico Sub-Region; Closure'' (RIN0648–XG647) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1977. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Northeastern United States; Summer Flounder Fishery; Quota Transfer'' (RIN0648–XG574) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1978. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Northeastern United States; Summer Flounder Fishery; Quota Transfer'' (RIN0648–XG633) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1979. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Northeastern United States; Summer Flounder Fishery; Quota Transfer'' (RIN0648–XG669) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1980. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Northeastern United States; Scup Fishery; Adjustment to the 2018 Winter II Quota'' (RIN0648–XG475) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1981. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Northeastern United States; Northeast Multispecies Fishery; Georges Bank Cod Trip Limit Adjustment for the Common Pool Fishery'' (RIN0648–XG607) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1982. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Northeastern United States; Small-Mesh Multispecies Fishery; Inseason Adjustment to the Southern Red Hake Possession Limit'' (RIN0648–XG674) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1983. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Magnuson-Stevens Act Provisions; Fisheries Off West Coast States; Pacific Coast Groundfish Fishery; 2017–2018 Biennial Specifications and Management Measures; Inseason Adjustments'' (RIN0648–BI50) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1984. A communication from the Acting Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Magnuson-Stevens Act Provisions; Fisheries Off West Coast States; Pacific Coast Groundfish Fishery; 2018 Tribal Fishery Allocations for Pacific Whiting; Reapportionment Between Tribal and Non-Tribal Sectors'' (RIN0648–XG581) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1985. A communication from the Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries Off West Coast States; Modifications of the West Coast Recreational and Commercial Salmon Fisheries; Inseason Actions No. 12 through No. 37'' (RIN0648–XG563) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1986. A communication from the Director of the Office of Sustainable Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Re-Opening of Commercial Harvest for South Atlantic Red Snapper'' (RIN0648–XG652) received in the Office of the President of the Senate on July 9, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1987. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Drawbridge Operation Regulation; Shrewsbury River, Monmouth County Highway Bridge, Sea Bright, New Jersey'' ((RIN1625–AA09) (Docket No. USCG–2017–0460)) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1988. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Anchorage Regulations; Passagassawakeag River, Belfast, ME'' ((RIN1625–AA01) (Docket No. USCG–2016–0989)) received in the Office of

the President of the Senate on July 11, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1989. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Special Local Regulation; Choptank River, Cambridge, MD'' ((RIN1625–AA08) (Docket No. USCG–2019–0107)) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1990. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Ohio River, Miles 67.5–68.5, Steubenville, OH'' ((RIN1625–AA00) (Docket No. USCG–2019–0515)) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Commerce, Science, and Transportation.

EC–1991. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Ohio River, Miles 90.7 to 91.2, Wheeling, WV'' ((RIN1625–AA00) (Docket No. USCG–2019–0421)) received in the Office of the President of the Senate on July 11, 2019; to the Committee on Commerce, Science, and Transportation.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. WICKER, from the Committee on Commerce, Science, and Transportation, with an amendment in the nature of a substitute and an amendment to the title:

S. 1694. A bill to require any Federal agency that issues licenses to conduct activities in outer space to include in the requirements for such licenses an agreement relating to the preservation and protection of the Apollo 11 landing site, and for other purposes.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. KENNEDY (for himself and Mr. MENENDEZ):

S. 2122. A bill to authorize the Administrator of the Federal Emergency Management Agency to terminate certain contracts on the basis of detrimental conduct to the National Flood Insurance Program, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. HAWLEY:

S. 2123. A bill to amend the Federal Pell Grant Program to support career training opportunities for young Americans; to the Committee on Health, Education, Labor, and Pensions.

By Mr. HAWLEY:

S. 2124. A bill to amend the Higher Education Act of 1965 to provide for institutional shared responsibility for student loan default; to the Committee on Health, Education, Labor, and Pensions.

By Mrs. FEINSTEIN:

S. 2125. A bill to protect the right of the American public under the First Amendment to the Constitution of the United States to receive news and information from disparate sources by regulating the use of automated software programs intended to impersonate or replicate human activity on social media; to the Committee on Commerce, Science, and Transportation.

By Mr. SCOTT of South Carolina (for himself and Mr. COONS):

S. 2126. A bill to require the Small Business Administration to report on assistance provided to historically Black colleges or universities, and for other purposes; to the Committee on Small Business and Entrepreneurship.

By Mr. COONS (for himself and Mr. RUBIO):

S. 2127. A bill to improve commercialization activities in the SBIR and STTR programs, and for other purposes; to the Committee on Small Business and Entrepreneurship.

By Mr. GRAHAM (for himself, Mrs. FEINSTEIN, Mr. TILLIS, Ms. HIRONO, Mr. CORNYN, Mr. DURBIN, Mrs. BLACKBURN, Mr. BLUMENTHAL, Ms. ERNST, Ms. KLOBUCHAR, and Mr. KENNEDY):

S. 2128. A bill to exempt for an additional 4-year period, from the application of the means-test presumption of abuse under chapter 7 of title 11, United States Code, qualifying members of reserve components of the Armed Forces and members of the National Guard who, after September 11, 2001, are called to active duty or to perform a homeland defense activity for not less than 90 days; to the Committee on the Judiciary.

By Ms. BALDWIN (for herself, Mr. BRAUN, and Mr. CARDIN):

S. 2129. A bill to require the Secretary of Transportation to develop best practices for incorporating resilience into emergency relief projects, and for other purposes; to the Committee on Environment and Public Works.

By Ms. CANTWELL (for herself and Mrs. CAPITO):

S. 2130. A bill to amend chapter 2205 of title 36, United States Code, to ensure equal treatment of athletes, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. COONS (for himself, Mr. SCOTT of South Carolina, Mr. GARDNER, and Ms. ROSEN):

S. 2131. A bill to amend the Small Business Act and the Small Business Investment Act of 1958 to increase access to capital for small business concerns that are manufacturers; to the Committee on Small Business and Entrepreneurship.

By Mr. LANKFORD (for himself, Ms. DUCKWORTH, and Mr. GRASSLEY):

S. 2132. A bill to promote security and provide justice for United States victims of international terrorism; to the Committee on the Judiciary.

By Mr. CORNYN (for himself, Ms. ROSEN, Mr. RUBIO, Mr. MURPHY, Mr. HOEVEN, Mrs. GILLIBRAND, Mrs. FISCHER, and Mr. LANKFORD):

S. 2133. A bill to establish an interagency working group for coordination and development of Federal research protection, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Mr. BLUNT (for himself, Ms. KLOBUCHAR, Mr. GARDNER, and Ms. CORTEZ MASTO):

S. 2134. A bill to extend the transfer of Electronic Travel Authorization System fees from the Travel Promotion Fund to the Corporation for Travel Promotion (Brand USA) through fiscal year 2027; to the Committee on Commerce, Science, and Transportation.

By Mr. SCHUMER (for himself, Mr. WYDEN, Mr. MENENDEZ, Mrs. GILLIBRAND, Mr. BOOKER, Mr. BLUMENTHAL, Mrs. MURRAY, Mr. MURPHY, Mr. MERKLEY, Mr. VAN HOLLEN, and Mr. DURBIN):

S.J. Res. 50. A joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Internal Revenue Service, Department of the Treasury, relating to ''Contributions in Exchange for State or Local Tax Credits''; to the Committee on Finance.

ADDITIONAL COSPONSORS

S. 25

At the request of Mr. CRUZ, the name of the Senator from Tennessee (Mrs. BLACKBURN) was added as a cosponsor of S. 25, a bill to reserve any amounts forfeited to the United States Government as a result of the criminal prosecution of Joaquin Archivaldo Guzman Loera (commonly known as ''El Chapo''), or of other felony convictions involving the transportation of controlled substances into the United States, for security measures along the Southern border, including the completion of a border wall.

S. 159

At the request of Mr. PAUL, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 159, a bill to implement equal protection under the 14th Amendment to the Constitution of the United States for the right to life of each born and preborn human person.

S. 178

At the request of Mr. MENENDEZ, the name of the Senator from New Jersey (Mr. BOOKER) was added as a cosponsor of S. 178, a bill to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China.

S. 203

At the request of Mr. CRAPO, the name of the Senator from Michigan (Mr. PETERS) was added as a cosponsor of S. 203, a bill to amend the Internal Revenue Code of 1986 to permanently extend the railroad track maintenance credit, and for other purposes.

S. 206

At the request of Mr. TESTER, the name of the Senator from West Virginia (Mr. MANCHIN) was added as a cosponsor of S. 206, a bill to award a Congressional Gold Medal to the female telephone operators of the Army Signal Corps, known as the ''Hello Girls''.

S. 225

At the request of Mr. ISAKSON, the name of the Senator from Tennessee (Mr. ALEXANDER) was added as a cosponsor of S. 225, a bill to provide for partnerships among State and local governments, regional entities, and the private sector to preserve, conserve, and enhance the visitor experience at nationally significant battlefields of the American Revolution, War of 1812, and Civil War, and for other purposes.

S. 278

At the request of Mr. LEE, the name of the Senator from Indiana (Mr. BRAUN) was added as a cosponsor of S. 278, a bill to require the Congressional

Budget Office to make publicly available the fiscal and mathematical models, data, and other details of computations used in cost analysis and scoring.

S. 427

At the request of Mr. MENENDEZ, the names of the Senator from South Dakota (Mr. ROUNDS), the Senator from New Hampshire (Ms. HASSAN) and the Senator from Michigan (Ms. STABENOW) were added as cosponsors of S. 427, a bill to amend the Public Health Service Act to enhance activities of the National Institutes of Health with respect to research on autism spectrum disorder and enhance programs relating to autism, and for other purposes.

S. 436

At the request of Mr. VAN HOLLEN, the name of the Senator from Wisconsin (Ms. BALDWIN) was added as a cosponsor of S. 436, a bill to amend title 49, United States Code, to require the development of public transportation operations safety risk reduction programs, and for other purposes.

S. 473

At the request of Mr. BOOKER, the names of the Senator from Illinois (Mr. DURBIN) and the Senator from New Jersey (Mr. MENENDEZ) were added as cosponsors of S. 473, a bill to amend title 5, United States Code, to include certain Federal positions within the definition of law enforcement officer for retirement purposes, and for other purposes.

S. 479

At the request of Mr. TOOMEY, the name of the Senator from Nevada (Ms. ROSEN) was added as a cosponsor of S. 479, a bill to revise section 48 of title 18, United States Code, and for other purposes.

S. 514

At the request of Mr. TESTER, the name of the Senator from Minnesota (Ms. KLOBUCHAR) was added as a cosponsor of S. 514, a bill to amend title 38, United States Code, to improve the benefits and services provided by the Department of Veterans Affairs to women veterans, and for other purposes.

S. 521

At the request of Mr. BROWN, the name of the Senator from Louisiana (Mr. KENNEDY) was added as a cosponsor of S. 521, a bill to amend title II of the Social Security Act to repeal the Government pension offset and windfall elimination provisions.

S. 546

At the request of Mr. GARDNER, the name of the Senator from Texas (Mr. CORNYN) was added as a cosponsor of S. 546, a bill to extend authorization for the September 11th Victim Compensation Fund of 2001 through fiscal year 2090, and for other purposes.

S. 595

At the request of Mr. CASSIDY, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 595, a bill to amend title XVIII of the Social Security Act to provide for the coordination of programs to prevent and treat obesity, and for other purposes.

S. 598

At the request of Mr. PETERS, the name of the Senator from Nevada (Ms. ROSEN) was added as a cosponsor of S. 598, a bill to amend title 38, United States Code, to increase certain funeral benefits for veterans, and for other purposes.

S. 633

At the request of Mr. MORAN, the name of the Senator from Wisconsin (Ms. BALDWIN) was added as a cosponsor of S. 633, a bill to award a Congressional Gold Medal to the members of the Women's Army Corps who were assigned to the 6888th Central Postal Directory Battalion, known as the ''Six Triple Eight''.

S. 640

At the request of Mr. KENNEDY, the name of the Senator from Iowa (Ms. ERNST) was added as a cosponsor of S. 640, a bill to amend title XVIII of the Social Security Act to require pharmacy-negotiated price concessions to be included in negotiated prices at the point-of-sale under part D of the Medicare program, and for other purposes.

S. 762

At the request of Mr. MORAN, the name of the Senator from Illinois (Ms. DUCKWORTH) was added as a cosponsor of S. 762, a bill to provide for funding from the Airport and Airway Trust Fund for all Federal Aviation Administration activities in the event of a Government shutdown, and for other purposes.

S. 877

At the request of Mr. BOOKER, the names of the Senator from Arkansas (Mr. BOOZMAN) and the Senator from Pennsylvania (Mr. CASEY) were added as cosponsors of S. 877, a bill to prohibit the sale of shark fins, and for other purposes.

S. 880

At the request of Ms. STABENOW, the name of the Senator from Montana (Mr. DAINES) was added as a cosponsor of S. 880, a bill to provide outreach and reporting on comprehensive Alzheimer's disease care planning services furnished under the Medicare program.

S. 947

At the request of Mr. CRAPO, the name of the Senator from Arizona (Ms. SINEMA) was added as a cosponsor of S. 947, a bill to amend the Radiation Exposure Compensation Act to improve compensation for workers involved in uranium mining, and for other purposes.

S. 962

At the request of Mr. SANDERS, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 962, a bill to provide funding for federally qualified health centers and the National Health Service Corps.

S. 980

At the request of Mr. BURR, the name of the Senator from Nevada (Ms. ROSEN) was added as a cosponsor of S. 980, a bill to amend title 38, United States Code, to improve the provision of services for homeless veterans, and for other purposes.

S. 988

At the request of Mrs. CAPITO, the name of the Senator from Colorado (Mr. GARDNER) was added as a cosponsor of S. 988, a bill to amend title XVIII of the Social Security Act to prohibit prescription drug plan sponsors and MA–PD organizations under the Medicare program from retroactively reducing payment on clean claims submitted by pharmacies.

S. 1013

At the request of Ms. STABENOW, the name of the Senator from Michigan (Mr. PETERS) was added as a cosponsor of S. 1013, a bill to amend the Public Health Service Act to reauthorize school-based health centers, and for other purposes.

S. 1025

At the request of Mr. MENENDEZ, the name of the Senator from Louisiana (Mr. KENNEDY) was added as a cosponsor of S. 1025, a bill to provide humanitarian relief to the Venezuelan people and Venezuelan migrants, to advance a constitutional and democratic solution to Venezuela's political crisis, to address Venezuela's economic reconstruction, to combat public corruption, narcotics trafficking, and money laundering, and for other purposes.

S. 1027

At the request of Ms. BALDWIN, the name of the Senator from Minnesota (Ms. KLOBUCHAR) was added as a cosponsor of S. 1027, a bill to clarify the status of the North Country, Ice Age, and New England National Scenic Trails as units of the National Park System, and for other purposes.

S. 1031

At the request of Mr. HAWLEY, the name of the Senator from Missouri (Mr. BLUNT) was added as a cosponsor of S. 1031, a bill to implement recommendations related to the safety of amphibious passenger vessels, and for other purposes.

S. 1083

At the request of Mr. BOOKER, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 1083, a bill to address the fundamental injustice, cruelty, brutality, and inhumanity of slavery in the United States and the 13 American colonies between 1619 and 1865 and to establish a commission to study and consider a national apology and proposal for reparations for the institution of slavery, its subsequent de jure and de facto racial and economic discrimination against African-Americans, and the impact of these forces on living African-Americans, to make recommendations to the Congress on appropriate remedies, and for other purposes.

S. 1102

At the request of Mr. MENENDEZ, the name of the Senator from Illinois (Mr.

DURBIN) was added as a cosponsor of S. 1102, a bill to promote security and energy partnerships in the Eastern Mediterranean, and for other purposes.

S. 1173

At the request of Mr. CASEY, the name of the Senator from Washington (Mrs. MURRAY) was added as a cosponsor of S. 1173, a bill to amend the Public Health Service Act to reauthorize the Emergency Medical Services for Children program.

S. 1243

At the request of Mr. BOOKER, the name of the Senator from California (Ms. HARRIS) was added as a cosponsor of S. 1243, a bill to provide standards for facilities at which aliens in the custody of the Department of Homeland Security are detained, and for other purposes.

S. 1273

At the request of Mr. KENNEDY, the names of the Senator from North Dakota (Mr. CRAMER) and the Senator from Delaware (Mr. COONS) were added as cosponsors of S. 1273, a bill to amend title 17, United States Code, to establish an alternative dispute resolution program for copyright small claims, and for other purposes.

S. 1438

At the request of Mrs. FEINSTEIN, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 1438, a bill to amend title 39, United States Code, to extend the authority of the United States Postal Service to issue a semipostal to raise funds for breast cancer research.

S. 1531

At the request of Mr. CASSIDY, the name of the Senator from Tennessee (Mrs. BLACKBURN) was added as a cosponsor of S. 1531, a bill to amend the Public Health Service Act to provide protections for health insurance consumers from surprise billing.

S. 1564

At the request of Mr. TILLIS, the name of the Senator from Kansas (Mr. ROBERTS) was added as a cosponsor of S. 1564, a bill to require the Securities and Exchange Commission and certain Federal agencies to carry out a study relating to accounting standards, and for other purposes.

S. 1585

At the request of Mr. CASEY, the names of the Senator from West Virginia (Mrs. CAPITO) and the Senator from New Hampshire (Mrs. SHAHEEN) were added as cosponsors of S. 1585, a bill to amend the Higher Education Act of 1965 to provide students with disabilities and their families with access to critical information needed to select the right college and succeed once enrolled.

S. 1728

At the request of Mr. MARKEY, the names of the Senator from Alaska (Mr. SULLIVAN), the Senator from Delaware (Mr. COONS) and the Senator from New Jersey (Mr. BOOKER) were added as cosponsors of S. 1728, a bill to require the United States Postal Service to sell the Alzheimer's semipostal stamp for 6 additional years.

S. 1810

At the request of Mr. TOOMEY, the name of the Senator from South Dakota (Mr. ROUNDS) was added as a cosponsor of S. 1810, a bill to amend the Richard B. Russell National School Lunch Act to allow schools that participate in the school lunch program to serve whole milk, and for other purposes.

S. 1895

At the request of Mr. ALEXANDER, the name of the Senator from Iowa (Ms. ERNST) was added as a cosponsor of S. 1895, a bill to lower health care costs.

S. 1906

At the request of Mr. BOOZMAN, the names of the Senator from Montana (Mr. DAINES), the Senator from Delaware (Mr. COONS), the Senator from Arkansas (Mr. COTTON), the Senator from West Virginia (Mrs. CAPITO) and the Senator from West Virginia (Mr. MANCHIN) were added as cosponsors of S. 1906, a bill to require the Secretary of Veterans Affairs to provide financial assistance to eligible entities to provide and coordinate the provision of suicide prevention services for veterans at risk of suicide and veteran families through the award of grants to such entities, and for other purposes.

S. 1963

At the request of Mr. BROWN, the name of the Senator from West Virginia (Mr. MANCHIN) was added as a cosponsor of S. 1963, a bill to require the purchase of domestically made flags of the United States of America for use by the Federal Government.

S. 1979

At the request of Mr. MARKEY, the name of the Senator from Nevada (Ms. ROSEN) was added as a cosponsor of S. 1979, a bill to amend title 49, United States Code, to provide for the minimum size of crews of freight trains, and for other purposes.

S. 1988

At the request of Mr. CARPER, the name of the Senator from New Mexico (Mr. HEINRICH) was added as a cosponsor of S. 1988, a bill to amend the Internal Revenue Code of 1986 to extend the energy credit for offshore wind facilities.

S. 1996

At the request of Ms. MCSALLY, the name of the Senator from Texas (Mr. CRUZ) was added as a cosponsor of S. 1996, a bill to amend the Internal Revenue Code of 1986 to clarify the application of the net operating loss deduction.

S. 2043

At the request of Mr. BLUMENTHAL, the name of the Senator from California (Ms. HARRIS) was added as a cosponsor of S. 2043, a bill to provide incentives for hate crime reporting, provide grants for State-run hate crime hotlines, and establish alternative sentencing for individuals convicted under the Matthew Shephard and James Byrd, Jr. Hate Crimes Prevention Act.

S. 2045

At the request of Mrs. SHAHEEN, the name of the Senator from Washington (Ms. CANTWELL) was added as a cosponsor of S. 2045, a bill to reauthorize the SBIR and STTR programs, and for other purposes.

S. 2059

At the request of Mr. TILLIS, the names of the Senator from Louisiana (Mr. KENNEDY) and the Senator from South Dakota (Mr. ROUNDS) were added as cosponsors of S. 2059, a bill to provide a civil remedy for individuals harmed by sanctuary jurisdiction policies, and for other purposes.

S. 2073

At the request of Mr. BOOZMAN, the name of the Senator from Minnesota (Ms. SMITH) was added as a cosponsor of S. 2073, a bill to address fees erroneously collected by Department of Veterans Affairs for housing loans, and for other purposes.

S. 2083

At the request of Mrs. FEINSTEIN, the names of the Senator from Hawaii (Ms. HIRONO), the Senator from Massachusetts (Mr. MARKEY), the Senator from Rhode Island (Mr. WHITEHOUSE), the Senator from New Hampshire (Mrs. SHAHEEN) and the Senator from Connecticut (Mr. BLUMENTHAL) were added as cosponsors of S. 2083, a bill to amend chapter 2205 of title 36, United States Code, to ensure pay equity for amateur athletes, and for other purposes.

S. RES. 194

At the request of Mr. GRASSLEY, the name of the Senator from Maine (Ms. COLLINS) was added as a cosponsor of S. Res. 194, a resolution designating July 30, 2019, as ''National Whistleblower Appreciation Day''.

S. RES. 252

At the request of Mrs. FEINSTEIN, the names of the Senator from Maryland (Mr. CARDIN), the Senator from Minnesota (Ms. SMITH), the Senator from Minnesota (Ms. KLOBUCHAR), the Senator from New Mexico (Mr. UDALL) and the Senator from Massachusetts (Mr. MARKEY) were added as cosponsors of S. Res. 252, a resolution designating September 2019 as National Democracy Month as a time to reflect on the contributions of the system of government of the United States to a more free and stable world.

S. RES. 260

At the request of Ms. COLLINS, the name of the Senator from California (Mrs. FEINSTEIN) was added as a cosponsor of S. Res. 260, a resolution recognizing the importance of sustained United States leadership to accelerating global progress against maternal and child malnutrition and supporting the commitment of the United States Agency for International Development to global nutrition through the Multi-Sectoral Nutrition Strategy.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. SCHUMER (for himself, Mr. WYDEN, Mr. MENENDEZ, Mrs. GILLIBRAND, Mr. BOOKER, Mr. BLUMENTHAL, Mrs. MURRAY, Mr. MURPHY, Mr. MERKLEY, Mr. VAN HOLLEN, and Mr. DURBIN):

S.J. Res. 50. A joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Internal Revenue Service, Department of the Treasury, relating to ''Contributions in Exchange for State or Local Tax Credits''; to the Committee on Finance.

Mr. SCHUMER. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S.J. RES. 50

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That Congress disapproves the rule submitted by the Internal Revenue Service, Department of the Treasury, relating to ''Contributions in Exchange for State or Local Tax Credits'' (84 Fed. Reg. 27513 (June 13, 2019)), and such rule shall have no force or effect.

AMENDMENTS SUBMITTED AND PROPOSED

SA 925. Mr. THUNE (for Mr. PORTMAN) proposed an amendment to the resolution S. Res. 74, marking the fifth anniversary of Ukraine's Revolution of Dignity by honoring the bravery, determination, and sacrifice of the people of Ukraine during and since the Revolution, and condemning continued Russian aggression against Ukraine.

SA 926. Mr. THUNE (for Mr. PORTMAN) proposed an amendment to the resolution S. Res. 74, supra.

TEXT OF AMENDMENTS

SA 925. Mr. THUNE (for Mr. PORTMAN) proposed an amendment to the resolution S. Res. 74, marking the fifth anniversary of Ukraine's Revolution of Dignity by honoring the bravery, determination, and sacrifice of the people of Ukraine during and since the Revolution, and condemning continued Russian aggression against Ukraine; as follows:

Strike the preamble and insert the following:

Whereas, on November 21, 2013, peaceful protests began on Independence Square (Maidan) in Kyiv against the decision by the government of then-President Viktor Yanukovych to suspend signing the Ukraine-European Union (EU) Association Agreement and instead pursue closer ties with the Russian Federation;

Whereas the Maidan protests, initially referred to as the Euromaidan, quickly drew thousands of people and broadened to become a general demonstration in support of Ukraine's integration with the European Union and against the corrupt Yanukovych regime;

Whereas, on the night of November 30, 2013, Ukrainian police forces surrounded and violently dispersed peaceful protestors on the Maidan;

Whereas the next day, thousands of Euromaidan demonstrators regrouped and resumed the protests for three months, despite facing continuing and increasing violence from the police;

Whereas, on January 16, 2014, anti-protest laws, known as the dictatorship laws, were adopted by the Government of Ukraine, which sought to restrict the actions of the Euromaidan protestors;

Whereas these laws were condemned by Euromaidan protestors as well as Western officials, including then-Secretary of State John Kerry, who called them anti-democratic;

Whereas many of these laws were repealed just 11 days after being signed into law;

Whereas, on the night of February 18, 2014, police assaulted and burned down the Trade Union Building in Kyiv, which had been used as a headquarters for the Euromaidan movement;

Whereas Yanukovych's government forces began using live ammunition against the Euromaidan movement, leading to the deaths of more than a hundred protestors who are now remembered in Ukraine as the Heavenly Hundred;

Whereas, on February 21, 2014, in the face of the ongoing Euromaidan protests demanding his resignation, then-President Viktor Yanukovych fled Kyiv, and then fled Ukraine the next day;

Whereas, on February 22, 2014, the Verkhovna Rada of Ukraine recognized that Yanukovych had ceased his functions as president, voted him from office, and scheduled early presidential elections for May 25, 2014;

Whereas, on February 25, 2014, fulfilling demands of the Maidan, Ukraine's special police force known as the Berkut was dissolved, as it had been heavily involved in the violence against the Euromaidan protestors;

Whereas the Ukrainian government's use of force against activists throughout the Euromaidan protests, including the use of live bullets, was widely condemned by Western governments, including the United States, and ultimately failed to discourage the Euromaidan movement;

Whereas, on September 1, 2017, the Ukraine–EU Association Agreement came into force after its signing by the Government of Ukraine and the EU;

Whereas, in response to Ukraine's Revolution of Dignity, the Russian Federation launched military aggression against Ukraine, illegally occupied Ukraine's Crimean Peninsula, and instigated a war in eastern Ukraine, which is still ongoing and has killed more than 10,000 Ukrainians;

Whereas the Russian Federation's attempted invasion and annexation of Crimea has been widely seen as an effort to stifle pro-democracy developments across Ukraine in 2014 in the wake of the Revolution of Dignity;

Whereas 2019 marks the 25th anniversary of the signing of the Budapest Memorandum, which committed the United States, the United Kingdom, and the Russian Federation to refrain from the threat or use of force against Ukraine's territorial integrity in exchange for Ukraine giving up its nuclear weapons;

Whereas the Russian Federation is a signatory to the 1994 Budapest Memorandum and thus committed to respect the independence, sovereignty, and territorial integrity of Ukraine;

Whereas the Government of the Russian Federation is further obligated to respect the sovereignty of Ukraine pursuant to its commitments as a signatory to the Helsinki Final Act and the Charter of the United Nations;

Whereas, on March 27, 2014, the United Nations General Assembly adopted Resolution 68/262 calling on states and international organizations not to recognize any change in Crimea's status and affirmed the commitment of the United Nations to recognize Crimea as part of Ukraine;

Whereas the United States and European Union have imposed sanctions on individuals and entities who have enabled the attempted invasion, annexation, and occupation of Crimea;

Whereas, pursuant to the Revolution of Dignity's goal of fighting corruption in Ukraine, the Verkhovna Rada of Ukraine adopted the Law On the National Anti-Corruption Bureau (NABU) of Ukraine on October 14, 2014;

Whereas, on June 26, 2018, the Law of Ukraine On the Establishment of the High Anti-Corruption Court was signed into law;

Whereas, on July 5, 2018, the Law on National Security was signed into law, which has strengthened civilian control over the Ukrainian military, increased transparency in the security sector, and more clearly delineated the powers of law enforcement agencies;

Whereas, on January 6, 2019, the Ecumenical Patriarch of Constantinople granted autocephaly to the Ukrainian Orthodox Church, thus establishing the first independent Ukrainian Orthodox Church in over 300 years;

Whereas despite requests by the Government of Ukraine, the Government of the Russian Federation has repeatedly refused to extradite former President of Ukraine Viktor Yanukovych to stand trial in Ukraine;

Whereas, on January 24, 2019, a Ukrainian court found Yanukovych guilty in absentia of high treason and complicity in conducting an aggressive war against Ukraine, and sentenced him to 13 years in prison;

Whereas, in order to help Ukraine preserve its sovereignty in the face of Russian aggression, the United States Government has provided Ukraine with over $1,000,000,000 in security assistance, including critical defensive items such as Javelin anti-tank missiles and Island-class cutters;

Whereas, in the 115th Congress, both the United States Senate and the United States House of Representatives passed resolutions commemorating the 85th anniversary of the Holodomor, the Soviet Union's manmade famine that it committed against the people of Ukraine in 1932 and 1933;

Whereas, on March 31, 2019 and April 21, 2019, Ukraine held the first and second rounds of its presidential election;

Whereas these elections were widely recognized by international observers as being free, fair, and conducted without serious, widespread irregularities;

Whereas the large turnout and civic activism related to the election highlight the ongoing support of the Ukrainian people for continued Western integration, political, economic, and judicial reform, and renewed anticorruption efforts;

Whereas Volodymyr Zelensky won Ukraine's presidential election and was inaugurated on May 20, 2019, concluding a peaceful transfer of power from former President Petro Poroshenko; and

Whereas parliamentary elections in Ukraine are scheduled for July 21, 2019: Now, therefore, be it

SA 926. Mr. THUNE (for Mr. PORTMAN) proposed an amendment to the resolution S. Res. 74, marking the fifth anniversary of Ukraine's Revolution of Dignity by honoring the bravery, determination, and sacrifice of the

people of Ukraine during and since the Revolution, and condemning continued Russian aggression against Ukraine; as follows:

Strike all after the resolving clause and insert the following: ''That the Senate—

(1) remembers the courage and resolve shown by the Ukrainian people in the Revolution of Dignity;

(2) solemnly honors the ''Heavenly Hundred'' who were killed during the Revolution of Dignity while fighting for the causes of freedom and democracy in Ukraine;

(3) applauds the progress that the Government of Ukraine has made since the Revolution of Dignity in strengthening the rule of law, aligning itself with Euro-Atlantic norms and standards, and improving military combat readiness and interoperability with the North Atlantic Treaty Organization (NATO);

(4) encourages the Government of Ukraine to continue implementing crucial reforms to fight corruption, build strong and free markets, and strengthen democracy and the rule of law;

(5) affirms the United States Government's unwavering commitment to supporting the continuing efforts of the Government of Ukraine to implement democratic and free market reforms, restoring Ukraine's territorial integrity, as well as providing additional lethal and non-lethal security assistance to strengthen Ukraine's defense capabilities on land, sea, and in the air in order to improve deterrence against Russian aggression;

(6) condemns the Russian Federation's ongoing malign activities against Ukraine and renews its call on the Government of the Russian Federation to immediately cease all activity that seeks to undermine Ukraine and destabilize the European continent;

(7) declares that nothing in this resolution shall be construed as an authorization for the use of military force;

(8) reiterates its strong condemnation of the provocative actions and unjustified use of military force by the Government of the Russian Federation in the Kerch Strait against the Ukrainian Navy on November 25, 2018, as a blatant violation of the Russian Federation's commitments under international law and the 2003 Treaty Between the Russian Federation and Ukraine on Cooperation in the Use of the Sea of Azov and the Kerch Strait;

(9) expresses its support to all Ukrainian political prisoners convicted on fabricated charges and incarcerated by Russian or Russian-controlled authorities, including the Ukrainian sailors seized in the November 25, 2018, attack near the Kerch Strait who are due treatment under the 1949 Geneva Conventions and have been illegally kept in detention in the territory of the Russian Federation, while renewing its strong call on the Kremlin to immediately release these Ukrainian citizens;

(10) affirms the Department of State's Crimea Declaration, announced on July 25, 2018, that rejects Russia's attempted annexation of Crimea and pledges to maintain this policy until Ukraine's territorial integrity is restored;

(11) believes that the Nord Stream 2 pipeline poses a major threat to European security, seeks to further undermine Ukraine's economic stability, and threatens to increase the country's vulnerability to further Russian military incursions;

(12) calls upon the United States Government, as well as its international allies and partners, to maintain a strong sanctions regime against the Russian Federation until it upholds its international obligations towards Ukraine, including the Budapest Memorandum on Security Assurances and the Minsk Agreements;

(13) congratulates the people of Ukraine on the announcement on January 6, 2019, of autocephaly for an independent Orthodox Church of Ukraine, which has marked an important milestone in Ukraine's pursuit of its own future free from Russian influence;

(14) congratulates the people of Ukraine on the successful conclusion of free and fair presidential elections in the spring of 2019, and on the inauguration of the new President of Ukraine, Volodymyr Zelensky;

(15) believes that the strengthening of Ukraine's democracy over the past five years, most visibly displayed in the conduct of the country's recent presidential election and peaceful transition of power, should serve as a positive example to other post-Soviet countries; and

(16) looks forward to the peaceful, free, and fair conduct of Ukraine's upcoming parliamentary elections.

AUTHORITY FOR COMMITTEES TO MEET

Mr. GRASSLEY. Mr. President, I have 9 requests for committees to meet during today's session of the Senate. They have the approval of the Majority and Minority leaders.

Pursuant to rule XXVI, paragraph 5(a), of the Standing Rules of the Senate, the following committees are authorized to meet during today's session of the Senate:

COMMITTEE ON ARMED SERVICES

The Committee on Armed Services is authorized to meet during the session of the Senate on Tuesday, July 16, 2019, at 9:30 a.m., to conduct a hearing on the nomination of Mark T. Esper, of Virginia, to be Secretary of Defense.

COMMITTEE ON BANKING, HOUSING, AND URBAN AFFAIRS

The Committee on Banking, Housing, and Urban Affairs is authorized to meet during the session of the Senate on Tuesday, July 16, 2019, at 10 a.m., to conduct a hearing.

COMMITTEE ON ENERGY AND NATURAL RESOURCES

The Committee on Energy and Natural Resources is authorized to meet during the session of the Senate on Tuesday, July 16, 2019, at 10 a.m., to conduct a hearing.

COMMITTEE ON FOREIGN RELATIONS

The Committee on Foreign Relations is authorized to meet during the session of the Senate on Tuesday, July 16, 2019, at 2:30 p.m., to conduct a hearing.

COMMITTEE ON HOMELAND SECURITY AND GOVERNMENTAL AFFAIRS

The Committee on Homeland Security and Governmental Affairs is authorized to meet during the session of the Senate on Tuesday, July 16, 2019, at 10 a.m., to conduct a hearing on the following nominations: Ann C. Fisher, of the District of Columbia, and Ashley Jay Elizabeth Poling, of North Carolina, both to be a Commissioner of the Postal Regulatory Commission, Catherine Bird, of Texas, to be General Counsel of the Federal Labor Relations Authority, and Rainey R. Brandt, and Shana Frost Matini, both to be an Associate Judge of the Superior Court of the District of Columbia.

COMMITTEE ON HOMELAND SECURITY AND GOVERNMENTAL AFFAIRS

The Committee on Homeland Security and Governmental Affairs is authorized to meet during the session of the Senate on Tuesday, July 16, 2019, at 2:30 p.m., to conduct a hearing.

COMMITTEE ON THE JUDICIARY

The Committee on the Judiciary is authorized to meet during the session of the Senate on Tuesday, July 16, 2019, at 2:30 p.m., to conduct a hearing.

SELECT COMMITTEE ON INTELLIGENCE

The Select Committee on Intellience is authorized to meet during the session of the Senate on Tuesday, July 16, 2019, at 2 p.m., to conduct a closed hearing.

SUBCOMMITTEE ON PUBLIC LANDS, FORESTS, AND MINING

The Subcommittee on Public Lands, Forests, and Mining of the Committee on Energy and Natural Resources is authorized to meet during the session of the Senate on Tuesday, July 16, 2019, at 2:30 p.m., to conduct a hearing.

PRIVILEGES OF THE FLOOR

Mr. PAUL. Mr. President, I ask unanimous consent that the following interns in my office be granted floor privileges for the remainder of the Congress: Ava Kester, Taylor Ecleberry, Jesse Green, Zach Pennington, Hayden Crosby, Kathleen Dudgeon, and Samuel Grise.

The PRESIDING OFFICER. Without objection, it is so ordered.

MARKING THE FIFTH ANNIVERSARY OF UKRAINE'S REVOLUTION OF DIGNITY BY HONORING THE BRAVERY, DETERMINATION, AND SACRIFICE OF THE PEOPLE OF UKRAINE DURING AND SINCE THE REVOLUTION, AND CONDEMNING CONTINUED RUSSIAN AGGRESSION AGAINST UKRAINE

Mr. THUNE. Madam President, I ask unanimous consent that the Senate proceed to the consideration of Calendar No. 103, S. Res. 74.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The senior assistant legislative clerk read as follows:

A resolution (S. Res. 74) marking the fifth anniversary of Ukraine's Revolution of Dignity by honoring the bravery, determination, and sacrifice of the people of Ukraine during and since the Revolution, and condemning continued Russian aggression against Ukraine.

There being no objection, the Senate proceeded to consider the resolution, which had been reported from the Committee on Foreign Relations without amendment and with an amendment to the preamble, as follows:

Whereas, on November 21, 2013, peaceful protests began on Independence Square (Maidan) in Kyiv against the decision by the government of then-President Viktor Yanukovych to suspend signing the Ukraine-European Union (EU) Association Agreement and instead pursue closer ties with the Russian Federation;

Whereas the Maidan protests, initially referred to as the Euromaidan, quickly drew thousands of people and broadened to become a general demonstration in support of Ukraine's integration with the European Union and against the corrupt Yanukovych regime;

Whereas, on the night of November 30, 2013, Ukrainian police forces surrounded and violently dispersed peaceful protestors on the Maidan;

Whereas the next day, thousands of Euromaidan demonstrators regrouped and resumed the protests for three months, despite facing continuing and increasing violence from the police;

Whereas, on January 16, 2014, anti-protest laws, known as the ''dictatorship laws'', were adopted by the Government of Ukraine, which sought to restrict the actions of the Euromaidan protestors;

Whereas these laws were condemned by Euromaidan protestors as well as Western officials, including then-Secretary of State John Kerry, who called them ''anti-democratic'';

Whereas many of these laws were repealed just 11 days after being signed into law;

Whereas, on the night of February 18, 2014, police assaulted and burned down the Trade Union Building in Kyiv, which had been used as a headquarters for the Euromaidan movement;

Whereas Yanukovych's government forces began using live ammunition against the Euromaidan movement, leading to the deaths of more than a hundred protestors who are now remembered in Ukraine as the ''Heavenly Hundred'';

Whereas, on February 21, 2014, in the face of the ongoing Euromaidan protests demanding his resignation, then-President Viktor Yanukovych fled Kyiv, and then fled Ukraine the next day;

Whereas, on February 22, 2014, the Verkhovna Rada of Ukraine recognized that Yanukovych had ceased his functions as president, voted him from office, and scheduled early presidential elections for May 25, 2014;

Whereas, on February 25, 2014, fulfilling demands of the Maidan, Ukraine's special police force known as the Berkut was dissolved, as it had been heavily involved in the violence against the Euromaidan protestors;

Whereas the Ukrainian government's use of force against activists throughout the Euromaidan protests, including the use of live bullets, was widely condemned by Western governments, including the United States, and ultimately failed to discourage the Euromaidan movement;

Whereas, on September 1, 2017, the Ukraine–EU Association Agreement came into force after its signing by the Government of Ukraine and the EU;

Whereas, in response to Ukraine's Revolution of Dignity, the Russian Federation launched military aggression against Ukraine, illegally occupied Ukraine's Crimean Peninsula, and instigated a war in eastern Ukraine, which is still ongoing and has killed more than 10,000 Ukrainians;

Whereas the Russian Federation's attempted invasion and annexation of Crimea has been widely seen as an effort to stifle pro-democracy developments across Ukraine in 2014 in the wake of the Revolution of Dignity;

Whereas 2019 marks the 25th anniversary of the signing of the Budapest Memorandum, which committed the United States, the United Kingdom, and the Russian Federation to refrain from the threat or use of force against Ukraine's territorial integrity in exchange for Ukraine giving up its nuclear weapons;

Whereas the Russian Federation is a signatory to the 1994 Budapest Memorandum and thus committed to respect the independence, sovereignty, and territorial integrity of Ukraine;

Whereas the Government of the Russian Federation is further obligated to respect the sovereignty of Ukraine pursuant to its commitments as a signatory to the Helsinki Final Act and the Charter of the United Nations;

Whereas, on March 27, 2014, the United Nations General Assembly adopted Resolution 68/262 calling on states and international organizations not to recognize any change in Crimea's status and affirmed the commitment of the United Nations to recognize Crimea as part of Ukraine;

Whereas the United States and European Union have imposed sanctions on individuals and entities who have enabled the attempted invasion, annexation, and occupation of Crimea;

Whereas, pursuant to the Revolution of Dignity's goal of fighting corruption in Ukraine, the Verkhovna Rada of Ukraine adopted the Law On the National Anti-Corruption Bureau (NABU) of Ukraine on October 14, 2014;

Whereas, on June 26, 2018, the Law of Ukraine On the Establishment of the High Anti-Corruption Court was signed into law;

Whereas, on July 5, 2018, the Law on National Security was signed into law, which has strengthened civilian control over the Ukrainian military, increased transparency in the security sector, and more clearly delineated the powers of law enforcement agencies;

Whereas, on January 6, 2019, the Ecumenical Patriarch of Constantinople granted autocephaly to the Ukrainian Orthodox Church, thus establishing the first independent Ukrainian Orthodox Church in over 300 years;

Whereas despite requests by the Government of Ukraine, the Government of the Russian Federation has repeatedly refused to extradite former President of Ukraine Viktor Yanukovych to stand trial in Ukraine;

Whereas, on January 24, 2019, a Ukrainian court found Yanukovych guilty in absentia of high treason and complicity in conducting an aggressive war against Ukraine, and sentenced him to 13 years in prison;

Whereas, in order to help Ukraine preserve its sovereignty in the face of Russian aggression, the United States Government has provided Ukraine with over $1,000,000,000 in security assistance, including critical defensive items such as Javelin anti-tank missiles and Island-class cutters; and

Whereas, in the 115th Congress, both the United States Senate and the United States House of Representatives passed resolutions commemorating the 85th anniversary of the Holodomor, the Soviet Union's manmade famine that it committed against the people of Ukraine in 1932 and 1933: Now, therefore, be it

Resolved, That the Senate—

(1) remembers the courage and resolve shown by the Ukrainian people in the Revolution of Dignity;

(2) solemnly honors the ''Heavenly Hundred'' who were killed during the Revolution of Dignity while fighting for the causes of freedom and democracy in Ukraine;

(3) applauds the progress that the Government of Ukraine has made since the Revolution of Dignity in strengthening the rule of law, aligning itself with Euro-Atlantic norms and standards, and improving military combat readiness and interoperability with the North Atlantic Treaty Organization (NATO);

(4) encourages the Government of Ukraine to continue implementing crucial reforms to fight corruption, build strong and free markets, and strengthen democracy and the rule of law;

(5) affirms the United States Government's unwavering commitment to supporting the continuing efforts of the Government of Ukraine to implement democratic and free market reforms, restoring Ukraine's territorial integrity, as well as providing additional lethal and non-lethal security assistance to strengthen Ukraine's defense capabilities on land, sea, and in the air in order to improve deterrence against Russian aggression;

(6) condemns the Russian Federation's ongoing malign activities against Ukraine and renews its call on the Government of the Russian Federation to immediately cease all activity that seeks to undermine Ukraine and destabilize the European continent;

(7) reiterates its strong condemnation of the provocative actions and unjustified use of military force by the Government of the Russian Federation in the Kerch Strait against the Ukrainian Navy on November 25, 2018, as a blatant violation of the Russian Federation's commitments under international law and the 2003 Treaty Between the Russian Federation and Ukraine on Cooperation in the Use of the Sea of Azov and the Kerch Strait;

(8) expresses its support to all Ukrainian political prisoners convicted on fabricated charges and incarcerated by Russian or Russian-controlled authorities, including the Ukrainian sailors seized in the November 25, 2018, attack near the Kerch Strait who are due treatment under the 1949 Geneva Conventions and have been illegally kept in detention in the territory of the Russian Federation, while renewing its strong call on the Kremlin to immediately release these Ukrainian citizens;

(9) affirms the Department of State's Crimea Declaration, announced on July 25, 2018, that rejects Russia's attempted annexation of Crimea and pledges to maintain this policy until Ukraine's territorial integrity is restored;

(10) believes that the Nord Stream 2 pipeline poses a major threat to European security, seeks to further undermine Ukraine's economic stability, and threatens to increase the country's vulnerability to further Russian military incursions;

(11) calls upon the United States Government, as well as its international allies and partners, to maintain a strong sanctions regime against the Russian Federation until it upholds its international obligations towards Ukraine, including the Budapest Memorandum on Security Assurances and the Minsk Agreements; and

(12) congratulates the people of Ukraine on the announcement on January 6, 2019, of autocephaly for an independent Orthodox Church of Ukraine, which has marked an important milestone in Ukraine's pursuit of its own future free from Russian influence.

Mr. THUNE. Madam President, I ask unanimous consent that the Portman amendment to the resolution at the desk be considered and agreed to.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment (No. 926) in the nature of a substitute was agreed to as follows:

(Purpose: In the nature of a substitute)

Strike all after the resolving clause and insert the following: ''That the Senate—

(1) remembers the courage and resolve shown by the Ukrainian people in the Revolution of Dignity;

(2) solemnly honors the ''Heavenly Hundred'' who were killed during the Revolution of Dignity while fighting for the causes of freedom and democracy in Ukraine;

(3) applauds the progress that the Government of Ukraine has made since the Revolution of Dignity in strengthening the rule of law, aligning itself with Euro-Atlantic norms and standards, and improving military combat readiness and interoperability with the North Atlantic Treaty Organization (NATO);

(4) encourages the Government of Ukraine to continue implementing crucial reforms to

fight corruption, build strong and free markets, and strengthen democracy and the rule of law;

(5) affirms the United States Government's unwavering commitment to supporting the continuing efforts of the Government of Ukraine to implement democratic and free market reforms, restoring Ukraine's territorial integrity, as well as providing additional lethal and non-lethal security assistance to strengthen Ukraine's defense capabilities on land, sea, and in the air in order to improve deterrence against Russian aggression;

(6) condemns the Russian Federation's ongoing malign activities against Ukraine and renews its call on the Government of the Russian Federation to immediately cease all activity that seeks to undermine Ukraine and destabilize the European continent;

(7) declares that nothing in this resolution shall be construed as an authorization for the use of military force;

(8) reiterates its strong condemnation of the provocative actions and unjustified use of military force by the Government of the Russian Federation in the Kerch Strait against the Ukrainian Navy on November 25, 2018, as a blatant violation of the Russian Federation's commitments under international law and the 2003 Treaty Between the Russian Federation and Ukraine on Cooperation in the Use of the Sea of Azov and the Kerch Strait;

(9) expresses its support to all Ukrainian political prisoners convicted on fabricated charges and incarcerated by Russian or Russian-controlled authorities, including the Ukrainian sailors seized in the November 25, 2018, attack near the Kerch Strait who are due treatment under the 1949 Geneva Conventions and have been illegally kept in detention in the territory of the Russian Federation, while renewing its strong call on the Kremlin to immediately release these Ukrainian citizens;

(10) affirms the Department of State's Crimea Declaration, announced on July 25, 2018, that rejects Russia's attempted annexation of Crimea and pledges to maintain this policy until Ukraine's territorial integrity is restored;

(11) believes that the Nord Stream 2 pipeline poses a major threat to European security, seeks to further undermine Ukraine's economic stability, and threatens to increase the country's vulnerability to further Russian military incursions;

(12) calls upon the United States Government, as well as its international allies and partners, to maintain a strong sanctions regime against the Russian Federation until it upholds its international obligations towards Ukraine, including the Budapest Memorandum on Security Assurances and the Minsk Agreements;

(13) congratulates the people of Ukraine on the announcement on January 6, 2019, of autocephaly for an independent Orthodox Church of Ukraine, which has marked an important milestone in Ukraine's pursuit of its own future free from Russian influence;

(14) congratulates the people of Ukraine on the successful conclusion of free and fair presidential elections in the spring of 2019, and on the inauguration of the new President of Ukraine, Volodymyr Zelensky;

(15) believes that the strengthening of Ukraine's democracy over the past five years, most visibly displayed in the conduct of the country's recent presidential election and peaceful transition of power, should serve as a positive example to other post-Soviet countries; and

(16) looks forward to the peaceful, free, and fair conduct of Ukraine's upcoming parliamentary elections.

Mr. THUNE. I know of no further debate on the resolution, as amended.

The PRESIDING OFFICER. Is there further debate?

Hearing none, the question is on passage of the resolution.

The resolution, as amended, was agreed to.

Mr. THUNE. Madam President, I further ask unanimous consent that the committee-reported amendment to the preamble be withdrawn; that the Portman amendment to the preamble at the desk be considered and agreed to; that the preamble, as amended, be agreed to; and that the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendment to the preamble was withdrawn.

The amendment (No. 925) was agreed to as follows:

(Purpose: To amend the preamble)

Strike the preamble and insert the following:

Whereas, on November 21, 2013, peaceful protests began on Independence Square (Maidan) in Kyiv against the decision by the government of then-President Viktor Yanukovych to suspend signing the Ukraine-European Union (EU) Association Agreement and instead pursue closer ties with the Russian Federation;

Whereas the Maidan protests, initially referred to as the Euromaidan, quickly drew thousands of people and broadened to become a general demonstration in support of Ukraine's integration with the European Union and against the corrupt Yanukovych regime;

Whereas, on the night of November 30, 2013, Ukrainian police forces surrounded and violently dispersed peaceful protestors on the Maidan;

Whereas the next day, thousands of Euromaidan demonstrators regrouped and resumed the protests for three months, despite facing continuing and increasing violence from the police;

Whereas, on January 16, 2014, anti-protest laws, known as the dictatorship laws, were adopted by the Government of Ukraine, which sought to restrict the actions of the Euromaidan protestors;

Whereas these laws were condemned by Euromaidan protestors as well as Western officials, including then-Secretary of State John Kerry, who called them anti-democratic;

Whereas many of these laws were repealed just 11 days after being signed into law;

Whereas, on the night of February 18, 2014, police assaulted and burned down the Trade Union Building in Kyiv, which had been used as a headquarters for the Euromaidan movement;

Whereas Yanukovych's government forces began using live ammunition against the Euromaidan movement, leading to the deaths of more than a hundred protestors who are now remembered in Ukraine as the Heavenly Hundred;

Whereas, on February 21, 2014, in the face of the ongoing Euromaidan protests demanding his resignation, then-President Viktor Yanukovych fled Kyiv, and then fled Ukraine the next day;

Whereas, on February 22, 2014, the Verkhovna Rada of Ukraine recognized that Yanukovych had ceased his functions as president, voted him from office, and scheduled early presidential elections for May 25, 2014;

Whereas, on February 25, 2014, fulfilling demands of the Maidan, Ukraine's special police force known as the Berkut was dissolved, as it had been heavily involved in the violence against the Euromaidan protestors;

Whereas the Ukrainian government's use of force against activists throughout the Euromaidan protests, including the use of live bullets, was widely condemned by Western governments, including the United States, and ultimately failed to discourage the Euromaidan movement;

Whereas, on September 1, 2017, the Ukraine–EU Association Agreement came into force after its signing by the Government of Ukraine and the EU;

Whereas, in response to Ukraine's Revolution of Dignity, the Russian Federation launched military aggression against Ukraine, illegally occupied Ukraine's Crimean Peninsula, and instigated a war in eastern Ukraine, which is still ongoing and has killed more than 10,000 Ukrainians;

Whereas the Russian Federation's attempted invasion and annexation of Crimea has been widely seen as an effort to stifle pro-democracy developments across Ukraine in 2014 in the wake of the Revolution of Dignity;

Whereas 2019 marks the 25th anniversary of the signing of the Budapest Memorandum, which committed the United States, the United Kingdom, and the Russian Federation to refrain from the threat or use of force against Ukraine's territorial integrity in exchange for Ukraine giving up its nuclear weapons;

Whereas the Russian Federation is a signatory to the 1994 Budapest Memorandum and thus committed to respect the independence, sovereignty, and territorial integrity of Ukraine;

Whereas the Government of the Russian Federation is further obligated to respect the sovereignty of Ukraine pursuant to its commitments as a signatory to the Helsinki Final Act and the Charter of the United Nations;

Whereas, on March 27, 2014, the United Nations General Assembly adopted Resolution 68/262 calling on states and international organizations not to recognize any change in Crimea's status and affirmed the commitment of the United Nations to recognize Crimea as part of Ukraine;

Whereas the United States and European Union have imposed sanctions on individuals and entities who have enabled the attempted invasion, annexation, and occupation of Crimea;

Whereas, pursuant to the Revolution of Dignity's goal of fighting corruption in Ukraine, the Verkhovna Rada of Ukraine adopted the Law On the National Anti-Corruption Bureau (NABU) of Ukraine on October 14, 2014;

Whereas, on June 26, 2018, the Law of Ukraine On the Establishment of the High Anti-Corruption Court was signed into law;

Whereas, on July 5, 2018, the Law on National Security was signed into law, which has strengthened civilian control over the Ukrainian military, increased transparency in the security sector, and more clearly delineated the powers of law enforcement agencies;

Whereas, on January 6, 2019, the Ecumenical Patriarch of Constantinople granted autocephaly to the Ukrainian Orthodox Church, thus establishing the first independent Ukrainian Orthodox Church in over 300 years;

Whereas despite requests by the Government of Ukraine, the Government of the Russian Federation has repeatedly refused to extradite former President of Ukraine Viktor Yanukovych to stand trial in Ukraine;

Whereas, on January 24, 2019, a Ukrainian court found Yanukovych guilty in absentia of high treason and complicity in conducting an aggressive war against Ukraine, and sentenced him to 13 years in prison;

Whereas, in order to help Ukraine preserve its sovereignty in the face of Russian aggression, the United States Government has provided Ukraine with over $1,000,000,000 in security assistance, including critical defensive items such as Javelin anti-tank missiles and Island-class cutters;

Whereas, in the 115th Congress, both the United States Senate and the United States House of Representatives passed resolutions commemorating the 85th anniversary of the Holodomor, the Soviet Union's manmade famine that it committed against the people of Ukraine in 1932 and 1933;

Whereas, on March 31, 2019 and April 21, 2019, Ukraine held the first and second rounds of its presidential election;

Whereas these elections were widely recognized by international observers as being free, fair, and conducted without serious, widespread irregularities;

Whereas the large turnout and civic activism related to the election highlight the ongoing support of the Ukrainian people for continued Western integration, political, economic, and judicial reform, and renewed anticorruption efforts;

Whereas Volodymyr Zelensky won Ukraine's presidential election and was inaugurated on May 20, 2019, concluding a peaceful transfer of power from former President Petro Poroshenko; and

Whereas parliamentary elections in Ukraine are scheduled for July 21, 2019: Now, therefore, be it

The preamble, as amended, was agreed to.

The resolution (S. Res. 74), as amended, and its preamble, as amended, was agreed to as follows:

S. RES. 74

Whereas, on November 21, 2013, peaceful protests began on Independence Square (Maidan) in Kyiv against the decision by the government of then-President Viktor Yanukovych to suspend signing the Ukraine-European Union (EU) Association Agreement and instead pursue closer ties with the Russian Federation;

Whereas the Maidan protests, initially referred to as the Euromaidan, quickly drew thousands of people and broadened to become a general demonstration in support of Ukraine's integration with the European Union and against the corrupt Yanukovych regime;

Whereas, on the night of November 30, 2013, Ukrainian police forces surrounded and violently dispersed peaceful protestors on the Maidan;

Whereas the next day, thousands of Euromaidan demonstrators regrouped and resumed the protests for three months, despite facing continuing and increasing violence from the police;

Whereas, on January 16, 2014, anti-protest laws, known as the dictatorship laws, were adopted by the Government of Ukraine, which sought to restrict the actions of the Euromaidan protestors;

Whereas these laws were condemned by Euromaidan protestors as well as Western officials, including then-Secretary of State John Kerry, who called them anti-democratic;

Whereas many of these laws were repealed just 11 days after being signed into law;

Whereas, on the night of February 18, 2014, police assaulted and burned down the Trade Union Building in Kyiv, which had been used as a headquarters for the Euromaidan movement;

Whereas Yanukovych's government forces began using live ammunition against the Euromaidan movement, leading to the deaths of more than a hundred protestors who are now remembered in Ukraine as the Heavenly Hundred;

Whereas, on February 21, 2014, in the face of the ongoing Euromaidan protests demanding his resignation, then-President Viktor Yanukovych fled Kyiv, and then fled Ukraine the next day;

Whereas, on February 22, 2014, the Verkhovna Rada of Ukraine recognized that Yanukovych had ceased his functions as president, voted him from office, and scheduled early presidential elections for May 25, 2014;

Whereas, on February 25, 2014, fulfilling demands of the Maidan, Ukraine's special police force known as the Berkut was dissolved, as it had been heavily involved in the violence against the Euromaidan protestors;

Whereas the Ukrainian government's use of force against activists throughout the Euromaidan protests, including the use of live bullets, was widely condemned by Western governments, including the United States, and ultimately failed to discourage the Euromaidan movement;

Whereas, on September 1, 2017, the Ukraine-EU Association Agreement came into force after its signing by the Government of Ukraine and the EU;

Whereas, in response to Ukraine's Revolution of Dignity, the Russian Federation launched military aggression against Ukraine, illegally occupied Ukraine's Crimean Peninsula, and instigated a war in eastern Ukraine, which is still ongoing and has killed more than 10,000 Ukrainians;

Whereas the Russian Federation's attempted invasion and annexation of Crimea has been widely seen as an effort to stifle pro-democracy developments across Ukraine in 2014 in the wake of the Revolution of Dignity;

Whereas 2019 marks the 25th anniversary of the signing of the Budapest Memorandum, which committed the United States, the United Kingdom, and the Russian Federation to refrain from the threat or use of force against Ukraine's territorial integrity in exchange for Ukraine giving up its nuclear weapons;

Whereas the Russian Federation is a signatory to the 1994 Budapest Memorandum and thus committed to respect the independence, sovereignty, and territorial integrity of Ukraine;

Whereas the Government of the Russian Federation is further obligated to respect the sovereignty of Ukraine pursuant to its commitments as a signatory to the Helsinki Final Act and the Charter of the United Nations;

Whereas, on March 27, 2014, the United Nations General Assembly adopted Resolution 68/262 calling on states and international organizations not to recognize any change in Crimea's status and affirmed the commitment of the United Nations to recognize Crimea as part of Ukraine;

Whereas the United States and European Union have imposed sanctions on individuals and entities who have enabled the attempted invasion, annexation, and occupation of Crimea;

Whereas, pursuant to the Revolution of Dignity's goal of fighting corruption in Ukraine, the Verkhovna Rada of Ukraine adopted the Law On the National Anti-Corruption Bureau (NABU) of Ukraine on October 14, 2014;

Whereas, on June 26, 2018, the Law of Ukraine On the Establishment of the High Anti-Corruption Court was signed into law;

Whereas, on July 5, 2018, the Law on National Security was signed into law, which has strengthened civilian control over the Ukrainian military, increased transparency in the security sector, and more clearly delineated the powers of law enforcement agencies;

Whereas, on January 6, 2019, the Ecumenical Patriarch of Constantinople granted autocephaly to the Ukrainian Orthodox Church, thus establishing the first independent Ukrainian Orthodox Church in over 300 years;

Whereas despite requests by the Government of Ukraine, the Government of the Russian Federation has repeatedly refused to extradite former President of Ukraine Viktor Yanukovych to stand trial in Ukraine;

Whereas, on January 24, 2019, a Ukrainian court found Yanukovych guilty in absentia of high treason and complicity in conducting an aggressive war against Ukraine, and sentenced him to 13 years in prison;

Whereas, in order to help Ukraine preserve its sovereignty in the face of Russian aggression, the United States Government has provided Ukraine with over $1,000,000,000 in security assistance, including critical defensive items such as Javelin anti-tank missiles and Island-class cutters;

Whereas, in the 115th Congress, both the United States Senate and the United States House of Representatives passed resolutions commemorating the 85th anniversary of the Holodomor, the Soviet Union's manmade famine that it committed against the people of Ukraine in 1932 and 1933;

Whereas, on March 31, 2019 and April 21, 2019, Ukraine held the first and second rounds of its presidential election;

Whereas these elections were widely recognized by international observers as being free, fair, and conducted without serious, widespread irregularities;

Whereas the large turnout and civic activism related to the election highlight the ongoing support of the Ukrainian people for continued Western integration, political, economic, and judicial reform, and renewed anticorruption efforts;

Whereas Volodymyr Zelensky won Ukraine's presidential election and was inaugurated on May 20, 2019, concluding a peaceful transfer of power from former President Petro Poroshenko; and

Whereas parliamentary elections in Ukraine are scheduled for July 21, 2019: Now, therefore, be it

Resolved, That the Senate—

(1) remembers the courage and resolve shown by the Ukrainian people in the Revolution of Dignity;

(2) solemnly honors the ''Heavenly Hundred'' who were killed during the Revolution of Dignity while fighting for the causes of freedom and democracy in Ukraine;

(3) applauds the progress that the Government of Ukraine has made since the Revolution of Dignity in strengthening the rule of law, aligning itself with Euro-Atlantic norms and standards, and improving military combat readiness and interoperability with the North Atlantic Treaty Organization (NATO);

(4) encourages the Government of Ukraine to continue implementing crucial reforms to fight corruption, build strong and free markets, and strengthen democracy and the rule of law;

(5) affirms the United States Government's unwavering commitment to supporting the continuing efforts of the Government of Ukraine to implement democratic and free market reforms, restoring Ukraine's territorial integrity, as well as providing additional lethal and non-lethal security assistance to strengthen Ukraine's defense capabilities on land, sea, and in the air in order

to improve deterrence against Russian aggression;

(6) condemns the Russian Federation's ongoing malign activities against Ukraine and renews its call on the Government of the Russian Federation to immediately cease all activity that seeks to undermine Ukraine and destabilize the European continent;

(7) declares that nothing in this resolution shall be construed as an authorization for the use of military force;

(8) reiterates its strong condemnation of the provocative actions and unjustified use of military force by the Government of the Russian Federation in the Kerch Strait against the Ukrainian Navy on November 25, 2018, as a blatant violation of the Russian Federation's commitments under international law and the 2003 Treaty Between the Russian Federation and Ukraine on Cooperation in the Use of the Sea of Azov and the Kerch Strait;

(9) expresses its support to all Ukrainian political prisoners convicted on fabricated charges and incarcerated by Russian or Russian-controlled authorities, including the Ukrainian sailors seized in the November 25, 2018, attack near the Kerch Strait who are due treatment under the 1949 Geneva Conventions and have been illegally kept in detention in the territory of the Russian Federation, while renewing its strong call on the Kremlin to immediately release these Ukrainian citizens;

(10) affirms the Department of State's Crimea Declaration, announced on July 25, 2018, that rejects Russia's attempted annexation of Crimea and pledges to maintain this policy until Ukraine's territorial integrity is restored;

(11) believes that the Nord Stream 2 pipeline poses a major threat to European security, seeks to further undermine Ukraine's economic stability, and threatens to increase the country's vulnerability to further Russian military incursions;

(12) calls upon the United States Government, as well as its international allies and partners, to maintain a strong sanctions regime against the Russian Federation until it upholds its international obligations towards Ukraine, including the Budapest Memorandum on Security Assurances and the Minsk Agreements;

(13) congratulates the people of Ukraine on the announcement on January 6, 2019, of autocephaly for an independent Orthodox Church of Ukraine, which has marked an important milestone in Ukraine's pursuit of its own future free from Russian influence;

(14) congratulates the people of Ukraine on the successful conclusion of free and fair presidential elections in the spring of 2019, and on the inauguration of the new President of Ukraine, Volodymyr Zelensky;

(15) believes that the strengthening of Ukraine's democracy over the past five years, most visibly displayed in the conduct of the country's recent presidential election and peaceful transition of power, should serve as a positive example to other post-Soviet countries; and

(16) looks forward to the peaceful, free, and fair conduct of Ukraine's upcoming parliamentary elections.

PAYMENT INTEGRITY INFORMATION ACT OF 2019

Mr. THUNE. Madam President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 76, S. 375.

The PRESIDING OFFICER. The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (S. 375) to improve efforts to identify and reduce Governmentwide improper payments, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. THUNE. Madam President, I ask unanimous consent that the bill be considered read a third time and passed and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 375

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Payment Integrity Information Act of 2019''.

SEC. 2. IMPROPER PAYMENTS.

(a) IN GENERAL.—Chapter 33 of title 31, United States Code, is amended by adding at the end the following:

''Subchapter IV—Improper Payments

''§ 3351. Definitions

''In this subchapter:

''(1) ANNUAL FINANCIAL STATEMENT.—The term 'annual financial statement' means the annual financial statement required under section 3515 of this title or similar provision of law.

''(2) COMPLIANCE.—The term 'compliance' means that an executive agency—

''(A) has—

''(i) published improper payments information with the annual financial statement of the executive agency for the most recent fiscal year; and

''(ii) posted on the website of the executive agency that statement and any accompanying materials required under guidance of the Office of Management and Budget;

''(B) if required, has conducted a program specific risk assessment for each program or activity that conforms with the requirements under section 3352(a);

''(C) if required, publishes improper payments estimates for all programs and activities identified under section 3352(a) in the accompanying materials to the annual financial statement;

''(D) publishes programmatic corrective action plans prepared under section 3352(d) that the executive agency may have in the accompanying materials to the annual financial statement;

''(E) publishes improper payments reduction targets established under section 3352(d) that the executive agency may have in the accompanying materials to the annual financial statement for each program or activity assessed to be at risk, and has demonstrated improvements and developed a plan to meet the reduction targets; and

''(F) has reported an improper payment rate of less than 10 percent for each program and activity for which an estimate was published under section 3352(c).

''(3) DO NOT PAY INITIATIVE.—The term 'Do Not Pay Initiative' means the initiative described in section 3354(b).

''(4) IMPROPER PAYMENT.—The term 'improper payment'—

''(A) means any payment that should not have been made or that was made in an incorrect amount, including an overpayment or underpayment, under a statutory, contractual, administrative, or other legally applicable requirement; and

''(B) includes—

''(i) any payment to an ineligible recipient;

''(ii) any payment for an ineligible good or service;

''(iii) any duplicate payment;

''(iv) any payment for a good or service not received, except for those payments where authorized by law; and

''(v) any payment that does not account for credit for applicable discounts.

''(5) PAYMENT.—The term 'payment' means any transfer or commitment for future transfer of Federal funds such as cash, securities, loans, loan guarantees, and insurance subsidies to any non-Federal person or entity or a Federal employee, that is made by a Federal agency, a Federal contractor, a Federal grantee, or a governmental or other organization administering a Federal program or activity.

''(6) PAYMENT FOR AN INELIGIBLE GOOD OR SERVICE.—The term 'payment for an ineligible good or service' includes a payment for any good or service that is rejected under any provision of any contract, grant, lease, cooperative agreement, or other funding mechanism.

''(7) RECOVERY AUDIT.—The term 'recovery audit' means a recovery audit described in section 3352(i).

''(8) STATE.—The term 'State' means each State of the United States, the District of Columbia, each territory or possession of the United States, and each Federally recognized Indian tribe.

''§ 3352. Estimates of improper payments and reports on actions to reduce improper payments

''(a) IDENTIFICATION OF SUSCEPTIBLE PROGRAMS AND ACTIVITIES.—

''(1) IN GENERAL.—The head of each executive agency shall, in accordance with guidance prescribed by the Director of the Office of Management and Budget—

''(A) periodically review all programs and activities that the head of the executive agency administers; and

''(B) identify all programs and activities with outlays exceeding the statutory threshold dollar amount described in paragraph (3)(A)(i) that may be susceptible to significant improper payments.

''(2) FREQUENCY.—A review under paragraph (1) shall be performed for each program and activity that the head of an executive agency administers not less frequently than once every 3 fiscal years.

''(3) RISK ASSESSMENTS.—

''(A) DEFINITION OF SIGNIFICANT.—In this paragraph, the term 'significant' means that, in the preceding fiscal year, the sum of a program or activity's improper payments and payments whose propriety cannot be determined by the executive agency due to lacking or insufficient documentation may have exceeded—

''(i) $10,000,000 of all reported program or activity payments of the executive agency made during that fiscal year and 1.5 percent of program outlays; or

''(ii) $100,000,000.

''(B) SCOPE.—In conducting a review under paragraph (1), the head of each executive agency shall take into account those risk factors that are likely to contribute to a susceptibility to significant improper payments, such as—

''(i) whether the program or activity reviewed is new to the executive agency;

''(ii) the complexity of the program or activity reviewed;

''(iii) the volume of payments made through the program or activity reviewed;

''(iv) whether payments or payment eligibility decisions are made outside of the executive agency, such as by a State or local government;

''(v) recent major changes in program funding, authorities, practices, or procedures;

''(vi) the level, experience, and quality of training for personnel responsible for making program eligibility determinations or certifying that payments are accurate;

''(vii) significant deficiencies in the audit report of the executive agency or other relevant management findings that might hinder accurate payment certification;

''(viii) similarities to other programs or activities that have reported improper payment estimates or been deemed susceptible to significant improper payments;

''(ix) the accuracy and reliability of improper payment estimates previously reported for the program or activity, or other indicator of potential susceptibility to improper payments identified by the Inspector General of the executive agency, the Government Accountability Office, other audits performed by or on behalf of the Federal, State, or local government, disclosures by the executive agency, or any other means;

''(x) whether the program or activity lacks information or data systems to confirm eligibility or provide for other payment integrity needs; and

''(xi) the risk of fraud as assessed by the executive agency under the Standards for Internal Control in the Federal Government published by the Government Accountability Office (commonly known as the 'Green Book').

''(C) ANNUAL REPORT.—Each executive agency shall publish an annual report that includes—

''(i) a listing of each program or activity identified under paragraph (1), including the date on which the program or activity was most recently assessed for risk under paragraph (1); and

''(ii) a listing of any program or activity for which the executive agency makes any substantial changes to the methodologies of the reviews conducted under paragraph (1).

''(b) IMPROVING THE DETERMINATION OF IMPROPER PAYMENTS.—

''(1) IN GENERAL.—The Director of the Office of Management and Budget shall on an annual basis—

''(A) identify a list of high-priority Federal programs for greater levels of oversight and review—

''(i) in which the highest dollar value or highest rate of improper payments occur; or

''(ii) for which there is a higher risk of improper payments; and

''(B) in coordination with the executive agency responsible for administering a high-priority program identified under subparagraph (A), establish annual targets and semi-annual or quarterly actions for reducing improper payments associated with the high-priority program.

''(2) REPORT ON HIGH-PRIORITY IMPROPER PAYMENTS.—

''(A) IN GENERAL.—Subject to Federal privacy policies and to the extent permitted by law, each executive agency with a program identified under paragraph (1)(A) shall on an annual basis submit to the Inspector General of the executive agency and the Office of Management and Budget, and make available to the public, including through a website, a report on that program.

''(B) CONTENTS.—Each report submitted under subparagraph (A)—

''(i) shall describe any action the executive agency—

''(I) has taken or plans to take to recover improper payments; and

''(II) intends to take to prevent future improper payments; and

''(ii) shall not include—

''(I) any referrals the executive agency made or anticipates making to the Department of Justice; or

''(II) any information provided in connection with a referral described in subclause (I).

''(C) PUBLIC AVAILABILITY ON CENTRAL WEBSITE.—The Office of Management and Budget shall make each report submitted under subparagraph (A) available on a central website.

''(D) AVAILABILITY OF INFORMATION TO INSPECTOR GENERAL.—Subparagraph (B)(ii) shall not prohibit any referral or information being made available to an Inspector General as otherwise provided by law.

''(E) ASSESSMENT AND RECOMMENDATIONS.—The Inspector General of each executive agency that submits a report under subparagraph (A) shall, for each program of the executive agency that is identified under paragraph (1)(A)—

''(i) review—

''(I) the assessment of the level of risk associated with the program and the quality of the improper payment estimates and methodology of the executive agency relating to the program; and

''(II) the oversight or financial controls to identify and prevent improper payments under the program; and

''(ii) submit to the appropriate authorizing and appropriations committees of Congress recommendations, which may be included in another report submitted by the Inspector General to Congress, for modifying any plans of the executive agency relating to the program, including improvements for improper payments determination and estimation methodology.

''(F) ANNUAL MEETING.—Not less frequently than once every year, the head of each executive agency with a program identified under paragraph (1)(A), or a designee of the head of the executive agency, shall meet with the Director of the Office of Management and Budget, or a designee of the Director, to report on actions taken during the preceding year and planned actions to prevent improper payments.

''(c) ESTIMATION OF IMPROPER PAYMENTS.—

''(1) ESTIMATION.—With respect to each program and activity identified under subsection (a)(1), the head of the relevant executive agency shall—

''(A) produce a statistically valid estimate, or an estimate that is otherwise appropriate using a methodology approved by the Director of the Office of Management and Budget, of the improper payments made under the program or activity; and

''(B) include the estimates described in subparagraph (A) in the accompanying materials to the annual financial statement of the executive agency and as required in applicable guidance of the Office of Management and Budget.

''(2) LACKING OR INSUFFICIENT DOCUMENTATION.—

''(A) IN GENERAL.—For the purpose of producing an estimate under paragraph (1), when the executive agency cannot determine, due to lacking or insufficient documentation, whether a payment is proper or not, the payment shall be treated as an improper payment.

''(B) SEPARATE REPORT.—The head of an executive agency may report separately on what portion of the improper payments estimate for a program or activity of the executive agency under paragraph (1) is attributable to lacking or insufficient documentation.

''(d) REPORTS ON ACTIONS TO REDUCE IMPROPER PAYMENTS.—With respect to any program or activity of an executive agency with estimated improper payments under subsection (c), the head of the executive agency shall provide with the estimate required under subsection (c) a report on what actions the executive agency is taking to reduce improper payments, including—

''(1) a description of the causes of the improper payments, actions planned or taken to correct those causes, and the planned or actual completion date of the actions taken to address those causes;

''(2) in order to reduce improper payments to a level below which further expenditures to reduce improper payments would cost more than the amount those expenditures would save in prevented or recovered improper payments, a statement of whether the executive agency has what is needed with respect to—

''(A) internal controls;

''(B) human capital; and

''(C) information systems and other infrastructure;

''(3) if the executive agency does not have sufficient resources to establish and maintain effective internal controls as described in paragraph (2)(A), a description of the resources the executive agency has requested in the budget submission of the executive agency to establish and maintain those internal controls;

''(4) program-specific and activity-specific improper payments reduction targets that have been approved by the Director of the Office of Management and Budget;

''(5) a description of the steps the executive agency has taken to ensure that executive agency managers, programs, and, where appropriate, States and local governments are held accountable through annual performance appraisal criteria for—

''(A) meeting applicable improper payments reduction targets; and

''(B) establishing and maintaining sufficient internal controls, including an appropriate control environment, that effectively—

''(i) prevent improper payments from being made; and

''(ii) promptly detect and recover improper payments that are made; and

''(6) a description of how the level of planned or completed actions by the executive agency to address the causes of the improper payments matches the level of improper payments, including a breakdown by category of improper payment and specific timelines for completion of those actions.

''(e) REPORTS ON ACTIONS TO RECOVER IMPROPER PAYMENTS.—With respect to improper payments identified in a recovery audit, the head of the executive agency shall provide with the estimate required under subsection (c) a report on all actions the executive agency is taking to recover the improper payments, including—

''(1) a discussion of the methods used by the executive agency to recover improper payments;

''(2) the amounts recovered, outstanding, and determined to not be collectable, including the percent those amounts represent of the total improper payments of the executive agency;

''(3) if a determination has been made that certain improper payments are not collectable, a justification of that determination;

''(4) an aging schedule of the amounts outstanding;

''(5) a summary of how recovered amounts have been disposed of;

''(6) a discussion of any conditions giving rise to improper payments and how those conditions are being resolved; and

''(7) if the executive agency has determined under subsection (i) that performing recovery audits for any applicable program or activity is not cost-effective, a justification for that determination.

''(f) GOVERNMENTWIDE REPORTING OF IMPROPER PAYMENTS AND ACTIONS TO RECOVER IMPROPER PAYMENTS.—

''(1) REPORT.—Each fiscal year, the Director of the Office of Management and Budget shall submit a report with respect to the preceding fiscal year on actions that executive agencies have taken to report information regarding improper payments and actions to recover improper payments to—

''(A) the Committee on Homeland Security and Governmental Affairs of the Senate;

''(B) the Committee on Oversight and Reform of the House of Representatives; and

''(C) the Comptroller General of the United States.

''(2) CONTENTS.—Each report required under paragraph (1) shall include—

''(A) a summary of the reports of each executive agency on improper payments and recovery actions submitted under this section;

''(B) an identification of the compliance status of each executive agency, as determined by the Inspector General of the executive agency under section 3353, to which this section applies;

''(C) Governmentwide improper payment reduction targets;

''(D) a Governmentwide estimate of improper payments; and

''(E) a discussion of progress made towards meeting Governmentwide improper payment reduction targets.

''(g) GUIDANCE BY THE OFFICE OF MANAGEMENT AND BUDGET.—

''(1) IN GENERAL.—Not later than 1 year after the date of enactment of this section, the Director of the Office of Management and Budget shall prescribe guidance for executive agencies to implement the requirements of this section, which shall not include any exemptions to those requirements that are not specifically authorized by this section.

''(2) CONTENTS.—The guidance under paragraph (1) shall prescribe—

''(A) the form of the reports on actions to reduce improper payments, recovery actions, and Governmentwide reporting; and

''(B) strategies for addressing risks and establishing appropriate prepayment and postpayment internal controls.

''(h) DETERMINATIONS OF AGENCY READINESS FOR OPINION ON INTERNAL CONTROL.—The criteria required to be developed under section 2(g) of the Improper Payments Elimination and Recovery Act of 2010, as in effect on the day before the date of enactment of this section—

''(1) shall continue to be in effect on and after the date of enactment of this section; and

''(2) may be modified as determined appropriate by the Director of the Office of Management and Budget.

''(i) RECOVERY AUDITS.—

''(1) IN GENERAL.—

''(A) CONDUCT OF AUDITS.—Except as provided under paragraph (3) and if not prohibited under any other provision of law, the head of each executive agency shall conduct recovery audits with respect to each program and activity of the executive agency that expends $1,000,000 or more annually if conducting the audits would be cost effective.

''(B) PROCEDURES.—In conducting a recovery audit under this subsection, the head of an executive agency—

''(i) shall give priority to the most recent payments and to payments made in any program identified as susceptible to significant improper payments under subsection (a);

''(ii) shall implement this subsection in a manner designed to ensure the greatest financial benefit to the Federal Government; and

''(iii) may conduct the recovery audit directly, by using other departments and agencies of the United States, or by procuring performance of recovery audits by private sector sources by contract, subject to the availability of appropriations, or by any combination thereof.

''(C) RECOVERY AUDIT CONTRACTS.—With respect to a recovery audit procured by an executive agency by contract—

''(i) subject to subparagraph (B)(iii), and except to the extent such actions are outside the authority of the executive agency under section 7103 of title 41, the head of the executive agency may authorize the contractor to—

''(I) notify entities, including individuals, of potential overpayments made to those entities;

''(II) respond to questions concerning potential overpayments; and

''(III) take other administrative actions with respect to an overpayment claim made or to be made by the executive agency; and

''(ii) the contractor shall not have the authority to make a final determination relating to whether any overpayment occurred or whether to compromise, settle, or terminate an overpayment claim.

''(D) CONTRACT TERMS AND CONDITIONS.—

''(i) IN GENERAL.—The executive agency shall include in each contract for procurement of performance of a recovery audit a requirement that the contractor shall—

''(I) provide to the executive agency periodic reports on conditions giving rise to overpayments identified by the contractor and any recommendations on how to mitigate those conditions;

''(II) notify the executive agency of any overpayments identified by the contractor pertaining to the executive agency or to any other executive agency that are beyond the scope of the contract; and

''(III) report to the executive agency credible evidence of fraud or vulnerabilities to fraud and conduct appropriate training of personnel of the contractor on identification of fraud.

''(ii) REPORTS ON ACTIONS TAKEN.—Each executive agency shall, on an annual basis, include in annual financial statement of the executive agency a report on actions taken by the executive agency during the preceding fiscal year to address the recommendations described in clause (i)(I).

''(E) AGENCY ACTION FOLLOWING NOTIFICATION.—Each executive agency shall—

''(i) take prompt and appropriate action in response to a report or notification by a contractor under subclause (I) or (II) of subparagraph (D)(i) to collect an overpayment; and

''(ii) forward to other executive agencies any information that applies to that executive agency.

''(2) DISPOSITION OF AMOUNTS RECOVERED.—

''(A) IN GENERAL.—Amounts collected by executive agencies each fiscal year through recovery audits shall be treated in accordance with this paragraph.

''(B) DISTRIBUTION.—The head of an executive agency shall determine the distribution of collected amounts described in subparagraph (A), less amounts needed to fulfill the purposes of section 3562(a) of this title, in accordance with subparagraphs (C), (D), and (E).

''(C) USE FOR FINANCIAL MANAGEMENT IMPROVEMENT PROGRAM.—Not more than 25 percent of the amounts collected by an executive agency through recovery audits—

''(i) shall be available to the head of the executive agency to carry out the financial management improvement program of the executive agency under paragraph (3);

''(ii) may be credited, if applicable, for the purpose described in clause (i) by the head of an executive agency to any executive agency appropriations and funds that are available for obligation at the time of collection; and

''(iii) shall be used to supplement and not supplant any other amounts available for the purpose described in clause (i) and shall remain available until expended.

''(D) USE FOR ORIGINAL PURPOSE.—Not more than 25 percent of the amounts collected by an executive agency through recovery audits—

''(i) shall be credited to the appropriation or fund, if any, available for obligation at the time of collection for the same general purposes as the appropriation or fund from which the overpayment was made;

''(ii) shall remain available for the same period and purposes as the appropriation or fund to which credited; and

''(iii) if the appropriation from which an overpayment was made has expired—

''(I) in the case of recoveries of overpayments that are made from a trust or special fund account, shall revert to that account; and

''(II) in the case of other recoveries of overpayments—

''(aa) for amounts that are recovered more than 5 fiscal years from the last fiscal year in which the funds were available for obligation, shall be deposited in the Treasury as miscellaneous receipts; and

''(bb) for other amounts, shall be newly available for the same time period as the funds were originally available for obligation.

''(E) USE FOR INSPECTOR GENERAL ACTIVITIES.—Not more than 5 percent of the amounts collected by an executive agency through recovery audits—

''(i) shall be available to the Inspector General of that executive agency for—

''(I) the Inspector General to carry out this Act; or

''(II) any other activities of the Inspector General relating to investigating improper payments or auditing internal controls associated with payments; and

''(ii) shall remain available for the same period and purposes as the appropriation or fund to which credited.

''(F) REMAINDER.—Amounts collected that are not applied in accordance with subparagraph (B), (C), (D), or (E) shall be deposited in the Treasury as miscellaneous receipts, except that in the case of recoveries of overpayments that are made from trust or special fund accounts, those amounts shall revert to those accounts.

''(G) DISCRETIONARY AMOUNTS.—This paragraph shall apply only to recoveries of overpayments that are made from discretionary appropriations, as defined in section 250(c)(7) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 900(c)(7)), and shall not apply to recoveries of overpayments that are made from discretionary amounts that were appropriated before the date of enactment of the Improper Payments Elimination and Recovery Act of 2010, as in effect on the day before the date of enactment of this section.

''(H) APPLICATION.—This paragraph shall not apply to the recovery of an overpayment if the appropriation from which the overpayment was made has not expired.

''(3) FINANCIAL MANAGEMENT IMPROVEMENT PROGRAM.—

''(A) REQUIREMENT.—The head of each executive agency shall conduct a financial management improvement program consistent with rules prescribed by the Director of the Office of Management and Budget.

''(B) PROGRAM FEATURES.—In conducting a program described in subparagraph (A), the head of an executive agency—

''(i) shall, as the first priority of the program, address problems that contribute directly to executive agency improper payments; and

''(ii) may seek to reduce errors and waste in other executive agency programs and operations.

''(4) PRIVACY PROTECTIONS.—Any nongovernmental entity that, in the course of recovery auditing or recovery activity under this subsection, obtains information that identifies an individual or with respect to which there is a reasonable basis to believe that the information can be used to identify an individual, may not disclose the information for any purpose other than the recovery auditing or recovery activity and governmental oversight of the activity, unless disclosure for that other purpose is authorized by the individual to the executive agency that contracted for the performance of the recovery auditing or recovery activity.

''(5) RULE OF CONSTRUCTION.—Except as provided under paragraph (4), nothing in this subsection shall be construed as terminating or in any way limiting authorities that are otherwise available to executive agencies under existing provisions of law to recover improper payments and use recovered amounts.

''§ 3353. Compliance

''(a) ANNUAL COMPLIANCE REPORT BY INSPECTORS GENERAL OF EXECUTIVE AGENCIES.—

''(1) IN GENERAL.—Each fiscal year, the Inspector General of each executive agency shall—

''(A) determine whether the executive agency is in compliance; and

''(B) submit a report on the determination made under subparagraph (A) to—

''(i) the head of the executive agency;

''(ii) the Committee on Homeland Security and Governmental Affairs of the Senate;

''(iii) the Committee on Oversight and Reform of the House of Representatives; and

''(iv) the Comptroller General of the United States.

''(2) DEVELOPMENT OR USE OF A CENTRAL WEBSITE.—The Council of the Inspectors General on Integrity and Efficiency (in this subsection referred to as the 'Council') shall develop a public central website, or make use of a public central website in existence on the date of enactment of this section, to contain individual compliance determination reports issued by Inspectors General under paragraph (1)(B) and such additional information as determined by the Council.

''(3) OMB GUIDANCE.—Not later than 180 days after the date of enactment of this section, the Director of the Office of Management and Budget, in consultation with the Council and with consideration given to the available resources and independence of individual Offices of Inspectors General, shall develop and promulgate guidance for the compliance determination reports issued by the Inspectors General under paragraph (1)(B), which shall require that—

''(A) the reporting format used by the Inspectors General is consistent;

''(B) Inspectors General evaluate and take into account the adequacy of executive agency risk assessments, improper payment estimates methodology, and executive agency action plans to address the causes of improper payments;

''(C) Inspectors General take into account whether the executive agency has correctly identified the causes of improper payments and whether the actions of the executive agency to address those causes are adequate and effective;

''(D) Inspectors General evaluate the adequacy of executive agency action plans on how the executive agency addresses the causes of improper payments; and

''(E) as part of the report, Inspectors General include an evaluation of executive agency efforts to prevent and reduce improper payments and any recommendations for actions to further improve that prevention and reduction.

''(4) CIGIE GUIDANCE.—Not later than 180 days after the date of enactment of this section, the Council shall, with consideration given to the available resources and independence of individual Offices of Inspectors General, develop and promulgate guidance that specifies procedures for compliance determinations made by the Inspectors General under paragraph (1)(A), which shall describe procedures for Inspectors General—

''(A) to make the determinations consistent regarding compliance; and

''(B) to evaluate—

''(i) for compliance with the requirement described in section 3351(2)(B), the risk assessment methodology of the executive agency, including whether the audits, examinations, and legal actions of the Inspector General indicate a higher risk of improper payments or actual improper payments that were not included in the risk assessments of the executive agency conducted under section 3352(a);

''(ii) for compliance with the requirement described in section 3351(2)(C), the accuracy of the rate estimates and whether the sampling and estimation plan used is appropriate given program characteristics;

''(iii) for compliance with the requirement described in section 3351(2)(D), the corrective action plans and whether the plans are adequate and focused on the true causes of improper payments, including whether the corrective action plans are—

''(I) reducing improper payments;

''(II) effectively implemented; and

''(III) prioritized within the executive agency;

''(iv) the adequacy of executive agency action plans to address the causes of improper payments;

''(v) executive agency efforts to prevent and reduce improper payments, and any recommendations for actions to further improve; and

''(vi) whether an executive agency has published an annual financial statement in accordance with the requirement described in section 3351(2)(A).

''(b) REMEDIATION.—

''(1) NONCOMPLIANCE.—

''(A) IN GENERAL.—If an executive agency is determined by the Inspector General of that executive agency not to be in compliance under subsection (a) in a fiscal year with respect to a program or activity, the head of the executive agency shall submit to the appropriate authorizing and appropriations committees of Congress a plan describing the actions that the executive agency will take to come into compliance.

''(B) PLAN.—The plan described in subparagraph (A) shall include—

''(i) measurable milestones to be accomplished in order to achieve compliance for each program or activity;

''(ii) the designation of a senior executive agency official who shall be accountable for the progress of the executive agency in coming into compliance for each program or activity; and

''(iii) the establishment of an accountability mechanism, such as a performance agreement, with appropriate incentives and consequences tied to the success of the official designated under clause (ii) in leading the efforts of the executive agency to come into compliance for each program or activity.

''(2) NONCOMPLIANCE FOR 2 FISCAL YEARS.—

''(A) IN GENERAL.—If an executive agency is determined by the Inspector General of that executive agency not to be in compliance under subsection (a) for 2 consecutive fiscal years for the same program or activity, the executive agency shall propose to the Director of the Office of Management and Budget additional program integrity proposals that would help the executive agency come into compliance.

''(B) ADDITIONAL FUNDING.—

''(i) IN GENERAL.—If the Director of the Office of Management and Budget determines that additional funding would help an executive agency described in subparagraph (A) come into compliance, the head of the executive agency shall obligate additional funding, in an amount determined by the Director, to intensified compliance efforts.

''(ii) REPROGRAMMING OR TRANSFER AUTHORITY.—In providing additional funding under clause (i)—

''(I) the head of an executive agency shall use any reprogramming or transfer authority available to the executive agency; and

''(II) if after exercising the reprogramming or transfer authority described in subclause (I), additional funding is necessary to obligate the full level of funding determined by the Director of the Office of Management and Budget under clause (i), the executive agency shall submit a request to Congress for additional reprogramming or transfer authority.

''(3) REAUTHORIZATION AND STATUTORY PROPOSALS.—If an executive agency is determined by the Inspector General of that executive agency not to be in compliance under subsection (a) for 3 consecutive fiscal years for the same program or activity, the head of the executive agency shall, not later than 30 days after the date of that determination, submit to the appropriate authorizing and appropriations committees of Congress and the Comptroller General of the United States—

''(A)(i) reauthorization proposals for each program or activity that has not been in compliance for 3 or more consecutive fiscal years; and

''(ii) proposed statutory changes necessary to bring the program or activity into compliance; or

''(B) if the head of the executive agency determines that clauses (i) and (ii) of subparagraph (A) will not bring the program or activity into compliance, a description of the actions that the executive agency is undertaking to bring the program or activity into compliance and a timeline of when the compliance will be achieved.

''(4) PLAN AND TIMELINE FOR COMPLIANCE.—If an executive agency is determined by the Inspector General of that executive agency not to be in compliance under subsection (a) for 4 or more consecutive fiscal years for the same program or activity, the head of the executive agency shall, not later than 30 days after such determination, submit to the appropriate authorizing and appropriations committees of Congress a report that includes—

''(A) the activities taken to comply with the requirements for 1, 2, 3, 4, or more years of noncompliance;

''(B) a description of any requirements that were fulfilled for 1, 2, or 3 consecutive years of noncompliance that are still relevant and being pursued as a means to bring the program or activity into compliance and prevent and reduce improper payments;

''(C) a description of any new corrective actions; and

''(D) a timeline for when the program or activity will achieve compliance based on the actions described within the report.

''(5) ANNUAL REPORT.—Each executive agency shall submit to the appropriate authorizing and appropriations committees of Congress and the Comptroller General of the United States—

''(A) a list of each program or activity that was determined to not be in compliance under paragraph (1), (2), (3), or (4); and

''(B) actions that are planned to bring the program or activity into compliance.

''(c) COMPLIANCE ENFORCEMENT PILOT PROGRAMS.—The Director of the Office of Management and Budget may establish 1 or more pilot programs that shall test potential accountability mechanisms with appropriate incentives and consequences tied to success in ensuring compliance with this section and eliminating improper payments.

''(d) IMPROVED ESTIMATES GUIDANCE.—The guidance required to be provided under section 3(b) of the Improper Payments Elimination and Recovery Improvement Act of 2012, as in effect on the day before the date of enactment of this section—

''(1) shall continue to be in effect on and after the date of enactment of this section; and

''(2) may be modified as determined appropriate by the Director of the Office of Management and Budget.

''§ 3354. Do Not Pay Initiative

''(a) PREPAYMENT AND PREAWARD PROCEDURES.—

''(1) IN GENERAL.—Each executive agency shall review prepayment and preaward procedures and ensure that a thorough review of available databases with relevant information on eligibility occurs to determine program or award eligibility and prevent improper payments before the release of any Federal funds.

''(2) DATABASES.—At a minimum and before issuing any payment or award, each executive agency shall review as appropriate the following databases to verify eligibility of the payment and award:

''(A) The death records maintained by the Commissioner of Social Security.

''(B) The System for Award Management Exclusion Records, formerly known as the Excluded Parties List System, of the General Services Administration.

''(C) The Debt Check Database of the Department of the Treasury.

''(D) The Credit Alert System or Credit Alert Interactive Voice Response System of the Department of Housing and Urban Development.

''(E) The List of Excluded Individuals/Entities of the Office of Inspector General of the Department of Health and Human Services.

''(F) Information regarding incarcerated individuals maintained by the Commissioner of Social Security under sections 202(x) and 1611(e) of the Social Security Act (42 U.S.C. 402(x), 1382(e)).

''(b) DO NOT PAY INITIATIVE.—

''(1) IN GENERAL.—There is the Do Not Pay Initiative, which shall include—

''(A) use of the databases described in subsection (a)(2); and

''(B) use of other databases designated by the Director of the Office of Management and Budget, or the designee of the Director, in consultation with executive agencies and in accordance with paragraph (2).

''(2) OTHER DATABASES.—In making designations of other databases under paragraph (1)(B), the Director of the Office of Management and Budget, or the head of any executive agency designated by the Director, shall—

''(A) consider any database that substantially assists in preventing improper payments; and

''(B) provide public notice and an opportunity for comment before designating a database under paragraph (1)(B).

''(3) ACCESS AND REVIEW.—

''(A) IN GENERAL.—For purposes of identifying and preventing improper payments, each executive agency shall have access to, and use of, the Do Not Pay Initiative to verify payment or award eligibility in accordance with subsection (a).

''(B) MATCHING PROGRAMS.—

''(i) IN GENERAL.—The head of the agency operating the Working System may, in consultation with the Office of Management and Budget, waive the requirements of section 552a(o) of title 5 in any case or class of cases for computer matching activities conducted under this section.

''(ii) GUIDANCE.—The Director of the Office of Management and Budget may issue guidance that establishes requirements governing waivers under clause (i).

''(C) OTHER ENTITIES.—Each State and any contractor, subcontractor, or agent of a State, including a State auditor or State program responsible for reducing improper payments of a federally funded State-administered program, and the judicial and legislative branches of the United States, as defined in paragraphs (2) and (3), respectively, of section 202(e) of title 18, shall have access to, and use of, the Do Not Pay Initiative for the purpose of verifying payment or award eligibility for payments.

''(D) CONSISTENCY WITH PRIVACY ACT OF 1974.—To ensure consistency with the principles of section 552a of title 5 (commonly known as the 'Privacy Act of 1974'), the Director of the Office of Management and Budget may issue guidance that establishes privacy and other requirements that shall be incorporated into Do Not Pay Initiative access agreements with States, including any contractor, subcontractor, or agent of a State, and the judicial and legislative branches of the United States, as defined in paragraphs (2) and (3), respectively, of section 202(e) of title 18.

''(4) PAYMENT OTHERWISE REQUIRED.—When using the Do Not Pay Initiative, an executive agency shall recognize that there may be circumstances under which the law requires a payment or award to be made to a recipient, regardless of whether that recipient is identified as potentially ineligible under the Do Not Pay Initiative.

''(5) ANNUAL REPORT.—The Director of the Office of Management and Budget shall submit to Congress an annual report, which may be included as part of another report submitted to Congress by the Director, regarding the operation of the Do Not Pay Initiative, which shall—

''(A) include an evaluation of whether the Do Not Pay Initiative has reduced improper payments or improper awards; and

''(B) provide the frequency of corrections or identification of incorrect information.

''(c) INITIAL WORKING SYSTEM.—The working system required to be established under section 5(d) of the Improper Payments Elimination and Recovery Improvement Act of 2012, as in effect on the day before the date of enactment of this section—

''(1) shall continue to be in effect on and after the date of enactment of this section; and

''(2) shall require each executive agency to review all payments and awards for all programs and activities of that executive agency through the working system.

''(d) FACILITATING DATA ACCESS BY FEDERAL AGENCIES AND OFFICES OF INSPECTORS GENERAL FOR PURPOSES OF PROGRAM INTEGRITY.—

''(1) COMPUTER MATCHING BY EXECUTIVE AGENCIES FOR PURPOSES OF INVESTIGATION AND PREVENTION OF IMPROPER PAYMENTS AND FRAUD.—

''(A) IN GENERAL.—Except as provided in this paragraph, in accordance with section 552a of title 5 (commonly known as the 'Privacy Act of 1974'), the head of each executive agency may enter into computer matching agreements with other heads of executive agencies that allow ongoing data matching, which shall include automated data matching, in order to assist in the detection and prevention of improper payments.

''(B) REVIEW.—Not later than 60 days after the date on which a proposal for an agreement under subparagraph (A) has been presented to a Data Integrity Board established under section 552a(u) of title 5 for consideration, the Data Integrity Board shall respond to the proposal.

''(C) TERMINATION DATE.—An agreement described in subparagraph (A)—

''(i) shall have a termination date of less than 3 years; and

''(ii) during the 3-month period ending on the date on which the agreement is scheduled to terminate, may be renewed by the executive agencies entering the agreement for not more than 3 years.

''(D) MULTIPLE AGENCIES.—For purposes of this paragraph, section 552a(o)(1) of title 5 shall be applied by substituting 'between the source agency and the recipient agency or non-Federal agency or an agreement governing multiple agencies' for 'between the source agency and the recipient agency or non-Federal agency' in the matter preceding subparagraph (A).

''(E) COST-BENEFIT ANALYSIS.—A justification under section 552a(o)(1)(B) of title 5 relating to an agreement under subparagraph (A) is not required to contain a specific estimate of any savings under the computer matching agreement.

''(2) GUIDANCE AND PROCEDURES BY THE OFFICE OF MANAGEMENT AND BUDGET.—The guidance, rules, and procedures required to be issued, clarified, and established under paragraphs (3) and (4) of section 5(e) of the Improper Payments Elimination and Recovery Improvement Act of 2012, as in effect on the day before the date of enactment of this section—

''(A) shall continue to be in effect on and after the date of enactment of this section; and

''(B) may be modified as determined appropriate by the Director of the Office of Management and Budget.

''(3) COMPLIANCE.—The head of each executive agency, in consultation with the Inspector General of the executive agency, shall ensure that any information provided to an individual or entity under this subsection is provided in accordance with protocols established under this subsection.

''(4) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed—

''(A) to affect the rights of an individual under section 552a(p) of title 5; or

''(B) to impede the exercise of an exemption provided to Inspectors General or by an executive agency in coordination with an Inspector General under section 6(j) of the Inspector General Act of 1978 (5 U.S.C. App.).

''(e) PLAN TO CURB FEDERAL IMPROPER PAYMENTS TO DECEASED INDIVIDUALS BY IMPROVING THE QUALITY AND USE BY FEDERAL AGENCIES OF THE SOCIAL SECURITY ADMINISTRATION DEATH MASTER FILE AND OTHER DEATH DATA.—

''(1) ESTABLISHMENT.—In conjunction with the Commissioner of Social Security and in consultation with relevant stakeholders that have an interest in or responsibility for providing the data, and each State, the Director of the Office of Management and Budget shall conduct a study and update the plan required to be established under section 5(g) of the Improper Payments Elimination and Recovery Improvement Act of 2012, as in effect on the day before the date of enactment of this section, for improving the quality, accuracy, and timeliness of death data maintained by the Social Security Administration, including death information reported

to the Commissioner under section 205(r) of the Social Security Act (42 U.S.C. 405(r)).

''(2) ADDITIONAL ACTIONS UNDER PLAN.—The plan described in this subsection shall include recommended actions by executive agencies to—

''(A) increase the quality and frequency of access to the Death Master File and other death data;

''(B) achieve a goal of at least daily access as appropriate;

''(C) provide for all States and other data providers to use improved and electronic means for providing data;

''(D) identify improved methods by executive agencies for determining ineligible payments due to the death of a recipient through proactive verification means; and

''(E) address improper payments made by executive agencies to deceased individuals as part of Federal retirement programs.

''(3) REPORT.—Not later than 120 days after the date of enactment of this section, the Director of the Office of Management and Budget shall submit a report to Congress on the plan described in this subsection, including recommended legislation.

''§ 3355. Improving recovery of improper payments

''The Director of the Office of Management and Budget shall determine—

''(1) current and historical rates and amounts of recovery of improper payments, or, in cases in which improper payments are identified solely on the basis of a sample, recovery rates and amounts estimated on the basis of the applicable sample, including a list of executive agency recovery audit contract programs and specific information of amounts and payments recovered by recovery audit contractors; and

''(2) targets for recovering improper payments, including specific information on amounts and payments recovered by recovery audit contractors.

''§ 3356. Improving the use of data by executive agencies for curbing improper payments

''(a) PROMPT REPORTING OF DEATH INFORMATION BY THE DEPARTMENT OF STATE AND THE DEPARTMENT OF DEFENSE.—The procedure required to be established under section 7(a) of the Improper Payments Elimination and Recovery Improvement Act of 2012, as in effect on the day before the date of enactment of this section—

''(1) shall continue to be in effect on and after the date of enactment of this section; and

''(2) may be modified as determined appropriate by the Director of the Office of Management and Budget.

''(b) PROMPT REPORTING OF DEATH INFORMATION BY THE DEPARTMENT OF VETERANS AFFAIRS AND THE OFFICE OF PERSONNEL MANAGEMENT.—Not later than 1 year after the date of enactment of this section, the Secretary of Veterans Affairs and the Director of the Office of Personnel Management shall establish a procedure under which the Secretary and the Director—

''(1) shall promptly and on a regular basis submit information relating to the deaths of individuals, including stopped payments data as applicable, to each executive agency for which the Director of the Office of Management and Budget determines receiving and using such information would be relevant and necessary; and

''(2) to facilitate the centralized access of death data for the use of reducing improper payments, may identify additional Federal sources of death data and direct the data owner to provide that data to 1 or more executive agencies for that purpose.

''(c) GUIDANCE TO EXECUTIVE AGENCIES REGARDING DATA ACCESS AND USE FOR IMPROPER PAYMENTS PURPOSES.—The guidance required to be issued under section 7(b) of the Improper Payments Elimination and Recovery Improvement Act of 2012, as in effect on the day before the date of enactment of this section—

''(1) shall continue to be in effect on and after the date of enactment of this section; and

''(2) may be modified as determined appropriate by the Director of the Office of Management and Budget.

''§ 3357. Financial and administrative controls relating to fraud and improper payments

''(a) DEFINITION.—In this section, the term 'agency' has the meaning given the term in section 551 of title 5.

''(b) GUIDELINES.—The guidelines required to be established under section 3(a) of the Fraud Reduction and Data Analytics Act of 2015, as in effect on the day before the date of enactment of this section—

''(1) shall continue to be in effect on and after the date of enactment of this section; and

''(2) may be periodically modified by the Director of the Office of Management and Budget, in consultation with the Comptroller General of the United States, as the Director and Comptroller General may determine necessary.

''(c) REQUIREMENTS FOR CONTROLS.—The guidelines described in subsection (b) shall include—

''(1) conducting an evaluation of fraud risks and using a risk-based approach to design and implement financial and administrative control activities to mitigate identified fraud risks;

''(2) collecting and analyzing data from reporting mechanisms on detected fraud to monitor fraud trends and using that data and information to continuously improve fraud prevention controls; and

''(3) using the results of monitoring, evaluation, audits, and investigations to improve fraud prevention, detection, and response.

''(d) REPORT.—For each of fiscal years 2019 and 2020, each agency shall submit to Congress, as part of the annual financial report of the agency, a report of the agency on—

''(1) implementing—

''(A) the financial and administrative controls described in subsection (b);

''(B) the fraud risk principle in the Standards for Internal Control in the Federal Government published by the Government Accountability Office (commonly known as the 'Green Book'); and

''(C) Office of Management and Budget Circular A–123, or any successor thereto, with respect to the leading practices for managing fraud risk;

''(2) identifying risks and vulnerabilities to fraud, including with respect to payroll, beneficiary payments, grants, large contracts, and purchase and travel cards; and

''(3) establishing strategies, procedures, and other steps to curb fraud.

''§ 3358. Interagency working group for Governmentwide payment integrity improvement

''(a) WORKING GROUP.—

''(1) ESTABLISHMENT.—Not later than 90 days after the date of enactment of this section, there is established an interagency working group on payment integrity—

''(A) to improve—

''(i) State-administered Federal programs to determine eligibility processes and data sharing practices;

''(ii) the guidelines described in section 3357(b) and other best practices and techniques for detecting, preventing, and responding to improper payments, including improper payments that are the result of fraud; and

''(iii) the sharing and development of data analytics techniques to help prevent and identify potential improper payments, including those that are the result of fraud; and

''(B) to identify any additional activities that will improve payment integrity of Federal programs.

''(2) COMPOSITION.—The interagency working group established under paragraph (1) shall be composed of—

''(A) the Director of the Office of Management and Budget;

''(B) 1 representative from each of the agencies described in paragraphs (1) and (2) of section 901(b) of this title; and

''(C) any other representatives of other executive agencies determined appropriate by the Director of the Office of Management and Budget, which may include the Chief Information Officer, the Chief Procurement Officer, the Chief Risk Officer, or the Chief Operating Officer of an executive agency.

''(b) CONSULTATION.—The working group established under subsection (a)(1) may consult with Offices of Inspectors General and Federal and non-Federal experts on fraud risk assessments, administrative controls over payment integrity, financial controls, and other relevant matters.

''(c) MEETINGS.—The working group established under subsection (a)(1) shall hold not fewer than 4 meetings per year.

''(d) REPORT.—Not later than 240 days after the date of enactment of this section, the working group established under subsection (a)(1) shall submit to Congress a report that includes—

''(1) a plan containing tangible solutions to prevent and reduce improper payments; and

''(2) a plan for State agencies to work with Federal agencies to regularly review lists of beneficiaries of State-managed Federal programs for duplicate enrollment between States, including how the Do Not Pay Business Center and the data analytics initiative of the Department of the Treasury could aid in the detection of duplicate enrollment.''.

(b) TECHNICAL AND CONFORMING AMENDMENT.—The table of sections for chapter 33 of title 31, United States Code, is amended by adding at the end the following:

''SUBCHAPTER IV—IMPROPER PAYMENTS

''3351. Definitions.
''3352. Estimates of improper payments and reports on actions to reduce improper payments.
''3353. Compliance.
''3354. Do Not Pay Initiative.
''3355. Improving recovery of improper payments.
''3356. Improving the use of data by executive agencies for curbing improper payments.
''3357. Financial and administrative controls relating to fraud and improper payments.
''3358. Interagency working group for Governmentwide payment integrity improvement.''.

SEC. 3. REPEALS.

(a) IN GENERAL.—

(1) IMPROPER PAYMENTS INFORMATION ACT OF 2002.—The Improper Payments Information Act of 2002 (31 U.S.C. 3321 note) is repealed.

(2) IMPROPER PAYMENTS ELIMINATION AND RECOVERY ACT OF 2010.—The Improper Payments Elimination and Recovery Act of 2010 (Public Law 114–204; 124 Stat. 2224) is repealed.

(3) IMPROPER PAYMENTS ELIMINATION AND RECOVERY IMPROVEMENT ACT OF 2012.—The Improper Payments Elimination and Recovery Improvement Act of 2012 (31 U.S.C. 3321 note) is repealed.

(4) FRAUD REDUCTION AND DATA ANALYTICS ACT OF 2015.—The Fraud Reduction and Data

Analytics Act of 2015 (31 U.S.C. 3321 note) is repealed.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) GOVERNMENT CHARGE CARD ABUSE PREVENTION ACT OF 2012.—Section 6(a) of the Government Charge Card Abuse Prevention Act of 2012 (5 U.S.C. 5701 note) is amended by striking ''section 3512 of title 31, United States Code, or in the Improper Payments Information Act of 2002 (31 U.S.C. 3321 note)'' and inserting ''section 3512 or subchapter IV of chapter 33 of title 31, United States Code''.

(2) HOMELAND SECURITY ACT OF 2002.—Section 2022(a) of the Homeland Security Act of 2002 (6 U.S.C. 612(a)) is amended—

(A) in paragraph (1)(C), by striking ''Consistent with the Improper Payments Information Act of 2002 (31 U.S.C. 3321 note)'' and inserting ''Consistent with subchapter IV of chapter 33 of title 31, United States Code''; and

(B) in paragraph (5), by striking ''section 2(h) of the Improper Payments Elimination and Recovery Act of 2010 (31 U.S.C. 3321 note)'' and inserting ''section 3352(i) of title 31, United States Code,''.

(3) SOCIAL SECURITY ACT.—Section 2105 of the Social Security Act (42 U.S.C. 1397ee(c)) is amended by striking ''Improper Payments Information Act of 2002'' each place that term appears and inserting ''subchapter IV of chapter 33 of title 31, United States Code''.

(4) TITLE 31.—Section 3562(a) of title 31, United States Code, is amended—

(A) in the matter preceding paragraph (1)—

(i) by striking ''section 3561'' and inserting ''section 3352(i)''; and

(ii) by striking ''agency for the following purposes:'' and all that follows through ''To reimburse'' and inserting ''agency to reimburse''; and

(B) by striking paragraph (2).

CONDEMNING BRUNEI'S DRAMATIC HUMAN RIGHTS BACKSLIDING

Mr. THUNE. Madam President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 139, S. Res. 198.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The senior assistant legislative clerk read as follows:

A resolution (S. Res. 198) condemning Brunei's dramatic human rights backsliding.

There being no objection, the Senate proceeded to consider the resolution, which had been reported from the Committee on Foreign Relations, with an amendment to strike all after the resolving clause and insert the part printed in italic, and with an amendment to strike the preamble and insert the part printed in italic, as follows:

Whereas Brunei has been led since 1967 by one of the world's longest-reigning monarchs, Sultan Haji Hassanal Bolkiah;

Whereas Brunei gained independence in 1984;

Whereas emergency powers in place in Brunei since 1962 allow the sultan to govern with few limitations to his authority;

Whereas, according to the United States Department of State 2018 Human Rights Report, human rights issues in Brunei included censorship, interferences with the rights of peaceful assembly and freedom of association, crimes involving violence or threats targeting homosexuality, and exploitation of foreign workers, including through forced labor;

Whereas Brunei's media are neither free nor diverse, with broadcasting dominated by the state and private media owned or controlled by the royal family;

Whereas homosexuality has been illegal in Brunei, carrying a punishment of up to ten years in prison;

Whereas in 2013, the Government of Brunei announced it was imposing a revised penal code that included harsher punishments of death by stoning for adultery and homosexual relations;

Whereas international condemnation resulted in a delay in carrying out the provisions;

Whereas, in March 2019, the Government of Brunei announced it was going forward with the penal code to take effect April 3, 2019;

Whereas the penal code includes, among other things, death by stoning for male same-sex relations, adultery, and blasphemy, amputation of limbs for theft, whipping for female same-sex relations, and criminalization of exposure of children to the beliefs and practices of differing religions;

Whereas, on April 2, 2019, the Department of State said Brunei's new penal code and associated penalties run ''counter to its international human rights obligations including with respect to torture or other cruel, inhuman or degrading treatment or punishment'';

Whereas, on April 18, 2019, the European Parliament adopted a resolution strongly condemning Brunei for introducing ''retrograde'' laws, calling for their immediate repeal, urging that Brunei uphold its international obligations under ''international human rights instruments, including with regard to sexual minorities, religious minorities and non-believers,'' and suggesting visa bans and asset freezes should the penal code not be repealed;

Whereas the United Nations and international human rights organizations have denounced the penal code, arguing it amounts to torture and a violation of human rights;

Whereas United Nations High Commissioner for Human Rights Michelle Bachelet urged Brunei to repeal the penal code, noting the punishments proscribed as ''cruel, inhuman, and degrading'' and calling the code a ''serious setback for human rights protections'';

Whereas Human Rights Watch stated, ''Brunei's new penal code is barbaric to the core, imposing archaic punishments for acts that shouldn't even be crimes. . . . Sultan Hassanal should immediately suspend amputations, stoning, and all other rights-abusing provisions and punishments.'';

Whereas Amnesty International stated, ''Brunei's Penal Code is a deeply flawed piece of legislation containing a range of provisions that violate human rights. . . . As well as imposing cruel, inhuman and degrading punishments, it blatantly restricts the rights to freedom of expression, religion and belief, and codifies discrimination against women and girls.''; and

Whereas the Joint United Nations Program on HIV/AIDS (UNAIDS) Executive Director Michel Sidibé stated that the implementation of this discriminatory penal code will ''drive people underground and out of reach of life-saving HIV treatment and prevention services,'' and UNAIDS and the United Nations Population Fund noted these kinds of laws ''increase stigma, and give license to discrimination, violence, and harassment'': Now, therefore, be it

Resolved, That the Senate—

(1) condemns the Government of Brunei's further criminalization and barbaric punishments regarding sexual orientation, adultery, and relations between persons of the same sex;

(2) calls on the Government of Brunei to expeditiously repeal the 2013 penal code; and

(3) supports the withdrawal and denial of United States visas for any Brunei official responsible for passage or implementation of such penal code and related laws until they are repealed.

Mr. THUNE. I further ask that the committee-reported substitute amendment to the resolution be agreed to; that the resolution, as amended, be agreed to; that the committee-reported amendment to the preamble be agreed to; that the preamble, as amended, be agreed to; and that the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendment, in the nature of a substitute, was agreed to.

The resolution, as amended, was agreed to.

The committee-reported amendment to the preamble was agreed to.

The preamble, as amended, was agreed to.

The resolution (S. Res. 198), as amended, and the preamble, as amended, were agreed to.

MEASURE READ THE FIRST TIME—H.R. 1327

Mr. THUNE. Madam President, I understand there is a bill at the desk, and I ask for its first reading.

The PRESIDING OFFICER. The clerk will read the title of the bill for the first time.

The senior assistant legislative clerk read as follows:

A bill (H.R. 1327) to extend authorization for the September 11th Victim Compensation Fund of 2001 through fiscal year 2092, and for other purposes.

Mr. THUNE. I now ask for a second reading, and in order to place the bill on the calendar under the provisions of rule XIV, I object to my own request.

The PRESIDING OFFICER. Objection is heard.

The bill will receive a second reading on the next legislative day.

ORDERS FOR WEDNESDAY, JULY 17, 2019

Mr. THUNE. Madam President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 10 a.m., Wednesday, July 17; further, that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, the time for the two leaders be reserved for their use later in the day, morning business be closed, and the Senate proceed to executive session to resume consideration of Treaties Calendar No. 2, Treaty Document No. 112–1.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 10 A.M. TOMORROW

Mr. THUNE. Madam President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 6:39 p.m., adjourned until Wednesday, July 17, 2019, at 10 a.m.

CONFIRMATION

Executive nomination confirmed by the Senate July 16, 2019:

THE JUDICIARY

PETER JOSEPH PHIPPS, OF PENNSYLVANIA, TO BE UNITED STATES CIRCUIT JUDGE FOR THE THIRD CIRCUIT.

EXTENSIONS OF REMARKS

RECOGNIZING RANGER DOUG FOLLETT OF WHITEFISH

HON. GREG GIANFORTE

OF MONTANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. GIANFORTE. Madam Speaker, I rise today to honor Seasonal Interpretive Ranger Doug Follett of Whitefish for guiding countless visitors through Glacier National Park, one of our nation's natural wonders, for 70 years.

Ranger Doug has spent decades in and around Glacier National Park. His family moved to Whitefish, Montana when he was a toddler, and he's made the area his home ever since. Before working at Glacier National Park, he worked for the railroad and served the United States in the Air Force during World War II. He began working seasonally in Glacier National Park during the summer while he taught high school history in the winter.

Ranger Doug has spent 58 seasons as an interpretive ranger in Glacier National Park, making him one of the longest-serving employees of the National Park Service. He has led thousands of visitors through trails in the park's expansive forests and beautiful glacier-carved mountains and valleys.

Ranger Doug greets visitors with a fist bump and is known for reciting his original poetry dedicated to the park. An ambassador of Glacier National Park, he shares his knowledge and experience with the thousands of visitors he guides each year. Those who cross Ranger Doug's path each season walk away from Glacier with his infectious passion and enthusiasm for the park.

A well-known figure in Glacier National Park and in the community, Ranger Doug has no plans to slow down and retire anytime soon, saying, ''I'll never know until it's over.''

Many more stories and experiences will come from those who cross paths with Ranger Doug.

Madam Speaker, for serving 70 years as an ambassador of Glacier National Park and Montana to the millions of visitors who visit the park each year, I recognize Ranger Doug Follett for his spirit of Montana.

HONORING ADMIRAL MANFRED NIELSON FOR HIS SERVICE

HON. ELAINE G. LURIA

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mrs. LURIA. Madam Speaker, I rise today to honor and recognize Admiral Manfred Nielson for his service as Deputy Supreme Allied Commander Transformation at NATO's headquarters in Norfolk, VA.

Admiral Nielson, German Navy, took over responsibilities as Deputy Supreme Allied Commander Transformation at Norfolk, Virginia, in 2016.

In this critical role at NATO's only strategic headquarters in North America, Admiral Nielson promoted and advanced his headquarters' role in innovating and developing the alliance's transformational approaches in future warfare.

He increased the collaboration between private companies and the public sector to accelerate the pace of discovery. He expanded NATO's outreach to academic institutions to build networks, improve decision-making simulations, and increase engagement with the next generation of thinkers and leaders. He has been a strong and active supporter of the NATO Model Challenge where NATO is introduced to local students in an annual conference.

Admiral Nielson often emphasized the need for close cooperation with the U.S. as an open and generous host nation. He always stressed his gratitude for the incredible welcome he received throughout the U.S. He constantly connected and liaised with American officials to deepen our work with NATO.

He put enormous efforts in strengthening ties to the local community through events and activities, as well as constant communication and information exchange. Because of him, relationships with several local universities and think tanks are excellent. He also enjoyed and promoted the cultural life in Norfolk by hosting various events to show German hospitality and promote the U.S.-German partnership. He always promoted the special relationship between the U.S. and Germany based on common shared values.

In return, I acknowledge that the United States owes our gratitude to this outstanding officer for his generous spirit, keen insight, and tremendous partnership. I wish Admiral Nielson the best as he concludes his tour as Deputy Supreme Allied Commander Transformation and returns to Germany.

PERSONAL EXPLANATION

HON. CLAY HIGGINS

OF LOUISIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. HIGGINS of Louisiana. Madam Speaker, I regretfully missed votes from July 11 through July 15 due to Hurricane Barry. Had I been present, I would have voted: nay on Roll Call No. 438; nay on Roll Call No .439; nay on Roll Call No. 440; nay on Roll Call No. 441; nay on Roll Call No. 442; nay on Roll Call No. 443; nay on Roll Call No. 444; nay on Roll Call No. 445; nay on Roll Call No. 446; nay on Roll Call No. 447; nay on Roll Call No. 448; nay on Roll Call No. 449; nay on Roll Call No. 450; nay on Roll Call No. 451; nay on Roll Call No. 452; nay on Roll Call No. 453; nay on Roll Call No. 454; nay on Roll Call No. 455; nay on Roll Call No. 456; nay on Roll Call No. 457; nay on Roll Call No. 458; nay on Roll Call No. 459; nay on Roll Call No. 460; yea on Roll Call No. 461; nay on Roll Call No. 462; nay on Roll Call No. 463; nay on Roll Call No. 464; nay on Roll Call No. 465; nay on Roll Call No. 466; nay on Roll Call No. 467; nay on Roll Call No. 468; nay on Roll Call No. 469; nay on Roll Call No. 470; nay on Roll Call No. 471; yea on Roll Call No. 472; nay on Roll Call No. 473; yea on Roll Call No. 474; yea on Roll Call No. 475; yea on Roll Call No. 476; and yea on Roll Call No. 477.

IN RECOGNITION OF DOUG WALKER'S RETIREMENT

HON. STEVEN M. PALAZZO

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. PALAZZO. Mr. Speaker, I would like to recognize Doug Walker who has retired from his career in broadcast journalism after 43 years. Doug has served the people of south Mississippi at the WLOX news station for 30 years and has many notable accomplishments under his belt from his tenure with the station.

In 2005, Hurricane Katrina made landfall on the Mississippi Gulf Coast, causing mass amounts of devastation throughout south Mississippi. Doug and the WLOX team remained on the ground and on air during the storm so they could continue providing critical updates to south Mississippi. Because of this impeccable journalism, Doug and others at WLOX received the distinguished Peabody Award in 2006. This award recognizes broadcasting excellence in both news and entertainment. Without the coverage provided by Doug and the WLOX team, south Mississippi would not have received widespread updates before, during, and after the storm. We are grateful to have hap these individuals remain engaged on delivering coverage of the hUrricane and our recovery.

A year after Hurricane Katrina, Doug received a personal invitation to the White House for a one-on-one interview with President George W. Bush. During their discussion, Doug and President Bush reflected through the events that unfolded after the storm passed, both recalling the utter devastation the storm brought to Mississippi. Doug has recounted this invitation and interview as the highlight of his broadcasting career.

Furthermore, Doug exemplifies the ''never quit mentality'' that is embodied by so many along the Mississippi Gulf Coast. Doug was diagnosed with kidney cancer in late 2006. Although that news may be defeating for some, Doug did not let it defeat his spirit. After many surgeries, Doug was cleared of his cancer and eventually returned back to his passion.

I have personally enjoyed working with Doug over the years, most often on the WLOX News this Week segment. I know he will be sorely missed on WLOX by many in south Mississippi.

I am pleased to recognize Doug for his many accomplishments over the years and wish him a very relaxing and well-deserved retirement.

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

ENDING THE KREMLIN'S SUBVERSION CAMPAIGNS

HON. ADAM KINZINGER

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. KINZINGER. Madam Speaker, earlier this month, I gave opening remarks with my esteemed colleagues Sen. WHITEHOUSE (D–RI), Rep. KEATING (D–MA) and Rep. ROONEY (R–FL) at an event hosted by the Free Russia Foundation discussing the Kremlin's disturbing and significant attacks on Western institutions.

During the event, the Free Russia Foundation released a report, which can be found at https://www.4freerussia.orglwp-content/uploads/2019/06/misruleoflaw-web-pages.pdf, demonstrating how the Kremlin's active measures and subversion campaigns infiltrate Western institutions to undermine the rule of law. The power of this report comes from specific instances of Russian influence and corrupt practices aimed at the United States and European Union. This includes a Kremlin-directed effort to pass legislation in European parliaments to effectively nullify the Yukos shareholder court decisions, to the benefit of the Russian Federation.

I encourage others to produce thoughtful research documenting Russian abuses of the rule of law. I am glad a light is being shown on these cases, but I know other instances of abuse continue unabated within Russia. As a nation, we must stand up to Putin's disregard for the international rule of law and ensure that the world is a safe place to live and conduct business.

I encourage Congress to continue to hold hearings on Russia's malign influence campaigns so the United States can defend our institutions from manipulation and misuse by the Russians.

PERSONAL EXPLANATION

HON. SEAN P. DUFFY

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. DUFFY. Madam Speaker, on Friday, July 12, 2019 I missed the following votes and was not recorded. Had I been present, I would have voted ''no'' on Roll Call No. 459; ''no'' on Roll Call No. 460; ''yea'' on Roll Call No. 461; ''yea'' on Roll Call No. 462; ''no'' on Roll Call No. 463; ''no'' on Roll Call No. 464; ''no'' on Roll Call No. 465; ''no'' on Roll Call No. 466; ''no'' on Roll Call No. 467; ''no'' on Roll Call No. 468; ''no'' on Roll Call No. 469; ''no'' on Roll Call No. 470; ''no'' on Roll Call No. 471; ''yea'' on Roll Call No. 472; ''no'' on Roll Call No. 473; and ''yea'' on Roll Call No. 474.

HONORING THE 100TH BIRTHDAY OF BILL WILLS

HON. ELAINE G. LURIA

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mrs. LURIA. Madam Speaker, I rise today to honor and celebrate the 100th birthday of Bill Wills of Virginia Beach. Bill served our nation faithfully with ''The Big Red One,'' a combined arms division in the U.S. Army, and is a survivor of the D–Day Normandy landing. Before the D–Day landing, he traveled all over the world and made landings in Africa and in Sicily. After returning from the war, Bill joined the New York City Police Department. He served many years with the mounted police and then retired in Virginia Beach with his wife of 65 years.

Bill Wills' courageous dedication to his country, community, and family brings great honor to our district. I am proud to recognize his health and the many years of wisdom he has offered our community and America.

HONORING LIEUTENANT COLONEL AND MRS. JUDDSON FLORIS ON THEIR RETIREMENT FROM THE ARMY

HON. DEAN PHILLIPS

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. PHILLIPS. Madam Speaker, I'm honored today to recognize two of America's best, Lieutenant Colonel Juddson Floris, United States Army, and his wife, Rebecca, for their extraordinary selfless service to our Nation. Lieutenant Colonel Floris will soon retire from the Army after a long and distinguished career.

A native of Fort Bragg, North Carolina, Judd has distinguished himself as a true leader of character both at work and at home. Lieutenant Colonel Floris began his Army career as a plebe at the United States Military Academy at West Point in 1995, and, upon graduation from West Point, he was commissioned as a Second Lieutenant in the Infantry Branch in 1999.

Upon graduating from the Infantry Officers Basic Course, Lieutenant Colonel Floris was assigned to 2nd Battalion, 325th Airborne Infantry Regiment, 82nd Airborne Division at Fort Bragg, North Carolina where he served as an Airborne Rifle Platoon Leader, Company Executive Officer, and Battalion Air Operations Officer. However, Judd always dreamed of something different, and he decided to apply for and attend Special Forces Assessment and Selection to begin the long journey of becoming a Green Beret.

After completing the Special Forces Qualification Course and earning his ''long tab,'' Lieutenant Colonel Floris was assigned to the 1st Special Forces Group (Airborne) Commander's In-Extremis Force in Okinawa, Japan as a Special Forces Operational Detachment—Alpha Commander, Assault Force Commander, Company Executive Officer, and Company Commander. Lieutenant Colonel Floris was then assigned to the Pentagon as an Operations Officer in the joint Staff J–3 and the Army G–3 Special Operations Division. He then returned to 1st Special Forces Group (Airborne) where he commanded a Special Forces Company and Task Force, and subsequently served as an Operations Officer at the Battalion, joint Special Operations Task Force, and Group levels. Lieutenant Colonel Floris most recently served as a Special Operations and Counter-Terrorism Policy Advisor to the Assistant Secretary of Defense for Special Operations and Low Intensity Conflict in the Pentagon.

Lieutenant Colonel Floris has deployed fifteen times in support of named operations and Theater Campaign Plan events in the Middle East and Pacific areas of operations.

His awards and decorations include the Legion of Merit, the Bronze Star Medal with one Oak Leaf Cluster, the Defense Meritorious Service Medal with one Oak Leaf Cluster, the Meritorious Service Medal with two Oak Leaf Clusters, the Joint Service Commendation Medal with one Oak Leaf Cluster, the Combat and Expert Infantryman's Badges, the Special Forces and Ranger Tabs, Master Parachutist Badge, Military Free Fall Badge, Pathfinder Badge, Air Assault Badge, and the Staff Identification Badges from the Office of the Secretary of Defense, the Joint Staff, and the Army Staff. Lieutenant Colonel Floris also holds parachutist's badges from seven countries.

Judd earned a Bachelor of Science Degree in Systems Engineering (Distinguished Graduate) from West Point and a Master of Arts Degree in Policy Management from Georgetown University.

But the accolades, awards, degrees, and badges don't tell the full story. They don't tell you how superiors, peers, and subordinates alike respect and revere Judd, not just for his military prowess, but for the care, compassion and empathy which he brought to every situation. They don't give insight into the selflessness shown by Judd and Rebecca to the soldiers and families under Judd's command. And they certainly don't tell the full story of twenty years of sacrifice, which the Floris family has endured as a result of fifteen deployments away from home.

So, on this day and on behalf of a grateful Nation, it is my honor to recognize the selfless service and sacrifice of Lieutenant Colonel Juddson Floris, his wife, Rebecca, and sons, Callum and Max. I wish them the very best as they begin this new chapter of their lives.

TEMPLE AARON ANNIVERSARY

HON. KEN BUCK

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. BUCK. Madam Speaker, I rise today to recognize the 130th anniversary of Temple Aaron located in Trinidad, Colorado.

Temple Aaron was constructed in 1889 and is one of less than two dozen synagogues still standing that were constructed in the 19th Century. The temple is the oldest continuously operating Jewish synagogue west of the Mississippi River and has been recognized by major historical preservation organizations as being of tremendous importance to the state.

Additionally, I would like to extend posthumous recognition to Kathryn and Leon Rubin, and their two sons, Randy and Ron, for their 30 years of dedicated service and care to Temple Aaron. In 1985, the Rubin family took the primary leadership role in supporting the temple, managing its congregation, and maintaining the building's infrastructure—which included preserving the temple's historic stained glass windows. The Rubins also organized fundraising events and submitted grant applications in an effort to keep Temple Aaron's doors open.

Madam Speaker, on behalf of the Fourth Congressional District of Colorado, I extend my congratulations and best wishes to the Temple Aaron community. I applaud their efforts to preserve Temple Aaron as a monument to the Jewish history of the Rocky Mountain region.

RECOGNIZING SERGEANT MAJOR DANIEL A. DAILEY

HON. JOHN R. CARTER

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. CARTER of Texas. Madam Speaker, I'm honored to recognize the fifteenth Sergeant Major of the Army, Sergeant Major Daniel A. Dailey, for his extraordinary service to our Nation. Sergeant Major of the Army Dailey will soon relinquish his responsibilities as the United States Army's Senior Enlisted Leader and will then retire from the Army after a long and distinguished career.

A native of Palmerton, Pennsylvania, SMA Dailey enlisted in the Army in 1989 and attended Basic Training and Advanced Individual Training as an Infantryman at Fort Benning, Georgia. During his career, SMA Dailey has held every enlisted leadership position within mechanized infantry branch, ranging from Bradley Fighting Vehicle Commander to his current role.

SMA Dailey was sworn in as the 15th Sergeant Major of the Army on January 30, 2015. In this demanding role , Sergeant Major Dailey is the Army Chief of Staff's adviser on all matters affecting the enlisted force. He tirelessly devotes much of his time traveling throughout the Army to observe training and talk with Soldiers and their Families. He represents the U.S. Army on a variety of councils and boards that make decisions affecting enlisted Soldiers and their Families. Known for understanding the ground truth at the Soldier level he is routinely invited to testify before Congress to provide his unique perspective. SMA Dailey is the public face of the U.S. Army's Noncommissioned Officer Corps, representing the Corps to the American people in the media and through business and community engagements.

Sergeant Major of the Army Dailey is a shining example of Army Values and embodies the Noncommissioned Officer's Creed. Competence is indeed Sergeant Major Dailey's watchword, and his commitment to doing what good NCOs do, accomplishing the mission taking care of his teammates, is unparalleled.

It has been a pleasure to know and serve with Sergeant Major Dailey during his time as the Sergeant Major of the Army. On behalf of a grateful Nation, it is my honor to recognize the selfless service and sacrifice of Sergeant Major of the Army Dailey and his family. I wish him the very best as he begins this new chapter of his life.

HONORING SIGMON TAYLOR PHOTOGRAPHY FOR RECEIVING THE 2019 JEFF MILLER AWARD

HON. ELAINE G. LURIA

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mrs. LURIA. Madam Speaker, I rise today to honor and recognize Monica Sigmon and Michael Taylor of Sigmon Taylor Photography for receiving the 2019 Jeff Miller Award through the Hope House Foundation.

Sigmon Taylor Photography is honored for taking professional photographs for the Hope House's Annual Fund Campaign. Their high-quality images captured the individuals the Hope House serves and helped change the way those individuals are perceived by displaying dignity, life, power, and love through visually powerful artwork.

Monica Sigmon and Michael Taylor exemplify leadership, integrity, imagination, and optimism through business and community service.

PERSONAL EXPLANATION

HON. SUSAN W. BROOKS

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mrs. BROOKS of Indiana. Madam Speaker, I was not present for the following roll call votes. Had I been present, I would have voted as follows: Roll Call 431—"yea"; Roll Call 432—"yea"; and Roll Call 433—"yea".

INTRODUCTION OF THE DISTRICT OF COLUMBIA FEDERAL OFFICIALS RESIDENCY REQUIREMENT EQUALITY ACT

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Ms. NORTON. Madam Speaker, today, I introduce the District of Columbia Federal Officials Residency Requirement Equality Act, which would amend federal law to require certain federal officials who serve the District of Columbia to actually live within its boundaries. In nearly every other jurisdiction in the United States, federal district court judges, federal circuit court judges, U.S. Attorneys and U.S. Marshals are required by federal law to reside within the jurisdictions where they have been appointed—but these same officials appointed to serve only the people of the District are not bound by these same requirements. Even in the territories, such officials are required to live in those districts, other than the U.S. Attorney and U.S. Marshal appointed for the Northern Mariana Islands who at the same time are serving in the same capacity in another district. The only other exceptions exist for such officials appointed to the Southern District of New York and the Eastern District of New York, which are the only districts that serve different parts of the same city. My bill would put the District on equal footing with almost every other jurisdiction by ensuring that our judges, U.S. Marshals and U.S. Attorney live among the residents they have been appointed to represent, in keeping with the federal law that applies elsewhere in the United States.

The requirement that these federal officials ought to live in the jurisdictions they serve is significantly related to knowledge of the effect of their decisions, an important reason the residency requirement is enshrined in federal law. As stated in the official commentary to the Code of Conduct for United States Judges, "a judge should not become isolated from the society in which the judge lives." The same holds true for other federal officials. My bill recognizes that the District deserves federal officials with the same understanding and links to the community as Congress has seen fit to require for federal officials in other jurisdictions.

I urge my colleagues to support this bill.

CORPSMAN MARCUS ALLEN KENNEDY

HON. DONALD NORCROSS

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. NORCROSS. Madam Speaker, I rise today to honor United States Navy Veteran, Hospital Corpsman Marcus Allen Kennedy of Clementon in Camden County located in New Jersey's First Congressional District.

On February 22, 2011, Corpsman Kennedy began basic training at Great Lakes, Chicago. He then traveled to San Antonio, Texas where he trained and served as a medical assistant and EMT. Afterwards, he trained for an additional three months at Camp Johnson, North Carolina.

His first station took place at Fort Smith Navy Hospital in Virginia where he worked in the medical and surgery ward where he assisted nurses, administered medicine, and transported patients. After his station in Virginia, Corpsman Kennedy was nominated to sail on the USS *George H.W. Bush*.

In 2013, he was transferred to Camp Pendleton in California where he provided the 2nd Battalion, 1st Marine regime with medical care. Corpsman Kennedy was deployed on the 11th Marine Expedition Unit and was on call for the Western Pacific. During his sailing he furthered his training in the military in Malaysia and Kuwait.

Following his deployment, Corpsman Kennedy returned to California for his certification in phlebotomy and medical assistance. In 2016, he moved to Pennsylvania to work for the American Red Cross, followed by Cooper Hospital. He went on to enroll in school at Camden County College where he graduated with an Associate's Degree in Human Services and Addiction Counseling.

Currently, Corpsman Kennedy works for the Center for Family Services as a recovery specialist and will be attending Rutgers University–Camden in the fall where he will study social work.

Corpsman Kennedy has been awarded the Joint Meritorious Unit Award, 1st Navy Good Conduct Award, National Defense Service Medal, Global War on Terrorism Expeditionary Medal, Army Good Conduct Medal, National

Defense Service Medal, Global War on Terrorism Service Medal, Sea Service Deployment Ribbon, and Navy Pistol Marksmanship Ribbon.

Madam Speaker, I ask you to join me in honoring Corpsman Marcus Allen Kennedy's valiant service to his country.

PERSONAL EXPLANATION

HON. VICENTE GONZALEZ

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. GONZALEZ of Texas. Madam Speaker, I was unable to cast my vote on July 15, 2019 for Roll Call Vote 475, Roll Call Vote 476, and Roll Call Vote 477. Had I been present, my vote would have been the following: Yea on Roll Call Vote 475, Yea on Roll Call Vote 476, and Yea on Roll Call Vote 477.

RECOGNITION OF MADAM C.J. WALKER AND RENAMING OF WEST 136TH STREET BETWEEN LENOX AVENUE AND ADAM CLAYTON POWELL BOULEVARD AS ''MADAM CJ WALKER WAY''

HON. ADRIANO ESPAILLAT

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. ESPAILLAT. Madam Speaker, Madam C.J. Walker is the first self-made American female millionaire and the wealthiest African American woman of her time as an inventor and entrepreneur.

Madam C.J. Walker born as Sarah Breedlove on December 23, 1867 in Louisiana to Owen and Minerva Anderson Breedlove was the first of her family born into freedom.

Madam C.J. Walker was orphaned at a young age. She first married during her adolescent years and became a widow only a few years later. After the death of her husband Moses McWilliams, she overcame adversity and moved to St. Louis, Missouri as a single mother to her young daughter A'lelia Walker working as a laundress—barely earning one dollar a day—she persevered through the hardships of poverty solely focused on supporting herself and her daughter.

Madam C.J. Walker was determined to make a better life for her and her daughter and she was inspired to start her own line of beauty products. Her inspiration stemmed from her own struggle as an African American woman who had difficulty finding hair-care products that were not only aimed for a specific hair type, but were also owned by an African American woman.

Madam C.J. Walker was an activist and philanthropist who worked alongside her daughter A'lelia Walker, leading the vanguard of women and women of color in the world of business, philanthropy, advocacy with the National Association for the Advancement of Colored People, the National Negro Business League, and the National Conference on Lynching, and rich history and culture of Harlem during the Harlem Renaissance.

Madam C.J. Walker dedicated her wealth and success to better the lives of young African-American men and women through scholarships for the Young Men's Christian Association, the Tuskegee Institute, Bethune-Cookman University, and the Bethel African Methodist Episcopal Church as a testament to her fervent belief in furthering African Americans as they pursue economic independence and financial security which continues to pave the way for African Americans nationwide.

As the Representative of the Thirteenth Congressional District of New York in the United States House of Representatives, I am proud to recognize Madam C.J. Walker for her inspiration and achievement impact in the African American community and celebrate the renaming of West 136th Street between Lenox Avenue and Adam Clayton Powell Boulevard as ''Madam CJ Walker Way''.

RECOGNIZING COLLEEN O'HARRA AS THE CONSTITUENT OF THE MONTH

HON. MIKE LEVIN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. LEVIN of California. Madam Speaker, I am honored to recognize Mrs. Colleen O'Harra, the co-founder of the Oceanside Women's Resource Center and a former member of the Oceanside City Council, as my Constituent of the Month for July. For 45 years, Colleen and her team have been serving survivors of domestic violence and their children at the Women's Resource Center, working tirelessly to ensure that community members receive the services and support they need to recover.

The Women's Resource Center opened during a time when there was limited to no services available for domestic abuse victims, becoming the only facility of its kind aiding North County San Diego families. Under Colleen's trailblazing leadership, the Women's Resource Center grew from an ''underground'' network where domestic abuse survivors received short-term assistance in private homes, to a 31-bed shelter providing long-term housing, support, and resources to survivors.

Colleen's work is imperative as we address the epidemic of violence against women that plagues our country. Each year, approximately 12 million adults and over 15 million children are exposed to domestic violence. These alarming figures tell us that we must do more at the local, state, and federal level to empower survivors and raise community awareness, ensuring that domestic violence and sexual assault are neither tolerated nor accepted in our communities. In April, the House of Representatives passed the Violence Against Women Reauthorization Act of 2019 (VAWA) with bipartisan support to prevent domestic violence and ensure survivors have resources to recover and seek justice. Today, I urge my colleagues in the U.S. Senate to help end the cycle of domestic violence and reauthorize the VAWA.

I launched a Constituent of the Month program to recognize residents of the 49th District who have gone above and beyond to support our neighbors and make our community stronger. After 45 years of providing critical support services and shelter to survivors in our community, we owe Colleen a debt of gratitude, and I am proud to recognize her as the Constituent of the Month.

HONORING GERMAINE CLAIR AND BROOKS JOHNSON FOR THE 2019 HOPE HOUSE COMMUNITY AWARD

HON. ELAINE G. LURIA

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mrs. LURIA. Madam Speaker, I rise today to honor and recognize Germaine Clair and Brooks Johnson for receiving the 2019 Hope House Community Award.

Germaine Clair and Brooks Johnson are honored for supporting the Hope House's fundraiser and opening their lovely home during the fall art show to host the Taste for the Arts Donor Brunch. Their graciousness offered a wonderful tool to strengthen the Hope House and introduce new friends to the Hope House Foundation through the Stockley Gardens Arts Festival.

I commend their dedication to growing inclusion through the arts in our community and strengthening the Hope House's mission.

IN RECOGNITION OF ROBERT REIGEL'S KNIGHT OF THE LEGION OF HONOR MEDAL AWARD

HON. MIKE GALLAGHER

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. GALLAGHER. Madam Speaker, I rise today to recognize Robert Reigel for receiving the Knight of the Legion of Honor Medal from the people of France for his service during WWII.

Robert, who recently celebrated his 100th birthday, enlisted with the U.S. Army in 1943. He served in four battles overseas during WWII, which included deployments to France, England, Italy, and Bavaria. Through his service, he earned the Victory Medal, the European-African-Middle Eastern Theater Ribbon with four Bronze Battle Stars, two Overseas Service Bars, and a Good Conduct Medal. He retired from the U.S. Army with a Technician Fifth Grade rank.

The Knight of the Legion of Honor Medal was established in 1802 and pays tribute to soldiers who helped liberate France and Western Europe during WWII. It is the highest military distinction given to those who have accomplished exceptional deeds for France.

The Hon. Guillaume Lacroix, Consul General of France in Chicago, presented the prestigious award to Robert during a ceremony at the Wisconsin Veterans Home at King. Surrounded by his family and fellow veterans, Robert was honored as a hero to both America and France.

Madam Speaker, I urge all members of this body to join me in thanking Mr. Robert Reigel for his service to our country. His dedication to our country and his valor in service are truly an inspiration to us all.

HONORING SENATOR ROBERT ''BOB'' DOLE FOR HIS LIFETIME OF SERVICE TO OUR NATION ON ''SENATOR BOB DOLE DAY''

HON. ELISE M. STEFANIK

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Ms. STEFANIK. Madam Speaker, I rise today with the 10th Mountain Division, the Thousand Island Park Foundation, and the rest of New York's 21st District to recognize the life and service of Senator Robert ''Bob'' Dole.

In 1942, during the height of World War II, Senator Dole was stationed with the 10th Mountain Division. During his deployment to Italy, he was wounded by machinegun fire and received a Purple Heart for his courageous actions.

Senator Dole's introduction to public office began in 1950 with the Kansas State House of Representatives. After serving one term, he went on to spend the next eight years as the Russell County State Attorney. In 1960, he ran successfully for the U.S. House of Representatives where he served for nearly a decade before running for the U.S. Senate. Senator Dole served in this capacity for three decades, holding numerous leadership positions including Chair of the Republican National Committee, Ranking Member of the Senate Agriculture Committee, Chair of the Senate Finance Committee, and Senate Minority Leader.

Senator Dole was immensely respected by his colleagues on both sides of the isle. He always negotiated in good faith for the good of his constituents and served his country honorably his entire career. He continues to inspire young Americans to serve their country and pursue public office. I applaud the Jefferson County Legislature for passing a resolution declaring July 20th ''Senator Bob Dole Day''. Senator Dole is certainly a deserving recipient of this recognition and I know that I speak for all of New York's 21st District in thanking Senator Dole for his selfless service to our country and contribution to our national polity.

SHIRLEY HARTMANN'S 90TH BIRTHDAY

HON. FRANCIS ROONEY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. ROONEY of Florida. Madam Speaker, I rise today to wish a happy birthday on September 1st to Shirley Hartmann on turning 90. Shirley, a native of New Jersey, now a resident of Bentley Village with her dog Brando, is enjoying her retirement. Shirley is a fixture on the golf course and has even served as the President of the Ladies 9–Hole Association. When she isn't spending her time golfing, she enjoys playing bocce ball, volunteering at a local community thrift shop, and catching up with friends over dinner.

It is my hope that Shirley continues to enjoy her retirement and putting a smile on everyone's face she meets for a long time to come.

Happy Birthday Shirley.

HONORING THE LIFE OF LaQUITA BROWN

HON. ELAINE G. LURIA

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mrs. LURIA. Madam Speaker, I rise today to honor and recognize the late LaQuita Brown, who was senselessly murdered in the Virginia Beach Municipal Center shooting. Virginia Beach lost LaQuita far too soon.

LaQuita was a faithful employee and served the Department of Public Works for the City of Virginia Beach for nearly five years. Friends described LaQuita as lighting up a room with her presence. LaQuita spent time traveling to New York City, Europe, and West Africa. LaQuita's life of hard work and service to the community, as well as her bright spirit, will forever be remembered.

LaQuita will be missed by all her loved ones. Hampton Roads significantly benefited from her presence; she made our community a better place. Today we remember and honor her life.

PERSONAL EXPLANATION

HON. RODNEY DAVIS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. DAVIS of Illinois. Madam Speaker, I was unavoidably detained. Had I been present, I would have voted YEA on Roll Call No. 477.

WISHING MR. TOM WILEY A HAPPY 75TH BIRTHDAY

HON. JOHN JOYCE

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. JOYCE of Pennsylvania. Madam Speaker, I rise today to honor Altoona native Tom Wiley on his 75th Birthday. Tom has spent more than 15 years in public service protecting America's most influential leaders working for the United States Secret Service.

During his time in the Secret Service, Mr. Wiley protected Presidents Jimmy Carter, Ronald Reagan, and George H.W. Bush. He also was Supervisor of Detail for Vice President Dan Quayle. Wiley was in charge of hospital security after the assassination attempt on President Reagan in 1981.

During his time in Altoona at Bishop Guilfoyle, Wiley was an outstanding student athlete, playing both football and basketball. He also met his wife, Kathy Urban, while they were both high school students and they have been together since. After college at Purdue University, Wiley returned home to Bishop Guilfoyle from 1968 to 1971 to teach and coach.

Wiley has dedicated his life of service to his country. I ask my colleagues to join me in wishing Tom Wiley a happy 75th birthday and thank him for his incredible service to our country.

HONORING THE 50TH ANNIVERSARY OF THE ALBEMARLE PLANT IN MAGNOLIA, ARKANSAS

HON. BRUCE WESTERMAN

OF ARKANSAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. WESTERMAN. Madam Speaker, I rise today to recognize the 50th anniversary of the operations at the Albemarle Corporation's plant in Magnolia, Arkansas.

Albemarle's Magnolia manufacturing plant is one the world's largest suppliers of bromine and bromine chemicals with forty percent of the world's bromine produced at this site. The chemical ingredients produced at the plant are used as additives for a wide range of products manufactured by pharmaceutical companies, cleaning product manufacturers, water treatment companies, agricultural companies, electronics goods manufacturers, refineries, and paper companies.

The plant not only provides good paying jobs to hundreds of Arkansans throughout the Fourth District of Arkansas, but it is also a regional steward that sets an example of how a corporation should be a leader in the community.

I take this time to thank Albemarle Corporation for fifty great years of operating safely, responsibly, and efficiently, and look forward to fifty more.

HONORING THE LIFE OF HERBERT ''BERT'' SNELLING

HON. ELAINE G. LURIA

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mrs. LURIA. Madam Speaker, I rise today to honor and recognize the late Herbert Snelling, who was senselessly murdered in the Virginia Beach Municipal Center shooting. Virginia Beach lost Herbert far too soon.

Herbert, known as Bert, was a Virginia Beach native and served as a contractor. Bert was admired by many of his neighbors and church family. People praised Bert for his faith and his dedication to helping others. Bert's life of hard work and his sweet spirit will forever be remembered.

Bert will be missed by all his loved ones. Hampton Roads significantly benefited from his presence; he made our community a better place. Today we remember and honor his life.

IN RECOGNITION OF 125 YEARS OF SUCCESS FOR THE BRILLION NEWS

HON. MIKE GALLAGHER

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. GALLAGHER. Madam Speaker, I rise today to recognize the 125th anniversary of The Brillion News.

This award winning Northeast Wisconsin news outlet began in 1894 when William Stoddard opened the paper on Main Street. The very first edition called for advertisers, writers,

and correspondents, and was printed on a foot-powered press. Brillion at the time was largely a German immigrant community. This presented an issue for the original owners, who could neither speak nor read the German language.

In 1899, Otto Zander entered the business. To the company's benefit, he could speak German. Under Otto's direction, the paper focused on local news in the greater Brillion community. Otto published community events, wedding announcements and obituaries, and showcased local businesses.

The Brillion News was, and remains, a family business. Otto's son, Elliot, joined the paper in 1927, operating the Line-O-type machine and learning skills in editing. In 1944, Otto passed away, and complete ownership of the business was transferred to Elliot. Continuing in the footsteps of his father, Elliot became publisher and editor of The Brillion News and was later elected president of the Wisconsin Newspaper Association.

In the early 1960s, Elliot's children, Zane and Noel, joined the business, leading to the incorporation of Zander Press in 1965. Noel took up sports reporting and covered Brillion athletics for 33 years. Zane used his skill set in design to create The Brillion News flag and Zander Press logo. In 2005, Zander Press, Inc. was sold to Zane's four children, passing the business on to the next generation of the Zander family.

Today, The Brillion News has a weekly subscription of 2,000 and provides local news to residents throughout Brown, Calumet, and Manitowoc counties. Zander Press, Inc. is currently operated and owned by Beth Wenzel, Darcy Zander-Feinauer and Kris Bastian.

Madam Speaker, it is my honor to congratulate The Brillion News on its 125 years of success in business. I wish the Zander family many more years of continued success.

INTRODUCTION OF THE INSURANCE ACT—IMPROVING NATIONAL SAFETY BY UPDATING THE REQUIRED AMOUNT OF INSURANCE NEEDED BY COMMERCIAL MOTOR VEHICLES PER EVENT ACT

HON. JESÚS G. "CHUY" GARCÍA

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. GARCÍA of Illinois. Madam Speaker, I rise in support of the INSURANCE Act, a bill introduced today with Representative MATT CARTWRIGHT to ensure that those who fall victim to crashes with motor carriers receive the fair financial compensation they deserve to cope with their tragedies.

On May 2, 2005, Kate Brown's 27-year-old son Graham was hit by an impaired and fatigued truck driver in Round Lake, Illinois. Graham underwent 22 different surgeries, and three full years of physical and occupational therapy. He is now permanently, partially disabled.

Their story is unfortunately an all-too often occurrence on today's roads. In fact, since 2007, the U.S. has seen a 41 percent increase in truck crash fatalities; an increase that was felt by Pam Biddle's family. In 2017, Pam's 23-year-old son, Aaron Lee, was with his father, Brian, and Brian's partner, Stephanie Swaim in traffic, when they were rear-ended and pushed into another semi in front of them. Both vehicles burst into flames killing Aaron, Brian, and Stephanie. Aaron was close to receiving his degree from the Purdue School of Nursing. Brian was a Navy veteran who served in Operation Desert Storm. Stephanie is survived by her five children.

Thousands of families, like Kate's and Pam's, are suffering in silence, saddled with crippling medical and long-term care costs associated with catastrophic injuries that come as a result of crashes with motor carriers and large trucks.

I am so proud to lead this effort with Rep. MATT CARTWRIGHT to do better for those who fall victim to the nightmare of such accidents.

The INSURANCE Act ties the minimum insurance required for large trucks or motor carriers to inflation of medical costs. For 40 years, since 1980, that minimum requirement has remained stagnant at $750,000. That minimum should be almost 6.5x higher, to account for today's inflation of medical costs—a figure we calculated using the estimated rate of inflation for medical costs issued by the Bureau of Labor Statistics.

This bill is not asking for anything unreasonable. Families shouldn't have to go bankrupt because a family member died or became severely injured with life-long disabilities as a result of negligent truck drivers. Big Business shouldn't grow profit margins by leaving the taxpayer's to foot the bill for medical costs that families cannot realistically cover.

For these families, we should do better. This bill is common sense and it is simply the right thing to do. In fact for families like Kate's or Pam's, it is long overdue.

We urge members to cosponsor the INSURANCE Act and require that families are adequately compensated for the injuries and fatalities caused by motor carrier negligence.

HONORING ALLIE D. FOSTER JACKSON

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. THOMPSON of Mississippi. Madam Speaker, I rise today to honor a remarkable public servant, Mrs. Allie D. Foster Jackson. Allie was born August 4, 1927 in Kosciusko, Mississippi.

Mrs. Jackson confessed Christ at an early age and joined Wesley United Methodist Church in Kosciusko, Mississippi and later became a lifelong member of Anderson United Methodist Church. While at Anderson, she served as the church pianist, organist, coordinator of the annual Christmas and Easter presentations.

She graduated from Piney Woods High School and received her B.S. degree in Education from Jackson State College. She further attended Atlanta University and Indiana University to specialize in librarianship. Mrs. Jackson's teaching career spanned over 33 years and included English, band, choir and library science. After retiring from the Jackson Public School System, she volunteered at Tougaloo College in their College Library System where she received the Volunteer of the Year Award in 2001.

She leaves to cherish her memory two siblings and three sister-in-laws: Mary Virginia Ukegbu Kosciusko, Mississippi and Charles (Faye) Foster, Jackson, Mississippi; Bessie L. Foster, Kosciusko, Mississippi and Betty Foster, Atlanta, Georgia; a son, Embra K. Jackson, Jr. (Rosia), Starkville, Mississippi; grandchildren: Keith Payne, Kevin (Sandy) Payne, and Krystal Payne, Embra K. Jackson, III (Suyapa), Ebony K. Nance (Chris), Emmanuel K. Jackson (Ashley) and Katelyn Jackson; 15 great grandchildren and 2 great-great grandchildren.

Madam Speaker, I ask my colleagues to join me in recognizing the late Mrs. Allie D. Foster Jackson.

RECOGNIZING SUELLEN GRIFFIN

HON. ANN M. KUSTER

OF NEW HAMPSHIRE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Ms. KUSTER of New Hampshire. Madam Speaker, I rise today to honor Suellen Griffin, President and Chief Executive Officer of West Central Behavioral Health, for her service and leadership of West Central Behavioral Health for 11 years, and more than 40 years in the field of behavioral health management.

Through Suellen's leadership and dedication, West Central Behavioral Health has continued to serve as the Sullivan County region's community mental healthcare provider, ensuring access to advanced counseling, treatment, support and full continuum of care services. Suellen has been a leading and respected voice in the Granite State advocating for increased mental health and substance misuse care. I commend Suellen on her retirement after four decades of work in behavioral health.

On behalf of my constituents in New Hampshire's Second Congressional District, congratulations to Suellen Griffin for a well-deserved retirement. I thank her for her service and wish her the very best in the years to come.

HONORING THE GOOD SAMARITAN SOCIETY VETERANS ASSOCIATION

HON. DARREN SOTO

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. SOTO. Madam Speaker, I rise to recognize the Good Samaritan Society Veterans Association. The Good Samaritan Society has served the Kissimmee community with a continuum of senior care, from independent living to long-term skilled nursing care. Since 1979, the Kissimmee Village has continued to offer quality housing and healthcare options for seniors at all stages of aging. Its facilities have been a fixture in our community and critical residence for numerous retirees in Central Florida.

This year, the Good Samaritan Society Veterans Association is celebrating 102 of their veterans who have been nominated for the Florida State Service Medal and are to be inducted into the Florida Veterans Hall of Fame.

The Association now comprises 122 veterans in the Central Florida area, including 26

from World War II, 18 from the Korean War, 32 from the Vietnam War, 24 from Operation Enduring Freedom, and five from Operation Desert Storm.

Central Florida's veterans are essential and valued members of our community. The services, programming, and support offered by the Good Samaritan Veterans Association continues to uplift our veterans in numerous ways.

HONORING THE BRAVERY OF OFFICER JOSH ROBERTSON

HON. DAVID P. JOYCE

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 16, 2019

Mr. JOYCE of Ohio. Madam Speaker, I rise today to recognize the heroic actions of one of Painesville's own, Josh Robertson, a Cleveland Heights Police Officer, who selflessly braved a life-threatening blaze to rescue a 6-year-old child from a burning home on July 6, 2019.

When Officer Robertson arrived at the scene of the fire, he encountered a frantic young mother whose son had been trapped in the burning house. Without any hesitation, Officer Robertson jumped into action and crawled inside to rescue the child, who was lying unconscious among the flames. According to the Fire Chief, it is unlikely that the boy would have survived another five minutes. Officer Robertson's heroic actions singlehandedly prevented the unspeakable tragedy of a mother losing her son.

It is stories like these that remind us of the irreplaceable role that our law enforcement officers and first responders play in our communities. I am extremely proud to have such a courageous officer from Ohio's Congressional District 14; Northeast Ohio is lucky to have Officer Robertson protecting its citizens.

Madam Speaker, please join me in applauding the bravery and selflessness of Officer Robertson.

Daily Digest

HIGHLIGHTS

Senate agreed to the resolution of ratification of the Protocol Amending the Tax Convention with Spain (Treaty Doc. 113–4).

Senate

Chamber Action

Routine Proceedings, pages S4829–4870

Measures Introduced: Thirteen bills and one resolution were introduced, as follows: S. 2122–2134, and S.J. Res. 50. **Page S4856**

Measures Reported:

S. 1694, to require any Federal agency that issues licenses to conduct activities in outer space to include in the requirements for such licenses an agreement relating to the preservation and protection of the Apollo 11 landing site, with an amendment in the nature of a substitute. **Page S4856**

Measures Passed:

Ukraine's Revolution of Dignity 5th Anniversary: Senate agreed to S. Res. 74, marking the fifth anniversary of Ukraine's Revolution of Dignity by honoring the bravery, determination, and sacrifice of the people of Ukraine during and since the Revolution, and condemning continued Russian aggression against Ukraine, after the committee amendment to the preamble was withdrawn, and agreeing to the following amendments proposed thereto:

Pages S4860–64

Thune (for Portman) Amendment No. 926, in the nature of a substitute. **Page S4861**

Thune (for Portman) Amendment No. 925, to amend the preamble. **Page S4862**

Payment Integrity Information Act: Senate passed S. 375, to improve efforts to identify and reduce Governmentwide improper payments.

Pages S4864–70

Human Rights in Brunei: Senate agreed to S. Res. 198, condemning Brunei's dramatic human rights backsliding, after agreeing to the committee amendment in the nature of a substitute, and the committee reported amendment to the preamble.

Page S4870

Treaty Approved: The following treaty having passed through its various parliamentary stages, up to and including the presentation of the resolution of advice and consent to ratification, two-thirds of the Senators present having voted in the affirmative, the resolution of ratification was agreed to by a vote of 94 yeas to 2 nays (Vote No. EX. 209): The Protocol Amending the Tax Convention with Spain (Treaty Doc. 113–4), after taking action on the following amendments proposed thereto: **Pages S4847–50**

Rejected:

By 4 yeas to 92 nays (Vote No. EX. 207), Paul Amendment No. 924, to amend the Protocol to protect tax privacy. **Page S4849**

By 4 yeas to 92 nays (Vote No. EX. 208), Paul Amendment No. 921 (to the resolution of ratification for the treaty), to provide a reservation to the Protocol. **Pages S4849–50**

Withdrawn:

McConnell Amendment No. 910, to change the enactment date. **Page S4847**

During consideration of this treaty today, Senate also took the following action:

By 94 yeas to 1 nay (Vote No. EX. 206), Senate agreed to the motion to close further debate on the treaty. **Page S4847**

McConnell Amendment No. 911 (to Amendment No. 910), of a perfecting nature, fell when McConnell Amendment No. 910 (listed above), was withdrawn. **Page S4847**

Treaties and Nominations—Agreement: A unanimous-consent agreement was reached providing that the only amendments in order to Protocol Amending Tax Convention with Swiss Confederation (Treaty Doc. 112–1), Protocol Amending the Tax Convention with Japan (Treaty Doc. 114–1), and Protocol Amending Tax Convention with Luxembourg (Treaty Doc. 111–8), be Paul Amendments No. 922, 919, 923, 918, and 920; that the motions to invoke cloture on Protocol Amending Tax Convention with

Swiss Confederation (Treaty Doc. 112–1), Protocol Amending the Tax Convention with Japan (Treaty Doc. 114–1), and Protocol Amending Tax Convention with Luxembourg (Treaty Doc. 111–8), be withdrawn, the pending amendments to the treaties be withdrawn, and Senate vote on ratification of the treaties at a time to be determined by the Majority Leader, in consultation with the Democratic Leader, on Wednesday, July 17, 2019; and that the motions to invoke cloture on the nominations of Clifton L. Corker, to be United States District Judge for the Eastern District of Tennessee, Lynda Blanchard, of Alabama, to be Ambassador to the Republic of Slovenia, and Donald R. Tapia, of Arizona, to be Ambassador to Jamaica, ripen following disposition of the Protocol Amending Tax Convention with Luxembourg (Treaty Doc. 111–8). **Page S4847**

A unanimous-consent agreement was reached providing that at 11 a.m., on Wednesday, July 17, 2019, Senate vote on the resolutions of ratification for Protocol Amending Tax Convention with Swiss Confederation (Treaty Doc. 112–1), Protocol Amending the Tax Convention with Japan (Treaty Doc. 114–1), and Protocol Amending Tax Convention with Luxembourg (Treaty Doc. 111–8), as under the order of Tuesday, July 16, 2019; that following disposition of Protocol Amending Tax Convention with Luxembourg (Treaty Doc. 111–8), Senate resume consideration of the nomination of Clifton L. Corker, to be United States District Judge for the Eastern District of Tennessee; and that notwithstanding Rule XXII, at 2 p.m., on Wednesday, July 17, 2019, Senate vote on the motions to invoke cloture on the nominations of Clifton L. Corker, to be United States District Judge for the Eastern District of Tennessee, Lynda Blanchard, of Alabama, to be Ambassador to the Republic of Slovenia, and Donald R. Tapia, of Arizona, to be Ambassador to Jamaica, and that if cloture is invoked, the votes on confirmation of the nominations occur at a time to be determined by the Majority Leader, in consultation with the Democratic Leader, on Thursday, July 18, 2019. **Page S4851**

A unanimous-consent agreement was reached providing that at approximately 10 a.m., on Wednesday, July 17, 2019, Senate resume consideration of Protocol Amending Tax Convention with Swiss Confederation (Treaty Doc. 112–1). **Page S4870**

Nomination Confirmed: Senate confirmed the following nomination:

By 56 yeas to 40 nays (Vote No. EX. 205), Peter Joseph Phipps, of Pennsylvania, to be United States Circuit Judge for the Third Circuit.

Pages S4830–40, S4840–47

Messages from the House: **Page S4852**

Measures Referred: **Page S4852**

Measures Placed on the Calendar: **Pages S4852–53**

Measures Read the First Time: **Page S4853**

Executive Communications: **Pages S4853–56**

Additional Cosponsors: **Pages S4856–58**

Statements on Introduced Bills/Resolutions: **Page S4859**

Additional Statements: **Page S4852**

Amendments Submitted: **Pages S4859–60**

Authorities for Committees to Meet: **Page S4860**

Privileges of the Floor: **Page S4860**

Record Votes: Five record votes were taken today. (Total—209) **Pagea S4847, S4849–50**

Adjournment: Senate convened at 10 a.m. and adjourned at 6:39 p.m., until 10 a.m. on Wednesday, July 17, 2019. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S4870.)

Committee Meetings

(Committees not listed did not meet)

NOMINATION

Committee on Armed Services: Committee concluded a hearing to examine the nomination of Mark T. Esper, of Virginia, to be Secretary of Defense, after the nominee, who was introduced by Senator Kaine, testified and answered questions in his own behalf.

FACEBOOK'S PROPOSED DIGITAL CURRENCY

Committee on Banking, Housing, and Urban Affairs: Committee concluded a hearing to examine Facebook's proposed digital currency and data privacy considerations, including S. 1060, to deter foreign interference in United States elections, after receiving testimony from David Marcus, Calibra, Facebook, San Francisco, California.

BUSINESS MEETING

Committee on Energy and Natural Resources: Committee ordered favorably reported the following business items:

S. 143, to authorize the Department of Energy to conduct collaborative research with the Department of Veterans Affairs in order to improve healthcare services for veterans in the United States;

S. 174, to provide for the establishment of a pilot program to identify security vulnerabilities of certain entities in the energy sector, with an amendment;

S. 253, to coordinate the provision of energy retrofitting assistance to schools, with an amendment;

S. 520, to require the Secretary of Energy to establish an energy efficiency materials pilot program, with an amendment;

S. 715, to improve the productivity and energy efficiency of the manufacturing sector by directing the Secretary of Energy, in coordination with the National Academies and other appropriate Federal agencies, to develop a national smart manufacturing plan and to provide assistance to small- and medium-sized manufacturers in implementing smart manufacturing programs;

S. 816, to amend the Natural Gas Act to expedite approval of exports of small volumes of natural gas;

S. 859, to amend the Energy Policy Act of 2005 to reauthorize hydroelectric production incentives and hydroelectric efficiency improvement incentives, with an amendment in the nature of a substitute;

S. 903, to direct the Secretary of Energy to establish advanced nuclear goals, provide for a versatile, reactor-based fast neutron source, make available high-assay, low-enriched uranium for research, development, and demonstration of advanced nuclear reactor concepts, with an amendment in the nature of a substitute;

S. 983, to amend the Energy Conservation and Production Act to reauthorize the weatherization assistance program;

S. 1052, to authorize the Office of Fossil Energy to develop advanced separation technologies for the extraction and recovery of rare earth elements and minerals from coal and coal byproducts, with an amendment in the nature of a substitute;

S. 1064, to require the Secretary of Energy to conduct a study on the national security implications of building ethane and other natural-gas-liquids-related petrochemical infrastructure in the United States, with an amendment;

S. 1085, to support research, development, and other activities to develop innovative vehicle technologies;

S. 1201, to amend the fossil energy research and development provisions of the Energy Policy Act of 2005 to enhance fossil fuel technology, with an amendment in the nature of a substitute;

S. 1245, to improve energy performance in Federal buildings, with an amendment;

S. 1286, to amend the Energy Policy Act of 2005 to facilitate the commercialization of energy and related technologies developed at Department of Energy facilities with promising commercial potential;

S. 1317, to facilitate the availability, development, and environmentally responsible production of domestic resources to meet national material or critical mineral needs, with an amendment in the nature of a substitute;

S. 1685, to require the Secretary of Energy to establish a program for the research, development, and demonstration of commercially viable technologies for the capture of carbon dioxide produced during the generation of natural gas-generated power, with an amendment in the nature of a substitute;

S. 1706, to amend the National Energy Conservation Policy Act to encourage the increased use of performance contracting in Federal facilities;

S. 1857, to amend the National Energy Conservation Policy Act to improve Federal energy and water performance requirements for Federal buildings and establish a Federal Energy Management Program, with an amendment;

H.R. 347, to extend the authorization of the Uranium Mill Tailings Radiation Control Act of 1978 relating to the disposal site in Mesa County, Colorado;

H.R. 762, to amend the Energy Policy and Conservation Act to provide for the dissemination of information regarding available Federal programs relating to energy efficiency projects for schools, with an amendment in the nature of a substitute; and

H.R. 1138, to reauthorize the West Valley demonstration project.

WILD HORSE AND BURRO PROGRAM

Committee on Energy and Natural Resources: Subcommittee on Public Lands, Forests, and Mining concluded a hearing to examine long-term management options for the Bureau of Land Management's Wild Horse and Burro Program, after receiving testimony from Steve Tryon, Deputy Assistant Director for Resources and Planning, Bureau of Land Management, Department of the Interior; Julian J. Goicoechea, Eureka County Board of Commissioners, Eureka, Nevada; Ethan L. Lane, National Horse and Burro Rangeland Management Coalition, and Nancy Perry, American Society for the Prevention of Cruelty to Animals, both of Washington, D.C.; and Eric Thacker, Utah State University, Logan.

IRAQ

Committee on Foreign Relations: Subcommittee on Near East, South Asia, Central Asia, and Counterterrorism concluded a hearing to examine Iraq, focusing on a crossroads of United States policy, after receiving testimony from Joan A. Polaschik, Acting Principal Deputy Assistant Secretary of State, Bureau of Near Eastern Affairs; and Michael P. Mulroy, Deputy Assistant Secretary of Defense for the Middle East.

NOMINATIONS

Committee on Homeland Security and Governmental Affairs: Committee concluded a hearing to examine the nominations of Ann C. Fisher, of the District of Columbia, who was introduced by Senator Carper, and

Ashley Jay Elizabeth Poling, of North Carolina, who was introduced by Representative Meadows, both to be a Commissioner of the Postal Regulatory Commission, Catherine Bird, of Texas, to be General Counsel of the Federal Labor Relations Authority, and Rainey R. Brandt, and Shana Frost Matini, both to be an Associate Judge of the Superior Court of the District of Columbia, after the nominees testified and answered questions in their own behalf.

2020 CENSUS

Committee on Homeland Security and Governmental Affairs: Committee concluded a hearing to examine the 2020 Census, focusing on conducting a secure and accurate count, after receiving testimony from Steven Dillingham, Director, Census Bureau, Department of Commerce; and Robert Goldenkoff, Director, Strategic Issues, and Nick Marinos, Director, Information Technology and Cybersecurity, both of the Government Accountability Office.

CENSORSHIP THROUGH SEARCH ENGINES

Committee on the Judiciary: Subcommittee on the Constitution concluded a hearing to examine Google and censorship through search engines, after receiving testimony from Karan Bhatia, Google, Washington, D.C.; Dennis Prager, Prager University, Los Angeles, California; Jason Kint, Digital Content Next, New York, New York; Francesca Tripodi, James Madison University, Harrisonburg, Virginia; Robert Epstein, American Institute for Behavioral Research and Technology, Vista, California; and Andy Parker, Collinsville, Virginia.

INTELLIGENCE

Select Committee on Intelligence: Committee held closed hearings on intelligence matters, receiving testimony from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 23 public bills, H.R. 3765–3787; and 5 resolutions, H.J. Res. 72; and H. Res. 493–496, were introduced. **Pages H5910–11**

Additional Cosponsors: **Pages H5912–14**

Reports Filed: Reports were filed today as follows:

H.R. 205, to amend the Gulf of Mexico Energy Security Act of 2006 to permanently extend the moratorium on leasing in certain areas of the Gulf of Mexico (H. Rept. 116–156); and H.R. 1941, to amend the Outer Continental Shelf Lands Act to prohibit the Secretary of the Interior including in any leasing program certain planning areas, and for other purposes (H. Rept. 116–157). **Page H5910**

Speaker: Read a letter from the Speaker wherein she appointed Representative Cuellar to act as Speaker pro tempore for today. **Page H5829**

Recess: The House recessed at 10:26 a.m. and reconvened at 12 noon. **Page H5832**

Guest Chaplain: The prayer was offered by the Guest Chaplain, Bishop A. Elias Zaidan, Eparchy of Our Lady of Lebanon of Los Angeles, St. Louis, MO. **Page H5832**

Notice of Intention to Consider: Pursuant to section 3(a) of H. Res. 491, Representative Hoyer gave notice of intention that the House consider the following joint resolutions on Wednesday, July 17, 2019: S.J. Res. 36, S.J. Res. 37, and S.J. Res. 38. **Page H5845**

Condemning President Trump's racist comments directed at Members of Congress: The House agreed to H. Res. 489, condemning President Trump's racist comments directed at Members of Congress, by a recorded vote of 240 ayes to 187 noes, Roll No. 482. **Pages H5845–57**

During consideration, exception was taken to certain words used and a demand was made to have the words taken down. The Chair ruled that the words should not be used in debate. Representative Collins (GA) made a motion to strike the words from the Record, which was rejected by a yea-and-nay vote of 190 yeas to 232 nays, Roll No. 480. Subsequently, Representative Nadler made a motion that Representative Pelosi be permitted to proceed in order, which was agreed to by a recorded vote of 231 ayes to 190 noes, Roll No. 481. **Pages H5851–53**

H. Res. 491, the rule providing for consideration of the bill (H.R. 3494), relating to consideration of H. Rept. 116–125 and an accompanying resolution, and providing for consideration of the resolution (H. Res. 489) was agreed to by a yea-and-nay vote of 233 yeas to 190 nays, Roll No. 479, after the previous question was ordered by a yea-and-nay vote of 230 yeas to 189 nays, Roll No. 478. **Pages H5835–45**

Privileged Resolution—Intent to Offer: Representative Green (TX) announced his intent to offer a privileged resolution. **Pages H5857–58**

Damon Paul Nelson and Matthew Young Pollard Intelligence Authorization Act for Fiscal Year 2020: The House considered H.R. 3494, to authorize appropriations for fiscal year 2020 for intelligence and intelligence-related activities of the United States Government, the Community Management Account, and the Central Intelligence Agency Retirement and Disability System. Consideration is expected to resume tomorrow, July 17th. **Pages H5858–H5910**

Pursuant to the Rule, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 116–22, modified by the amendment printed in part A of H. Rept. 116–154, shall be considered as adopted in the House and in the Committee of the Whole, in lieu of the amendment in the nature of a substitute recommended by the Permanent Select Committee on Intelligence now printed in the bill. **Page H5861**

Agreed to:

Stewart amendment (No. 1 printed in part B of H. Rept. 116–154) that adds Energy and Commerce and HELP to the committees that will receive a briefing from the Director of National Intelligence on the effects of emerging infectious disease and pandemics on national security; **Pages H5887–88**

Stewart amendment (No. 2 printed in part B of H. Rept. 116–154) that directs the Secretary of Homeland Security, in collaboration with the Director of National Intelligence, Chairman of the Federal Communications Commission, and appropriate private entities to undertake an effort to remove or neutralize unauthorized IMSI catchers installed by foreign entities or that have an unknown attribution; **Page H5888**

Carson (IN) amendment (No. 3 printed in part B of H. Rept. 116–154) that safeguards the logistics supply chains for microchips by mandating a report within 180 days for strengthening the supply chain intelligence function; requires the report to address workforce personnel matters, outline budgetary resource needs, and describe the necessary governance structure and authorities for future implementation; **Pages H5888–89**

Hurd (TX) amendment (No. 4 printed in part B of H. Rept. 116–154) that directs the Director of National Intelligence to make assessments regarding drug trafficking, human trafficking, and human smuggling in the Northern Triangle and Mexico and review U.S. intelligence activities in the region; **Pages H5889–90**

Thompson (MS) amendment (No. 5 printed in part B of H. Rept. 116–154) that requires information on Federal compliance with applicable privacy, civil rights, and civil liberties policies and protections, including protections against the public release of personally identifiable information of individuals involved in domestic terrorist incidents, investigations, indictments, prosecutions, or convictions; includes provisions to improve data quality and information regarding domestic terrorist incidents; **Pages H5890–91**

Ruppersberger amendment (No. 6 printed in part B of H. Rept. 116–154) that authorizes a pilot program identifying new classes of security vulnerabilities and researching technology to address the ever-present and changing face of cyber security threats to the energy grid; **Pages H5891–92**

Schiff amendment (No. 8 printed in part B of H. Rept. 116–154) that requires the Director of National Intelligence to submit a report to Congress which includes aggregate demographic data and other information regarding their diversity and inclusion efforts; **Pages H5894–95**

Case amendment (No. 9 printed in part B of H. Rept. 116–154) that requires a report from the Office of the Director of National Intelligence's Office of Civil Liberties, Privacy and Transparency, in coordination with civil liberties and privacy officers of elements of the Intelligence Community, to report on the impacts of policies and practices addressing China's espionage and influence operations in the United States on policies and practices relating to the privacy and civil liberties of Chinese Americans; **Page H5895**

Frankel amendment (No. 10 printed in part B of H. Rept. 116–154) that requires the Director of National Intelligence to submit an intelligence assessment on the relationship between women and violent extremism and terrorism; **Pages H5895–96**

Rice (NY) amendment (No. 12 printed in part B of H. Rept. 116–154) that adds the Under Secretary of Homeland Security for Intelligence and Analysis into the report on possible exploitation of virtual currencies by terrorist actors and requires the report's dissemination to state and local law enforcement; **Pages H5898–99**

Jayapal amendment (No. 13 printed in part B of H. Rept. 116–154) that requires the Director of National Intelligence to submit a report to Congress on the use of face recognition technology by the intelligence community and expresses the sense of Congress that the use of facial recognition technology to suppress criticism or dissent is contrary to the values of the United States and the U.S. government should not sell or transfer facial recognition technology to any country that is using such technology to suppress human rights; **Pages H5899–H5900**

Murphy amendment (No. 14 printed in part B of H. Rept. 116–154) that adds a new section to Title VII (Report on Foreign Weaponization of Deepfakes and Deepfake Technology and Related Notifications) requiring the Director of National Intelligence to prepare an unclassified report for Congress on the potential impact to U.S. national security from the use of deepfake technology by foreign governments (especially the Russian Federation and the People's Republic of China), including foreign intelligence services, foreign government-affiliated entities, and foreign individuals; **Pages H5900–01**

Murphy amendment (No. 15 printed in part B of H. Rept. 116–154) that adds a new section to Title V (Sense of Congress and Report on Iranian Effort in Syria) requiring the Director of National Intelligence, in coordination with the Secretary of State and the Secretary of Defense, to prepare an unclassified report for Congress on efforts by Iran to establish long-term influence in Syria through military, political, economic, social, and cultural means, and the threat posed by such efforts to U.S. interests and allies, including Israel; **Pages H5901–02**

Brindisi amendment (No. 16 printed in part B of H. Rept. 116–154) that clarifies that nothing in this act shall be construed to contradict existing law regarding acts of terrorism transcending national boundaries, providing material support to terrorists, and harboring or concealing terrorists; **Pages H5902–03**

Kinzinger amendment (No. 17 printed in part B of H. Rept. 116–154) that requires the Director of National Intelligence, in consultation with other relevant agencies, to study the threat of international mobile subscriber identity-catchers, also known as cell-site simulators, to U.S. Government personnel and national security and provide a report and policy recommendations to Congress; **Page H5903**

Hill (CA) amendment (No. 18 printed in part B of H. Rept. 116–154) that clarifies existing law and expands protections for whistleblowers to provide classified disclosures to Congressional Committees; **Page H5903**

Levin (MI) amendment (No. 19 printed in part B of H. Rept. 116–154) that requires that a comprehensive report on domestic terrorism be made available on the public internet websites of the National Counterterrorism Center, the Federal Bureau of Investigation, and the Department of Homeland Security, no later than 30 days after submission to the appropriate congressional committees; **Pages H5903–04**

Schiff amendment (No. 20 printed in part B of H. Rept. 116–154) that expands a reporting requirement on repression by the Chinese government in Xinjiang province by requiring additional information on the contributions of external technologies and financial support to the Xinjiang authorities' repression; **Page H5904**

Schiff amendment (No. 21 printed in part B of H. Rept. 116–154) that requires the Director of National Intelligence, the Director of the FBI, and the Undersecretary of DHS for Intelligence to include information regarding training and resources provided to assist Federal, State, Local and Tribal law enforcement agencies in understanding, detecting, deterring and investigating acts of domestic terrorism; **Page H5904**

Rose amendment (No. 22 printed in part B of H. Rept. 116–154) that requires the Department of Homeland Security Office of Intelligence and Analysis to conduct an annual assessment regarding the availability of conventional weapons, including weapons lacking serial numbers, and advanced conventional weapons for use in furthering acts of terrorism, including the provision of material support or resources to a foreign terrorist organization and to individuals or groups supporting or engaging in domestic terrorism; **Pages H5904–05**

Rose amendment (No. 23 printed in part B of H. Rept. 116–154) that requires the Director of National Intelligence, in coordination with the Under Secretary of Homeland Security for Intelligence and Analysis, the Director of the Federal Bureau of Investigation, the Director of the Central Intelligence Agency, and the Director of the Defense Counterintelligence and Security Agency to conduct an assessment of homeland security vulnerabilities associated with retired and former personnel of intelligence community providing covered intelligence assistance; **Page H5905**

Pence amendment (No. 24 printed in part B of H. Rept. 116–154) that allows victims and families of the 1983 terrorist attack at the U.S. Marine Corps Barracks in Beirut, Lebanon to execute on $1.68 billion in Iranian funds; requires the Director of National Intelligence to submit a report to Congress to assess the current threats posed by known terrorist organizations affiliated with the Iranian government against U.S. military assets and personnel; **Pages H5905–06**

Schiff amendment (No. 25 printed in part B of H. Rept. 116–154) that directs the Director of National Intelligence to submit a report on authorities and resources needed and barriers to countering foreign influence efforts aimed at sowing discord or interfering, or both, in the political processes of the United States; **Pages H5906–07**

Schiff amendment (No. 26 printed in part B of H. Rept. 116–154) that requires the National Counterintelligence and Security Center to carry out an annual report on the influence operations and campaigns in the United States conducted by the Russian Federation; **Page H5907**

Yoho amendment (No. 27 printed in part B of H. Rept. 116–154) that includes within the report on 5G technology, the threat to national security of the United States posed by telecommunications companies that are subject to the jurisdiction of a foreign adversary; **Pages H5907–08**

Yoho amendment (No. 28 printed in part B of H. Rept. 116–154) that requires the Director of National Intelligence, in coordination with the Under Secretary of Homeland Security for Intelligence and Analysis, to submit a report on domestic terrorism activity within the United States to the congressional intelligence committees; **Page H5908**

Omar amendment (No. 29 printed in part B of H. Rept. 116–154) that requires a report on the Terrorist Screening Database within 180 days after the enactment of the Intelligence Authorization Act; and **Pages H5908–09**

Crow amendment (No. 31 printed in part B of H. Rept. 116–154) that adds a Sense of Congress that the U.S. should prioritize the safe return of all Americans, including those wrong-fully held by foreign governments, and provide assistance to foreign individuals detained abroad that have contributed to U.S. national security. **Page H5909**

Proceedings Postponed:

Chabot amendment (No. 7 printed in part B of H. Rept. 116–154) that seeks to strike section 401 of the bill which establishes the Climate Security Advisory Council under the Director of National Intelligence; and **Pages H5892–94**

Kennedy amendment (No. 11 printed in part B of H. Rept. 116–154) that seeks to establish the Foreign Threat Response Center, comprised of analysts from all elements of the intelligence community, to provide comprehensive assessment of foreign efforts to influence United States' political processes and elections by the Governments of Russia, Iran, North Korea, China, and any other foreign country the Director determines appropriate. **Pages H5896–98**

H. Res. 491, the rule providing for consideration of the bill (H.R. 3494), relating to consideration of H. Rept. 116–125 and an accompanying resolution, and providing for consideration of the resolution (H. Res. 489) was agreed to by a yea-and-nay vote of 233 yeas to 190 nays, Roll No. 479, after the previous question was ordered by a yea-and-nay vote of 230 yeas to 189 nays, Roll No. 478. **Pages H5835–45**

Quorum Calls—Votes: Three yea-and-nay votes and two recorded votes developed during the proceedings of today and appear on pages H5843–44, H5844–45, H5852, H5853, and H5857. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 9:51 p.m.

Committee Meetings

REVIEWING THE STATE OF THE U.S. LIVESTOCK AND POULTRY ECONOMIES

Committee on Agriculture: Subcommittee on Livestock and Foreign Agriculture held a hearing entitled "Reviewing the State of the U.S. Livestock and Poultry Economies". Testimony was heard from public witnesses.

SCALING UP APPRENTICESHIPS: BUILDING ON THE SUCCESS OF INTERNATIONAL APPRENTICESHIP MODELS

Committee on Education and Labor: Subcommittee on Higher Education and Workforce Investment held a hearing entitled "Scaling Up Apprenticeships: Building on the Success of International Apprenticeship Models". Testimony was heard from public witnesses.

STRENGTHENING FEDERAL SUPPORT TO END YOUTH HOMELESSNESS

Committee on Education and Labor: Subcommittee on Civil Rights and Human Services held a hearing entitled "Strengthening Federal Support to End Youth Homelessness". Testimony was heard from public witnesses.

OVERSIGHT OF FEDERAL EFFORTS TO COMBAT THE SPREAD OF ILLICIT FENTANYL

Committee on Energy and Commerce: Subcommittee on Oversight and Investigations held a hearing entitled "Oversight of Federal Efforts to Combat the Spread of Illicit Fentanyl". Testimony was heard from Kemp Chester, Assistant Director, National Opioids and Synthetics Coordination Group, Office of National Drug Control Policy, Executive Office of the President; Matthew Donahue, Regional Director, North and Central Americas Division, Drug Enforcement Administration, Department of Justice; Thomas Overacker, Executive Director, Office of Field Operations, U.S. Customs and Border Protection, Department of Homeland Security; Gary Barksdale, Chief Postal Inspector, U.S. Postal Service; David A. Prince, Deputy Assistant Director, Transnational Organized Crime, Homeland Security Investigations, Immigration and Customs Enforcement, Department of Homeland Security; and Carol Cave, Director, Office of Enforcement and Import Operations, Office of

Regulatory Affairs, Food and Drug Administration, Department of Health and Human Services.

OUR WIRELESS FUTURE: BUILDING A COMPREHENSIVE APPROACH TO SPECTRUM POLICY

Committee On Energy And Commerce: Subcommittee on Communications and Technology held a hearing entitled "Our Wireless Future: Building A Comprehensive Approach to Spectrum Policy". Testimony was heard from Julius P. Knapp, Chief, Office of Engineering and Technology, Federal Communications Commission; Derek Khlopin, Senior Policy Advisor, National Telecommunications and Information Administration, Department of Commerce; and public witnesses.

MISCELLANEOUS MEASURES

Committee on Financial Services: Full Committee held a markup on H.R. 3621, the "Student Borrower Credit Improvement Act"; H.R. 3623, the "Climate Risk Disclosure Act of 2019"; H.R. 3624, the "Outsourcing Accountability Act of 2019"; H.R. 3625, the "PCAOB Whistleblower Protection Act of 2019"; H.R. 3629, the "Clarity in Credit Score Formation Act of 2019"; H.R. 3641, the "Stronger Enforcement of Civil Penalties Act of 2019"; H.R. 3701, to establish a statute of limitations for certain actions of the Securities and Exchange Commission, and for other purposes; and H.R. 3702, the "Reforming Disaster Recovery Act". H.R. 3621, H.R. 3623, H.R. 3624, H.R. 3625, H.R. 3629, H.R. 3641, H.R. 3701, and H.R. 3702 were ordered reported, as amended.

RUSSIAN DISINFORMATION ATTACKS ON ELECTIONS: LESSONS FROM EUROPE

Committee on Foreign Affairs: Subcommittee on Europe, Eurasia, Energy, and the Environment held a hearing entitled "Russian Disinformation Attacks on Elections: Lessons from Europe". Testimony was heard from public witnesses.

OVERSIGHT OF THE UNITED STATES CAPITOL POLICE

Committee on House Administration: Full Committee held a hearing entitled "Oversight of the United States Capitol Police". Testimony was heard from Michael A. Bolton, Inspector General, U.S. Capitol Police; Paul D. Irving, Sergeant at Arms, U.S. House of Representatives; Steven A. Sund, Chief of Police, U.S. Capitol Police; and a public witness.

WOMEN AND GIRLS IN THE CRIMINAL JUSTICE SYSTEM

Committee on the Judiciary: Subcommittee on Crime, Terrorism, and Homeland Security held a hearing entitled "Women and Girls in the Criminal Justice System". Testimony was heard from public witnesses

POLICY CHANGES AND PROCESSING DELAYS AT U.S. CITIZENSHIP AND IMMIGRATION SERVICES

Committee on the Judiciary: Subcommittee on Immigration and Citizenship held a hearing entitled "Policy Changes and Processing Delays at U.S. Citizenship and Immigration Services". Testimony was heard from the following U.S. Citizenship and Immigration Services officials: Michael Hoefer, Chief, Office of Performance and Quality; Donald Neufeld, Associate Director, Service Center Operations; and Michael Valverde, Deputy Associate Director, Field Operations Directorate; and public witnesses.

ONLINE PLATFORMS AND MARKET POWER, PART 2: INNOVATION AND ENTREPRENEURSHIP

Committee on the Judiciary: Subcommittee on Antitrust, Commercial, and Administrative Law held a hearing entitled "Online Platforms and Market Power, Part 2: Innovation and Entrepreneurship". Testimony was heard from public witnesses.

LEGISLATIVE MEASURES

Committee on Natural Resources: Subcommittee for Indigenous Peoples of the United States held a hearing on H.R. 2414, to amend the Morris K. Udall and Stewart L. Udall Foundation Act; H.R. 2031, the "PROGRESS for Indian Tribes Act"; H.R. 895, the "Tribal School Federal Insurance Parity Act"; and H.R. 396, to provide for the equitable settlement of certain Indian land disputes regarding land in Illinois, and for other purposes. Testimony was heard from Chairman Grijalva, and Representatives Haaland and Johnson of South Dakota; Darryl LaCounte, Director, Bureau of Indian Affairs, Department of the Interior; and public witnesses.

OIL AND GAS DEVELOPMENT: IMPACTS OF BUSINESS-AS-USUAL ON THE CLIMATE AND PUBLIC HEALTH

Committee on Natural Resources: Subcommittee on Energy and Mineral Resources held a hearing entitled "Oil and Gas Development: Impacts of Business-as-Usual on the Climate and Public Health". Testimony was heard from public witnesses.

THE LEGACY OF APOLLO

Committee on Science, Space, and Technology: Full Committee held a hearing entitled "The Legacy of Apollo". Testimony was heard from public witnesses.

EPA ADVISORY COMMITTEES: HOW SCIENCE SHOULD INFORM DECISIONS

Committee on Science, Space, and Technology: Subcommittee on Investigations and Oversight; and Subcommittee on Environment held a joint hearing entitled "EPA Advisory Committees: How Science Should Inform Decisions". Testimony was heard from J. Alfredo Gomez, Director, Natural Resources and Environment, Government Accountability Office; and public witnesses.

HELPING SMALL BUSINESSES COMPETE: CHALLENGES AND OPPORTUNITIES IN THE FEDERAL PROCUREMENT MARKETPLACE

Committee on Small Business: Subcommittee on Contracting and Infrastructure held a hearing entitled "Helping Small Businesses Compete: Challenges and Opportunities in the Federal Procurement Marketplace". Testimony was heard from public witnesses.

OVERSIGHT OF THE FEDERAL TRANSIT ADMINISTRATION'S IMPLEMENTATION OF THE CAPITAL INVESTMENT GRANT PROGRAM

Committee on Transportation and Infrastructure: Subcommittee on Highways and Transit held a hearing entitled "Oversight of the Federal Transit Administration's Implementation of the Capital Investment Grant Program". Testimony was heard from K. Jane Williams, Acting Administrator, Federal Transit Administration, Department of Transportation; and public witnesses.

SOLVING THE CLIMATE CRISIS: CLEANING UP HEAVY DUTY VEHICLES, PROTECTING COMMUNITIES

Select Committee on the Climate Crisis: Full Committee held a hearing entitled "Solving the Climate Crisis: Cleaning Up Heavy Duty Vehicles, Protecting Communities". Testimony was heard from public witnesses.

Joint Meetings

RESPONDING TO HATE CRIMES

Commission on Security and Cooperation in Europe: Commission concluded a hearing to examine responding to hate crimes, focusing on the role of religious actors, after receiving testimony from Rabbi Hazzan Jeffrey Myers, Tree of Life Synagogue, Pittsburgh, Pennsylvania; Father James Martin, America Media, New York, New York; Radia Bakkouch, Coexister, Paris, France; Alina Bricman, European Union of Jewish Students, Brussels, Belgium; and Usra Ghazi, America Indivisible, on behalf of the Mayor's Interfaith Council, and Reverend Aaron Jenkins, The Expectations Project (TEP), both of Washington, D.C.

COMMITTEE MEETINGS FOR WEDNESDAY, JULY 17, 2019

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Banking, Housing, and Urban Affairs: Subcommittee on Economic Policy, to hold hearings to examine economic mobility, focusing on whether the American dream is in crisis, 9:30 a.m., SD–538.

Committee on Commerce, Science, and Transportation: to hold hearings to examine National Aeronautics and Space Administration plans for deep space exploration, focusing on the Moon to Mars, 10:30 a.m., SH–216.

Committee on Environment and Public Works: to hold hearings to examine electric battery production and waste, focusing on opportunities and challenges, 10 a.m., SD–406.

Committee on Foreign Relations: to hold hearings to examine the nominations of Michelle A. Bekkering, of the District of Columbia, to be an Assistant Administrator of the United States Agency for International Development, and Richard K. Bell, of Pennsylvania, to be Ambassador to the Republic of Cote d'Ivoire, Jessica E. Lapenn, of New York, to be Representative of the United States of America to the African Union, with the rank and status of Ambassador, Mary Beth Leonard, of Massachusetts, to be Ambassador to the Federal Republic of Nigeria, and Lana J. Marks, of Florida, to be Ambassador to the Republic of South Africa, all of the Department of State, 2:30 p.m., SD–419.

Committee on Homeland Security and Governmental Affairs: to hold hearings to examine unprecedented migration at the United States southern border, focusing on bipartisan policy recommendations from the Homeland Security Advisory Council, 9:15 a.m., SD–342.

Subcommittee on Federal Spending Oversight and Emergency Management, to hold hearings to examine the Federally incurred cost of regulatory changes and how such changes are made, 2:30 p.m., SD–342.

Committee on Indian Affairs: business meeting to consider S. 886, to amend the Omnibus Public Land Management Act of 2009 to make the Reclamation Water Settlements Fund permanent, and S. 2071, to repeal certain obsolete laws relating to Indians, 2:30 p.m., SD–628.

Committee on the Judiciary: to hold hearings to examine the nominations of Halil Suleyman Ozerden, of Mississippi, to be United States Circuit Judge for the Fifth Circuit, David B. Barlow, to be United States District Judge for the District of Utah, John Fitzgerald Kness, to be United States District Judge for the Northern District of Illinois, and Eleni Maria Roumel, of Maryland, to be a Judge of the United States Court of Federal Claims, 10 a.m., SD–226.

Special Committee on Aging: to hold hearings to examine combating robocall fraud, focusing on using telecom advances and law enforcement to stop scammers and protect seniors, 9:30 a.m., SD–562.

House

Committee on Agriculture, Subcommittee on Biotechnology, Horticulture, and Research, hearing entitled "Assessing the Effectiveness of the National Organic Program", 10 a.m., 1300 Longworth.

Committee on Education and Labor, Subcommittee on Early Childhood, Elementary, and Secondary Education; and Subcommittee on Higher Education and Workforce Investment, joint hearing entitled "Educating our Educators: How Federal Policy Can Better Support Teachers and School Leaders", 10:15 a.m., 2175 Rayburn.

Committee on Energy and Commerce, Full Committee, markup on H.R. 3375, the "Stopping Bad Robocalls Act"; H.R. 2211, the "STURDY Act"; H.R. 3172, the "Safe Sleep for Babies Act of 2019"; H.R. 3170, the "Safe Cribs Act of 2019"; H.R. 1618, the "Nicholas and Zachary Burt Carbon Monoxide Poisoning Prevention Act of 2019"; H.R. 806, the "Portable Fuel Container Safety Act of 2019"; H.R. 2647, the "SOFFA"; H.R. 1315, the "Blue Collar to Green Collar Jobs Development Act of 2019"; H.R. 2665, the "Smart Energy and Water Efficiency Act of 2019"; H.R. 2044, the "Smart Building Acceleration Act"; H.R. 359, the "Enhancing Grid Security through Public-Private Partnerships Act"; H.R. 360, the "Cyber Sense Act of 2019"; H.R. 362, the "Energy Emergency Leadership Act"; H.R. 370, the "Pipeline and LNG Facility Cybersecurity Preparedness Act"; H.R. 2088, a bill to amend the Energy Independence and Security Act of 2007 to reauthorize the Energy Efficiency and Conservation Block Grant Program, and for other purposes; H.R. 2041, the "Weatherization Enhancement and Local Energy Efficiency Investment and Accountability Act"; H.R. 2119, a bill to amend the Energy Policy Act of 2005 to reauthorize grants for improving the energy efficiency of public buildings, and for other purposes; H.R. 2781, the "EMPOWER for Health Act of 2019"; H.R. 728, the "Title VIII Nursing Workforce Reauthorization Act of 2019"; H.R. 1058, the "Autism CARES Act of 2019"; H.R. 2507, the "Newborn Screening Saves Lives Reauthorization Act of 2019"; H.R. 776, the "Emergency Medical Services for Children Program Reauthorization Act of 2019"; H.R. 2035, the "Lifespan Respite Care Reauthorization Act of 2019"; H.R. 2296, the "METRIC Act"; H.R. 2328, the "REACH Act"; and H.R. 3432, the "Safer Pipelines Act of 2019", 9:30 a.m., 2123 Rayburn.

Committee on Financial Services, Full Committee, hearing entitled "Examining Facebook's Proposed Cryptocurrency and Its Impact on Consumers, Investors, and the American Financial System", 10 a.m., 2128 Rayburn.

Committee on Foreign Affairs, Full Committee, markup on H. Res. 326, expressing the sense of the House regarding United States efforts to resolve the Israeli-Palestinian conflict through a negotiated two-state solution; H. Res. 246, opposing efforts to delegitimize the State of Israel and the Global Boycott, Divestment, and Sanctions Movement targeting Israel; H.R. 1850, the "Palestinian International Terrorism Support Prevention Act of 2019"; H.R. 1837, the "United States-Israel Cooperation Enhancement and Regional Security Act"; H. Res. 138, expressing support for addressing the Arab-Israeli conflict in a concurrent track with the Israeli-Palestinian peace process and commending Arab and Muslim-majority states that have improved bilateral relations with Israel; H. Con. Res. 32, expressing the sense of Congress regarding the execution-style murders of United States citizens Ylli, Agron, and Mehmet Bytyqi in the Republic of Serbia in July 1999; H. Res. 442, observing 10 years since the war in Sri Lanka ended on May 18, 2009, commemorating the lives lost, and expressing support for transitional justice, reconciliation, reconstruction, reparation, and reform in Sri Lanka, which are necessary to ensure a lasting peace and a prosperous future for all Sri Lankans; H.R. 3501, the "Safeguard our Elections and Combat Unlawful Interference in Our Democracy Act"; H.R. 2097, to recognize the Hmong, Khmer, Laotian, and other ethnic groups commonly referred to as Montagnards, who supported and defended the Armed Forces during the conflict in Southeast Asia, authorize assistance to support activities relating to clearance of unexploded ordnance and other explosive remnants of war, and for other purposes; and H. Res. 127, expressing the sense of the House of Representatives on the importance and vitality of the United States alliances with Japan and the Republic of Korea, and our trilateral cooperation in the pursuit of shared interests, 10 a.m., 2172 Rayburn.

Committee on Homeland Security, Full Committee, markup on H.R. 2203, the "Homeland Security Improvement Act"; H.R. 3106, the "Domestic Terrorism DATA Act"; H.R. 3246, the "Traveling Parents Screening Consistency Act of 2019"; H.R. 3318, the "Emerging Transportation Security Threats Act of 2019"; H.R. 3320, the "Securing the Homeland Security Supply Chain Act of 2019"; H.R. 3356, the "Veterans Expedited TSA Screening Safe Travel Act"; H.R. 3413, the "DHS Acquisition Reform Act of 2019"; H.R. 3525, the "U.S. Border Patrol Medical Screening Standards Act"; H.R. 3526, the "Counter Terrorist Network Act"; H.R. 3669, the "Weatherizing Infrastructure in the North and Terrorism Emergency Readiness Act of 2019"; H.R. 3670, the "Short-term Detention Act"; H.R. 3675, the "Trusted Traveler Reconsideration and Restoration Act of 2019"; H.R. 3691, the "TRANSLATE Act"; H.R. 3694, the "Helping Families Fly Act of 2019"; H.R. 3699, the "Pipeline Security Act"; H.R. 3710, the "Cybersecurity Vulnerability Remediation Act"; and H.R. 3722, the "Joint Task Force to Combat Opioid Trafficking Act of 2019", 10 a.m., 310 Cannon.

Committee on the Judiciary, Full Committee, markup on H.R. 3239, the "Humanitarian Standards for Individuals in Customs and Border Protection Custody Act", 10 a.m., 2141 Rayburn.

Committee on Natural Resources, Full Committee, markup on H.R. 1373, the "Grand Canyon Centennial Protection Act"; H.R. 2181, the "Chaco Cultural Heritage Area Protection Act of 2019"; H.R. 3405, the "Removing

Uranium from the Critical Minerals List Act'', 10 a.m., 1324 Longworth.

Committee on Oversight and Reform, Subcommittee on Government Operations, hearing entitled ''To the Cloud! The Cloudy Role of FedRAMP in IT Modernization'', 11 a.m., 2154 Rayburn.

Committee on Science, Space, and Technology, Subcommittee on Research and Technology; and Subcommittee on Investigations and Oversight, joint hearing entitled ''Scientific Integrity in Federal Agencies'', 10 a.m., 2318 Rayburn.

Subcommittee on Energy, hearing entitled ''The Future of Electricity Delivery: Modernizing and Securing our Nation's Electricity Grid'', 2 p.m., 2318 Rayburn.

Committee on Small Business, Full Committee, markup on H.R. 3537, the ''Veteran Entrepreneurship Training Act of 2019''; H.R. 3734, the ''Successful Entrepreneurship for Reservists and Veterans Act''; H.R. 1615, the ''Verification Alignment and Service-disabled Business Adjustment Act''; H.R. 499, the ''Service-Disabled Veterans Small Business Continuation Act''; and H.R. 3661, the ''Patriotic Employer Protection Act'', 11:30 a.m., 2360 Rayburn.

Committee on Transportation and Infrastructure, Subcommittee on Aviation, hearing entitled ''State of Aviation Safety'', 10 a.m., 2167 Rayburn.

Committee on Veterans' Affairs, Subcommittee on Economic Opportunity, hearing on H.R. 561, the ''Protecting Business Opportunities for Veterans Act of 2019''; H.R. 716, the ''Homeless Veterans Legal Services Act''; H.R. 1615, the ''VA–SBA Act''; H.R. 2227, the ''Gold Star Spouses and Spouses of Injured Servicemembers Leasing Relief Expansion Act of 2019''; H.R. 2618, to amend the Servicemembers Civil Relief Act to provide a guarantee of residency for registration of businesses of spouses of members of the uniformed services, to improve occupational license portability for military spouses through interstate compacts, and for other purposes; H.R. 2924, the ''Housing for Women Veterans Act''; legislation to amend title 38, United States Code, to authorize State approving agencies to carry out outreach activities; legislation to amend title 38, United States Code, to require that educational institutions abide by Principles of Excellence as a condition of approval for purposes of the educational assistance programs of the Department of Veterans Affairs, and for other purposes; legislation to amend title 38, United States Code, to require proprietary for-profit educational institutions to comply with Federal revenue limits to participate in educational assistance programs of the Department of Veterans Affairs; legislation to amend title 38, United States Code, to require that certain educational institutions have letters of credit as a condition of approval for purposes of the educational assistance programs of the Department of Veterans Affairs, and for other purposes; legislation on the Forever GI Bill Class Evaluation Act; legislation on the VA Economic Hardship Report Act; legislation to authorize the Secretary of Veterans Affairs to collect overpayments of specially adapted housing assistance; legislation on the legal Services for Homeless Veterans Act; legislation on the GI Bill Access to Career Credentials Act; legislation to amend title 38, United States Code, to extend the time period under which an election must be made for entitlement to educational assistance under the All-Volunteer Educational Assistance Program of Department of Veterans Affairs; legislation on the Student Veteran Empowerment Act of 2019; and legislation to amend title 38, United States Code, to increase the monthly housing stipend under the Post-9/11 Educational Assistance Program for individuals who pursue programs of education solely through distance learning on more than a half-time basis, 10 a.m., HVC–210.

Next Meeting of the SENATE

10 a.m., Wednesday, July 17

Senate Chamber

Program for Wednesday: Senate will resume consideration of Protocol Amending Tax Convention with Swiss Confederation (Treaty Doc. 112–1), and vote on the resolutions of ratification for Protocol Amending Tax Convention with Swiss Confederation (Treaty Doc. 112–1), Protocol Amending the Tax Convention with Japan (Treaty Doc. 114–1), and Protocol Amending Tax Convention with Luxembourg (Treaty Doc. 111–8), at 11 a.m.

Following disposition of Protocol Amending Tax Convention with Luxembourg (Treaty Doc. 111–8), Senate will resume consideration of the nomination of Clifton L. Corker, to be United States District Judge for the Eastern District of Tennessee, and vote on the motions to invoke cloture on the nominations of Clifton L. Corker, to be United States District Judge for the Eastern District of Tennessee, Lynda Blanchard, of Alabama, to be Ambassador to the Republic of Slovenia, and Donald R. Tapia, of Arizona, to be Ambassador to Jamaica, at 2 p.m.

Next Meeting of the HOUSE OF REPRESENTATIVES

10 a.m., Wednesday, July 17

House Chamber

Program for Wednesday: Consideration of S.J. Res. 36—providing for congressional disapproval of the proposed transfer to the Kingdom of Saudi Arabia, the United Kingdom of Great Britain and Northern Ireland, the Kingdom of Spain, and the Italian Republic of certain defense articles and services. Consideration of S.J. Res. 37—providing for congressional disapproval of the proposed export to the United Arab Emirates, the United Kingdom of Great Britain and Northern Ireland, and the Republic of France of certain defense articles and services. Consideration of S.J. Res. 38—providing for congressional disapproval of the proposed export to the Kingdom of Saudi Arabia and the United Kingdom of Great Britain and Northern Ireland of certain defense articles and services.

Extensions of Remarks, as inserted in this issue

HOUSE

Brooks, Susan W., Ind., E927
Buck, Ken, Colo., E926
Carter, John R., Tex., E927
Davis, Rodney, Ill., E929
Duffy, Sean P., Wisc., E926
Espaillat, Adriano, N.Y., E928
Gallagher, Mike, Wisc., E928, E929
García, Jesús G. ''Chuy'', Ill., E930
Gianforte, Greg, Mont., E925
Gonzalez, Vicente, Tex., E928
Higgins, Clay, La., E925
Joyce, David P., Ohio, E931
Joyce, John, Pa., E929
Kinzinger, Adam, Ill., E926
Kuster, Ann M., N.H., E930
Levin, Mike, Calif., E928
Luria, Elaine G., Va., E925, E926, E927, E928, E929, E929
Norcross, Donald, N.J., E927
Norton, Eleanor Holmes, The District of Columbia, E927
Palazzo, Steven M., Miss., E925
Phillips, Dean, Minn., E926
Rooney, Francis, Fla., E929
Soto, Darren, Fla., E930
Stefanik, Elise M., N.Y., E929
Thompson, Bennie G., Miss., E930
Westerman, Bruce, Ark., E929

Congressional Record

The *Congressional Record* (USPS 087–390). The Periodicals postage is paid at Washington, D.C. The public proceedings of each House of Congress, as reported by the Official Reporters thereof, are printed pursuant to directions of the Joint Committee on Printing as authorized by appropriate provisions of Title 44, United States Code, and published for each day that one or both Houses are in session, excepting very infrequent instances when two or more unusually small consecutive issues are printed one time. ¶Public access to the *Congressional Record* is available online through the U.S. Government Publishing Office, at *www.govinfo.gov*, free of charge to the user. The information is updated online each day the *Congressional Record* is published. For more information, contact the GPO Customer Contact Center, U.S. Government Publishing Office. Phone 202–512–1800, or 866–512–1800 (toll-free). E-Mail, *contactcenter@gpo.gov*. ¶To place an order for any of these products, visit the U.S. Government Online Bookstore at: bookstore.gpo.gov. Mail orders to: Superintendent of Documents, P.O. Box 979050, St. Louis, MO 63197–9000, or phone orders to 866–512–1800 (toll-free), 202–512–1800 (D.C. area), or fax to 202–512–2104. Remit check or money order, made payable to the Superintendent of Documents, or use VISA, MasterCard, Discover, American Express, or GPO Deposit Account. ¶Following each session of Congress, the daily *Congressional Record* is revised, printed, permanently bound and sold by the Superintendent of Documents in individual parts or by sets. ¶With the exception of copyrighted articles, there are no restrictions on the republication of material from the *Congressional Record*.

POSTMASTER: Send address changes to the Superintendent of Documents, *Congressional Record*, U.S. Government Publishing Office, Washington, D.C. 20402, along with the entire mailing label from the last issue received.